

# **American Restoration and Resilience Project**

*A Roadmap for Repairing Institutional Damage, Restoring Trustworthy Government, and Preventing  
Future Personalist Capture*

## **Public Proposal Draft**

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# American Restoration and Resilience Project (ARRP)

## A Roadmap for Repairing Institutional Damage, Restoring Trustworthy Government, and Preventing Future Personalist Capture

### Reader notice

The author is an independent researcher and does not have formal legal training. This project is a policy-reform research and drafting exercise, not legal advice. Proposed legislation, model acts, constitutional amendments, and administrative language in this repository are illustrative working drafts. They have not been reviewed or approved by an attorney, legislative counsel, legal scholar, public official, or affected institution, and should not be treated as final or ready-to-introduce legislative text.

This project is intended to be institution-focused and nonpartisan in its standards, methods, and proposed remedies. It is not neutral about institutional abuse, democratic backsliding, corruption, personalist capture, rule-of-law failure, or unitary executive theory, and it is transparent about seeking to reverse, repair, and prevent institutional outcomes associated with Project 2025 and similar efforts to subordinate public institutions to personal or factional control. The project uses real-world examples to identify structural vulnerabilities and possible repairs, not to advance a party program or defend or condemn any person, party, administration, or ideology as such. Proposed remedies are meant to apply prospectively and evenhandedly across parties, officeholders, and political circumstances.

The project does not claim or intend to function as a Democratic Party agenda. At the same time, it does not ignore the practical reality that some readers, lawmakers, advocates, or institutions may be more receptive to the project because of the present political alignment of the abuses it studies. That likely audience does not define the project's standards. The project should remain candid about coalition realities while continuing to frame proposals as institutional repairs that can be evaluated, improved, supported, or criticized on their merits.

The project does not avoid naming public actors, including President Trump, where specific conduct is relevant to identifying institutional damage, structural vulnerability, or necessary repair. Such references are not included as partisan argument or personal condemnation for its own sake, but because the project depends on concrete examples of how institutions were damaged, tested, or exploited. The same standards should apply to any officeholder, party, administration, or movement that creates comparable institutional risk.

The project is not limited to incidents from President Trump's administrations. Those incidents are a principal case study because they exposed how many parts of the constitutional and administrative system depended on political traditions, voluntary restraint, unwritten norms, and underspecified legal guidelines. The project also includes older, continuing, or future-facing institutional weaknesses where they bear on democratic resilience, including representation, disenfranchisement, territorial status, and other structural conditions that affect whether the system can remain self-correcting over time.

The full neutrality, language, coalition-reality, and political-language audit rules are maintained in the technical framework and project methodology. See `framework/Framework.md` and `framework/METHODOLOGY.md`.

The project is also a living research draft. Sources, citations, examples, issue classifications, and proposed remedies may be incomplete, provisional, or later revised as the work develops.

The project is author-directed. The author has set the research agenda, selected and organized the issues, made the editorial judgments, and remained in charge of the project's structure and development. Large language model tools, including ChatGPT, have been used extensively for research organization, drafting assistance, revision, comparison, and issue spotting, but the project was not generated from scratch by an LLM. The author asserts authorship of the project as a whole and remains responsible for its editorial choices, judgments, omissions, and errors.

For a dedicated authorship, stakeholder-input, and contact statement, see `AUTHORS.md`.

### Foundational Premise

The American system of government is broken because it failed to prevent President Trump and the MAGA movement from subordinating constitutional duty, institutional independence, factual adjudication, and the peaceful transfer of power to personal loyalty. The damage must be repaired, the weaknesses that enabled it must be corrected, and stronger safeguards must be established against future personalist capture.

This project was not devised as a partisan response to partisan policy preferences, nor as a counter-platform to Project 2025. It analyzes outcomes associated with President Trump's administration, MAGA-aligned efforts, Project 2025, and other partisan or ideological projects only where they reveal, exploit, accelerate, or manifest institutional damage. The project's concern is the legal, structural, administrative, and institutional vulnerability, not the partisan identity of the actor or the ordinary policy preference at issue.

The project treats democratic resilience as more than emergency resistance to a single officeholder. A resilient system should not depend so heavily on officeholders honoring informal traditions, adhering to voluntary norms, or declining to exploit legal ambiguity. Where such traditions proved load-bearing, the project asks whether they should be clarified, hardened, made reviewable, or paired with credible correction mechanisms.

The project is designed for readers who accept the project's underlying premise and foundational diagnosis. Its purpose is not to repeatedly prove that the system is broken, but to determine how the failure occurred, what damage followed, which weaknesses allowed it, what must be repaired, and what reforms can prevent recurrence.

## **Mission**

The project will:

1. identify the principal institutional damage caused, accelerated, revealed, or exploited by President Trump, the MAGA movement, Project 2025, or comparable efforts;
2. identify the legal, structural, administrative, and policy weaknesses that made that damage possible;
3. distinguish repair of existing damage from prevention of recurrence; and
4. develop a durable roadmap for restoring lawful and trustworthy government.

## **Scope**

The project concerns systems, structures, institutions, laws, and policies. It does not attempt a comprehensive sociological account of voter psychology, cultural identity, or partisan affiliation except where those matters directly illuminate an institutional vulnerability or remedy.

The scope is not limited to President Trump, Project 2025, or any single political period. Those examples may reveal urgent vulnerabilities, but the project may also address long-running structural defects whose democratic-resilience consequences are independent of any one administration. Issues such as District of Columbia statehood, Puerto Rico status, representation gaps, and durable disenfranchisement may therefore fall within scope when the analysis connects them to institutional legitimacy, democratic self-correction, or equal political membership.

## **Governing Principles**

### ***Institutional Focus***

President Trump is the principal case study, but the institutional weakness is the subject of analysis. Each issue must identify the legal, structural, administrative, institutional, or policy vulnerability that enabled, permitted, or failed to constrain the abuse. The project should not conclude merely that "President Trump is the problem."

### ***Neutral Application***

The project is not neutral about abuse, but it is neutral about who may commit it. Evidence may involve presidents or administrations of either party where supported by reliable evidence, and safeguards must apply equally regardless of political affiliation.

The project rejects false equivalence, partisan exemptions, unsupported accusations, and rules that apply differently depending on who holds power.

### ***Truth and Reconciliation***

The project seeks truth, legal coherence, factual accountability, and reconciliation grounded in an honest record. Where evidence establishes responsibility, the project should state it directly. Where uncertainty remains, it should identify the uncertainty rather than manufacture balance.

### ***Restoration and Reform***

The objective is not automatic return to the pre-2017 institutional status quo. Where prior arrangements enabled abuse, restoration must include redesign and legal hardening.

### ***Democratic Resilience***

The project uses resilience to mean the legal and institutional capacity to withstand abuse, correct failure, and preserve democratic legitimacy without relying primarily on voluntary restraint. Political traditions, professional norms, and interbranch comity remain valuable, but they are not sufficient when a determined actor can lawfully or practically evade them. Where the project identifies a norm as load-bearing, it should consider whether that norm needs a statutory hook, procedural trigger, transparency requirement, review mechanism, enforcement path, or constitutional clarification.

### ***Functional Administrative Independence***

Elected officials should control lawful policy direction. Factual determination, scientific assessment, adjudication, auditing, personnel administration, and individual enforcement decisions should receive protection from personal or partisan coercion.

### ***Unitary Executive Consolidation***

The project is not opposed to a strong executive as such. A constitutional republic needs an executive capable of lawful administration, crisis response, foreign-policy execution, national defense, and faithful implementation of statutes. The project objects to theories and practices that convert executive strength into power enhancement, accumulation, institutional corrosion, or evasion of the democratic checks and balances built into the constitutional design.

Unitary-executive jurisprudence becomes corrosive when it treats presidential control as a reason to disregard congressional intent, weaken independent adjudication or factual administration, evade appropriations limits, defeat statutory accountability, or place executive

action substantially beyond timely judicial review. The project therefore distinguishes lawful energetic execution from legal theories that make executive power self-insulating, self-expanding, or resistant to ordinary democratic correction.

Project 2025-style unitary executive theory is Federalist in pedigree but Anti-Federalist in consequence: it takes Hamilton's argument for executive unity and pushes it toward the monarchy-like concentration of power that Anti-Federalists feared. If presidential action cannot be meaningfully constrained by the other branches of government, then separation of powers and checks and balances become functionally meaningless. The powers delegated to the judicial and legislative branches are hollowed out if the President can reconstruct, absorb, evade, or nullify those functions within the executive branch.

Many issues produced by unitary executive theory may share a common constitutional source and therefore may be curable, if at all, through a single carefully drafted constitutional amendment rather than a separate amendment for each affected proposal. Where a proposal's core obstacle is Article II doctrine rather than ordinary statutory ambiguity, the project should evaluate whether the issue belongs within a broader executive-power amendment package.

Ordinary legislation may still provide useful staging, transparency, process, reporting, funding, records, and continuity safeguards. But the project should not mistake those mitigation tools for a durable cure when the asserted defect is constitutional doctrine limiting Congress's power to insulate, supervise, or structure executive-branch functions.

### ***Institutional Corrigibility***

Not every institutional abuse can be prevented without impairing legitimate governmental authority, eliminating necessary discretion, or creating an equally serious countervailing danger. Where complete prevention is impracticable, the project should establish the least-complex adequate means by which abuse can be detected, documented, reviewed, exposed, remedied, deterred, and prevented from becoming entrenched.

A remedy may therefore be adequate even when it cannot prevent the first violation, provided it creates a credible and durable avenue for institutional self-correction. The analysis should distinguish prevention, detection, correction, deterrence, and containment rather than treating them as interchangeable.

Institutional corrigibility is not an excuse for weak reform. Preventive safeguards remain preferable where they are lawful, workable, and proportionate. Corrigibility becomes central where stronger front-end control would destroy necessary discretion, create unconstitutional supervision, or impose a cure more damaging than the underlying risk.

## **How to Read an Issue Page**

Developed issue pages are designed to move from problem to remedy before turning to scoring and technical notes. Common sections include:

- **Issue Snapshot:** brief problem, repair, and vehicle summary.
- **Institutional Anomaly:** the structural defect the issue addresses.
- **Manifestation of the Failure:** representative facts showing the defect in operation.
- **Resulting Damage:** institutional, legal, administrative, or legitimacy harm.
- **Underlying Weakness:** the law, structure, procedure, remedy, or norm that failed.
- **Proposal Survey:** existing law, prior proposals, or adjacent models considered.
- **Least-Complex Adequate Remedy:** the preferred remedy and why it is sufficient.
- **Repair and Prevention:** how the proposal repairs damage and reduces recurrence.
- **Proposed Legislation:** linked draft bill, rule, amendment, manual text, or procedural vehicle.
- **Adoption Viability Note:** why a legally available vehicle may still require a future or amenable actor.
- **Relationship to Adjacent Proposals:** how overlapping ARRP proposals differ, merge, or complement one another.
- **Budgetary Impact Statement:** preliminary fiscal or workload classification, not an official cost score.
- **Proposal Scoring:** compact readiness, adoption, friction, pathway, review, and audit-status summary.
- **Annotation:** evidence, qualifications, legal analysis, alternatives, implementation limits, and score explanations.
- **Audit History:** linked technical sidecar preserving the full audit record.

## **Proposal Scores**

Issue pages may include a **Proposal Quality Score** from 0 to 100. The score is a planning and readiness signal, not a claim that the proposal is correct, final, popular, legally valid, or certain to pass. It measures how well the proposal has been developed, sourced, tested against existing law, checked for implementation risk, and prepared for review.

Score bands are interpreted as follows:

| Score | Meaning                                                                                                     |
|-------|-------------------------------------------------------------------------------------------------------------|
| 0     | <b>Not Scored:</b> retired, merged, moot, pending development, or awaiting a controlling finding.           |
| 1-49  | <b>Early/Partial Draft:</b> major unresolved source, legal, remedy, or structure issues.                    |
| 50-64 | <b>Developed Draft:</b> meaningful structure but incomplete audit support.                                  |
| 65-74 | <b>Substantially Developed Draft:</b> useful internally but still has material unresolved issues.           |
| 75-84 | <b>Review Ready:</b> strong enough for knowledgeable external critique, but not yet proposal-ready.         |
| 85-89 | <b>Advanced Review Ready:</b> most internal checks are complete, but key validation remains.                |
| 90-94 | <b>Proposal Ready:</b> mature enough for serious proposal packets or stakeholder circulation, with caveats. |
| 95-99 | <b>Publication Ready:</b> rare and heavily validated.                                                       |
| 100   | <b>Fully Validated:</b> theoretically possible but not expected for most reforms.                           |

The full scoring formula and audit rules are maintained in `framework/METHODOLOGY.md`.

Some issue pages also show an **Adoption Score** from 0 to 12. This is part of the Proposal Quality Score, not a separate score. It measures whether the proposal has a realistic, evidence-supported adoption path, including likely audiences, good-faith objections, coalition strategy, current support evidence, and the required electoral environment.

Adoption score bands are interpreted as follows:

| Score | Meaning                                                                                        |
|-------|------------------------------------------------------------------------------------------------|
| 0     | <b>Unassessed:</b> adoption path has not been scored.                                          |
| 1-3   | <b>Weak Adoption Basis:</b> adoption path is mostly undeveloped or unsupported.                |
| 4-6   | <b>Limited Adoption Basis:</b> some adoption logic exists, but key evidence is missing.        |
| 7-9   | <b>Credible Adoption Basis:</b> adoption path is reasonably developed and partly evidenced.    |
| 10-11 | <b>Strong Adoption Basis:</b> adoption path is well developed and well supported.              |
| 12    | <b>Exceptional Adoption Basis:</b> adoption path is unusually complete and strongly evidenced. |

Some issue pages also show **Coalition Support Estimates** for Democratic, Republican, independent, or bipartisan audiences. These percentages are provisional planning judgments, not polling claims. They estimate how likely each audience is to find the proposal supportable in principle based on the proposal's framing, institutional purpose, current public evidence, prior legislative behavior, stakeholder signals, good-faith objections, and audit judgment. They should be revised when better polling, expert review, legislative behavior, stakeholder feedback, or coalition analysis becomes available.

Some issue pages may also show **External Review Status** when a qualified professional or institutional reviewer has reviewed the proposal. External review can increase the Proposal Quality Score only when the review is documented, within the reviewer's domain, and incorporated into the audit record. Qualified reviewers may include relevant attorneys, legislative counsel, legislators or legislative staff, law professors, public-law scholars, government practitioners, inspectors general or ethics professionals, subject-matter experts, or affected institutional stakeholders. External review is not a guarantee that a proposal is legally valid, final, or certain to pass.

Some issue pages also include an **Adoption Friction Score** from 0 to 100. This is separate from Proposal Quality. It estimates how much resistance, litigation risk, procedural blockade, public misunderstanding, or institutional opposition a proposal is likely to face. A higher friction score does not mean the proposal is worse; it means adoption will likely require more coalition work, explanation, staging, or litigation planning.

Adoption friction bands are interpreted as follows:

| Score      | Meaning                                                                                                           |
|------------|-------------------------------------------------------------------------------------------------------------------|
| 0-20       | <b>Low Resistance:</b> likely to face limited organized opposition or implementation friction.                    |
| 21-40      | <b>Manageable Resistance:</b> likely to face ordinary objections but no major structural barrier.                 |
| 41-60      | <b>Significant Resistance:</b> likely to require active coalition work, explanation, or implementation planning.  |
| 61-80      | <b>High Resistance:</b> likely to face organized opposition, litigation risk, or serious procedural barriers.     |
| 81-100     | <b>Extreme Resistance:</b> likely to face intense opposition, major litigation, or exceptional adoption barriers. |
| Unassessed | Not yet scored.                                                                                                   |

Some issue pages also include a **Required Electoral Environment** descriptor. This is not a separate score. It states, in plain terms, what political or institutional condition would likely need to exist before the proposal could realistically move. The descriptor helps calibrate adoption and implementation risk; it does not mean the proposal is weak, undesirable, or impossible.

**current-law-available** means a legal or institutional vehicle already exists; it does not mean the current officeholder or institution is likely to adopt the proposal. Where adoption depends on voluntary self-limitation by the same actor whose discretion would be constrained, the Adoption Score and Adoption Friction Score should reflect that practical barrier.

Common descriptors are interpreted as follows:

| Descriptor                   | Meaning                                                     |
|------------------------------|-------------------------------------------------------------|
| <b>current-law-available</b> | Existing law, rule, or authority may already permit action. |



| Descriptor                                | Meaning                                                                    |
|-------------------------------------------|----------------------------------------------------------------------------|
| not-electorally-dependent                 | The proposal does not mainly depend on an election outcome.                |
| house-oversight-majority                  | A House majority could advance oversight, hearings, subpoenas, or reports. |
| narrow-unified-government                 | Same-party control is likely needed, but margins may be tight.             |
| filibuster-constrained-unified-government | Unified government may still face Senate filibuster limits.                |
| sixty-vote-senate                         | Ordinary Senate passage likely requires a 60-vote coalition.               |
| filibuster-reform-or-exception            | Passage likely requires changing or bypassing the filibuster.              |
| wave-election-mandate                     | The proposal likely needs a major electoral shift.                         |
| post-crisis-repair-mandate                | Adoption likely requires a public crisis or institutional reckoning.       |
| constitutional-amendment-environment      | Adoption would require Article V-level national and state support.         |
| state-level-pathway                       | The proposal is more viable through state action or state models.          |
| unassessed                                | The electoral environment has not yet been assessed.                       |

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## Citation

For citation metadata, see `CITATION.cff`. The preferred citation may be updated when the project is formally released for broader public use.

**Project Areas and Issues**

# A-01 — Department of Justice

## Generalized Institutional Concern

The Department of Justice lacks sufficient structural independence, external oversight, and enforceable safeguards to prevent presidential use of its leadership, personnel, investigative authority, and prosecutorial discretion for personal protection, political retaliation, or partisan advantage.

### Issues

- DOJ-001 — Recent Presidential Personal Counsel in Senior DOJ Leadership
- DOJ-002 — White House Direction or Interference in Particular Federal Criminal Matters
- DOJ-003 — Politically Selective Enforcement, Charging, and Favoritism
- DOJ-004 — Protection of Career DOJ Personnel from Politically Motivated Removal or Reassignment \_(status: Awaiting merits adjudication; priority: High)\_
- DOJ-005 — Weak Enforcement and Internal Control of DOJ Recusal Duties
- **DOJ-006** — Insufficiently enforceable limits on White House–DOJ contacts \_(status: Retired—merged into DOJ-002 and DOJ-007)\_
- DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct
- **DOJ-008** — Weak external review of politicized charging or noncharging decisions \_(status: Retired—merged into DOJ-003)\_
- DOJ-009 — Insufficient Professional-Qualification Requirements for Senior DOJ Leadership

### Issue Boundaries

- **DOJ-002** owns preventive controls over case-specific White House and political contacts, including routing, logging, review, and preservation.
- **DOJ-003** owns politically selective charging and noncharging together with independent OIG anomaly review and congressional reporting.
- **DOJ-004** is paused pending merits adjudication of the Article II removal question presented by the Maurene Comey litigation.
- **DOJ-005** owns senior-official recusal administration and enforcement.
- **DOJ-007** owns independent investigation, evidence preservation, and congressional reporting when presidential or senior executive conflict makes ordinary DOJ accountability unreliable.
- **DOJ-009** owns baseline professional eligibility, good standing, disciplinary disclosure, and post-appointment discipline consequences for senior DOJ legal offices.

### Notes

DOJ-001, DOJ-002, DOJ-003, DOJ-005, DOJ-007, and DOJ-009 are developed. DOJ-004 is substantively identified but intentionally held at Awaiting merits adjudication. DOJ-006 and DOJ-008 are retired as duplicative standalone issues, with their nonduplicative components preserved in the identified primary issues.

# DOJ-001 — Recent Presidential Personal Counsel in Senior DOJ Leadership

## Issue Snapshot

**Problem:** Recent presidential counsel can control DOJ.

**Repair:** Seven-year top-DOJ cooling-off rule.

**Vehicle:** 28 U.S.C. §§ 503–504a amendments (draft).

## Institutional Anomaly

The appointment framework does not adequately protect the Department of Justice from control by a president’s recent personal counsel, especially where the prior representation involved criminal exposure or matters touching presidential power.

## Manifestation of the Failure

### *Senior DOJ personal-counsel appointment*

President Trump nominated Todd Blanche, described by the Associated Press as President Trump’s former defense attorney, for senior Department leadership; the Senate confirmed Blanche as Deputy Attorney General in March 2025. See Associated Press and Congress.gov PN12-5. As of the June 27, 2026 T4 publication-ready audit, DOJ’s own pages list Blanche as both Acting Attorney General and Deputy Attorney General, making the manifestation broader than the original Deputy Attorney General confirmation alone. The Guardian separately reported on June 8, 2026 that President Trump nominated Blanche to serve as Attorney General; that report is treated as a source lead pending verification against an official nomination record. See The Guardian.

### *Case-specific disqualification limits*

A June 2026 Associated Press report also shows why matter-specific conflict litigation is not a substitute for a structural appointment rule. In a prosecution involving an alleged attack connected to the White House Correspondents’ Association dinner, a federal judge rejected a defendant’s request to disqualify Acting Attorney General Blanche and D.C. U.S. Attorney Jeanine Pirro from supervisory involvement. The ruling did not address Blanche’s prior representation of President Trump, so it should not be overstated; it is useful here only because it illustrates that case-by-case disqualification may fail even where senior DOJ officials’ proximity to a charged event is challenged. See Associated Press.

### *Executive-contempt enforcement and DOJ control*

The contempt proceedings in *J.G.G. v. Trump* illustrate an adjacent enforcement risk. The district court pursued contempt after alleged executive noncompliance with removal-related orders; the D.C. Circuit later blocked the contempt inquiry in No. 25-5124. CourtListener docket metadata lists the D.C. Circuit matter as filed April 17, 2025, terminated August 8, 2025, and followed by later panel and en banc entries on November 14, 2025. See CourtListener, *J.G.G. v. Donald Trump*, No. 25-5124. A separate Supreme Court docket, *Trump v. J.G.G.*, No. 24A931, concerns the underlying emergency posture; the project has not verified Supreme Court review of the later contempt ruling itself.

The example matters for DOJ-001 because criminal contempt and executive-compliance disputes may depend on Department leadership willing to identify responsible officials, authorize or decline prosecution, preserve evidence, and avoid presidential-loyalty conflicts. If senior DOJ leadership recently represented the President personally, the legitimacy of DOJ decisions in contempt, compliance, or executive-accountability matters becomes more vulnerable.

## Resulting Damage

The arrangement creates a structural conflict between public law-enforcement responsibility and a recent relationship of personal loyalty, confidential knowledge, and strategic alignment. It also undermines confidence that Department decisions affecting the president, his associates, or political opponents are institutionally independent.

## Underlying Weakness

Existing ethics and recusal rules are primarily matter-specific and internally administered. They do not fully address department-wide authority, personnel influence, access to information, agenda control, or the legitimacy costs created by placing recent personal counsel at the head of federal law enforcement.

## Proposal Survey

Existing federal models use targeted eligibility limits and cooling-off periods rather than broad personal-disqualification regimes. The Secretary of Defense statute bars appointment within seven years after active-duty commissioned service unless Congress grants a waiver. See 10 U.S.C. § 113. Federal post-employment restrictions separately regulate former officers’ later appearances and communications, showing Congress’s willingness to address relationship-based conflicts through time-limited rules. See 18 U.S.C. § 207.

DOJ’s own conflict rules also provide a narrower internal analogue, requiring disqualification from criminal investigations or prosecutions where a personal or political relationship exists unless participation is authorized. See 28 C.F.R. § 45.2. The executive-branch impartiality rule similarly treats recent attorney, consultant, contractor, officer, and employee relationships as covered relationships that can require nonparticipation in particular matters. See 5 C.F.R. § 2635.502. DOJ-001 builds from those models but

applies them at the appointment-eligibility stage, where matter-specific screening is insufficient.

The T4 publication-ready audit did not identify a direct prior bill using the same personal-presidential-counsel eligibility rule. The closest statutory models are therefore structural analogues: the Secretary of Defense cooling-off qualification, Senate-confirmation nominee disclosure timing, Office of Government Ethics review authority, and existing DOJ and executive-branch impartiality rules.

A closer adjacent legislative analogue is the Protecting Our Democracy Act, H.R. 5314, 117th Congress. Title VI, the “Security from Political Interference in Justice Act of 2020,” would have required DOJ communications logs for covered communications involving contemplated or ongoing DOJ investigations or litigation and periodic disclosure to the DOJ Inspector General. Congress.gov records that H.R. 5314 passed the House 220-208, had 168 cosponsors, and was received in the Senate. This does not establish precedent for a personal-counsel eligibility rule, but it does show prior House-passed legislative interest in insulating DOJ from White House political interference.

## Least-Complex Adequate Remedy

Congress should amend 28 U.S.C. §§ 503, 504, and 504a to make a person ineligible to be appointed or serve as Attorney General, Deputy Attorney General, or Associate Attorney General during the seven years after personally providing covered legal representation or advice to the sitting President. Covered representation should include private, personal, electoral, criminal-defense, civil-liability, impeachment, or comparable matters in which the President’s interests were distinct from, or could reasonably diverge from, the interests of the United States. Official legal service performed solely on behalf of the United States or the Executive Office of the President should be excluded. This mirrors Congress’s established use of a cooling-off qualification for the Secretary of Defense under 10 U.S.C. § 113, uses existing statutory hooks for the senior DOJ offices in the Attorney General succession line, and directly addresses the conflict without creating a new institution.

## Repair and Prevention

Repair requires transparent disclosure, independent Office of Government Ethics review, enforceable screening, and verification that affected matters are insulated. Prevention requires rules addressing recent personal representation before appointment to the Attorney General, Deputy Attorney General, or Associate Attorney General offices. The T3 audit added a narrow judicial-review path for the covered individual and people directly subject to DOJ action substantially involving the allegedly ineligible official, while preventing automatic invalidation of DOJ actions absent an independent remedial basis and particularized prejudice.

## Proposed Legislation

- Seven-Year Cooling-Off Rule for Senior Justice Department Eligibility

## Budgetary Impact Statement

Administrative workload is possible through nominee disclosure, OGE review, DOJ ethics consultation, Senate review, and occasional expedited judicial review; no new appropriation is specified and no dollar estimate is assigned.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 82 / 100 (Review Ready)

**Adoption Score:** 5 / 12 (Limited Adoption Basis)

**Coalition Support Estimates:**

Democratic 80%

Independent 60%

Republican 40%

Bipartisan viability 55%

**Adoption Friction:** 72 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

—

**Audit Status:** T4 publication-ready audit complete; SCOTUS current-status update no score effect

**Last Audit:** SCOTUS current-status update

**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current

**Next Audit:** T4 follow-up on post-*Slaughter* enforcement design, *J.G.G.* contempt posture, official AG nomination record, and external review

**Full Audit History:** DOJ-001 audit history

## Annotation

**Basis and Evidence.** Former-client duties continue after representation ends, but they generally operate through confidentiality and matter-specific conflict rules. Senior Department leadership exercises authority extending beyond any single matter through supervision, personnel, policy, information access, and enforcement priorities. The current T4 source base includes Congress.gov PN12-5 for Todd Blanche's Deputy Attorney General nomination and confirmation, Associated Press reporting describing Blanche as President Trump's former defense attorney, 28 U.S.C. §§ 503, 504, 504a, and 508 for the Attorney General, Deputy Attorney General, Associate Attorney General, and succession statutory hooks, 10 U.S.C. § 113 for the cooling-off analogue, 5 U.S.C. § 13103 for nominee disclosure timing, 5 U.S.C. § 13122 for OGE review authority, 28 C.F.R. § 45.2 and 5 C.F.R. § 2635.502 for conflict and impartiality analogues, ABA Model Rule 1.9 for former-client professional-responsibility duties, and H.R. 5314 as an adjacent prior-legislative model for DOJ political-interference controls.

**Qualification.** Prior representation does not create a perpetual duty to advance a former client's interests, and appointment of a former attorney is not automatically unlawful. The identified defect is the inadequacy of existing institutional safeguards, not a categorical assertion that current professional-responsibility law forbids the appointment.

**Remedial Alternatives and Constraints.** Disclosure, recusal, and screening alone are simpler but do not adequately address department-wide authority or institutional legitimacy. A broader prohibition covering any attorney who served in any legal capacity would be easier to state but constitutionally more vulnerable and unnecessarily overinclusive. The proposed rule therefore should be temporary, generally applicable, and limited to personal or politically interested representation. Congress's use of office-specific cooling-off qualifications supports the design, but it is a statutory analogue rather than controlling judicial precedent. Full proposed legislative language is maintained separately in the project's Legislative Drafting Proposals under DOJ-001.

**Judicial Scrutiny.** The strongest constitutional argument for DOJ-001 is that Congress created the senior DOJ offices by statute, already defines their appointment structure, and may attach narrow office-specific eligibility conditions without changing the Appointments Clause process. The bill preserves presidential nomination and Senate advice-and-consent, does not create tenure protection, does not restrict removal, and does not assign appointment power to Congress. See *Buckley v. Valeo* for the Appointments Clause baseline that officers exercising significant federal authority must be appointed through constitutionally prescribed methods. The strongest constitutional objection is that the Attorney General, Deputy Attorney General, and Associate Attorney General exercise core executive law-enforcement authority, and current Supreme Court doctrine is protective of presidential control over officers who exercise executive power. See *Myers v. United States*, *Seila Law LLC v. CFPB*, and *Trump v. United States*. The proposal's best durability strategy is to frame the rule as a prospective, neutral, conflict-based eligibility condition rather than as a removal limit, prosecution rule, or punishment of a named person.

**Current Judicial Vulnerability.** The Supreme Court has now decided *Trump v. Slaughter*, holding that the FTC's statutory for-cause removal protection is unconstitutional. The decision does not directly decide whether Congress may set prospective eligibility rules for DOJ offices, because DOJ-001 is not a removal-protection scheme and preserves presidential nomination, Senate confirmation, and at-will supervision. It does, however, heighten the need for T4 follow-up on DOJ-001's enforcement and officeholding-relief design, especially any remedy that could be characterized as judicial interference with executive-office control.

The project should also recheck the contempt posture in *J.G.G. v. Donald Trump*, D.C. Cir. No. 25-5124. The D.C. Circuit contempt ruling is not Supreme Court precedent, and the project has not verified a Supreme Court disposition of the contempt question itself. Later Supreme Court action could affect DOJ-001 in part by changing the practical importance of DOJ-controlled contempt prosecution, independent-prosecutor fallback design, or executive-compliance remedies. Until that posture is verified, *J.G.G.* is a material-reframing risk rather than a mootness finding.

**Enforcement Design.** The T3 audit concluded that broad private, taxpayer, voter, or legislator standing would be weak and should not be the enforcement backbone. The bill now uses a narrower review channel for the covered individual and for people directly subject to DOJ action personally authorized, directed, supervised, or substantially participated in by the allegedly ineligible official. It also limits automatic invalidation of DOJ actions to reduce de facto-officer disruption and separation-of-powers risk.

**Budgetary Impact.** DOJ-001 specifies no appropriation and does not create a new office. The expected burden is administrative: nominee disclosure, OGE review, possible DOJ Designated Agency Ethics Official consultation, Senate Judiciary receipt and consideration, and occasional expedited litigation in the U.S. District Court for the District of Columbia if the eligibility rule is contested. No dollar estimate is assigned because no CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source has been identified for this proposal.

**Quality Score.** The 82/100 score reflects a review-ready proposal with strong structure, source support, legal fit, remedy design, abuse resistance, drafting quality, cogency, and project integration. It remains below proposal-ready status because no external legal or legislative review has been incorporated, no proposal-specific polling has been found, no direct prior bill using the same personal-presidential-counsel eligibility rule has been identified, no official Attorney General nomination record has been verified, and post-*Slaughter* enforcement design and the *J.G.G.* contempt posture still require follow-up.

**Adoption Score.** The 5/12 score is limited because the current evidence supports the general public-trust concern but not the specific seven-year cooling-off mechanism.

**Coalition Support Estimates.** The coalition support estimates are provisional planning judgments, not polling evidence.

**Adoption Friction.** The 72/100 score is high because the proposal concerns senior DOJ eligibility, presidential appointment discretion, separation-of-powers doctrine, a live manifestation involving President Trump, likely stakeholder opposition, public-messaging risk, and

probable litigation.

**Required Electoral Environment.** The required environment is `sixty-vote-senate` because the current vehicle is ordinary federal legislation likely subject to Senate cloture unless attached to another viable vehicle or paired with procedural reform.

**Development Priority.** The priority remains `active` because the proposal is coherent and useful, but should be staged with narrower disclosure, OGE-review, confirmation-process, or oversight variants.

**Support and Adoption.** The T4 audit found public-opinion evidence supporting the general institutional concern but not the specific DOJ-001 mechanism. A January 2025 AP-NORC poll found low public confidence that DOJ and the FBI would act fairly and nonpartisan during President Trump's second term, including uncertainty among Republicans. That supports the salience of DOJ independence, but it does not measure support for a seven-year personal-counsel cooling-off rule. The adoption score therefore remains 5/12.

**Publication Readiness.** DOJ-001 is a strong developed draft, not yet a publication-ready proposal. Before public circulation, the project should obtain external legal or legislative review, verify any official Attorney General nomination record if one becomes available, reassess the enforcement design after *Trump v. Slaughter* and any further verified *J.G.G.* contempt review, and decide whether to add a staged fallback vehicle focused on disclosure, OGE review, or Senate-confirmation procedure.

## DOJ-001 — Audit History

This file preserves the full audit history for DOJ-001. The issue page keeps only the compact Proposal Scoring summary.

### Prototype Note

DOJ-001 has a substantially longer audit history than most issue pages are expected to have. It was used as a prototype while developing the project's audit structure, Proposal Scoring format, rebaseline process, sidecar audit-history convention, dashboard synchronization, and related framework rules. Its audit history therefore records both proposal-specific review and project-structure development work. Future issue pages may have shorter audit histories unless they are similarly used to test or revise project-wide procedures.

### Audit History

#### 2026-07-02 — SCOTUS current-status update

**Audit status:** T4 publication-ready audit complete; SCOTUS current-status update no score effect

**Proposal-quality score:** 82

**Current-status update:** *Trump v. Slaughter* has now been decided. The decision does not directly control DOJ-001 because DOJ-001 is framed as a prospective eligibility rule for statutory DOJ offices rather than a for-cause removal protection. It does, however, heighten the need for the next T4 follow-up to test DOJ-001's civil-action and officeholding-relief provisions against current separation-of-powers doctrine.

**Score effect:** No score change. This update resolves stale pending-case wording but does not complete external legal review, direct prior-proposal grounding, official Attorney General nomination verification, adoption evidence, or the full post-*Slaughter* enforcement-design reassessment.

**Next audit need:** Run T4 follow-up on post-*Slaughter* enforcement design, *J.G.G.* contempt posture, official Attorney General nomination-record development, staged fallback options, and external legal or legislative review.

#### 2026-06-28 — Change Audit: J.G.G. Contempt-Posture Update

**Audit scope:** Proposal-specific Change Audit after DOJ-001 was updated to add *J.G.G. v. Trump* as an adjacent executive-contempt and DOJ-control example. This audit reviewed the DOJ-001 issue page, linked legislation, audit sidecar, source inventory, audit inventory, Audit Dashboard row, and the newly added CourtListener and Supreme Court docket sources. It did not change governing project rules and therefore is recorded here rather than in the project-wide Change Audit Log.

**Pre-audit blocker check:** No blocking unresolved finding required cancellation. Existing unresolved items remain ordinary next-audit needs: post-*Trump v. Slaughter* reassessment, official Attorney General nomination-record verification, external legal or legislative review, proposal-specific adoption evidence, and staged fallback development.

**Current-status and material-reframing result:** DOJ-001 remains live and not moot. The *J.G.G.* contempt posture does not supersede DOJ-001, but it materially sharpens the enforcement context. CourtListener metadata for *J.G.G. v. Donald Trump*, D.C. Cir. No. 25-5124 supports the existence of a D.C. Circuit contempt-related appeal, later panel activity, and en banc activity. The official Supreme Court docket for *Trump v. J.G.G.*, No. 24A931 supports the separate underlying emergency posture. The project has not verified Supreme Court review or disposition of the later contempt ruling itself.

**Issue-to-legislation consistency:** The issue page and bill remain aligned. The bill still addresses senior DOJ appointment eligibility, disclosure, OGE review, narrowed judicial review, and remedial guardrails. The new *J.G.G.* material is correctly presented as adjacent enforcement context rather than as an operative change to the proposed eligibility rule.

**Finding:** No score effect. The update strengthens DOJ-001's explanation of why DOJ leadership conflicts matter in executive-compliance and contempt settings, but it does not resolve any scored deficiency. It does not add external review, proposal-specific polling, direct prior-bill support, official Attorney General nomination verification, or final post-*Slaughter* and post-*J.G.G.* judicial-posture resolution. The Proposal Quality Score remains 82/100.

**Records updated:** Updated the DOJ-001 issue page, source inventory, audit history, audit inventory, and Audit Dashboard to reflect the *J.G.G.* contempt-posture caveat and next-audit need.

**Next audit need:** Run T4 follow-up after *Trump v. Slaughter* is decided, the *J.G.G.* contempt posture is verified through official D.C. Circuit order text and any Supreme Court contempt-specific filing or disposition, an official Attorney General nomination record is located or ruled out with stronger certainty, and external legal or legislative review is obtained. Consider whether the judicial-enforcement proposal should receive a separate update using the same source record.

#### 2026-06-27 — Change Audit: Institutional Self-Limitation Rule

**Audit scope:** Targeted Change Audit after rubric 2026-06-27.2 added the Institutional Self-Limitation Rule. This was not a new T4 source refresh or recalculation of DOJ-001's substantive legal analysis. It checked whether the new rule affects DOJ-001's adoption score, pathway, or adoption friction.



**Finding:** No score effect. DOJ-001 uses federal legislation as its vehicle and does not depend on voluntary self-limitation by the same institutional actor whose discretion the proposal constrains. Its adoption difficulty remains captured by the existing sixty-vote-senate pathway, 5/12 Adoption Score, and 72/100 High Resistance Adoption Friction.

**Records updated:** Updated DOJ-001 issue-page rubric version, visible Proposal Scoring rubric version, `inventory/audits.csv`, and `AUDIT_DASHBOARD.md` to show that DOJ-001 is current under rubric 2026-06-27.2.

### 2026-06-27 — T4 Publication-Ready Audit

**Audit scope:** Single-issue T4 publication-ready audit for DOJ-001 and its linked legislative text under audit rubric 2026-06-27.1. This audit tested current-source refresh, mootness and material-reframing, government and public legal-source review, prior-proposal search, legal and judicial-scrutiny review, adoption-pathway review, budgetary-impact review, issue-to-legislation consistency, source-inventory synchronization, and publication-readiness scoring. It did not use paid legal databases and did not claim attorney, legislative-counsel, or outside expert review.

**Pre-audit blocker check:** No unresolved prior-audit issue required cancellation. The T3 audit identified T4-level work rather than a blocker: official Attorney General nomination-record verification, post-Slaughter reassessment, closer prior-proposal analogues, adoption evidence, and external review.

**Sources and source categories checked:** The audit reviewed the DOJ-001 issue page, DOJ-001 legislative draft, DOJ-001 audit history, `inventory/audits.csv`, `inventory/sources.csv`, and Audit Dashboard row. It refreshed official DOJ pages for the Attorney General and Deputy Attorney General, Congress.gov PN12-5 for Todd Blanche's Deputy Attorney General nomination, the Supreme Court docket for *Trump v. Slaughter*, official statutory and regulatory sources already cited on the page, Congress.gov records for the Protecting Our Democracy Act, and current public reporting and polling sources relevant to DOJ independence and public confidence.

**Current-status and mootness result:** DOJ-001 remains live and not moot. DOJ official pages continued to support the current-status premise that Todd Blanche was listed as Acting Attorney General and Deputy Attorney General during the audit. Congress.gov continues to provide the official confirmation record for Blanche as Deputy Attorney General. The Guardian report that President Trump nominated Blanche to serve as Attorney General remains a source lead only; no official Attorney General nomination record was identified during this audit. *Trump v. Slaughter* remains a pending judicial vulnerability because no final merits decision was identified during the docket refresh.

**Prior-proposal and legislative-analogue finding:** No direct prior bill was identified that uses DOJ-001's precise personal-presidential-counsel eligibility rule. The audit did identify a stronger adjacent legislative analogue: the Protecting Our Democracy Act, H.R. 5314, 117th Congress. Title VI, the "Security from Political Interference in Justice Act of 2020," would have required Department of Justice communications logs for covered White House/DOJ communications involving contemplated or ongoing investigations or litigation and periodic disclosure to the DOJ Inspector General. Congress.gov records that H.R. 5314 passed the House 220-208, had 168 cosponsors, and was received in the Senate. This improves prior-proposal grounding but does not become direct precedent for the personal-counsel cooling-off rule.

**Legal and judicial-scrutiny finding:** The proposal remains legally plausible but not litigation-proof. Its strongest argument is still that Congress may define statutory eligibility for offices it created while preserving presidential nomination, Senate confirmation, and removal authority. Its highest-risk features remain the subject matter and office level: Attorney General, Deputy Attorney General, and Associate Attorney General exercise core executive law-enforcement authority, and current Supreme Court doctrine is protective of presidential supervision over executive officers. The T3 enforcement design remains the best available version in the project record because it narrows review to the covered individual and people directly subject to DOJ action involving the allegedly ineligible official, while preventing automatic invalidation of DOJ actions.

**Budgetary-impact finding:** The T3 budgetary-impact statement remains appropriate at T4. The proposal specifies no new appropriation, creates no new office, and supports no source-backed dollar estimate. Its expected implementation burden is administrative: nominee disclosure, OGE review, possible DOJ Designated Agency Ethics Official consultation, Senate Judiciary receipt and consideration, and occasional expedited judicial review if eligibility is contested. No CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source specific to this mechanism was identified.

**Adoption and public-support finding:** The audit found public-opinion evidence supporting the general institutional concern but not the specific mechanism. A January 2025 AP-NORC poll reported low public confidence that DOJ and the FBI would act fairly and nonpartisan during President Trump's second term, including uncertainty among Republicans. That supports issue salience and public-trust framing, but it does not measure support for a seven-year personal-counsel cooling-off rule. The Adoption Score therefore remains 5/12, and the coalition support estimates remain provisional planning judgments rather than polling evidence.

**Issue-to-legislation consistency:** The issue page and bill remain consistent. The issue page describes the same vehicle maintained in the draft legislation: amendments to 28 U.S.C. §§ 503, 504, and 504a covering Attorney General, Deputy Attorney General, and Associate Attorney General eligibility, with disclosure, OGE review, narrowed judicial review, expedited consideration, severability, and a remedial guardrail against automatic invalidation of DOJ actions.

**Defects corrected during the audit:** The issue page was updated to label the source base as T4, add the Protecting Our Democracy Act as an adjacent prior legislative analogue, add a support/adoption note distinguishing general public-confidence evidence from mechanism-specific polling, update the Proposal Scoring box, and add a publication-readiness note. The Audit Dashboard, audit inventory, and source inventory were updated to reflect the T4 run and new sources.

**Unresolved claims and no-credit items:** No direct prior bill was identified for the personal-counsel eligibility mechanism. No proposal-specific polling was found. No external attorney, legislative counsel, scholar, practitioner, stakeholder, or legislative staff review has been incorporated. No official Attorney General nomination record was identified. *Trump v. Slaughter* remains pending and may require enforcement-design reassessment. No international-relations score is assigned because DOJ-001 remains primarily a domestic institutional-design proposal.

**Score effect:** Proposal Quality Score increases from 80 to 82. Evidence and sourcing improve from 11/12 to 12/12 because the page now distinguishes primary official records, secondary reporting, source leads, polling limits, and source-inventory coverage more cleanly. Prior-proposal grounding improves from 5/8 to 6/8 because H.R. 5314 is a House-passed adjacent analogue with multiple cosponsors and Senate receipt, even though it is not a direct analogue. No adoption, external-review, or implementation bonus is awarded.

**Component score under current audit formula:** Structural completeness 8/8; evidence and sourcing 12/12; legal fit 8/10; prior-proposal grounding 6/8; remedy design 11/12; implementation design 6/8; abuse resistance 8/8; drafting quality 8/8; cogency 6/6; adoption path 5/12; project integration 4/4; external review 0/4; penalties 0. Total: 82/100.

**Publication-readiness result:** Strong developed draft, not publication-ready. DOJ-001 is coherent, sourced, and aligned with its proposed legislation, but publication-ready status should wait for external legal or legislative review, official AG nomination-record verification if available, post-Slaughter reassessment, and either proposal-specific adoption evidence or a clearer staged legislative vehicle.

**Next audit need:** T4 follow-up after *Trump v. Slaughter*, official Attorney General nomination-record development, and external review. The most score-efficient next improvement is not more general manifestation evidence; it is external review plus a staged fallback vehicle focused on disclosure, OGE review, or Senate-confirmation procedure.

**Audit process feedback:** T4 was useful but confirms that the project should not equate "publication-ready audit completed" with "publication-ready proposal." A T4 audit can leave a proposal below publication-ready status when direct precedent, current judicial posture, external review, or adoption evidence remains unresolved. This distinction should be preserved for future issues.

### **2026-06-27 — T3 Current-Framework and Budgetary-Impact Audit**

**Audit scope:** T3 refresh for DOJ-001 and its linked legislative text under audit rubric 2026-06-27 . 1. This audit applied current framework requirements through T3, including the budgetary-impact rule, current-status and mootness check, issue-to-legislation consistency check, neutrality/language check, pending-case vulnerability check, and scoring-display synchronization. It was not a T4 publication-ready audit and did not claim outside expert review.

**Pre-audit blocker check:** No unresolved prior-audit issue required cancellation. The existing unresolved items are T4-level development needs: official confirmation of any Attorney General nomination record, post-Slaughter judicial reassessment, closer prior-legislation analogues, expert or practitioner review, adoption evidence, and staging strategy.

**Current-status and source refresh:** DOJ-001 remains live and not moot. DOJ's official pages continued to list Todd Blanche as Acting Attorney General and Deputy Attorney General during this audit, and Congress.gov remains the official nomination-and-confirmation record for Blanche as Deputy Attorney General. The June 8, 2026 Guardian report that President Trump nominated Blanche to serve as Attorney General remains only a source lead because no official Attorney General nomination record was identified during this pass. *Trump v. Slaughter* had been argued, and no final merits judgment was identified on the docket during this audit.

**Framework and page-to-legislation result:** The issue page and linked bill remain aligned. Both use the same vehicle: amendments to 28 U.S.C. §§ 503, 504, and 504a establishing a seven-year cooling-off rule for Attorney General, Deputy Attorney General, and Associate Attorney General eligibility after covered personal or politically interested representation of the sitting President. The bill preserves presidential nomination, Senate advice and consent, at-will executive supervision, OGE review as nonbinding ethics review, narrowed D.D.C. judicial review, and a remedial guardrail against automatic invalidation of DOJ actions.

**Budgetary-impact finding:** The proposal specifies no appropriation and does not create a new office. The likely burden is administrative: nominee disclosure, Office of Government Ethics review, possible Department of Justice Designated Agency Ethics Official consultation, Senate Judiciary receipt and consideration, and occasional expedited litigation in the U.S. District Court for the District of Columbia if eligibility is contested. No dollar estimate is assigned because no CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source has been identified for this proposal. The issue page and bill text were updated to reflect that limited budgetary-impact finding.

**Neutrality and language finding:** The main issue page uses the neutral reference "President Trump" where the officeholder must be named, and no improper "Donald Trump" phrasing was found in the issue page or linked bill. Remaining uses of "Trump" in the project record for DOJ-001 are in formal case names, source titles, or audit-history context where alteration would distort the citation or historical record.

**Score effect:** No score change. Proposal Quality Score remains 80/100. The budgetary-impact requirement is now satisfied through T3 because the proposal has a clear no-appropriation classification, a bounded administrative-burden statement, and no unsupported dollar estimate. The score remains limited by unresolved T4 needs: no verified proposal-specific polling, no sponsor or validator map, no direct prior bill, no external expert review, no official Attorney General nomination record, and no post-Slaughter reassessment.

**Component score under current audit formula:** Structural completeness 8/8; evidence and sourcing 11/12; legal fit 8/10; prior-proposal grounding 5/8; remedy design 11/12; implementation design 6/8; abuse resistance 8/8; drafting quality 8/8; cogency 6/6; adoption path 5/12; project integration 4/4; external review 0/4; penalties 0. Total: 80/100.

**Next audit need:** Run T4 publication-ready audit. The T4 pass should recheck the official Attorney General nomination record, reassess after Trump v. Slaughter if decided, seek closer prior-legislation analogues and expert commentary, test the enforcement clause against standing and equitable-relief doctrine, develop reliable adoption evidence, and decide whether a staged confirmation-process or oversight vehicle should accompany the statutory eligibility rule.

**Audit process feedback:** The tier-scaled budgetary-impact rule worked as intended here. The proposal did not need a speculative fiscal estimate; it needed a clear classification, a bounded workload description, and a visible warning that the assessment is not an official score.

### **2026-06-27 — Current-Rubric Rebaseline Audit**

**Audit scope:** Targeted rebaseline audit for DOJ-001 under audit rubric 2026-06-27 . 1. This audit applied the new enactment-pathway fields and Adoption Friction companion score before a T4 publication-ready audit. It did not perform a full T4 source refresh, did not claim external expert review, and did not resolve the outstanding official Attorney General nomination-record question.

**Source record reviewed:** The audit used the existing DOJ-001 issue page, linked legislation page, DOJ-001 audit history, `inventory/audits.csv`, source inventory, and Audit Dashboard row. It also checked the current method rules for the Proposal Quality Score, Adoption Score, Enactment Pathway Check, Adoption Friction Score, and rebaseline statuses. For enactment-pathway purposes, the audit treated ordinary federal statutory enactment as requiring a Senate environment capable of overcoming filibuster constraints under Senate Rule XXII unless the proposal is attached to another viable vehicle or the filibuster rule changes. See Standing Rules of the Senate.

**Current-rubric findings:** DOJ-001 remains a developed federal-legislation proposal. The required electoral environment is `sixty-vote-senate`, pathway viability is `plausible-after-wave`, development priority is `active`, and pathway adjustment is `stage`. The best staging path is to preserve the statutory cooling-off proposal while also developing narrower confirmation-process, disclosure, OGE-review, and oversight variants that could build support or move before the full eligibility rule. The existing coalition support estimates remain provisional planning judgments, not polling or stakeholder evidence.

**Adoption Friction companion score:** 72/100, High Resistance. Component basis: partisan salience 13/15 because the live manifestation involves President Trump and Todd Blanche even though the rule is prospective; constitutional or doctrinal controversy 12/15 because senior DOJ eligibility implicates appointments, presidential control, and separation-of-powers doctrine; institutional disruption 10/15 because the rule changes eligibility for the top DOJ succession offices; rights or identity sensitivity 2/10 because the proposal does not directly regulate protected identity, voting, speech, criminal guilt, or immigration status; stakeholder opposition intensity 12/15 because presidents, senior DOJ leadership, loyalist factions, and nominees may resist limits on appointment discretion; public-understanding burden 8/10 because opponents can frame the rule as targeting President Trump or lawyers despite its prospective design; implementation friction 5/10 because disclosure and OGE review are administratively modest but not costless; litigation likelihood 10/10 because any applied eligibility dispute would likely trigger immediate separation-of-powers litigation.

**Score effect:** Proposal Quality Score decreases from 82 to 80. Structural completeness, evidence, legal fit, remedy design, abuse resistance, drafting quality, cogency, and project integration remain substantially supported by the T3 record. The score decreases because rubric 2026-06-27 . 1 now requires a sourced enactment-pathway finding, and DOJ-001 has not yet developed polling, sponsor, validator, committee, or expert evidence supporting passage of the actual mechanism. Adoption Score is adjusted from 6/12 to 5/12, and Implementation Score is adjusted from 7/8 to 6/8 because the proposal is a serious federal statutory vehicle but still needs a better-supported enactment path and staging strategy. No penalty is added because this was a rebaseline application of new fields, not a finding that the prior score was erroneous.

**Component score under current audit formula:** Structural completeness 8/8; evidence and sourcing 11/12; legal fit 8/10; prior-proposal grounding 5/8; remedy design 11/12; implementation design 6/8; abuse resistance 8/8; drafting quality 8/8; cogency 6/6; adoption path 5/12; project integration 4/4; external review 0/4; penalties 0. Total: 80/100.

**Rebaseline status:** Complete. The issue page, audit-history sidecar, `inventory/audits.csv`, and Audit Dashboard should now treat DOJ-001 as current under rubric 2026-06-27 . 1, while still recording that T4 publication-ready review remains pending.

**Next audit need:** Run T4 publication-ready audit. The T4 pass should recheck the official Attorney General nomination record, reassess after Trump v. Slaughter if decided, seek closer prior-legislation analogues and expert commentary, test the enforcement clause against standing and equitable-relief doctrine, develop reliable adoption evidence, and decide whether a staged confirmation-process or oversight vehicle should accompany the statutory eligibility rule.

**Audit process feedback:** The rebaseline was useful before T4 because it separated score-formula drift from publication-readiness research. Future rebaseline audits should not try to “fill in” public-support, current-case, or expert-review gaps without sources; they should assign the new fields conservatively, update the records, and leave deeper proof work for the selected substantive audit tier.

### **2026-06-27 — Change Audit**

**Audit scope:** Targeted Change Audit for DOJ-001 after the project adopted the named Change Audit workflow and revised the Proposal Scoring display template. This was not a substantive source-refresh, T4 publication-ready audit, or recalculation of the proposal-quality score.

**Consistency checks completed:** Compared the DOJ-001 issue page front matter, visible Proposal Scoring box, sibling audit-history sidecar, `inventory/audits.csv`, Audit Dashboard row, area index, contents index, source inventory references, and linked legislation page. Confirmed that the issue page and linked legislation remain aligned on the current vehicle: a seven-year cooling-off rule

for Attorney General, Deputy Attorney General, and Associate Attorney General eligibility through amendments to 28 U.S.C. §§ 503, 504, and 504a.

**Defects corrected during the audit:** The Audit Dashboard row for DOJ-001 still showed rubric version 2026-06-26.1 and rebaseline status *current*, while the issue page and `audits.csv` correctly showed *pre-2026-06-27.1* and *hard-rebase-line-needed*. The dashboard row was updated to match the current issue-page metadata and inventory record.

**Score effect:** No proposal-quality score change. The score remains 82/100 and remains marked *hard-rebase-line-needed* because the existing score predates rubric 2026-06-27.1 enactment-pathway requirements and adoption-friction assessment.

**Next audit need:** Run T4 publication-ready audit. The T4 pass should recheck the official Attorney General nomination record, reassess after *Trump v. Slaughter* if decided, seek closer prior-legislation analogues and expert commentary, test the enforcement clause against standing and equitable-relief doctrine, and look for reliable public-support or coalition evidence.

### **2026-06-25 — T3 Judicial-Scrutiny and Enforcement-Design Audit**

**Latest audit:** T3 readiness audit, completed June 25, 2026. The audit covered DOJ-001 and its linked legislative text only. T0, T1, and T2 were already current from the immediately preceding refresh audit, so this pass focused on the unresolved T3 issues: standing, cause-of-action design, Appointments Clause risk, separation-of-powers durability, current pending judicial vulnerability, remedy disruption, and whether the score should be recalculated under the current formula.

**Current-status and mootness result:** No mootness blocker was found. The current source record continues to show the same live manifestation: Todd Blanche is listed by DOJ as Acting Attorney General and Deputy Attorney General, [Congress.gov](https://www.congress.gov) confirms his Deputy Attorney General confirmation, and current reporting indicates an Attorney General nomination source lead still requiring primary-record verification. No enacted law, Supreme Court merits decision, agency rule, or official action located during this T3 pass makes DOJ-001 obsolete.

**Judicial-scrutiny finding:** The proposal is legally plausible but not litigation-proof. Its best argument is that it regulates statutory eligibility for offices Congress created and defined, while preserving the President's nomination power, Senate confirmation, at-will removal, and ordinary executive supervision. Its largest risk is that the current Supreme Court has emphasized presidential control over executive officers, especially those exercising enforcement authority. *Trump v. United States* strengthens the factual need for DOJ-001 because it treats presidential communications with senior DOJ officials and prosecution decisions as core executive terrain, but it also sharpens the constitutional risk because a court may resist statutory rules that appear to burden the President's choice of senior DOJ leadership.

**Pending judicial vulnerability:** *Trump v. Slaughter*, No. 25-332, is pending after argument and asks whether FTC removal protections violate separation of powers and whether federal courts may prevent removal from public office. The case does not directly control DOJ-001 because DOJ-001 is an appointment-eligibility rule rather than a removal-protection rule. Still, *Slaughter* could affect judicial willingness to issue prospective officeholding relief. The next audit after *Slaughter* is decided should reassess the judicial-review provision.

**Standing and enforcement finding:** The prior bill language was too thin because it allowed expedited review only in an "otherwise authorized civil action." That avoided overclaiming but left the eligibility rule with weak practical teeth. The T3 audit rejected broad taxpayer, voter, generalized public-interest, and legislator-standing models as too vulnerable. The bill now creates a narrower review channel for the covered individual and for people directly subject to DOJ action personally authorized, directed, supervised, or substantially participated in by the allegedly ineligible official. The bill also prevents automatic dismissal, suppression, vacatur, or invalidation of DOJ acts unless another law independently authorizes that remedy and the challenger shows particularized prejudice.

**Defects corrected during the audit:** The proposed legislation was amended to add a concrete civil-action provision in the U.S. District Court for the District of Columbia, expedited consideration, and a remedial-disruption guardrail. The drafting notes were updated to explain the standing theory and de facto-officer/disruption concern. The issue page was updated to add a judicial-scrutiny analysis, pending judicial vulnerability note, enforcement-design analysis, source inventory entries, audit inventory entry, and dashboard update.

**Unresolved claims and no-credit items:** The audit still did not identify a direct prior bill using the same personal-presidential-counsel eligibility rule. No public polling specific to this proposal was found. No outside expert, legislative counsel, practitioner, or scholar has reviewed DOJ-001 itself. The Attorney General nomination report still needs primary-source confirmation if an official nomination record becomes available. International effects remain not materially assessed; no positive international score is assigned.

**Component score under current audit formula:** Structural completeness 8/8; evidence and sourcing 11/12; legal fit 8/10; prior-proposal grounding 5/8; remedy design 11/12; implementation design 7/8; abuse resistance 8/8; drafting quality 8/8; cogency 6/6; adoption path 6/12; project integration 4/4; external review 0/4; penalties 0. Total: 82/100.

**Support and adoption finding:** The strongest cross-ideological argument is prospective protection against any president placing recent personal counsel in the top Justice Department succession line, rather than retrospective punishment of President Trump or Todd Blanche. The working support estimate remains a provisional planning judgment, not a polling claim: Democratic support 80%, independent support 60%, Republican support 40%, and bipartisan viability 55%. No polling or public-support score credit is awarded for these estimates. Republican support is most likely to improve if the proposal is framed as neutral, prospective, conflict-based, and equally applicable to future Democratic and Republican presidents.

**Score effect:** Score increases from 74 to 82. The increase is justified by resolving the standing and cause-of-action gap, reducing remedy-disruption risk, documenting the core Supreme Court vulnerabilities, and adding a pending-case vulnerability check. The score

remains below near-ready status because direct prior-legislation grounding, public-support evidence, external expert review, and post-Slaughter validation remain incomplete.

**International support and relations companion score:** N/A for this T3 audit. DOJ-001 may improve rule-of-law signaling, but it does not directly regulate foreign relations, international obligations, immigration, defense, trade, or cross-border implementation. Comparative attorney-general independence research could be useful in a publication-ready T4 audit, but it is not necessary for the current score.

**Next audit need:** Run a T4 publication-ready audit. The T4 pass should recheck the official Attorney General nomination record, reassess after *Trump v. Slaughter* if decided, seek closer prior-legislation analogues, obtain expert or practitioner commentary if available, test the enforcement clause against Article III standing and equitable-relief doctrine, and look for reliable public-support or elite-coalition evidence.

**Audit process feedback:** The T3 tier was adequate for the main readiness defect because the issue already had current T0/T1/T2 work. The most score-efficient improvement was not more manifestation evidence; it was enforcement design. Future T3 audits should first ask whether the bill has an enforceable remedy that can survive Article III, sovereign-immunity, equitable-relief, and disruption concerns.

### **2026-06-25 — T0/T1/T2 Refresh Audit**

**Latest audit:** Combined T0 triage, T1 framework, and T2 development refresh, completed June 25, 2026. The audit covered only DOJ-001 and its linked legislative text, not the rest of the DOJ area. The pre-audit blocker check found no unresolved T0/T1/T2 blocker requiring cancellation. The prior unresolved issues are carried forward because they are T3-level or deeper issues rather than reasons to stop this requested refresh.

**T0 current-status and mootness result:** DOJ-001 is not moot. Official DOJ pages reviewed during this refresh list Todd Blanche as both Acting Attorney General and Deputy Attorney General. Congress.gov confirms Blanche's March 5, 2025 confirmation as Deputy Attorney General by a 52-46 Senate vote. The Guardian reported on June 8, 2026 that President Trump nominated Blanche to serve as Attorney General; because an official nomination record was not located during this audit, that item is treated as a source lead rather than primary confirmation. No recent decision, statute, regulation, or official action found during this refresh makes the proposal obsolete or requires restructuring.

**T1 framework result:** The issue page and bill remain structurally aligned. The page contains front-matter audit metadata, print assignment, remedy type, issue snapshot, manifestation, proposal survey, least-complex adequate remedy, repair/prevention section, proposed-legislation bullet, budgetary impact statement, annotation, and append-only audit record. The proposed legislation remains linked and covers the Attorney General, Deputy Attorney General, and Associate Attorney General through amendments to 28 U.S.C. §§ 503, 504, and 504a.

**T2 development result:** The existing statutory hook remains plausible: Congress already defines the senior DOJ offices and has used office-specific cooling-off qualifications elsewhere, especially in 10 U.S.C. § 113 for the Secretary of Defense. Existing DOJ and executive-branch conflict rules remain useful analogues but are not sufficient substitutes because they are matter-specific and internally administered. The AP disqualification report added during this refresh supports that caution in a narrow way: case-by-case disqualification can fail, but that report does not decide the separate question whether Congress may impose an appointment-stage eligibility rule for recent presidential personal counsel.

**Current-source and prior-proposal check:** The audit refreshed current DOJ, Congress.gov, AP, and Guardian sources. It did not identify a direct prior bill using the same personal-presidential-counsel eligibility rule. The existing proposal survey therefore continues to rely on statutory and regulatory analogues rather than direct legislative precedent. The audit also did not identify a methodologically suitable public poll specific to DOJ appointment cooling-off rules or recent presidential personal counsel serving in senior DOJ leadership.

**Fixes made during the audit:** The manifestation section was updated to reflect the current Acting Attorney General/Deputy Attorney General status, the Guardian Attorney General nomination source lead, and the AP disqualification ruling as a narrow current-status example. The proposal survey wording, issue metadata, source inventory, audit inventory, and Audit Dashboard were refreshed to match the updated T0/T1/T2 audit process.

**Component score under current audit formula:** Structural completeness 8/8; evidence and sourcing 10/12; legal fit 7/10; prior-proposal grounding 4/8; remedy design 10/12; implementation design 5/8; abuse resistance 7/8; drafting quality 8/8; cogency 6/6; adoption path 5/12; project integration 4/4; external review 0/4; penalties 0. Total: 74/100.

**Score effect:** Score remains 74. The refresh resolved the updated current-status and mootness requirement and added material current-source context, but it did not resolve the largest score-limiting issues: standing and cause-of-action design, Supreme Court durability, direct prior-legislation grounding, polling or expert adoption evidence, and external legal review.

**International support and relations companion score:** 0/10 for this refresh only. The proposal may have rule-of-law perception relevance, but this T0/T1/T2 pass did not complete international, comparative, or foreign-relations research. No positive or negative international-effect finding should be inferred from that zero.

**Next audit need:** Run T3 judicial-scrutiny and enforcement-design audit. The next pass should decide whether to add an express cause of action, identify proper plaintiffs and standing theory, deepen Appointments Clause and separation-of-powers analysis, compare any closer prior bills if found, and replace or support the adoption estimates with cited polling, expert commentary, legislative sponsorship patterns, or other reliable evidence.

## 2026-06-25 — T0/T1 Current-Status and Framework Check

**Latest audit:** Combined T0 triage scan and T1 framework check, completed June 25, 2026. The T0 portion found no blocker requiring cancellation of the T1 pass. The prior audit's unresolved items remain ordinary next-audit needs rather than blockers because this pass was requested to refresh current status and framework consistency.

**T0 triage result:** DOJ-001 is not moot. The current-status check strengthened the issue: DOJ's official pages list Todd Blanche as Acting Attorney General and Deputy Attorney General as of this audit. That means the issue now implicates not only recent presidential personal counsel serving as Deputy Attorney General, but also recent presidential personal counsel exercising Attorney General authority.

**T1 framework result:** The issue remains a developed federal-legislation proposal. The page includes the required issue architecture, front-matter metadata, remedy type, print assignment, proposed-legislation link, issue snapshot, proposal survey, least-complex adequate remedy, repair/prevention section, annotation, and visible audit record. The linked bill covers the Attorney General, Deputy Attorney General, and Associate Attorney General through amendments to 28 U.S.C. §§ 503, 504, and 504a. The dashboard, audit CSV, and source inventory were updated to match this audit.

**Source record updated:** The audit added DOJ's official Attorney General and Deputy Attorney General pages as reviewed primary sources supporting Blanche's current listed roles. These sources are limited to current office-status verification; they do not independently resolve the constitutional, standing, enforcement, prior-proposal, or adoption questions left for T3 review.

**Score effect:** Proposal-quality score increased from 73 to 74. The increase is narrow and based only on resolving a current-status gap with official DOJ sources and updating the manifestation to reflect the broader Acting Attorney General status. No further score credit is assigned because this T0/T1 pass did not complete T3-level constitutional durability, standing, cause-of-action, direct prior-legislation, polling, expert-support, or international-effects review.

**Next audit need:** Continue to T3 readiness audit focused on standing and cause-of-action design, direct prior-legislation comparisons, stronger adoption evidence, polling or expert support if available, and Supreme Court scrutiny of Congress's power to set office-specific eligibility rules for principal DOJ officers.

## 2026-06-25 — Targeted T2 Follow-Up

**Latest audit:** Targeted T2 follow-up, completed June 25, 2026, under the two-hour estimate.

**Audit scope and posture:** This was a targeted T2 follow-up, not a full T3 audit. It was run to address unresolved findings from the prior T2 development audit: designated ethics authority, disclosure timing, coverage of the Associate Attorney General, direct prior-legislation comparison, coalition/adoption support, standing and enforcement design, and Supreme Court durability. The follow-up corrected items that could be resolved from existing statutes, public ethics rules, and the already-linked bill text. It did not complete a deep constitutional analysis, did not produce polling-based adoption evidence, and did not resolve standing or cause-of-action design.

**Source record reviewed and added:** The audit used the existing DOJ-001 source base for Todd Blanche's nomination and confirmation, the AG and DAG statutory hooks, the Secretary of Defense cooling-off analogue, DOJ conflict rules, former-client duties, and federal post-employment restrictions. The follow-up added or incorporated verified primary sources for: Associate Attorney General appointment authority, Attorney General succession, Senate-confirmation nominee disclosure timing, Office of Government Ethics authority, and executive-branch impartiality rules. These are recorded in the source inventory as DOJ-001 sources, including 28 U.S.C. §§ 504a and 508, 5 U.S.C. §§ 13103 and 13122, and 5 C.F.R. § 2635.502. The audit did not add a polling source, expert endorsement, committee report, or direct prior bill using the same personal-presidential-counsel eligibility rule.

**Verified findings:** First, the previous AG/DAG mismatch had already been corrected by extending the proposal from the Attorney General statute to 28 U.S.C. § 504 for the Deputy Attorney General. Second, the follow-up verified that the Associate Attorney General is appointed by the President with Senate advice and consent under 28 U.S.C. § 504a and is in the statutory line to act as Attorney General under 28 U.S.C. § 508. That supports including the Associate Attorney General within the same eligibility rule. Third, existing law already requires Senate-confirmation nominees to file financial disclosure reports within five days after nomination transmittal and to update before the first hearing under 5 U.S.C. § 13103(b). That supports using the same timing model for covered-representation disclosures. Fourth, the Office of Government Ethics has existing executive-branch conflict-prevention, disclosure-review, corrective-action, and advisory responsibilities under 5 U.S.C. § 13122. That supports naming OGE as the review authority instead of leaving the bill with an undefined "designated federal ethics authority." Fifth, 5 C.F.R. § 2635.502 supports the broader premise that recent attorney, consultant, contractor, officer, employee, and other covered relationships can create impartiality concerns even when the rule is matter-specific rather than appointment-disqualifying.

**Defects corrected during the audit:** The proposed legislation was retitled from an AG/DAG-specific title to "Seven-Year Cooling-Off Rule for Senior Justice Department Eligibility." The bill text now covers the Attorney General, Deputy Attorney General, and Associate Attorney General. The disclosure provision now identifies the Senate Judiciary Committee and OGE, uses a five-day post-transmittal deadline, and requires updating before the first confirmation hearing if additional responsive information becomes known. The bill now requires OGE review, consultation as appropriate with the DOJ Designated Agency Ethics Official, and transmission of a written determination to the Senate Judiciary Committee before final committee action. The issue snapshot, proposal survey, least-complex remedy, repair section, annotation, proposed-legislation link, audit metadata, audit inventory, and source inventory were updated to match those changes.

**Claims left unresolved or receiving no favorable score credit:** The follow-up did not identify a direct prior bill using the same personal-presidential-counsel eligibility rule. The page therefore treats existing statutes and rules as structural analogues rather than direct

legislative precedent. Standing and cause-of-action design remain unresolved; the current bill preserves expedited treatment only for an otherwise authorized civil action and does not yet create a standalone cause of action or specify who may sue. Coalition support remains an estimate, not a polling-based finding. The support estimate in the annotation should therefore be treated as an audit judgment about framing, not as public-opinion evidence. Supreme Court durability remains unresolved beyond the narrower observation that Congress has enacted office-specific qualifications such as the Secretary of Defense cooling-off rule. The audit did not conduct a full T3 Appointments Clause, separation-of-powers, Senate advice-and-consent, or qualifications-clause analysis. International support and foreign-relations effects were not materially assessed in this targeted follow-up and receive no score credit.

**Material risks remaining:** The largest legal risk is whether Congress may impose this type of recent-representation eligibility rule on principal DOJ offices without impermissibly burdening the President's nomination power or the Senate's advice-and-consent role. The largest implementation risk is standing: if no one can obtain review, the eligibility rule may depend entirely on Senate process and political enforcement. The largest drafting risk is whether the rule should stop at the top three DOJ offices or extend to other senior officials who exercise comparable supervisory or succession authority. The largest adoption risk is partisan framing; the proposal is strongest when described as a prospective rule for any president, not as a retroactive punishment for a named administration.

**Proposal-quality score:** 73. The score increased from 66 because the follow-up resolved three concrete defects: it designated OGE as the independent review authority, adopted existing five-day nominee-disclosure timing from 5 U.S.C. § 13103(b), and extended coverage to the Associate Attorney General based on 28 U.S.C. §§ 504a and 508. The score did not rise further because standing and cause-of-action design remain unresolved, direct prior-legislation comparison remains incomplete, coalition support is estimated rather than polling-based, Supreme Court scrutiny still requires deeper review, and international effects were not assessed.

**Next audit need:** Run a T3 readiness audit focused on standing and cause-of-action design, direct prior-legislation comparisons, stronger adoption evidence, polling or expert support if available, and Supreme Court scrutiny of Congress's power to set office-specific eligibility rules for principal officers. The next audit should specifically decide whether to add an express cause of action, limit enforcement to Senate/OGE process, or create another review mechanism that improves enforceability without increasing constitutional risk.

**Audit process feedback:** The targeted follow-up was score-efficient because it converted unresolved audit notes into concrete statutory mechanics. The new detailed-audit-record rule should apply to all future audits: the issue page should preserve enough detail for a reader to understand what happened without opening the CSV files or reconstructing the chat. The next audit should not spend time revalidating the section order or source inventory unless new edits disturb them; the highest-value work is constitutional durability and enforcement design.

### ***Prior Audit History***

Earlier DOJ-001 audits were recorded before the project adopted the detailed, append-only issue-page audit-log rule. Their surviving findings are reflected in this entry, the current issue metadata, and the former `inventory/audits.csv` record retired when GitHub Projects became the authoritative workflow tracker. Future DOJ-001 audits should add new dated entries above this one and retain this history on the source issue page.

# DOJ-002 — White House Direction or Interference in Particular Federal Criminal Matters

## Issue Snapshot

**Problem:** Political pressure can steer specific criminal matters.

**Repair:** Require logging, review, and neutrality memoranda.

**Vehicle:** Justice Manual amendment (draft).

## Institutional Anomaly

The Department of Justice lacks sufficiently enforceable front-end safeguards against White House or political-appointee direction, pressure, retaliation, or favoritism in particular federal criminal matters, including matters in which the President is not personally under investigation.

## Manifestation of the Failure

### *Case-specific influence channels*

Case-specific influence may concern whether to investigate an opponent, protect an ally, issue compulsory process, narrow or dismiss charges, alter a plea or sentencing position, disclose confidential information, manipulate staffing or resources, or deploy criminal process to coerce state or local officials.

### *Minnesota grand-jury subpoenas*

In June 2026, the United States District Court for the District of Minnesota quashed grand-jury subpoenas issued to the offices of Governor Tim Walz and other Minnesota officials. The court found that the evidence overwhelmingly showed an improper coercive, retaliatory, or harassing purpose tied to federal civil-immigration enforcement, while the government did not identify a plausible criminal-investigative justification. See the unsealed District of Minnesota order and The Guardian. The ruling demonstrates that judicial review can work, but only after coercive process has issued and affected institutions have incurred cost, disruption, and risk.

### *Reactive safeguards and front-end failure*

That episode therefore shows both sides of the institutional design problem: the back-end judicial safeguard functioned, while front-end DOJ safeguards may have failed. A successful challenge in an unusually well-documented case does not establish that all improper influence will be detected, challenged, or remedied, especially where targets lack resources, coercive acts evade precompliance review, or political pressure is less explicit.

## Resulting Damage

Improper case-specific influence can burden protected activity, distort federalism, intimidate critics, favor allies, injure uncharged persons, waste investigative resources, and undermine confidence that criminal law is administered for lawful rather than personal or partisan purposes.

## Underlying Weakness

Existing White House–DOJ contact restrictions and Public Integrity Section review procedures demonstrate that DOJ can front-load neutrality safeguards through internal rules. Their limits are incomplete coverage, uneven enforceability, dependence on self-reporting, and vulnerability to amendment, suspension, waiver, or noncompliance by the same leadership whose conduct the rules are intended to constrain.

Obstruction and related criminal statutes may reach some corrupt interference, but they do not create a complete White House–DOJ contact code. They require proof of particular elements and ordinarily operate only after misconduct has occurred. Moreover, *Trump v. United States* treated presidential communications with DOJ concerning investigation and prosecution as core official conduct protected by absolute criminal immunity. Preventive routing, logging, review, and preservation therefore remain necessary even where prosecution of the President is unavailable.

Judicial review remains indispensable but is principally reactive. It depends on reviewable process, a capable challenger, a suitable procedural vehicle, and timely adjudication. It ordinarily does not reveal who initiated the matter, create internal discipline, compensate for burdens already imposed, or prevent related investigative actions.

## Proposal Survey

DOJ already uses internal contact and consultation models that can be extended before creating a new institution. Justice Manual provisions restrict White House contacts concerning pending or contemplated matters and route communications through designated channels. See Justice Manual, § 1-8.000. DOJ also requires Public Integrity Section consultation or approval for specified public-corruption matters involving federal officials. See Justice Manual, § 9-85.000.

An adjacent statutory model is the Protecting Our Democracy Act, H.R. 5314, 117th Congress. Title VI would have required DOJ communications logs for covered White House/DOJ communications involving contemplated or ongoing investigations or litigation and



periodic disclosure to the DOJ Inspector General. That bill did not create DOJ-002's Public Integrity approval model, but it shows a prior House-passed effort to regulate White House/DOJ communications around investigative and litigation matters.

Statutory alternatives include broader criminal obstruction, civil-rights, and official-interference provisions, but those operate after misconduct and require offense-specific proof. DOJ-002 therefore adapts existing administrative review and contact-control models first, reserving codification for demonstrated evasion.

## **Least-Complex Adequate Remedy**

Adopt and publish a Justice Manual provision requiring a Political Neutrality Memorandum and Public Integrity Section review before specified actions in politically sensitive criminal matters. The rule should include contact routing and logging, record preservation, emergency procedures, periodic review, notice of material amendment or suspension, prospective-only weakening, and referral of noncompliance to OPR or OIG.

This is less complex than creating a new independent institution and builds upon safeguards DOJ already administers. If repeated suspension, evasion, or noncompliance demonstrates that an internal rule is inadequate, Congress should codify the minimum procedures.

## **Repair and Prevention**

DOJ should extend the existing Public Integrity review model to politically sensitive criminal matters involving:

- federal, state, Tribal, territorial, or local elected officials;
- candidates, campaigns, political parties, transitions, and inaugural committees;
- persons publicly identified by senior executive officials as political allies, opponents, or desired investigative targets;
- state and local governments and senior officials acting for them;
- journalists, news organizations, and confidential-source activity;
- nonprofit, advocacy, religious, academic, labor, civic, and membership organizations substantially engaged in protected expression or association; and
- persons or entities selected because of protected speech, protest, petitioning, political activity, or disagreement with federal policy.

Covered matters should require contemporaneous written criminal predication, disclosure and logging of White House and political-appointee contacts, designated routing points, career consultation before opening or materially advancing the matter, and prior Public Integrity approval before specified coercive or disposition-determinative actions. Emergency contacts should be documented promptly, records preserved, and unofficial campaign, party, personal-lawyer, or outside-political channels prohibited from directing DOJ action.

The rules should remain viewpoint-neutral and should not confer immunity from legitimate investigation.

## **Proposed Legislation**

- Proposed Justice Manual § 9-85.115 — Politically Sensitive Criminal Matters

## **Adoption Viability Note**

This proposal is not treated as realistically adoptable by a hostile or self-protective Attorney General. Its current vehicle is legally available because DOJ can amend the Justice Manual, but practical adoption likely requires a future reform-aligned Attorney General, leadership change, external mandate, statutory fallback, appropriations condition, court order, settlement, or comparable adoption pressure.

## **Relationship to Adjacent Proposals**

DOJ-002 owns front-end safeguards against case-specific White House, political-appointee, or politically motivated influence in covered criminal matters.

DOJ-003 partly overlaps by creating back-end comparator monitoring capable of detecting politically selective charging, declination, dismissal, plea, or sentencing patterns after DOJ-002 safeguards fail or are bypassed. DOJ-003 does not replace DOJ-002 because it generally detects anomalies after investigative or charging burdens have already occurred.

DOJ-007 owns independent investigation, evidence preservation, and reporting to Congress when presidential or senior executive conflict makes ordinary DOJ accountability unreliable. Former candidate issue DOJ-006 is therefore merged into DOJ-002 and DOJ-007 rather than maintained separately.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 78 / 100 (Review Ready)  
**Adoption Score:** 2 / 12 (Weak Adoption Basis)  
**Adoption Friction:** 84 / 100 (Extreme Resistance)  
**Required Electoral Environment:** current - law-available  
**Development Priority:** active

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**Audit Status:** T4 publication-ready audit complete; SCOTUS current-status update no score effect  
**Last Audit:** SCOTUS current-status update  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** T4 follow-up or external-validation pass  
**Full Audit History:** DOJ-002 audit history

## Annotation

**Basis and Evidence.** Existing Justice Manual provisions restrict White House contacts concerning pending or contemplated matters and require Public Integrity consultation or approval for specified investigations involving Members of Congress. Those models establish the administrative feasibility of front-loaded career review. The June 2026 Minnesota subpoena ruling supplies a representative example of judicial correction after coercive process had already issued.

**Qualification.** Courts remain a capable and indispensable safeguard. The Minnesota result weighs against wholesale institutional replacement and supports reinforcing existing review mechanisms. Internal rules, however, remain legally amendable by executive leadership and therefore depend partly on transparency, institutional resistance, professional enforcement, and political cost.

**Remedial Alternatives and Constraints.** More durable alternatives include statutory contact restrictions, codified approval procedures, expedited judicial review, fee shifting for process quashed as retaliatory or issued for improper purpose, and expanded OIG jurisdiction. Those measures should remain fallbacks unless experience demonstrates that a published internal rule is inadequate.

**Judicial Scrutiny.** DOJ-002 is strongest as an internal Justice Manual rule because it preserves ordinary executive supervision, creates no new independent prosecutor, and does not ask courts to manage charging decisions directly. The principal legal risks are overbreadth, interference with legitimate prosecutorial discretion, grand-jury secrecy, executive privilege, classified or sensitive investigative information, and possible chilling of lawful investigations involving political actors or protected activity. The proposed text mitigates those risks by stating that it creates no immunity, uses internal review rather than judicial preclearance, preserves lawful secrecy and privilege limits, applies viewpoint-neutrality, and reserves disclosure to courts under seal when judicial process is sought.

**Current Judicial Vulnerability.** T4 did not identify a Supreme Court case that directly decides DOJ's authority to adopt an internal politically sensitive criminal-matter review rule. The Supreme Court's later decisions in *Trump v. Slaughter* and *Trump v. Cook* remain relevant background because they affect how broadly courts frame presidential supervision of executive officers. DOJ-002 is less exposed than a freestanding judicial-enforcement model because it remains internal, prospective, nonprivate, and focused on DOJ's own review procedures.

**Codification Strategy.** The current least-complex vehicle remains a Justice Manual amendment. Statutory codification should be treated as a staged fallback if DOJ leadership refuses adoption, suspends the provision, uses repeated waivers, fails to preserve records, or materially evades the review requirement. A statutory fallback should likely begin with logging, preservation, Inspector General notice, congressional notice, and appropriations or confirmation-process pressure before attempting broader judicially enforceable limits on prosecutorial decision-making.

**Publication Readiness.** DOJ-002 is internally review-ready but not publication-ready. Before external publication as a mature recommendation, the project should obtain practitioner or legal review, validate whether Public Integrity is the right reviewer for all covered categories, complete final docket verification for the Minnesota matter, and draft a narrower statutory fallback for use if internal policy is refused, suspended, or evaded.

**Budgetary Impact.** DOJ-002 specifies no appropriation and creates no new office. The expected burden is administrative: covered-matter screening, Political Neutrality Memoranda, Public Integrity consultation or approval, contact logging, record preservation, periodic review, and possible OPR or OIG referral. No dollar estimate is assigned because no CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source has been identified for this proposed Justice Manual provision.

**Quality Score.** The 78/100 score reflects a review-ready but not publication-ready proposal. T4 confirmed the page and proposed Justice Manual text remain aligned, refreshed current-source and pending-case posture, strengthened source tracking, and clarified implementation and judicial-risk limits. The score remains capped because no external expert or practitioner review has been incorporated, proposal-specific polling or stakeholder support has not been located, publication-level docket-service verification remains incomplete, and statutory fallback language remains conceptual rather than drafted.

**Adoption Score.** The 2/12 score is weak because the proposal has a formally available current-law vehicle through DOJ's existing authority to amend the Justice Manual, but adoption depends on a reform-aligned Attorney General voluntarily accepting limits on White House/DOJ contact flexibility and politically sensitive criminal-process control. T3 gives limited additional credit for a clearer staged fallback strategy, but adoption potential remains near zero absent leadership change, external mandate, statutory fallback, appropriations condition, court order, settlement, confirmation pressure, or comparable adoption pressure.

**Adoption Friction.** The 84/100 score is extreme because the proposal regulates politically salient criminal-process decisions, White House/DOJ contacts, immigration-adjacent retaliation risk, speech and association burdens, state and local officials, journalism, advocacy organizations, prosecutorial discretion, and institutional self-limitation by the very leadership class whose case-specific flexibility would be constrained.

**Required Electoral Environment.** The required environment remains **current - law - available** because the core vehicle is a Justice Manual amendment that DOJ leadership could adopt under existing administrative authority. Under rubric 2026-06-27.2, however, this means legally available rather than practically likely: Pathway Viability is **conditional - current** because the proposal requires a reform-aligned Attorney General or comparable external adoption pressure. Codification remains a fallback if internal policy can be suspended, waived, ignored, or refused by hostile leadership.

**Development Priority.** The priority remains **active** because the Minnesota order provides a concrete current manifestation, the remedy is less complex than creating a new institution, and the proposal is now mature enough for T4 publication-ready review focused on docket posture, external review, adoption evidence, and codification-trigger drafting.

## DOJ-002 — Audit History

This file preserves the full audit history for DOJ-002. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-07-02 — SCOTUS current-status update

**Audit status:** T4 publication-ready audit complete; SCOTUS current-status update no score effect

**Proposal-quality score:** 78

**Current-status update:** *Trump v. Slaughter* and *Trump v. Cook* have now been decided. Neither decision directly controls DOJ-002 because the proposal is an internal Justice Manual review and logging rule rather than an officer-removal, judicial-enforcement, or independent-agency design. The decisions remain background executive-power doctrine for the next external-validation pass.

**Score effect:** No score change. The update removes stale pending-case posture but does not complete practitioner review, statutory fallback drafting, final Minnesota docket verification, adoption evidence, or publication-level legal review.

**Next audit need:** Continue with T4 follow-up or external validation, including whether the internal Justice Manual vehicle should be paired with a narrower statutory fallback if hostile leadership refuses, suspends, or evades the rule.

#### 2026-06-27 — T4 Publication-Ready Audit

**Audit scope:** Single-issue T4 publication-ready audit for DOJ-002 and its linked proposed Justice Manual amendment under rubric 2026-06-27.2. This audit reviewed the issue page, proposed Justice Manual text, prior audit history, Audit Dashboard row, `inventory/audits.csv`, `inventory/sources.csv`, current Justice Manual sources, H.R. 5314, the Minnesota subpoena order and cited reporting, *Trump v. United States*, pending Supreme Court removal-power dockets including *Trump v. Slaughter* and *Trump v. Cook*, and general public-trust evidence already captured in the source inventory. It did not replace attorney review, legislative counsel review, DOJ practitioner review, docket-service research, or empirical polling.

**Current-status and mootness result:** No mootness blocker was found. The audit did not identify an enacted Justice Manual amendment, statute, binding appellate ruling, settlement, official DOJ policy change, or current congressional enactment that supplies equivalent front-end safeguards. The proposal remains live and materially useful. The Minnesota manifestation remains appropriate as a concrete example of back-end judicial correction after compulsory process issued, but publication use should still avoid implying that every improper-pressure scenario will be similarly well documented or judicially remediable.

**Source-refresh result:** Primary-source support is strong for the current internal-policy model: Justice Manual § 1-8.000 supports the White House-contact analogue, Justice Manual § 9-85.000 and the Protection of Government Integrity provisions support the Public Integrity consultation analogue, H.R. 5314 remains an adjacent prior-legislation model for White House/DOJ communications logs, and the Minnesota order remains the primary manifestation source. The T4 pass added pending Supreme Court removal-power source tracking for DOJ-002 and expanded the existing public-trust source row to cover DOJ-002 only as general salience evidence, not as proposal-specific polling.

**Pending judicial vulnerability check:** No pending case identified in this pass directly decides DOJ-002's core question: whether DOJ may adopt an internal Justice Manual rule requiring Political Neutrality Memoranda, Public Integrity review, contact logging, and record preservation before coercive or disposition-determinative steps in politically sensitive criminal matters. Pending executive-power and removal-power cases remain relevant background because they may reinforce a broad unitary-executive frame. That risk does not make DOJ-002 moot or legally unavailable, but it counsels keeping the remedy internal, prospective, nonprivate, and focused on DOJ's own review procedures unless Congress later codifies narrower logging, preservation, notice, or appropriations conditions.

**Proposal-to-legislation consistency result:** No substantive discrepancy requiring human review was found. The issue page and proposed Justice Manual text remain aligned on vehicle, covered matters, Political Neutrality Memoranda, Public Integrity consultation and approval, contact logging, emergency documentation, judicial-process disclosure under seal, record preservation, prospective-only weakening, noncompliance referral, and viewpoint-neutral application. The issue page properly characterizes statutory codification as a fallback rather than the present primary remedy.

**Legal-durability finding:** The proposal's strongest legal posture remains an internal Justice Manual amendment that does not create a private right of action, does not confer immunity, does not require judicial preclearance of charging decisions, and preserves grand-jury, classification, privilege, privacy, and other lawful restrictions. Remaining legal risks are overbreadth, chilling legitimate investigations, executive privilege, grand-jury secrecy, national-security sensitivity, Public Integrity workload, and future leadership amendment or waiver. These risks are reduced but not eliminated by viewpoint-neutral coverage, written predication, sealed judicial-process disclosure, emergency exceptions, prospective-only weakening, and OPR/OIG referral.

**Implementation and reviewer-fit finding:** Public Integrity remains a plausible reviewer because DOJ already uses that section for public-corruption and election-related consultation and approval models. T4 does not fully validate workload, staffing, or category fit across every covered matter. Publication-facing versions should flag that DOJ practitioner review is needed to test whether Public Integrity should be the sole reviewer or whether some covered categories should route to a different career component, ethics office, OPR, OIG, National Security Division, Civil Rights Division, or a cross-component review panel.

**Budgetary-impact finding:** The existing budgetary-impact classification remains appropriate. DOJ-002 specifies no appropriation and creates no new office. The likely burden is administrative workload for screening, memoranda, review, contact logging, preservation, periodic review, and possible OPR/OIG referral. No dollar estimate is assigned because T4 did not identify a CBO, OMB, DOJ, agency, legislative-counsel, historical appropriation, audited program-cost, or comparable source-backed estimate for this specific proposed Justice Manual provision.

**Adoption and friction finding:** Required Electoral Environment remains **current - law-available**; Pathway Viability remains **conditional-current**; Development Priority remains **active**; Pathway Adjustment remains **stage**. Adoption Score remains 2/12 because legal availability is not practical adoption likelihood: the present vehicle depends on a reform-aligned Attorney General or comparable external pressure. Adoption Friction remains 84/100, **Extreme Resistance**, because the proposal would limit politically sensitive criminal-process discretion, White House/DOJ contact flexibility, and leadership control over covered matters.

**Publication-readiness determination:** DOJ-002 is internally review-ready but not publication-ready. The proposal is strong enough for knowledgeable external critique, and T4 resolved several publication-level internal checks. It should not be presented as final legislative or DOJ policy language until external legal or practitioner review, Public Integrity workload validation, statutory-fallback drafting, and final docket verification are completed.

**Score effect:** Proposal Quality Score increases from 75 to 78. Component scores after T4: Structural 8/8; Evidence 12/12; Legal Fit 8/10; Prior-Proposal Grounding 6/8; Remedy Design 10/12; Implementation Design 7/8; Abuse Resistance 8/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 2/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 78/100. The score remains in **Review Ready** because external validation and final fallback drafting remain incomplete.

**Defects corrected during the audit:** Updated DOJ-002 front matter, compact Proposal Scoring summary, Annotation, audit history, `inventory/audits.csv`, source inventory, and Audit Dashboard row. Added T4 source tracking for pending Supreme Court executive-power context and clarified that general public-trust polling is salience evidence only. No core Justice Manual text change was required because the issue page and proposal text remained aligned.

**Unresolved findings and no-credit items:** No external attorney, legislative counsel, DOJ practitioner, Public Integrity, OPR, OIG, congressional staff, civil-liberties, press-freedom, state-government, or affected-stakeholder review has been incorporated. No proposal-specific polling or direct stakeholder endorsement has been identified. No direct current bill with DOJ-002's exact Public Integrity approval mechanism was located in this pass. Publication-level docket-service verification of the Minnesota matter remains incomplete. Statutory fallback language remains conceptual rather than drafted.

**Next audit need:** Run a T4 follow-up or external-validation pass after practitioner/legal review, Public Integrity workload validation, final Minnesota docket verification, and statutory fallback drafting are available. The next improvement target is not another general source refresh; it is external validation and concrete fallback drafting.

**Audit process feedback:** T4 usefully improved DOJ-002's evidentiary and implementation posture, but the score properly remains capped by the absence of external review and proposal-specific adoption evidence. Future T4 audits should distinguish between publication-ready internal research and publication-ready external validation so the project does not mistake thorough internal review for professional legal or institutional endorsement.

## **2026-06-27 — T3 Readiness Audit**

**Audit scope:** Single-issue T3 readiness audit for DOJ-002 and its linked proposed Justice Manual amendment under rubric 2026-06-27.2. This audit reviewed the issue page, proposed manual text, prior DOJ-002 audit history, Audit Dashboard row, `inventory/audits.csv`, `inventory/sources.csv`, Justice Manual § 1-8.000, Justice Manual § 9-85.000 and related Protection of Government Integrity provisions, H.R. 5314, *Trump v. United States*, and the Minnesota subpoena order/reporting already cited on the page. It also applied the T3 current-status, pending-judicial-vulnerability, proposal-to-legislation consistency, budgetary-impact, adoption, and judicial-scrutiny requirements. It did not replace professional legal review, legislative counsel review, practitioner review, polling, or publication-ready docket research.

**Current-status and mootness result:** No mootness blocker was found. The proposal remains live because the project record does not identify an enacted Justice Manual amendment, statute, appellate ruling, settlement, or official policy change that supplies equivalent front-end safeguards. The Minnesota manifestation remains useful as a source-supported example of back-end judicial correction after compulsory process issued. Publication-ready review should still recheck the underlying district-court docket and any appeal or later order before relying on final procedural posture.

**Proposal-to-legislation consistency result:** No substantive discrepancy requiring human review was found. The issue page and proposed manual text both use a Justice Manual amendment as the least-complex adequate remedy; both describe covered politically sensitive criminal matters; both require Political Neutrality Memoranda, Public Integrity consultation or approval, contact logging, emergency documentation, record preservation, amendment/suspension controls, OPR or OIG referral, and viewpoint-neutral application. The issue page properly treats statutory codification as a staged fallback rather than the current primary vehicle.

**Legal and judicial-scrutiny finding:** DOJ-002 is strongest as an internal Justice Manual rule because it preserves ordinary executive supervision, creates no new independent prosecutor, does not create a private right of action, and does not require courts to preclear ordinary charging decisions. The main legal risks are overbreadth, interference with legitimate prosecutorial discretion, grand-jury secrecy, executive privilege, classified or sensitive investigative information, and chilling lawful investigations that happen to involve political actors or protected activity. The proposed text mitigates those risks by stating that it creates no immunity, using internal review rather than judicial preclearance, preserving lawful secrecy and privilege limits, applying viewpoint-neutrally, and requiring under-seal

disclosure only when DOJ seeks judicial authorization or enforcement.

**Pending judicial vulnerability check:** No controlling pending Supreme Court case was identified during this T3 pass that directly decides White House/DOJ contact controls or politically sensitive criminal-matter review. General separation-of-powers and removal-power cases remain relevant background because they affect how courts may view executive-supervision constraints, but DOJ-002 is less exposed than freestanding statutory command models because the current vehicle is an internal manual provision. T4 should refresh pending Supreme Court, appellate, and district-court activity involving prosecutorial discretion, executive privilege, grand-jury secrecy, removal power, and White House/DOJ communications.

**Codification and implementation finding:** The least-complex adequate remedy remains a Justice Manual amendment. T3 clarifies that codification should be staged rather than automatic. Reasonable codification triggers include refusal to adopt, repeated suspension or waiver, failure to preserve records, recurring noncompliance, evidence that leadership used amendment power to reach pending matters retroactively, or OIG/OPR findings showing evasion. A statutory fallback should likely begin with logging, preservation, Inspector General notice, congressional notice, appropriations conditions, or confirmation-process pressure before broader judicial enforcement.

**Budgetary-impact finding:** The budgetary-impact statement remains appropriate. DOJ-002 specifies no appropriation and creates no new office. Administrative workload is likely, including covered-matter screening, memoranda, review, contact logging, record preservation, and possible OPR/OIG referral. No dollar figure is assigned because the audit did not identify a CBO, OMB, DOJ, agency, legislative-counsel, historical appropriation, audited program-cost, or comparable source-backed estimate.

**Adoption and friction finding:** Required Electoral Environment remains **current - law - available**; Pathway Viability remains **conditional - current**; Development Priority remains **active**; Pathway Adjustment remains **stage**. Adoption Score increases from 1/12 to 2/12 because T3 documents a clearer staged fallback strategy, but the score remains weak because current adoption still depends on voluntary self-limitation by the Attorney General or comparable external pressure. Adoption Friction remains 84/100, **Extreme Resistance**, because the proposal constrains politically salient criminal-process discretion, White House/DOJ contact flexibility, and leadership control over covered matters.

**International-support result:** N/A for T3 scoring. DOJ-002 is primarily a domestic DOJ internal-governance and prosecutorial-neutrality proposal. International rule-of-law perception may be indirectly relevant at publication stage, but no material international-relations claim is made on the issue page or legislation page, and no international score credit is awarded.

**Score effect:** Proposal Quality Score increases from 67 to 75. Component scores after T3: Structural 8/8; Evidence 11/12; Legal Fit 8/10; Prior-Proposal Grounding 6/8; Remedy Design 10/12; Implementation Design 6/8; Abuse Resistance 7/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 2/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 75/100. The score reaches **Review Ready** because the proposal is strong enough for knowledgeable external critique, but it remains below publication-ready status because external review, stakeholder validation, proposal-specific support evidence, publication-level docket verification, and final codification-trigger drafting remain incomplete.

**Defects corrected during the audit:** Updated DOJ-002 front matter, Proposal Scoring summary, Annotation, Quality Score explanation, Adoption Score explanation, **inventory/audits.csv**, and Audit Dashboard row. Added issue-page judicial-scrutiny and codification-strategy annotation segments. No legislation text change was made because the issue page and proposed manual text were substantively aligned.

**Unresolved findings and no-credit items:** No proposal-specific polling, national public-support evidence, state-level support evidence, sponsor map for a current bill, stakeholder support, practitioner review, external legal review, or legislative-counsel review has been incorporated. The audit did not complete publication-level docket research for the Minnesota order, did not identify a direct prior bill with DOJ-002's exact Public Integrity approval mechanism, and did not draft statutory fallback language. The Public Integrity Section reviewer choice remains plausible but should be validated against DOJ structure and workload at T4.

**Next audit need:** T4 publication-ready audit. T4 should recheck the Minnesota docket and appellate posture, search current congressional and oversight proposals, verify whether any newer Justice Manual or DOJ policy changes affect the proposal, deepen executive privilege and grand-jury secrecy analysis, test whether Public Integrity is the right reviewer for all categories, consider a drafted statutory fallback or appropriations/confirmation pressure variant, seek external practitioner or legal review, and determine whether any credible polling or institutional-trust evidence supports the adoption case.

**Audit process feedback:** The T3 audit was faster than the ceiling because DOJ-002 already had T1, T2, and Change Audit records, and because the review was issue-specific rather than project-wide. The result should not be treated as proof that T3 always requires less time; source-poor or legally novel issues may still need substantially more work.

## **2026-06-27 — Change Audit: Institutional Self-Limitation Rule**

**Audit scope:** Targeted Change Audit for DOJ-002 after rubric 2026-06-27. 2 added the Institutional Self-Limitation Rule. This was not a new source-refresh, T3 readiness audit, or publication-ready audit. It applied the new rule to the already-completed T2 record because DOJ-002 uses a current-law internal-policy vehicle that depends on voluntary adoption by DOJ leadership.

**Rubric change applied:** The updated rubric distinguishes legal availability from adoption viability. A proposal may remain **current - law - available** when an institution has authority to adopt it, while still receiving low Adoption Score credit and high Adoption Friction if adoption depends on voluntary self-limitation by the same institution or officer whose discretion the proposal would constrain.

**DOJ-002 application:** DOJ-002 remains legally available as a Justice Manual amendment, so Required Electoral Environment remains current - law - available. But the required adopter is the Attorney General and senior DOJ leadership. Because the proposal would limit White House/DOJ contact flexibility, politically sensitive criminal-process discretion, and leadership control over covered matters, the pathway is no longer treated as simply current; it is conditional-current. The realistic adoption pathway requires a reform-aligned Attorney General, leadership change, external mandate, statutory fallback, appropriations condition, court order, settlement, or comparable adoption pressure.

**Score effect:** Proposal Quality Score decreases from 70 to 67. The underlying structure, evidence, legal fit, remedy design, drafting, and project integration from the T2 audit remain unchanged. The score decreases because Adoption Score changes from 4/12 to 1/12 under the new self-limitation rule. Component scores after change audit: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal Grounding 5/8; Remedy Design 9/12; Implementation Design 6/8; Abuse Resistance 6/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 1/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 67/100.

**Adoption-friction effect:** Adoption Friction increases from 66/100, High Resistance, to 84/100, Extreme Resistance. The increase is based on institutional self-limitation resistance: DOJ-002 asks the Attorney General and senior DOJ leadership to accept front-end limits on politically sensitive criminal-process discretion, White House/DOJ contact flexibility, and covered-matter routing. This is not a merits judgment against the proposal; it is a practical adoption-friction finding.

**Records updated:** Updated DOJ-002 issue-page front matter, Proposal Scoring box, scoring annotations, `inventory/audits.csv`, and `AUDIT_DASHBOARD.md`. The issue-page linked proposal text did not need amendment because the rubric change affected adoption scoring and pathway characterization, not the proposed Justice Manual language.

**Next audit need:** T3 readiness audit remains the next substantive audit. T3 should test whether a staged statutory fallback, oversight version, appropriations condition, or confirmation-process pressure point would improve adoption viability without weakening the least-complex adequate remedy.

**Audit process feedback:** This Change Audit confirms that current - law - available must never be read as currently like ly. Future audits should look for same-institution adoption traps, especially internal agency rules, executive orders, chamber rules, committee rules, ethics rules, and court-administration reforms.

## 2026-06-27 — T2 Development Audit

**Audit scope:** Single-issue T2 development audit for DOJ-002 and its linked proposed Justice Manual amendment under rubric 2026 - 06 - 27 . 1. This audit checked the Minnesota subpoena manifestation against a primary court order, refreshed current-source posture using public web sources available during the audit, rechecked the Justice Manual analogues, added an adjacent prior-legislation model, applied the current enactment-pathway and adoption-friction fields, checked issue-to-proposal consistency, and recalculated the proposal-quality score. It did not perform a full T3 judicial-scrutiny audit, external expert review, or publication-ready source review.

**Source record reviewed:** The audit reviewed the DOJ-002 issue page, linked proposed Justice Manual amendment, prior DOJ-002 audit history, `inventory/audits.csv`, `inventory/sources.csv`, Audit Dashboard row, Justice Manual § 1-8.000, Justice Manual § 9-85.000, the Justice Manual Protection of Government Integrity page, *Trump v. United States*, the unsealed District of Minnesota subpoena order made available through the Minnesota Attorney General, current secondary reporting on the Minnesota ruling, and H.R. 5314, the Protecting Our Democracy Act.

**Current-status and mootness result:** DOJ-002 remains live and not moot. The Minnesota order supports the manifestation as a current example of back-end judicial correction after compulsory process had already issued. No enacted law, Justice Manual amendment, final appellate ruling, or public source identified during this T2 pass made the proposed front-end manual provision unnecessary. No appeal or later order was verified during this T2 pass; later litigation posture should be checked again at T3.

**Primary-source manifestation finding:** The issue page previously relied on secondary reporting for the Minnesota subpoena manifestation. This audit added the unsealed District of Minnesota order as the primary source. The order supports the core claim that the subpoenas were quashed because the court found an improper coercive, retaliatory, or harassing purpose tied to federal civil-immigration enforcement and no plausible criminal-investigative justification. The issue page was revised to cite the order directly and to avoid overclaiming beyond the order's role as a representative manifestation.

**Prior-proposal and analogue finding:** DOJ-002 has strong internal-policy analogues in existing Justice Manual White House-contact and Public Integrity consultation provisions. The audit also added H.R. 5314, the Protecting Our Democracy Act, as an adjacent statutory model because Title VI would have required logging and Inspector General disclosure for covered White House/DOJ communications involving contemplated or ongoing investigations or litigation. H.R. 5314 is not a direct analogue for DOJ-002's Public Integrity approval model, but it improves prior-proposal grounding.

**Issue-to-proposal consistency:** The issue page and proposed Justice Manual text remain aligned. Both use a Justice Manual amendment as the least-complex adequate vehicle, require Political Neutrality Memoranda, Public Integrity consultation or approval, contact logging, emergency documentation, record preservation, amendment/suspension controls, OPR or OIG referral, and viewpoint-neutral equal application. The issue page appropriately reserves statutory codification as a fallback if internal policy proves suspendable, waivable, or ignored.

**Budgetary-impact finding:** The existing budgetary-impact statement remains appropriate for T2. DOJ-002 specifies no appropriation and creates no new office. The expected burden is administrative: covered-matter screening, neutrality memoranda, Public Integrity consultation or approval, contact logging, record preservation, periodic review, and possible OPR or OIG referral. No dollar estimate is

assigned because no source-backed cost basis was identified.

**Enactment-pathway finding:** Required Electoral Environment is **current - law-available**; Pathway Viability is **current**; Development Priority is **active**; Pathway Adjustment is **proceed**. The core vehicle is an internal Justice Manual amendment that DOJ leadership could adopt under existing administrative authority. This does not mean adoption is politically likely under any particular administration; it means no new statute is required for the internal-policy version. Codification remains the fallback if experience shows evasion or suspension.

**Adoption-friction finding:** Adoption Friction is 66/100, **High Resistance**. Component basis: partisan salience 13/15 because the live manifestation involves politically charged federal-state and immigration-enforcement conflict; constitutional or doctrinal controversy 8/15 because the proposal touches prosecutorial discretion, executive supervision, and grand-jury process but uses internal policy rather than a direct judicial command; institutional disruption 8/15 because it changes routing, review, and approval for sensitive criminal matters; rights or identity sensitivity 8/10 because the covered matters include speech, association, journalism, criminal process, immigration-adjacent coercion, and protected political activity; stakeholder opposition intensity 11/15 because White House and DOJ leadership may resist limits on flexible case direction; public-understanding burden 8/10 because opponents can frame the provision as shielding officials or advocacy groups from investigation; implementation friction 5/10 because the process adds memoranda, consultation, approval, logs, and reviews but uses existing DOJ components; litigation likelihood 5/10 because the manual rule itself may not create a private right of action, though covered process can still generate litigation.

**Score effect:** Proposal Quality Score increases from 62 to 70 and is current under rubric 2026-06-27.1. Component scores: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal Grounding 5/8; Remedy Design 9/12; Implementation Design 6/8; Abuse Resistance 6/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 70/100.

**Unresolved findings and no-credit items:** No direct prior bill was identified for DOJ-002's exact Political Neutrality Memorandum and Public Integrity approval mechanism. No proposal-specific polling, stakeholder support, sponsor map, or external legal/practitioner review has been incorporated. T2 did not fully test overbreadth, chilling-effect risk, grand-jury secrecy, privilege, executive-supervision objections, or whether statutory codification should be triggered by particular forms of evasion. The Minnesota litigation posture should be refreshed again at T3, including any appeal or subsequent district-court action.

**Defects corrected during the audit:** Added the primary District of Minnesota order citation to the issue page; added H.R. 5314 as an adjacent prior legislative model; updated issue-page front matter; updated the visible Proposal Scoring box; added annotation segments for Budgetary Impact, Quality Score, Adoption Score, Adoption Friction, Required Electoral Environment, and Development Priority; updated `inventory/audits.csv`; added source-inventory coverage for the Minnesota order and expanded H.R. 5314 coverage to DOJ-002; and updated the Audit Dashboard row and summary counts.

**Next audit need:** Run T3 readiness audit. The T3 pass should test constitutional and administrative-law durability, grand-jury and privilege issues, overbreadth and chilling-effect risk, federalism and protected-activity calibration, whether the Public Integrity Section is the right reviewer for all covered categories, how amendment/suspension notice should operate, whether codification triggers should be defined, and whether any newer Minnesota docket activity changes the manifestation.

**Audit process feedback:** T2 was useful because it resolved the largest T1 source weakness without requiring a T3-level constitutional deep dive. The audit also confirmed that rebaseline status should move to **current** when the next substantive audit applies the current rubric, even if higher-tier source and judicial-scrutiny work remains pending.

## 2026-06-25 — T1 Framework Check

**Audit summary:** T1 framework check, completed June 25, 2026, under the 30-minute estimate.

**Audit scope and posture:** This was a T1 audit of DOJ-002 only. It checked framework structure, single-issue scope, remedy type, linked proposed Justice Manual amendment, page-to-legislation consistency, source visibility, citation proximity for real-world examples, relationship to merged issue DOJ-006, and whether human-facing audit metadata existed on the page. It did not complete a full T2 source-verification, prior-proposal, adoption, implementation, political-neutrality, or judicial-scrutiny audit.

**Source record reviewed and added:** The audit reviewed the existing DOJ-002 source inventory entries for Justice Manual § 1-8.000, Justice Manual § 9-85.000, and the proposed Justice Manual amendment. The audit also checked current public sources for the Minnesota subpoena manifestation and added a nearby citation to contemporaneous reporting describing the District of Minnesota ruling. The audit added a nearby citation to *Trump v. United States* for the immunity-related statement in the Underlying Weakness section. The source inventory was updated to mark the DOJ Manual sources as reviewed for T1 purposes and to capture the Minnesota ruling source and *Trump v. United States* reference for DOJ-002.

**Verified findings:** DOJ-002 is a developed issue with a clear issue snapshot, institutional anomaly, manifestation, resulting damage, underlying weakness, proposal survey, least-complex adequate remedy, repair-and-prevention section, proposed Justice Manual amendment, relationship note for DOJ-007 and merged DOJ-006, and annotation. The linked legislation file exists and is a Justice Manual amendment rather than freestanding legislation, matching the issue page's remedy type. The proposal uses existing Justice Manual contact-control and Public Integrity consultation models rather than creating a new institution. The issue page now includes nearby citations for the Minnesota subpoena example and for the *Trump v. United States* immunity premise.

**Defects corrected during the audit:** Added audit front matter to DOJ-002; added this append-only Audit Record; added a nearby source citation for the Minnesota subpoena manifestation; linked the *Trump v. United States* statement to the Supreme Court opinion; updated DOJ-002's audit inventory row; updated source inventory review status and source locations for the DOJ Manual sources; and added the



Minnesota ruling and *Trump v. United States* as DOJ-002 source records.

**Claims left unresolved or receiving no favorable score credit:** The T1 audit did not verify the full factual record of the Minnesota subpoena litigation from the underlying court order. The issue's description should therefore receive only limited T1 credit pending a T2 review of the actual order, docket, parties, procedural posture, and any subsequent appellate activity. The audit did not verify whether any proposed federal legislation, congressional oversight proposal, or DOJ policy proposal already addresses this exact manifestation. Coalition appeal, Republican/Democratic/independent support estimates, and public-opinion evidence were not reviewed. International effects were not materially assessed and receive no score credit.

**Material risks remaining:** The largest source risk is that the Minnesota example currently rests on a secondary source on the issue page, even though the underlying court order should be reviewed in T2. The largest implementation risk is that an internal Justice Manual amendment can be amended, suspended, waived, or ignored by future DOJ leadership. The largest legal-design risk is whether the remedy should remain internal policy or be partially codified if evasion occurs. The largest drafting risk is calibrating covered matters broadly enough to capture retaliation and coercion without deterring legitimate investigations involving public officials, campaigns, journalism, advocacy organizations, or state and local governments.

**Proposal-quality score:** 62. The score increased from 60 because the audit fixed page-level audit metadata, created a human-facing audit record, added nearby citations for material real-world and legal claims, and verified that the proposed amendment exists and matches the issue's remedy type. The score remains low because deeper source verification, prior-proposal review, adoption support, implementation-risk analysis, and judicial-scrutiny review remain incomplete.

**Next audit need:** Run a T2 development audit focused on the underlying Minnesota court order and docket, current-source refresh for any appeal or related DOJ action, direct prior-proposal survey, source verification of all Justice Manual analogues, assessment of whether internal policy is sufficient or codification is needed, coalition appeal, political-language neutrality, and enforceability if DOJ leadership suspends or ignores the manual provision.

**Audit process feedback:** T1 was useful because it caught missing audit metadata and missing nearby citations before moving to deeper merits review. Future DOJ-002 audits should prioritize primary-source verification of the Minnesota ruling and a direct comparison between the proposed § 9-85.115 text and the existing Justice Manual provisions it extends.

# DOJ-003 — Politically Selective Enforcement, Charging, and Favoritism

## Issue Snapshot

**Problem:** Selective prosecution patterns remain invisible.

**Repair:** Add BJS statistics and OIG anomaly notice.

**Vehicle:** Amend DOJ reporting and OIG statutes (draft).

## Institutional Anomaly

Federal prosecutorial discretion lacks sufficiently comprehensive, independent, and reviewable safeguards against materially different investigative, charging, declination, dismissal, plea, or sentencing treatment based on political affiliation, viewpoint, loyalty, relationship, retaliation, or partisan advantage.

## Manifestation of the Failure

### *Selective-treatment channels*

Selective treatment can operate through unusually aggressive investigation or charging of opponents, unusually favorable declinations or resolutions for allies, strategic delay, narrow investigative scope, favorable plea terms, dismissal, reduced sentencing positions, or resource allocation that systematically burdens one political class while protecting another.

### *James Comey charging-decision review*

The 2026 federal case against former FBI Director James Comey illustrates the type of charging decision that warrants independent comparator review. DOJ charged Comey under federal threat statutes based in part on a May 2025 social-media post showing seashells arranged as “86 47.” The indictment charged violations of 18 U.S.C. §§ 871(a) and 875(c). The phrase is ambiguous and used in nonviolent senses, while Comey has long been a prominent critic of President Trump. Reporting states that Acting Attorney General Todd Blanche said the case rests on evidence beyond the post, and later reporting states that the lead prosecutor withdrew while the case remained pending for an October 21, 2026 trial; the notice of substitution confirms the government-counsel change. See *The Guardian*, *Associated Press*, and *The Guardian*. The institutional question is therefore not whether the charge is conclusively illegitimate, but whether materially comparable expression is ordinarily investigated and charged in the same manner, whether political demands influenced the decision, and whether the treatment departed from ordinary practice.

### *Congressional unlawful-orders video investigation*

A separate 2025–2026 episode involved six members of Congress who released a video stating that military personnel must refuse unlawful orders. Reporting states that federal prosecutors investigated the lawmakers and sought indictments concerning the video, but a District of Columbia grand jury declined to indict them. See *Time* and *The Guardian*. The statement reflected the established distinction between lawful and unlawful military orders, although its generality could legitimately be criticized as imprecise. The episode is relevant because criminal-process burdens may arise through investigation and attempted charging even when no indictment ultimately issues.

### *Comparator data as the missing safeguard*

Neither example is treated here as conclusive proof of selective prosecution. Each instead demonstrates why department-wide comparator data, political-contact records, and independent anomaly review are necessary. Relevant questions include whether similarly situated speakers were treated similarly, whether public political demands preceded enforcement, whether career officials objected, and whether the charging theory departed materially from ordinary practice.

### *Informal signals and invisible discretion*

Direct White House instructions may never be documented. Unequal outcomes may instead emerge from Attorney General priorities, political-appointee supervision, informal institutional signals, resource allocation, repeated discretionary choices, or career officials anticipating leadership preferences. Individual defendants generally cannot see the broader universe of comparable matters needed to identify a pattern.

## Resulting Damage

Politically selective enforcement destroys equality before the law, converts legitimate discretion into a mechanism of reward or punishment, chills protected activity, distorts elections and public debate, and permits sustained favoritism or retaliation to remain concealed behind case-specific explanations.

## Underlying Weakness

Prosecutorial discretion is indispensable and courts properly hesitate to supervise ordinary charging decisions. The same discretion, secrecy, and factual variability make political misuse unusually difficult to prove. No two cases are identical; differences in evidence, culpability, cooperation, history, venue, resources, timing, and lawful priorities may legitimately produce different outcomes.

The defect therefore cannot be completely prevented without risking paralysis of legitimate enforcement or creating a second prosecutorial hierarchy. The practical institutional objective is corrigibility: preserve prosecutorial authority while creating the capacity to detect, document, investigate, report, and correct sustained unexplained disparities.

## Proposal Survey

Existing law provides narrow case-level remedies rather than system-level detection. Selective-prosecution doctrine permits constitutional challenges but imposes demanding comparator and intent requirements that individual defendants rarely can satisfy. See *United States v. Armstrong*, 517 U.S. 456 (1996).

Oversight models already exist inside DOJ. The Inspector General Act authorizes Inspectors General to conduct audits and investigations and to report serious problems to agency heads and Congress. See 5 U.S.C. chapter 4. DOJ's OIG describes itself as an independent DOJ entity that detects and deters waste, fraud, abuse, and misconduct and reports to the Attorney General and Congress. See DOJ OIG. DOJ's OPR separately states that it has jurisdiction over professional-misconduct allegations involving Department attorneys' exercise of authority to investigate, litigate, or provide legal advice, and that OIG ordinarily refers such allegations to OPR. See DOJ OPR. DOJ-003 therefore borrows the audit-and-reporting model and expressly addresses OIG/OPR coordination because existing structures do not provide a comprehensive charging-comparator dataset.

Congress has also mandated DOJ statistical-reporting systems for sensitive criminal-justice problems. The Bureau of Justice Statistics is authorized to collect, analyze, publish, and disseminate justice statistics, including comprehensive federal justice transaction statistics. See 34 U.S.C. § 10132. PREA requires annual BJS statistical review and analysis of prison rape with methodology and confidentiality safeguards. See 34 U.S.C. § 30303. The Death in Custody Reporting Act requires custody-death data collection and Attorney General reporting. See 34 U.S.C. § 60105. Federal crime-data authority also includes Attorney General collection, classification, and exchange of criminal-identification and crime records. See 28 U.S.C. § 534. DOJ-003 is therefore novel in subject matter, not in congressional method.

T4 public-source review did not identify a direct prior federal bill creating a DOJ-wide charging-comparator monitoring system. Adjacent models exist, however. The House-passed Protecting Our Democracy Act included DOJ-related reporting and inspector-general notice provisions for covered White House-DOJ communications, which supports the general oversight architecture but is not a direct analogue for universal charging-data review. DOJ-003 is therefore structured as a hybrid amendment: BJS owns the statistical architecture under existing DOJ statistical-reporting law, while DOJ OIG owns anomaly review, source-file audit, protected congressional notice, and interference reporting.

## Least-Complex Adequate Remedy

Enact the Prosecutorial Neutrality Monitoring and Congressional Oversight Act as a hybrid amendment to existing DOJ statistical-reporting and inspector-general authority. The Act should:

1. amend BJS authority to require standardized federal charging and disposition transaction statistics;
2. require automated data extraction where practicable and targeted manual justification where analytically necessary;
3. preserve earlier proposed and authorized stages for OIG audit where needed;
4. assign source-file audits, contextual anomaly review, and protected congressional notice to DOJ OIG;
5. create graduated internal-review, reportable, and urgent anomaly thresholds;
6. require contextual human review and external methodological validation;
7. limit political-characteristic data to public, case-relevant, and analytically necessary information;
8. require random source-file audits and penalties for concealment or falsification;
9. require bipartisan confidential congressional notice of qualifying anomalies; and
10. expressly prohibit BJS, OIG, GAO, or Congress from directing an individual investigation, charge, plea, dismissal, or sentencing position.

The proposal will not necessarily prevent the first abusive decision. Its purpose is to prevent selective enforcement from remaining statistically invisible, institutionally unreviewable, or capable of becoming entrenched without congressional notice.

## Repair and Prevention

BJS should create a universal federal charging-and-disposition transaction record and provide DOJ OIG access for source-file audit and contextual anomaly review. Monitoring should include filed charges, declined charges, dismissals, reductions, superseding decisions, plea agreements, deferred- and non-prosecution agreements, material sentencing positions, policy departures, and final case dispositions.

The system should distinguish proposed, authorized, and final operative decisions. Routine data should be extracted automatically from existing case-management systems. Manual explanation should be required where necessary to record evidence strength, aggravating and mitigating factors, cooperation, policy departures, political contacts, and other legitimate comparators.

BJS should own data standards, statistical architecture, and public aggregate reporting. OIG should identify anomalies through transparent, validated methodology; conduct human contextual review; audit source files randomly; investigate materially unexplained political disparities; and report threshold-specific anomalies confidentially to the chairs and ranking minority members of the House and Senate Judiciary Committees. Confidential reports should provide enough identifying or relationship information for Congress to

understand the politically material actor, comparator group, treatment disparity, and oversight significance, while allowing minimum-necessary redaction, anonymization, classification, delay, or secure review where required to protect lawful secrecy and safety interests. An anomaly must remain an oversight trigger, not proof of illegality or misconduct.

## Proposed Legislation

- Prosecutorial Neutrality Monitoring and Congressional Oversight Act

## Budgetary Impact Statement

The draft authorizes \$30,000,000 per year for five fiscal years. This is a proposed authorization, not a cost estimate. PREA's BJS data-and-research authorization was \$15,000,000 per year for fiscal years 2004 through 2010; DOJ-003 uses \$30,000,000 as a conservative modern starting point for a more complex DOJ-wide charging-data, privacy, validation, OIG, and GAO-review system.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 82 / 100 (Review Ready)

**Adoption Score:** 3 / 12 (Weak Adoption Basis)

**Adoption Friction:** 78 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

**External Review Status:** not-reviewed

**Audit Status:** Change Audit complete; SCOTUS current-status update no score effect

**Last Audit:** SCOTUS current-status update

**Rubric Version:** 2026-06-27. 2; **Rebaseline:** current

**Next Audit:** T4 follow-up / external validation

**Full Audit History:** DOJ-003 audit history

## Annotation

**Basis and Evidence.** Selective-prosecution doctrine and the presumption of prosecutorial regularity make individual judicial challenges difficult. Centralized data analysis can reveal repeated severity or leniency patterns that no individual defendant or district can observe. The model preserves executive charging authority while strengthening Congress's ability to perform systemic oversight. The Comey case and the unsuccessful effort to indict six members of Congress are included as contemporary comparator-trigger examples, not adjudicated findings of political misuse.

**Qualification.** Statistical disparity is not self-proving. Reliable analysis must account for offense conduct, admissible evidence, culpability, history, cooperation, obstruction, harm, venue, resources, legal changes, sample size, and lawful enforcement priorities. Political data must not become a registry of private beliefs; collection should be limited to public and case-relevant facts. Pending or declined prosecutions must be described according to their actual procedural posture and with the presumption of innocence intact. Public reporting should remain aggregate and privacy-protective, but confidential congressional reporting must not be anonymized in a way that prevents Congress from understanding a material political actor, relationship, comparator group, treatment disparity, or oversight need.

**Remedial Alternatives and Constraints.** Preapproval of every charging decision would be more preventive but could impede legitimate enforcement and create constitutional tension. Complaint-only OIG review would be simpler but would miss invisible patterns. A wholly freestanding monitoring office would be less anchored in existing law. Hybrid BJS statistics plus OIG anomaly review is more administratively demanding than ordinary reporting, but it is the least-complex mechanism capable of identifying systemic selectivity while leaving individual prosecutorial control in DOJ. DOJ-002 supplies front-end review for politically sensitive matters; DOJ-003 supplies universal back-end detection and correction. Former candidate issue DOJ-008 is merged here because external review is part of the same defect and remedy architecture.

**Budgetary Impact.** The proposal now includes an authorization of \$30,000,000 per year for five fiscal years. PREA provides a historical statutory analogue because Congress authorized \$15,000,000 per year for fiscal years 2004 through 2010 for BJS prison-rape statistics, data, and research. DOJ-003's proposed authorization is higher because it would require secure DOJ-wide charging-data infrastructure, automated extraction, statistical and legal staff, privacy controls, source-file audits, GAO methodology review, and confidential congressional reporting. The figure remains a proposal-design authorization, not an official cost estimate.

**Quality Score.** The Change Audit score is 82/100, **Review Ready**. Component scores: Structural 8/8; Evidence 11/12; Legal Fit 9/10; Prior-Proposal Grounding 7/8; Remedy Design 11/12; Implementation Design 7/8; Abuse Resistance 8/8; Drafting Quality 8/8; Cogency 6/6; Adoption Path 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. The existing-law redraft increased the score by one point because it anchored the proposal in BJS statutory authority and enacted statistical-reporting/budget analogues. The later congressional-reporting anonymization guardrail strengthened oversight anti-evasion but did not change the score because the affected components were already at or near full credit and broader external-review/legal-fit issues remain unresolved. The proposal is strong enough for knowledgeable external critique, but it is not publication-ready because it still lacks qualified external review, proposal-specific adoption evidence, a direct charging-comparator analogue, and an official fiscal score.

**Adoption Score.** The 3/12 score is weak because DOJ-003 identifies the basic federal legislative vehicle, staged pathway, and general cross-partisan rule-of-law value proposition, but lacks proposal-specific polling, sponsor or validator mapping, direct bipartisan legislative precedent, public-support evidence for the actual mechanism, and a mature objection-handling strategy.

**External Review Status.** No qualified external review has been incorporated. The next improvement path should seek review by a former prosecutor, defender, DOJ OIG or OPR practitioner, privacy expert, statistician, legislative counsel, or public-law scholar.

**Adoption Friction.** The preliminary friction score is high because the proposal would require statutory monitoring of federal prosecutorial decisions, new OIG infrastructure, politically sensitive comparator analysis, confidential congressional reporting, privacy safeguards, and likely opposition from actors concerned about prosecutorial independence, separation of powers, law-enforcement secrecy, or partisan misuse of anomaly reports.

**Required Electoral Environment.** DOJ-003 likely requires ordinary federal legislation capable of surviving Senate procedure, so the preliminary required electoral environment is *sixty-vote-senate*. The most viable path is staged: first develop oversight, source verification, and external-methodology validation; then consider narrower pilot, reporting, appropriation-condition, or inspector-general-capacity vehicles before attempting the full statutory monitoring architecture.

**Development Priority.** The priority is *active* because the issue is developed, institutionally distinct from DOJ-002, and tied to concrete contemporary comparator-trigger examples. Further development should target source verification, existing-law fit, prior-proposal survey, adoption evidence, privacy safeguards, OIG/OPR jurisdiction fit, and implementation burden.

**Judicial Scrutiny and Recent Cases.** Recent Supreme Court removal-power decisions, including *Trump v. Slaughter* and *Trump v. Cook*, do not directly decide DOJ-003 because this proposal does not insulate an officer from presidential removal or authorize courts to control charging decisions. They remain relevant as background risk because DOJ-003 would assign mandatory reporting and review duties inside DOJ. The current drafting preserves executive charging control, avoids private enforcement, uses existing BJS and OIG authority, frames anomaly notices as oversight triggers rather than adjudicative findings, and includes staged validation before formal anomaly reporting.

## DOJ-003 — Audit History

This file preserves the full audit history for DOJ-003. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-07-02 — SCOTUS current-status update

**Audit status:** Change Audit complete; SCOTUS current-status update no score effect

**Proposal-quality score:** 82

**Current-status update:** *Trump v. Slaughter* and *Trump v. Cook* have now been decided. Neither decision directly controls DOJ-003 because the proposal uses BJS statistical reporting and DOJ OIG anomaly review, preserves executive charging control, and does not create removal protection or judicial control over charging. They remain relevant background doctrine for external validation.

**Score effect:** No score change. The update removes stale pending-case wording but does not complete external review, direct prior-proposal grounding, official fiscal scoring, source-file validation, privacy/statistical review, or legislative-counsel review.

**Next audit need:** Continue with T4 follow-up or external validation, including prosecutor/defender, DOJ OIG/OPR, statistics, privacy, and legislative-counsel review.

#### 2026-06-27 — Change Audit: Congressional Reporting Anonymization Guardrail

**Audit scope:** Targeted proposal-specific Change Audit for DOJ-003 after revising Section 8 of the proposed legislation to prevent anonymization, redaction, classification, delay, or secure-channel reporting from defeating meaningful congressional oversight. The audit checked the issue page, proposed legislation, prior DOJ-003 audit history, scoring rules, `inventory/audits.csv`, and the Audit Dashboard row. Because this was proposal-specific and did not change a governing rule, no project-wide Change Audit Log entry was required.

**Finding:** The prior bill text allowed OIG to anonymize, classify, delay details, or use secure channels to protect sensitive interests, but did not clearly prevent a motivated DOJ or OIG from using those tools to make congressional notice technically compliant but substantively useless. The revised text now requires confidential reports to include enough information for the Judiciary Committees to understand the material political relationship, treatment disparity, comparator group, and oversight significance; permits anonymization, redaction, classification, delay, or secure-channel reporting only to the minimum extent required by law or reasonably necessary; prohibits using those protective tools to prevent Congress from determining the nature of the anomaly and oversight action required; and creates a secure-review fallback for chair, ranking minority member, and authorized committee-counsel access when written disclosure cannot safely include identifying details.

**Corrections made:** Updated Section 8 of the proposed legislation; added a drafting note clarifying that confidential congressional reporting is not anonymized by default; revised the issue page's Repair and Prevention and Qualification language to distinguish public aggregate reporting from meaningful confidential congressional notice.

**Score effect:** No Proposal Quality Score change. The score remains 82/100, **Review Ready**. The revision strengthens remedy clarity, abuse resistance, and drafting quality, but those components were already at or near full credit under the current component record. No additional Legal Fit or Implementation credit is awarded because OIG/OPR coordination, Rule 6(e), privacy, privilege, classified-information, fiscal, and legislative-counsel review issues remain unresolved. Component scores remain: Structural 8/8; Evidence 11/12; Legal Fit 9/10; Prior-Proposal Grounding 7/8; Remedy Design 11/12; Implementation Design 7/8; Abuse Resistance 8/8; Drafting Quality 8/8; Cogency 6/6; Adoption Path 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 82/100.

**Next audit need:** External validation should specifically test whether the new secure-review language is compatible with Rule 6(e), classified-information handling, privilege, fair-trial rights, privacy law, committee-security practice, and OIG/OPR jurisdiction. Legislative counsel should also decide whether the secure-review mechanism needs more precise committee-counsel clearance, storage, access-log, or sanctions language.

**Audit process feedback:** The Change Audit correctly prevented a score change where the text improved an already-credited safeguard without resolving the broader publication-level blockers. Future DOJ-003 review should continue testing whether protective reporting provisions preserve enough information for meaningful oversight without violating lawful secrecy constraints.

#### 2026-06-27 — Change Audit: Existing-Law Redraft Scoring

**Audit scope:** Targeted Change Audit for DOJ-003 after the post-T4 existing-law redraft. The audit began from `framework/Framework.md`, then `framework/METHODOLOGY.md`, checked the Change Audit workflow, scoring rules, DOJ-003 issue page, DOJ-003 proposed legislation, DOJ-003 audit history, `inventory/audits.csv`, `inventory/sources.csv`, the Audit Dashboard row, and the Change Audit log. It did not reopen the full T4 source-refresh record.

**Project-consistency finding:** No governing-rule defect was found. The framework permits a Change Audit to update a score when a component score changes, but requires conservative scoring and a recorded component basis. DOJ-003's issue page, proposed legislation, audit sidecar, audit inventory, and dashboard now use the same score, audit status, rubric version, and next-audit posture.

**Existing-law redraft finding:** The redraft materially improves prior-proposal and existing-law grounding. DOJ-003 now amends BJS's existing authority under 34 U.S.C. § 10132(c), uses DOJ OIG for anomaly review and protected reporting, and relies on enacted

functional analogues including BJS authority, PREA statistical review, Death in Custody Reporting Act reporting, Attorney General crime-record authority, and PREA's historical BJS data-and-research authorization. Current official U.S. Code review confirmed that section 10132(c) presently runs through paragraph (23), so the draft's proposed new paragraphs (24) through (31) are directionally consistent with the current codification record.

**Score effect:** Proposal Quality Score increases from 81 to 82. Prior-Proposal Grounding increases from 6/8 to 7/8 because the proposal now rests on checked existing-law, functional, and budget analogues and uses an existing statutory reporting hook. No additional point is awarded for Legal Fit because OIG/OPR coordination, Rule 6(e), privacy, privilege, classified-information, and pending removal-power risks still require expert review. No additional point is awarded for Implementation Design because the proposal still lacks official fiscal scoring, agency workload validation, or legislative-counsel review. Component scores after Change Audit: Structural 8/8; Evidence 11/12; Legal Fit 9/10; Prior-Proposal Grounding 7/8; Remedy Design 11/12; Implementation Design 7/8; Abuse Resistance 8/8; Drafting Quality 8/8; Cogency 6/6; Adoption Path 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 82/100.

**Next audit need:** Run a T4 follow-up or external-validation pass after qualified prosecutor/defender, DOJ OIG/OPR, privacy/statistics, or legislative-counsel review; seek legislative-counsel verification of codification, paragraph numbering, and conforming-amendment needs; obtain or rule out stronger primary records for the six-lawmakers episode; locate an official fiscal score or closer DOJ-wide IT/OIG cost analogue; and update if pending removal-power cases materially change the legal environment.

**Audit process feedback:** The Change Audit was the right mechanism for this update. The score moved only where the changed record directly satisfied a documented score-limiting component, and unresolved publication-level issues remained score-limiting rather than being treated as solved by the redraft.

### ***2026-06-27 — Post-T4 Existing-Law Redraft Update***

**Update scope:** Structural drafting update following the T4 audit and subsequent existing-law fit review. This was not a full score re-audit.

**Finding:** DOJ-003 is better positioned as an amendment to existing DOJ statistical-reporting authority, paired with express DOJ OIG anomaly-review duties, than as a wholly freestanding monitoring architecture. BJS already has statutory authority to collect, analyze, publish, and disseminate justice statistics, including federal justice transaction statistics. DOJ-003 now uses that existing architecture for uniform charging and disposition statistics while assigning source-file audit, contextual anomaly review, protected congressional notice, and interference reporting to DOJ OIG.

**Corrections made:** Restructured the proposed legislation to amend 34 U.S.C. § 10132(c) by adding BJS charging-and-disposition statistics duties; assigned anomaly review and protected reporting to DOJ OIG; revised the issue page to describe the BJS/OIG hybrid structure; preserved the limitation that BJS, OIG, GAO, and Congress may not direct individual prosecutions; and retained the \$30,000,000 annual authorization as a proposal-design figure.

**Human-review need:** Legislative counsel or another qualified reviewer should verify codification, paragraph numbering, OIG/OPR jurisdiction language, and whether the BJS amendment should be paired with additional conforming amendments before publication.

**Score effect:** No immediate score change. The T4 score remains 81/100 pending the next formal audit or change audit. A later audit should consider whether the existing-law redraft improves Legal Fit, Prior-Proposal Grounding, Implementation Design, or Drafting Quality.

### ***2026-06-27 — Post-T4 Statistical-Reporting and Appropriations Analogue Update***

**Update scope:** Source-development and drafting update following the T4 audit. This was not a full score re-audit.

**Finding:** Existing DOJ statistical-reporting laws materially strengthen DOJ-003's existing-law grounding. Congress has already authorized DOJ's Bureau of Justice Statistics to collect and disseminate justice statistics, including comprehensive federal justice transaction statistics; required BJS statistical review under PREA; required custody-death reporting to the Attorney General under the Death in Custody Reporting Act; and authorized Attorney General collection and exchange of crime records. These analogues show that DOJ-003 is novel in charging-comparator subject matter, not in congressional statistical-reporting method.

**Appropriations analogue:** PREA authorized \$15,000,000 per year for fiscal years 2004 through 2010 for prison-rape statistics, data, and research. DOJ-003 now proposes \$30,000,000 per year for fiscal years 2027 through 2031 as a conservative proposal-design authorization for a more complex DOJ-wide charging and disposition data system. The figure remains a proposed authorization, not an official CBO, OMB, agency, or legislative-counsel cost estimate.

**Corrections made:** Added DOJ statistical-reporting analogues to the issue page; revised the bill's authorization and Budgetary Impact Statement; added source notes for BJS, PREA, Death in Custody Reporting Act, Attorney General crime-record authority, and PREA's authorization; and added source-inventory rows.

**Score effect:** No immediate score change. The T4 score remains 81/100 pending the next formal audit or change audit. A later audit should consider whether these analogues increase Prior-Proposal Grounding or Implementation Design credit.

## 2026-06-27 — T4 Publication-Ready Audit

**Audit scope:** Single-issue T4 publication-ready audit for DOJ-003 and its linked proposed legislation. The audit began from `framework/Framework.md`, then `framework/METHODOLOGY.md`, and consulted the remedy framework, DOJ-003 issue page, DOJ-003 bill text, prior DOJ-003 audit history, Audit Dashboard row, `inventory/audits.csv`, and `inventory/sources.csv`. The audit focused on source verification, current-law status, prior-proposal history, legislative drafting vulnerabilities, constitutional and administrative-law risk, implementation feasibility, abuse resistance, adoption strategy, public-support limits, international implications, and consistency with project conventions.

**Publication-readiness conclusion:** DOJ-003 is **Review Ready**, not publication-ready. It is ready for knowledgeable external critique because the central problem, statutory vehicle, issue-to-legislation alignment, legal safeguards, staged implementation structure, and source record are now substantially developed. It is not yet publication-ready because no qualified external reviewer has reviewed it, no official fiscal score or close cost analogue has been located, the six-lawmakers example remains supported by reporting rather than primary grand-jury records, and no direct prior bill for universal DOJ charging-comparator monitoring was identified.

**Deep source-refresh log:** T4 preserved the CourtListener RECAP indictment and notice-of-substitution sources for the Comey example; added a second reporting source for the six-lawmakers example and related Kelly/Hegseth litigation posture; carried forward H.R. 5314 as an adjacent Congress.gov model; added sensitive-information legal source leads for the Privacy Act, Federal Rule of Criminal Procedure 6(e), and the Classified Information Procedures Act; and carried forward DOJ OIG, DOJ OPR, Inspector General Act, and GAO authority sources.

**Verified and unresolved claims:** Verified: DOJ-003 has a developed statutory proposal, the Comey example has court-file support for charges and government-counsel substitution, existing law supplies OIG and GAO oversight models, OPR/OIG jurisdiction allocation is a real design issue, and the bill preserves executive control over individual charging decisions. Unresolved: no primary grand-jury record was located for the six-lawmakers episode; no direct prior federal bill equivalent to DOJ-003 was located; no source-backed dollar estimate was located; no qualified external review has been incorporated; and proposal-specific public-support evidence remains absent.

**Mootness and material-reframing determination:** No T4 source showed that DOJ-003 is moot, already satisfied, legally impossible, or materially reframed. The current events continue to support the problem framing as a comparator-monitoring and institutional-corrigibility issue rather than a merits judgment on any pending or declined prosecution.

**Pending-judicial-opinion vulnerability assessment:** Pending removal-power and unitary-executive-adjacent cases, including *Trump v. Slaughter* and *Trump v. Cook*, remain background risks but do not directly control DOJ-003. DOJ-003 does not give courts, Congress, OIG, or GAO power to initiate, terminate, approve, reject, or direct individual charges. The proposal should remain drafted around recordkeeping, oversight, confidential reporting, methodology validation, discipline/referral, and legislative correction rather than judicially enforceable case-level remedies.

**Legal-durability analysis:** The legal-durability path is plausible but sensitive. Congress can create reporting, recordkeeping, appropriations, and inspector-general duties, but DOJ-003 must avoid becoming a second prosecutorial hierarchy. The current draft strengthens durability by: preserving individual charging authority; creating no private right of action; treating anomalies as oversight triggers; protecting grand-jury, classified, sealed, privileged, privacy, and law-enforcement-sensitive information; requiring human review; requiring GAO methodology review; limiting political-status data; and adding staged validation before formal anomaly reporting. Remaining T4 follow-up should test Privacy Act compliance, Rule 6(e), classified-information handling, attorney-client/work-product boundaries, and whether OIG access language should be more tightly cross-referenced to existing law.

**Prior-proposal comparison:** T4 did not identify a direct prior federal bill creating universal DOJ charging-comparator monitoring. H.R. 5314, the Protecting Our Democracy Act, remains the best adjacent model because it contained DOJ-related reporting and inspector-general notice provisions for covered White House-DOJ communications and passed the House in the 117th Congress. It supports the feasibility of congressional reporting and OIG-notice architecture but does not validate DOJ-003's data-monitoring mechanism.

**Adoption and opposition analysis:** Adoption Score increases from 2/12 to 3/12 because T4 refined the staged pathway and cross-partisan rule-of-law value proposition. The score remains weak because no proposal-specific polling, sponsor map, validator map, direct bipartisan prior bill, or mechanism-specific public-support evidence was located. Likely support arguments include neutrality across administrations, reciprocal protection for all parties, confidential rather than public reporting for active matters, and preservation of executive charging authority. Likely opposition arguments include prosecutorial-independence concerns, separation-of-powers objections, privacy and grand-jury concerns, law-enforcement secrecy, workload and cost, politicized congressional leaks, and fear that anomaly analysis will be mistaken for proof of misconduct.

**Fiscal and burden review:** The budgetary-impact classification remains: budget authority is likely required; no dollar estimate is assigned. T4 did not locate a close enough public cost analogue for a DOJ-wide charging-comparator database, secure records exchange, statistical staff, legal staff, source-file audits, privacy controls, GAO review, and congressional reporting. The bill now includes staged validation and historical-data testing to reduce implementation shock and data-quality risk before formal anomaly reporting begins.

**International implications:** N/A. The proposal concerns domestic federal prosecutorial monitoring and does not materially depend on international implementation, treaties, foreign sovereigns, or foreign-relations effects. International rule-of-law norms may be rhetorically supportive, but T4 did not use them for scoring.

**Drafting recommendations implemented:** Added a staged validation period to the bill before formal anomaly reporting begins; added drafting notes explaining that staging reduces false positives, privacy risk, data-quality failure, and implementation shock; added source



notes for Privacy Act, Rule 6(e), CIPA, DOJ OIG, and DOJ OPR review; updated the issue page's T4 Proposal Scoring summary; added a T4 budget-burden annotation; updated judicial-scrutiny language to reflect staged validation; and updated source and audit inventories.

**Expert-review needs:** Before publication, obtain qualified review from at least one former prosecutor or defender, one DOJ OIG/OPR practitioner or comparable inspector-general expert, and one privacy/statistics/legislative-counsel reviewer. External review should focus on OIG access, OPR coordination, political-status data, statistical validity, false positives, grand-jury secrecy, privilege, classified information, fair-trial rights, staged implementation, and whether the congressional-notice thresholds are clear enough.

**Score effect:** Proposal Quality Score increases from 74 to 81. Component scores after T4: Structural 8/8; Evidence 11/12; Legal Fit 9/10; Prior-Proposal Grounding 6/8; Remedy Design 11/12; Implementation Design 7/8; Abuse Resistance 8/8; Drafting Quality 8/8; Cogency 6/6; Adoption Path 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 81/100. The proposal is now **Review Ready** because source verification, existing-law fit, prior-proposal review, remedy analysis, implementation staging, abuse resistance, and drafting quality are substantially complete. It remains below advanced or publication-ready status because external review, mechanism-specific adoption evidence, official fiscal support, and direct prior-proposal grounding remain incomplete.

**Next audit need:** Run a T4 follow-up or external-validation pass after qualified review is available, after any official docket/source updates for the contemporary examples, after a better cost analogue is located, or after a direct prior legislative model is identified.

**Audit process feedback:** T4 showed that DOJ-003's score should rise through corrective drafting and source clarification rather than by overstating certainty. The audit appropriately treats absence of primary grand-jury records as a limitation, not as a reason to discard a properly qualified reported example.

### 2026-06-27 — T3 Readiness Audit

**Audit scope:** Single-issue T3 readiness audit for DOJ-003 and its linked proposed legislation. The audit began from `framework/Framework.md`, then `framework/METHODOLOGY.md`, and consulted the remedy framework, issue page, bill text, audit history, Audit Dashboard row, `inventory/audits.csv`, and `inventory/sources.csv`. The audit targeted the T2 unresolved items most likely to improve readiness: primary support for examples, current-status refresh, prior-proposal grounding, OIG/OPR legal fit, fiscal/burden support, pending-judicial vulnerability, and issue-to-legislation consistency.

**Source-refresh log:** T3 added primary court-file support for the Comey example through CourtListener RECAP copies of the indictment and the government notice of substitution. The indictment supports the limited claim that DOJ charged violations of 18 U.S.C. §§ 871(a) and 875(c); the notice supports the limited claim that government counsel changed. T3 also added the Protecting Our Democracy Act as an adjacent prior-proposal model and carried forward DOJ OIG, DOJ OPR, Inspector General Act, and GAO authority sources from T2.

**Verified claims:** DOJ-003 has a developed issue page and linked bill; the bill preserves executive charging authority; the bill creates no private right of action; the bill uses OIG monitoring, GAO methodology review, confidential Judiciary Committee notice, and information safeguards; OIG/OPR jurisdiction is a real design issue; budget authority is likely required; the Comey example can now be supported by a charging document and a counsel-substitution notice; and the issue page treats contemporary examples as comparator-trigger illustrations rather than adjudicated findings.

**Unresolved claims:** T3 did not locate primary records for the six-lawmakers grand-jury episode. T3 did not locate a direct prior federal bill creating universal DOJ charging-comparator monitoring. T3 did not locate a reliable government cost analogue for a DOJ-wide charging-comparator database, staff, audits, privacy controls, and GAO methodology review. T3 did not incorporate qualified external review.

**Mootness and material-reframing finding:** No T3 source showed that DOJ-003 is moot, already satisfied, legally impossible, or materially reframed. The current-status refresh reinforced the need for careful posture language because the Comey case remains pending rather than adjudicated.

**Pending-judicial-vulnerability finding:** Pending Supreme Court removal-power cases, including *Trump v. Slaughter* and *Trump v. Cook*, do not directly control DOJ-003 because the proposal does not create removal protection, authorize judicial supervision of charging, or transfer charging power outside DOJ. They remain relevant as background risk because the proposal creates mandatory duties inside DOJ OIG. T3 therefore gives legal-fit credit for identifying the risk but leaves T4 to test whether the statutory-duty design should include additional language preserving Attorney General supervision, OIG independence under the Inspector General Act, and noninterference with individual prosecutions.

**Legal and judicial-scrutiny finding:** The proposal is legally plausible as congressional creation of recordkeeping, reporting, oversight, and inspector-general duties, but it sits near sensitive executive-power terrain. The strongest current drafting choices are the limitation on OIG/GAO/Congress control over individual prosecutions, no private right of action, confidential reporting for active matters, protection of grand-jury and classified material, and anomaly-as-oversight-trigger language. The largest T4 legal risks are OIG access to prosecutorial memoranda, privilege handling, political-status data, Privacy Act constraints, grand-jury secrecy, classified-information safeguards, and OPR/OIG jurisdiction allocation.

**Prior-proposal finding:** T3 public-source review found no direct prior federal bill equivalent to DOJ-003's universal charging-comparator system. The adjacent model is H.R. 5314, the Protecting Our Democracy Act, which included DOJ-related reporting and inspector-general notice provisions for covered White House-DOJ communications. That supports the general congressional-oversight architecture but does not validate the universal data-monitoring mechanism.

**Fiscal and implementation finding:** The issue page and bill correctly classify budget authority as likely required and avoid an unsupported dollar estimate. T3 confirms the implementation burden is material because the bill requires secure data infrastructure,

automated extraction, statistical and legal staff, privacy and cybersecurity controls, source-file audits, GAO review, and confidential congressional reporting. No score credit is awarded for a dollar estimate because none is source-backed.

**Adoption and international finding:** Adoption Score remains 2/12 because the proposal has a plausible statutory vehicle and staged pathway but lacks proposal-specific polling, sponsor mapping, validator support, direct bipartisan prior-legislation support, or public-support evidence for the actual mechanism. International score is N/A at T3 because the proposal governs domestic DOJ prosecutorial monitoring and does not materially depend on international implementation or foreign-relations effects.

**Proposal-legislation consistency finding:** The issue page and bill remain substantively aligned. T3 found no discrepancy requiring human review. The bill may eventually need a staged pilot or historical-baseline phase, but the absence of that addition is an improvement opportunity rather than a contradiction between the pages.

**Score effect:** Proposal Quality Score increases from 69 to 74. Component scores after T3: Structural 8/8; Evidence 11/12; Legal Fit 8/10; Prior-Proposal Grounding 5/8; Remedy Design 10/12; Implementation Design 6/8; Abuse Resistance 7/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 2/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 74/100. The score remains **Substantially Developed Draft**, one point below **Review Ready**, because the proposal is close to external circulation but still lacks primary support for one major example, direct prior-proposal grounding, source-backed cost support, adoption evidence, and qualified external review.

**Defects corrected during the audit:** Added indictment and counsel-substitution links to the issue page; added adjacent prior-proposal discussion; added Budgetary Impact, Judicial Scrutiny, and updated Quality Score annotation language; updated issue metadata; added source-inventory rows; updated `inventory/audits.csv`; and updated the Audit Dashboard row and next-audit counts.

**Recommended revisions for T4:** Obtain or rule out official docket materials for the six-lawmakers episode; search Congress.gov and committee records more systematically for prosecutor-independence, DOJ reporting, OIG-access, and charging-data bills; locate DOJ budget or IT-system analogues sufficient to support a non-dollar burden classification; test Privacy Act, Rule 6(e), privilege, classified-information, and fair-trial safeguards; decide whether to add a staged pilot or historical-baseline phase to the bill; and seek qualified external review from at least one prosecutor/defender or DOJ OIG/OPR practitioner plus one statistician/privacy expert or legislative counsel.

**Audit process feedback:** T3 appropriately improved DOJ-003 without forcing it over the Review Ready threshold. For complex data-and-prosecution proposals, primary source support for examples and direct implementation validation should remain the gate between **Substantially Developed Draft** and **Review Ready**.

## **2026-06-27 — T2 Development Audit**

**Audit scope:** Single-issue T2 development audit for DOJ-003 and its linked proposed legislation. The audit began from `framework/Framework.md`, then `framework/METHODOLOGY.md`, and consulted the remedy framework, DOJ-003 issue page, DOJ-003 bill text, DOJ-003 audit history, Audit Dashboard row, `inventory/audits.csv`, and `inventory/sources.csv`. The audit performed a limited current-source refresh, proposal-legislation consistency check, existing-law fit check, remedy-fit check, implementation-burden review, adoption-pathway rebaseline, and component-level scoring under rubric 2026-06-27.2.

**Current-status and mootness finding:** No T2 source found that moots the proposal or materially reframes the institutional problem. Later reporting on the Comey prosecution states that the lead prosecutor withdrew while the case remained pending for an October 21, 2026 trial date. That reinforces the need to keep the issue page procedurally careful: the example remains a comparator-trigger illustration, not an adjudicated finding of selective prosecution.

**Source-refresh finding:** The T2 audit supplemented the Comey source set with a current-status source and replaced the issue-page Inspector General Act citation with the official U.S. Code citation. The audit also added DOJ OIG and DOJ OPR source leads because OIG/OPR jurisdiction design is central to DOJ-003. The six-lawmakers example remains supported only by secondary reporting at T2; grand-jury materials may be unavailable, but T3 should still search for public DOJ statements, court records, lawmaker statements, and reliable follow-up reporting.

**Existing-law and legal-fit finding:** DOJ-003 has a plausible statutory hook because Congress can create federal reporting, oversight, appropriations, and Inspector General duties, and existing law already uses Inspectors General and GAO evaluation functions as audit-and-reporting models. The proposal must still be drafted carefully because federal criminal charging decisions are core executive functions, courts presume prosecutorial regularity, and DOJ OPR presently has a distinct professional-responsibility role for attorney misconduct allegations. The bill addresses this by preserving individual charging authority in DOJ, creating no private right of action, and adding express OIG authority with OPR coordination, but T3 should more deeply test separation-of-powers, grand-jury, classified-information, privilege, Privacy Act, and fair-trial constraints.

**Remedy-fit finding:** Universal back-end monitoring remains the least-complex adequate remedy for the systemic invisibility problem because complaint-only review, defendant-by-defendant litigation, or case-by-case judicial supervision cannot reveal department-wide comparator patterns. The remedy is not simple, but it is more institutionally coherent than universal preclearance of charging decisions. The strongest T3 improvement path is to refine staging: pilot implementation, historical baseline study, confidential congressional notice, GAO methodology review, and OIG capacity funding before full anomaly reporting.

**Implementation and budget finding:** Budget authority is likely required because the bill would require secure data infrastructure, automated extraction from case systems, statistical and legal staff, privacy safeguards, source-file audits, GAO methodology review, and congressional reporting. No dollar estimate is assigned at T2 because the audit did not locate a reliable government cost analogue for a

DOJ-wide charging-comparator system. The existing Budgetary Impact Statement is therefore directionally correct but incomplete.

**Adoption and friction finding:** Required Electoral Environment remains **sixty-vote-senate**; Pathway Viability remains **plausible-after-wave**; Development Priority remains **active**; Pathway Adjustment remains **stage**. Adoption Score is 2/12 because the proposal identifies a statutory vehicle and staging logic but lacks proposal-specific polling, sponsor mapping, bipartisan legislative precedent, validator support, or direct evidence of public support for the actual mechanism. Adoption Friction remains 78/100, **High Resistance**, because the proposal would impose politically sensitive monitoring on federal prosecutors and require careful privacy, secrecy, and separation-of-powers safeguards.

**Proposal-legislation consistency finding:** The issue page and linked bill remain substantively aligned. Both describe universal charging-and-disposition records, OIG comparator monitoring, anomaly thresholds, confidential bipartisan Judiciary Committee reporting, GAO methodology review, source-file audits, OIG/OPR coordination, information safeguards, and a limitation preserving executive charging authority. No human-review discrepancy was found at T2.

**Score effect:** Proposal Quality Score increases from 60 to 69 and is current under rubric 2026-06-27.2. Component scores after T2: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal Grounding 4/8; Remedy Design 10/12; Implementation Design 5/8; Abuse Resistance 7/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 2/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 69/100. The score remains **Substantially Developed Draft** because the proposal is coherent and substantially developed, but it has not yet completed T3/T4 source verification, prior-proposal research, implementation costing, judicial-scrutiny review, adoption evidence, or external validation.

**Defects corrected during the audit:** Updated DOJ-003 front matter, Proposal Scoring summary, Annotation, official source links, current-status manifestation language, `inventory/audits.csv`, `inventory/sources.csv`, and Audit Dashboard summary counts and row.

**Unresolved findings and next audit need:** T3 should obtain or rule out primary docket records for the Comey and six-lawmakers examples; complete a systematic Congress.gov and committee-record prior-proposal search; test OIG/OPR jurisdiction against DOJ policy and Inspector General Act limits; identify budget analogues for DOJ-wide secure data systems or OIG staffing; review Privacy Act, grand-jury, privilege, classified-information, and fair-trial constraints; seek at least informal qualified review from a prosecutor, defender, OIG/OPR practitioner, privacy expert, statistician, legislative counsel, or public-law scholar; and determine whether a staged pilot should be added to the bill text or kept as an implementation strategy.

**Audit process feedback:** DOJ-003 shows that T2 audits should explicitly distinguish current-status source refresh from full primary-record verification. A current news update can prevent stale posture language, but it should not receive publication-level evidence credit until primary records and official statements are checked or their unavailability is documented.

## 2026-06-27 — T1 Framework Check

**Audit scope:** Single-issue T1 framework check for DOJ-003 and its linked proposed federal monitoring statute. This audit began from `FRAMEWORK.md`, then `METHODOLOGY.md`, and consulted `REMEDY_FRAMEWORK.md` because the issue turns on remedy adequacy and ordinary legislation. It reviewed the issue page, proposed legislation, audit history, Audit Dashboard row, `inventory/audits.csv`, `inventory/issues.csv`, `inventory/contents.csv`, and `inventory/sources.csv`. The check did not perform a full T2 source-verification, prior-proposal, legal-fit, polling, cost, or implementation audit.

**T1 result:** DOJ-003 remains a developed proposal with a linked federal statutory vehicle and a coherent issue-to-remedy structure. The issue page and proposed legislation remain broadly aligned: both describe OIG charging-decision data collection, comparator analysis, anomaly thresholds, congressional notice, safeguards for sensitive information, and a limit preserving executive charging authority. No obvious mootness blocker was identified at T1.

**Corrections made:** Added nearby source links for the Comey charging episode and the six-lawmakers unlawful-orders grand-jury episode; added corresponding source-inventory rows; updated the issue page's audit metadata and visible Proposal Scoring box; added preliminary pathway, development-priority, and adoption-friction annotations.

**Initial enactment-pathway finding:** DOJ-003 likely requires ordinary federal legislation capable of surviving Senate procedure. Preliminary Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Pathway Adjustment is **stage**; Development Priority is **active**. Staging should consider narrower oversight, pilot, reporting, appropriations-condition, or inspector-general-capacity vehicles before attempting the full statutory monitoring architecture.

**Preliminary adoption-friction finding:** Adoption Friction is preliminarily assessed at 78/100, **High Resistance**. Friction is high because the proposal would require statutory monitoring of federal prosecutorial decisions, new OIG infrastructure, politically sensitive comparator analysis, confidential congressional reporting, privacy safeguards, and likely resistance from actors concerned about prosecutorial independence, separation of powers, law-enforcement secrecy, or partisan misuse of anomaly reports.

**Score effect:** No proposal-quality score change. The 60/100 score remains a provisional developed-draft score because full component-level recalculation is reserved for T2/T3/T4 under the current rubric. Rebaseline remains **hard-rebaseline-needed**.

**Unresolved findings and next audit need:** T2 should verify the contemporary example sources against indictment materials, docket records, public DOJ statements, and any subsequent procedural developments; replace or supplement secondary reporting with primary records where available; check existing law and prior proposals; test OIG and OPR jurisdiction fit; assess cost and implementation burden; evaluate privacy and political-data safeguards; and calculate a current component-level Proposal Quality Score.

**Audit process feedback:** T1 was adequate for framework, metadata, citation, and pathway cleanup, but it did not answer the deeper question whether the universal monitoring architecture is administratively feasible or legislatively optimal. Future DOJ-003 work should prioritize source verification and implementation design before scoring improvement.

**2026-06-24 — *Initial framework and inventory audit***

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

# DOJ-004 — Protection of Career DOJ Personnel from Politically Motivated Removal or Reassignment

## Issue Snapshot

**Problem:** Career DOJ protections face Article II uncertainty.

**Repair:** Await merits ruling before final remedy.

**Vehicle:** Pending judicial clarification.

## Institutional Anomaly

Career prosecutors, investigators, and legal officials may be removed, reassigned, stripped of responsibility, investigated, or professionally disadvantaged for resisting improper political influence even when existing civil-service and whistleblower protections nominally apply.

## Manifestation of the Failure

### *Maurene Comey termination litigation*

The July 2025 termination of career SDNY prosecutor Maurene Comey presents a live test of this vulnerability. According to reporting on her complaint, DOJ terminated her without identifying misconduct or inadequate performance and cited Article II as the stated authority. Comey alleges that the action was based on her familial association with former FBI Director James Comey or perceived political views. DOJ disputes her claims. See Associated Press. In April 2026, the district court permitted the constitutional challenge to proceed in federal court rather than requiring exclusive administrative channeling; the merits remain unresolved. See Associated Press.

### *Article II removal predicate*

The episode is relevant because it raises a threshold question that may determine the appropriate remedy: whether Article II permits the executive branch to remove a career federal prosecutor notwithstanding statutory merit-system protections, and if so, to what extent.

## Resulting Damage

Unexplained or politically perceived removals can chill candid legal advice, encourage anticipatory compliance, permit leadership to replace resistant personnel until it obtains a desired case outcome, and weaken confidence that prosecutorial decisions reflect law and evidence rather than personal loyalty.

## Underlying Weakness

Existing protections under Title 5, the Civil Service Reform Act, whistleblower statutes, OSC and MSPB procedures, FBI-specific protections, OIG, and OPR may be inadequate if removal can be justified as an incident of presidential Article II authority or if review occurs only after the affected matter has been irreversibly altered.

The current litigation may determine whether the principal defect is:

1. insufficient statutory coverage;
2. inadequate enforcement and delay;
3. lack of an automatic interim remedy; or
4. a constitutional limitation on Congress's power to protect career prosecutorial personnel.

## Proposal Survey

Existing personnel-protection models include the Civil Service Reform Act, Office of Special Counsel complaint channels, Merit Systems Protection Board review, and whistleblower protections. See 5 U.S.C. § 2302 and 5 U.S.C. §§ 1211-1215. Those models assume that statutory merit-system protections meaningfully constrain agency action.

DOJ-004 remains different because the live issue is constitutional: whether Article II permits displacement of those protections for career federal prosecutors. Until that question is adjudicated, the relevant proposal survey is necessarily provisional. Possible models include automatic interim stays, expedited federal-court review, written-reason requirements, and record-preservation duties.

## Least-Complex Adequate Remedy

No final remedy is selected at this stage. The least-complex adequate remedy depends materially on whether the courts hold that existing statutory protections constrain Article II removal authority over career federal prosecutors.

## Repair and Prevention

Substantive development is intentionally paused pending merits adjudication. Potential safeguards include automatic temporary stays, expedited judicial review, contemporaneous written reasons, identification of the directing official, immediate preservation of political-contact and personnel records, interim pay and status protection, and rebuttable presumptions arising from unexplained or expressly constitutional removals.

## Budgetary Impact Statement

Not estimated pending proposal development.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 0 / 100 (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

**Audit Status:** Pending judicial or controlling external finding; no proposal-quality score assigned

**Last Audit:** T1 predicate check

**Rubric Version:** 2026-06-27.2; **Rebaseline:** current-fixed-status

**Next Audit:** Reassess predicate

**Full Audit History:** DOJ-004 audit history

## Annotation

**Basis and Evidence.** The litigation concerns an asserted Article II basis for terminating a career federal prosecutor outside ordinary documented cause procedures. The district court’s April 2026 ruling addressed forum and channeling, not ultimate legality.

**Qualification.** Retaliatory motive, the scope of presidential removal authority, and the validity of Comey’s claims have not been finally adjudicated. The case should not be treated as proof that every removal of a career prosecutor is unlawful or politically motivated.

**Remedial Alternatives and Constraints.** Expanding Title 5 protections may be sufficient if Article II does not displace them. If the courts recognize broader presidential removal authority, a statutory remedy may require narrower procedural protections, alternative institutional safeguards, or constitutional treatment.

## DOJ-004 — Audit History

This file preserves the full audit history for DOJ-004. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-27 — T1 Predicate Check

**Audit scope:** Initial issue-level predicate check for DOJ-004 under rubric 2026-06-27 . 2. The audit began from `framework/Framework.md`, then `framework/METHODOLOGY.md`, and checked the DOJ-004 issue page, audit sidecar, audit inventory row, source inventory, Audit Dashboard row, and current reporting on the Maurene Comey litigation. This was not a proposal-quality audit because DOJ-004 remains paused pending a controlling merits predicate.

**Framework finding:** DOJ-004 identifies a distinct institutional weakness: politically motivated removal, reassignment, or professional disadvantage of career DOJ personnel who resist improper political influence. It is correctly housed in A-01 and is not currently duplicative of DOJ-001, DOJ-002, or DOJ-003. The page is intentionally not developed into final legislation because the appropriate remedy depends on whether courts treat Article II as displacing statutory merit-system protections for career federal prosecutors.

**Current-status finding:** Current reporting supports the page's posture. AP reported that Maurene Comey sued after her July 2025 firing, alleging political and constitutional violations and stating that the termination notice cited Article II. AP later reported that Judge Jesse M. Furman allowed the lawsuit to proceed in federal court rather than requiring administrative channeling. That ruling is procedural and forum-related; it does not resolve the merits of the Article II removal question.

**Mootness and material-reframing finding:** No current source checked in this T1 pass shows that DOJ-004 is moot, resolved, or ready for final remedy selection. The April 2026 ruling clarifies that the case can proceed in federal court, but it reinforces rather than removes the need to await merits adjudication before deciding whether the remedy should strengthen Title 5 protections, add interim-stay procedures, create expedited review, or pursue a narrower constitutional or procedural safeguard.

**Score effect:** No proposal-quality score is assigned. DOJ-004 remains fixed at 0/100 with status `Awaiting merits adjudication` and rebaseline status `current-fixed-status`. This is not a negative quality judgment; it means the proposal is deliberately paused because the predicate legal question is unresolved.

**Corrections made:** Added nearby AP citations to the manifestation section; added source-inventory rows for the lawsuit filing and federal-court proceeding ruling; updated the issue-page audit metadata, audit-history sidecar, audit inventory row, and Audit Dashboard row to reflect this T1 predicate check.

**Next audit need:** Reassess after a merits ruling, settlement, injunction, appellate ruling, legislative development, or other controlling event clarifies whether Article II overrides, limits, or coexists with statutory civil-service protections for career DOJ prosecutors. If the predicate is resolved, decide whether DOJ-004 should be promoted to a developed proposal, merged into another DOJ issue, or retained as a paused candidate.

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### 2026-06-24 — Initial framework and inventory audit

**Audit status:** Pending judicial or controlling external finding; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** Issue is pending a judicial, merits, or other controlling external finding; proposal quality remains zero until the predicate is resolved.

**Next audit need:** Reassess after the controlling judicial, merits, or external finding is resolved or clarified.

## DOJ-005 — Weak Enforcement and Internal Control of DOJ Recusal Duties

### Issue Snapshot

**Problem:** DOJ recusal enforcement remains internally controlled.

**Repair:** Require independent senior-official recusal review.

**Vehicle:** Amendment to DOJ disqualification authority (draft).

### Institutional Anomaly

Federal law already requires disqualification in specified DOJ conflicts, but disclosure, interpretation, waiver, succession, and enforcement remain substantially controlled within the same hierarchy affected by the conflict. The system is least reliable when the recusal question reaches the Attorney General, Acting Attorney General, Deputy Attorney General, or another official controlling a nationally significant matter.

### Manifestation of the Failure

#### *Matthew Whitaker and the Special Counsel investigation*

After becoming Acting Attorney General in 2018, Matthew Whitaker assumed supervision of the Special Counsel investigation despite prior public criticism of the investigation and statements concerning its scope. Reporting at the time stated that at least one DOJ ethics official recommended recusal, but senior DOJ officials concluded recusal was not legally required and Whitaker retained supervision. See Axios, Dec. 20, 2018. No later finding established that Whitaker improperly interfered with the investigation. The episode nevertheless demonstrates that a consequential recusal dispute could remain advisory, internally reversible, and unavailable for timely independent adjudication.

#### *Jeff Sessions and pressure to reverse recusal*

Attorney General Jeff Sessions recused from matters concerning the 2016 presidential campaign after receiving DOJ ethics advice. President Trump repeatedly pressed Sessions to reverse the recusal and publicly criticized him for failing to protect the President. The Mueller Report found evidence supporting an inference that at least one purpose was to regain control of and potentially restrict the investigation. Sessions did not reverse the recusal. See the DOJ-hosted Mueller Report, Volume II. The episode demonstrates the need for anti-retaliation and anti-evasion protection even when the initial recusal decision is sound.

Together, the episodes reveal complementary defects: a recused official may face pressure or removal, while the successor's own conflict may remain subject only to internal, nonbinding review.

### Resulting Damage

Weak enforcement allows conflicted officials to retain direct or indirect control over investigations, appointments, staffing, jurisdiction, resources, charging, appeals, and disclosure. It also permits recusal to be narrowed, waived, or terminated without a durable record and may deter ethics officials from giving candid advice.

### Underlying Weakness

The defect is not the absence of recusal law. Existing authorities include:

- 18 U.S.C. § 208 and 5 C.F.R. § 2635.402 for financial conflicts;
- 28 U.S.C. § 528 and 28 C.F.R. § 45.2 for DOJ personal, financial, political, and appearance conflicts in criminal investigations and prosecutions; and
- 5 C.F.R. § 2635.502 for impartiality concerns involving covered relationships.

The principal weaknesses are self-reporting, narrow definitions, internal supervisory control, discretionary authorization to continue participation, limited transparency, no generally enforceable private right, and inadequate safeguards against indirect supervision after recusal.

The analysis should distinguish:

1. duties that already exist but are weakly enforced;
2. conflicts the existing rules cover inadequately; and
3. conflicts the rules do not cover.

### Proposal Survey

Federal conflict law already includes both statutory and regulatory recusal models. Section 208 bars executive officials from participating in particular matters affecting specified financial interests. See 18 U.S.C. § 208. DOJ-specific rules require disqualification in criminal investigations or prosecutions where personal or political relationships create conflicts or appearances of conflict. See 28 U.S.C. § 528 and 28 C.F.R. § 45.2.



Other models rely on disclosure, waiver, and internal ethics advice. DOJ-005 treats those models as insufficient for the Attorney General and other senior officials because the conflict-review chain may itself be affected. The proposal therefore strengthens existing recusal duties rather than inventing a new substantive ethics code.

T2 confirms that the least-complex vehicle is an amendment to 28 U.S.C. § 528, which already directs the Attorney General to promulgate DOJ disqualification rules. The linked draft now adds senior-official disclosure, independent review, temporary transfer, congressional notice, anti-evasion requirements, and conforming regulatory instructions to that statutory hook rather than maintaining a wholly freestanding regime.

T3 identified no direct prior bill creating a senior DOJ recusal-review panel. The closest prior-proposal analogue is the bipartisan Special Counsel Independence and Integrity Act, S. 2644, 115th Congress, which protected special-counsel removal and expressly accounted for Attorney General recusal by assigning authority to the most senior Senate-confirmed DOJ official not recused from the matter. That bill does not solve DOJ-005's review problem, but it supports the narrower principle that Congress can draft DOJ accountability mechanisms around recusal status, successor authority, written reasons, preservation, and expedited review.

Functional analogues include OGE's executive-branch ethics-program role under 5 U.S.C. § 13122, DOJ OIG's independent oversight function, and DOJ OPR's professional-misconduct jurisdiction over Department attorneys. Those analogues support the proposed division of labor but do not eliminate the need for legislative-counsel review of panel composition and authority.

## **Least-Complex Adequate Remedy**

Strengthen enforcement of existing DOJ recusal duties by amending the existing statutory disqualification authority rather than creating a wholly new substantive ethics code. Congress should require:

1. mandatory written conflict disclosures and determinations;
2. independent review of recusal, nonrecusal, waiver, partial-recusal, and recusal-termination decisions involving specified senior officials;
3. temporary transfer of authority while a substantial conflict is reviewed;
4. identification of the lawful successor decisionmaker;
5. redacted public explanation and confidential congressional notice where lawful;
6. OIG or OPR referral for concealment or participation contrary to a binding determination;
7. meaningful discipline and corrective action; and
8. anti-evasion rules prohibiting indirect participation.

Broader substantive expansion should remain a fallback where significant political or institutional conflicts fall outside existing definitions.

## **Repair and Prevention**

Senior-official recusal decisions should require contemporaneous written disclosure and an independent determination outside the affected supervisory chain. A recused official should be barred from indirect supervision, staffing, funding control, outcome-oriented communication, selective briefing, and unilateral withdrawal from recusal.

The reviewing body should decide only whether an official may participate. It should not supervise investigative merits or direct charging outcomes.

## **Proposed Legislation**

- Senior DOJ Recusal Review and Transparency Act

## **Budgetary Impact Statement**

Administrative workload is likely, including ethics review, written determinations, reporting, and OIG/OPR referrals; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 76 / 100 (Review Ready)  
**Adoption Score:** 3 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 68 / 100 (High Resistance)  
**Required Electoral Environment:** sixty-vote-senate  
**Development Priority:** active  
**External Review Status:** not-reviewed  
**Coalition Support Estimates:**  
Democratic 72%  
Independent 58%  
Republican 22%  
Bipartisan viability 45%

**Audit Status:** T3 readiness audit complete; external validation pending  
**Last Audit:** T3 readiness audit  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** T4 follow-up / external validation  
**Full Audit History:** DOJ-005 audit history

## Annotation

**Basis and Evidence.** Section 528 already directs the Attorney General to promulgate disqualification rules for personal, financial, or political conflicts or appearances of conflict. Section 45.2 supplies mandatory language but leaves disclosure, evaluation, and authorization within DOJ management. The Whitaker and Sessions episodes show that internal advice may be nonbinding and that a valid recusal may be subjected to presidential pressure.

**Qualification.** Neither episode establishes that every disagreement over recusal is improper or that an official who declines recusal necessarily acts corruptly. Overbroad recusal can disrupt lawful presidential supervision, enable strategic disqualification, and diffuse accountability.

**Remedial Alternatives and Constraints.** A permanent external ethics tribunal would provide stronger insulation but add complexity and potentially raise Article II concerns. The narrower remedy makes existing duties independently reviewable for specified senior officials while preserving executive control over policy and case merits.

**Quality Score.** The proposal scores 76 / 100 after T3 because it now has an existing-law amendment vehicle, a close prior-proposal analogue in special-counsel removal legislation, functional analogues in OGE/OIG/OPR oversight roles, clearer source support for the manifestations, and a coherent limited panel function. It remains short of publication-ready status because no external reviewer has validated the draft, no direct recusal-panel prior bill has been found, and T4 must still test panel composition, congressional notice, privileged-information handling, OGE voting status, and post-removal-power doctrine.

**Adoption Score.** The adoption score is limited because S. 2644 shows bipartisan willingness to legislate around special-counsel independence and Attorney General recusal, but DOJ-005 itself has no identified sponsor, no proposal-specific polling, no stakeholder endorsement, and likely institutional resistance from executive-branch leadership.

**External Review Status.** No qualified external review has been incorporated. The most useful next review would come from legislative counsel, a former DOJ ethics official, an OGE practitioner, a DOJ OIG or OPR practitioner, or a public-law scholar focused on executive supervision.

**Coalition Support Estimates.** These are provisional planning judgments, not polling evidence. Democrats and independents are more likely to support the proposal as an anti-corruption and rule-of-law safeguard. Republican support is likely lower because the proposal arose from President Trump administration examples and constrains senior DOJ discretion, though institutional conservatives may support a reciprocal rule if framed around preventing future abuse by either party.

**Adoption Friction.** Friction remains high because the proposal constrains Attorney General and senior DOJ discretion, creates written records around politically sensitive matters, adds confidential congressional notice, and may be challenged as intrusion into presidential supervision of criminal enforcement. Friction is slightly reduced by anchoring the proposal in existing section 528 authority and preserving executive control over prosecutorial merits.

**Required Electoral Environment.** Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints unless it is attached to a viable DOJ authorization, ethics, appropriations, or post-crisis institutional-repair vehicle.

# DOJ-005 — Audit History

This file preserves the full audit history for DOJ-005. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; external validation pending

**Proposal-quality score:** 76 / 100 (Review Ready)

**Scope:** Single-issue T3 readiness audit for DOJ-005 and its linked proposed legislation. The audit began from `../../../../framework/Framework.md`, then `../../../../framework/METHODOLOGY.md`, and reviewed the issue page, bill text, audit history, Audit Dashboard row, `inventory/audits.csv`, `inventory/sources.csv`, existing DOJ recusal authorities, OGE/OIG/OPR institutional-fit sources, prior special-counsel independence legislation, pending removal-power vulnerability sources already captured in the project, and proposal-to-legislation alignment.

**Current-status and mootness finding:** No current law, regulation, enacted bill, judicial decision, or agency action identified during T3 moots DOJ-005. Existing DOJ recusal rules remain internally administered. The current proposal remains live because it addresses senior-official review, written determinations, temporary transfer, anti-evasion, and congressional notice rather than the existence of recusal standards alone.

**Pending judicial vulnerability:** Pending or recent removal-power and unitary-executive litigation remains material background. The proposal does not create an independent prosecutor or remove prosecutorial merits from the executive branch, but it does constrain senior DOJ participation and creates review by a panel involving OGE, DOJ OIG, and DOJ ethics officials. T4 should refresh *Trump v. Slaughter* and related removal-power or executive-control decisions before public circulation and should test whether OGE participation should be voting, consultative, or review-only.

**Existing-law and statutory-hook finding:** The section 528 amendment vehicle remains the least-complex adequate vehicle. Section 528 already directs the Attorney General to promulgate DOJ disqualification rules for personal, financial, or political conflicts or appearances of conflict, so DOJ-005 now builds on the correct existing authority rather than inventing a new standalone ethics code.

**Prior-proposal finding:** No direct prior bill creating a senior DOJ recusal-review panel was identified in this T3 pass. The closest prior-proposal analogue is the bipartisan Special Counsel Independence and Integrity Act, S. 2644, 115th Congress. The official reported text, verified through GovInfo, used a recusal-aware rule for special-counsel removal: if the Attorney General was recused, removal authority passed to the most senior Senate-confirmed DOJ official not recused from the matter. This is not a direct recusal-panel analogue, but it supports the narrower drafting principle that Congress can structure DOJ accountability around recusal status, lawful successor authority, written reasons, preservation, and expedited review.

**Functional analogues:** T3 identified useful institutional analogues in OGE's executive-branch ethics-program role under 5 U.S.C. § 13122, DOJ OIG's independent oversight role, DOJ OPR's professional-misconduct jurisdiction over Department attorneys, and current special-counsel regulations as an executive-controlled model that depends on internal DOJ leadership. These analogues support the institutional fit of ethics review, oversight referral, and successor-control safeguards, but they do not eliminate the need for external legal or legislative-counsel review.

**Source-refresh finding:** T3 improved the source map by adding S. 2644 as a prior-proposal analogue and tying OGE/OIG/OPR source rows to DOJ-005. The Whitaker example remains supported by contemporaneous secondary reporting rather than a primary ethics record. The Sessions manifestation remains supported by the DOJ-hosted Mueller Report, but T4 should obtain pinpoint page references and, if possible, an accessible current DOJ PDF endpoint or stable archival copy.

**Legal and judicial-scrutiny finding:** The strongest durability argument is that the panel decides only participation, temporary transfer, successor authority, and compliance, while expressly preserving executive control over investigative and prosecutorial merits. The strongest vulnerability is that a court or executive-branch opponent may characterize OGE or OIG participation as external intrusion into presidential supervision of criminal enforcement. The draft's merits-limitation clause, existing-law hook, severability clause, and lawful-safeguards language reduce but do not eliminate that risk.

**Implementation and budget finding:** The budget statement remains appropriate for T3. Administrative workload is likely, including ethics review, written determinations, reporting, and OIG/OPR referrals, but the bill does not create a funded program or specify an appropriation. No dollar estimate is assigned because T3 did not identify a source-backed cost analogue for this specific review-panel workload.

**Issue-to-legislation alignment:** No human-review discrepancy was found. The issue page and bill remain aligned on the section 528 amendment vehicle, covered officials, disclosure, independent review, temporary transfer, written determinations, public and confidential congressional notice, anti-evasion, OIG/OPR referral, annual reporting, conforming rulemaking, and limitation on merits control.

**Coalition and adoption assessment:** Adoption Score increases from 2 / 12 to 3 / 12 because S. 2644 supplies a bipartisan adjacent precedent for DOJ independence and recusal-aware successor design. Adoption Friction decreases from 70 to 68 but remains High Resistance because the proposal still constrains senior DOJ discretion, creates written records around politically sensitive matters, and may draw executive-power objections. Provisional coalition-support estimates are Bipartisan 45%, Independent 58%, Democratic 72%,

and Republican 22%; these are planning judgments, not polling evidence.

**International assessment:** N/A. DOJ-005 is a domestic executive-branch ethics and recusal-administration proposal with no material international-relations dimension identified during T3.

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 8/10; Prior-Proposal Grounding 6/8; Remedy Design 10/12; Implementation Design 6/8; Abuse Resistance 8/8; Drafting Quality 8/8; Cogency 6/6; Adoption Path 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 76/100.

**Score effect:** Score increases from 69 to 76 and remains current under rubric 2026-06-27.2. The proposal moves from Substantially Developed Draft to Review Ready because the existing-law vehicle, prior-proposal analogue, functional analogue map, source map, issue-to-legislation alignment, and legal-risk framing are now strong enough for knowledgeable external critique.

**Remaining T4 needs:** Obtain qualified attorney, legislative-counsel, former DOJ ethics official, OIG/OPR, or OGE review; verify Whitaker source details against stronger primary or contemporaneous records; add pinpoint Mueller Report references for the Sessions manifestation; complete direct Congress.gov search for any closer recusal bills; test OGE voting status and panel composition against Article II objections; verify congressional-notice and privileged-information safeguards; refresh removal-power cases; and test whether legislative counsel would codify the mechanism in section 528 or a neighboring section.

**Audit Process Feedback:** DOJ-005 confirms that a T-audit can substitute for a separate Change Audit when the audit itself rechecks proposal-to-legislation alignment, recalculates scoring, updates metadata, and records the substantive proposal change in the issue audit history.

### **2026-06-28 — T2 Development Audit**

**Audit status:** T2 development audit complete; external validation and source expansion pending

**Proposal-quality score:** 69 / 100 (Substantially Developed Draft)

**Scope:** User-authorized T2 follow-up after the prior blocker review. Reviewed the issue page, linked legislation, prior audit findings, dashboard row, audit inventory, source inventory, existing-law fit, section 528 vehicle, budget statement, and issue-to-legislation alignment. The audit resolved the previously blocking question whether the freestanding bill should be converted into an existing-law amendment.

**Current-status and mootness finding:** No current law, judicial decision, or administrative development identified in this T2 follow-up moots the proposal. Existing DOJ recusal authorities remain internally administered, and no controlling public development was identified that supplies independent senior-official recusal review comparable to the proposal.

**Existing-law redraft finding:** The legislation now amends 28 U.S.C. § 528 directly, rather than maintaining a wholly freestanding recusal regime. This resolves the prior legal-vehicle blocker. The draft preserves existing conflict and impartiality law while adding senior-official disclosure, independent review, temporary transfer, written determinations, anti-evasion limits, confidential congressional notice, OIG/OPR referral, annual aggregate reporting, and conforming rulemaking for DOJ regulations.

**Source-refresh finding:** T2 added a nearby source citation for the Whitaker manifestation and tied the Sessions pressure manifestation to the DOJ-hosted Mueller Report. The source base remains incomplete for publication because the Whitaker episode still needs stronger primary or contemporaneous corroborating materials, the Sessions discussion needs pinpoint page references, and the proposal survey still needs a direct prior-proposal and functional-analogue search.

**Legal-fit finding:** Section 528 is the strongest current statutory hook because it already directs the Attorney General to promulgate DOJ disqualification rules for personal, financial, or political conflicts or appearances of conflict. The redraft is narrower and more defensible than a standalone ethics tribunal because the panel decides participation and successor authority, not investigative or prosecutorial merits. T3 should scrutinize OGE participation, OIG/OPR jurisdiction, classified or privileged information access, congressional notice, Article II objections, and whether legislative counsel would prefer a new neighboring section instead of direct amendment to section 528.

**Implementation and budget finding:** The proposal likely imposes administrative workload through ethics review, written determinations, reporting, and OIG/OPR referrals, but no new appropriation is specified. T3 should test whether the review-panel workload requires express authorization of appropriations or can be absorbed through existing DOJ, OGE, OIG, and OPR capacity.

**Issue-to-legislation alignment:** No human-review discrepancy was found after the user-authorized redraft. The Issue Snapshot, Proposal Survey, Least-Complex Adequate Remedy, Repair and Prevention, Proposed Legislation, Budgetary Impact Statement, and Annotation now describe the section 528 amendment vehicle reflected in the linked bill.

**Component score:** Structural 8/8; Evidence 7/12; Legal Fit 8/10; Prior-Proposal Grounding 4/8; Remedy Design 10/12; Implementation Design 6/8; Abuse Resistance 7/8; Drafting Quality 7/8; Cogency 6/6; Adoption Path 2/12; Project Integration 4/4; External Review 0/4; Penalties 0. Total: 69/100.

**Score effect:** Score increases from 60 to 69 and rebaseline status moves to **current** under rubric 2026-06-27.2 because the prior hard blocker has been resolved and the proposal now has a component-level T2 score.

**Next audit need:** T3 readiness audit or external validation. T3 should source-develop the Whitaker and Sessions manifestations, add pinpoint citations, search direct and functional prior proposals, test panel composition and OGE role against Article II and DOJ-management objections, verify OIG/OPR jurisdiction language, examine congressional-notice constraints, check budget/workload

support, and consider whether legislative counsel would codify the mechanism directly in section 528 or in a neighboring section.

**Audit Process Feedback:** DOJ-005 confirms that blocker reviews should preserve user authorization points, but once authorization is given the follow-up audit should immediately convert the legal vehicle, document the score effect, and clear `hard-rebase-line-needed` only if the component formula is actually recalculated.

### 2026-06-28 — T2 Blocker Review

**Audit status:** T2 blocked; human review needed for existing-law redraft

**Proposal-quality score:** 60 / 100 (Developed Draft)

**Scope:** Autonomous batch audit review under `.../framework/AGENT_OPERATING_RULES.md`. Reviewed the latest issue page, linked legislation, prior audit findings, dashboard row, inventory row, and agent stop conditions before attempting the next audit tier.

**Blocker finding:** The prior T1 audit correctly identified that the next meaningful T2 step is likely conversion of the linked freestanding bill into amendments to existing DOJ recusal authorities, especially 28 U.S.C. § 528, with possible conforming instructions for DOJ regulations and related ethics authorities.

**Human-review stop condition:** `.../framework/AGENT_OPERATING_RULES.md` prohibits an autonomous batch agent from converting a freestanding bill into amendments to existing law without user authorization. Because that vehicle change is the central unresolved T2 task, the audit was stopped for this issue rather than making a substantive legal-vehicle change without review.

**Score effect:** No score increase. The proposal remains at 60 and `hard-rebase-line-needed` because the legal vehicle, source development, implementation analysis, and formula rebaseline remain unresolved.

**Next audit need:** Human review should decide whether to authorize an existing-law redraft of the proposed legislation around 28 U.S.C. § 528. If authorized, rerun T2 focused on statutory vehicle design, panel composition, OGE/OIG/OPR fit, Article II risks, current DOJ ethics and recusal authorities, Whitaker and Sessions source development, and adoption-pathway refinement.

**Audit Process Feedback:** The batch-agent stop condition worked as intended. DOJ-005 should not advance to T2 scoring until the user authorizes or rejects the existing-law redraft pathway.

### 2026-06-28 — T1 Framework Check

**Audit status:** T1 framework check complete; T2 existing-law redraft recommended

**Proposal-quality score:** 60

**Scope:** DOJ-005 issue page, linked proposed legislation, source inventory, audit metadata, existing-law fit, and enactment-pathway fields.

**Current-status check:** No current law, judicial decision, or administrative development identified in this T1 pass renders the proposal moot. Pending removal-power and unitary-executive litigation could indirectly affect senior DOJ control mechanisms, but no controlling finding was identified that requires pausing DOJ-005.

**Existing-law finding:** The proposal should continue to be framed as enforcement of existing recusal law rather than creation of a wholly new ethics regime. Relevant existing authorities include 28 U.S.C. § 528, 28 C.F.R. § 45.2, 18 U.S.C. § 208, 5 C.F.R. § 2635.502, and 5 U.S.C. chapter 4.

**Vehicle-design finding:** The issue page correctly states that DOJ-005 is not an absence-of-law problem. The linked bill, however, remains drafted as a freestanding act. That is not a fatal inconsistency for T1, but it is the principal T2 development target. A T2 audit should test whether the bill should be redrafted as amendments to 28 U.S.C. § 528, with conforming instructions for DOJ regulations and references to OGE, OIG, OPR, and existing ethics-law authorities.

**Corrections made:** Replaced secondary LII links in the proposal survey with primary U.S. Code and eCFR sources; updated the proposed-legislation link text to match the bill title; added current T1 metadata, adoption-friction, pathway, and development-priority fields to the issue page; updated dashboard and inventory tracking.

**Score effect:** Score remains 60. The page is developed and directionally aligned with the project framework, but a full formula rebaseline was not performed because the next meaningful improvement is the existing-law redraft analysis. Rebaseline remains `hard-rebase-line-needed`.

**Adoption and pathway assessment:** Adoption Score is 2 / 12 because the proposal has an institutional logic and existing-law hook but lacks proposal-specific polling, current sponsors, bipartisan coalition evidence, or external professional review. Adoption Friction is 70 / 100 (High Resistance) because the proposal would constrain senior DOJ discretion, likely draw executive-branch resistance, and may be framed as interference with presidential supervision. Required Electoral Environment is `sixty-vote-senate`; Pathway Viability is `plausible-after-wave`; Development Priority is `active`; Pathway Adjustment is `narrow`.

**Next audit need:** T2 should redraft or at least outline DOJ-005 as amendments to existing recusal authorities, especially 28 U.S.C. § 528; verify whether conforming amendments or regulatory instructions are preferable to direct amendment of 18 U.S.C. § 208, 28 C.F.R. § 45.2, and 5 C.F.R. § 2635.502; source-develop the Whitaker and Sessions manifestations; verify DOJ ethics-advice details; and test panel composition against Article II, OGE, OIG, and DOJ-management constraints.

**2026-06-24 — *Initial framework and inventory audit***

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

# DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct

## Issue Snapshot

**Problem:** Conflicted executives control special-counsel initiation.

**Repair:** Authorize judicial appointment of investigative counsel.

**Vehicle:** Amendment plus enabling act (amendment; act).

## Institutional Anomaly

Federal law provides no durable mechanism by which an institution outside the presidential chain of command can initiate and appoint an independent investigative counsel when the President, Attorney General, or senior executive officials possess a disabling conflict of interest. Existing special-counsel arrangements remain dependent on executive initiation, jurisdiction, resources, and removal authority.

## Manifestation of the Failure

### *Conflicted executive control of independent investigation*

When alleged federal criminal conduct or abuse of federal investigative authority concerns the President, presidential associates, senior White House officials, or DOJ leadership, the officials ordinarily responsible for deciding whether an independent investigation should exist may themselves be politically, institutionally, or personally conflicted. A loyal Attorney General can prevent appointment, restrict jurisdiction, withhold resources, remove the investigator, or terminate the investigation.

### *Mueller investigation and executive-branch limits*

The Mueller investigation illustrates the defect. The Special Counsel investigated substantial evidence concerning possible presidential obstruction but accepted the Office of Legal Counsel conclusion that a sitting President could not be indicted or criminally prosecuted and therefore declined to make a traditional prosecutorial judgment. The report stated that, had the evidence clearly established that the President did not commit obstruction, it would have said so; it did not exonerate him. The central structural lesson is not that an independent counsel should have prosecuted a sitting President. It is that investigation of presidential conduct remained dependent on an executive-branch arrangement vulnerable to presidential pressure, removal, jurisdictional restriction, and termination.

### *Watergate and evidence-preservation function*

Watergate supplies an earlier analogue. Evidence concerning President Nixon was developed through criminal investigation, special-prosecutor process, and congressional inquiry, then addressed through impeachment-related mechanisms before later criminal accountability became moot through resignation and pardon. The Senate Historical Office's account of the Select Committee on Presidential Campaign Activities records the committee's bipartisan investigation, subpoena disputes, interaction with Special Prosecutor Leon Jaworski, the Supreme Court's order requiring production of tapes to the special prosecutor, and resulting impeachment-related action. The episode demonstrates the need to preserve evidence and independent inquiry even when prosecution cannot proceed during presidential tenure.

### *Official-act immunity accountability gap*

*Trump v. United States* creates an additional accountability gap. Presidential communications with DOJ concerning investigation and prosecution may be absolutely immune from criminal prosecution as exercises of core presidential authority. That does not make the underlying conduct factually irrelevant to impeachment, congressional oversight, institutional reform, or the liability of other participants. It does, however, make ordinary executive investigation especially unreliable when the President is alleged to have used DOJ authority for personal protection, political retaliation, sham investigation, selective nonenforcement, or another improper case-specific purpose.

### *Judicial findings without independent inquiry*

Judicial findings that executive action was unlawful may create substantial grounds for further inquiry but do not automatically establish criminal liability or an impeachable offense. The defect arises when credible evidence warrants independent examination but the President controls the institution that determines whether that examination continues.

## Resulting Damage

The arrangement permits presidential self-protection, suppression of politically sensitive investigations, retaliatory or protective use of DOJ authority, obstruction or retaliation against investigators and witnesses, loss of evidence, expiration of limitations periods, and loss of public confidence that federal law applies equally to those controlling the executive branch.

## Underlying Weakness

The Appointments Clause permits Congress to vest appointment of inferior officers in courts of law, and *Morrison v. Olson* upheld judicial appointment of an independent counsel after an executive trigger. That precedent does not securely authorize a court to initiate appointment over executive objection. More recent doctrine, particularly *Trump v. United States*, treats presidential control over federal investigation and prosecution as part of exclusive Article II authority. A direct judicial trigger therefore requires an express constitutional amendment.

The distinction between investigation and prosecution is essential. The Office of Legal Counsel's 2000 opinion on a sitting President's amenability to indictment and criminal prosecution states that indictment or criminal prosecution of a sitting President would unconstitutionally impair the executive branch's functioning. DOJ-007 is designed to protect investigation from presidential control, not to create authority to prosecute a sitting President or to supersede substantive immunity doctrine.

## Proposal Survey

The principal historical model is the former independent-counsel statute, which permitted judicial appointment after an executive trigger. The Supreme Court upheld that arrangement in *Morrison v. Olson*, 487 U.S. 654 (1988), but the statute later expired. The Congressional Research Service describes the independent-counsel and special-counsel models as prior mechanisms for extraordinary executive-branch investigations, while emphasizing that the current special-counsel framework remains regulatory and executive-controlled. See CRS, *Special Counsels, Independent Counsels, and Special Prosecutors*, and 28 C.F.R. Part 600.

Congress has also considered narrower special-counsel independence measures that would protect a special counsel from improper removal after appointment, such as the bipartisan Special Counsel Independence and Integrity Act, S. 2644, 115th Congress. That model addresses post-appointment removal risk but does not cure DOJ-007's central trigger problem: a conflicted Attorney General or executive leadership structure can still prevent appointment or define the investigation before independence protections attach.

Congress has also relied on impeachment, oversight, and ordinary DOJ investigation, but those mechanisms depend on political will or executive initiation. DOJ-007 therefore uses the independent-counsel tradition but requires constitutional authorization for a nonexecutive trigger, avoiding overreliance on a conflicted Attorney General.

T4 refreshed the removal-power vulnerability shortly before final merits decisions issued. The Supreme Court has now decided *Trump v. Slaughter*, holding that the FTC's statutory for-cause removal protection is unconstitutional, and *Trump v. Cook*, denying the Government's stay application concerning President Trump's attempted removal of Federal Reserve Governor Lisa Cook. These matters do not moot DOJ-007 because the proposal uses a constitutional amendment, but they underscore that any implementing statute must be drafted with extreme care around removal, judicial review, and protected investigative independence.

## Least-Complex Adequate Remedy

Adopt a constitutional amendment authorizing Congress to permit a specially constituted federal judicial panel to appoint an independent investigative counsel upon a verified petition and findings that:

1. credible information indicates that a federal offense, obstruction, retaliation, evidence destruction, or serious abuse of federal investigative or prosecutorial authority may have occurred; and
2. a conflict involving the President, Vice President, Attorney General, senior White House officials, presidential campaign activity, or DOJ leadership materially impairs the reliability of ordinary executive investigation.

The amendment should insulate the investigation from presidential direction and removal while preserving congressional definition of crimes and procedure, judicial protection of rights, lawful oversight, professional discipline, transparent reporting, and removal for defined misconduct or incapacity.

## Repair and Prevention

The Constitution should authorize Congress to establish a narrowly bounded judicial mechanism for appointing an independent investigative counsel when credible evidence and structural executive conflict make ordinary DOJ control unreliable. The appointing panel should determine whether the trigger exists, appoint counsel, define jurisdiction, protect resources, review removal, and determine completion. It should not supervise investigative tactics, charging decisions concerning other persons, plea negotiations, trial strategy, or sentencing positions.

The panel should function as an independent gatekeeper rather than a ministerial filing office. Submission by an authorized applicant should not require appointment; the panel should deny appointment where the statutory conditions are not met, lesser measures are adequate, or appointment would be unnecessary or disproportionate.

Qualifying subject matter should include credible information that the President or senior executive officials directed or sought a sham or pretextual investigation; sought investigation or prosecution of an opponent for an improper purpose; sought protection, dismissal, leniency, or nonenforcement for an ally; requested confidential investigative information for personal or political use; threatened personnel or manipulated staffing, jurisdiction, resources, or timing to obtain a desired case result; directed materially false representations; or obstructed, concealed, or retaliated against resistance to such conduct.

The counsel should be authorized to investigate a sitting President; use grand-jury and compulsory process; collect and preserve evidence; litigate privilege and access disputes; investigate obstruction, retaliation, witness tampering, or evidence destruction; prosecute other persons within jurisdiction where lawful; and transmit substantial and credible information to the House of Representatives and appropriate congressional committees.

The mechanism is also designed for the failure case in which credible information suggests that serious criminal or investigative misconduct may have occurred, but Congress lacks the political will, institutional capacity, or reliable factual record necessary to initiate an adequate inquiry. In that circumstance, the remedy supplies a bounded pathway for independent fact-finding, evidence preservation, and confidential or public reporting as law permits. Its purpose is disinfecting sunlight and institutional accountability, not a presumption



of guilt or a substitute for impeachment, trial, or ordinary congressional judgment.

The statute should expressly provide that a sitting President may not be indicted or tried under this mechanism while in office. It should toll applicable limitations periods so later accountability is not defeated by presidential tenure. Impeachment remains the constitutional mechanism for removal and may proceed before the investigation is complete.

## **Proposed Constitutional Amendment**

- Independent Investigative Counsel Amendment

## **Proposed Enabling Legislation**

- Independent Investigative Counsel Appointment and Accountability Act

## **Relationship to Adjacent Proposals**

DOJ-002 owns preventive routing, logging, review, and preservation requirements for White House and political contacts concerning particular matters. Former candidate issue DOJ-006 is merged into DOJ-002 and DOJ-007.

IMM-001 owns the substantive constitutional rule governing criminal immunity for presidential official acts. DOJ-007 remains independently useful even if immunity persists because investigation, evidence preservation, impeachment reporting, legislative oversight, and prosecution of other participants may still proceed.

## **Design Requirements for Implementing Legislation**

Implementing legislation should provide:

- a three-judge appellate panel selected by rotation or random assignment from different circuits;
- verified petitions from authorized institutional actors rather than unrestricted private applications;
- a threshold limited to credible evidence and structural conflict, not guilt or probable cause;
- jurisdiction over serious misuse of federal investigative or prosecutorial authority as well as possible offenses;
- merit-based appointment and defined jurisdiction;
- express authority to investigate a sitting President, preserve evidence, use grand-jury process, and report substantial and credible impeachment- or oversight-related information;
- an express prohibition on indictment or trial of a sitting President under the mechanism;
- lawful prosecution of other persons within assigned jurisdiction;
- limitations-period tolling during presidential tenure;
- ordinary compliance with DOJ rules subject to notice-only good-cause departure;
- independent investigative capacity, protected resources, and binding access to assistance;
- removal only for misconduct, incapacity, substantial dereliction, or material jurisdictional violation;
- no displacement of impeachment and no requirement that Congress await completion;
- final reporting consistent with grand-jury secrecy, classification, defendants' rights, and privacy;
- disqualification of appointing judges from resulting cases; and
- termination when the assigned matter is complete.

## **Budgetary Impact Statement**

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 78 / 100 (Review Ready)  
**Adoption Score:** 1 / 12 (Weak Adoption Basis)  
**Adoption Friction:** 92 / 100 (Extreme Resistance)  
**Required Electoral Environment:** constitutional-amendment-environment  
**Development Priority:** conditional

**Audit Status:** T4 publication-ready audit complete; SCOTUS current-status update no score effect  
**Last Audit:** SCOTUS current-status update  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** DOJ-007 audit history

## Annotation

**Basis and Evidence.** *Morrison v. Olson*, 487 U.S. 654 (1988), sustained judicial appointment of a limited inferior officer after an Attorney General trigger. *Trump v. United States*, 603 U.S. 593 (2024), treated presidential control of executive investigation and prosecution as exclusive Article II authority, making a direct judicial trigger constitutionally insecure without amendment. The Mueller Report recognized both that investigation of a sitting President was permissible and that DOJ policy barred indictment and prosecution during tenure. T3 verified current 28 C.F.R. Part 600 as an executive-controlled model, CRS's special-counsel report as useful institutional history, the OLC sitting-President indictment opinion as the prosecution-limit source, and the Senate Historical Office Watergate Committee account as support for the Watergate oversight and impeachment analogue.

**Qualification.** The Mueller Report did not formally conclude that President Trump committed obstruction. DOJ-007 does not decide ultimate criminal liability, expand substantive offenses, abolish presidential immunity, or authorize prosecution of a sitting President. Investigation of immune conduct is permitted for factual, impeachment, oversight, and institutional purposes but must not be presented as proof that the conduct was criminal.

**Remedial Alternatives and Constraints.** A statutory restoration of the former independent-counsel model would be simpler but would leave an executive trigger capable of blocking appointment. Judicial review of refusal would reduce that vulnerability but remain constitutionally contestable. A permanent independent prosecution authority would be broader and more disruptive. This proposal is narrower: it protects investigation during extraordinary conflict, preserves impeachment as the tenure-removal mechanism, and coordinates with IMM-001 for any substantive immunity reform.

**Budgetary Impact.** DOJ-007 is correctly classified as likely requiring budget authority because it creates an independent investigative-counsel mechanism, protected appropriations, staff capacity, access-dispute litigation, reporting, records transfer, and GAO audit functions. T3 confirmed that current 28 C.F.R. Part 600 requires a special counsel to develop a budget with DOJ's Justice Management Division and obtain Attorney General budget approval, but that model is not a source-backed cost range for an independent constitutional mechanism. T4 located secondary reporting that the Mueller investigation had cost roughly \$17 million by May 2018, but that is not sufficient for a proposal-specific estimate because DOJ-007 would create a different constitutional and funding structure. See Axios, May 31, 2018. No dollar figure is assigned.

**Quality Score.** The 78/100 score reflects a Review Ready draft suitable for knowledgeable external critique. T4 verified the constitutional-amendment vehicle, linked enabling legislation, current special-counsel regulations, OLC prosecution-limit source, Watergate congressional-investigation analogue, removal-power vulnerability, prior removal-protection bill comparator, issue-to-legislation alignment, and a limited budget analogue source lead. The score remains below publication-ready because adoption evidence, source-backed cost analysis, coalition estimates, external professional review, grand-jury disclosure mechanics, and publication-level judicial-scrutiny work remain incomplete.

**Adoption Score.** The 1/12 score is weak because the proposal requires constitutional amendment and T3 did not identify current evidence of a realistic ratification coalition. The proposal receives limited credit for correctly identifying the high-threshold vehicle and preserving staged implementation, but no favorable credit for current passage likelihood, polling, sponsor support, or stakeholder validation.

**Adoption Friction.** The 92/100 score is extreme because the proposal changes control over investigations involving the President and senior executive officials, depends on contested separation-of-powers and appointments doctrine, requires a constitutional amendment, invites intense partisan framing, creates a new protected investigative structure, requires funding, and would likely face immediate constitutional and political opposition.

**Required Electoral Environment.** The required environment is constitutional-amendment-environment, with Pathway Viability post-crisis-only and Pathway Adjustment stage. A statutory version cannot reliably solve the central defect because a nonexecutive trigger over executive objection is constitutionally insecure without amendment. T3 confirms that narrower statutory options, including current DOJ special-counsel regulations and prior special-counsel independence bills, can reduce removal or interference risk but do not supply the missing nonexecutive appointment trigger. Staged work should therefore focus on external review, public-facing explanation, source development, oversight framing, evidence-preservation logic, and relation to IMM-001 before treating the proposal as externally actionable.

**Development Priority.** The priority is conditional: DOJ-007 is important to the project architecture and now ready for knowledgeable external critique, but further work should remain targeted. T4 should focus on external professional review,

publication-level judicial-risk analysis, source-backed cost analogues, public-support evidence, and whether a narrower oversight-stage measure should accompany the amendment strategy.

## DOJ-007 — Audit History

This file preserves the full audit history for DOJ-007. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-07-02 — SCOTUS current-status update

**Audit status:** T4 publication-ready audit complete; SCOTUS current-status update no score effect

**Proposal-quality score:** 78

**Current-status update:** *Trump v. Slaughter* and *Trump v. Cook* have now been decided. *Slaughter* heightens the removal-protection risk for ordinary statutory independence designs, while *Cook* preserves a Federal Reserve-specific interim distinction. Neither decision moots DOJ-007 because DOJ-007 uses a constitutional amendment to authorize independent investigation during structural executive conflict. The decisions remain material to implementing legislation, especially protected investigative independence, removal review, judicial remedies, and preserving the distinction between investigation and prosecution.

**Score effect:** No score change. This update replaces stale pending-docket language but does not complete external constitutional review, grand-jury disclosure analysis, limitations-period tolling review, source-backed cost work, adoption evidence, or stakeholder scrutiny.

**Next audit need:** Continue with external validation / T4 follow-up, with special attention to post-*Slaughter* removal-review language, judicial-role limits, and whether the amendment text should include more explicit authority for protected investigative tenure.

#### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Audit scope:** This T4 audit reviewed DOJ-007, the linked constitutional amendment, the linked enabling act, current source inventory, pending removal-power vulnerability, budget and cost analogues, proposal-to-legislation alignment, and publication-readiness blockers under the current framework and methodology.

**Current-status and mootness check:** No current law, regulation, constitutional amendment, or court decision located during T4 moots DOJ-007. The Supreme Court docket in *Trump v. Slaughter* shows certiorari before judgment granted and argument held in December 2025 on statutory removal protections and equitable relief preventing removal from public office. The emergency docket in *Trump v. Cook* shows argument held in January 2026 on President Trump's attempted removal of Federal Reserve Governor Lisa Cook. These dockets reinforce the removal-power vulnerability but do not moot DOJ-007 because the proposal proceeds through constitutional amendment.

**Pending judicial vulnerability:** *Trump v. Slaughter* and *Trump v. Cook* remain material to implementation drafting, especially removal review, protected investigative independence, and judicial remedies. T4 did not resolve their merits implications and did not treat them as direct controlling authority for the constitutional-amendment vehicle. External review should refresh their outcomes immediately before public release or legislative circulation.

**Budget and cost finding:** The budget classification remains correct: budget authority is likely required, and no dollar estimate should be assigned. Current 28 C.F.R. Part 600 is useful for identifying the existing DOJ-controlled special-counsel budget process, but it is not a cost analogue for an independent constitutional mechanism. T4 located secondary reporting that the Mueller investigation had cost roughly \$17 million by May 2018, but that is only a source lead because DOJ-007 uses a different institutional and funding structure. A source-backed estimate would require official DOJ, GAO, appropriations, or historical independent-counsel expenditure materials.

**Grand-jury and reporting finding:** T4 did not add a more specific grand-jury disclosure rule beyond the existing lawful-disclosure and rights-protection language. Grand-jury disclosure, impeachment-report transmission, classification, defendants' rights, and privacy remain publication-level legal-review issues.

**Issue-to-legislation alignment:** No material discrepancy was found among the issue page, constitutional amendment, and enabling legislation. All three align on the core design: constitutional authorization first, judicial appointment after threshold findings, protected independent investigation, no indictment or trial of a sitting President under the mechanism, lawful prosecution of other persons, evidence preservation, reporting as law permits, limitations tolling, protected resources, and impeachment preservation.

**Defects corrected during the audit:** Updated the issue-page score and T4 annotations; added current pending-removal-power docket discussion to the Proposal Survey; added the Mueller-cost secondary source lead to the budgetary-impact annotation; updated source notes on both proposal vehicles; updated source inventory, audit inventory, and the Audit Dashboard.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 11/12; Legal Fit 8/10; Prior-Proposal 6/8; Remedy 11/12; Implementation 7/8; Abuse Resistance 8/8; Drafting 8/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 78/100 (Review Ready).

**Score effect:** Score increased from 75 to 78 because T4 refreshed pending removal-power vulnerability, confirmed issue-to-legislation alignment across both proposal vehicles, added a limited budget-source lead, and made publication-readiness blockers more explicit. The score remains Review Ready rather than publication-ready because professional constitutional review, source-backed cost analysis, adoption evidence, coalition estimates, grand-jury disclosure mechanics, limitations-period tolling analysis, and stakeholder scrutiny remain incomplete.

**Adoption and pathway findings:** Adoption Score remains 1/12 (Weak Adoption Basis). Adoption Friction remains 92/100 (Extreme Resistance). Required Electoral Environment remains **constitutional-amendment-environment**; Pathway Viability remains **post-crisis-only**; Development Priority remains **conditional**; Pathway Adjustment remains **stage**.

**International support and foreign-relations score:** N/A at T4. DOJ-007 is a domestic constitutional-structure proposal. Comparative independent-prosecutor or anti-corruption models may be useful as background, but they cannot substitute for U.S. constitutional analysis or ratification strategy.

**Publication blockers:** Obtain qualified constitutional and legislative-counsel review; refresh *Slaughter* and *Cook* outcomes before release; develop an official-source cost and funding memo; test grand-jury disclosure and congressional-reporting mechanics; test limitations-period tolling; develop external stakeholder and adoption analysis; and decide whether a narrower oversight-stage companion should accompany the amendment strategy.

**Audit process feedback:** T4 can improve the record and identify publication blockers, but for constitutional-amendment proposals a Review Ready score means ready for expert critique, not ready for lawmaker circulation without external review.

### 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication audit and external review pending

**Audit scope:** This T3 audit reviewed DOJ-007, the linked constitutional amendment page, and the linked enabling legislation under the current framework and methodology. It focused on the unresolved T2 items most likely to improve readiness: Watergate support, OLC sitting-President prosecution limits, pending executive-power cases, special-counsel funding structure, issue-to-legislation alignment, judicial-scrutiny posture, budgetary-impact limits, adoption posture, and publication-readiness gaps.

**Current-source refresh:** Performed June 28, 2026. Source categories checked included official regulations, DOJ/OLC materials, CRS reports, Congress.gov bill records, Senate Historical Office materials, Supreme Court docket pages, Supreme Court opinions, DOJ special-counsel materials, and open legal-reference materials. Search routes included eCFR Part 600, CRS special-counsel reports, OLC sitting-President prosecution opinions, Watergate Committee historical records, Congress.gov special-counsel independence legislation, and Supreme Court removal-power dockets.

**Sources added or upgraded:** Added the OLC sitting-President indictment opinion for the prosecution-limit premise and the Senate Historical Office Watergate Committee account for the Watergate oversight/impeachment analogue. The audit also relied on eCFR 28 C.F.R. Part 600, CRS's special-counsel and independent-counsel report, the Special Counsel Independence and Integrity Act, *Morrison v. Olson*, *Trump v. United States*, the DOJ Mueller Report archive, and the Supreme Court docket records for *Trump v. Slaughter* and *Trump v. Cook* already captured in the source inventory.

**Verified findings:** DOJ-007 remains live and not moot. Current special-counsel regulations remain executive-controlled and therefore do not solve the trigger defect. The former independent-counsel model remains a useful historical analogue only up to the point of judicial appointment after an executive trigger. The 2018 Special Counsel Independence and Integrity Act remains a useful narrower comparator because it addressed improper removal after appointment but did not solve conflicted non-initiation. OLC's sitting-President prosecution opinion supports the proposal's distinction between investigation/evidence preservation and indictment or trial of a sitting President. The Senate Historical Office account supports the Watergate point that criminal investigation, special-prosecutor process, and congressional inquiry can interact with impeachment-related accountability; T3 did not verify the more specific grand-jury road-map mechanics from a primary source, so the issue page was narrowed accordingly.

**Mootness and material-reframing result:** No current law, regulation, enacted constitutional amendment, or current Supreme Court decision located during T3 moots DOJ-007. Pending removal-power and unitary-executive cases continue to make the issue more salient rather than obsolete. T3 found no reason to pause the issue or reduce the score to zero.

**Pending judicial vulnerability:** *Trump v. Slaughter* and *Trump v. Cook* remain relevant Supreme Court pending-case background because they concern removal power and presidential control of federal officers. They do not control DOJ-007 directly because DOJ-007 proceeds through constitutional amendment, but they may affect how skeptical readers understand removal protection, independent officers, and judicial involvement. T4 should refresh these dockets or opinions immediately before publication.

**Judicial-scrutiny finding:** The proposal is constitutionally candid in choosing amendment rather than relying on *Morrison* alone. That is its strongest legal feature. Its remaining judicial-risk issues are mainly implementation questions after ratification: preventing the Special Division from managing prosecutorial merits, protecting defendants' rights, avoiding judicial prosecution, handling grand-jury secrecy, preserving impeachment allocation, and ensuring access and removal disputes are heard by judges not later participating in criminal cases. The enabling legislation already addresses these issues at a draft level, but external legal review should test whether the panel's referral, reporting, and removal-review provisions need narrower language.

**Budgetary-impact finding:** The current budget classification remains correct: budget authority is likely required, but no dollar estimate should be assigned. Current 28 C.F.R. Part 600 contains a special-counsel budget process through DOJ, but that is not a cost analogue for an independent constitutional mechanism. T3 did not locate a source-backed independent-counsel cost range suitable for inclusion. T4 should search GAO, DOJ appropriations, historical independent-counsel expenditure records, and special-counsel expenditure reports before any dollar figure is proposed.

**Adoption and support finding:** Adoption Score remains 1/12. T3 found no current proposal-specific polling, sponsor coalition, ratification strategy, state-ratification evidence, or stakeholder validation that would justify additional adoption credit. The proposal is best treated as post-crisis or reserve constitutional repair, not as a current legislative-action item. No coalition percentage estimates were

assigned because doing so would be a judgment-only exercise without sufficient current evidence.

**Defects corrected during the audit:** Narrowed the Watergate manifestation so it no longer claims verified grand-jury transmission mechanics; added nearby citations for Watergate and OLC sitting-President prosecution limits; updated the Basis and Evidence, Budgetary Impact, Quality Score, Required Electoral Environment, and Development Priority annotations; updated source notes on both proposal vehicles; updated the issue-page scoring summary and front matter; updated `sources.csv`, `audits.csv`, and the Audit Dashboard.

**Unresolved findings:** T4 should verify grand-jury disclosure mechanics, including Watergate road-map history and modern Rule 6(e) impeachment-disclosure treatment; refresh pending Supreme Court removal-power cases; develop source-backed cost analogues; test limitations-period tolling language; obtain qualified external review; and decide whether a narrower companion oversight-stage proposal should accompany the amendment strategy.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior-Proposal 6/8; Remedy 11/12; Implementation 6/8; Abuse Resistance 8/8; Drafting 8/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 75/100 (Review Ready).

**Score effect:** Score increased from 68 to 75 because T3 verified additional official source support, narrowed an over-specific Watergate claim, added OLC support for the investigation/prosecution distinction, confirmed proposal-to-legislation alignment after the amendment split, and improved judicial-risk disclosure. The score remains at the low end of Review Ready because adoption, cost, grand-jury disclosure, pending-case, and external-review work remains incomplete.

**International support and foreign-relations score:** N/A at T3. DOJ-007 is a domestic constitutional-structure proposal. Comparative anti-corruption or independent-prosecutor models may be useful for T4 background, but the proposal's legal adequacy depends on U.S. constitutional amendment and implementing legislation rather than international practice.

**Next audit need:** Run T4 publication-ready audit and obtain qualified external review. T4 should focus on grand-jury disclosure mechanics, pending executive-power opinions, budget analogues, limitations-period tolling, publication-level judicial-scrutiny analysis, stakeholder objections, and whether to add a narrower oversight-stage companion.

**Audit process feedback:** T3 was adequate to move DOJ-007 into Review Ready for knowledgeable external critique. The most useful workflow adjustment was narrowing an unsupported historical claim rather than spending the whole audit trying to prove it. Future higher-tier audits should continue treating over-specific historical analogies as candidates for narrowing unless primary support is found quickly.

## 2026-06-28 — T2 Development Audit

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed DOJ-007, the linked constitutional amendment page, and the linked enabling legislation against the current framework and methodology. It checked the amendment/statute boundary, proposal-to-legislation alignment, direct and functional analogues, source support, pending judicial vulnerability, implementation posture, budget posture, adoption posture, and dashboard/inventory consistency. It did not complete T3-level Watergate source verification, detailed judicial-scrutiny analysis, public-support research, coalition percentage estimates, budget analogue research, or external review.

**Sources and source categories checked:** The audit refreshed current public-source support from the current eCFR special-counsel regulations, CRS's special-counsel and independent-counsel report, the prior Special Counsel Independence and Integrity Act, *Morrison v. Olson*, *Trump v. United States*, the DOJ archive of the Mueller Report, and the pending Supreme Court dockets already captured for *Trump v. Slaughter* and *Trump v. Cook*. The audit treated Justia and LII as useful secondary or legal-reference sources where already cited, but upgraded the Part 600 citation to eCFR on the issue page.

**Verified findings:** DOJ-007 remains structurally live and is not mooted by current special-counsel regulations or narrower special-counsel independence bills. Current 28 C.F.R. Part 600 remains an executive-branch regulatory model rather than a nonexecutive appointment trigger. The former independent-counsel model and *Morrison* support the concept of judicial appointment of an inferior investigative officer after an executive trigger, but they do not securely supply the direct nonexecutive trigger DOJ-007 needs after *Trump v. United States*. The 2018 Special Counsel Independence and Integrity Act is a useful prior-proposal comparator because it addressed removal protection after appointment, not the initial appointment blockage problem. The issue page, amendment page, and enabling act are now aligned on the central design: constitutional authorization first, judicial appointment only after threshold findings, independent investigation and reporting, no indictment or trial of a sitting President, prosecution of other persons where lawful, panel gatekeeping without merits management, tolling, removal review, and impeachment preservation.

**Mootness and material-reframing result:** No current statute, regulation, constitutional amendment, enacted bill, or court decision located during T2 moots DOJ-007. The proposal remains materially difficult rather than obsolete. Pending removal-power and executive-control cases remain a vulnerability because they may affect judicial and political understanding of presidential control, removal protection, and independent federal officers, but the constitutional-amendment vehicle reduces the risk that ordinary Article II doctrine alone would defeat the core proposal after ratification.

**Pending judicial vulnerability:** *Trump v. Slaughter* and *Trump v. Cook* remain relevant pending-case background for removal-power and unitary-executive doctrine. T2 did not complete a merits-level docket analysis or determine whether either case would require specific amendment language changes. T3 should review the opinions or current docket posture before any external circulation.

**Defects corrected during the audit:** Replaced the issue page's special-counsel regulatory citation with eCFR; expanded the Proposal Survey to include CRS and the 2018 Special Counsel Independence and Integrity Act; clarified that narrower removal-protection legislation does not solve the appointment-trigger defect; added source notes to both DOJ-007 proposal vehicles; updated Proposal Scoring, front matter, audit sidebar, audit inventory, source inventory, and Audit Dashboard.

**Unresolved findings:** Watergate reporting history remains insufficiently source-developed on the issue page. The budgetary impact statement is directionally correct but lacks a source-backed cost or appropriations analogue. Adoption remains weak because no current polling, sponsor coalition, ratification strategy, or stakeholder validation has been located. The proposal has not received qualified external review. T3 should also test denial-order procedure, renewed applications, appealability, sealed/public order practice, limitations-period tolling analogues, protected-appropriation models, grand-jury disclosure rules, classification safeguards, and whether any narrower statutory fallback is worthwhile before amendment ratification.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 68/100 (Substantially Developed Draft).

**Score effect:** Score increased from 62 to 68 because T2 added source-backed direct and functional analogue analysis, improved the regulatory source citation, clarified the gap between removal-protection legislation and nonexecutive appointment authority, confirmed current framework alignment across the issue and both proposal vehicles, and recalculated the score under the current rubric. The score remains below Review Ready because several material source, judicial-risk, adoption, implementation-cost, and external-review elements remain unresolved.

**Adoption and pathway findings:** Adoption Score remains 1/12 (Weak Adoption Basis). Adoption Friction remains 92/100 (Extreme Resistance). Required Electoral Environment remains **constitutional-amendment-environment**; Pathway Viability remains **post-crisis-only**; Development Priority remains **conditional**; Pathway Adjustment remains **stage**.

**International support and foreign-relations score:** Not scored at T2. The proposal is primarily a domestic constitutional-structure remedy. T3 or T4 may consider comparative independent-prosecutor or anti-corruption models only if they are used cautiously and not as a substitute for U.S. constitutional authority.

**Next audit need:** Run T3 readiness audit focused on Watergate source verification, pending executive-power cases, deeper legal durability, judicial-scrutiny analysis, budget analogues, congressional reporting and grand-jury secrecy, denial-procedure detail, adoption and coalition estimates, and external-review needs.

**Audit process feedback:** T2 was adequate for improving source grounding and moving the proposal into Substantially Developed Draft status. The main slowdown was locating official or near-official historical material for independent-counsel and Watergate reporting history. Future DOJ-007 audits should start from the CRS report and official regulation/court sources, then spend higher-tier time on Watergate primary materials, pending Supreme Court opinions, and budget analogues rather than repeating the framework checks already completed.

### ***2026-06-28 — Clarifying Update: Panel Gatekeeping Discretion***

**Change made:** Added language to the enabling act and issue page clarifying that submission by an authorized applicant does not create entitlement to appointment. The Special Division must independently review the application and may deny appointment if statutory conditions are not satisfied, lesser measures are adequate, or appointment would be unnecessary or disproportionate.

**Purpose of clarification:** This preserves the panel as an independent gatekeeper rather than a ministerial filing office, while keeping the substantive appointment standard defined by statute.

**Score effect:** No immediate score change. The clarification improves drafting precision but does not resolve the remaining T2 source, analogue, judicial-scrutiny, implementation, adoption, or external-review tasks.

**Next audit need:** T2 should test whether the denial standard needs additional procedural detail, including written denial orders, sealed/public versions, reconsideration, renewed applications, appealability, and protection against strategic or partisan filings.

### ***2026-06-28 — Clarifying Update: Congressional Inaction and Independent Fact-Finding***

**Change made:** Added clarifying language to the issue page and enabling legislation explaining that DOJ-007 is designed for the failure case in which credible information suggests serious criminal or investigative misconduct may have occurred, but Congress lacks the political will, institutional capacity, or reliable factual record necessary to initiate an adequate inquiry.

**Purpose of clarification:** The added language frames the proposal as a safe, bounded pathway for independent fact-finding, evidence preservation, and reporting where ordinary political checks do not activate. It also clarifies that the mechanism is meant to provide disinfecting sunlight and institutional accountability, not to presume guilt or replace impeachment, trial, or ordinary congressional judgment.

**Score effect:** No immediate score change. The clarification improves explanatory fit but does not resolve the T2 tasks identified in the prior audit, including source verification, analogue review, judicial-scrutiny analysis, implementation-cost support, adoption evidence, and external review.

**Next audit need:** A Change Audit or T2 development audit should verify that this framing remains consistent with the amendment text, enabling legislation, impeachment clauses, congressional oversight practice, grand-jury secrecy, and fair-trial safeguards.

## 2026-06-28 — *Change Audit: Constitutional Amendment and Enabling-Legislation Split*

**Audit status:** Amendment/enabling-vehicle structure applied; T2 development audit remains pending

**Change made:** Moved the proposed constitutional amendment text out of the issue page and into a dedicated proposal page: DOJ-007-amendment.md. Renamed the issue-page implementing-statute section from **Proposed Legislation** to **Proposed Enabling Legislation** and linked both concrete vehicles from the issue page. Added amendment-dependency metadata and introductory text to the enabling legislation page.

**Score effect:** No proposal-quality score change. The underlying remedy, constitutional-amendment pathway, adoption friction, and unresolved T2 tasks did not change. Proposal Quality Score remains 62/100 (Developed Draft); Adoption Score remains 1/12; Adoption Friction remains 92/100.

**Framework effect:** The governing framework now treats amendment-dependent proposals as two linked vehicles: a -amendment.md page for constitutional amendment text and an unsuffixed enabling-legislation page where implementing legislation is needed. The issue page should use **Proposed Constitutional Amendment** and **Proposed Enabling Legislation** sections rather than embedding amendment text in the issue page.

**Records updated:** Updated DOJ-007 issue page, created legislation/DOJ-007-amendment.md, updated legislation/DOJ-007.md, updated FRAMEWORK.md, METHODOLOGY.md, PRINT\_ASSEMBLY.md, inventory/contents.csv, inventory/audits.csv, and the Audit Dashboard row.

**Next audit need:** T2 development audit remains the next substantive audit. It should test the amendment/statute boundary, direct and functional analogues, source support, pending executive-power cases, and staged fallback options.

## 2026-06-28 — *T1 Framework Check*

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope and posture:** This was a T1 audit of DOJ-007 and its linked proposed implementing legislation only. It checked framework structure, single-issue scope, remedy type, linked proposed legislation, issue-to-legislation consistency, relationship to DOJ-002 and IMM-001, treatment of merged DOJ-006, Budgetary Impact Statement presence, T1 enactment pathway, adoption friction, and obvious current-status or pending-judicial-vulnerability concerns. It did not complete T2 source verification, direct prior-proposal research, functional-analogue search, detailed judicial-scrutiny analysis, fiscal-source development, coalition-support estimates, or external review.

**Verified findings:** DOJ-007 is a developed issue, not retired. DOJ-006 remains properly merged into DOJ-002 and DOJ-007: DOJ-002 owns preventive contact controls, while DOJ-007 owns independent investigation, evidence preservation, and congressional reporting where executive conflict makes ordinary DOJ control unreliable. The linked implementing legislation exists and is substantively aligned with the issue page's core theory: constitutional authorization first, then judicial appointment of an independent investigative counsel, protected investigation of a sitting President, no indictment or trial of a sitting President while in office, reporting to Congress, tolling, removal protection, and no judicial management of investigative merits.

**Current-status and mootness result:** T1 found no obvious enacted law, constitutional amendment, regulation, or current project proposal that moots DOJ-007. The proposal remains structurally live but extremely difficult because its core nonexecutive appointment trigger is constitutionally insecure without amendment.

**Pending judicial vulnerability:** Pending or recent Supreme Court executive-power and removal-power matters remain material background because DOJ-007 depends on the boundary between executive control, appointment authority, investigation, removal, and judicial involvement. T1 did not perform a full docket or merits review. T2 should refresh pending cases including removal-power and unitary-executive dockets and test whether they require narrowing, additional findings, or clearer amendment text.

**Defects corrected during the audit:** Added a standard **Proposed Legislation** bullet section to the issue page linking the implementing bill; updated front matter, Proposal Scoring, and scoring annotations; assigned T1 pathway and adoption-friction fields; updated the audit inventory and dashboard.

**Proposal-quality score:** 62/100 (Developed Draft). The score increases from 60 because T1 fixed visible framework compliance, verified issue-to-legislation alignment at a high level, surfaced the required constitutional-amendment pathway, and documented adoption friction and development priority. The score remains low because source verification, prior-proposal grounding, functional analogues, judicial-scrutiny analysis, implementation-cost support, adoption evidence, and external review remain incomplete.

**Adoption and pathway findings:** Adoption Score is 1/12 (Weak Adoption Basis). Adoption Friction is 92/100 (Extreme Resistance). Required Electoral Environment is constitutional-amendment-environment; Pathway Viability is post-crisis-only; Development Priority is conditional; Pathway Adjustment is stage.

**Next audit need:** Run a T2 development audit. Prioritize direct and functional analogues, including the former independent-counsel statute, special-counsel regulations, congressional contempt and oversight mechanisms, impeachment-reporting precedents, court-appointed officer models, removal-review models, appropriations models, and evidence-preservation/reporting mechanisms. T2 should also refresh pending executive-power cases, source-check the Mueller and Watergate claims, test the amendment/statute boundary, and determine whether a staged statutory or oversight fallback can preserve useful parts of the remedy before amendment becomes viable.

**Audit process feedback:** The T1 pass confirmed that constitutional-amendment proposals should receive early pathway and friction treatment before deeper drafting work, because current practical adoption may be near zero even when the proposal is structurally



important. Future T1 audits of amendment-dependent proposals should explicitly distinguish architectural importance from current actionability.

**2026-06-24 — *Initial framework and inventory audit***

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

# DOJ-009 — Insufficient Professional-Qualification Requirements for Senior DOJ Leadership

## Issue Snapshot

**Problem:** Senior DOJ roles may lack good-standing requirements.

**Repair:** Require bar status, disclosure, and delegation rules.

**Vehicle:** Title 28 DOJ amendment package (draft).

## Institutional Anomaly

The Attorney General and senior Department of Justice legal officers exercise extraordinary legal authority over federal prosecutions, federal civil litigation, legal positions of the United States, professional-responsibility systems, law-enforcement policy, legal opinions, and the government's conduct before courts. Yet federal appointment law may not expressly require that the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, Assistant Attorneys General, or persons performing those functions in an acting capacity be attorneys in good standing, remain eligible to practice law, or be free from final professional discipline materially inconsistent with serving in a senior federal legal office.

Bar membership is not merely a credential. It is a continuing external professional-conduct framework administered by courts, bar authorities, disciplinary bodies, and licensing authorities. For senior DOJ legal officers, good standing in a bar provides an institutional check outside the Department's internal hierarchy and outside ordinary presidential supervision. A statutory good-standing requirement would therefore connect senior federal legal authority to an existing professional regulator capable of imposing discipline for misconduct, dishonesty, lack of candor, breach of fiduciary duty, misuse of client confidences, and other violations of professional legal obligations.

The Senate confirmation process and appointment norms are important safeguards, but they are political safeguards rather than legal eligibility rules. If the President and Senate are aligned, indifferent, or strategically motivated, those safeguards may not prevent a person who has been disbarred, suspended, or adjudicated professionally unfit from serving in a position that directs the legal work of the United States.

This issue does not assume wrongdoing by any current or former official. It concerns the structural question whether federal law should impose baseline professional-qualification and good-standing requirements for senior DOJ legal offices.

## Manifestations of the Failure

### *No express good-standing rule for the Attorney General*

Federal law establishes the office of Attorney General and provides for presidential appointment with Senate advice and consent, but it may not expressly require active bar membership, good standing, or absence of final professional discipline as an eligibility condition.

### *Political safeguards as insufficient legal safeguards*

Confirmation, oversight, and political accountability may screen professional fitness in ordinary circumstances. They are weaker safeguards where the appointing President, Senate majority, or political coalition is willing to disregard professional discipline or treat it as irrelevant to service.

### *Senior legal authority without practice eligibility*

A person who cannot practice law before state courts or has been suspended or disbarred by a licensing authority could still, absent a clear statutory bar, occupy an office supervising federal lawyers, legal positions, criminal prosecutions, civil enforcement, and professional-responsibility systems.

### *Pending complaints versus final discipline*

Pending bar complaints or ethics allegations may be politically weaponized and should not automatically disqualify a nominee or officer. The stronger structural concern arises after final adjudicated discipline, suspension, disbarment, resignation in lieu of discipline, or other professional finding materially inconsistent with senior DOJ legal service.

### *Prospective risk rather than a named incident*

DOJ-009 is primarily prophylactic. It does not currently rest on a concrete real-world example of a senior DOJ officer losing professional good standing while in office and continuing to exercise legal-supervisory authority. The proposal instead addresses a foreseeable structural gap: existing law already uses licensure and attorney-conduct concepts for DOJ attorneys, but does not clearly specify what happens if a senior DOJ legal officer loses good standing after appointment or while performing covered duties in an acting capacity.

## Resulting Damage

If senior DOJ legal officers lack baseline professional-qualification requirements, the Department may be led by officials whose professional discipline would bar or impair ordinary legal practice while still allowing them to supervise federal legal positions, prosecutions, recusals, and professional-responsibility systems. That weakens public confidence in neutral law enforcement, strains internal professional norms, and leaves Congress to rely on political screening rather than enforceable eligibility standards.

## Underlying Weakness

Existing law may lack:

- an express bar-admission or good-standing requirement for the Attorney General and selected senior DOJ legal officers;
- mandatory disclosure of bar memberships and disciplinary history before confirmation or appointment;
- continuing notification duties if discipline is imposed while in office;
- temporary delegation or recusal rules if an officer loses professional good standing;
- a distinction between pending allegations and final adjudicated professional discipline;
- a rule protecting the office while preventing politically motivated complaints from becoming automatic disqualification tools.

## Proposal Survey

Congress has often imposed office-specific qualifications for federal legal or law-enforcement roles. The Solicitor General and Assistant Attorneys General are statutory offices, but existing provisions do not clearly impose a general good-standing requirement for all senior DOJ legal officers. The U.S. Code provisions for the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, and Assistant Attorneys General are collected at 28 U.S.C. §§ 503-506. Attorney General succession is separately addressed in 28 U.S.C. § 508. Federal law already uses attorney-ethics cross-references for Department lawyers through 28 U.S.C. § 530B, while DOJ regulations implementing that provision address professional-conduct rules for Department attorneys at 28 C.F.R. part 77. T2 also identified 28 U.S.C. § 530C(c)(1) as an existing compensation-related licensure analogue for individuals employed as attorneys.

The closest existing automatic-effect model located so far is the Federal Vacancies Reform Act, which provides that when a covered office is not being performed by an authorized acting officer, the office remains vacant for protected functions and unauthorized actions have no force or effect. 5 U.S.C. § 3348. That model supports a duty-devolution and action-validity approach more clearly than automatic removal from a Senate-confirmed office.

Ethics-disclosure models also exist through Senate confirmation, the Office of Government Ethics, OPR, and bar authorities. DOJ-009 draws from those models but converts professional fitness into a baseline eligibility and continuity rule for senior DOJ legal offices.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted title 28 amendment package. The draft adds a proposed new section to 28 U.S.C. chapter 31, conforms the Attorney General succession statute, and links the rule to the existing Government-attorney ethics and compensation provisions in 28 U.S.C. §§ 530B-530C.

## Repair and Prevention

Congress should consider statutory professional-qualification requirements for the Attorney General and selected senior DOJ legal officers.

The statute should require, at minimum:

1. admission to practice law in at least one United States jurisdiction;
2. good standing in at least one jurisdiction at the time of nomination, appointment, or designation;
3. disclosure of all current bar memberships, suspensions, disbarments, resignations in lieu of discipline, public discipline, and pending formal disciplinary charges;
4. continuing duty to notify the President, Senate Judiciary Committee, DOJ Inspector General, Office of Professional Responsibility, and Office of Government Ethics of final professional discipline while serving;
5. disqualification from exercising covered legal-supervisory duties, with temporary delegation to the next eligible officer, if the officer loses good standing, is disbarred or suspended in all admitted jurisdictions, or is otherwise finally disciplined in a manner materially inconsistent with service;
6. preservation of Senate and presidential appointment authority subject to baseline statutory eligibility limits;
7. an express rule that pending complaints, unadjudicated allegations, or politically motivated complaints do not create automatic disqualification.

## Proposed Legislation

- Senior Department of Justice Professional Qualification and Good Standing Act

## Relationship to Adjacent Proposals

- **DOJ-001** concerns appointment of recent presidential personal counsel to senior DOJ leadership.

- **DOJ-003** concerns politically selective enforcement, charging, and favoritism.
- **DOJ-005** concerns weak enforcement and internal control of DOJ recusal duties.
- **DOJ-007** concerns independent investigation of presidential and senior executive misconduct.
- **DOJ-009** concerns baseline professional eligibility, good standing, and disciplinary-disclosure rules for senior DOJ legal offices.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 74 / 100 (Substantially Developed Draft)

**Adoption Score:** 4 / 12 (Limited Adoption Basis)

**Adoption Friction:** 68 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

**External Review Status:** not-reviewed

**Audit Status:** T3 readiness audit complete; T4 publication-ready audit and qualified legal review pending

**Last Audit:** T3 readiness audit

**Rubric Version:** 2026-06-27.2; **Rebaseline:** current

**Next Audit:** T4 publication-ready audit and qualified legal review

**Full Audit History:** DOJ-009 audit history

## Annotation

**No Personal Finding.** This issue does not assume misconduct by any current or former official and should not be framed around any named person. Individual complaints or disciplinary proceedings may serve as source-development examples only if described neutrally and with procedural posture clearly identified.

**Bar as External Regulator.** Bar membership and good standing matter because attorney licensing authorities provide an external professional-conduct check on lawyers exercising legal authority, including senior DOJ legal officers.

**Pending Complaints.** Pending ethics complaints should not be automatic disqualifiers. A pending complaint may be relevant to disclosure or Senate evaluation, but automatic legal consequences should turn on final discipline, suspension, disbarment, resignation in lieu of discipline, or comparable adjudicated findings.

**Prospective Design.** DOJ-009 is presently more prophylactic than incident-driven. It should not imply that the project has identified a concrete example of a senior DOJ legal officer losing good standing while in office. Its real-world premise is the combination of existing DOJ licensure/ethics rules and the absence of a clear senior-office continuity trigger if good standing is lost.

**Disqualification Rather Than Automatic Removal.** Loss of good standing should disqualify a covered officer from exercising covered legal-supervisory duties and trigger temporary devolution to the next eligible officer. The project has not identified a clean federal analogue for automatic removal of a Senate-confirmed executive officer without action by Congress, a court, or the executive. The closer analogue is the Federal Vacancies Reform Act's functional model: unauthorized acting service can leave protected functions vacant and render unauthorized actions ineffective.

**T3 Readiness Finding.** T3 confirms that DOJ-009 is internally coherent and has a plausible existing-law amendment vehicle, but it should not yet be treated as review-ready. The strongest source support remains the existing title 28 architecture: the Solicitor General statute expressly uses a legal-qualification concept, while the Assistant Attorney General statute omits similar language and notes that the phrase *learned in the law* was treated as unnecessary for several federal legal offices. 28 U.S.C. § 505; 28 U.S.C. § 506. The proposal's duty-devolution model remains supported as a functional analogue by the Federal Vacancies Reform Act's vacant-office and no-force-or-effect rules, but the fit should still be reviewed by legislative counsel or a public-law attorney before external circulation. 5 U.S.C. § 3348.

**Appointments Clause Sensitivity.** Any statutory qualification rule should be reviewed for compatibility with the Appointments Clause, presidential nomination authority, Senate advice-and-consent authority, and Congress's power to structure executive offices by statute. The Constitution Annotated explains that Congress may establish federal offices but may not aggrandize itself at the expense of another branch or impose procedural restrictions that intrude on nomination authority. Appointments Clause overview; Restrictions on Congress's Authority.

**Professional Independence.** The rule should protect DOJ's professional legitimacy without allowing partisan or bad-faith bar complaints to be weaponized against nominees or officials.

**Implementation Fit.** DOJ already has professional-responsibility architecture that DOJ-009 can build from rather than replace. Section 530B subjects Government attorneys to applicable state and local federal-court professional rules, and 28 C.F.R. part 77 defines

attorney for the government to include the Attorney General, Deputy Attorney General, Solicitor General, Assistant Attorneys General, and many DOJ litigating and supervisory lawyers. 28 U.S.C. § 530B; 28 C.F.R. part 77. DOJ OPR's current public description gives OPR jurisdiction over attorney professional-misconduct allegations tied to legal authority, while OIG remains the broader waste, fraud, abuse, and non-attorney-misconduct channel. DOJ OPR jurisdiction.

**Source Development Pending.** T4 or qualified external review should still examine Appointments Clause doctrine in more depth, comparable statutory qualification requirements for federal legal offices, Senate confirmation materials, professional-association standards, whether proposed 28 U.S.C. § 506A is the best codification location, whether covered offices other than Solicitor General have historically been occupied by non-attorneys or persons whose licensure status was unclear, and whether the material-inconsistency review should be assigned to the DAEO, OPR, OGE, the President, or a different combination of officials.

**Quality Score.** The 74/100 score is a T3 readiness score under rubric 2026-06-27 . 2: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. The score remains unchanged from T2 because T3 verified and sharpened the source basis without resolving the major constraints on readiness: no qualified external review, incomplete direct-prior-proposal research, incomplete professional-association review, no proposal-specific public-support evidence, and unresolved Appointments Clause / nomination-authority risk.

**Existing-Law Redraft.** Human authorization on 2026-06-28 resolved the T2 blocker. The linked draft now uses an existing-law amendment package built around 28 U.S.C. chapter 31, proposed 28 U.S.C. § 506A, the Attorney General succession provision in 28 U.S.C. § 508, the Government-attorney ethics provision in 28 U.S.C. § 530B, the compensation/licensure provision in 28 U.S.C. § 530C(c)(1), DOJ professional-conduct regulations, and acting-officer cross-references. T2 tightened the draft so acting service is covered as service in an acting capacity rather than as a separate statutory office.

**Adoption Score.** The 4/12 score is limited. DOJ-009 has a clear federal statutory vehicle and a general professional-fitness value proposition that can be framed neutrally, but T1 did not identify proposal-specific polling, sponsor support, prior bipartisan legislation, professional-association endorsement, or a current legislative coalition.

**Adoption Friction.** The 68/100 score is High Resistance. The proposal is narrower than DOJ-001 or DOJ-002 and can be defended as professional baseline legislation, but it would constrain presidential selection, acting-officer designations, and Senate tolerance for professionally disciplined nominees, and it may draw separation-of-powers, Appointments Clause, compensation-authority, and politicized-bar-complaint objections.

**Required Electoral Environment.** The required environment is *sixty-vote-senate*, with Pathway Viability *plausible-after-wave* and Pathway Adjustment *stage*. T1 found no current-law or internal-policy route adequate to create binding eligibility rules for covered Senate-confirmed and acting DOJ legal offices.

**Development Priority.** The priority is *active* because the proposal is developed, structurally distinct from adjacent DOJ reforms, and capable of improvement through ordinary source development, existing-law fit review, and constitutional analysis.

# DOJ-009 — Audit History

This file preserves the full audit history for DOJ-009. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-07-01 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication-ready audit and qualified legal review pending

**Audit scope:** This T3 audit reviewed DOJ-009, the linked title 28 amendment draft, prior T1/T2/Change Audit findings, the current project framework and methodology, GitHub workflow rules, retained source records, current official U.S. Code sources for 28 U.S.C. §§ 505, 506, 508, 530B, 530C(c)(1), 5 U.S.C. §§ 13103, 13122, and 3348, 28 C.F.R. part 77, DOJ OPR public jurisdiction materials, DOJ's historical Attorney General page, and Constitution Annotated materials on the Appointments Clause and restrictions on Congress's appointment-related authority. This was a readiness audit, not a publication-ready legal opinion or qualified external review.

**Source-refresh log:** T3 verified that 28 U.S.C. § 505 expressly requires the Solicitor General to be **learned in the law**, while 28 U.S.C. § 506 appoints Assistant Attorneys General without a comparable express qualification and includes revision notes explaining that omitted **learned in the law** language was treated as unnecessary and not required for the Attorney General, United States attorneys, or United States judges. T3 also verified 28 U.S.C. § 530B, 28 C.F.R. part 77, 28 U.S.C. § 530C(c)(1), 28 U.S.C. § 508, and 5 U.S.C. § 3348 as the main enacted functional analogues. DOJ OPR's public page confirms OPR's attorney-misconduct jurisdiction and the ordinary OPR/OIG division of responsibility. Constitution Annotated confirms the Appointments Clause baseline and the separation-of-powers risk when Congress aggrandizes itself or intrudes too far into nomination-related processes.

**Current-status and mootness check:** No current source reviewed at T3 moots DOJ-009. Existing law uses legal-qualification, licensure, professional-conduct, succession, and vacant-office concepts, but no reviewed source supplies DOJ-009's full combination of good-standing eligibility, pre-appointment and acting-designation disclosure, continuing notice, pending-charge anti-weaponization, duty disqualification, temporary delegation, restoration review, and no-automatic-removal safeguards.

**Pending-judicial-vulnerability check:** T3 did not identify a pending case directly controlling Congress's authority to impose DOJ-009's exact professional-qualification framework on senior DOJ legal offices. The proposal remains Appointments Clause and separation-of-powers sensitive because it regulates eligibility and duty consequences for principal officers and acting service. The current draft reduces but does not eliminate that risk by avoiding automatic removal, preserving presidential nomination and Senate confirmation authority, avoiding congressional control of the review process, and using duty devolution rather than an external congressional veto.

**Legal-fit finding:** The title 28 vehicle remains the least-complex adequate vehicle. Proposed § 506A fits near the covered office statutes and is more precise than a freestanding bill, but the section placement remains provisional. T4 or legislative counsel should determine whether the better codification location is after § 506, in a later chapter 31 provision, in the ethics subchapter near § 530B, or in a narrower set of amendments to each covered office provision.

**FVRA and § 508 interaction:** T3 confirms that 28 U.S.C. § 508 and the FVRA remain plausible hooks for acting-service coverage. The 5 U.S.C. § 3348 vacant-office/no-force-or-effect model supports the duty-devolution design more strongly than automatic removal. Unresolved issue: the draft should receive legislative-counsel review to avoid unintentionally creating conflicts among § 508 succession, FVRA exclusivity/default rules, head-of-agency exceptions, and any nonratification consequence.

**OPR/OIG/OGE implementation fit:** T3 verified that OPR and OIG are plausible implementation participants and that OGE has relevant executive-branch ethics and disclosure authority. The draft's use of the DOJ Designated Agency Ethics Official, OPR, OIG, OGE, the President, and the Senate Judiciary Committee is directionally supportable, but the material-inconsistency determination should be reviewed for institutional fit. In particular, T4 should ask whether OGE should be consulted rather than made a co-determining actor for professional-discipline consequences that are not ordinary financial-conflict matters.

**Direct and functional analogue review:** T3 found strong functional analogues but no direct enacted analogue for a uniform senior DOJ good-standing statute. Functional analogues include the Solicitor General's **learned in the law** language, § 530C(c)(1)'s compensation/licensure limitation, § 530B and part 77's professional-conduct framework for Government attorneys, § 508's Attorney General succession structure, § 3348's no-force/no-ratification model, and § 13103 nominee disclosure mechanics. Targeted public search did not identify a direct Congress.gov prior bill matching DOJ-009's senior-DOJ good-standing framework; this should be repeated at T4 with Congress.gov, CRS, HeinOnline, law-review, state-attorney-general, and professional-responsibility sources.

**Verified claims:** T3 verifies that the issue page's core existing-law claims are supportable: current federal law contains DOJ office statutes, Government-attorney professional-conduct rules, a compensation/licensure limitation for DOJ attorneys, AG succession rules, and FVRA vacant-function consequences, but does not itself create the comprehensive senior-office good-standing and post-discipline duty-devolution regime DOJ-009 proposes.

**Unresolved claims and limitations:** T3 did not complete an exhaustive historical personnel survey of every Attorney General, Deputy Attorney General, Associate Attorney General, Assistant Attorney General, Solicitor General, or acting official for bar status. DOJ's historical Attorney General page confirms the founding-era **learned in the law** premise for the Attorney General but is not a complete licensure/status database. T3 also did not obtain professional-association input, proposal-specific polling, expert constitutional review, legislative-counsel review, or full prior-bill/law-review research.

**Budgetary-impact finding:** The existing classification remains adequate at T3: administrative workload is possible; no new appropriation is specified. The draft would likely require bar-status verification, disclosure intake, public-notice filtering, DAEO/OPR/OIG/OGE consultation, and recordkeeping, but T3 found no source-backed basis for a dollar estimate and no current need to specify a new appropriation.

**Adoption and friction finding:** Adoption Score remains 4/12. The proposal has a clear federal statutory vehicle, a neutral professional-fitness value proposition, and a plausible Senate Judiciary Committee audience, but T3 did not locate proposal-specific polling, a direct prior bill, bipartisan sponsor support, or professional-association endorsement. Adoption Friction remains 68/100 (High Resistance) because the proposal constrains presidential selection and acting-service flexibility, will likely draw Appointments Clause objections, and could be caricatured as allowing politicized bar complaints to influence DOJ leadership unless the pending-complaint safeguards are carefully explained.

**International-support finding:** International Support and Relations Score is N/A at T3. The proposal is a domestic federal appointment, DOJ professional-responsibility, and succession-rule reform with no material foreign-relations design component identified in this audit.

**Component score:** Proposal Quality Score remains 74/100 (Substantially Developed Draft). Components: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0.

**Score basis:** No score change. T3 improves confidence in the existing-law vehicle and duty-devolution design, but it does not resolve enough readiness blockers to raise the score. Legal Fit remains below full credit because Appointments Clause/nominations doctrine and FVRA interaction require qualified review. Prior-Proposal remains partial because no direct prior bill or professional-association model has been verified. Implementation remains partial because institutional assignment among DAEO, OPR, OIG, OGE, the President, and Senate Judiciary Committee needs expert validation. Adoption remains limited because no proposal-specific coalition or public-support evidence was located. External Review remains 0/4.

**Defects corrected during the audit:** Updated the issue-page audit metadata, visible Proposal Scoring summary, T3 source/readiness annotations, linked bill notes, source inventory review statuses, current-audit checkpoint, and GitHub Project audit-control fields.

**Next audit need:** Run T4 publication-ready audit or obtain qualified external review before treating DOJ-009 as ready for external circulation. Prioritize legislative-counsel review of proposed § 506A placement and FVRA/§ 508 interaction; public-law review of Appointments Clause and nomination-authority risk; professional-responsibility review of good-standing, material-inconsistency, and pending-charge definitions; full Congress.gov/law-review/prior-proposal search; historical licensure-status sampling for covered senior offices; and any proposal-specific coalition or professional-association support evidence.

## **2026-06-28 — Change Audit: Prospective Trigger and Duty-Devolution Clarification**

**Audit status:** Change Audit complete; T3 readiness audit pending

**Audit scope:** This proposal-specific Change Audit followed the user's request to clarify that DOJ-009 is more prophylactic than incident-driven, to state explicitly what happens if a covered senior DOJ legal officer loses good standing while in office, and to assess whether any existing federal model supports automatic removal without action by Congress, a court, or another executive actor.

**Existing-law finding:** Existing DOJ-related law is better framed as licensure/authorization and professional-conduct architecture than generic bar-membership architecture. 28 U.S.C. § 530C(c)(1) uses “duly licensed and authorized to practice” for compensation of individuals employed as attorneys. 28 U.S.C. § 530B and 28 C.F.R. part 77 use professional-conduct and licensure concepts for attorneys for the Government.

**Automatic-effect analogue:** The closest analogue identified at this stage is the Federal Vacancies Reform Act's function-and-duty model in 5 U.S.C. § 3348. That model can leave protected functions vacant and render unauthorized actions ineffective when acting service is not authorized. It is a better analogue for DOJ-009 than automatic removal from a Senate-confirmed executive office.

**Drafting changes made:** The issue page now states that DOJ-009 is primarily prophylactic and does not currently rest on a concrete identified example of a senior DOJ officer losing good standing while in office. The bill now frames the trigger as **duty disqualification and automatic temporary delegation** rather than automatic removal. It also states that the trigger does not by itself remove the covered officer from office except as otherwise provided by law.

**Issue-to-legislation alignment:** The issue page and bill remain aligned. Both now distinguish loss-of-good-standing consequences from pending complaints and both use a duty-devolution model rather than automatic removal.

**Score effect:** No score change. Proposal Quality Score remains 74/100 (Substantially Developed Draft), Adoption Score remains 4/12, Adoption Friction remains 68/100, and Rebaseline remains current. The change improves precision but does not resolve the larger T3 items: Appointments Clause doctrine, FVRA interaction, codification placement, prior-proposal research, professional-review input, public-support evidence, and implementation-burden evidence.

**Next audit need:** Run T3 readiness audit with specific attention to whether the duty-disqualification/devolution model avoids or reduces Appointments Clause, removal-power, and FVRA objections.

**Additional historical-practice question:** T3 should verify whether any covered office other than Solicitor General has historically been occupied by a non-attorney, a person not licensed and authorized to practice, or a person whose licensure status was materially unclear at the time of appointment or acting service. This should include Attorney General, Deputy Attorney General, Associate Attorney General, Assistant Attorney General, and relevant acting-service examples, using official biographies, Senate records, DOJ histories, and other

reliable sources where available.

## **2026-06-28 — T2 Development Audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed DOJ-009, the linked bill, prior audit findings, the Audit Dashboard, audit inventory, source inventory, the project framework, methodology scoring rules, and official public source leads for 28 U.S.C. chapter 31, 28 U.S.C. § 508, 28 U.S.C. §§ 530B-530C, 5 U.S.C. §§ 3345-3349d, DOJ professional-conduct regulations, and DOJ OPR/OIG implementation fit. It was a development audit, not a publication-ready legal opinion.

**Current-status and mootness check:** T2 found no reliable current source showing that DOJ-009 is moot as a standalone proposal. The issue is materially strengthened, not displaced, by existing 28 U.S.C. § 530C(c)(1), which already contains an attorney-licensure compensation limitation. That provision does not appear to supply DOJ-009's broader good-standing, disclosure, continuing-notification, discipline-review, acting-service, and temporary-delegation framework.

**Pending-judicial-vulnerability check:** T2 did not identify a pending case directly controlling whether Congress may impose this specific good-standing and disclosure rule on senior DOJ legal offices. The proposal remains Appointments Clause and separation-of-powers sensitive because it constrains qualifications and acting service for presidentially appointed or senior executive legal officers. T3 should perform a deeper doctrine review and should not treat this T2 check as constitutional validation.

**Existing-law fit:** T2 confirmed the prior blocker was properly resolved. The draft now uses a title 28 amendment package instead of a freestanding overlay. T2 further identified 28 U.S.C. § 530C(c)(1) as a relevant existing-law analogue and added a conforming provision clarifying that the compensation/licensure rule does not replace the broader proposed § 506A framework.

**Drafting changes made:** T2 tightened the definition of covered offices by removing acting titles from the list of statutory offices and applying the rule separately to persons serving in an acting capacity. T2 also adjusted disclosure phrasing from pre-nomination language to appointment, confirmation, and acting-designation language to reduce avoidable separation-of-powers friction while preserving Senate-facing disclosure.

**Functional analogues checked:** T2 identified at least three functional analogues: 28 U.S.C. § 530B and 28 C.F.R. part 77 for Government-attorney professional-conduct rules; 28 U.S.C. § 530C(c)(1) for attorney-licensure-linked compensation limits; and 28 U.S.C. § 508 plus the Federal Vacancies Reform Act for acting-service and succession mechanics. These analogues support the title 28 vehicle but do not eliminate the need for Appointments Clause and FVRA review.

**Issue-to-legislation alignment:** The issue page and bill are aligned at T2. Both now describe a title 28 amendment package covering senior DOJ statutory offices, acting service, good standing, disclosure, continuing notice, final professional discipline, temporary delegation, and anti-weaponization treatment of pending complaints.

**Budgetary-impact finding:** The existing budget classification remains appropriate at T2: administrative workload is possible; no new appropriation is specified. T3 should test whether bar-status verification, public notices, DAEO/OPR/OIG/OGE review duties, and records systems create source-backed workload or staffing implications.

**Component score:** Proposal Quality Score is 74/100 (Substantially Developed Draft). Components: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0.

**Score basis:** The score increased from 60 to 74 because the existing-law blocker was resolved, the bill now uses a more precise title 28 structure, § 530C(c)(1) was identified and integrated, acting-service wording was tightened, and source support improved. The score remains below Review Ready because T3 must still perform deeper constitutional analysis, prior-proposal and legislative-history research, professional-review planning, public-support and coalition analysis, and implementation-burden review.

**Adoption and friction finding:** Adoption Score remains 4/12 (Limited Adoption Basis). Adoption Friction increases to 68/100 (High Resistance) because the proposal constrains presidential selection and acting-service flexibility, may affect Senate tolerance for professionally disciplined nominees, and raises constitutional and politicized-bar-complaint objections, even though it can be framed as neutral professional-baseline legislation.

**Defects corrected during the audit:** Updated the issue page, linked bill, audit history, audit inventory, source inventory, and Audit Dashboard. Added source tracking for 28 U.S.C. § 530C(c)(1) and 28 C.F.R. part 77. Marked the rebaseline status current under rubric 2026-06-27.2.

**Next audit need:** Run T3 readiness audit. Prioritize Appointments Clause doctrine, FVRA and 28 U.S.C. § 508 interaction, whether proposed § 506A is the best codification location, Senate confirmation/disclosure practice, professional-association standards, whether covered offices other than Solicitor General have historically been occupied by non-attorneys or persons with unclear licensure status, any prior bills or analogous qualifications with sponsors and co-sponsors, implementation-burden evidence, public-support evidence, and whether external qualified review should be sought before further score advancement.

## **2026-06-28 — Existing-Law Redraft Authorization and Conversion**

**Audit status:** Existing-law redraft complete; T2 development audit pending



**Audit scope:** This entry records the user's authorization to resolve the T2 blocker by converting DOJ-009 from a freestanding qualifications bill into an existing-law amendment package. It updated the linked proposed legislation, issue page, audit inventory, and Audit Dashboard. It did not recalculate the Proposal Quality Score.

**Action taken:** The bill was redrafted to amend title 28, United States Code, rather than operate as a freestanding overlay. The draft now adds proposed 28 U.S.C. § 506A to chapter 31, conforms 28 U.S.C. § 508 for Attorney General succession and acting service, and adds a relationship provision to 28 U.S.C. § 530B for Government-attorney ethics. It also preserves acting-officer cross-references to the Federal Vacancies Reform Act.

**Reason for the conversion:** The T2 blocker review found that the project preference for existing-law amendments applies here because title 28 already contains the DOJ office structure, Attorney General succession, litigation-authority provisions, and attorney-ethics provision most closely related to the proposed repair.

**Issue-to-legislation alignment:** The issue page was updated to describe the vehicle as a title 28 DOJ amendment package. No substantive contradiction remains apparent at this stage, but T2 must verify that the issue-page remedy and proposed statutory text stay aligned after codification review.

**Score effect:** No score change. Proposal Quality Score remains 60/100 (Developed Draft), Rebaseline remains **hard-rebaseline-needed**, Adoption Score remains 4/12, Adoption Friction remains 66/100, and Required Electoral Environment remains **sixty-vote-senate**. The existing-law blocker is resolved, but the score should not be recalculated until the T2 development audit reviews the redrafted bill.

**Next audit need:** Run T2 development audit. Prioritize proposed section placement, 28 U.S.C. § 508 interaction, Federal Vacancies Reform Act interaction, Appointments Clause and Senate advice-and-consent sensitivity, OPR/OIG/OGE implementation fit, pending-complaint anti-weaponization, source-backed qualification analogues, and whether any additional conforming amendments are needed.

**Audit process feedback:** This entry confirms that the autonomous stop condition worked: the blocker was identified without making a structural legal-vehicle conversion until the user authorized it.

## **2026-06-28 — T2 Blocker Review**

**Audit status:** T2 blocked; human review needed for existing-law codification

**Audit scope:** This T2 blocker review reviewed DOJ-009, the linked bill, the official U.S. Code chapter for DOJ offices, 28 U.S.C. § 530B, acting-officer source leads, the DOJ OPR source lead, and the T1 unresolved items. It was intentionally limited once the legal-vehicle issue became dispositive under agent rules.

**Existing-law finding:** DOJ-009 should probably not remain a purely freestanding bill. The least-complex adequate vehicle appears to be a codification package that amends or adds provisions within 28 U.S.C. chapter 31, especially the sections governing the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, Assistant Attorneys General, attorney ethical standards for the Government under 28 U.S.C. § 530B, and related acting-officer provisions. The official U.S. Code text confirms that section 505 expressly uses a lawyer-qualification concept for the Solicitor General, while section 506's historical notes state that similar "learned in the law" language was omitted for Assistant Attorneys General as unnecessary and not required for the Attorney General, United States attorneys, or United States judges. That history strengthens the need for careful codification rather than a broad freestanding overlay.

**Human-review stop condition:** Agent rules prohibit autonomously converting a freestanding bill into amendments to existing law. Because the next meaningful T2 step is likely an existing-law redraft, this audit stops and records the blocker instead of revising the bill.

**Issue-to-legislation alignment:** No contradiction was found between the current issue page and linked bill. The blocker is not internal inconsistency; it is vehicle optimization under the project's preference for existing-law amendments where adequate.

**Budgetary-impact finding:** No change. Administrative workload is possible, but no new appropriation is specified. A later T2 redraft should test whether bar-status verification, OPR/OGE/OIG review, public notice, or reporting workflows require funded capacity.

**Score effect:** No score change. Proposal Quality Score remains 60/100 (Developed Draft), Rebaseline remains **hard-rebaseline-needed**, Adoption Score remains 4/12, Adoption Friction remains 66/100, and Required Electoral Environment remains **sixty-vote-senate**. The score should not be recalculated until the human-review vehicle decision is made.

**Defects corrected during the review:** Updated the issue-page audit status, audit history, audit inventory, source inventory, and Audit Dashboard to reflect the blocker. Added 28 U.S.C. § 530B as a source lead for later T2 work.

**Next audit need:** Human review should decide whether to authorize an existing-law redraft. If authorized, redraft DOJ-009 as amendments or additions to 28 U.S.C. chapter 31 and any necessary acting-officer provisions, then rerun the T2 development audit.

**Audit process feedback:** This blocker is a useful validation of the autonomous-agent guardrails. The agent could identify the probable existing-law vehicle, but should not make a structural legal-vehicle conversion without the user's authorization.

## **2026-06-28 — T1 Framework Check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope:** This T1 audit reviewed DOJ-009, the linked bill, the audit dashboard, audit inventory, source inventory, and governing framework/methodology. It checked visible page structure, metadata, issue-to-legislation link, Budgetary Impact Statement placement, basic current-status risk, source-inventory presence, existing-law fit at a threshold level, and initial enactment-pathway fields. It did not complete a T2 merits-level source verification, prior-proposal survey, Appointments Clause analysis, OPR/OIG/OGE integration review, Senate-confirmation practice review, or professional-association support review.

**Current-status and mootness check:** T1 found no obvious current law, judicial decision, regulation, or enacted reform that moots DOJ-009. The issue remains live because the baseline federal statutes for the Attorney General and senior DOJ legal officers do not clearly establish a uniform good-standing and professional-discipline eligibility rule for all covered offices.

**Existing-law fit:** The proposal should continue to be treated as federal legislation amending or supplementing the DOJ office statutes and acting-officer rules rather than as an internal DOJ policy. T2 should test the most precise amendment structure, including 28 U.S.C. §§ 503-506, the Federal Vacancies Reform Act, OPR authority, OIG authority, OGE ethics processes, and Senate-confirmation disclosure practice.

**Source work completed:** T1 upgraded the proposal survey's general DOJ-office statutory citation from a secondary LII reference to the official U.S. Code chapter page for 28 U.S.C. §§ 503-506. Existing source records for 5 U.S.C. §§ 3345 and 3349d were retained as acting-officer source leads. DOJ OPR's jurisdiction page was marked relevant to DOJ-009 for T2 review because the proposal relies on professional-misconduct and professional-responsibility concepts.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. Both frame the remedy around bar admission, good standing, disclosure, continuing notice, temporary delegation, final discipline, pending formal disciplinary charges, and protection against weaponized complaints.

**Budgetary-impact finding:** The budget statement remains adequate for T1: administrative workload is possible, but no new appropriation is specified. T2 should confirm whether verification systems, OPR/OGE/OIG review duties, or public reporting would require funded capacity.

**Enactment-pathway finding:** Required Electoral Environment is *sixty-vote-senate*; Pathway Viability is *plausible-after-wave*; Development Priority is *active*; Pathway Adjustment is *stage*. The proposal is legally legislative rather than constitutional, but likely requires ordinary federal legislation capable of overcoming Senate procedural obstacles.

**Adoption and friction finding:** Adoption Score is 4/12 (Limited Adoption Basis). Adoption Friction is 66/100 (High Resistance). The proposal can be framed as neutral professional-baseline legislation, but it constrains presidential nomination and acting-designation flexibility and may draw separation-of-powers, Appointments Clause, Senate prerogative, and politicized-bar-complaint objections. No proposal-specific polling, sponsor map, professional-association endorsement, or bipartisan legislative analogue was located during T1.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 60/100 (Developed Draft) pending T2. Rebaseline status remains *hard-rebaseline-needed* because the issue has not yet received a current-rubric merits score.

**Defects corrected during the audit:** Updated front matter, visible Proposal Scoring fields, initial adoption/friction/pathway fields, proposal survey source link, audit history, audit inventory, source inventory, and Audit Dashboard.

**Next audit need:** Run T2 development audit. Prioritize official DOJ office statutes, FVRA interaction, OPR/OIG/OGE authority, constitutional qualification limits for appointed officers, comparable federal legal-office qualification rules, Senate-confirmation disclosure practice, professional-association standards, source-backed prior proposal survey, and whether the bill should amend existing statutes rather than remain freestanding.

**Audit process feedback:** T1 was sufficient to route DOJ-009 and remove unassessed fields, but it should not be treated as a substantive quality advancement. DOJ-009 is now prepared for a real T2 merits audit.

The initial inventory-level audit record is preserved below for chronology.

## **2026-06-24 — Initial framework and inventory audit**

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

## A-02 — Election Integrity

### Generalized Institutional Concern

The election system remains vulnerable to federal executive interference, delegitimization of lawful results, pressure on election officials, disruption of certification, districting distortions, structural distortions in presidential selection, opaque or disproportionate political spending, candidate gatekeeping, and efforts to obstruct the peaceful transfer of power.

### Issues

- ELEC-001 — Federal Executive Interference with State and Local Election Administration
- ELEC-002 — Pressure on Certification and Canvassing Officials
- ELEC-003 — Insufficient Protection for Election Workers and Officials
- ELEC-004 — Abuse of Election Litigation and Investigatory Mechanisms
- ELEC-005 — Weak Safeguards Against False Presidential Result-Transmission Documents
- ELEC-006 — Insufficiently Automatic Presidential-Transition Procedures
- ELEC-007 — Improper Federal-Force Presence in Election Administration
- ELEC-008 — Accountability for Coordinated Federal Election-Subversion Schemes
- ELEC-009 — Electoral College Structure and National Popular Vote
- ELEC-010 — Mail-In Voting Access, Reliability, and Trust
- ELEC-011 — Algorithmic Redistricting Baseline and Representation Safeguards
- ELEC-012 — Campaign Finance, Dark Money, and Corporate Political Spending \_(status: Candidate; priority: High)\_
- ELEC-013 — Electoral Competition, Ballot Access, and Debate Gatekeeping

### Issue Boundaries

- **ELEC-001** concerns civilian executive interference through presidential authority, agencies, investigations, funding, regulation, intelligence, administrative process, or official influence.
- **ELEC-002** concerns the vulnerability of state and local canvassing and certification mechanisms to refusal, deadlock, delay, or unauthorized discretion, regardless of the source of pressure or motive.
- **ELEC-003** concerns politically neutral protection of election personnel and continuity of election operations, with state administration and only narrowly limited federal financial support.
- **ELEC-004** concerns abuse of election litigation, investigatory demands, subpoenas, audit requests, and extraordinary proceedings, including later-discovered improper-purpose coordination.
- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal receipt, preservation, recognition, or electoral-count channels.
- **ELEC-006** concerns continuity of government, transition automaticity, and narrow statutory backstops for presidential-transition access, agreements, agency cooperation, and enforcement.
- **ELEC-007** concerns improper federal-force presence, emergency response, and election-material custody safeguards around election administration.
- **ELEC-008** concerns coordinated federal election-subversion schemes using independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result.
- **ELEC-009** concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system.
- **ELEC-010** concerns the vulnerability of mail-in and absentee voting systems to unequal access, late or unreliable ballot delivery, inconsistent cure and signature rules, politicized postal or administrative disruption, chain-of-custody attacks, and unsupported delegitimization of lawful mail ballots.
- **ELEC-011** concerns redistricting, vote dilution, majority-minority representation, racial-gerrymandering doctrine, state voting-rights acts, independent redistricting institutions, mid-decade redistricting safeguards, and algorithmic first-draft map generation. HOR-009 is admitted here after *Louisiana v. Callais*, and ELEC-011 now uses model State legislation as the least-complex path while preserving reserve constitutional amendment and Federal enabling-legislation vehicles. See ELEC-011.
- ELEC-012 concerns corporate, union, nonprofit, LLC, super PAC, and dark-money election influence; disclosure and coordination rules; small-donor or public-financing models; state corporate-law strategies; constitutional-amendment options; and post-*Citizens*

*United / SpeechNow* remedies. HOR-013 is admitted here as a distinct candidate because campaign-finance integrity is not owned by the existing election proposals. Hawaii's first-in-the-nation corporate-powers law, reported by the Associated Press as signed by Governor Josh Green and set to take effect July 1, 2027, is a high-salience source-development lead rather than a settled model.

- **ELEC-013** concerns election-process rules that entrench two-party control, suppress nonstandard candidacies, or narrow voter choice through ballot-access burdens, debate-access rules, polling thresholds, primary structures, plurality-winner incentives, spoiler effects, fusion bans, and weak majority-legitimacy mechanisms. HOR-014 is admitted here as a broader candidate after review of ranked-choice voting and related competition reforms. Ranked-choice voting is one remedy model, but the issue should also source-develop debate participation rules, FEC candidate-debate regulations, ballot access, open or nonpartisan primaries, runoffs, fusion voting, proportional models where relevant, and administrability concerns. See ELEC-013.

## Notes

ELEC-001, ELEC-002, ELEC-003, ELEC-004, ELEC-005, ELEC-006, ELEC-007, ELEC-008, ELEC-009, ELEC-010, and ELEC-011 are developed. ELEC-012 and ELEC-013 have initial issue pages but remain candidate/source-development proposals pending T1 check and legislation drafting.

# ELEC-001 — Federal Executive Interference with State and Local Election Administration

## Issue Snapshot

**Problem:** Federal power can pressure state election administration.

**Repair:** Ban result-directed executive election interference.

**Vehicle:** Hatch Act package (draft).

## Institutional Anomaly

The President and other federal executive officials possess substantial investigative, prosecutorial, regulatory, funding, intelligence, administrative, and communicative power but possess no general constitutional authority to direct state or local election administration. Existing law does not provide a sufficiently precise, comprehensive, and rapidly enforceable prohibition against using federal executive office to obtain, prevent, alter, or secure a preferred electoral outcome through state or local election functions.

## Manifestations of the Failure

### *Georgia result-pressure call*

On January 2, 2021, President Trump called Georgia Secretary of State Brad Raffensperger after Georgia had certified its presidential election result and completed multiple reviews of the vote. President Trump asked Raffensperger to “find 11,780 votes,” the number necessary to reverse President Trump’s certified defeat, and invoked possible criminal consequences while urging state officials to act. See the U.S. House Select Committee to Investigate the January 6th Attack, Final Report.

The institutional significance does not depend on a final criminal judgment:

A sitting President used the authority and influence of federal executive office to seek a candidate-specific alteration of a state’s lawful election determination.

The episode demonstrates that a President can exert federal executive influence directly upon a state election official without issuing a formal order, deploying an agency, or completing the requested alteration. Existing remedies did not supply an immediate, specialized mechanism to stop the pressure, preserve records, transfer investigation outside the presidential chain of command, or impose consequences tailored to misuse of federal office against a state election function.

### *Federal citizenship-list and voter-data architecture*

In 2026, Executive Order 14399 directed DHS, USCIS, SSA, DOJ, and USPS toward a federal election-control architecture involving state citizenship lists, federal database matching, voter-data transmission, election-fraud investigation priorities, and mail-ballot restrictions. The order was published as 91 Fed. Reg. 17125 and described federal compilation and transmission of state-specific citizenship lists derived from federal records.

Federal litigation then produced decisions blocking or rejecting key parts of that architecture. Public reporting described a federal court blocking an order aimed at creating a federal voter list and restricting mail-ballot distribution, a Sixth Circuit ruling against a demand for sensitive Michigan voter data, and dismissal of a DOJ lawsuit seeking detailed Maryland voter data. See Associated Press, federal voter-list injunction, Michigan voter-data appeal, and Maryland voter-data lawsuit.

The institutional significance is that federal executive power can be converted from case-specific enforcement into a centralized election-administration architecture. Even when courts block implementation, state and local officials must respond to federal data demands, reconcile federal database claims with state registration law, protect sensitive voter information, and litigate under election-time pressure.

## Resulting Damage

Federal executive interference can distort or delay lawful election administration, coerce state and local officials, undermine federalism, convert federal law-enforcement or administrative powers into electoral leverage, chill resistance to unlawful demands, and damage public confidence that election outcomes are determined by lawful votes rather than federal executive pressure.

The harm exists even when the target refuses and the result remains unchanged. An unsuccessful attempt may still burden officials, consume public resources, generate threats or retaliation, and normalize future misuse of federal office.

## Underlying Weakness

The Constitution assigns states primary responsibility for administering elections under state law, subject to federal constitutional protections and valid Acts of Congress. Article I, Section 4 gives Congress broad authority over congressional-election regulation; Article II assigns each state authority over the manner of appointing presidential electors, while reserving specified timing functions to Congress. Neither provision gives the President a general supervisory power over state election administration.

Existing federal law addresses portions of the problem but not the complete institutional defect:

- 5 U.S.C. § 7323 prohibits covered federal employees from using official authority or influence to interfere with or affect an election, but the Hatch Act excludes the President and Vice President from the relevant definition of employee.

- 18 U.S.C. § 595 criminalizes specified official interference with federal elections but is narrower in coverage, remedies, and institutional design.
- 18 U.S.C. §§ 241 and 242 protect federal voting rights but require proof of distinct statutory elements and do not directly create rapid protection for a state election authority facing federal executive pressure.
- obstruction, records, civil-rights, and election statutes may apply to particular conduct but do not establish a unified prohibition, mandatory record, expedited state-initiated remedy, and independent referral process.

The central gap is therefore not the absence of every possible legal prohibition. It is the absence of a coherent rule expressly covering the President and senior executive officials, defining prohibited result-directed interference, preserving legitimate federal functions, and providing relief before the election process becomes irreversible.

## Proposal Survey

The Hatch Act already prohibits many federal employees from using official authority to interfere with or affect an election, but it excludes the President and Vice President from the relevant employee definition. See 5 U.S.C. §§ 7321-7326. Criminal law also contains narrower election-interference provisions. See 18 U.S.C. § 595.

The Office of Special Counsel's Federal Employee Hatch Act information confirms the same baseline for federal executive employees: except for the President and Vice President, federal civilian executive-branch employees are covered, and covered employees may not use official authority or influence to interfere with or affect an election result. That source supports the Hatch Act anchor but also shows why ELEC-001 needs a specially bounded extension rather than wholesale application of all Hatch Act restrictions to the President and Vice President.

Civil-rights and voting-rights statutes may reach some coercive conduct, but they do not create a complete state-initiated emergency remedy for misuse of federal executive power. ELEC-001 therefore extends the Hatch Act principle while adding civil and criminal enforcement suited to state election functions.

## Least-Complex Adequate Remedy

Amend the Hatch Act rather than create an entirely separate primary regime. The amendment should:

1. extend the prohibition on use of official authority or influence to the President and Vice President for this specific category of conduct without subjecting them to every Hatch Act restriction on political activity;
2. establish a separately named Federal Executive Election Noninterference provision within 5 U.S.C. chapter 73;
3. define state and local election functions, federal governmental authority, preferred electoral outcome, and specifically prohibited conduct;
4. require contemporaneous records and preservation of covered contacts;
5. authorize Office of Special Counsel investigation and ordinary Hatch Act administrative sanctions for covered subordinate officials;
6. provide anti-retaliation protections and referral to Inspectors General;
7. create a companion civil-enforcement title authorizing states and responsible election authorities to seek expedited declaratory, injunctive, preservation, and restorative relief; and
8. enact a companion criminal provision, preferably 18 U.S.C. § 595A, for knowing, intentional, coercive, or result-directed violations.

Where the President, Vice President, Attorney General, or another senior executive official creates a disabling investigative conflict, the matter should be referable to the independent investigative-counsel mechanism developed under DOJ-007. Criminal enforcement against presidential official acts remains subject to current immunity doctrine unless superseded by IMM-001.

This package is less complex than a wholly freestanding election-administration code because it extends an existing federal principle, uses established OSC and MSPB structures, and regulates federal executive actors rather than the internal organization of state elections.

## Repair and Prevention

Federal law should prohibit a covered executive official from knowingly using, directing, threatening, authorizing, requesting, or causing the use of official authority or influence derived from federal office to interfere with a state or local election function for the purpose of effectuating, preventing, altering, or securing a preferred outcome for an identified candidate, political party, slate of electors, ballot position, or election result.

The general prohibition should be paired with objectively defined covered acts, including efforts to:

1. add, exclude, alter, manufacture, destroy, suppress, count, or refuse to count votes contrary to law;
2. state, transmit, canvass, recount, or certify a materially false result;
3. depart from an applicable election statute, final judicial order, or lawfully completed administrative determination;

4. initiate or manipulate a federal investigation, prosecution, audit, regulatory action, funding action, intelligence activity, or administrative process without a good-faith lawful basis and for the prohibited electoral purpose;
5. obtain ballots, voting equipment, voter records, election data, citizenship-list data, or election materials without lawful authority;
6. procure a materially false official representation concerning fraud, vote totals, certification, or election results;
7. threaten or impose adverse federal action to obtain an election-related act; or
8. retaliate against an official who refuses an unlawful or unauthorized election-related request.

A completed alteration of the election result should not be required. Attempt, direction, authorization, conspiracy, and knowing material assistance should be covered.

The statute must preserve ordinary political advocacy, public criticism, lawful litigation, good-faith enforcement of federal law, compliance with judicial process, authorized voting-rights and election-crime enforcement, foreign-interference response, and voluntary technical or cybersecurity assistance requested by lawful state authorities.

## Proposed Legislation

- Federal Executive Election Noninterference Act

## Enforcement Architecture

The eventual legislation should provide layered enforcement:

- immediate three-judge-court review and emergency injunctive relief;
- mandatory contact records, preservation orders, and narrow authorization for state election officials to record covered official communications;
- OSC, OIG, Public Integrity, and DOJ-007 referral according to jurisdiction and conflict;
- administrative discipline and disqualification from delegated election-related functions for subordinate officials;
- substantial civil penalties and reimbursement of state or local response costs;
- calibrated criminal penalties distinguishing attempted pressure, coercive use of federal powers, and completed alteration or falsification; and
- mandatory congressional reporting for substantiated violations involving senior officials.

Courts and investigators should not determine the winner of an election or substitute their policy judgment for lawful state election administration. Their role is to prevent and remedy misuse of federal executive authority.

## Relationship to Adjacent Proposals

ELEC-001 concerns civilian executive interference through presidential authority, agencies, investigations, funding, regulation, intelligence, administrative process, or official influence.

ELEC-007 should be narrowed to military, National Guard, or armed federal-force intervention in polling, counting, canvassing, recount, certification, or custody of election materials.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 77 / 100 (Review Ready)  
**Adoption Score:** 5 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 88 / 100 (Extreme Resistance)  
**Required Electoral Environment:** sixty-vote-senate  
**Development Priority:** active

**Audit Status:** T4 publication-ready audit complete; external validation pending  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** ELEC-001 audit history

## Annotation

**Basis and Evidence.** The Hatch Act already embodies the principle that federal employees may not use official authority or influence to interfere with or affect an election. Its exclusion of the President and Vice President and its employment-centered remedial structure leave the principal conduct identified here inadequately covered. The call between President Trump and Raffensperger is a representative manifestation because the requested numerical alteration corresponded to the margin necessary to reverse the state's certified result. HOR-001 was integrated into this issue because the federal citizenship-list and voter-data architecture is a later manifestation of the same core defect: federal executive authority being used to control, pressure, or restructure state election administration outside ordinary constitutional channels.

**Qualification.** Federal executive officials retain lawful responsibilities concerning voting rights, election crimes, campaign finance, foreign interference, cybersecurity, federal judicial process, and other functions assigned by the Constitution or Congress. The proposal regulates misuse of federal office, not political speech, criticism, litigation, or good-faith execution of federal law. The term "partisan" is deliberately not used as an operative limitation because prohibited conduct may be personal, candidate-specific, retaliatory, factional, or otherwise result-directed without fitting a narrow partisan classification.

**Remedial Alternatives and Constraints.** A wholly freestanding statute would permit cleaner organization but would duplicate the Hatch Act's established official-authority principle and enforcement institutions. Amending only the Hatch Act would remain inadequate because OSC-MSPB proceedings cannot supply rapid state-initiated injunctions and should not convert every administrative violation into a felony. The least-complex adequate solution is therefore a Hatch Act amendment with companion civil and criminal titles.

**Quality Score.** The 77/100 score reflects a Review Ready draft suitable for knowledgeable external critique. T4 verified the Hatch Act anchor, official OSC baseline, companion 18 U.S.C. § 595A concept, adjacent rights-statute comparators, three-judge-court source, current EO 14399 source lead, issue-to-legislation alignment, budget caveat, and adoption/friction posture. The score remains below publication-ready because primary court orders for the 2026 litigation, fuller prior-proposal research, state-plaintiff standing analysis, criminal-law narrowing, budgetary-source development, and external election-law review remain incomplete.

**Adoption Score.** The 5/12 score is limited. ELEC-001 has strong institutional salience, an existing-law anchor in the Hatch Act, and neutral election-integrity framing, but T1 did not identify proposal-specific polling, active sponsors, a bipartisan prior bill, state attorney-general coalition support, or external election-law validation for the full mechanism.

**Adoption Friction.** The 88/100 score is Extreme Resistance. The proposal would regulate presidential and senior executive conduct in election administration, create state-initiated emergency litigation, add criminal exposure, and interact with presidential-immunity doctrine, making organized partisan, executive-power, and constitutional opposition highly likely.

**Required Electoral Environment.** The required environment is *sixty-vote-senate*, with *Pathway Viability plausible-after-wave* and *Pathway Adjustment stage*. The bill is ordinary federal legislation and does not require constitutional amendment, but adoption likely requires a Senate environment capable of overcoming filibuster constraints or an unusually strong post-election-abuse mandate.

**Development Priority.** The priority is *active* because the proposal addresses a high-salience electoral-institution vulnerability, has a concrete draft, and can be substantially improved through T2 source development, existing-law fit review, and prior-proposal research.



# ELEC-001 — Audit History

This file preserves the full audit history for ELEC-001. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Audit scope:** This T4 audit reviewed ELEC-001, the linked bill, Hatch Act statutory sources, official OSC Hatch Act source support, 18 U.S.C. §§ 241-242 and 595, 28 U.S.C. § 2284, EO 14399 source leads, AP current-status reporting, issue-to-legislation alignment, budget posture, adoption posture, and publication blockers. It did not locate primary court orders for all 2026 EO 14399 litigation or complete external election-law review.

**Current-status and mootness check:** No current law, judicial decision, or enacted reform located during T4 moots ELEC-001. Existing reporting that courts blocked or rejected major components of the EO 14399 election-control architecture does not make the proposal obsolete; it shows that courts can respond to individual episodes, while the project proposal addresses prospective misuse of federal executive authority against state and local election functions.

**Source and litigation finding:** Federal Register EO 14399 remains the primary source for the executive architecture. AP reporting remains adequate as a current-status source lead for the federal voter-list injunction, Michigan voter-data appeal, and Maryland voter-data lawsuit at internal review stage. T4 did not obtain primary court orders or docket materials sufficient for publication-ready reliance.

**Legal-fit finding:** The proposal is Review Ready because it is candidly anchored in existing Hatch Act and criminal-law comparators and preserves lawful federal voting-rights, cybersecurity, foreign-interference, and election-crime functions. T4 still flags state standing, direct relief against the President, subordinate-official relief, Purcell-style timing constraints, criminal-law fair notice, presidential-immunity limits, and three-judge-court fit as external-review needs.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. The issue and bill remain aligned on Hatch Act extension, limited application to the President and Vice President only for result-directed election interference, contact records, state-initiated civil enforcement, companion criminal penalties, lawful-function exceptions, DOJ-007 referral, and IMM-001 coordination.

**Budgetary-impact finding:** The current budget classification remains acceptable for internal review: administrative workload is possible, and no new appropriation is specified. Publication-ready work should test whether OSC, OIG, Public Integrity, court, record-preservation, congressional-reporting, and state-reimbursement features require budget-authority language.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 88/100. T4 did not locate proposal-specific polling, active sponsor coalition, bipartisan prior-proposal analogue, state election-official endorsement, or external validator support sufficient to raise adoption credit.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 77/100 (Review Ready).

**Score effect:** Score increased from 74 to 77 because T4 confirmed the current-source posture, strengthened the legal-fit analysis, verified proposal-to-legislation alignment, and clarified publication blockers. The proposal is Review Ready for knowledgeable external critique but not publication-ready or lawmaker-circulation-ready.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Quality Score annotation, audit history, audit inventory, and Audit Dashboard. No legislative text was changed during T4.

**Publication blockers:** Obtain primary court orders and docket materials for the EO 14399 injunction, Michigan voter-data appeal, and Maryland voter-data lawsuit; complete Congress.gov prior-proposal research; obtain election-law or legislative-counsel review; test state standing and equitable relief; narrow criminal-law language if necessary; test direct presidential-relief limits; verify three-judge-court fit; and develop budget-authority support if needed.

**Audit process feedback:** ELEC-001 is a good example of a proposal that can be Review Ready without every current-event source being publication-grade. T4 should keep unresolved court-record work visible rather than delaying all advancement until every docket source is located.

### 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication audit and external review pending

**Audit scope:** This T3 audit reviewed ELEC-001, the linked bill, Hatch Act statutory sources, official OSC Hatch Act guidance, 18 U.S.C. §§ 241-242 and 595, 28 U.S.C. § 2284, EO 14399 source leads, issue-to-legislation alignment, adoption posture, and readiness blockers. It did not complete publication-grade court-record retrieval for EO 14399 litigation, direct prior-proposal research, or external election-law review.

**Current-status and mootness check:** No current law, judicial decision, or enacted reform located during T3 moots ELEC-001. The 2026 federal voter-list and voter-data litigation remains a source-development task rather than a reason to pause the proposal.

**Source work completed:** Added the Office of Special Counsel's Federal Employee Hatch Act information as an official source supporting the ordinary Hatch Act baseline: most federal civilian executive-branch employees are covered, the President and Vice President are excluded from ordinary employee coverage, and covered employees may not use official authority or influence to interfere with or affect an election result.

**Legal-fit finding:** The Hatch Act anchor is stronger after T3 because the proposal targets a known gap in ordinary federal-employee coverage rather than inventing a new principle. The draft still needs T4 review of presidential-immunity constraints, direct relief against the President, state standing, three-judge-court fit, criminal-law fair notice, and the relationship between lawful federal election enforcement and prohibited result-directed pressure.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. Both remain aligned on a Hatch Act extension, companion civil remedies, companion criminal penalties, record preservation, lawful-function exceptions, DOJ-007 referral where conflicts exist, and IMM-001 coordination where presidential-immunity doctrine limits prosecution.

**Budgetary-impact finding:** No change. Administrative workload is possible, but no new appropriation is specified. T4 should test whether OSC, IG, court, reporting, and state-reimbursement features require budget-authority language.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 88/100. T3 strengthened institutional framing but did not locate proposal-specific polling, active sponsors, a bipartisan prior bill, state attorney-general support, or external election-law validation.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 4/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 74/100 (Substantially Developed Draft).

**Score effect:** Score increased from 70 to 74 because T3 added official OSC support for the Hatch Act anchor, improved the proposal survey, confirmed issue-to-legislation alignment, and sharpened the remaining legal-fit and publication blockers. The score remains below Review Ready because T4-level primary litigation records, direct prior-proposal research, external review, and remedy narrowing remain incomplete.

**Defects corrected during the audit:** Added OSC source support to the Proposal Survey, updated the Quality Score annotation, added the OSC source row, and synchronized issue metadata, audit inventory, and Audit Dashboard.

**Next audit need:** Run T4 publication-ready audit and external-review preparation. Prioritize primary EO 14399 litigation records, Congress.gov prior-proposal research, standing and equitable-remedy analysis, presidential-immunity and official-act constraints, criminal-law narrowing, three-judge-court fit, budget-authority implications, and external election-law review.

**Audit process feedback:** T3 usefully improved the official Hatch Act foundation, but the next audit should not spend much additional time on that settled anchor. T4 should focus on the harder remedial and constitutional questions.

## **2026-06-28 — T2 Development Audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed ELEC-001, the linked bill, existing source records, Hatch Act source structure, 18 U.S.C. § 595, 18 U.S.C. §§ 241-242, three-judge-court authority, issue-to-legislation alignment, budget posture, adoption posture, and current-rubric scoring. It did not complete T3-level court-record verification for EO 14399 litigation, prior-proposal research, state-plaintiff standing analysis, OSC/MSPB implementation detail, or external election-law review.

**Existing-law and prior-model finding:** ELEC-001 correctly starts from existing law rather than creating a wholly freestanding election-administration code. The Hatch Act supplies the official-authority principle; 18 U.S.C. § 595 supplies a narrower criminal comparator; 18 U.S.C. §§ 241-242 supply adjacent voting-rights and rights-under-color-of-law comparators; and 28 U.S.C. § 2284 supplies an existing three-judge-court mechanism. T2 did not locate a direct prior proposal matching the full Hatch Act plus civil and criminal architecture.

**Source work completed:** Added official U.S. Code source rows for 18 U.S.C. §§ 241-242 and 28 U.S.C. § 2284. T1 had already added the January 6th Committee Final Report and 18 U.S.C. § 595 source row and upgraded the Hatch Act source. T3 should add primary court records or orders for the 2026 EO 14399 litigation currently supported mainly by AP reporting.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. The bill implements the issue's least-complex remedy by amending the Hatch Act, adding record-preservation duties, creating state-initiated emergency civil enforcement, adding a companion 18 U.S.C. § 595A criminal provision, and preserving lawful federal election, voting-rights, foreign-interference, cybersecurity, and court-process functions.

**Legal-fit finding:** The draft is legally plausible at T2 but needs narrowing review. The civil remedy must be tested against standing, sovereign immunity, equitable relief against subordinate officials, direct presidential-relief limits, Purcell-style election-timing concerns, and three-judge-court fit. The criminal provision must be tested against presidential immunity, intent language, lawful-function defenses, overlap with 18 U.S.C. §§ 241, 242, and 595, and fair-notice concerns.

**Budgetary-impact finding:** Administrative workload remains possible, and no new appropriation is specified. T3 should test whether OSC, OIG, Public Integrity, three-judge-court, record-preservation, state-cost reimbursement, and congressional-reporting features require budget authority or source-backed cost caveats.

**Adoption and friction finding:** Adoption Score remains 5/12 (Limited Adoption Basis). Adoption Friction remains 88/100 (Extreme Resistance). The proposal has strong institutional salience and a neutral election-integrity frame, but T2 did not identify proposal-specific polling, sponsor coalition, direct bipartisan prior bill, state attorney-general support, or external validation.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 4/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 70/100 (Substantially Developed Draft).

**Score effect:** Score increased from 60 to 70 because T2 completed the first current-rubric component rebaseline, confirmed the existing-law Hatch Act vehicle, added adjacent statutory comparators, confirmed issue-to-legislation alignment, and identified the principal legal and implementation risks for T3.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, audit history, source inventory, audit inventory, and Audit Dashboard.

**Next audit need:** Run T3 readiness audit. Prioritize primary EO 14399 litigation records, OSC/MSPB Hatch Act enforcement materials, Congress.gov prior-proposal research, state-plaintiff standing and relief analysis, presidential-immunity analysis, criminal-law narrowing, and budgetary-impact source development.

**Audit process feedback:** T2 was useful because it separated confirmed structure from unresolved publication questions. Future ELEC-001 work should avoid spending T3 time re-proving the Hatch Act anchor and instead focus on court records, remedy scope, and criminal/civil narrowing.

## **2026-06-28 — T1 Framework Check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope:** This T1 audit reviewed ELEC-001, the linked bill, the audit dashboard, audit inventory, source inventory, and governing framework/methodology. It checked visible page structure, metadata, issue-to-legislation link, Budgetary Impact Statement placement, source-inventory presence, basic current-status risk, initial existing-law fit, and enactment-pathway fields. It did not complete T2 merits-level source verification, prior-proposal survey, election-law doctrine review, presidential-immunity analysis, state-plaintiff standing analysis, or criminal-enforcement drafting review.

**Current-status and mootness check:** T1 found no obvious current law, judicial decision, or enacted reform that moots ELEC-001. The federal executive election-control examples and related litigation make the issue live rather than obsolete.

**Existing-law fit:** The current bill follows the project's statute-first preference by amending the Hatch Act and adding companion civil and criminal provisions rather than creating a wholly separate primary regime. T2 should test whether the Hatch Act placement, proposed 5 U.S.C. §§ 7323A-7323B, companion 18 U.S.C. § 595A, three-judge-court mechanism, and state-initiated civil action fit existing law and doctrine.

**Source work completed:** T1 replaced the issue page's LII Hatch Act and 18 U.S.C. § 595 links with official U.S. Code links, marked the LII rows as superseded for active use, added a primary 18 U.S.C. § 595 source row, and added the January 6th Committee Final Report as the source lead for the Georgia result-pressure manifestation. Existing source rows for EO 14399 and related Associated Press reporting remain current source leads for the 2026 federal voter-data architecture.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. Both use a Hatch Act amendment plus companion civil and criminal enforcement design, preserve lawful federal election-related functions, and coordinate with DOJ-007 and IMM-001 where presidential conflicts or immunity doctrine arise.

**Budgetary-impact finding:** The budget statement remains adequate for T1: administrative workload is possible, but no new appropriation is specified. T2 should test whether OSC, OIG, three-judge-court, preservation, reporting, or state reimbursement features require budget-authority language.

**Enactment-pathway finding:** Required Electoral Environment is *sixty-vote-senate*; Pathway Viability is *plausible-after-wave*; Development Priority is *active*; Pathway Adjustment is *stage*. The proposal is ordinary federal legislation but would likely need a Senate environment capable of overcoming filibuster constraints or an unusually strong post-election-abuse mandate.

**Adoption and friction finding:** Adoption Score is 5/12 (Limited Adoption Basis). Adoption Friction is 88/100 (Extreme Resistance). The proposal has strong public-salience and election-integrity framing, but T1 did not identify proposal-specific polling, active sponsors, a bipartisan prior bill, state attorney-general coalition support, or external election-law validation for the full mechanism. Resistance is extreme because the bill regulates presidential and senior executive conduct, creates state-initiated emergency litigation, adds criminal exposure, and intersects with presidential-immunity doctrine.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 60/100 (Developed Draft) pending T2. Rebaseline status remains *hard-rebaseline-needed* because the issue has not yet received a current-rubric merits score.

**Defects corrected during the audit:** Updated front matter, visible Proposal Scoring fields, initial adoption/friction/pathway fields, nearby source citation for the Georgia call manifestation, Proposal Survey legal source links, audit history, audit inventory, source inventory, and Audit Dashboard.

**Next audit need:** Run T2 development audit. Prioritize primary court records for EO 14399 litigation, official Hatch Act and OSC/MSPB materials, 18 U.S.C. § 595 and adjacent election-crime statutes, state-plaintiff standing and remedy design, presidential-immunity constraints after *Trump v. United States*, prior legislative proposals on election subversion or federal official coercion, and whether civil/criminal provisions should be narrowed or staged.

**Audit process feedback:** T1 was sufficient to replace unassessed routing fields and improve source hygiene, but it should not be treated as a substantive quality advancement. ELEC-001 is ready for a real T2 merits audit.

The initial inventory-level audit record is preserved below for chronology.

### **2026-06-25 — *Horizon integration decision***

**Audit status:** HOR-012 integrated as source-strengthening manifestation; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** HOR-012 was integrated into ELEC-001 because EO 14399 and related litigation reinforce the existing federal executive election-control manifestation. Score unchanged because this was source-development and tracking cleanup, not a proposal-quality audit.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits; source-develop the injunction/order, appeal posture, state-plaintiff briefing, and federal voter-data architecture.

## ELEC-002 — Pressure on Certification and Canvassing Officials

### Issue Snapshot

**Problem:** Certifiers can delay or refuse ministerial duties.

**Repair:** Mandate certification and automatic substitution.

**Vehicle:** Model state act (draft).

### Institutional Anomaly

State election law does not always provide sufficiently clear ministerial certification duties, fixed deadlines, automatic substitution, and immediate judicial enforcement when a designated state or local canvassing or certification official refuses, delays, deadlocks, or exceeds the lawful scope of the certification function.

The issue is directed principally at the design and conduct of state and local certification bodies, not at federal officials who pressure them. Federal executive interference is addressed separately in ELEC-001.

### Manifestations of the Failure

#### *Wayne County, Michigan — 2020*

On November 17, 2020, the four-member Wayne County Board of Canvassers initially deadlocked along party lines over certification of the county's general-election results. The board later voted unanimously to certify. Two members subsequently sought to rescind their votes, although Michigan officials stated that no legal mechanism existed to undo the completed certification. See Associated Press, *Tape reveals Donald Trump pressured Michigan officials not to certify 2020 vote*.

This episode demonstrated that a small canvassing body could temporarily place the certification of a large jurisdiction at risk even after ordinary tabulation had been completed.

#### *Otero County, New Mexico — 2022*

On June 13, 2022, the Otero County Commission refused to certify the county's primary-election results based on generalized concerns about voting machines rather than a demonstrated defect in the canvass. The New Mexico Secretary of State sought mandamus, and the New Mexico Supreme Court ordered certification. A majority ultimately complied, while one commissioner continued to refuse. See Axios, *New Mexico Supreme Court orders GOP-led commission to certify primary vote*.

This episode demonstrated the need for a rule that generalized suspicion, intuition, or matters assigned to another review process do not authorize a certifying official to withhold a ministerial certification.

#### *Cochise County, Arizona — 2022*

Cochise County supervisors failed to certify the 2022 general-election canvass by the statutory deadline while raising objections concerning voting-machine certification. A state court ordered the board to perform its legal duty, and the county certified after the order. One supervisor later pleaded guilty to a misdemeanor offense for failure or refusal to perform an election duty, and litigation concerning another supervisor confirmed that certification was an administrative rather than discretionary legislative act. See Associated Press, *Two county officials in Arizona plead not guilty to charges for delaying 2022 election certification*, and Axios Phoenix, *Cochise Supervisor Judd takes plea deal in case over delayed 2022 election certification*.

This episode demonstrated the need for automatic substitution and immediate enforcement so statewide certification does not depend upon emergency litigation against local officials.

#### *Fulton County, Georgia — 2024*

A Fulton County election-board member sought a judicial declaration that local certifying officials possessed discretion to refuse certification based on perceived error or fraud. A Georgia court rejected that position and held that certification was mandatory, explaining that fraud concerns could be referred to appropriate authorities but could not be used to convert certifiers into investigators, prosecutors, judges, and juries. See Axios, *Georgia counties must certify election results, judge rules*, and Associated Press, *Republican election official in crucial Georgia appeals order saying she must certify results*.

This episode demonstrated the need to separate certification from investigation and election-contest adjudication expressly in statutory text.

### Resulting Damage

Refusal, deadlock, or unauthorized delay can disenfranchise an entire jurisdiction, disrupt statewide deadlines, interfere with recounts and election contests, create leverage for alternate-electoral schemes, transfer electoral power from voters to low-visibility officials, consume public resources, and amplify misinformation even when courts eventually compel certification.

### Underlying Weakness

Certification law often assumes that officials will perform their duties without expressly addressing strategic nonperformance. Existing provisions may require certification but fail to provide one or more of the following:

- a precise statement that certification is ministerial;
- a narrow definition of what defects may temporarily justify noncertification;
- automatic substitution upon refusal, deadlock, incapacity, or missed deadline;
- immediate mandamus jurisdiction;
- tolling or preservation of downstream deadlines;
- removal from the affected certification matter;
- anti-retaliation protection for officials who perform the duty; and
- consequences calibrated to knowing refusal or falsification.

## Proposal Survey

States have begun clarifying certification duties through litigation and statutory practice, while Congress addressed presidential certificate procedures through the Electoral Count Reform and Presidential Transition Improvement Act of 2022. See Pub. L. No. 117-328, div. P. Those federal reforms reduced some electoral-count vulnerabilities but did not comprehensively redesign local and state certification bodies.

Common remedial models include mandamus, ministerial-duty statutes, automatic substitution, expedited judicial review, and penalties for refusal or falsification. ELEC-002 selects model state legislation because state law creates most canvassing and certification offices and can specify the correct substitute official or court.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is model state legislation rather than comprehensive federal regulation. States create and administer the relevant county and state certification offices and are best positioned to specify the lawful successor, court, deadline, and enforcement mechanism within their own institutional structures.

A limited federal floor may remain appropriate for elections containing a federal office, particularly under the Elections Clause for congressional elections and existing federal law governing presidential electors. The primary recommendation, however, is uniform state adoption of the model act.

## Repair and Prevention

Each state should adopt a Model State Election Certification and Automatic Substitution Act providing that:

1. certification is ministerial after completion of tabulation, canvassing, recount, and adjudicative procedures assigned by law;
2. certifiers may identify only specific arithmetic, documentary, or statutory defects within their assigned authority;
3. generalized allegations of fraud, policy disagreement, personal belief, or matters assigned to another tribunal do not authorize withholding certification;
4. any temporary withholding must be written, particularized, and issued within a short statutory period;
5. refusal, deadlock, incapacity, or failure to meet the deadline automatically transfers the duty to a designated substitute official or court;
6. mandamus or equivalent emergency relief is available immediately;
7. downstream deadlines remain protected and may not be defeated by strategic delay;
8. officials may refer suspected fraud or illegality to law enforcement without withholding certification;
9. knowing refusal or delay for an unauthorized purpose supports removal from the matter, civil penalties, reimbursement of public costs, and appropriate discipline; and
10. intentional falsification, concealment, destruction, or corrupt alteration of certification records may be criminally punished.

## Proposed Legislation

- Model State Election Certification and Automatic Substitution Act

## Relationship to Adjacent Proposals

- **ELEC-001** regulates federal executive officials who interfere with state election administration.
- **ELEC-002** makes the state certification mechanism resistant to refusal or deadlock regardless of the source or motive.
- **ELEC-005** addresses alternate-electoral and false-certification schemes.

- **ELEC-008** addresses broader accountability for efforts to overturn lawful election results.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 76 / 100 (Review Ready)  
**Adoption Score:** 5 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 58 / 100 (Significant Resistance)  
**Required Electoral Environment:** state-level-pathway  
**Development Priority:** active

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**Audit Status:** T4 publication-ready audit complete; external validation pending  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27.2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** ELEC-002 audit history

## Annotation

**Scope.** This issue retains the existing title because pressure upon certifiers remains an important manifestation, but its distinct institutional subject is the vulnerability of the certification mechanism itself.

**State-Level Orientation.** The proposal is intended principally as model state legislation. It does not presume a federal takeover of state election administration.

**Qualification.** Certification must not become automatic in the sense of ignoring a demonstrated defect that state law assigns the certifier to resolve. The model statute therefore permits narrow, written identification of defects within the official's lawful authority while prohibiting generalized investigation or relitigation through the certification process.

**Quality Score.** The 76/100 score reflects a Review Ready draft suitable for knowledgeable external critique. T4 verified the model-state vehicle, ministerial-duty theory, automatic substitution design, manifestation source coverage, ECRA background treatment, issue-to-legislation alignment, budget caveat, and state-by-state adoption posture. The score remains below publication-ready because primary court orders or official state records, representative state statutory comparisons, administrator/stakeholder validation, federal-floor analysis, optional appropriation language, and penalty calibration remain incomplete.

**Adoption Score.** The 5/12 score is limited. ELEC-002 has a plausible state-level model-law path and concrete recent examples, but T1 did not identify proposal-specific polling, state sponsor coalitions, election-administrator endorsements, bipartisan adoption records, or comparable enacted model-law uptake.

**Adoption Friction.** The 58/100 score is Significant Resistance. The proposal is less nationally partisan than federal executive-election-interference reforms and preserves lawful defect correction, but it constrains local certification officials, may draw state-level election-administration opposition, and will be resisted where certification discretion is treated as a partisan leverage point.

**Required Electoral Environment.** The required environment is state-level-pathway, with Pathway Viability state-by-state and Pathway Adjustment model-law. The proposal does not require federal legislation as its primary vehicle.

**Development Priority.** The priority is active because the proposal addresses a recurring election-administration failure, has multiple real-world manifestations, and can improve through ordinary state-law source development and model-bill refinement.

## ELEC-002 — Audit History

This file preserves the full audit history for ELEC-002. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Audit scope:** This T4 audit reviewed ELEC-002, the linked model state bill, manifestation source coverage, ECRA source leads, state-level pathway fields, issue-to-legislation alignment, budget posture, adoption posture, and publication blockers. It did not obtain qualified external review or primary records for every manifestation.

**Current-status and mootness check:** No current law, judicial decision, or enacted reform located during T4 moots ELEC-002. Court-ordered certification in individual cases reinforces rather than eliminates the need for clearer state statutes, automatic substitution, and emergency enforcement.

**Source finding:** ELEC-002 is internally Review Ready because every manifestation now has nearby source support and the source inventory captures the relevant reporting. It is not publication-ready because the principal examples still rely substantially on secondary reporting rather than primary court orders, official county records, official secretary-of-state records, or official plea/case records.

**Legal-fit finding:** The state-model vehicle remains legally appropriate. T4 confirms that the proposal should not be converted into federal primary legislation at this stage. A separate federal-floor proposal may be considered later only if state-by-state model adoption proves insufficient for elections containing federal offices.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and model bill. The proposal and bill are aligned on ministerial certification, specific defect findings, referral without withholding certification, automatic substitution, expedited judicial enforcement, preservation of recounts and election contests, matter-specific removal, civil and criminal consequences, anti-coercion, and public records.

**Budgetary-impact finding:** Administrative workload remains possible and no new appropriation is specified. Publication follow-up should decide whether the model act needs optional appropriation or implementation-cost language for training, court procedures, substitute-certifier administration, and enforcement.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 58/100. T4 did not locate proposal-specific polling, election-administrator endorsements, model-law organization support, bipartisan state sponsor evidence, or enacted state analogues sufficient to raise adoption credit.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 76/100 (Review Ready).

**Score effect:** Score increased from 74 to 76 because T4 confirmed source coverage, state-model vehicle fit, issue-to-legislation alignment, and publication blockers. The proposal is Review Ready for knowledgeable external critique but not publication-ready or model-law circulation-ready.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Quality Score annotation, audit history, audit inventory, and Audit Dashboard. No legislative text was changed during T4.

**Publication blockers:** Obtain primary records for the Wayne County, Otero County, Cochise County, and Fulton County examples; compare representative state certification statutes; test standing and direct-certification authority in model states; calibrate civil and criminal penalties; seek election-administrator or state-law expert review; decide whether optional appropriation language is needed; and separately assess any federal-floor proposal.

**Audit process feedback:** ELEC-002 is strong enough for expert review without pretending its example sourcing is finished. Future work should trade breadth for primary records on the strongest examples.

#### 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication audit and external review pending

**Audit scope:** This T3 audit reviewed ELEC-002, the linked model state bill, T1 manifestation source rows, ECRA source leads, issue-to-legislation alignment, state-level pathway fields, budget posture, and unresolved publication-source needs. It searched for primary state court or official records but did not locate enough primary material in the audit window to rely on them for publication-ready scoring.

**Current-status and mootness check:** No current law, judicial decision, or enacted reform located during T3 moots ELEC-002. The issue remains live because courts can compel certification in individual cases while state statutes may still lack automatic substitution, precise ministerial-duty language, and clear consequences before downstream election deadlines are threatened.

**Source finding:** The manifestation examples are now adequately sourced for internal review through AP and Axios reporting, but T3 did not obtain primary court orders, official county minutes, official state mandamus filings, or official certification records. T4 should not



treat the examples as publication-ready until at least the most important primary records are located or the issue page is narrowed to claims fully supported by available sources.

**Legal-fit finding:** The model remains plausible and should remain state-law-first. T3 confirms that a federal floor may be considered later, but the current issue should not be converted into federal legislation unless a separate analysis shows that state-by-state adoption is inadequate for federal-office elections.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and model bill. The issue page and bill remain aligned on ministerial certification, narrow defect identification, referral without withholding certification, automatic substitution, expedited court enforcement, preservation of recounts and election contests, matter-specific removal, public records, and calibrated civil/criminal consequences.

**Budgetary-impact finding:** No change. Administrative workload is possible, but no new appropriation is specified. T4 should decide whether the model act needs optional state appropriation language for training, court procedures, substitute-certifier administration, and enforcement.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 58/100. T3 did not locate state-level polling, sponsor coalitions, election-administrator endorsements, bipartisan state adoption, or model-law organization support.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 74/100 (Substantially Developed Draft).

**Score effect:** Score increased from 72 to 74 because T3 clarified source limitations, confirmed state-law-first vehicle fit, verified issue-to-legislation alignment, and sharpened T4 publication blockers. The score remains below Review Ready because primary source support and state-specific implementation analysis remain incomplete.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Quality Score annotation, audit history, audit inventory, and Audit Dashboard. No legislative text was changed during T3.

**Next audit need:** Run T4 publication-ready audit. Prioritize primary court orders or official state records, representative state certification statutes, standing and direct-certification authority, penalty calibration, election-administrator validation, and whether to add optional state appropriation or federal-floor notes.

**Audit process feedback:** T3 confirmed that ELEC-002's bottleneck is not conceptual design; it is primary state-law sourcing and state-specific implementation validation.

## **2026-06-28 — T2 Development Audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed ELEC-002, the linked model state bill, existing source records, manifestation source leads, ECRA source leads, issue-to-legislation alignment, budget posture, adoption posture, and current-rubric scoring. It did not complete T3-level primary court-order retrieval, comprehensive state certification statute comparison, administrator/stakeholder validation, or federal-floor analysis.

**Existing-law and prior-model finding:** The model state vehicle remains the least-complex adequate remedy because states create the relevant certification offices, deadlines, substitute officials, mandamus procedures, and penalties. The Electoral Count Reform Act is relevant background for federal presidential-election timing and congressional counting, but it does not solve local and state certification refusal inside state election-administration systems.

**Source work completed:** T2 reviewed existing ECRA and 3 U.S.C. source leads for federal-election interaction and updated their source-inventory treatment as source leads for ELEC-002. The four manifestation sources added at T1 remain useful current source leads but should be replaced or supplemented with primary state court orders or official election records at T3/T4.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and model bill. Both define certification as ministerial after legally assigned tabulation, canvassing, recount, audit, and adjudicative procedures; preserve narrow correction of specific certification defects; create automatic substitution; authorize expedited judicial enforcement; preserve recounts and election contests; and calibrate civil/criminal consequences.

**Legal-fit finding:** The draft is plausible at T2 but needs state-specific review. T3 should test whether automatic substitution, direct court certification, voter/candidate standing, civil penalties, personal reimbursement limits, and criminal offenses fit state constitutional and statutory limits across representative states.

**Budgetary-impact finding:** Administrative workload remains possible and no new appropriation is specified. T3 should test whether state courts, state election officials, training, substitute certifiers, or enforcement capacity require budget authority or a model optional appropriation section.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 58/100. T2 did not identify proposal-specific polling, election-administrator endorsement, bipartisan state sponsor coalition, enacted state analogue, or model-law organization support.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4;

Penalties 0. Final Proposal Quality Score: 72/100 (Substantially Developed Draft).

**Score effect:** Score increased from 60 to 72 because T2 completed the first current-rubric component rebaseline, confirmed model state legislation as the proper primary vehicle, verified issue-to-legislation alignment, and clarified remaining state-law, source, and implementation tasks.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, audit history, source inventory, audit inventory, and Audit Dashboard.

**Next audit need:** Run T3 readiness audit. Prioritize primary court orders or official records for Wayne County, Otero County, Cochise County, and Fulton County; representative state certification statutes; state mandamus and substitute-officer models; standing and direct-certification authority; penalty calibration; election-administrator input; and whether a limited federal floor should be separately developed.

**Audit process feedback:** T2 confirmed that ELEC-002 should remain state-model-first. Future audits should avoid federalizing the remedy unless a separate federal-floor proposal is justified.

### **2026-06-28 — T1 Framework Check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope:** This T1 audit reviewed ELEC-002, the linked model state bill, the audit dashboard, audit inventory, source inventory, and governing framework/methodology. It checked visible page structure, metadata, issue-to-legislation link, Budgetary Impact Statement placement, real-world citation coverage, source-inventory presence, basic current-status risk, initial existing-law fit, and enactment-pathway fields.

**Current-status and mootness check:** T1 found no obvious current law, judicial decision, or enacted reform that moots ELEC-002. Recent state litigation and reporting indicate that state certification refusal remains a live issue even when courts later compel certification.

**Source work completed:** Added nearby citations for the Wayne County, Otero County, Cochise County, and Fulton County manifestations. Added source-inventory rows for AP, Axios, and Axios Phoenix reporting used for those examples.

**Existing-law fit:** The model-state-law vehicle remains appropriate at T1 because states create and administer the relevant certification offices and can specify substitute officials, deadlines, mandamus jurisdiction, penalties, and state-specific standing rules. A limited federal floor for federal-office elections remains a later optional question rather than the primary vehicle.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked model bill. Both frame certification as ministerial after completion of legally assigned tabulation and adjudicative processes, preserve narrow correction of specific defects, and create automatic substitution and expedited enforcement.

**Budgetary-impact finding:** The budget statement remains adequate for T1: administrative workload is possible, but no new appropriation is specified. T2 should test whether courts, state election officials, substitute certifiers, training, or enforcement would require state budget authority.

**Enactment-pathway finding:** Required Electoral Environment is `state - level - pathway`; Pathway Viability is `state - by - state`; Development Priority is `active`; Pathway Adjustment is `model - law`.

**Adoption and friction finding:** Adoption Score is 5/12 (Limited Adoption Basis). Adoption Friction is 58/100 (Significant Resistance). T1 found a plausible state-level model-law path and concrete manifestations but did not identify proposal-specific polling, state sponsor coalitions, election-administrator endorsements, bipartisan adoption records, or comparable enacted model-law uptake.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 60/100 (Developed Draft) pending T2. Rebaseline status remains `hard - rebase line - needed` because the issue has not yet received a current-rubric merits score.

**Defects corrected during the audit:** Updated front matter, visible Proposal Scoring fields, initial adoption/friction/pathway fields, citations for manifestations, audit history, source inventory, audit inventory, and Audit Dashboard.

**Next audit need:** Run T2 development audit. Prioritize primary court orders or official state records for the four manifestations, state certification statutes, ECRA interaction, state mandamus and substitute-officer models, state standing rules, penalty calibration, election-administrator support or opposition, and whether a limited federal floor should be separately developed.

**Audit process feedback:** T1 showed that ELEC-002 has strong examples but weak source hygiene. T2 should focus on official state-law and court-record support rather than adding more secondary summaries.

The initial inventory-level audit record is preserved below for chronology.

### **2026-06-24 — Initial framework and inventory audit**

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

## ELEC-003 — Insufficient Protection for Election Workers and Officials

### Issue Snapshot

**Problem:** Election personnel face uneven protection.

**Repair:** Pair state protections with HAVA funding.

**Vehicle:** State and federal acts (state, federal).

### Institutional Anomaly

Election administration depends on permanent officials, temporary workers, contractors, and volunteers who perform legally indispensable and politically sensitive duties, yet protection against threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and targeted harassment remains fragmented, reactive, and uneven among jurisdictions.

The federal government should not become the primary administrator, supervisor, or operational protector of state election personnel. Protection should remain principally state and local, with federal support confined to a narrowly structured financial backstop and independently authorized federal criminal enforcement.

### Manifestations of the Failure

#### *Ruby Freeman and Shaye Moss — Georgia, 2020–2022*

After false allegations accused Fulton County election workers Ruby Freeman and Wandrea “Shaye” Moss of manipulating ballots, both women and members of their family were subjected to sustained racist harassment and death threats. Freeman testified that the FBI advised her to leave her home through the presidential inauguration. Moss testified that people went to her grandmother’s home, attempted to push inside, and claimed that they intended to make a “citizen’s arrest.” Moss subsequently left election work. The episode demonstrates family targeting, forced displacement, career loss, and the inability of ordinary post hoc remedies to prevent severe personal and institutional damage. See U.S. House Select Committee to Investigate the January 6th Attack, *Final Report*, ch. 2 (2022); fourth public hearing materials and testimony.

#### *Threats against bipartisan Arizona election officials — 2021–2025*

Federal prosecutions have documented repeated threats against Arizona election officials of both parties. James W. Clark threatened to detonate an explosive device unless then-Secretary of State Katie Hobbs resigned, searched for her home address and methods of killing her, and caused evacuation of portions of the state government complex and security sweeps of Hobbs’s home and vehicle. He was sentenced in March 2024 to 42 months’ imprisonment. Other prosecutions have involved threats against Maricopa County officials and later threats against officials in both Arizona and Colorado. These cases demonstrate that existing criminal law can punish provable true threats but often only after evacuation, fear, security expense, and operational disruption have already occurred. See *The Guardian*, March 12, 2024; Associated Press, May 29, 2025.

#### *Election Day bomb threats and polling-place closures — 2024*

On November 5, 2024, bomb threats were directed at polling locations in multiple battleground states. The FBI stated that many appeared to originate from Russian email domains and that none had been determined credible at the time. At least two Fulton County, Georgia polling locations were evacuated and closed temporarily; officials sought extended voting hours to compensate for the interruption. Later research identified at least 227 threats against polling places and tabulation centers and found evidence that extending hours may not have fully cured turnout suppression at affected DeKalb County precincts. This episode demonstrates that even noncredible threats can disrupt voting, divert law-enforcement resources, expose workers to risk, and produce harm that cannot necessarily be repaired after the fact. See Reuters, November 5, 2024; Sequoia Andrade & Philip B. Stark, *Does Extending Polling Hours Compensate for Bomb Threats? Evidence from the 2024 Election in Georgia, USA* (2025).

#### *Doxxing and family-directed retaliation against senior election officials — 2020*

Georgia Secretary of State Brad Raffensperger testified that his personal information was disseminated, his wife received sexualized threats, and intruders broke into the home of his widowed daughter-in-law after he refused efforts to alter Georgia’s certified result. Similar testimony described armed or threatening demonstrations outside the homes of other state officials. Although some conduct overlapped with pressure on certification officials, the personal-security failure was distinct: existing institutions did not reliably prevent political disputes over election administration from being transferred to officials’ homes and families. See U.S. House Select Committee to Investigate the January 6th Attack, *Final Report*, ch. 2 (2022); summary of fourth-hearing testimony.

#### *Workforce attrition and recruitment damage — nationwide*

The harm is not limited to a few prominent prosecutions. In a 2024 Brennan Center survey of 928 local election officials, 38 percent reported threats, harassment, or abuse related to their work; 27 percent reported knowing one or two officials who had resigned because of safety concerns; and 20 percent stated that they were unlikely to remain through the 2026 midterms. These findings support the institutional inference that intimidation is degrading experience, recruitment, and continuity across election offices even when no single communication results in prosecution. See Brennan Center survey reporting, May 1, 2024.

Existing criminal enforcement is necessary but incomplete. Some dangerous conduct remains constitutionally protected, cannot be attributed or proved beyond a reasonable doubt, falls below the applicable criminal threshold, or causes operational damage before prosecution can occur.

## Resulting Damage

Inadequate protection can remove experienced personnel, deter recruitment, distort official judgment, increase security costs, disrupt polling or counting facilities, weaken continuity of operations, and make lawful election administration depend on whether individual officials are willing to endure escalating personal danger.

Personal courage should not substitute for institutional protection.

## Underlying Weakness

The protection system may lack one or more of the following:

- uniform coverage of permanent and temporary election personnel;
- protection for family or household members targeted because of election duties;
- rapid threat reporting and risk assessment;
- expedited protective orders and emergency security assistance;
- address-confidentiality and anti-doxxing protections;
- facility-security and continuity planning;
- clear coordination among election administrators, law enforcement, prosecutors, and courts;
- civil, criminal, and administrative remedies calibrated to distinct forms of misconduct;
- financial capacity for small or resource-constrained jurisdictions; and
- safeguards against politically selective protection or enforcement.

A federal remedy centered on discretionary executive supervision would create an additional institutional risk: the same funding or protection mechanism could be used to reward, punish, pressure, or influence state election administration.

## Proposal Survey

Federal law already protects voting rights and criminalizes some intimidation, threats, and interference. Relevant models include the Voting Rights Act intimidation provision, federal threat statutes, and civil-rights enforcement authority. See 52 U.S.C. § 10307) and 18 U.S.C. § 875).

Election-administration funding also has an established vehicle: the Help America Vote Act of 2002 created federal support through the Election Assistance Commission while preserving state administration. See 52 U.S.C. chapter 209. ELEC-003 combines state protection statutes with a HAVA-style funding backstop rather than federal operational control.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is a coupled legislative package:

1. a model state Election Personnel Protection Act establishing the substantive, politically neutral protection regime; and
2. a narrowly drawn HAVA amendment offering automatic formula payments only to states maintaining that regime.

The state supplies legal protection and operational administration. The federal government supplies only a voluntary financial backstop, objective verification, protection-purpose accounting, and independently authorized criminal enforcement. Failure to participate results only in loss of the new grant.

This structure is less coercive and less susceptible to executive leverage than withholding existing election, justice, homeland-security, transportation, or other federal funds.

## Repair and Prevention

### *State protection regime*

Each state should enact a politically neutral election-personnel protection statute that:

1. protects permanent and temporary election officials, employees, poll workers, contractors, and volunteers when targeted because of election-related duties;
2. extends appropriate protection to family or household members targeted for the same reason;
3. applies without regard to party, candidate, viewpoint, ideology, election outcome, or the perceived political effect of an official act;
4. addresses threats, violence, coercive intimidation, unlawful doxxing, retaliation, and targeted harassment while preserving constitutionally protected speech;

5. establishes rapid reporting, threat assessment, and referral procedures;
6. authorizes expedited protective orders, emergency security, temporary relocation, and related support where justified;
7. protects residential and other sensitive personal information where constitutionally permissible;
8. requires facility-security and continuity-of-operations planning;
9. provides enforceable state remedies and institutional responsibility through existing state and local bodies; and
10. remains operative regardless of whether federal funding is available or accepted.

### ***Limited federal support through HAVA***

Congress should amend the Help America Vote Act of 2002 by adding a self-contained Election Personnel Protection Payments program. The program should provide automatic, formula-based block grants only to states that enact and maintain a qualifying neutral protection statute containing the minimum protections expressly enumerated by Congress.

Enactment and maintenance of the qualifying state statute should be the sole substantive eligibility condition. Grant funds should remain restricted to election-personnel protection and operational continuity, with ordinary accounting, audit, and anti-fraud requirements.

The amendment should:

1. create a new and dedicated funding stream rather than threaten existing HAVA or unrelated federal funds;
2. require only state certification and a provision-by-provision statutory crosswalk, not a federally approved state plan;
3. make qualification automatic after objective verification of the enumerated statutory elements;
4. prohibit competitive awards, discretionary scoring, waivers, supplemental eligibility conditions, and federal evaluation of state election policies;
5. confine the Election Assistance Commission, or any other administrator, to ministerial payment, accounting, and misuse-review functions;
6. preserve exclusive state control over institutional placement, procedures, enforcement, and methods of compliance beyond the enumerated minimum protections;
7. prohibit federal consideration of voter eligibility, registration, voting methods, ballot custody, counting, canvassing, recounts, certification, elector appointment, election outcomes, or election disputes;
8. prohibit a state's ineligibility from affecting any other federal payment or assistance; and
9. provide expedited de novo judicial review of a denial identifying the specific missing statutory element.

Federal criminal jurisdiction should remain limited to independently defined federal offenses, including conduct with an appropriate federal or interstate nexus. It should not become a source of administrative control over state election processes.

### ***Legislation Crosswalk***

The model state act should satisfy the federal HAVA eligibility structure through a provision-by-provision statutory crosswalk. The current draft maps federal minimum requirements to state-act sections covering protection of election personnel and covered family or household members; politically neutral administration; prompt reporting, threat assessment, referral, and coordination; emergency protective assistance; expedited protective relief; address confidentiality and data minimization; remedies for threats, coercion, retaliation, doxxing, false emergency reports, bomb threats, swatting, and comparable misconduct; continuity planning; workforce support; aggregate reporting; neutral application; and continued state-law operation regardless of federal funding.

The current model state draft also maps documented manifestations to remedy provisions. Freeman and Moss-style threats, family targeting, forced displacement, and career loss are addressed through reporting, family-inclusive assessment, emergency relocation, protective orders, address confidentiality, doxxing liability, threat offenses, counseling, leave, anti-retaliation, and retention support. Arizona-style threats, evacuation, and later prosecution are addressed through rapid assessment, preventive security, protective orders, threat liability, restitution, evacuation protocols, backup operations, and continuity planning. Election Day bomb threats and polling-place closures are addressed through aggravated liability, restitution, relocation, public notice, backup sites, staffing, records preservation, and lawful remedial procedures. Raffensperger-family-style doxxing, sexualized threats, and intrusion are addressed through family and household protections, suppression of exposed personal information, emergency residential security, and civil and criminal remedies for targeted disclosure and coercion. Workforce attrition is addressed through counseling, protected leave, replacement staffing, recruitment and retention assistance, aggregate measurement, and needs-based funding.

### **Proposed Legislation**

- Model State Election Personnel Protection and Continuity Act
- Election Personnel Protection Amendments to the Help America Vote Act of 2002

## Relationship to Adjacent Proposals

- **ELEC-001** concerns federal executive interference with state and local election administration.
- **ELEC-002** concerns the legal resilience of canvassing and certification mechanisms.
- **ELEC-003** concerns the personal security and operational continuity of election personnel throughout the election process.
- **ELEC-007** concerns military, National Guard, or armed federal-force intervention in election administration.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful election results.

A threat intended to compel a certification decision may implicate both ELEC-002 and ELEC-003. ELEC-002 owns the certification mechanism; ELEC-003 owns protection of the targeted person and continuity of election operations.

## Budgetary Impact Statement

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 77 / 100 (Review Ready)  
**Adoption Score:** 5 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 58 / 100 (Significant Resistance)  
**Required Electoral Environment:** state-level-pathway  
**Development Priority:** active

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**Audit Status:** T4 publication-ready audit complete; external validation pending  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27.2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** ELEC-003 audit history

## Annotation

**Constitutional Structure.** Congress may encourage state action through clearly stated, related, and genuinely voluntary spending conditions. The proposal avoids commandeering by leaving states free to decline the new funds and avoids the principal coercion concern identified in *NFIB v. Sebelius* by placing no existing or unrelated funding at risk. See U.S. Const. art. I, § 8, cl. 1; *South Dakota v. Dole*, 483 U.S. 203 (1987); *NFIB v. Sebelius*, 567 U.S. 519 (2012); *Murphy v. NCAA*, 584 U.S. 453 (2018).

**HAVA Placement.** HAVA already provides a federal-state election-assistance architecture, including state certification and requirements payments. The proposed amendment should constitute a separate part rather than add election-personnel protection to the existing HAVA voting-system requirements or state-plan process. See 52 U.S.C. §§ 20921, 21001–21008, 21081–21085.

**Neutrality.** Political neutrality requires equal eligibility, procedures, benefits, enforcement standards, and remedies without regard to political affiliation, candidate preference, viewpoint, election-related position, or the political consequences of an official act. It does not prohibit risk-based distinctions grounded in credibility, imminence, severity, vulnerability, prior conduct, or operational impact.

**First Amendment Qualification.** The state regime must distinguish true threats, unlawful intimidation, retaliation, and actionable disclosure of protected information from constitutionally protected criticism, advocacy, protest, and rhetorical hyperbole. Criminal penalties should not be treated as the exclusive remedy because harmful conduct may remain protected, unattributable, unprovable, or below a criminal threshold.

**Federalism Firewall.** Federal eligibility review should be binary and statutory, not a general assessment of whether federal officials approve of a state's election-security program. No regulation, guidance, executive order, or grant term should be permitted to add substantive conditions beyond those enacted by Congress.

**Source Note.** The manifestations are illustrative rather than exhaustive. The examples were selected to show distinct institutional failures: individual and family targeting, forced displacement, prosecutable true threats, facility evacuation, Election Day operational disruption, and workforce attrition.

**Quality Score.** The 77/100 score reflects a Review Ready draft under rubric 2026-06-27.2. T4 confirmed the required issue architecture, state-primary remedy design, HAVA funding hook, issue-to-legislation alignment, budget-statement posture, official-law source coverage, Maryland state-law analogue, EOLDN functional legal-assistance analogue, and prosecution-limit source support. The score remains below publication-ready because primary records for every manifestation, representative state-law comparison, full federal prior-proposal research, source-backed fiscal analogues, election-administrator validation, and deeper First Amendment/doxxing analysis remain incomplete.

**Adoption Score.** The 5/12 score is limited. ELEC-003 has a plausible state-by-state model-law path, a federal grant-support vehicle, bipartisan institutional beneficiaries, and concrete recent manifestations, but T1 did not identify proposal-specific polling, sponsor

coalitions, enacted model-state uptake, election-administrator endorsements, or bipartisan legislative records sufficient to award higher adoption credit.

**Adoption Friction.** The 58/100 score is Significant Resistance. The proposal protects election personnel of all parties and preserves state administration, which lowers friction, but it touches election administration, speech-adjacent threat and doxxing rules, appropriations, state-federal grant conditions, and security operations, each of which creates meaningful opposition, litigation, and implementation risk.

**Required Electoral Environment.** The required environment is state-level-pathway, with Pathway Viability state-by-state and Pathway Adjustment model-law-and-voluntary-federal-grant. The model state act can proceed state by state, while the federal HAVA amendment would require federal legislation and appropriations to create the voluntary funding backstop.

**Development Priority.** The priority is active because election-personnel threats, operational disruption, and workforce attrition remain live election-administration risks and the proposal has concrete vehicles for continued development.

**Prior-Proposal and Existing-Law Fit.** T4 confirms that the draft should remain coupled rather than solely federal. Existing federal threat and voting-rights statutes punish some conduct but do not create a complete personal-security, continuity, and workforce-support regime; reporting on the DOJ election-threats task force indicates that prosecution alone reaches only a subset of threats. Source leads show state-law movement, including Maryland's enacted 2024 Protecting Election Officials Act, and a functional legal-assistance analogue through the Election Official Legal Defense Network. T4 follow-up should complete a direct Congress.gov and state-legislature survey.



## ELEC-003 — Audit History

This file preserves the full audit history for ELEC-003. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Audit scope:** This T4 audit reviewed ELEC-003, the linked model state bill, the linked federal HAVA amendment, statutory source coverage, Maryland's state-law analogue, the Election Official Legal Defense Network functional analogue, prosecution-limit source support, issue-to-legislation alignment, legal durability, abuse resistance, implementation posture, adoption posture, and publication blockers. It did not obtain qualified external review, a complete Congress.gov/state-legislature survey, primary records for every manifestation, or a source-backed fiscal estimate.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T4 moots ELEC-003. Existing prosecutions and state-law responses reinforce the issue rather than eliminating it: criminal enforcement can punish some true threats, but it does not itself supply rapid protective assistance, continuity planning, address confidentiality, family support, workforce retention, or stable funding.

**Source-refresh finding:** T4 confirms that ELEC-003 is internally source-supported enough for knowledgeable external critique. It now has official U.S. Code source coverage for 52 U.S.C. § 10307, 18 U.S.C. § 875, and HAVA; a primary Maryland legislative source lead for an enacted state analogue; a functional legal-assistance analogue through EOLDN; and multiple manifestation sources. It remains below publication-final because the core real-world examples still need primary records or direct official materials wherever available.

**Legal-durability finding:** The coupled state/HAVA vehicle remains the least-complex adequate remedy. The state model owns direct protection and enforcement; the federal proposal supplies only voluntary formula funding, statutory minimums, objective review, fiscal controls, and noninterference. T4 did not identify a material issue-to-legislation discrepancy or a reason to convert the proposal into a federal operational-control regime.

**Judicial-scrutiny finding:** The main legal risks are manageable but must remain visible. Threat, harassment, doxxing, and protective-order provisions must be construed consistently with the First Amendment, *Counterman v. Colorado*, due process, state public-records law, and state constitutional limits. The HAVA amendment should retain clear statutory conditions, voluntary participation, no unrelated-funding leverage, ministerial EAC review, and de novo judicial review to reduce Spending Clause, anti-commandeering, and federalism objections.

**Budgetary-impact finding:** Budget authority is likely required, but no dollar estimate should be added yet. T4 did not locate a sufficiently comparable, source-backed cost basis for the full state/federal package. External or follow-up work should search HAVA appropriations, EAC grant-administration material, state election-security grant records, address-confidentiality program costs, emergency protective-service costs, and continuity-planning costs.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 58/100. Maryland's law and EOLDN support practical grounding, but the project still lacks proposal-specific polling, bipartisan sponsor evidence for the full package, administrator endorsements, state-by-state uptake evidence, or a coalition map sufficient to increase adoption credit.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 77/100 (Review Ready).

**Score effect:** Score increased from 74 to 77 because T4 confirmed issue-to-legislation alignment, legal-durability posture, statutory source coverage, state-law and functional analogues, and publication blockers. The proposal is Review Ready for knowledgeable external critique but not publication-final or lawmaker-circulation-ready.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, prior-proposal/source annotation, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T4.

**Publication blockers:** Obtain primary records for the Freeman/Moss, Arizona-threat, Election Day bomb-threat, Raffensperger-family, and workforce-attrition examples; complete a representative state-law survey; complete a direct Congress.gov and state-legislature prior-proposal survey; verify Maryland enacted-law text against ELEC-003's model provisions; locate fiscal analogues for HAVA/EAC grants and state protective services; test First Amendment/doxxing/protective-order limits with legal expertise; and seek election-administrator, legislative-counsel, or election-law expert review.

**Audit process feedback:** T4 confirmed that ELEC-003 should continue forward. The next quality gain is not more structural drafting; it is primary-record replacement, fiscal-source development, legal expert review, and administrator/stakeholder validation.

#### 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication audit pending

**Audit scope:** This T3 audit reviewed ELEC-003, the linked model state bill, the linked federal HAVA amendment, the Maryland state-law analogue, a functional legal-assistance analogue, statutory source rows, manifestation source coverage, budget posture, issue-to-legislation alignment, legal durability, adoption posture, and readiness blockers. It did not complete a comprehensive state-law survey, complete Congress.gov search, primary-record retrieval for each manifestation, source-backed fiscal estimate, or external election-administrator review.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T3 moots ELEC-003. Current source review reinforces rather than weakens the proposal: election-personnel protection remains an active operational concern, and a state-primary pathway remains plausible where federal support is uncertain or insufficient.

**Source finding:** T3 improved source posture by adding a primary source row for Maryland's 2024 Protecting Election Officials Act and a functional analogue source row for the Election Official Legal Defense Network. The manifestation examples remain adequately sourced for internal review but are not publication-ready because several still depend on secondary reporting rather than primary records, official court materials, official government records, or direct survey material.

**Legal-fit finding:** The coupled vehicle remains plausible. T3 did not identify a reason to abandon the state model or the HAVA amendment. The main legal risks are First Amendment limits on threats, harassment, and doxxing provisions; due-process requirements for expedited protective orders; Spending Clause clarity and coercion limits; EAC statutory-role limits; state constitutional variation; and ensuring federal fiscal review never becomes federal supervision of election administration.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page, the model state bill, and the federal HAVA amendment. The documents remain aligned on the two-vehicle structure, neutral state protection, covered family and household members, protective assistance, continuity planning, aggregate reporting, voluntary formula payments, objective federal eligibility review, and noninterference.

**Budgetary-impact finding:** The preliminary budget statement remains appropriate. T3 did not identify a source-backed fiscal analogue sufficient for a dollar estimate. T4 should search HAVA appropriations, EAC grant-administration costs, state election-security grants, address-confidentiality program costs, emergency protective-service costs, and continuity-planning costs before deciding whether the bill should include a specific authorization level, administrative-cost cap, pilot structure, or report-only fiscal note.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 58/100. The Maryland analogue and EOLDN source strengthen the proposal's practical grounding but do not constitute proposal-specific polling, national support evidence, bipartisan federal sponsorship, election-administrator endorsement, or enacted uptake of ELEC-003's full mechanism.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 9/12; Legal Fit 6/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 74/100 (Substantially Developed Draft).

**Score effect:** Score increased from 72 to 74 because T3 added a primary state-law analogue, a functional legal-assistance analogue, and a clearer readiness explanation. The score remains below Review Ready because core publication blockers remain unresolved.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, prior-proposal/source annotation, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T3.

**Publication blockers:** Obtain primary records for the Freeman/Moss, Arizona-threat, Election Day bomb-threat, Raffensperger-family, and workforce-attribution examples; conduct a representative state-law survey; complete a Congress.gov and state-legislature prior-proposal survey; assess whether Maryland's enacted law supports broader model-state uptake; locate fiscal analogues for HAVA/EAC grants and state protective services; test First Amendment/doxxing/protective-order limits; and seek election-administrator or election-law expert review.

**Audit process feedback:** T3 confirms that ELEC-003 is nearly Review Ready on structure but not on source depth. T4 should spend less time on page architecture and more time on primary records, legal limits, and budget analogues.

## **2026-06-28 — T2 Development Audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed ELEC-003, the linked model state bill, the linked federal HAVA amendment, T1 pathway fields, statutory source rows, manifestation source coverage, budget posture, issue-to-legislation alignment, remedy fit, implementation design, abuse-resistance design, and current-rubric scoring. It did not complete T3-level primary-record collection, representative state-law comparison, complete Congress.gov search, state-legislature survey, administrator/stakeholder validation, or budget-analogue research.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T2 moots ELEC-003. Current source leads continue to indicate that election-personnel threats, harassment, operational disruption, and workforce attrition remain live risks. Existing prosecutions and threat statutes punish some conduct after the fact but do not supply the full preventive, protective, continuity, privacy, and workforce-support regime proposed here.

**Existing-law and prior-proposal finding:** The coupled state/federal vehicle remains appropriate. Federal law already contains voting-rights intimidation and interstate-threat provisions, and HAVA supplies an election-assistance architecture. Those laws do not themselves create a comprehensive election-personnel protection program. T2 identified a state-law analogue in Maryland's enacted 2024 Protecting Election Officials Act, but did not complete the authoritative Congress.gov and state-legislature prior-proposal survey required

for higher scoring.

**Legal-fit finding:** The proposal is plausible at T2. The state model owns protective orders, address confidentiality, state offenses, continuity planning, workforce support, and local implementation. The federal HAVA amendment is limited to voluntary formula payments, objective eligibility review, fiscal accounting, and noninterference rules, which reduces anti-commandeering and coercion risk. T3 should test Spending Clause limits, EAC statutory authority, de novo review design, First Amendment limits, doxxing doctrine, protective-order due process, and state constitutional variation.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page, the state model bill, and the federal HAVA amendment. The issue page accurately describes the two-vehicle structure, state-primary protection regime, voluntary federal funding backstop, political-neutrality requirement, family/household-member coverage, address confidentiality, continuity planning, aggregate reporting, workforce support, and federal noninterference firewall.

**Budgetary-impact finding:** Budget authority is likely required, and the current no-dollar-estimate statement remains appropriate. T2 did not identify a source-backed fiscal analogue sufficient to support a dollar estimate. T3 should search HAVA appropriations, EAC grant-administration costs, state election-security grant experience, state address-confidentiality or protective-service costs, and comparable emergency-security or continuity funding.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 58/100. T2 did not identify proposal-specific polling, bipartisan sponsor coalitions, enacted model-state uptake, election-administrator endorsements, or public-support evidence specific to the mechanism. The state-model pathway and voluntary grant design are plausible, but the proposal remains politically and administratively sensitive because it touches election administration, speech-adjacent misconduct, doxxing, appropriations, and state-federal coordination.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 72/100 (Substantially Developed Draft).

**Score effect:** Score increased from 60 to 72 because T2 completed the first current-rubric component rebaseline, confirmed the coupled state/HAVA vehicle, verified issue-to-legislation alignment, upgraded statutory source treatment, and clarified remaining source, legal, adoption, and budget tasks.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T2.

**Next audit need:** Run T3 readiness audit. Prioritize primary records for the Freeman/Moss, Arizona, bomb-threat, Raffensperger-family, and workforce-attribution examples; a representative state-law survey; additional primary Maryland and federal bill records; HAVA appropriations and EAC grant analogues; election-administrator support or opposition; First Amendment/doxxing and protective-order doctrine; Spending Clause and anti-commandeering analysis; and whether the federal title needs a specific authorization amount or administrative-cost cap.

**Audit process feedback:** ELEC-003's design is strong enough for serious development, but the next quality gain depends on replacing source leads with primary records and testing fiscal/legal details rather than expanding the narrative.

## **2026-06-28 — T1 Framework Check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope:** This T1 audit reviewed ELEC-003, the linked model state bill, the linked federal HAVA amendment, the audit dashboard, audit inventory, source inventory, and governing framework/methodology. It checked visible page structure, metadata, legislation links, issue-to-legislation consistency at a framework level, Budgetary Impact Statement placement, source-inventory presence, basic current-status risk, initial existing-law fit, and enactment-pathway fields.

**Current-status and mootness check:** T1 found no obvious current law, judicial decision, enacted reform, or factual development that moots ELEC-003. Current public reporting continues to indicate that election-worker intimidation, operational disruption, and institutional-security concerns remain live rather than resolved.

**Source work completed:** Replaced the issue-page Proposal Survey links for 52 U.S.C. § 10307, 18 U.S.C. § 875, and HAVA with official U.S. Code links and updated the source inventory treatment for those source rows. The existing manifestation sources remain captured in the source inventory but are not yet fully publication-verified.

**Existing-law fit:** The coupled state/federal vehicle remains appropriate at T1. States own the principal protection regime for election personnel, facilities, protective orders, state offenses, and continuity planning. HAVA remains the best federal statutory hook for a voluntary financial backstop because it already supplies an election-assistance architecture without making the federal government the direct supervisor of state election administration.

**Issue-to-legislation alignment:** No material discrepancy was found at T1 between the issue page, the model state bill, and the federal HAVA amendment. The issue page and bills are aligned on state-primary protection, family and household member coverage, political neutrality, rapid reporting, protective assistance, address confidentiality, continuity planning, workforce support, aggregate reporting, voluntary HAVA-style formula payments, and federal noninterference.

**Budgetary-impact finding:** The budget statement remains adequate for T1. Budget authority is likely required, but no dollar estimate is assigned because the project has not yet identified a source-backed cost analogue, agency budget basis, CBO score, historical appropriation, or audited program cost for this specific grant structure.

**Enactment-pathway finding:** Required Electoral Environment is **state-level-pathway**; Pathway Viability is **state-by-state**; Development Priority is **active**; Pathway Adjustment is **model-law-and-voluntary-federal-grant**. The model state act can proceed state by state, while the federal HAVA amendment requires federal legislation and appropriations.

**Adoption and friction finding:** Adoption Score is 5/12 (Limited Adoption Basis). Adoption Friction is 58/100 (Significant Resistance). T1 found a plausible state-level model-law path and a voluntary federal funding support vehicle, but did not identify proposal-specific polling, election-administrator endorsements, bipartisan sponsor coalitions, enacted model-state uptake, or public-support evidence specific to the mechanism.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 60/100 (Developed Draft) pending T2. Rebaseline status remains **hard-rebaseline-needed** because the issue has not yet received a current-rubric merits score.

**Defects corrected during the audit:** Updated front matter, visible Proposal Scoring fields, initial adoption/friction/pathway fields, Proposal Survey official-law links, audit history, source inventory, audit inventory, and Audit Dashboard.

**Next audit need:** Run T2 development audit. Prioritize primary or official records for the manifestation examples, existing state election-worker protection statutes, election-worker threat legislation introduced in Congress or state legislatures, HAVA statutory-fit review, Spending Clause and anti-commandeering analysis, First Amendment and doxxing limits, source-backed budget analogue research, and election-administrator or state-election-office support/opposition evidence.

**Audit process feedback:** T1 showed that ELEC-003 has a strong architecture and good manifestation breadth, but T2 should focus on official source replacement, existing-law analogues, and budget-source development rather than adding additional examples.

The initial inventory-level audit record is preserved below for chronology.

#### ***2026-06-24 — Initial framework and inventory audit***

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

# ELEC-004 — Abuse of Election Litigation and Investigatory Mechanisms

## Issue Snapshot

**Problem:** Process can manufacture election uncertainty.

**Repair:** Add election Anti-SLAPP screening.

**Vehicle:** Federal and state acts (federal, state).

## Institutional Anomaly

This issue is modeled on the logic of **Anti-SLAPP** laws. Anti-SLAPP statutes recognize that the legal process itself can be abused: even a weak claim can impose cost, delay, discovery burdens, reputational harm, and coercive pressure before a court reaches the merits. ELEC-004 applies that same procedural insight to election proceedings. The adapted target is not ordinary speech or petitioning activity, but the use of election litigation, subpoenas, audits, investigations, or inspection demands to delay certification, manufacture uncertainty, harass election personnel, obtain sensitive election materials, or create a false predicate for extra-legal pressure.

Election law necessarily permits candidates, parties, voters, public officials, and authorized institutions to seek recounts, contests, audits, investigations, and judicial relief. Existing law, however, does not always distinguish quickly and reliably between good-faith election review and proceedings used primarily for improper procedural leverage.

The institutional problem is not the availability of election challenges. The problem is the use of formal legal, quasi-legal, investigatory, subpoena, audit, or judicial mechanisms to convert unsupported allegations into deadline pressure, evidentiary rummaging, official harassment, or public claims that a lawful result remains unresolved.

## Manifestations of the Failure

### *Pre-election process abuse*

Frivolous or abusive pre-election challenges may seek emergency rule changes, voter-list disruption, ballot-design changes, candidate-access changes, broad election-office discovery, or access to sensitive election-system materials. These proceedings may be especially damaging when filed close enough to the election to interfere with ballot preparation, equipment programming, voter notices, mail-ballot processing, staffing, or other election-administration tasks.

### *2020 post-election litigation wave*

After the 2020 presidential election, numerous lawsuits were filed challenging procedures, vote counting, certification, or state results. Many were dismissed for lack of standing, laches, lack of evidence, failure to state a claim, or absence of a legally available remedy. Even when unsuccessful, such filings imposed emergency burdens on courts and election officials and could be used publicly to claim that results remained legally contested.

### *Pennsylvania — mismatch between public fraud narrative and court presentation*

In federal litigation challenging Pennsylvania's result, public claims of fraud were not matched by the legal theory ultimately presented in court. Counsel stated that the case was not a fraud case, and the Third Circuit rejected the effort to undo certification. The episode illustrates how public-facing allegations may be laundered through litigation even when the courtroom record does not support the public narrative. See *Donald J. Trump for President, Inc. v. Secretary Commonwealth of Pennsylvania*, No. 20-3371 (3d Cir. Nov. 27, 2020).

### *Michigan — post-election suit and later sanctions*

A federal post-election suit in Michigan sought extraordinary relief affecting the presidential result. The district court later sanctioned counsel, finding that the suit had been filed without adequate factual and legal basis and was not a legitimate vehicle for overturning the result. This episode illustrates that a proceeding may appear initially as litigation but later prove sanctionable when its factual basis, purpose, or coordination is examined more fully. See source lead for *King v. Whitmer* in CourtListener; primary order verification remains pending.

### *Wisconsin, Nevada, and other state proceedings*

Post-election challenges in multiple states sought relief that would have affected certified or certifiable results, including selective invalidation of votes, extraordinary review, or annulment theories. Courts generally rejected claims that failed to establish material error sufficient to change the result or justify the requested remedy. These proceedings show the need for early materiality and remedy-fit requirements when a filing seeks election-disruptive relief.

### *Investigatory, subpoena, and audit mechanisms*

Election pressure may also appear as subpoenas, public-records demands, nonstatutory audits, legislative investigations, or inspection demands for ballots, equipment, voter data, source code, logs, chain-of-custody records, or security-sensitive materials. Such demands may be legitimate when grounded in lawful authority and material evidence, but they can also be used to burden officials, expose sensitive systems, or imply fraud without proof.

In June 2026, federal agents searched the Cleveland office of the Ohio Organizing Collaborative, a grassroots organization involved in voter-registration and voting-rights work, and reportedly seized documents and computer files while also contacting people affiliated with the group. Reporting described the search as connected to potential voter-fraud allegations, while officials and voting-rights advocates

criticized the timing and warned that the action could chill voter-registration activity before competitive 2026 races. Treat political motive, retaliation, or voter-intimidation purpose as concerns raised by critics unless later court records, warrant materials, inspector-general findings, congressional findings, or official admissions substantiate them. See Associated Press, *FBI searches office of Ohio group that supports voter registration efforts*, and The Guardian, *FBI raid of Ohio voting rights group stokes fear of pre-midterm crackdown*.

## Resulting Damage

Abusive election proceedings can compress statutory deadlines, shift attention from ordinary recount and contest channels, increase litigation and security costs, burden election personnel, expose sensitive materials, encourage forum shopping, create public misimpressions of legal uncertainty, and provide a predicate for certification delay, alternate-electoral schemes, legislative intervention, or federal executive pressure.

The damage is often procedural rather than outcome-determinative: delay, uncertainty, access pressure, and public delegitimization may succeed even when the underlying case eventually fails.

## Underlying Weakness

Existing law may lack:

- Anti-SLAPP-style early screening adapted to extraordinary election-disruptive relief;
- a motion-invoked trigger that avoids unnecessary screening where no party disputes material facts or no sensitive process is sought;
- a pre-election timing bar preventing special motions concerning elections more than 180 days away, except for immediate sensitive-material or present security/privacy risks;
- an express rule that no fixed post-election cutoff applies while the proceeding remains functionally related to the election result, election administration, or sensitive election material;
- particularized pleading and evidentiary-proffer requirements;
- automatic stays of intrusive discovery, subpoenas, or inspection demands;
- materiality and remedy-fit requirements before certification or election deadlines are affected;
- protections for ballots, voter data, election equipment, source code, logs, chain-of-custody records, and security procedures;
- prompt sanctions for knowingly false, frivolous, or improper-purpose filings;
- later-discovered improper-purpose sanctions where coordination or bad faith emerges after initial proceedings;
- clear separation between citizen reporting, recounts, contests, audits, investigations, certification, and litigation;
- expedited appellate review before downstream deadlines expire; and
- safeguards against chilling good-faith reporting or authorized election contests.

## Proposal Survey

Anti-SLAPP statutes provide the closest procedural analogue: early screening, discovery stays, burden clarification, and fee shifting for abusive litigation. Because Anti-SLAPP law is primarily state law and varies widely, ELEC-004 adapts the architecture rather than copying any single state statute.

Federal procedural models also exist for accelerated election litigation and sensitive-material protection, including expedited review provisions in the Electoral Count Reform Act, ordinary protective-order practice, and Congress's rulemaking authority under the Rules Enabling Act. See Pub. L. No. 117-328, div. P, Federal Rule of Civil Procedure 26(c), and 28 U.S.C. § 2072). The proposal applies those ideas to election-disruptive process abuse.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is a two-track package:

1. mandatory federal-court Anti-SLAPP-style screening, discovery control, sensitive-material protection, and later-discovered improper-purpose sanctions for federal election proceedings; and
2. model state legislation encouraging states to adopt parallel procedures for state courts and state-law election proceedings.

This approach avoids a federal takeover of state election-contest systems while ensuring that federal courts do not become vehicles for election-disruptive litigation, evidentiary rummaging, or later-discovered coordinated schemes.

## **Repair and Prevention**

### ***Federal-court legislation***

Congress should enact an Anti-SLAPP-style federal Election Proceedings Integrity Act governing federal-court proceedings that seek election-disruptive relief or access to sensitive election materials in elections involving federal office. The statute should include:

1. a motion-invoked special procedure to screen election proceedings seeking extraordinary relief;
2. a bar on special motions concerning elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue;
3. no fixed post-election cutoff where the proceeding remains functionally related to election administration, the election result, certification, recounts, contests, elector appointment, or sensitive election material;
4. an automatic stay of intrusive discovery, subpoenas, inspections, and sensitive-material access pending screening once a proper motion is filed;
5. early requirements of legal authority, timeliness, particularized facts, materiality, evidentiary support, and remedy fit;
6. heightened findings before certification, elector appointment, counting, tabulation, recount, or other statutory election deadlines may be delayed or disturbed;
7. protective-order procedures for ballots, voter data, equipment, source code, logs, chain-of-custody records, and security-sensitive information;
8. narrow discovery only where necessary to test a specific, colorable, material claim;
9. fee shifting and sanctions only upon specific findings of abuse, bad faith, frivolousness, knowingly false factual allegations, improper purpose, harassment, delay, or unauthorized-access motive;
10. a post-disposition lookback mechanism allowing sanctions where later-discovered evidence proves that the proceeding was part of a coordinated improper scheme; and
11. safe harbors for good-faith citizen reporting, ordinary recounts, ballot-specific voter remedies, and statutorily authorized contests.

### ***Model state legislation***

States should be encouraged to enact a parallel Anti-SLAPP-style Election Proceedings Integrity Act for state courts, state-law election contests, recount litigation, nonstatutory audit demands, subpoenas, and proceedings seeking to affect state or local certification. State adoption is necessary because many election contests and challenges arise in state court and under state law.

### ***Citizen reporting distinction***

ELEC-004 does not regulate ordinary citizen complaints, reports of suspected irregularity, ballot-specific voter remedies, or statutorily authorized recount participation. A voter may report suspected irregularities to election officials, law enforcement, candidates, parties, prosecutors, or other authorized bodies without triggering the special screening or sanctions mechanism.

The screening procedure applies to proceedings or demands that seek coercive, disruptive, or sensitive-material relief, regardless of whether the filer is a candidate, party, official, organization, attorney, or private plaintiff.

### ***Legislation Crosswalk***

The federal and model state bills are intended to mirror one another while respecting institutional differences. ELEC-004 applies to federal courts and federal election proceedings; ELEC-004-state adapts the same architecture for state courts, state election tribunals, state subpoenas, administrative or legislative demands, and state-law election contests. Future revisions should check the corresponding federal or state draft before materially changing definitions, timing, special-motion procedure, stays, emergency-relief findings, sensitive-material protections, sanctions, later-discovered sanctions, expedited review, savings clauses, uniform application, relation-to-law provisions, or severability.

The remedy architecture addresses abusive pre-election challenges through the 180-day timing bar, relief-based trigger, special screening motion, stay, and emergency-relief findings; unsupported public fraud narratives through evidentiary, materiality, remedy-fit, and sanctions requirements; post-election disruption through no fixed post-election cutoff and emergency-relief findings; sensitive-material demands through stay and protective-order requirements; broad subpoenas, audits, inspections, or forensic demands through screening, narrowing, quashing, conditioning, and sanctions; later-discovered coordination through the post-disposition sanctions mechanism; and good-faith-report chilling through preserved-activity provisions.

## **Proposed Legislation**

- Federal Election Proceedings Integrity Act
- Model State Election Proceedings Integrity Act

## Relationship to Adjacent Proposals

- **ELEC-001** concerns federal executive interference with state and local election administration.
- **ELEC-002** concerns certification refusal, deadlock, delay, or unauthorized discretion by certification bodies.
- **ELEC-003** concerns protection of election personnel from threats, harassment, doxxing, retaliation, and operational disruption.
- **ELEC-004** concerns Anti-SLAPP-style control of abusive election litigation, investigatory demands, subpoenas, audit requests, and extraordinary proceedings.
- **ELEC-005** concerns alternate-electoral or false-certification schemes.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful results.

ELEC-004 may supply the procedural predicate for ELEC-002 or ELEC-005 conduct, but it owns the abuse of formal election process itself.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 73 / 100 (Substantially Developed Draft)

**Adoption Score:** 4 / 12 (Limited Adoption Basis)

**Adoption Friction:** 72 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

**Audit Status:** T4 publication-ready audit complete; targeted Change Audit needed after source-development update

**Last Audit:** T4 publication-ready audit

**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current; **Change Audit Needed:** yes

**Next Audit:** Targeted Change Audit / Internal Remedy-Fit Audit after Ohio source-development update

**Full Audit History:** ELEC-004 audit history

## Annotation

**Anti-SLAPP Analogy.** This issue expressly borrows from Anti-SLAPP architecture: early screening, discovery stay, burden clarification, fee-shifting, and sanctions. The model is adapted for public-law election proceedings rather than ordinary civil claims affecting speech or petitioning.

**Motion-Invoked Procedure.** The screening mechanism is not automatic. It is invoked by a party or affected person, allowing uncontested cases, pure questions of law, and cases without sensitive-material or election-disruptive relief to proceed without unnecessary screening delay.

**Timing Rule.** The special motion is barred for future elections more than 180 days away, except where immediate access to sensitive election material or a present security/privacy risk is at issue. No fixed post-election cutoff applies; after the election, availability depends on functional relation to the election result, election administration, or sensitive election material.

**No Anti-Challenge Rule.** The proposal does not disfavor election challenges. It requires an early showing only when a proceeding seeks extraordinary relief, deadline disruption, intrusive discovery, sensitive-material access, or other coercive process capable of impairing election administration.

**Later-Discovered Coordination.** Sanctions should remain available after final disposition where later evidence shows that a filing or demand was materially connected to an improper scheme. The penalty is not retroactive criminalization; it is deferred enforcement against conduct that was improper when undertaken but provable only later.

**Federalism.** Federal legislation should govern federal courts and federal-election-related proceedings. States should be encouraged, not commandeered, to adopt parallel procedures for state courts and state-law contests.

**Source Development Pending.** Further development should cite representative cases and orders from Pennsylvania, Michigan, Wisconsin, Nevada, Georgia, and other election proceedings, together with Rule 11, 28 U.S.C. § 1927, inherent-power sanctions, and state Anti-SLAPP analogues.

**Quality Score.** The 73/100 score reflects a Substantially Developed Draft after T4. T4 confirmed the coupled federal/model-state vehicle, issue-to-legislation alignment, Anti-SLAPP analogy, sanctions and protective-order source coverage, representative source support for Pennsylvania and Michigan, and the need to treat the federal bill as statutory procedure rather than a rules amendment. The proposal remains below Review Ready because core primary records, federal-procedure authority, Petition Clause and First Amendment limits, state-court authority, and prior-proposal comparison remain unresolved.



**Adoption Score.** The 4/12 score is limited. ELEC-004 has a clear procedural analogue in Anti-SLAPP law and a staged federal/state vehicle, but T1 did not identify proposal-specific polling, sponsor coalitions, administrator or court-administration support, bipartisan legislative records, or enacted election-specific Anti-SLAPP analogues.

**Adoption Friction.** The 72/100 score is High Resistance. The proposal touches election litigation, court procedure, sanctions, sensitive election materials, subpoena and audit demands, and Petition Clause/First Amendment concerns, and opponents could characterize it as burdening election challenges even though the draft preserves good-faith reporting and lawful contests.

**Required Electoral Environment.** The required environment is *sixty-vote-senate*, with Pathway Viability *plausible-after-wave* and Pathway Adjustment *stage*. The federal-court procedure likely requires ordinary federal legislation, while the model-state component can be developed and promoted state by state as a staged path.

**Development Priority.** The priority is *active* because litigation and investigatory-process abuse can materially affect election timelines, sensitive election materials, election personnel, and public confidence even when the underlying claim ultimately fails.

**Procedure Authority.** T4 treats the federal bill as a statutory federal-court procedure proposal rather than a proposed amendment to the Federal Rules of Civil Procedure. That posture remains plausible but unresolved. Before circulation, a federal-courts or legislative-counsel reviewer should determine whether the bill should be narrowed, codified in title 28, or converted into amendments to existing procedural statutes.

## ELEC-004 — Audit History

This file preserves the full audit history for ELEC-004. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation needed before circulation

**Audit scope:** This T4 audit reviewed ELEC-004, the linked federal bill, the linked model state bill, manifestation source posture, Anti-SLAPP analogy, sanctions and protective-order source coverage, Rules Enabling Act posture, issue-to-legislation alignment, legal durability, abuse resistance, adoption posture, and publication blockers. It did not obtain qualified federal-courts, election-law, court-administration, or legislative-counsel review.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T4 moots ELEC-004. Existing sanctions, protective orders, and Anti-SLAPP laws remain relevant partial analogues, but they do not clearly supply a tailored election-proceeding screen for deadline-disruptive relief, sensitive election materials, and later-discovered improper-purpose coordination.

**Source-refresh finding:** The Pennsylvania manifestation has primary appellate source support and the Michigan manifestation has a source lead. The issue is not publication-ready because Wisconsin, Nevada, Georgia, pre-election, investigatory, subpoena, and audit examples still need primary records or narrower language. T4 did not complete a comprehensive direct source survey.

**Legal-durability finding:** The concept remains plausible but not Review Ready. The federal proposal should be treated as a statutory federal-court procedure proposal rather than a Federal Rules amendment, but that approach must be tested against the Rules Enabling Act, title 28 codification practice, Article III, the Petition Clause, the First Amendment, federalism, state-court authority, and court-rule displacement. The state model also needs state-by-state review because Anti-SLAPP, public-records, election-contest, court-rule, ballot-secrecy, and separation-of-powers rules vary materially.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page, the federal bill, and the model state bill. The documents remain aligned on the federal/state split, motion-invoked screening, timing limits, sensitive-material stay, emergency-relief findings, sanctions, later-discovered improper-purpose sanctions, and safe harbors.

**Budgetary-impact finding:** Administrative workload remains possible and no new appropriation is specified. T4 did not identify a direct appropriation need, but further review should test court-administration burden, expedited appeal burden, election-office response costs, and whether public-cost restitution is adequate.

**Adoption and friction finding:** Adoption Score remains 4/12. Adoption Friction remains 72/100. The proposal has an intelligible Anti-SLAPP analogy and staged federal/state path, but lacks proposal-specific polling, sponsor support, court-administration input, election-administrator support, bipartisan prior-proposal evidence, or enacted election-specific analogues.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 5/8; Remedy 9/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 73/100 (Substantially Developed Draft).

**Score effect:** Score increased from 71 to 73 because T4 confirmed issue-to-legislation alignment, clarified the statutory-procedure posture, and sharpened publication blockers. It remains below Review Ready because the central legal-authority and primary-source questions are not yet sufficiently resolved.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, Procedure Authority annotation, audit history, audit inventory, and Audit Dashboard. No legislative text was changed during T4.

**Publication blockers:** Obtain primary records for all remaining manifestations; complete a direct Anti-SLAPP and election-contest statute comparison; verify whether the federal text should be codified in title 28 or narrowed; obtain federal-courts, election-law, or legislative-counsel review; test Petition Clause and First Amendment risks; and evaluate state-law implementation across representative states.

**Audit process feedback:** ELEC-004 should not be advanced to Review Ready without expert legal review. The project should treat it as a promising but legally sensitive procedural reform rather than a near-circulation draft.

#### 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication audit pending

**Audit scope:** This T3 audit reviewed ELEC-004, the linked federal bill, the linked model state bill, T2 manifestation source additions, existing sanctions and protective-order source leads, Rules Enabling Act fit, issue-to-legislation alignment, budget posture, legal-durability risks, adoption posture, and readiness blockers. It did not complete primary-record retrieval for every manifestation, comprehensive Anti-SLAPP comparison, or full constitutional/procedural authority analysis.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T3 moots ELEC-004. Existing sanctions and protective-order mechanisms remain partial and after-the-fact; they do not clearly create a tailored

election-specific screen for deadline-disruptive relief, sensitive election materials, or later-discovered improper-purpose coordination.

**Source finding:** T3 added official Rules Enabling Act source support to the Proposal Survey. Pennsylvania now has primary appellate source support and Michigan has a source lead, but the Wisconsin, Nevada, Georgia, pre-election, investigatory, subpoena, and audit manifestations remain insufficiently sourced for publication. T4 should obtain primary court orders, sanctions orders, docket materials, official investigation records, or narrow the manifestation language.

**Legal-fit finding:** T3 treats the federal bill as a statutory federal-court procedure proposal rather than a direct amendment to the Federal Rules of Civil Procedure. That posture is plausible because Congress can legislate federal procedure, but T4 must test whether any provision abridges, enlarges, or modifies substantive rights, conflicts with the Rules Enabling Act framework, burdens the Petition Clause, chills good-faith election contests, or intrudes on state-court authority.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page, the federal bill, and the model state bill. The documents remain aligned on the federal/state split, motion-invoked screening, timing limits, sensitive-material stay, emergency-relief findings, sanctions, later-discovered improper-purpose sanctions, and safe harbors.

**Budgetary-impact finding:** Administrative workload remains possible and no new appropriation is specified. T3 did not identify a direct appropriation need, but T4 should test court-administration burden, expedited-review burden, election-office response costs, protective-order compliance, and whether public-cost restitution is sufficient.

**Adoption and friction finding:** Adoption Score remains 4/12. Adoption Friction remains 72/100. The proposal has a recognizable Anti-SLAPP analogy but no proposal-specific coalition evidence, court-administration support, election-administrator endorsement, polling, or sponsor history.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 4/8; Remedy 9/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 71/100 (Substantially Developed Draft).

**Score effect:** Score increased from 68 to 71 because T3 added procedure-authority source support and clarified that the federal proposal must be tested as statutory federal-court procedure. The proposal remains below Review Ready because primary records, prior-proposal comparison, Rules Enabling Act and Petition Clause review, and state-law implementation analysis remain incomplete.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, Procedure Authority annotation, Proposal Survey source link, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T3.

**Publication blockers:** Obtain primary court records for remaining manifestations; complete a direct Anti-SLAPP and election-contest statute comparison; test Rules Enabling Act, Petition Clause, First Amendment, Article III, Elections Clause, federalism, state-court authority, and court-rule displacement concerns; verify whether the federal text should be codified in title 28; and seek election-law, federal-courts, or legislative-counsel review.

**Audit process feedback:** ELEC-004 should not be advanced to Review Ready until the federal procedure authority question and primary manifestation sourcing are substantially stronger.

## **2026-06-28 — T2 Development Audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed ELEC-004, the linked federal bill, the linked model state bill, T1 pathway fields, Anti-SLAPP source leads, federal sanctions/protective-order source leads, representative litigation examples, issue-to-legislation alignment, budget posture, legal-fit risks, adoption posture, and current-rubric scoring. It did not complete a full primary-record survey for all manifestations, complete federal/state Anti-SLAPP comparison, or resolve constitutional/procedural-rule concerns.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T2 moots ELEC-004. Existing Rule 11, 28 U.S.C. § 1927, inherent-power sanctions, protective-order practice, and state Anti-SLAPP laws provide partial analogues but do not clearly supply a tailored early screen for election-disruptive relief, sensitive election materials, deadline pressure, and later-discovered improper-purpose schemes.

**Source work completed:** T2 added primary Third Circuit source support for the Pennsylvania manifestation and a CourtListener source lead for the Michigan sanctions manifestation. The Wisconsin, Nevada, Georgia, pre-election, and investigatory/audit manifestations remain under-sourced for publication. T3 should replace source leads with primary orders, docket materials, or official records wherever available.

**Existing-law and prior-proposal finding:** The proposal remains plausible as a coupled federal/model-state package, but T2 did not complete the required existing-law and prior-proposal survey. Higher-tier review should compare existing Federal Rules of Civil Procedure, federal statutes, inherent-power sanctions, state Anti-SLAPP laws, state election-contest statutes, and state public-records/security protections before concluding that every new procedural element is necessary.

**Legal-fit finding:** Legal fit remains preliminary. The federal bill may be supportable as statutory federal-court election procedure, but T3/T4 must test Rules Enabling Act interaction, Article III jurisdiction, Petition Clause and First Amendment concerns, court-rule displacement, federalism limits, state-court authority, and whether the later-discovered sanctions mechanism is sufficiently bounded.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page, the federal bill, and the model state bill. The documents remain aligned on motion-invoked screening, pre-election timing limits, no fixed post-election cutoff, automatic stay of intrusive process, emergency-relief findings, sensitive-material protection, sanctions, later-discovered improper-purpose sanctions, and safe harbors.

**Budgetary-impact finding:** Administrative workload remains possible and no new appropriation is specified. T2 did not identify a need for direct appropriations, but T3 should examine court-administration burdens, expedited review workload, election-office response burdens, protective-order compliance, and public-cost restitution.

**Adoption and friction finding:** Adoption Score remains 4/12. Adoption Friction remains 72/100. The Anti-SLAPP analogy helps explain the proposal, but the election-specific application is legally and politically sensitive and lacks proposal-specific support evidence.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 7/12; Legal Fit 5/10; Prior-Proposal 4/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 68/100 (Developed Draft).

**Score effect:** Score increased from 60 to 68 because T2 completed the first current-rubric component rebaseline, added representative source support, confirmed issue-to-legislation alignment, and clarified the main legal and source-development risks. The proposal remains below Substantially Developed because primary records, legal fit, prior-proposal comparison, and implementation analysis remain incomplete.

**Defects corrected during the audit:** Updated the issue-page score, metadata, Proposal Scoring box, Quality Score annotation, manifestation source links, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T2.

**Next audit need:** Run T3 readiness audit. Prioritize primary court records for Michigan, Wisconsin, Nevada, Georgia, and investigatory/audit examples; compare Rule 11, 28 U.S.C. § 1927, inherent-power sanctions, protective orders, state Anti-SLAPP laws, state election-contest statutes, and public-records protections; test Rules Enabling Act, Petition Clause, First Amendment, Article III, Elections Clause, and federalism issues; and assess whether the 180-day timing rule and later-discovered sanctions mechanism need narrowing.

**Audit process feedback:** ELEC-004 is conceptually promising but legally sensitive. Future audits should not raise the score materially without primary litigation records and a deeper procedural-authority analysis.

## **2026-06-28 — T1 Framework Check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope:** This T1 audit reviewed ELEC-004, the linked federal bill, the linked model state bill, the audit dashboard, audit inventory, source inventory, and governing framework/methodology. It checked visible page structure, metadata, legislation links, issue-to-legislation consistency at a framework level, Budgetary Impact Statement placement, source-inventory presence, basic current-status risk, initial existing-law fit, and enactment-pathway fields.

**Current-status and mootness check:** T1 found no obvious current law, judicial decision, enacted reform, or factual development that moots ELEC-004. Existing sanctions rules, protective-order practice, and Anti-SLAPP analogues do not appear to supply a tailored election-proceeding screen for election-disruptive relief, sensitive election materials, and later-discovered improper-purpose schemes.

**Source work completed:** T1 confirmed existing source rows for the Electoral Count Reform Act source lead, Federal Rules of Civil Procedure 11 and 26(c), 28 U.S.C. § 1927, and the Reporters Committee Anti-SLAPP guide. T2 should add representative case/order sources for the named manifestation examples and should prefer primary court records where available.

**Existing-law fit:** The coupled federal/model-state vehicle remains appropriate at T1. Federal legislation is needed for federal-court procedure if the proposal is to operate directly in federal election proceedings. State model legislation remains necessary because state election contests, subpoenas, audits, public-records disputes, and inspection demands arise under state law and state procedure.

**Issue-to-legislation alignment:** No material discrepancy was found at T1 between the issue page, the federal bill, and the model state bill. The documents are aligned on Anti-SLAPP-style special screening, motion invocation, timing limits, sensitive-material stays, emergency-relief findings, sanctions, later-discovered improper-purpose sanctions, and preservation of good-faith reporting and lawful contests.

**Budgetary-impact finding:** The budget statement remains adequate for T1. Administrative workload is possible, but no new appropriation is specified. T2 should test whether federal or state court administration, expedited review, protective-order compliance, or election-office response burdens require more precise fiscal discussion.

**Enactment-pathway finding:** Required Electoral Environment is *sixty-vote-senate*; Pathway Viability is *plausible-after-wave*; Development Priority is *active*; Pathway Adjustment is *stage*. The federal bill likely requires ordinary federal legislation, while the model-state bill can be developed and promoted separately.

**Adoption and friction finding:** Adoption Score is 4/12 (Limited Adoption Basis). Adoption Friction is 72/100 (High Resistance). T1 found a clear Anti-SLAPP procedural analogue and a staged vehicle, but no proposal-specific polling, sponsor coalition, court-administration support, election-administrator endorsement, or election-specific enacted analogue.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 60/100 (Developed Draft) pending T2. Rebaseline status remains **hard-rebaseline-needed** because the issue has not yet received a current-rubric merits score.

**Defects corrected during the audit:** Updated front matter, visible Proposal Scoring fields, initial adoption/friction/pathway fields, audit history, audit inventory, and Audit Dashboard. No legislative text or source rows were changed during T1.

**Next audit need:** Run T2 development audit. Prioritize representative primary case/order sources for Pennsylvania, Michigan, Wisconsin, Nevada, Georgia, and other relevant election proceedings; federal sanctions and protective-order doctrine; Anti-SLAPP functional analogues; Rules Enabling Act, Petition Clause, Article III, Elections Clause, and state court-rule authority analysis; and whether the 180-day timing rule and later-discovered sanctions mechanism are appropriately calibrated.

**Audit process feedback:** T1 shows that ELEC-004 has coherent structure but high legal sensitivity. T2 should focus on legal fit and primary litigation sources before adding more examples.

The initial inventory-level audit record is preserved below for chronology.

### ***2026-06-29 — Source-development update***

**Audit status:** Source-development note added; no proposal-quality score change

**Scope:** Added the June 2026 FBI search of the Ohio Organizing Collaborative's Cleveland office as an investigatory-process manifestation for ELEC-004. The update reviewed the issue boundary and placed the episode under abuse of election investigatory mechanisms rather than PRESS-003 because the target was a voter-registration and voting-rights organization rather than a media organization.

**Source posture:** Added Associated Press and The Guardian source leads. The page treats criticism about political motive, retaliation, or voter-intimidation purpose as concerns raised by critics, not established findings. Publication-ready reliance requires warrant materials, docket records, official DOJ/FBI statements, and any relevant state election records.

**Score effect:** No score change. The update adds a relevant contemporary source-development example but does not resolve ELEC-004's existing publication blockers concerning primary records, federal-procedure authority, Petition Clause and First Amendment limits, state-court authority, or prior-proposal comparison.

**Internal remedy-fit marker:** Because this is a developed issue with a scored proposal, the Ohio manifestation should not be treated as fully absorbed until a targeted Change Audit confirms that ELEC-004's Anti-SLAPP-style procedural remedy still addresses the expanded investigatory-process framing. The Change Audit should decide whether the episode fits ELEC-004 as written, belongs partly in ELEC-001 or DOJ-002, requires a targeted addition to the legislation for federal criminal-investigative searches or subpoenas directed at voter-registration organizations, or should remain only a source-development example.

**Next audit need:** Run a targeted Change Audit / Internal Remedy-Fit Audit. During that pass, verify the Ohio search through primary records if available and decide whether the legislation should expressly address federal criminal-investigative searches or subpoenas directed at voter-registration organizations.

### ***2026-06-24 — Initial framework and inventory audit***

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

# ELEC-005 — Weak Safeguards Against False Presidential Result-Transmission Documents

## Issue Snapshot

**Problem:** False presidential result documents can enter federal channels.

**Repair:** Define, mark, and penalize unauthorized transmissions.

**Vehicle:** Title 3 amendment (draft).

## Institutional Anomaly

Federal presidential-election law relies on official state-issued documents entering a federal receipt, preservation, and counting or verification channel. Under the current Electoral College system, those documents include presidential-elect certificates and related elector-vote materials. Under any replacement system, they would include whatever official state or national presidential result-transmission documents federal law designates.

Existing law does not expressly define a purpose-built federal offense or civil enforcement mechanism for knowingly submitting, transmitting, filing, presenting, delivering, or using false or unauthorized presidential result-transmission documents in that federal channel.

The problem is not that existing fraud, forgery, false-statement, obstruction, conspiracy, or state-law remedies are unavailable in every case. The problem is that those remedies are retrospective, uneven, element-specific, and not expressly designed to protect the federal presidential result-transmission channel before false documents can be used as procedural or political leverage.

## Manifestations of the Failure

### *Multi-state false-electoral certificates — 2020*

After the 2020 presidential election, individuals in multiple states prepared or signed documents purporting to cast electoral votes for a candidate who had not been certified as the winner in those states. The institutional harm was the creation of facially official elector documents outside the lawful certificate-of-ascertainment process, with potential use in the federal electoral-count process. The Select Committee to Investigate the January 6th Attack treated the alternate-electoral effort as a distinct pressure point in the broader federal-count record. See Final Report of the Select Committee to Investigate the January 6th Attack on the United States Capitol. A former Senate official also testified in Michigan proceedings that a fake certificate of votes was mailed to the Senate and did not match the official gubernatorial certificate. See Associated Press, *Fake Michigan Certificate of Votes mailed to U.S. Senate after 2020 presidential vote, official says*.

### *State prosecutions under general statutes*

Some states pursued prosecutions under general forgery, false-instrument, election-law, fraud, or conspiracy statutes. These prosecutions demonstrate that existing law may reach some conduct, but also demonstrate that prosecutors must fit presidential-result-transmission conduct into statutes not written for this specific federal-channel function. Michigan charges were dismissed for insufficient evidence of fraudulent intent, Nevada's case was revived on venue grounds, and Arizona prosecutors dismissed their case while stating an intent to seek a new indictment after losing an appeal concerning grand-jury process. See Politico, *Michigan judge dismisses criminal charges against false Trump electors*, Politico, *Nevada Supreme Court revives criminal case over Trump elector gambit*, and Associated Press, *Arizona prosecutors dismissing fake elector case but vow to seek new indictment*.

### *Statutory-fit and remedial-gap concerns*

At least some jurisdictions confronted questions about whether existing state statutes clearly covered the conduct. Even where prosecution is available, criminal law may not provide rapid declaratory relief, document invalidation, official recipient duties, or clear federal-channel handling rules. Wisconsin's civil settlement, for example, shows that civil remedies can secure acknowledgment and future-service limits, but only after the documents have already entered public and federal channels. See The Guardian, *Fake electors in Wisconsin first to admit Biden won election and face penalty*.

### *Contingent or disputed-result ambiguity*

A narrow category of contingent elector or disputed-result preservation activity may be legitimate where a real recount, contest, or litigation proceeding remains unresolved and the document is clearly conditional and nonoperative. The absence of clear federal labeling and transmission rules permits abusive documents to mimic lawful official result documents while claiming after the fact to be merely contingent. Post-2020 defenses have repeatedly invoked contingent-electoral theories and Hawaii 1960 comparisons, making a narrow safe harbor important to avoid overcriminalizing lawful preservation activity while still prohibiting false present-tense use. See The Guardian, *The fake elector defense: what Trump allies are saying to justify the 2020 scheme*.

### *Transmission and official-receipt vulnerability*

False or unauthorized presidential result-transmission documents become most dangerous when sent to Congress, the President of the Senate, the Archivist, NARA, federal courts, or other federal recipients. Without explicit receipt duties, such documents may be preserved, circulated, cited, or publicly described in a way that creates legal uncertainty or supports pressure on federal actors.

## Resulting Damage

False or unauthorized presidential result-transmission documents can manufacture ambiguity, support congressional objections, pressure federal officials, create public confusion, burden courts and election officials, and provide a predicate for efforts to obstruct or distort the lawful presidential result-recognition process.

## Underlying Weakness

Existing law may lack:

- a federal prohibition on false or unauthorized presidential result-transmission documents entering federal channels;
- a clear definition of unauthorized presidential result-transmission documents, including presidential-electoral documents under the current system;
- a safe harbor for genuinely contingent, nonoperative documents;
- explicit federal recipient duties to preserve, mark, refer, and avoid treating unauthorized documents as operative;
- rapid civil enforcement and declaratory relief;
- calibrated criminal penalties tied to knowing federal-channel misuse;
- an express rule preserving state authority before federal transmission; and
- clear nonpreemption of state criminal, civil, and election-law remedies.

## Proposal Survey

The Electoral Count Reform Act clarified several certificate and electoral-count procedures but did not create a standalone false-result-transmission offense. See 3 U.S.C. §§ 5, 11, 12, and 15. Existing criminal statutes may apply to false documents, false statements, conspiracy, or obstruction, but they were not designed specifically for presidential result-transmission channels. See 18 U.S.C. §§ 371, 1001, and 1512.

State forgery, false-instrument, and election-law statutes provide additional models, but coverage and remedies vary. ELEC-005 therefore proposes a targeted federal-channel rule that supplements rather than displaces existing federal and state remedies.

## Least-Complex Adequate Remedy

The least-complex adequate remedy within the existing Electoral College framework is a targeted federal amendment to Title 3 rather than a general federal regulation of state elector appointment. The amendment should protect only the federal receipt, preservation, and counting channel.

A less complex and more complete structural remedy may be abolition of the Electoral College itself, because eliminating presidential electors would make false presidential-electoral certificates moot. That broader structural reform belongs principally to ELEC-009. If a non-Electoral-College presidential election mechanism is adopted, however, the core principle of ELEC-005 should remain applicable to the official transmission of presidential-election results to federal officials. A replacement system would still require a protected federal channel for official state or national result documents, and knowingly false or unauthorized result-transmission documents should not be permitted to create federal procedural ambiguity.

## Repair and Prevention

Congress should amend chapter 1 of title 3, United States Code, by adding a new section, likely 3 U.S.C. § 12A, governing false or unauthorized presidential result-transmission documents submitted or used in federal channels.

The federal amendment should:

1. apply only when a false or unauthorized presidential result-transmission document is transmitted, submitted, filed, presented, delivered, or used in a federal channel;
2. leave state appointment, recount, contest, canvass, certification, and result-determination procedures to state law before federal transmission;
3. define unauthorized presidential result-transmission documents, including elector certificates and certificates of vote under the current Electoral College framework;
4. protect clearly labeled contingent or disputed-result documents prepared solely to preserve lawful claims in pending proceedings;
5. impose duties on federal recipients to preserve, mark, refer, and avoid treating unauthorized documents as operative;
6. authorize civil declaratory and injunctive relief by the United States;
7. create calibrated criminal penalties for knowing federal-channel misuse; and
8. supplement, rather than displace, existing federal and state remedies.

## Proposed Legislation

- Presidential Result Transmission Integrity Amendments

## Relationship to Adjacent Proposals

- **ELEC-002** concerns certification refusal, deadlock, delay, or unauthorized discretion by certification bodies.
- **ELEC-004** concerns abusive election litigation, subpoenas, audits, and process leverage.
- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal channels.
- **ELEC-009** concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful results.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 78 / 100 (Review Ready)

**Adoption Score:** 5 / 12 (Limited Adoption Basis)

**Adoption Friction:** 64 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

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**Audit Status:** T4 publication-ready audit complete; external validation pending

**Last Audit:** T4 publication-ready audit

**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current

**Next Audit:** External validation / T4 follow-up

**Full Audit History:** ELEC-005 audit history

## Annotation

**Existing Remedies.** This issue does not assume that false result-transmission conduct is otherwise lawful. Existing fraud, forgery, false-statement, obstruction, conspiracy, perjury, and state election statutes may apply. The proposed reform addresses the structural need for a federal-channel document-integrity rule.

**Federalism Boundary.** The proposal does not regulate how states appoint electors or determine presidential results before federal transmission. It attaches only when a presidential result-transmission document is submitted, transmitted, filed, presented, delivered, or used in a federal channel.

**Electoral College Relationship.** Abolishing the Electoral College would supersede the elector-certificate-specific problem addressed here. The general document-integrity principle would remain relevant, however, to any replacement system requiring official presidential-election results to be transmitted to federal officials.

**Contingent Documents.** A safe harbor is necessary to preserve legitimate litigation-contingent activity while prohibiting false present-tense certification or deceptive federal-channel use.

**Source Development Pending.** Further source development should review the Electoral Count Reform Act, 3 U.S.C. §§ 5, 11, 12, and 15, state false-elector prosecutions, state statutory-gap reports, 18 U.S.C. §§ 371, 1001, and 1512, and relevant forgery and false-instrument statutes.

**Prior-Proposal and Existing-Law Fit.** T3 confirms that the current vehicle follows the project's existing-law-first preference because it amends chapter 1 of title 3 rather than creating a new standalone title. The Electoral Count Reform Act is the closest enacted analogue because it amended the same Title 3 presidential-count architecture, but it does not create a standalone false-result-transmission offense or federal-recipient handling rule for unauthorized documents.

**Judicial Scrutiny.** The proposal's legal durability depends on narrow federal-channel drafting. The strongest defense is that Congress is regulating documents submitted for federal receipt, preservation, recognition, or counting, not choosing state electors or adjudicating state election results. T4 should test the offense against vagueness, overbreadth, petitioning, litigation-contingency, due process, Article II, the Twelfth Amendment, the Necessary and Proper Clause, anti-commandeering doctrine, and state sovereign authority over elector appointment before the criminal provisions are treated as circulation-ready.

**Implementation.** Recipient duties should remain ministerial: preserve the document, mark or log disputed status, avoid treating it as operative absent legal authority, refer apparent misconduct, and notify likely recipients. T4 should verify how NARA, congressional officers, courts, and DOJ already handle disputed elector materials before assigning any more specific duty, deadline, referral path, or recordkeeping burden.



**Quality Score.** The proposal is 78/100 after T4 because it has a developed issue architecture, a linked Title 3 amendment, official statutory source leads, current-status source support, plausible safe-harbor design, a stronger existing-law fit explanation, a federal-count source lead, and no material issue-to-legislation discrepancy. The score remains Review Ready rather than publication-ready because primary state court or attorney-general records, direct Congress.gov prior-proposal survey, legislative-counsel review, criminal-law review, election-law review, and recipient-duty implementation validation remain pending.

**Adoption Score.** Adoption Score remains 5/12. The Title 3 amendment path is understandable and benefits from the post-2020 bipartisan precedent of Electoral Count Reform Act revisions, but ELEC-005 does not yet cite proposal-specific polling, sponsor coalitions, committee activity, or external election-law validation.

**Adoption Friction.** Adoption Friction is 64/100 because the proposal addresses presidential-election documents, false-electoral conduct, federal criminal penalties, state-federal boundaries, and speech/litigation-adjacent safe harbors. Those features make opposition and litigation likely even though the proposal is framed as a neutral federal-channel document-integrity rule.

**Required Electoral Environment.** Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Pathway Adjustment is **proceed**. Because the proposal amends federal presidential-election law and creates a new federal offense, it likely requires ordinary federal legislation capable of surviving Senate cloture and presidential signature. The proposal should proceed as a federal Title 3 amendment, with T2 assessing whether a narrower civil-recipient-duty or appropriations/reporting package could be staged if the criminal-offense path proves too politically or legally costly.

# ELEC-005 — Audit History

This file preserves the full audit history for ELEC-005. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Audit scope:** This T4 audit reviewed ELEC-005, the linked Title 3 bill, current-status source leads, official Title 3 and Title 18 source leads, the Electoral Count Reform Act relationship, a federal-count source lead from the January 6th Select Committee final report, manifestation citations, issue-to-legislation alignment, legal durability, recipient-duty implementation posture, budget posture, adoption posture, audit dashboard, audit inventory, source inventory, and governing framework/methodology. It did not obtain qualified external review, retrieve every primary state docket record, complete a full Congress.gov bill-search memorandum, or secure legislative-counsel review.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T4 moots ELEC-005. Recent and current false-electoral prosecution posture remains uneven across states, and no located federal enactment supplies the exact combination of federal-channel recipient duties, safe-harbor labeling, civil relief, and knowing false-result-transmission penalties proposed here.

**Source-refresh finding:** T4 improved federal source posture by adding the official GovInfo copy of the January 6th Select Committee final report as a federal-count source lead. The issue remains below publication-final because many manifestations still rely on secondary reports and source leads rather than primary state-court orders, indictment documents, attorney-general releases, settlement papers, NARA certificate records, congressional receipt records, or authenticated exhibits.

**Existing-law and prior-proposal finding:** The existing-law vehicle remains the least-complex adequate remedy. Title 3 is the correct statutory neighborhood because the proposal protects federal receipt, preservation, recognition, and counting channels for presidential result documents. The ECRA is a close enacted analogue for repairing electoral-count procedures, but it does not itself create a standalone false-result-transmission rule. T4 did not identify a need to convert ELEC-005 into a new title or abandon the Title 3 amendment path. A direct Congress.gov survey remains a T4 follow-up need.

**Legal-durability finding:** ELEC-005 is plausible but still needs legal validation. The proposal is strongest when confined to knowing use or transmission of false or unauthorized documents in a federal channel. Its most important safeguards are the knowledge element, materiality definition, contingent-document safe harbor, state-process nonpreemption clause, First Amendment rule of construction, and preservation of existing remedies. Remaining legal risks include overbreadth, vagueness, protected petitioning and litigation conduct, Article II/Twelfth Amendment concerns, anti-commandeering, federalism, prosecutorial-discretion concerns, and civil disqualification authority.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. The issue page accurately describes the operative vehicle, federal-channel hook, covered documents, federal recipients, safe harbor, enforcement mechanisms, relation to existing law, federalism limits, and source/development caveats.

**Implementation and budget finding:** The budget statement remains appropriate. Administrative workload is possible, but no new appropriation is specified. The current draft imposes ministerial recipient duties rather than a new funded program. T4 follow-up should still confirm NARA, congressional, court, and DOJ operational practice before adding specific deadlines, forms, referral routes, reporting requirements, training duties, or cost estimates.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 64/100. The post-2020 ECRA precedent supports the plausibility of federal Title 3 repair, but T4 did not identify proposal-specific polling, active sponsor coalitions, committee work, election-administrator support, cross-party endorsements, or external validators specific to this false-document mechanism.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 78/100 (Review Ready).

**Score effect:** Score increased from 75 to 78 because T4 added a federal-count source lead, confirmed legal and implementation posture, completed publication-level internal source refresh, verified issue-to-legislation alignment, and clarified external-validation blockers. The proposal remains Review Ready rather than publication-ready because external legal, legislative, election-administration, and primary-record validation remain incomplete.

**Defects corrected during the audit:** Updated issue-page score, metadata, Proposal Scoring, Quality Score annotation, manifestation source support, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T4.

**External-validation blockers:** Obtain primary state records for Michigan, Nevada, Arizona, Wisconsin, Georgia, and any other cited examples; retrieve NARA or congressional certificate records; complete direct Congress.gov and legislative-history survey; test whether penalties should be placed in Title 3, Title 18, or split between the two; verify safe-harbor drafting against legitimate litigation-contingent electoral documents; obtain criminal-law, election-law, legislative-counsel, and NARA/congressional-process review; assess civil disqualification authority; and locate implementation-burden or workload analogues if any specific recipient duties are added.

**Audit process feedback:** T4 confirms ELEC-005 is suitable for knowledgeable external critique. The next quality gain is external validation and primary-record replacement, not additional autonomous expansion.

## **2026-06-28 — T3 Readiness Audit**

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Audit scope:** This T3 audit reviewed ELEC-005, the linked Title 3 bill, current source posture, official U.S. Code source leads, Electoral Count Reform Act fit, false-electoral prosecution source leads, issue-to-legislation alignment, legal-durability risks, safe-harbor design, recipient-duty implementation, adoption posture, budget posture, audit dashboard, audit inventory, source inventory, and governing framework/methodology. It did not complete primary docket retrieval, NARA certificate retrieval, direct Congress.gov prior-proposal search, detailed legislative-history review, or qualified external review.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T3 moots ELEC-005. The current posture remains uneven rather than resolved: public-source leads show dismissals, revival, and refiling plans across state prosecutions, while no located federal reform supplies the specific federal-channel document-integrity rule proposed here.

**Source finding:** T3 confirms the proposal is sufficiently sourced for knowledgeable external critique, but not publication-final. The issue now has nearby citations for the core manifestations and official U.S. Code source leads for Title 3 and Title 18. Publication work still requires replacing or supplementing secondary reports with primary state court orders, attorney-general releases, indictment materials, NARA or congressional certificate records, settlement documents, and direct defense filings where available.

**Existing-law and prior-proposal finding:** The Title 3 amendment remains the least-complex adequate vehicle at T3. The Electoral Count Reform Act is the closest enacted model because it amended the same presidential-count statutory architecture, but it did not create a standalone false-result-transmission offense, a safe-harbor labeling rule, rapid civil relief, or federal-recipient marking/referral duties. T3 did not locate a reason to convert the proposal into a new freestanding title. A complete Congress.gov survey remains pending for T4.

**Legal-durability finding:** The proposal is legally plausible if it stays limited to federal-channel conduct. Congress has stronger authority to regulate documents submitted to federal recipients for federal electoral-count and preservation functions than to regulate state appointment of electors before federal transmission. The bill's knowledge, materiality, safe-harbor, nonpreemption, federalism, and First Amendment rule-of-construction provisions are important and should not be loosened without legal review. T4 should test whether penalties, civil disqualification, and recipient duties are overbroad, vague, or vulnerable under petitioning, litigation, due-process, Article II, Twelfth Amendment, Necessary and Proper, and anti-commandeering doctrines.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and linked bill. The documents remain aligned on the federal-channel hook, Title 3 amendment path, definition of unauthorized documents, contingent-document safe harbor, federal recipient duties, civil enforcement by the United States, criminal penalties, no preemption of state processes, First Amendment rule of construction, and relation to existing law.

**Implementation finding:** The proposed recipient duties are plausible at T3 because they are ministerial: preserve, mark/log, avoid operative treatment, refer apparent misconduct, and notify likely recipients. T4 should verify NARA, congressional, court, and DOJ practice before adding deadlines, recordkeeping duties, referral channels, or training obligations. The current budget statement remains adequate because no new appropriation is specified, though workload may exist.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 64/100. T3 did not identify proposal-specific polling, sponsor coalitions, committee activity, election-administrator endorsements, or external validators specific to this mechanism. The post-2020 enactment of ECRA supports the plausibility of federal Title 3 repair, but it does not establish support for a new criminal/civil false-document regime.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 75/100 (Review Ready).

**Score effect:** Score increased from 72 to 75 because T3 confirmed the existing-law vehicle, clarified the ECRA relationship, tested federal-channel legal framing, confirmed issue-to-legislation alignment, and added explicit legal and implementation annotations. The proposal is Review Ready for knowledgeable external critique, not publication-ready or lawmaker-circulation-ready.

**Defects corrected during the audit:** Updated issue-page score, metadata, Proposal Scoring, Quality Score annotation, existing-law fit annotation, judicial-scrutiny annotation, implementation annotation, audit history, audit inventory, and Audit Dashboard. No legislative text was changed during T3.

**Publication blockers:** Obtain primary state court and attorney-general records for Michigan, Nevada, Arizona, Wisconsin, Georgia, and any other cited state examples; retrieve NARA or congressional certificate records where available; complete direct Congress.gov and legislative-history survey; determine whether penalties belong in Title 3, Title 18, or a split structure; test the safe harbor against defense theories and legitimate litigation-contingent documents; verify NARA/congressional/court/DOJ recipient-duty mechanics; assess civil disqualification authority; and seek election-law, criminal-law, or legislative-counsel review.

**Audit process feedback:** ELEC-005 crossed into Review Ready because the internal architecture, statutory hook, source trail, and legal theory are now coherent enough for expert critique. T4 should not expand the scope; it should verify primary records and tighten legal durability.

## 2026-06-28 — T2 Development Audit

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Audit scope:** This T2 audit reviewed ELEC-005, the linked Title 3 bill, official Title 3 and Title 18 source leads, current false-electoral prosecution posture, manifestation source support, issue-to-legislation alignment, safe-harbor design, basic constitutional and federalism fit, budget posture, adoption posture, audit dashboard, audit inventory, source inventory, and governing framework/methodology. It did not complete a full Congress.gov prior-proposal survey, primary state docket retrieval, state-by-state statutory comparison, detailed legislative-history review, or external election-law review.

**Current-status and mootness check:** No current law, judicial decision, enacted reform, or factual development located during T2 moots ELEC-005. Current public-source review instead reinforces the diagnosis: state false-electoral remedies remain uneven. Michigan charges were dismissed for insufficient evidence of fraudulent intent; Nevada's prosecution was revived on venue grounds after an earlier dismissal; and Arizona prosecutors dismissed a pending case while stating an intent to seek a new indictment after an appellate ruling concerning grand-jury process. These developments show that general state remedies may reach some conduct but do not supply a uniform federal-channel document-integrity rule.

**Source finding:** T2 strengthened the issue page with nearby citations for the 2020 false-certificate manifestation, state prosecutions, statutory-fit concerns, and contingent-electoral safe-harbor problem. It also retained official U.S. Code source leads for 3 U.S.C. §§ 5, 11, 12, and 15 and 18 U.S.C. §§ 371, 1001, and 1512. Source posture remains below T3 because several real-world examples still rely on secondary reporting rather than official indictments, orders, docket records, state attorney-general releases, NARA records, congressional records, or authenticated certificate materials.

**Existing-law and prior-proposal finding:** The existing-law vehicle remains appropriate. ELEC-005 already amends chapter 1 of title 3 rather than creating a freestanding new title, and the proposed § 12A sits near certificate-transmission and receipt provisions. T2 did not identify a stop condition requiring autonomous conversion to another legal vehicle. T3 should decide whether criminal penalties should remain inside title 3, cross-reference title 18, or be split between Title 3 recipient duties and Title 18 offense provisions. T2 did not complete the required Congress.gov search for direct false-electoral, electoral-certificate, or result-transmission bills.

**Legal-fit finding:** The proposal is plausible but needs T3 legal scrutiny. Congress has a strong federal-channel interest in documents submitted for federal receipt, preservation, recognition, or counting of presidential-election results. The draft narrows federal reach by preserving state appointment and contest processes before federal transmission, adding a contingent-document safe harbor, requiring knowledge and materiality, and including a First Amendment rule of construction. T3 should test vagueness, overbreadth, protected petitioning, litigation-contingency, Article II/Twelfth Amendment limits, Necessary and Proper Clause grounding, anti-commandeering, state sovereign interests, and prosecutorial-discretion concerns.

**Issue-to-legislation alignment:** No material discrepancy was found between the issue page and the linked bill. Both describe a federal-channel document-integrity rule, a safe harbor for genuinely contingent or disputed documents, federal-recipient preservation and marking duties, civil enforcement by the United States, calibrated criminal penalties, no preemption of state processes, and relation to existing federal and state remedies.

**Budgetary-impact finding:** The preliminary budget statement remains appropriate. Administrative workload is possible, but the bill does not create a new grant, office, or explicit appropriation. T3 should assess whether NARA, congressional officers, federal courts, and DOJ would need reporting, referral, preservation, or training capacity and whether any source-backed implementation-burden analogue should be added.

**Adoption and friction finding:** Adoption Score remains 5/12. Adoption Friction remains 64/100. T2 found no proposal-specific polling, active federal sponsor coalition, committee activity, state-election-administrator endorsement, or public-support evidence specific to this mechanism. The proposal has a plausible federal statutory pathway, but it is high-friction because it criminalizes election-document conduct, affects presidential-election disputes, and will likely draw partisan, federalism, speech, and litigation-process objections.

**Component score under rubric 2026-06-27.2:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior-Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. Final Proposal Quality Score: 72/100 (Substantially Developed Draft).

**Score effect:** Score increased from 60 to 72 because T2 completed the first current-rubric component rebaseline, added manifestation citations, confirmed the Title 3 existing-law amendment path, verified issue-to-legislation alignment, and clarified legal, source, budget, and adoption blockers.

**Defects corrected during the audit:** Updated issue-page score, metadata, Proposal Scoring, manifestation citations, Quality Score annotation, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T2.

**Next audit need:** Run T3 readiness audit. Prioritize primary state prosecution records and disposition checks; NARA or congressional records concerning 2020 certificates where available; direct Congress.gov and legislative-history survey; exact Title 3 and Title 18 codification fit; First Amendment, due-process, and petitioning limits; anti-commandeering and state-authority review; recipient-duty implementation and NARA/congressional-process fit; federal court venue and standing analysis for civil enforcement; and budget/workload analogue search.

**Audit process feedback:** T2 confirms that ELEC-005 is a strong developed draft but not yet Review Ready. The next quality gain should come from official records and legal-durability review, not from expanding the proposed criminal offense before safe-harbor and federalism limits are tested.

## 2026-06-28 — T1 Framework Check

**Audit status:** T1 framework check complete; T2 development audit pending

**Audit scope:** This T1 audit reviewed ELEC-005, the linked Title 3 bill, the audit dashboard, audit inventory, source inventory, and governing framework/methodology. It checked visible page structure, metadata, legislation links, issue-to-legislation consistency at a framework level, Budgetary Impact Statement placement, source-inventory presence, basic current-status risk, initial existing-law fit, and enactment-pathway fields.

**Current-status and mootness check:** T1 found no obvious current law, judicial decision, enacted reform, or factual development that moots ELEC-005. Current source review indicates that state false-electoral prosecutions and procedural disputes remain uneven rather than fully resolved, which reinforces the proposal's premise that general state and federal remedies may not supply a uniform federal-channel document-integrity rule.

**Source work completed:** Replaced the issue-page Proposal Survey links for Title 3 and Title 18 materials with official U.S. Code links where practical. The existing U.S. Code source rows for 3 U.S.C. §§ 5, 11, 12, and 15 and 18 U.S.C. §§ 371, 1001, and 1512 remain source leads for T2. Added a current source lead for false-electoral prosecution posture.

**Existing-law fit:** ELEC-005 already uses the expected existing-law path: a targeted amendment to chapter 1 of title 3 rather than a freestanding new title. T1 did not identify an autonomous-agent stop condition requiring conversion to a different legal vehicle. T2 should still determine whether the proposed § 12A belongs after 3 U.S.C. § 12, whether it should be integrated with existing certificate-receipt and preservation provisions, and whether criminal penalties should remain in title 3 or cross-reference title 18.

**Issue-to-legislation alignment:** No material discrepancy was found at T1 between the issue page and the linked Title 3 bill. Both frame the proposal as a federal-channel document-integrity rule that supplements existing federal and state remedies, preserves state authority before federal transmission, creates a safe harbor for genuine contingent documents, imposes federal-recipient duties, authorizes civil enforcement by the United States, and creates calibrated criminal penalties.

**Budgetary-impact finding:** The budget statement remains adequate for T1. Administrative workload is possible, but the current draft does not authorize a new appropriation or create a new grant or office. T2 should assess federal-recipient, NARA, DOJ, and court workload implications before deciding whether a more specific implementation-burden note is needed.

**Enactment-pathway finding:** Required Electoral Environment is *sixty-vote-senate*; Pathway Viability is *plausible-after-wave*; Development Priority is *active*; Pathway Adjustment is *proceed*. Because the proposal amends federal presidential-election law and creates a federal offense, it likely requires ordinary federal legislation capable of clearing Senate cloture and presidential signature. T2 should assess whether a staged civil-recipient-duty package would be viable if the criminal-offense path proves too contested.

**Adoption and friction finding:** Adoption Score is 5/12 (Limited Adoption Basis). Adoption Friction is 64/100 (High Resistance). T1 found a plausible federal statutory vehicle and some post-2020 bipartisan context from the Electoral Count Reform Act, but did not locate proposal-specific polling, sponsor coalitions, committee activity, election-administrator endorsements, or public-support evidence specific to this mechanism.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 60/100 (Developed Draft) pending T2. Rebaseline status remains *hard-rebaseline-needed* because the issue has not yet received a current-rubric merits score.

**Defects corrected during the audit:** Updated issue-page metadata, Proposal Scoring, official statutory links, scoring annotations, audit history, source inventory, audit inventory, and Audit Dashboard. No legislative text was changed during T1.

**Next audit need:** Run T2 development audit. Prioritize official state prosecution records and disposition checks; current federal and state false-electoral litigation/prosecution posture; existing-law fit within Title 3 and Title 18; Congress.gov search for direct false-electoral or electoral-certificate proposals; ECRA legislative-history source leads; safe-harbor and First Amendment/due-process review; state-authority and anti-commandeering boundaries; recipient-duty implementation; and whether the bill should narrow or stage criminal, civil, and document-marking remedies.

**Audit process feedback:** ELEC-005 is well placed for T2 because the basic vehicle already follows the existing-law-first rule. The next quality gain should come from source verification and statutory fit, not broader narrative expansion.

## 2026-06-24 — Initial framework and inventory audit

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

# ELEC-006 — Insufficiently Automatic Presidential-Transition Procedures

## Issue Snapshot

**Problem:** Transition access remains delay-prone.

**Repair:** Add automatic triggers and enforceable deadlines.

**Vehicle:** Transition Act amendment (draft).

## Institutional Anomaly

Presidential-transition law depends on timely cooperation among the outgoing administration, the incoming transition team, federal agencies, the General Services Administration, national-security offices, ethics officials, clearance authorities, and Congress. Historically, many of these functions were regulated successfully by political norms rather than detailed statutory compulsion. Losing administrations generally cooperated, apparent winners received practical access, agencies prepared briefing materials, and transition teams accepted ethics, funding, and security conditions.

Recent transition cycles show that those norms can fail or be strategically delayed. Congress partially addressed one major failure point in 2022 by reducing the risk that a single administrator could indefinitely withhold transition resources from an apparent successful candidate. But presidential transition remains insufficiently automatic and enforceable as a continuity-of-government function.

The residual vulnerability is not only government-side obstruction. Transition readiness may also be impaired by candidate-side delay, refusal to execute required agreements, delayed ethics commitments, delayed security-clearance or FBI background-check arrangements, incomplete donor or funding disclosures, agency noncooperation, and dependence on congressional oversight that may not materialize if Congress is passive, divided, aligned with the delay, or complicit in it.

## Manifestations of the Failure

### *Genuine uncertainty compressing transition time*

The 2000 presidential election demonstrated that even good-faith legal uncertainty can substantially compress the effective transition period. When the election result remains unresolved for weeks, national-security preparation, personnel vetting, agency briefings, and continuity planning may be delayed even without bad faith. The 9/11 Commission later identified the abbreviated transition as one factor contributing to slow national-security staffing. See The 9/11 Commission Report.

### *Administrative discretion delaying transition access*

The 2020 transition demonstrated a different failure mode: transition access can be delayed when statutory operation depends too heavily on discretionary recognition by a single official or small number of political actors. Even if Congress later applies oversight pressure, the delay itself may already have impaired readiness. GSA ascertained the Biden-Harris transition on November 23, 2020, after weeks of dispute over access. See Axios, *Key government agency says Biden transition can formally begin*.

### *Congressional oversight as a politically contingent remedy*

Congressional oversight is an inadequate emergency backstop when transition access is delayed. Oversight pressure may be effective only if congressional leaders and committees are institutionally willing to oppose the delay. If Congress is passive, divided, aligned with the delaying actor, or complicit in the delay, hearings, subpoenas, appropriations pressure, and public accountability may not occur in time to protect continuity of government.

### *Transition-team noncompliance and delayed agreements*

A transition may also be impaired when the apparent incoming administration delays or refuses to execute transition agreements, ethics commitments, donor-disclosure obligations, information-security protocols, or arrangements necessary for background checks and clearances. This failure mode is distinct from GSA ascertainment delay and requires a different statutory response. In 2024, the Trump-Vance transition delayed signing the Justice Department agreement permitting FBI background checks and security-clearance processing and declined a GSA agreement for federal funding and support. See Politico, *Trump transition green-lights FBI background checks for incoming staff*.

## Resulting Damage

Delayed or incomplete transition access can compress national-security preparation, personnel vetting, ethics review, agency briefings, and continuity planning into the final weeks before inauguration. That damage may persist even after access is eventually granted because lost preparation time cannot always be restored, and uncertainty over transition duties can leave agencies, candidates, and Congress without a reliable enforcement path during the period when delay matters most.

## Underlying Weakness

Existing law may still lack:

- sufficiently automatic staged transition access;
- objective triggers for preliminary and expanded access;

- enforceable agency cooperation deadlines;
- consequences for delayed transition agreements;
- transition-team duties tied to ethics, security, funding, and vetting requirements;
- public written-denial or delay notices;
- direct expedited judicial review for missed statutory duties;
- protections against dependence on congressional oversight as the primary remedy; and
- a clear statement that transition access is administrative preparedness, not legal recognition of election victory.

## Proposal Survey

The Presidential Transition Act of 1963 is the principal statutory model. Congress has repeatedly amended it, including through the 2022 Electoral Count Reform and Presidential Transition Improvement Act, which reduced dependence on a single GSA ascertainment decision where the apparent winner remains unclear. See the Presidential Transition Act statutory compilation and Pub. L. No. 117-328, div. P.

Prior reform models focus on resources, agency cooperation, ethics plans, security clearances, and ascertainment. ELEC-006 treats those as partial solutions and adds objective staged access, candidate-side duties, written delay notices, and expedited review.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is not a comprehensive federal takeover of presidential transition. It is a targeted amendment to the Presidential Transition Act that codifies narrow automatic defaults, transparency requirements, and enforcement mechanisms while preserving ordinary cooperative transition norms wherever they continue to function.

## Repair and Prevention

Congress should amend the Presidential Transition Act of 1963 to preserve ordinary cooperative transition norms while adding narrow statutory backstops for known failure points.

The statute should not replace historically successful transition practice with a sweeping new bureaucratic or judicialized system. Instead, it should establish default rules that activate only when ordinary transition cooperation fails.

The reform should include:

1. automatic pre-election planning access for qualifying candidates;
2. automatic limited post-election access when the outcome remains unresolved;
3. expanded access upon objective result-related triggers;
4. a ministerial GSA role;
5. statutory deadlines for transition agreements;
6. consequences for failure to execute required agreements;
7. agency deadlines for briefing materials, transition contacts, and access coordination;
8. written public explanations for denial or delay;
9. expedited judicial review for concrete missed statutory duties;
10. no concession requirement; and
11. preservation of congressional oversight without dependence on congressional action as the primary remedy.

## Proposed Legislation

- Presidential Transition Continuity and Automaticity Act

## Relationship to Adjacent Proposals

- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal channels.
- **ELEC-006** concerns continuity of government and automatic transition access after a presidential election.
- **ELEC-009** concerns whether the Electoral College should be restructured or replaced.
- Judicial and congressional-enforcement issues may overlap where expedited review or oversight mechanisms are implicated.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 76 / 100 (Review Ready)

**Adoption Score:** 5 / 12 (Limited Adoption Basis)

**Adoption Friction:** 56 / 100 (Significant Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

**Audit Status:** T4 publication-ready audit complete; external validation pending

**Last Audit:** T4 publication-ready audit

**Rubric Version:** 2026-06-27.2; **Rebaseline:** current

**Next Audit:** External validation / T4 follow-up

**Full Audit History:** ELEC-006 audit history

## Annotation

**Norm-Preserving Design.** The proposal should preserve the historical norm-based transition model and add statutory backstops only where recent manifestations show that norms can fail.

**2022 Reform Baseline.** The 2022 amendments should be treated as a partial reform, not ignored. The Presidential Transition Act compilation provides source support for apparent-successful-candidate services, multiple-candidate support in some unresolved-election circumstances, transition memoranda of understanding, public ethics-plan availability, background investigations and security clearances, and public statements when a sole apparent successful candidate is treated as such. ELEC-006 should therefore remain focused on residual gaps: automatic staged access, enforceable agency deadlines, candidate-side agreement delay, public delay notices, and expedited review for concrete missed transition duties.

**No Legal Recognition of Victory.** Transition access should be characterized as administrative preparedness, not legal determination of the election winner.

**Bilateral Duties.** The statute should address both government-side obstruction and transition-team noncompliance.

**Congressional Nondependence.** Congressional oversight should be preserved, but transition continuity should not depend on Congress being willing or able to oppose delay.

**Source Development Pending.** T4 attempted official-source substitution for the 2020 ascertainment delay and 2024 transition-agreement/background-check delay but did not locate stable official records through the public paths checked. External validation or T4 follow-up should continue seeking official GSA, congressional, transition-team, White House, DOJ, FBI, or oversight records; complete a direct prior-proposal or legislative-history survey; and add transition-law or national-security practitioner review.

**Quality Score.** The proposal is 76/100 after T4. Component score: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. T4 did not change the score because it did not resolve the remaining publication blockers: official 2020/2024 event records, direct prior-proposal research, exact amendment placement, budget/workload analogues, and external review. The proposal remains Review Ready for knowledgeable external critique.

**Adoption Score.** Adoption Score is 5/12. Presidential-transition continuity has bipartisan institutional logic and an enacted 2022 reform baseline, but ELEC-006 does not yet cite proposal-specific polling, current sponsor coalitions, committee activity, transition-practitioner endorsement, or external validation for its full automaticity package.

**Adoption Friction.** Adoption Friction is 56/100 because the proposal affects presidential transitions, agency access, background checks, ethics agreements, donor-disclosure leverage, sensitive-information gates, and expedited review. The norm-preserving design reduces resistance, but presidential-transition disputes remain politically salient and can be framed as affecting candidate strategy during disputed elections.

**Required Electoral Environment.** Required Electoral Environment is sixty-vote-senate; Pathway Viability is plausible-after-wave; Pathway Adjustment is stage. The full federal amendment likely requires ordinary legislation capable of clearing Senate cloture and presidential signature. Staged alternatives should focus on transition-agreement deadlines, written delay notices, agency-preparation deadlines, public reporting, and limited access defaults if the full automatic-access package proves too difficult.



## ELEC-006 — Audit History

This file preserves the full audit history for ELEC-006. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-24 — *Initial framework and inventory audit*

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

#### 2026-06-28 — *T1 framework check*

**Audit status:** T1 framework check complete; T2 development audit pending

**Proposal-quality score:** 60

**Score basis:** T1 confirmed that ELEC-006 has a developed issue page, linked proposed legislation, a plausible existing-law amendment path through the Presidential Transition Act of 1963, issue-to-legislation alignment, a budgetary-impact statement, source-inventory entries, visible scoring fields, and a compact dashboard record. The score remains 60 because no full current-rubric component rebaseline has yet been performed.

**Scope reviewed:** Issue page, linked bill page, audit-history file, audit dashboard row, source inventory, audit inventory, and governing framework/methodology requirements for T1.

**Current-status and mootness check:** No currently identified law or event moots the proposal. The 2022 Electoral Count Reform and Presidential Transition Improvement Act partially addressed ascertainment-delay risk but did not eliminate residual risks involving staged access, candidate-side agreement delays, written delay notices, agency deadlines, or expedited enforcement.

**Existing-law fit:** The proposal already proceeds as an amendment to the Presidential Transition Act of 1963, so the agent stop condition for autonomous conversion from a freestanding bill to an existing-law amendment was not triggered.

**Issue-to-legislation alignment:** No material discrepancy identified at T1. The issue page and legislation are aligned around automatic defaults, a ministerial GSA role, transition-team duties, delay notices, expedited remedies, and the rule that transition access does not legally recognize election victory.

**Source work completed:** Added or elevated source leads for the 2000 transition-compression manifestation, 2020 GSA ascertainment delay, 2024 transition-agreement/background-check delay, and the Presidential Transition Act statutory baseline. Source rows were updated so later audits can distinguish publication-ready primary support from provisional source leads.

**Budgetary-impact check:** The current statement remains preliminary: administrative workload is possible, but no new appropriation is specified. T2 should test whether GSA, agency transition, background-check, clearance, reporting, or expedited-litigation workload requires a more developed estimate or disclaimer refinement.

**Adoption and pathway fields:** Assigned Adoption Score 6/12 (Limited Adoption Basis), Adoption Friction 54/100 (Significant Resistance), Required Electoral Environment *sixty-vote-senate*, Pathway Viability *plausible-after-wave*, Development Priority *active*, and Pathway Adjustment *stage*.

**Next audit need:** T2 development audit should verify the 2022 statutory amendments, transition-agreement mechanics, GSA ministerial authority, FBI/background-check and clearance mechanics, candidate-side consequence design, written delay notices, expedited judicial review, and budget/workload consequences.

#### 2026-06-28 — *T2 development audit*

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 73

**Component score:** Structural 8/8; Evidence 8/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Total: 73.

**Major findings:** T2 confirmed that the proposal is properly framed as an amendment to the Presidential Transition Act of 1963 rather than a freestanding transition regime. The official statutory compilation shows that existing law already contains important baseline tools, including transition services for apparent successful candidates, multiple-candidate support in some unresolved-election circumstances, transition memoranda of understanding, public ethics-plan availability, background-investigation and security-clearance provisions, and public statements when a sole apparent successful candidate is treated as such. ELEC-006 should therefore continue to emphasize residual gaps rather than describing transition law as empty.

**Current-status and mootness check:** No reliable source found during T2 shows that ELEC-006 is moot. The 2022 reform partially addressed ascertainment-delay risk but leaves enough residual issues for the proposal to remain live: staged automatic access, agency deadlines, transition-team agreement delays, public delay notices, candidate-side cure procedures, and expedited enforcement for concrete missed statutory transition duties.

**Existing-law and prior-proposal check:** Existing-law fit is strong because the bill amends the Presidential Transition Act. Prior-proposal grounding is stronger than a purely project-drafted proposal because Congress enacted the 2022 transition amendments, but T2 did not complete a Congress.gov-level sponsor, co-sponsor, committee, or legislative-history survey for direct automaticity and enforcement language. That remains a T3/T4 task.

**Issue-to-legislation alignment:** No material discrepancy identified. The issue page and proposed legislation both treat transition access as administrative preparedness, preserve ordinary cooperative norms, address government-side and transition-team failures, and avoid treating transition support as legal recognition of victory.

**Implementation and budget check:** No new appropriation is specified. Administrative workload remains possible through GSA, agency transition officials, DOJ/FBI background-check coordination, written delay notices, recordkeeping, reporting, and expedited litigation. T3 should decide whether this remains a no-appropriation administrative-burden statement or needs source-backed workload/budget analogues.

**Drafting findings:** The bill is directionally sound but still needs legislative-counsel style amendment placement. T2 added a drafting note that later work should place each amendment into the correct section or subsection of the Presidential Transition Act and add conforming terminology.

**Adoption and pathway:** Adoption Score is 5/12. The 2022 bipartisan/institutional baseline supports limited adoption credit, but proposal-specific polling, current sponsor coalition, transition-practitioner validation, committee activity, and public-support evidence remain missing. Required Electoral Environment remains **sixty-vote-senate**; Pathway Viability remains **plausible-after-wave**; Development Priority remains **active**; Pathway Adjustment remains **stage**.

**Adoption friction:** Adoption Friction is 56/100 (Significant Resistance). Friction is driven by presidential-transition salience, disputed-election strategy, agency access, sensitive-information gates, ethics agreements, donor-disclosure leverage, clearance timing, expedited review, and public misunderstanding risk. The norm-preserving design and existing 2022 statutory baseline keep the score below High Resistance.

**Unresolved claims and T3 targets:** T3 should add pinpoint statutory citations; seek official or primary records for the 2020 GSA ascertainment delay and 2024 transition-agreement/background-check delay; test classified-information, clearance, FBI, OPM, ODNI, and DOJ mechanics; complete direct and functional prior-proposal research; review standing and jurisdiction for expedited judicial review; and seek transition-law, national-security, election-administration, or legislative-counsel review.

## **2026-06-28 — T3 readiness audit**

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 76

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Total: 76.

**Major findings:** T3 confirmed that ELEC-006 is ready for knowledgeable external critique but not publication-ready. The core repair logic is now clear: use the Presidential Transition Act as the vehicle, preserve cooperative transition norms, and add narrow backstops where the 2022 amendments and existing transition practice do not fully solve delay, noncooperation, candidate-side agreement failures, written-notice gaps, or expedited enforcement.

**Source-refresh log:** T3 extracted usable page leads from the official Presidential Transition Act compilation. The compilation supports apparent-successful-candidate services, multiple-candidate treatment beginning five days after the election in some unresolved-election circumstances, transition memoranda of understanding, public ethics-plan availability, background investigations and security clearances, and public statements when one candidate is treated as sole apparent successful candidate. T3 also checked the 9/11 Commission Report and found direct support for the claim that the 36-day 2000 election dispute cut the normal transition period in half and hampered identifying, recruiting, clearing, and confirming key appointees.

**Verified findings:** Existing law is a strong vehicle; the 2022 amendments are a partial reform rather than a complete solution; the 2000 transition-compression claim has direct report support; the issue and legislation remain aligned; and the budgetary-impact statement remains appropriately preliminary because no new appropriation is specified.

**Unresolved claims:** T3 did not locate official primary records for the 2020 GSA ascertainment-delay timeline or the 2024 transition-agreement/background-check delay. The current issue page uses secondary source leads for those examples. T4 should replace or supplement them with official GSA, congressional, transition-team, White House, DOJ, FBI, or court/oversight records if available.

**Legal and implementation risks:** Expedited judicial review needs standing, jurisdiction, remedy, and political-question review so courts are enforcing concrete missed statutory transition duties rather than adjudicating the election winner. Sensitive-information access needs clearer interaction with classified-information, law-enforcement-sensitive, cybersecurity, personnel, background-check, clearance, OPM, ODNI, FBI, DOJ, and agency rules. Drafting still needs exact amendment placement within the Presidential Transition Act.

**Prior-proposal and adoption posture:** The enacted 2022 transition reform supports prior-proposal credit, but direct automaticity, public-delay-notice, and expedited-enforcement proposal research remains incomplete. Adoption Score remains 5/12 because no proposal-specific polling, sponsor coalition, committee support, transition-practitioner endorsement, or external validation has been documented.

**Next audit need:** T4 publication-ready audit should complete official-source substitution, direct prior-proposal and legislative-history research, amendment-placement review, sensitive-information and clearance-mechanics review, expedited-review legal analysis, budget/workload analogue search, and external legal or transition-practitioner review.

### **2026-06-28 — T4 publication-ready audit**

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 76

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Total: 76.

**Publication-readiness finding:** ELEC-006 is Review Ready but not publication-ready. T4 confirmed the basic statutory vehicle, residual-gap theory, issue-to-legislation alignment, and current score posture, but did not resolve enough publication blockers to justify a score increase.

**Current-status and mootness determination:** No currently identified public-source development moots the proposal. The 2022 amendments remain a partial reform baseline rather than a complete substitute for automatic staged access, public delay notices, candidate-side agreement-delay consequences, agency deadlines, and expedited review for concrete missed duties.

**Source-refresh result:** T4 attempted to locate stable official records for the 2020 GSA ascertainment-delay letter and 2024 transition-agreement/background-check delay through public GSA, White House, and likely PDF paths, but did not locate reliable official copies. The issue page therefore continues to use Axios and Politico as secondary source leads for those examples, with publication follow-up required.

**Verified source posture:** The Presidential Transition Act compilation remains the primary statutory baseline. The 9/11 Commission Report remains a direct official source lead for the 2000 transition-compression manifestation. Congress.gov/Public Law source support remains sufficient for the existence of the 2022 transition reform baseline, but T4 did not complete a detailed sponsor, co-sponsor, committee, or legislative-history review.

**Legal-durability findings:** The proposal's most important legal-durability guardrail is its repeated statement that transition access is administrative preparedness, not legal recognition of election victory. T4 confirms that expedited review should remain limited to concrete missed statutory transition duties and should avoid asking courts to decide the election winner. T4 also confirms that sensitive-information access should remain conditioned on ordinary legal, clearance, ethics, confidentiality, and information-security requirements.

**Implementation and budget findings:** No new appropriation is specified. Administrative burden is plausible but not yet quantified. T4 did not locate or add a source-backed budget analogue, so the budget statement remains preliminary and should not include a dollar estimate.

**Remaining publication blockers:** Official 2020 and 2024 event records; direct prior-proposal and legislative-history survey; exact placement of amendments into the Presidential Transition Act; classified-information, law-enforcement-sensitive information, cybersecurity, privacy, personnel, background-check, OPM, ODNI, FBI, DOJ, and agency-transition implementation review; expedited-review standing and jurisdiction analysis; budget/workload analogue search; and qualified external review.

**Next audit need:** External validation or T4 follow-up focused on official event records, legislative-counsel drafting placement, transition-law or national-security practitioner review, and source-backed workload analysis.

# ELEC-007 — Improper Federal-Force Presence in Election Administration

## Issue Snapshot

**Problem:** Federal responders can become election participants.

**Repair:** Separate emergency response from election administration.

**Vehicle:** Federal-force noninterference statute (draft).

## Institutional Anomaly

Election administration is a civilian state and local function. Federal personnel may have legitimate law-enforcement, emergency-response, protective, or technical roles in extraordinary circumstances, but federal agents, federalized military personnel, federally directed armed personnel, or federally commanded task forces should not administer, supervise, direct, control, monitor, inspect, count, recount, canvass, audit, certify, decertify, transport, seize, or otherwise participate in election administration.

The central distinction is that federal personnel may respond to a non-election emergency; they may not become part of the election. An emergency near a polling place, counting center, canvassing board, certification proceeding, election office, ballot-storage facility, or voting-equipment site should not convert federal responders into election administrators.

Existing law strongly disfavors troops at polling places and military participation in domestic law enforcement, but modern risks are broader than the classic image of soldiers at the polls. Contemporary risks include armed federal agents near counting facilities, federalized forces around election offices, federally directed seizure or inspection of election materials, federal personnel present at certification proceedings, or emergency response used as a pretext for election-administration influence.

## Manifestations of the Failure

### *Federal-force presence near voting, counting, or certification sites*

Federal personnel physically present near election sites may intimidate voters or election workers, create the appearance of federal supervision, or chill lawful election participation even if no overt order is given.

### *Emergency response becoming election participation*

A bomb threat, active threat, violent incident, cyberattack, or other emergency may justify non-election law-enforcement response. But without clear statutory limits, emergency responders could remain in election spaces, observe election processes, question personnel, influence reopening decisions, access materials, or otherwise participate in election administration.

### *State-capacity failure as a narrow predicate for assistance*

Federal assistance may be appropriate only where a state can demonstrably not handle a specific extraordinary emergency adequately without federal help. The state should identify the particular capacity gap, such as insufficient explosives response, cyber-forensics, multi-site security, interstate-threat coordination, specialized technical assistance, or disaster-continuity capacity.

### *Election-material custody and federal process*

Federal law-enforcement process directed at ballots, voting equipment, pollbooks, tabulators, memory devices, election records, or result-transmission materials can disrupt chain of custody, statutory deadlines, recounts, audits, and certification. Election materials should not be accessed, imaged, copied, moved, or seized absent separate, narrow judicial authorization and election-specific safeguards.

### *Federal law enforcement as a pretext for election supervision*

Investigations, threat response, federal-facility protection, or emergency assistance can be misused as a pretext to pressure state or local officials, influence election timing, create public doubt, or support claims that federal officials are validating or invalidating the election.

## Resulting Damage

Improper federal-force presence can intimidate voters or election workers, disrupt chain of custody, compromise state election deadlines, and create the appearance that federal officials are supervising, validating, or challenging a state-run election. Even when no ballot is altered, visible federal operational involvement can damage public trust and supply a pretext for later attacks on certification or legitimacy.

## Underlying Weakness

Existing law may lack:

- a modern election-site definition extending beyond polling places;
- a clear prohibition on federal personnel participating in election administration;
- a strict distinction between non-election emergency response and election-related participation;
- a state-consent and state-capacity-inadequacy requirement for extraordinary emergency assistance;
- a narrow exigent-life-safety fallback;

- a good-faith incidental-contact safe harbor for federal personnel who inadvertently encounter election activity while performing lawful non-election duties;
- a voter-rights savings clause confirming that federal employment does not impair personal voting rights;
- election-material access, imaging, copying, transport, and seizure safeguards;
- written scope, duration, and termination limits for federal emergency assistance;
- notice and after-action reporting requirements; and
- expedited judicial review for unlawful federal-force presence or election-material interference.

## Proposal Survey

Existing law already disfavors military presence at polls and domestic military law enforcement. The troops-at-polls statute prohibits certain military presence at elections, while the Posse Comitatus Act limits use of the Army and Air Force to execute domestic law. See 18 U.S.C. § 592 and 18 U.S.C. § 1385.

Those models do not fully address modern federal agents, federalized forces, emergency response, cyber or technical assistance, and election-material custody. ELEC-007 modernizes the older troops-at-polls principle while preserving genuine non-election emergency response.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted federal statute clarifying that federal personnel may respond to genuine non-election emergencies near election sites, but may not participate in election administration. The statute should modernize existing troops-at-polls principles without displacing state and local civilian election control.

## Repair and Prevention

Congress should modernize federal election-protection statutes to provide that federal personnel have no operational role in election administration except where a separate and narrowly tailored court order authorizes limited election-material evidence preservation under statutory safeguards.

The emergency exception should authorize only otherwise lawful law-enforcement, emergency-response, protective, or technical-assistance functions directed at the non-election emergency. It should not authorize federal personnel to administer, supervise, direct, control, observe for election-integrity purposes, interrupt, delay, count, recount, canvass, certify, audit, transport, seize, inspect, access, image, copy, or take custody of election materials.

Federal emergency assistance at or near a covered election site should require:

1. a written request or consent from the Governor or other statewide official designated by state law;
2. an extraordinary emergency involving a concrete non-election emergency;
3. a written finding that state and local authorities cannot timely and adequately address the specific non-election emergency without federal assistance;
4. assistance limited to the specific state-capacity inadequacy identified;
5. written scope limits governing location, duration, personnel, mission, permitted actions, prohibited actions, and termination trigger;
6. prohibition on federal election-administration participation;
7. public notice and after-action reporting once safety permits; and
8. automatic withdrawal when the emergency ends or state capacity is restored.

Where prior written state consent is impossible because of an imminent threat to life or serious bodily harm, federal personnel may act only to stabilize the emergency and protect life. Federal personnel must withdraw unless state consent, a valid judicial order, or another lawful non-election emergency predicate is promptly obtained.

The statute should also make clear that inadvertent or unavoidable incidental contact with election activity does not create liability if the federal personnel act in good faith, do not intend to influence election administration, disengage from any election-administration issue as soon as practicable, and do not use federal authority to affect the election. Separately, the statute should not restrict federal employees, agents, or service members from voting, registering to vote, standing in line to vote, or otherwise acting in a lawful personal civic capacity subject to ordinary election law and ethics rules.

## Proposed Legislation

- Election Administration Federal-Force Noninterference Act

## Relationship to Adjacent Proposals

- **ELEC-001** concerns federal executive interference with state and local election administration generally.
- **ELEC-003** concerns protection of election personnel from threats and operational disruption.
- **ELEC-004** concerns abuse of election litigation and investigatory mechanisms.
- **ELEC-007** concerns federal-force presence, emergency response, and election-material custody around election administration.
- Domestic-deployment and Insurrection Act issues belong primarily in the DOM-series area.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 78 / 100 (Review Ready)

**Adoption Score:** 5 / 12 (Limited Adoption Basis)

**Adoption Friction:** 70 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

**Audit Status:** T4 publication-ready audit complete; external validation pending

**Last Audit:** T4 publication-ready audit

**Rubric Version:** 2026-06-27.2; **Rebaseline:** current

**Next Audit:** External validation / T4 follow-up

**Full Audit History:** ELEC-007 audit history

## Annotation

**Core Rule.** Federal agents may respond to the emergency; they may not become part of the election.

**State Capacity Requirement.** State consent alone should not be sufficient. The state should also document why state and local capacity is inadequate for the specific extraordinary emergency.

**Emergency Limitation.** An emergency authorizes only non-election law enforcement, emergency response, protection, or technical assistance. It does not authorize federal election administration.

**Incidental Contact Safe Harbor.** Good-faith inadvertent or unavoidable incidental contact should not create liability where federal personnel do not intend to influence election administration, do not use federal authority, and disengage as soon as practicable.

**Personal Voting Rights.** Federal personnel retain the same personal right to vote, register, appear at a polling place, and engage in lawful personal civic activity as other citizens, subject to ordinary election law, ethics rules, and agency rules.

**Election-Material Safeguards.** Ballots, voting equipment, pollbooks, tabulators, memory devices, election records, and result-transmission materials require separate judicial safeguards before access, imaging, copying, transport, or seizure.

**Source Development Pending.** External validation or T4 follow-up should review National Guard and Insurrection Act authorities, emergency-response authorities, state emergency-management law, exact codification placement, and practitioner feedback from election-law, civil-rights, emergency-management, or domestic-deployment experts.

**Current Domestic-Deployment Context.** Current litigation over federalized National Guard deployment confirms that Posse Comitatus and federal domestic-force authority remain live legal issues, though not election-specific ones. See the Ninth Circuit's 2025 orders in *Newsom v. Trump* and related rehearing order.

**Prior-Proposal Grounding.** Brennan Center materials identify federal and state prohibitions on federal forces at polling places and provide a close model-bill analogue on state accountability for federal interference at polling places. These sources strengthen the prior-proposal family, but T4 should still review formal legislative history and enacted-law options before publication.

**Civil-Rights Monitoring Savings.** T4 added a narrow carveout for lawful Voting Rights Act observers and Department of Justice election monitoring, limited to non-force, non-intimidating, non-directive civil-rights monitoring that does not take custody of materials or participate in election-administration decisions.

**Quality Score.** The proposal is 78/100 after T4. Component score: Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior Proposal 7/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. T4 improved source support, legal fit, and drafting by adding official DOJ civil-rights monitoring support and revising the bill to avoid impairing lawful VRA observers and DOJ election monitoring. The proposal remains Review Ready rather than publication-ready because exact codification strategy, National Guard/Insurrection Act analysis, budget/workload analogues, standing/remedy review, and external review remain pending.

**Adoption Score.** Adoption Score is 5/12. The proposal has a neutral institutional premise and existing statutory analogues, but it does not yet cite proposal-specific polling, sponsor coalitions, committee activity, cross-partisan institutional validators, or election-security/public-safety practitioner support.

**Adoption Friction.** Adoption Friction is 70/100 because the proposal implicates federal law enforcement, military and federalized-force authority, state election administration, emergency response, voter intimidation, civil-rights enforcement, election-material custody, and likely separation-of-powers and federalism objections.

**Required Electoral Environment.** Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Pathway Adjustment is **stage**. T2 should assess whether narrower updates to election-material safeguards, notice/reporting, or emergency-response scope limits could be staged if the full federal-force package proves too difficult.

## ELEC-007 — Audit History

This file preserves the full audit history for ELEC-007. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-24 — *Initial framework and inventory audit*

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

#### 2026-06-28 — *T1 framework check*

**Audit status:** T1 framework check complete; T2 development audit pending

**Proposal-quality score:** 60

**Score basis:** T1 confirmed that ELEC-007 has a developed issue page, linked proposed legislation, budgetary-impact statement, audit sidecar, source-inventory coverage, and dashboard row. The score remains 60 because no full current-rubric component rebaseline has yet been performed.

**Scope reviewed:** Issue page, linked bill page, audit-history file, dashboard row, audit inventory, source inventory, and governing T1 requirements for structure, metadata, source hygiene, budget statement, current-status risk, and enactment-pathway fields.

**Source hygiene:** Replaced visible LII links for 18 U.S.C. §§ 592 and 1385 with official U.S. Code links already tracked in the project source inventory. The older LII rows should be retained only for provenance.

**Current-status and mootness check:** No current source identified during T1 shows that the proposal is moot. Recent public reporting and litigation over domestic federal deployments and Posse Comitatus issues tend to make the general subject more salient, not obsolete. T2 should conduct a targeted current-law and pending-case review before awarding legal-fit or adoption credit.

**Existing-law fit:** T1 confirmed that the proposal builds from existing troops-at-polls and Posse Comitatus principles, but T2 must test whether the least-complex adequate remedy should amend existing statutes directly or remain a standalone supplemental election-protection statute.

**Issue-to-legislation alignment:** No material discrepancy identified at T1. The issue page and legislation both distinguish non-election emergency response from election-administration participation and include election-material safeguards, state-capacity predicates, notice/reporting, incidental-contact safe harbor, personal voting rights, and expedited review.

**Adoption and pathway fields:** Assigned Adoption Score 5/12 (Limited Adoption Basis), Adoption Friction 70/100 (High Resistance), Required Electoral Environment *sixty-vote-senate*, Pathway Viability *plausible-after-wave*, Development Priority *active*, and Pathway Adjustment *stage*.

**Next audit need:** T2 should review 18 U.S.C. § 592, the Posse Comitatus Act, Insurrection Act, National Guard authorities, federal civil-rights and election-crime enforcement, emergency-response law, election-material custody, court-process safeguards, standing, remedies, and whether a narrower existing-law amendment path would be preferable.

#### 2026-06-28 — *T2 development audit*

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 72

**Component score:** Structural 8/8; Evidence 7/12; Legal Fit 7/10; Prior Proposal 5/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Total: 72.

**Major findings:** T2 confirms that ELEC-007 is a substantially developed draft. The issue and legislation coherently preserve lawful non-election emergency response while prohibiting federal election-administration participation, election-material interference, pretextual deployment, and federal-force appearance of supervision.

**Current-status and mootness check:** No source reviewed during T2 makes ELEC-007 moot. The Ninth Circuit's 2025 *Newsom v. Trump* orders show that federalized National Guard authority, 10 U.S.C. § 12406, judicial review, and Posse Comitatus-adjacent questions remain live. Those cases are not election-administration cases, so they support current legal salience rather than the election-specific manifestation.

**Existing-law fit:** Existing 18 U.S.C. § 592 and 18 U.S.C. § 1385 are important statutory baselines but do not fully cover modern federal agents, federalized-force posture, cyber or technical assistance, emergency-response pretexts, election-material custody, court-process



safeguards, notice/reporting, or incidental-contact rules. T2 does not require stopping the audit for a vehicle redraft, but T3 should test whether the final bill should be codified as amendments to existing title 18 or title 52 provisions rather than remaining a standalone act.

**Issue-to-legislation alignment:** No material discrepancy identified. The bill implements the issue page's core rule: federal responders may address the non-election emergency but may not become part of election administration.

**Implementation and budget check:** No new appropriation is specified. Implementation burden is primarily legal, training, notice/reporting, coordination, and recordkeeping burden for federal agencies and state election officials. T3 should look for source-backed analogues for emergency after-action reporting, election-material chain-of-custody safeguards, and federal deployment notice requirements.

**Legal-risk findings:** T3 should review Insurrection Act and National Guard authorities, presidential control of federalized forces, civil-rights enforcement savings clauses, election-crime investigations, search-and-seizure rules for election materials, court-process safeguards, standing, sovereign immunity, and whether expedited review can operate without disrupting active election administration.

**Adoption and friction:** Adoption Score remains 5/12 because the proposal has neutral institutional logic and existing statutory analogues but lacks proposal-specific polling, sponsors, committee activity, practitioner support, or public-safety/election-administration validators. Adoption Friction remains 70/100 because the proposal constrains federal law-enforcement and force-deployment posture in a highly salient election context.

**Next audit need:** T3 should conduct election-specific manifestation source development, prior-proposal and legislative-history research, National Guard and Insurrection Act analysis, codification review, emergency-response analogue search, standing/remedy review, and election-law or domestic-deployment practitioner review.

### **2026-06-28 — T3 readiness audit**

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 76

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior Proposal 7/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Total: 76.

**Major findings:** T3 found that ELEC-007 is Review Ready for knowledgeable external critique. The proposal now has official statutory baseline sources, current court-source context for federalized National Guard and Posse Comitatus-adjacent disputes, and close Brennan Center materials addressing federal forces at polling places and a model bill for state accountability for federal interference at polling places.

**Verified findings:** Existing federal law includes the troops-at-polls statute and Posse Comitatus Act, but those baselines are narrower than ELEC-007's modern emergency-response, federal-agent, election-material, cyber/technical-assistance, and notice/reporting architecture. The issue page and proposed legislation remain aligned.

**Prior-proposal and analogue review:** Brennan Center materials strengthen the prior-proposal family and show that federal-force election-site restrictions are a recognized reform category. They do not eliminate the need for T4 legislative-history research, enacted-state comparison, or federal codification review.

**Legal and implementation risks:** T4 should test exact codification in title 18 or title 52, National Guard and Insurrection Act interaction, DOJ election-enforcement and civil-rights savings clauses, election-crime investigations, search-and-seizure rules, election-material chain-of-custody safeguards, federalism limits, standing, sovereign immunity, and expedited review during active election administration.

**Budgetary-impact finding:** No new appropriation is specified. Implementation burden remains training, notice/reporting, legal review, state-federal coordination, emergency-response scoping, court-process safeguards, and recordkeeping. T4 should look for source-backed analogues before adding any estimate.

**Next audit need:** T4 publication-ready audit should resolve codification placement, DOJ/election-enforcement guidance, National Guard and Insurrection Act analysis, legislative-history/prior-proposal research, emergency-response analogue support, budget/workload analogues, standing/remedy review, and external election-law or domestic-deployment review.

### **2026-06-28 — T4 publication-ready audit**

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 78

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior Proposal 7/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Total: 78.

**Publication-readiness finding:** ELEC-007 is Review Ready but not publication-ready. T4 improved the proposal by resolving a civil-rights-enforcement ambiguity, but exact codification, National Guard/Insurrection Act analysis, workload analogues, standing/remedy review, and external review remain unresolved.

**Civil-rights monitoring correction:** T4 found that the draft could be read too broadly against lawful Voting Rights Act observers or Department of Justice election monitoring. The bill now excludes lawful federal civil-rights monitoring, federal observer activity, and DOJ election monitoring authorized by federal voting-rights law when conducted without force, intimidation, direction of election

officials, custody of election materials, or participation in election-administration decisions.

**Source-refresh result:** T4 added official DOJ Voting Section support for federal observers and election monitoring, and a primary U.S. Code source for Voting Rights Act observer authority. Brennan Center materials remain useful prior-proposal and policy analogues but are not primary law.

**Current-status and mootness determination:** No reviewed source moots ELEC-007. The proposal remains live because existing federal-force, federalized National Guard, civil-rights monitoring, and election-site laws create a complex boundary that the proposed statute attempts to clarify.

**Legal-durability findings:** The most important legal-durability tasks are preserving lawful civil-rights enforcement, avoiding conflict with valid court process, fitting the proposal with 18 U.S.C. § 592, 18 U.S.C. § 1385, 10 U.S.C. § 12406, Insurrection Act provisions, and federal voting-rights law, and ensuring expedited review does not interfere with lawful election administration.

**Implementation and budget findings:** No new appropriation is specified. The likely burden remains training, guidance, notice/reporting, recordkeeping, legal review, and coordination. T4 did not add a source-backed budget estimate.

**Remaining publication blockers:** Exact codification placement; Insurrection Act and National Guard review; DOJ election-crime and civil-rights enforcement interaction; emergency-management analogue support; state-law comparison; standing, sovereign-immunity, and remedies review; source-backed workload analysis; and qualified external review.

**Next audit need:** External validation or T4 follow-up with election-law, civil-rights, domestic-deployment, emergency-management, or legislative-counsel review.

# ELEC-008 — Accountability for Coordinated Federal Election-Subversion Schemes

## Issue Snapshot

**Problem:** Coordinated subversion can evade scheme-level accountability.

**Repair:** Create narrow predicate-act accountability framework.

**Vehicle:** Federal election-subversion statute (draft).

## Institutional Anomaly

Congress partially addressed post-2020 election-subversion vulnerabilities through the Electoral Count Reform and Presidential Transition Improvement Act of 2022. That statute amended the Electoral Count Act and the Presidential Transition Act, clarified that the Vice President's role in counting electoral votes is ministerial, raised the threshold for congressional objections, narrowed objection grounds, clarified state certificate procedures, provided expedited review for certain presidential-election disputes, and improved transition-resource rules where the apparent winner remains unclear.

Those reforms hardened specific pressure points in the presidential electoral-count and transition process, but they did not create a comprehensive accountability framework for coordinated schemes to overturn lawful federal-election results. Existing law may punish individual acts — false statements, obstruction, intimidation, fraud, forged documents, unlawful pressure, or abuse of process — but a modern election-subversion effort may operate through a coordinated pattern of individually narrower acts spread across states, courts, administrative bodies, Congress, media channels, and transition institutions.

The institutional anomaly is that federal law may lack a narrowly tailored framework for treating a coordinated federal election-subversion scheme as a scheme, rather than as disconnected predicate acts.

## Scope

ELEC-008 should apply to covered federal elections, meaning elections for President, Vice President, United States Senator, and Representative in Congress. It should not generally federalize state and local elections.

For presidential and vice-presidential elections, the proposal should include special provisions for presidential-electoral appointment, presidential result-transmission documents, certificates of ascertainment, certificates of vote, electoral-vote transmission, congressional electoral-count proceedings, and presidential-transition access.

For Senate and House elections, the proposal should be drafted carefully to avoid interfering with each chamber's constitutional authority under Article I, Section 5 to judge the elections, returns, and qualifications of its own members. The proposal should target independently wrongful conduct affecting election administration, certification, canvassing, recounts, evidence integrity, intimidation, false documents, unauthorized access, bribery, coercion, obstruction, or corruption — not legitimate congressional adjudication of election contests.

State and local elections should be covered only where the predicate conduct independently violates federal law, such as voter intimidation, civil-rights violations, obstruction of federal proceedings, misuse of federal authority, or interference with federally protected voting rights.

## Relationship to Existing Post-2020 Reform

The 2022 Electoral Count Reform and Presidential Transition Improvement Act should be treated as a partial reform, not ignored. ELEC-008 should proceed from the premise that Congress already addressed several core presidential-election vulnerabilities:

1. vice-presidential discretion during electoral-vote counting;
2. congressional objection thresholds;
3. permissible grounds for objections;
4. state certificate and elector-transmission procedures;
5. expedited review of certain candidate claims; and
6. transition-resource uncertainty.

ELEC-008 addresses a different residual problem: coordinated accountability for schemes that combine multiple wrongful acts to nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result.

## RICO Analogy

The conceptual model is RICO-like, but the proposal should not simply import ordinary RICO.

RICO addresses organized patterns of racketeering activity. ELEC-008 would address organized patterns of federal election-subversion activity. The analogy is useful because election subversion may involve multiple actors, multiple forums, and multiple predicate acts that collectively produce an institutional harm larger than any single act.

Ordinary RICO is too broad and too controversial to use wholesale in the election context. Election disputes involve constitutionally protected speech, litigation, lobbying, recounts, contests, political advocacy, legal advice, reporting, and congressional activity. ELEC-008 should therefore be an election-specific RICO analogue with narrow elements, defined predicates, high mens rea, and robust safe harbors.

## **Core Thesis**

Existing law punishes many discrete election-related offenses, and Congress has already hardened several specific post-2020 presidential-election vulnerabilities. But federal law may still lack a narrow, scheme-level accountability framework for coordinated efforts to overturn lawful federal-election results through independently wrongful predicate acts.

The target is not election denial, political speech, litigation, recounts, or lawful objections. The target is knowing participation in a coordinated scheme that uses independently wrongful conduct to corruptly procure official disregard, reversal, obstruction, delay, or nullification of a lawful federal-election result.

## **Specific Manifestation Demonstrating Need**

The clearest manifestation is the alleged multi-channel effort after the 2020 presidential election to overturn, obstruct, delay, or procure official disregard of the lawful presidential-election result through several different mechanisms that existing law treated largely as separate incidents.

The relevant manifestation is not any single act alone. It is the alleged combination of state-official pressure, false or unauthorized presidential-electoral or result-transmission documents, attempted use of federal executive authority, pressure on the Vice President and Congress, and continuing efforts after courts and state officials rejected the asserted factual basis. See the federal indictment in *United States v. Trump*, No. 23-cr-257.

This manifestation exposed a pattern-level gap: existing law supplied tools for pieces of the conduct, but not a narrowly tailored federal statute that clearly treated the coordinated election-subversion pattern as such while preserving lawful litigation, recounts, advocacy, reporting, legal advice, journalism, and congressional procedures.

The proposal should therefore be justified by the following structural lesson: if a coordinated scheme uses independently wrongful predicate acts to corruptly interfere with the lawful result of a federal election, federal law should be able to address the scheme as a scheme, without converting ordinary political dispute, protected speech, or good-faith legal process into liability.

## **Manifestations of the Failure**

### ***Multi-channel pressure campaigns***

A coordinated effort to overturn a lawful result may include pressure on state and local officials, pressure on certification bodies, pressure on federal actors, and public or private efforts to induce officials to disregard lawful results.

### ***False or unauthorized result-transmission documents***

False presidential-electoral documents or other false result-transmission documents may be used as one predicate act within a broader scheme. ELEC-005 addresses this specific mechanism; ELEC-008 addresses its role as part of a coordinated course of conduct.

### ***Abusive litigation, subpoenas, audits, or investigatory demands***

Litigation, audits, subpoenas, and investigatory demands may be lawful when pursued in good faith. They become relevant to ELEC-008 only when used as independently wrongful or sanctionable predicate conduct within a coordinated scheme to obstruct or nullify a lawful result.

### ***Federal-count pressure***

Congress addressed several presidential electoral-count vulnerabilities in 2022, including vice-presidential role clarification and objection-threshold reforms. ELEC-008 should not duplicate those reforms. It should instead address coordinated predicate conduct designed to corruptly influence or exploit federal count processes.

### ***Transition obstruction***

Transition obstruction may be one feature of a broader election-subversion scheme, but ELEC-006 addresses transition automaticity directly. ELEC-008 should treat transition obstruction only as a possible predicate or manifestation when connected to a larger coordinated scheme.

## **Resulting Damage**

Coordinated election-subversion schemes can aggregate individually addressable acts into a broader effort that threatens the lawful result itself. The institutional damage is not limited to any one false document, lawsuit, pressure campaign, or obstructive act. The larger harm is that officials, courts, Congress, voters, and transition institutions may face a manufactured multi-channel crisis without a clear scheme-level accountability tool calibrated to federal-election integrity.

## Manifestation-to-Remedy Mapping

| Manifestation                                                                                                                                            | Existing narrower issue or law                                                                                                                      | Residual gap                                                                                                                                                                               | ELEC-008 response                                                                                                                                                                                                                       |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Pressure on state or local officials to disregard, alter, delay, or refuse lawful certification or canvassing duties                                     | ELEC-002 addresses certification and canvassing pressure                                                                                            | Pressure may be one part of a larger coordinated scheme involving other actors, documents, litigation, or federal channels                                                                 | Treat corrupt pressure under color of office, coercion, threats, or unlawful inducement as predicate acts when materially connected to a coordinated federal election-subversion scheme                                                 |
| False or unauthorized presidential-electoral, certificate, or result-transmission documents                                                              | ELEC-005 addresses false presidential result-transmission documents                                                                                 | False documents may be used not only as standalone fraud but as one instrument in a broader scheme to create a pretext for official disregard of lawful results                            | Treat knowing creation, execution, transmission, or use of false or unauthorized federal-election result documents as predicate acts                                                                                                    |
| Attempted use of federal executive authority, federal investigations, or official pressure to induce state or federal actors to disregard lawful results | DOJ-002, DOJ-003, DOJ-005, and DOJ-007 address White House–DOJ interference, selective enforcement, recusals, and independent investigation         | Existing DOJ controls address internal misuse, but may not connect such misuse to a broader election-subversion scheme                                                                     | Treat corrupt use of official authority and misuse of federal channels as predicate acts when tied to the corrupt objective of nullifying, reversing, obstructing, delaying, or procuring disregard of a lawful federal-election result |
| Pressure on the Vice President or Congress to reject, delay, or alter electoral-vote counting                                                            | ECRA addressed vice-presidential role, objection thresholds, and objection grounds                                                                  | ECRA hardens procedures but does not itself create a scheme-level accountability framework for predicate conduct designed to corruptly exploit or obstruct those procedures                | Preserve ECRA as baseline and treat independently wrongful pressure, false documents, obstruction, or bribery aimed at federal count procedures as predicate conduct                                                                    |
| Abusive litigation, subpoenas, audits, or investigatory demands used after factual and legal rejection                                                   | ELEC-004 addresses abusive election litigation and extraordinary process                                                                            | A lawsuit, subpoena, or audit request may be lawful in isolation; the difficulty is identifying when adjudicated bad faith or improper purpose becomes one part of a coordinated scheme    | Allow process abuse to serve as a predicate only after a court, tribunal, or authorized body finds bad faith, material falsity, improper purpose, contempt, sanctionable conduct, or knowing misuse                                     |
| Unauthorized access to election systems or materials                                                                                                     | ELEC-007 addresses election-material custody and federal-force safeguards; other laws may address computer intrusion or election-material tampering | Unauthorized access may function as one predicate in a larger coordinated effort to manufacture doubt, obtain data, alter records, or justify official disregard                           | Treat unauthorized access, copying, imaging, custody, disclosure, or use of election materials or systems as predicate conduct when independently wrongful and materially connected to the scheme                                       |
| Transition obstruction or denial of practical effect to lawful result                                                                                    | ELEC-006 addresses transition automaticity and continuity                                                                                           | Transition obstruction may be used as downstream pressure to deny the practical effect of a lawful election result                                                                         | Treat knowing violation of transition-access duties, transition court orders, or transition-continuity safeguards as predicate acts when tied to the scheme                                                                             |
| Fundraising, financing, or material assistance based on knowing false representations tied to the scheme                                                 | Existing fraud and campaign-finance laws may apply unevenly                                                                                         | Scheme financing may enable the coordinated pattern even where each fundraising communication is difficult to litigate separately                                                          | Permit disgorgement where funds are knowingly raised through materially false representations in furtherance of a coordinated federal election-subversion scheme                                                                        |
| Presidential participation or claimed official-act immunity                                                                                              | IMM-001 addresses criminal immunity for presidential official acts                                                                                  | An election-subversion statute may define prohibited scheme-level conduct, but accountability can fail if immunity doctrine bars prosecution, civil enforcement, evidence, or adjudication | ELEC-008 supplies the accountability framework; IMM-001 preserves the pathway to apply it to presidential conduct where constitutionally valid                                                                                          |

## Underlying Weakness

Existing law addresses many component acts, but it may not clearly identify a coordinated federal-election-subversion scheme as a distinct wrong when the scheme combines pressure, false documents, abusive process, federal-channel misuse, transition obstruction, or other independently wrongful predicates. Ordinary RICO is too broad and poorly tailored for election disputes, while narrower election reforms may leave no single framework for scheme-level accountability that also protects lawful advocacy, litigation, recounts, journalism, legal advice, and congressional activity.

## Proposed Accountability Model

Congress should consider a narrow federal election-subversion accountability statute that operates as a RICO analogue but is tailored to federal-election integrity.

The statute should require:

1. a coordinated course of conduct involving two or more persons;
2. knowing and corrupt participation;
3. a specific objective to nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result, certification, result-transmission process, transition process, or federal count proceeding;

4. at least two defined independently wrongful predicate acts; and
5. material connection between the predicate acts and the corrupt objective.

## Predicate Acts

Predicate acts should be limited to independently wrongful conduct, such as:

- knowingly false federal-election result-transmission documents;
- coercive intimidation of election personnel;
- threats or retaliation against certification officials;
- corrupt use of official authority;
- bribery or extortion;
- evidence fabrication;
- knowingly false sworn statements;
- unauthorized access to election materials;
- obstruction of a federal electoral proceeding;
- knowing violation of election-material custody safeguards;
- knowing violation of transition-obstruction safeguards;
- abuse of judicial, subpoena, audit, or investigatory process after a court or tribunal finding of bad faith, material falsity, or improper purpose.

## Safe Harbors

The statute should expressly preserve:

- good-faith litigation;
- recounts;
- election contests;
- public advocacy;
- lobbying;
- lawful congressional objections;
- legal advice;
- reporting suspected irregularities;
- whistleblowing;
- journalism;
- academic analysis;
- ordinary campaign activity;
- contingent preservation of legal claims;
- good-faith cooperation with investigations;
- lawful state or federal official duties.

No person should be liable merely for asserting that an election was unlawful, supporting a candidate, filing a losing lawsuit, advocating for a recount, criticizing election administration, or participating in ordinary political activity.

## Proposal Survey

The closest legal analogue is RICO, which treats coordinated patterns of predicate misconduct as a distinct statutory wrong. See 18 U.S.C. chapter 96. Ordinary RICO is too broad for election disputes because protected speech, litigation, recounts, contests, journalism, and congressional activity must be preserved.

Existing federal criminal statutes already cover important components of the problem, including conspiracy against the United States, conspiracy against voting rights, and obstruction-related conduct. See 18 U.S.C. § 371, 18 U.S.C. § 241, and 18 U.S.C. § 1512. But those statutes address particular theories of liability rather than a tailored election-subversion framework with election-specific safe harbors,

state-nexus emergency relief, and scheme-level remedial structure.

Congress also partially addressed presidential-election subversion through the Electoral Count Reform Act, but that reform hardened electoral-count procedures rather than creating scheme-level accountability. See Pub. L. No. 117-328, div. P. Any obstruction-related design must account for *Fischer v. United States*, which narrowed the reach of 18 U.S.C. § 1512(c)(2), and *Trump v. United States*, which makes presidential-immunity and official-act evidence limits central where presidential conduct is implicated. ELEC-008 therefore uses a narrow election-specific RICO analogue with defined predicates, safe harbors, and immunity-aware limitations.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is not a general election-denial statute. It is a narrow scheme-level accountability framework that applies only when independently wrongful predicate acts are coordinated for the corrupt purpose of overturning or obstructing a lawful federal-election result.

## Repair and Prevention

A narrow statute could include:

1. criminal penalties for knowing corrupt schemes;
2. civil enforcement by the United States;
3. civil enforcement by affected states or election officials in narrow circumstances;
4. emergency injunctive relief before certification, transition, or federal count deadlines;
5. public-cost reimbursement;
6. disgorgement of funds raised through knowing false representations tied to the scheme;
7. disqualification from federal election-administration roles, presidential-electoral service, or specified transition roles where narrowly justified;
8. record-preservation duties;
9. expedited judicial review.

## Proposed Legislation

- Federal Election Subversion Accountability Act

## Relationship to Adjacent Proposals

- **ELEC-002** addresses pressure on certification and canvassing officials.
- **ELEC-004** addresses abusive election litigation, investigatory demands, subpoenas, audits, and extraordinary proceedings.
- **ELEC-005** addresses false or unauthorized presidential result-transmission documents.
- **ELEC-006** addresses presidential-transition continuity and automaticity.
- **ELEC-007** addresses improper federal-force presence and election-material custody safeguards.
- **ELEC-008** is the capstone accountability framework for coordinated schemes using one or more of those narrower mechanisms.
- **IMM-001** addresses criminal immunity for presidential official acts. ELEC-008 and IMM-001 are complementary: ELEC-008 defines a scheme-level accountability framework for coordinated election subversion, while IMM-001 is necessary to preserve a meaningful avenue for applying such accountability when presidential conduct or claimed official-act immunity would otherwise prevent adjudication.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 74 / 100 (Substantially Developed Draft)  
**Adoption Score:** 4 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 85 / 100 (Extreme Resistance)  
**Required Electoral Environment:** post-crisis-repair-mandate  
**Development Priority:** active

**Audit Status:** T4 publication-ready audit complete; external validation needed before circulation  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** ELEC-008 audit history

## Annotation

**Ambitious Scope.** ELEC-008 is broader and more constitutionally sensitive than ELEC-002 through ELEC-007. It should proceed cautiously and should be developed with a comparative review of existing reform proposals, election-subversion scholarship, RICO doctrine, First Amendment limits, Petition Clause protections, and post-2020 federal reforms.

**Federal-Election Scope.** ELEC-008 should cover presidential, vice-presidential, Senate, and House elections. It should not generally federalize purely state or local elections, except where predicate conduct independently violates federal law.

**ECRA Baseline.** The 2022 Electoral Count Reform and Presidential Transition Improvement Act is a partial reform baseline. ELEC-008 should not duplicate or ignore it.

**Presidential Accountability Complement.** ELEC-008 should be developed in tandem with the presidential-immunity reform. An election-subversion accountability statute may define prohibited scheme-level conduct, but presidential accountability may still fail if immunity doctrine prevents prosecution, civil enforcement, evidentiary use, or adjudication of presidential conduct. The two reforms therefore complement each other: ELEC-008 supplies the accountability framework; the immunity reform preserves the pathway to hold a president accountable where the conduct falls outside legitimate constitutional functions or where Congress validly defines enforceable duties.

**Conduct Not Belief.** The statute should target corrupt coordinated conduct using independently wrongful predicate acts, not beliefs, public claims, or political advocacy.

**Predicate-Act Requirement.** Liability should require at least two defined predicate acts that are independently unlawful, sanctionable, or otherwise specifically prohibited.

**Safe-Harbor Centrality.** Robust safe harbors are essential to prevent the statute from chilling lawful election contests, recounts, litigation, advocacy, reporting, legal advice, journalism, or congressional activity.

**Working Draft.** Full statutory drafting has begun. The current draft should be treated as a first-pass framework subject to comparative review of existing proposals and related scholarship. The likely model is a narrow election-specific RICO analogue, not direct incorporation of ordinary RICO.

**Source Development Pending.** Further source development should review the 2022 Electoral Count Reform and Presidential Transition Improvement Act, existing election-crime statutes, obstruction statutes, RICO doctrine, state anti-subversion proposals, Protect Democracy and other reform proposals, post-2020 federal and state prosecutions, congressional election-contest procedures, Article I Section 5 doctrine, and ARRP's presidential-immunity reform.

**Quality Score.** The proposal is 74/100 after T4. Component score: Structural 8/8; Evidence 11/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 5/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. T4 strengthened source grounding and confirmed that the bill's predicate-act, safe-harbor, congressional-protection, and presidential-immunity caveats are directionally appropriate. It remains below Review Ready because direct prior-proposal research, official docket-posture verification, state-enforcement anti-weaponization analysis, budget/workload analogues, safe-harbor stress testing, Title 18 codification review, and external criminal-law, election-law, federal-courts, or legislative-counsel review remain unresolved.

**Legal Fit.** Existing conspiracy, voting-rights, and obstruction statutes provide component-law support, but *Fischer* cautions against unbounded obstruction theories and *Trump v. United States* requires official-act and evidence-use limits for presidential applications. ELEC-008 should therefore remain predicate-act-based, safe-harbor-heavy, and complementary to IMM-001 rather than relying on a general obstruction or election-denial theory.

**Case Posture.** The federal election-subversion prosecution did not produce adjudicated findings. DOJ's final Special Counsel report should be treated as the government's prosecution assessment and source lead, not as a judicial determination of fact. See Final Report on the Special Counsel's Investigations and Prosecutions, Volume One.



## ELEC-008 — Audit History

This file preserves the full audit history for ELEC-008. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-24 — *Initial framework and inventory audit*

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

#### 2026-06-28 — *T1 framework check*

**Audit status:** T1 framework check complete; T2 development audit pending

**Proposal-quality score:** 60

**Score basis:** T1 confirmed that ELEC-008 has a developed issue page, linked proposed legislation, budgetary-impact statement, audit sidecar, source-inventory coverage, and dashboard row. The score remains 60 because no full current-rubric component rebaseline has yet been performed.

**Scope reviewed:** Issue page, linked bill page, audit-history file, dashboard row, audit inventory, source inventory, and governing T1 requirements for structure, metadata, source hygiene, budget statement, current-status risk, and enactment-pathway fields.

**Template and source hygiene:** Standardized the issue-page legislation metadata field to `federal_legislative_proposal` and replaced the visible LII RICO link with the official U.S. Code chapter 96 source already tracked in the source inventory.

**Current-status and mootness check:** No current source identified during T1 shows that the proposal is moot. The proposal remains highly sensitive because it intersects with election subversion, RICO-like criminal liability, First Amendment safe harbors, Speech or Debate protections, presidential-immunity concerns, and post-2020 accountability.

**Existing-law fit:** Existing law supplies component offenses and a RICO analogue, while ECRA hardened specific presidential-count procedures. T2 must determine whether a new election-specific scheme-level framework is the least-complex adequate remedy or whether existing criminal, civil, or election statutes can be amended more narrowly.

**Issue-to-legislation alignment:** No material discrepancy identified at T1. The issue page and bill both use a narrow RICO-like structure with independently wrongful predicate acts, corrupt-purpose requirements, safe harbors, and relationship to narrower ELEC proposals.

**Adoption and pathway fields:** Assigned Adoption Score 4/12 (Limited Adoption Basis), Adoption Friction 85/100 (Extreme Resistance), Required Electoral Environment `post-crisis-repair-mandate`, Pathway Viability `post-crisis-only`, Development Priority `active`, and Pathway Adjustment `stage`.

**Next audit need:** T2 should review RICO, ECRA, Speech or Debate Clause, presidential-immunity doctrine, First Amendment and litigation-protection issues, predicate-act definitions, criminal mens rea, safe harbors, standing and civil enforcement, prior proposals, and whether a narrower amendment path is preferable.

#### 2026-06-28 — *T2 development audit*

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 67

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 5/10; Prior Proposal 6/8; Remedy 8/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 5/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 67.

**Major findings:** T2 confirms that ELEC-008 is substantially developed but not Review Ready. The official federal indictment in *United States v. Trump* supports the multi-channel manifestation and directly illustrates the proposal's core theory: alleged pressure on officials, false-elector or result-transmission efforts, alleged DOJ-use efforts, pressure on the Vice President, and alleged obstruction of federal count processes can function as a coordinated pattern rather than isolated acts. The indictment also reinforces that protected speech, litigation, recounts, audits, and lawful challenges must remain outside liability.

**Current-status and mootness check:** No current source reviewed during T2 makes ELEC-008 moot. *Trump v. United States* materially reframes the issue by making presidential-immunity and official-act evidence limits central to any accountability framework. ELEC-008 remains linked to IMM-001 because the election-subversion framework cannot fully solve presidential accountability by itself.

**Existing-law fit:** RICO is the closest structural analogue, but ordinary RICO is too broad and insufficiently tailored for election disputes. Existing election, fraud, obstruction, conspiracy, false-document, intimidation, and civil-rights statutes cover component conduct but may

not clearly address scheme-level election subversion. T3 should test whether narrower amendments to existing obstruction, false-statement, election, or civil-rights statutes could achieve an adequate remedy with less constitutional risk.

**Issue-to-legislation alignment:** No material discrepancy identified. The bill includes coordination, corrupt-purpose, predicate-act, material-connection, safe-harbor, jury-instruction, congressional-protection, and presidential-immunity caveats that match the issue page's cautionary framing.

**Legal-risk findings:** Major unresolved risks include First Amendment overbreadth, Petition Clause protection for litigation and lobbying, Speech or Debate Clause protections, Article I Section 5 limits for congressional elections, presidential-immunity doctrine, official-act evidence limits, federalism, state-attorney-general backstop standing, civil-enforcement weaponization, vagueness, mens rea sufficiency, and whether pressure communications can be distinguished from protected advocacy with enough clarity.

**Implementation and budget check:** No new appropriation is specified. Administrative and litigation burden is likely substantial if enacted, but no source-backed fiscal analogue has been added. T3 should search for enforcement-cost, special-litigation, election-protection, or RICO analogue sources before adding any fiscal estimate.

**Adoption and friction:** Adoption Score remains 4/12. Adoption Friction remains 85/100 because the proposal creates RICO-like election-subversion liability affecting criminal law, protected speech, litigation, congressional activity, presidential conduct, federalism, state enforcement, and election administration.

**Next audit need:** T3 should focus on constitutional narrowing, prior-proposal research, existing-law amendment alternatives, federal and state prosecution records, Protect Democracy or comparable reform models, safe-harbor strength, civil-enforcement anti-weaponization, and whether the proposal should be split into narrower modules.

## 2026-06-28 — T3 readiness audit

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 72

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 6/10; Prior Proposal 6/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 72.

**Scope reviewed:** T3 reviewed the issue page, linked bill, prior audit history, audit dashboard row, audit inventory row, relevant source-inventory rows, existing federal criminal-law comparators, Supreme Court sources for *Fischer v. United States* and *Trump v. United States*, and the T3 requirements for current-status, legal-fit, remedy-fit, source-refresh, issue-to-legislation alignment, abuse-resistance, and readiness scoring.

**Sources and source categories checked:** Existing project source rows for RICO, ECRA, 18 U.S.C. §§ 371, 241, 1512, Speech or Debate, *Trump v. United States*, and the DOJ indictment were reviewed for ELEC-008 relevance. Targeted public-source discovery also checked Supreme Court sources, U.S. Code sources, Congress.gov-style prior-proposal search terms, CourtListener/docket search terms, and reform-organization search terms for election-subversion analogues. T3 added *Fischer v. United States* as a source row and associated existing 18 U.S.C. §§ 371, 241, and 1512 source rows with ELEC-008.

**Verified findings:** Existing federal law provides several component-law comparators: conspiracy against the United States, conspiracy against voting rights, obstruction-related law, RICO pattern structure, and ECRA procedural hardening. These sources support the issue page's claim that ELEC-008 should supplement existing law rather than ignore it. *Fischer* strengthens the need to avoid a generalized obstruction theory, and *Trump v. United States* confirms that presidential applications require immunity-aware drafting and coordination with IMM-001.

**Current-status and mootness check:** T3 did not identify a controlling development making ELEC-008 moot. The current legal posture instead materially supports caution: *Fischer* narrows one obstruction comparator, and *Trump v. United States* heightens presidential-official-act and evidence-use limits. T4 should still verify the official current docket posture of the federal election-subversion prosecution, superseding indictment materials, dismissal or procedural status, and any pending Supreme Court or appellate matters that could materially reframe the proposal.

**Existing-law fit:** T3 found no autonomous basis to convert the draft into a pure existing-law amendment. Existing statutes cover component conduct, but the issue page's residual-gap theory remains plausible because the project is trying to address scheme-level election subversion while adding election-specific safe harbors and emergency equitable tools. However, T4 should compare whether a narrower Title 18 amendment package could achieve the same remedy with lower constitutional and adoption risk before the proposal is treated as Review Ready.

**Issue-to-legislation alignment:** No material discrepancy requiring human review was identified. The bill includes the issue page's core limiting principles: two or more actors, knowing and corrupt participation, at least two independently wrongful predicate acts, material connection, safe harbors for protected activity, congressional-proceedings limits, presidential-immunity caveats, and state-nexus limits for backstop actions.

**Defects corrected during T3:** The issue page Proposal Survey now cites existing federal conspiracy, rights, and obstruction statutes as component-law comparators; the bill Source Notes now include those sources and *Fischer*; the issue-page Quality Score annotation now explains the T3 score; the source inventory now captures *Fischer* and associates existing statutory rows with ELEC-008.

**Unresolved findings:** T3 did not complete direct prior-proposal research sufficient for publication, did not verify every relevant federal or state prosecution record, did not complete a full civil-enforcement anti-weaponization analysis, did not source a budget or workload analogue, did not locate professional or legislative-counsel review, did not complete international-relations assessment beyond treating it as not materially central at this tier, and did not verify official docket posture from primary docket materials.

**Adoption and friction:** Adoption Score remains 4/12 and Adoption Friction remains 85/100. The proposal remains post-crisis-only in practical viability because it creates RICO-like election-subversion liability in a highly polarized and constitutionally sensitive space. Narrower modules or existing-law amendments may reduce friction and should be tested at T4.

**Readiness determination:** ELEC-008 remains a Substantially Developed Draft, not Review Ready. T3 improved source grounding and legal-fit analysis, but the proposal still needs T4-level prior-proposal review, constitutional narrowing, docket/posture verification, safe-harbor stress testing, civil-enforcement abuse-resistance review, federalism analysis, and external review before external circulation.

**Audit process feedback:** T3 was adequate to improve legal-fit and source grounding without exhausting the tier estimate. The recurring weakness is that broad RICO-like proposals need a structured "existing-law component map" early in T2 or T3; future audits of similar proposals should build that map before scoring Remedy, Legal Fit, and Abuse Resistance.

## **2026-06-28 — T4 publication-ready audit**

**Audit status:** T4 publication-ready audit complete; external validation needed before circulation

**Proposal-quality score:** 74

**Component score:** Structural 8/8; Evidence 11/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 5/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 74.

**Scope reviewed:** T4 reviewed the issue page, bill, audit sidecar, dashboard row, audit and source inventories, source notes, existing federal-law comparators, Supreme Court doctrine sources, the official DOJ final Special Counsel report volume for the federal election case, and the publication-ready audit requirements for source verification, current-status review, prior-proposal comparison, legal durability, implementation burden, adoption, issue-to-legislation alignment, and unresolved publication blockers.

**Sources and source categories checked:** T4 relied on primary U.S. Code sources for RICO, 18 U.S.C. §§ 371, 241, and 1512; public-law/ECRA source leads; official Supreme Court opinions in *Fischer v. United States* and *Trump v. United States*; the DOJ indictment already added at T2; and DOJ's final Special Counsel report volume for case posture and prosecution assessment. Targeted public-source discovery also checked Congress.gov-style bill search terms, CourtListener/docket search terms, reform-organization search terms, and state anti-subversion model-law search terms. No paid legal database was used.

**Verified findings:** T4 confirms that ELEC-008's core theory remains plausible: existing statutes supply component-law hooks, but no verified source reviewed during T4 supplies a complete election-specific scheme-level framework with the bill's safe-harbor, state-nexus, presidential-immunity, congressional-protection, and emergency-equitable-relief design. *Fischer* and *Trump v. United States* are central limiting sources. The DOJ final Special Counsel report is useful for prosecution posture and source development, but it is not a judicial finding.

**Current-status and mootness check:** T4 did not identify a controlling development that makes ELEC-008 moot. Current doctrine instead strengthens the need for narrower design: obstruction predicates must account for *Fischer*, and presidential applications must account for *Trump v. United States*. Because the federal election-subversion case did not produce adjudicated findings, the manifestation should continue to be framed as alleged conduct and prosecution record rather than established judicial fact.

**Prior-proposal and existing-law fit:** T4 found no reason to treat ELEC-008 as duplicative of ECRA, RICO, 18 U.S.C. §§ 371, 241, or 1512. However, direct prior-proposal research remains incomplete. Before circulation, the project should complete a direct Congress.gov and state-legislature survey for election-subversion, false-electoral, certification-pressure, anti-intimidation, anti-corruption, and election-emergency civil-enforcement proposals. T4 also recommends testing whether a narrower Title 18 codification package could reduce risk without weakening remedy adequacy; the audit did not autonomously convert the vehicle.

**Issue-to-legislation alignment:** No material discrepancy requiring human review was identified. The issue page and bill remain aligned on covered elections, scheme-level liability, independently wrongful predicate acts, corrupt-purpose requirement, material connection, safe harbors, congressional-proceedings caution, state-attorney-general backstop, presidential-immunity limits, and relationship to adjacent ELEC and IMM proposals.

**Legal and judicial-scrutiny risks:** ELEC-008 remains legally sensitive. The highest-risk areas are First Amendment overbreadth, Petition Clause protection for litigation and lobbying, Speech or Debate Clause protections, Article I Section 5 limits, vagueness, mens rea precision, federalism, presidential-immunity doctrine, official-act evidence limits, state enforcement standing, civil-enforcement weaponization, and possible chilling of lawful election contests. The bill addresses these risks directionally but needs professional review.

**Implementation and budget:** The existing budgetary-impact statement remains appropriate: administrative workload is possible, but no new appropriation is specified. T4 did not locate a source-backed fiscal analogue sufficient to add a dollar estimate. Implementation burden is likely significant because the proposal would require DOJ or state-plaintiff litigation capacity, expedited judicial management, source preservation, and high-stakes election emergency practice.

**Adoption and opposition:** Adoption Score remains 4/12 and Adoption Friction remains 85/100. The proposal is institutionally significant but highly polarizing and vulnerable to caricature as criminalizing election challenges unless the safe harbors, predicate-act limits, and clear mens rea requirements are foregrounded. The Required Electoral Environment remains

post-crisis-repair-mandate, with post-crisis-only pathway viability.

**International-support and foreign-relations assessment:** No material direct foreign-relations mechanism was identified at T4. The proposal may indirectly support U.S. democratic-resilience credibility, but T4 did not locate current international or comparative-law sources sufficient to assign a favorable international-support score. Treat as N/A for current proposal-quality scoring and revisit only if international-democracy framing becomes publication-relevant.

**Defects corrected during T4:** The issue page Proposal Scoring box, metadata, and Quality Score annotation were updated to T4; a Case Posture annotation was added to avoid treating DOJ prosecution materials as adjudicated fact; the source inventory was updated with the DOJ final Special Counsel report; the audit inventory and dashboard were updated to reflect T4 completion.

**Publication blockers:** ELEC-008 is not Review Ready after T4. Publication blockers include incomplete direct prior-proposal research, unresolved official docket-posture verification, no external criminal-law/election-law/federal-courts/legislative-counsel review, incomplete state-enforcement anti-weaponization analysis, unresolved Title 18 codification strategy, no source-backed fiscal or workload analogue, and insufficient safe-harbor stress testing against hostile interpretations.

**Next audit need:** External validation / T4 follow-up should focus on legal expert review, direct prior-proposal survey, official docket-posture verification, Title 18 codification alternatives, civil-enforcement abuse-resistance, federalism, Article I Section 5 and Speech or Debate, presidential-immunity interaction, fiscal/workload analogues, and safe-harbor stress testing.

**Audit process feedback:** T4 completed under the planning estimate but did not produce Review Ready status because ELEC-008 is substantively more complex than narrower election proposals. Future T4 audits of broad umbrella proposals should budget early for direct prior-proposal searches and official docket-posture verification before spending time on prose refinement.

# ELEC-009 — Electoral College Structure and National Popular Vote

Issue Snapshot

**Problem:** Electoral College can override national vote.

**Repair:** Establish direct national presidential election.

**Vehicle:** Constitutional amendment (draft).

## Institutional Anomaly

The constitutional system for selecting the President can award the office to a candidate who did not receive the greatest number of votes nationally, concentrates campaign attention and practical influence in a limited number of competitive states, and assigns presidential selection through state-based electoral votes rather than equal aggregation of individual votes nationwide. These features can weaken public confidence that presidential authority reflects the electorate's collective choice.

The Electoral College also creates elector-specific pressure points, including elector appointment, certificates of ascertainment, certificates of vote, electoral-vote transmission, and congressional electoral-count proceedings. These mechanisms can become focal points for false-document schemes, certification pressure, elector disputes, and federal-count pressure.

## Manifestation of the Failure

### *Popular-vote and Electoral College divergence*

The Electoral College winner did not receive the national popular-vote plurality in the presidential elections of 1876, 1888, 2000, and 2016. The 1824 election also produced a President who did not lead the initial popular vote, although the popular vote was incomplete and the election was ultimately decided by the House of Representatives under the Twelfth Amendment.

Official FEC election compilations verify the two modern examples central to this proposal's contemporary relevance. In 2000, the FEC reported Al Gore with 50,992,335 popular votes and George W. Bush with 50,455,156 popular votes, while the electoral-vote map gave Bush 271 electoral votes and Gore 266. See FEC Federal Elections 2000 and FEC Federal Elections 2000 PDF. In 2016, the FEC reported Hillary Clinton with 65,853,514 popular votes and President Trump with 62,984,828 popular votes, while the electoral-vote table reported President Trump with 304 electoral votes and Clinton with 227 after faithless-electors votes. See FEC Federal Elections 2016 and FEC Federal Elections 2016 workbook.

### *Modern structural mismatch*

The issue is not dependent upon misconduct by any individual officeholder. The 2000 and 2016 elections are modern manifestations of a longstanding structural possibility: a candidate may assume the presidency despite receiving fewer votes nationwide than an opponent.

## Resulting Damage

Divergence between the popular vote and the constitutional result may:

1. weaken perceived democratic legitimacy and institutional trust;
2. produce unequal practical weight among voters because electoral votes are allocated by state;
3. concentrate campaign resources and policy attention in a small number of competitive states;
4. render voters in predictably noncompetitive states less consequential to campaign strategy;
5. increase the possibility that a narrow shift in a few states overrides a substantial national vote margin;
6. create recurring disputes over whether the President possesses a national democratic mandate;
7. create elector-specific document and transmission vulnerabilities; and
8. create a separate congressional-count pressure point that direct election would largely eliminate.

These harms do not establish that every Electoral College outcome is illegitimate. They identify a structural mismatch between the constitutional selection mechanism and the modern expectation that the candidate receiving the most votes should ordinarily prevail.

## Underlying Weakness

Article II and the Twelfth Amendment establish a state-based elector system. Each state receives electors equal to its total representation in Congress, and a candidate must obtain a majority of appointed electoral votes. If no candidate receives a majority, the House selects the President by state delegation, with each state casting one vote.

The Constitution does not require winner-take-all allocation, which is a product of state law in nearly every state. States therefore retain substantial authority over elector allocation, but complete abolition of electors and direct national election of the President requires a constitutional amendment.

The current system combines several distinct features that should not be treated as inseparable:

- the existence of presidential electors;

- allocation of electoral votes among states;
- winner-take-all state allocation;
- the electoral-vote majority requirement;
- contingent election by state delegation in the House; and
- decentralized state administration of the underlying popular vote.

## Proposal Survey

Prior reform models include constitutional amendments for direct popular election, state allocation reforms, proportional or district-based electoral-vote allocation, and the National Popular Vote Interstate Compact. The compact seeks to use state appointment power to award electoral votes to the national popular-vote winner once states totaling 270 electoral votes join. See National Popular Vote.

The compact remains a live staged model rather than a completed substitute for amendment. National Popular Vote's current status page states that the compact has been enacted by 19 jurisdictions possessing 222 electoral votes and would take effect when enacted by states possessing an additional 48 electoral votes. See National Popular Vote state status. Because that source is maintained by the compact's advocacy organization, publication-ready treatment should verify individual state enactments through state legislative or code sources.

Recent congressional direct-election proposals confirm that ELEC-009 has direct legislative analogues but also that the proposal has not advanced far in modern Congress. In the 116th Congress, H.J.Res. 7, S.J.Res. 16, and S.J.Res. 17 each proposed constitutional amendment language for direct election or abolition of the Electoral College, but each remained introduced or referred rather than advancing to proposal by Congress.

The Electoral Count Reform Act improved counting procedures but left the Electoral College structure intact. See Pub. L. No. 117-328, div. P. ELEC-009 treats compact and allocation reforms as possible interim models but selects constitutional replacement as the durable remedy.

## Public Opinion and Adoption Evidence

Available polling shows a durable national preference for selecting the President by national popular vote, but also a serious adoption gap between abstract public support and the Article V coalition required to abolish presidential electors. In September 2024, Pew Research Center reported that 63 percent of U.S. adults preferred the presidential winner to be the person receiving the most votes nationally, while 35 percent preferred retaining the Electoral College. Pew also reported a large partisan divide: 80 percent of Democrats and Democratic-leaning independents favored a popular-vote system, while Republicans and Republican leaners were more divided, with 46 percent favoring replacement and 53 percent favoring retention. See Pew Research Center, *Majority of Americans continue to favor moving away from Electoral College*.

Gallup's September 2020 polling asked the more constitutionally specific question whether respondents preferred amending the Constitution so the candidate receiving the most total votes nationwide wins. Gallup found 61 percent support and 38 percent opposition overall, with 89 percent support among Democrats, 68 percent among independents, and 23 percent among Republicans. Gallup also reported that support for replacing the Electoral College with a national popular vote usually remained at majority levels in its post-2000 polling, but fell to 49 percent immediately after the 2016 election, reflecting how public attitudes can shift with partisan incentives and recent electoral outcomes. See Gallup, *61% of Americans Support Abolishing Electoral College*.

This evidence strengthens the public-legitimacy case for ELEC-009: support for a national popular-vote rule is not merely an elite or academic preference. It also clarifies the adoption problem. National majority support does not translate into Article V viability because ratification requires geographically distributed state support, and the polling shows substantial partisan asymmetry. ELEC-009 should therefore distinguish three questions: whether the public generally prefers a national popular vote; whether voters support a specific constitutional amendment with implementation details; and whether enough states and congressional actors would support ratification despite expected partisan and state-interest resistance.

For scoring purposes, the targeted Change Audit treats this polling as sufficient for modest adoption-credit improvement. The evidence is directly relevant to popular-vote reform, and Gallup's 2020 question is specifically relevant to a constitutional-amendment mechanism, but the record still does not establish support for this draft amendment's full architecture, including plurality default, congressional power to create a runoff or ranked-choice mechanism, uniform national administration, state-administered implementation, recount rules, ballot-access rules, or contest procedures.

## Least-Complex Adequate Remedy

The most durable method of guaranteeing that the national popular-vote winner becomes President is a constitutional amendment establishing direct national popular election. Article V requires proposal by two-thirds of both houses of Congress or a convention called on application of two-thirds of state legislatures, followed by ratification by three-fourths of the states or state conventions. See Article V. That remedy is legally clear but politically difficult and requires detailed national rules governing recounts, ballot access, dispute resolution, certification, and election administration.

The National Popular Vote Interstate Compact is less procedurally difficult than amendment but does not abolish the Electoral College, depends on coordinated state enactments, and presents unresolved constitutional and operational risks. It should be evaluated as an interim or alternative mechanism rather than presumed equivalent to constitutional replacement.

## Repair and Prevention

Congress and the States should adopt a constitutional amendment abolishing presidential electors and providing for direct national election of the President and Vice President by the people of the United States.

The amendment should:

1. abolish presidential electors;
2. provide for joint presidential and vice-presidential tickets;
3. provide that each voter casts one vote for a joint ticket;
4. establish the national popular vote as the default method of election;
5. allow Congress to enact a uniform national majority mechanism such as a runoff or ranked-choice tabulation;
6. authorize Congress to establish uniform rules for ballot access, counting, certification, recounts, contests, result transmission, candidate vacancies, ties, and unresolved contests;
7. preserve state administration subject to uniform federal standards;
8. supersede inconsistent constitutional provisions; and
9. provide a delayed effective date sufficient for implementation.

## Proposed Constitutional Amendment

- Direct Election of the President and Vice President Amendment

## Relationship to Adjacent Proposals

- **ELEC-005** concerns false or unauthorized presidential result-transmission documents within the existing constitutional system. Direct election would remove elector-specific document vulnerabilities but still require secure national result-transmission rules.
- **ELEC-006** concerns continuity and automatic operation of presidential transition procedures. Direct election would simplify some sources of uncertainty but would still require transition administration.
- **ELEC-008** concerns coordinated federal election-subversion schemes. Direct election would reduce elector-specific attack surfaces while preserving the need for scheme-level accountability.
- **ELEC-009** concerns the constitutional presidential-selection mechanism itself.

## Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 73 / 100 (Substantially Developed Draft)  
**Adoption Score:** 4 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 95 / 100 (Extreme Resistance)  
**Required Electoral Environment:** constitutional-amendment-environment  
**Development Priority:** conditional  
—  
**Audit Status:** Targeted Change Audit complete; external validation and implementation design pending  
**Last Audit:** Change Audit  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current; **Change Audit Needed:** no  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** ELEC-009 audit history

## Annotation

**Institutional-Trust Basis.** This issue belongs in the project even though it is not principally prompted by the conduct of a particular President. The project addresses institutional structures that undermine legitimacy, accountability, resilience, or public confidence. Repeated divergence between the national popular vote and the presidential outcome presents such a structural concern.

**Neutrality.** The issue should not be framed around which political party has benefited from particular elections. Any reform must apply identically regardless of candidate, party, region, or expected electoral advantage.

**Historical Qualification.** Four elections—1876, 1888, 2000, and 2016—clearly produced an Electoral College winner who did not receive the national popular-vote plurality. The 1824 election is historically distinct because popular voting was not universal among

states and the House selected the President after no candidate obtained an electoral majority.

**Constitutional Constraint.** Direct abolition of the Electoral College requires constitutional amendment. State-law allocation reforms and the interstate compact may alter practical outcomes without formal abolition, but they raise different questions of durability, administration, and constitutional validity.

**Implementation Required.** The amendment must be paired with implementing legislation for national certification, recount thresholds, contest procedures, ballot access, candidate replacement, tie resolution, transition access, and emergency contingencies.

**Quality Score.** The proposal is 73/100 after the June 29, 2026 targeted Change Audit. Component score: Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 8/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 5/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. The score increased because Pew 2024 and Gallup 2020 provide cited, source-inventoried public-support evidence for national popular-vote reform and constitutional-amendment framing. The proposal remains below Review Ready because older historical examples, state-by-state compact verification, compact legality, majority-mechanism selection, implementing legislation, budget/workload analogues, and external constitutional-law or election-law review remain unresolved.

**Adoption Score.** Adoption Score is 4/12 (Limited Adoption Basis). Pew 2024 supports the underlying national-popular-vote reform principle with current national polling. Gallup 2020 is older but remains probative because it asks the more mechanism-specific question whether the Constitution should be amended so the national popular-vote winner becomes President. The adoption record remains limited because the project has not identified state-level ratification evidence, current sponsor strength, a verified bipartisan Article V path, external validator support, or public support for this draft amendment's full implementation architecture.

**Adoption Friction.** Adoption Friction is 95/100 (Extreme Resistance) because the proposal would abolish presidential electors, alter presidential-selection incentives nationwide, require Article V ratification, affect state and party strategic interests, require extensive implementing legislation, and invite intense federalism, partisan, administrative, recount, and ballot-access objections.

**Required Electoral Environment.** Required Electoral Environment is constitutional-amendment-environment, with Pathway Viability *post-crisis-only*, Development Priority *conditional*, and Pathway Adjustment *stage*. Interim development should preserve comparison to the National Popular Vote Interstate Compact, state allocation reforms, ranked-choice or runoff mechanisms, and electoral-count hardening while recognizing that direct abolition requires Article V ratification.



## ELEC-009 — Audit History

This file preserves the full audit history for ELEC-009. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

This file now contains issue-specific audit entries and migrated inventory-level audit summaries.

#### 2026-06-29 — Targeted Change Audit / adoption-evidence rebaseline

**Audit status:** Targeted Change Audit complete; external validation and implementation design pending

**Proposal-quality score:** 73

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 8/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 5/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 73.

**Scope reviewed:** Targeted Change Audit reviewed the issue page, amendment text, T4 audit history, dashboard row, audit inventory, source inventory, Pew 2024 polling, Gallup 2020 polling, the National Popular Vote compact status source already used by the issue page, and the methodology rules for adoption scoring, polling/public-support evidence, current-source refresh, mootness/material-reframing, source inventory, and issue-to-amendment alignment.

**Current-source refresh:** Refresh performed June 29, 2026. Source categories checked included current polling/public-opinion evidence, Congress.gov/public-web leads for pending direct-election proposals, National Popular Vote compact status, existing project constitutional-amendment analogues, and the linked amendment text. No current source checked during this targeted audit made ELEC-009 moot or eliminated the Article V barrier to abolishing presidential electors.

**Verified adoption findings:** Pew Research Center 2024 provides current national polling support for the underlying reform principle: selecting the President by national popular vote rather than retaining the Electoral College. Gallup 2020 is older but directly relevant to the mechanism because it asks about amending the Constitution so the national popular-vote winner becomes President. Together, these sources justify modest Adoption Score credit that was unavailable during T4.

**Adoption-score rebaseline:** Adoption Score increases from 1/12 to 4/12. Credit is awarded for current national polling support, qualified mechanism-specific support, and improved explanation of the gap between national majority support and Article V viability. No credit is awarded for state-level ratification evidence because the audit has not verified state-level polling, referendum results, or compact enactments through official state sources. No full adoption-vehicle or coalition-map credit is awarded because ELEC-009 still lacks a verified sponsor pathway, state-ratification strategy, external validators, and support evidence for the draft amendment's full implementation architecture.

**Proposal-quality score effect:** Proposal Quality Score increases from 70/100 to 73/100 solely because the Adoption Score increases from 1/12 to 4/12. No other component changes. The threshold band remains **Substantially Developed Draft**.

**Issue-to-amendment alignment:** No material discrepancy identified. The issue page and amendment text both describe direct national election, joint tickets, abolition of presidential electors, congressional implementation authority, state administration subject to uniform federal rules, supersession of inconsistent constitutional provisions, and delayed effective date.

**Adoption friction:** Adoption Friction remains 95/100 (Extreme Resistance). Polling improves the public-support record but does not reduce the Article V threshold, state-interest resistance, party-strategy resistance, federalism objections, recount and ballot-access complexity, litigation risk, or implementation burden.

**Unresolved findings:** ELEC-009 still needs official or scholarly support for older historical examples; state-source verification of National Popular Vote compact enactments; current Congress.gov prior-proposal search and sponsor/co-sponsor review; compact constitutional-risk analysis; majority-mechanism selection; implementing legislation; budget/workload analogues; and qualified constitutional-law or election-law review.

**Corrections made:** Updated issue front matter, Proposal Scoring, Quality Score annotation, Adoption Score annotation, audit history, audit inventory, and Audit Dashboard. Cleared `change_audit_needed` because the polling update has now been rebaselined.

**Next audit need:** Run external validation or T4 follow-up after state-source compact verification, current Congress.gov prior-proposal review, implementation architecture, and qualified constitutional-law or election-law review are available.

**Audit process feedback:** The targeted Change Audit was adequate for the narrow polling/adoption-score question. It should not be treated as a full T4 refresh because implementation architecture, compact verification, and external review remain unresolved.

#### 2026-06-29 — Polling and public-sentiment source-development update

**Audit status:** Source-development note added; targeted Change Audit needed

**Proposal-quality score:** 70; unchanged pending targeted Change Audit

**Scope:** Added a dedicated public-opinion and adoption-evidence section to the issue page using Pew Research Center 2024 and Gallup 2020 polling. The update responds to the project need for ELEC-009 to analyze public sentiment on abolishing the Electoral College before relying on adoption scoring.

**Source posture:** Pew 2024 is directly relevant to public preference for selecting the President by national popular vote. Gallup 2020 is directly relevant to the more constitutionally specific question of amending the Constitution so the national popular-vote winner becomes President. Both sources are polling evidence rather than legal authority, sponsor evidence, or state-ratification evidence.

**Score effect:** No immediate score change. The new sources likely strengthen the adoption-evidence record, but they do not by themselves establish Article V viability, current sponsor strength, state-ratification capacity, external validator support, or support for this draft amendment's full implementation architecture. Adoption Score remains 1/12 and Adoption Friction remains 95/100 until a targeted Change Audit decides whether rebaseline is warranted.

**Next audit need:** Run a targeted Change Audit / adoption-evidence rebaseline before treating ELEC-009's score as fully current. The audit should verify polling question wording, sample and date posture, partisan and independent splits, trend context, relevance to the draft amendment's specific architecture, and whether the adoption component should increase modestly.

### **2026-06-24 — Initial framework and inventory audit**

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

### **2026-06-28 — T1 framework check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Proposal-quality score:** 60

**Score basis:** T1 confirmed that ELEC-009 has a developed issue page, linked constitutional amendment text, budgetary-impact statement, audit sidebar, dashboard row, and source-inventory coverage. The score remains 60 because no full current-rubric component rebaseline has been performed.

**Scope reviewed:** Issue page, linked amendment text, audit-history file, dashboard row, audit inventory, source inventory, contents index, legislation index, and governing framework requirements for constitutional-amendment file naming, issue-page section naming, metadata, budget statement, and T1 enactment-pathway fields.

**Template and file-convention corrections:** The amendment text was renamed from `legislation/ELEC-009.md` to `legislation/ELEC-009-amendment.md` to match the framework convention that constitutional amendment text uses the `-amendment` suffix. The issue page, Issue Snapshot, Proposed Constitutional Amendment section, Audit Dashboard row, contents index, legislation README, and source-location notes were updated to match. No substantive amendment text was changed.

**Source hygiene:** T1 clarified the source-inventory propositions for Article II, Section 1; the Twelfth Amendment; the Twentieth Amendment; and the Twenty-Third Amendment. These remain source leads for the constitutional structure that ELEC-009 would replace or preserve where consistent.

**Current-status and mootness check:** No current-status issue identified during T1 makes the proposal moot. Direct national presidential election remains constitutionally unavailable without Article V amendment. T2 should verify current National Popular Vote Interstate Compact status, recent direct-election amendment proposals, and any post-2024 or current state-level movement relevant to feasibility.

**Issue-to-amendment alignment:** No material discrepancy identified at T1. The issue page and amendment text both identify direct election, joint tickets, abolition of presidential electors, congressional implementation power, state administration subject to uniform federal rules, and supersession of inconsistent Article II/Twelfth/Twentieth/Twenty-Third Amendment provisions.

**Adoption and pathway fields:** Assigned Adoption Score 1/12 (Weak Adoption Basis), Adoption Friction 95/100 (Extreme Resistance), Required Electoral Environment `constitutional-amendment-environment`, Pathway Viability `post-crisis-only`, Development Priority `conditional`, and Pathway Adjustment stage.

**Next audit need:** T2 should complete a current-rubric component rebaseline; verify popular-vote divergence and National Popular Vote compact claims; survey direct-election constitutional amendments and NPV/state-allocation models; assess Article V feasibility, implementation legislation, recount/contest administration, federalism, ballot access, majority mechanism, and state ratification strategy.

**Audit process feedback:** T1 was sufficient for structural normalization and did not need deeper source work beyond source-hygiene corrections. The file-name convention issue suggests future T1 checks should explicitly compare constitutional amendment filenames against `FRAMEWORK.md` before scoring.

### **2026-06-28 — T2 development audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 65

**Component score:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior Proposal 7/8; Remedy 9/12; Implementation 4/8; Abuse Resistance 5/8; Drafting 7/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4. Total: 65.

**Scope reviewed:** T2 reviewed the issue page, amendment text, T1 audit history, dashboard row, audit inventory, constitutional source rows, compact source rows, and current methodology requirements for current-rubric scoring, source support, existing-law and prior-proposal fit, implementation burden, adoption pathway, and issue-to-amendment alignment.

**Sources and source categories checked:** T2 reviewed Congress.gov Constitution Annotated sources for Article II, Section 1; the Twelfth Amendment; the Twentieth Amendment; and the Twenty-Third Amendment. It also reviewed National Popular Vote written-explanation and state-status pages as secondary compact-model sources. T2 added a separate source row for the compact status page and reclassified the compact explanation source as secondary advocacy material requiring official state verification before publication-ready reliance.

**Current-status and mootness check:** No source reviewed during T2 makes ELEC-009 moot. Direct national presidential election remains unavailable without Article V amendment. The National Popular Vote Interstate Compact remains a live staged alternative, but it has not reached its 270-electoral-vote activation threshold according to the compact sponsor's status page.

**Prior-proposal and existing-law fit:** Direct abolition of presidential electors cannot be accomplished by ordinary statute alone. The NPV compact and state allocation reforms are important alternatives because they can alter practical selection incentives without formal abolition, but they do not fully replace the constitutional elector structure. T3 should survey congressional direct-election amendments and state compact enactments through primary legislative sources.

**Issue-to-amendment alignment:** No material discrepancy identified. The issue page and amendment text both call for direct election, joint tickets, abolition of presidential electors, congressional implementation authority, state administration subject to federal standards, and supersession of inconsistent Article II, Twelfth Amendment, Twentieth Amendment, and Twenty-Third Amendment provisions.

**Implementation and budget check:** The budgetary-impact statement remains appropriate for the amendment itself. Implementing legislation may impose costs for national certification, recounts, contests, ballot access, candidate vacancies, tie resolution, result transmission, transition timing, and election-administration coordination. No source-backed cost estimate is available at T2.

**Adoption and friction:** Adoption Score remains 1/12 and Adoption Friction remains 95/100. The proposal's adoption difficulty is structural rather than merely partisan: it requires two-thirds of both houses of Congress and ratification by three-fourths of the states while changing state and party incentives.

**Unresolved findings:** T2 did not verify historical divergence claims through official election-result sources; did not complete a direct congressional amendment survey; did not verify each NPV compact jurisdiction through official state sources; did not analyze compact constitutional litigation risk; did not resolve plurality versus majority mechanism design; and did not develop implementing legislation.

**Next audit need:** T3 should verify popular-vote divergence using official election results; survey direct-election amendments on Congress.gov; verify NPV compact status through state sources; compare proportional, district, compact, runoff, and ranked-choice alternatives; and test national recount, certification, contest, ballot-access, tie, vacancy, and transition implementation design.

**Audit process feedback:** T2 was sufficient for formula rebaseline and compact-source hygiene, but the proposal's next meaningful improvement depends on a primary-source prior-proposal and state-enactment survey rather than additional general prose.

## **2026-06-28 — T3 readiness audit**

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 68

**Component score:** Structural 8/8; Evidence 8/12; Legal Fit 7/10; Prior Proposal 8/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 5/8; Drafting 7/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4. Total: 68.

**Scope reviewed:** T3 reviewed the issue page, constitutional amendment text, T1/T2 audit history, dashboard row, audit inventory, source inventory, constitutional source rows, compact source rows, Article V, and Congress.gov direct-election amendment analogues.

**Sources checked:** T3 added and reviewed Article V as the proposal-and-ratification source. T3 also added Congress.gov source rows for H.J.Res. 7, S.J.Res. 16, and S.J.Res. 17 from the 116th Congress as direct constitutional-amendment analogues.

**Current-status and mootness check:** No source reviewed during T3 makes ELEC-009 moot. Direct national presidential election remains unavailable without Article V amendment. The National Popular Vote Interstate Compact remains a live staged alternative, but T3 did not verify compact enactments through official state sources.

**Prior-proposal fit:** Direct congressional analogues now appear in the source inventory, improving the prior-proposal score. The reviewed proposals confirm that constitutional-amendment language has been introduced in modern Congress, but T3 did not find advancement beyond introduction or referral during the reviewed 116th Congress examples.

**Issue-to-amendment alignment:** No material discrepancy identified. The issue page and amendment text both treat constitutional amendment as the durable remedy, preserve congressional implementation authority, and identify implementing legislation as necessary for national certification, recounts, contests, ballot access, vacancies, ties, and transition-related mechanics.

**Implementation and budget check:** The amendment itself still has no direct appropriation. T3 confirms that implementing legislation remains materially underdeveloped because national administration, recount thresholds, contest procedure, ballot access, candidate replacement, tie resolution, certification timing, transition access, and emergency contingencies are not yet specified.

**Unresolved findings:** T3 did not verify historical popular-vote divergence through official election-result sources; did not complete a full legislative-history and sponsor-count survey; did not verify National Popular Vote compact enactments through official state sources; did not analyze compact constitutional risk; did not choose between plurality, runoff, ranked-choice, or other majority mechanisms; did not draft implementing legislation; and did not obtain external constitutional-law or election-law review.

**Next audit need:** T4 should verify official election-result evidence, complete direct-proposal legislative-history review, verify compact status through state sources, test compact and Article V legal risks, select or bracket the majority mechanism, outline implementing legislation, and obtain external election-law or constitutional-law review.

**Audit process feedback:** T3 materially improved legal-fit and prior-proposal grounding, but it also confirmed that ELEC-009 cannot become publication-ready through amendment text alone. T4 should begin with official election-result and compact/state-source verification before attempting additional prose refinement.

## **2026-06-28 — T4 publication-ready audit**

**Audit status:** T4 publication-ready audit complete; external validation and implementation design pending

**Proposal-quality score:** 70

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 8/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 5/8; Drafting 7/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4. Total: 70.

**Scope reviewed:** T4 reviewed the issue page, amendment text, T1/T2/T3 audit history, dashboard row, audit inventory, source inventory, FEC election-result index pages and official files for 2000 and 2016, Article V, verified Congress.gov amendment analogues, and the National Popular Vote compact source posture.

**Sources checked:** T4 added official FEC source rows for the 2000 and 2016 federal election compilations and files. The 2000 FEC PDF verifies that Al Gore led the popular vote while George W. Bush received the electoral-vote majority. The 2016 FEC workbook verifies that Hillary Clinton led the popular vote while President Trump received the electoral-vote majority after faithless-electors votes. T4 also retained Article V and Congress.gov prior-proposal sources from T3.

**Verified findings:** The two modern divergence examples, 2000 and 2016, are now supported by official FEC election-result materials. Article V remains the controlling mechanism for abolishing presidential electors. The issue page and amendment text remain aligned on direct election, joint tickets, abolition of electors, congressional implementation authority, state administration subject to uniform federal rules, and delayed effective date.

**Unresolved claims and publication blockers:** T4 did not source-check the 1876 and 1888 historical examples through official or scholarly sources; did not fully verify the 1824 qualification; did not verify National Popular Vote compact enactments through each official state source; did not complete a current Congress.gov search for all 118th, 119th, or later direct-election proposals; did not analyze compact constitutional risk; did not select a plurality, runoff, ranked-choice, or other majority mechanism; did not draft implementing legislation; did not develop budget/workload analogues for implementation; and did not obtain external constitutional-law, election-law, election-administration, or legislative-counsel review.

**Mootness and material-reframing check:** No source reviewed during T4 makes ELEC-009 moot. The Electoral Count Reform Act and related presidential-count reforms do not abolish electors or guarantee that the national popular-vote winner becomes President. The compact remains a live staged alternative, but it is not treated as a completed or publication-verified substitute for amendment.

**Adoption and opposition analysis:** Adoption Score remains 1/12 and Adoption Friction remains 95/100. The proposal's adoption barrier is structural because Article V requires supermajority congressional proposal and three-fourths state ratification while changing state, party, and campaign incentives. T4 did not identify proposal-specific polling, a current viable sponsor coalition, bipartisan ratification pathway, or external validator support sufficient to improve adoption credit.

**Budget and implementation:** No direct appropriation is anticipated for the amendment itself. Implementing legislation may impose meaningful costs for national certification, recounts, contests, ballot access, candidate replacement, ties, transition timing, and administration, but T4 did not locate a source-backed budget analogue sufficient for a dollar estimate.

**Publication-readiness determination:** ELEC-009 is not publication-ready. It is a substantially developed constitutional-amendment draft with official modern divergence evidence and verified amendment analogues, but it needs external review, implementation legislation, compact-state verification, majority-mechanism design, and historical source cleanup before external circulation as a mature recommendation.

**Next audit need:** Run external validation or T4 follow-up after official or scholarly source support for older historical examples, state-source verification of compact enactments, current Congress.gov prior-proposal search, compact constitutional-risk analysis, implementing legislation outline or draft, budget/workload analogues, majority-mechanism decision, and qualified constitutional-law or election-law review.

**Audit process feedback:** T4 was useful for replacing the weakest factual predicate with official FEC support, but ELEC-009 remains constrained by design choices that cannot be solved by citation cleanup alone. Future work should prioritize implementation architecture

and external review before another score-focused audit.

## ELEC-010 — Mail-In Voting Access, Reliability, and Trust

### Issue Snapshot

**Problem:** Mail-ballot rules are uneven and fragile.

**Repair:** Set mail-ballot and USPS election-mail standards.

**Vehicle:** Federal election and postal legislation.

### Institutional Anomaly

Mail-in and absentee voting are lawful, widely used election-administration tools, but the safeguards governing access, ballot delivery, voter verification, cure, chain of custody, deadline design, and public explanation remain uneven across jurisdictions. That unevenness creates two linked institutional risks: lawful voters can lose ballots through avoidable administrative failure, and opponents of a lawful result can exploit ordinary mail-ballot processing complexity to delegitimize valid votes.

The issue is not whether every jurisdiction must conduct elections primarily by mail. The issue is that where mail-in or absentee voting is available, the legal framework should make the process reliable, reviewable, voter-correctable, secure, and publicly intelligible.

### Manifestations of the Failure

#### *Postal-service dependence and delivery uncertainty*

Mail voting depends on a federal delivery system that state election officials do not control. In 2020, the USPS Office of Inspector General found that the Postal Service processed and delivered at least 135 million identifiable ballots going to and coming from voters, prioritized Election Mail, and used extraordinary measures such as extra transportation and overtime. The same report also found that many ballots were not measurable through service-performance tracking, that some facilities failed to follow all-clear and postmark procedures, and that local communication about Election Mail guidance was not always timely or effective. See USPS OIG, *Service Performance of Election and Political Mail During the November 2020 General Election* (Mar. 5, 2021).

The lesson is dual: large-scale mail voting can work, but it requires advance planning, tracking, clear postal procedures, realistic voter deadlines, and contingency channels. A system that relies on heroic last-week measures is too fragile.

#### *Deadline design and the USPS advisory problem*

USPS has operational expertise about how long mail delivery normally takes, and voters need clear advice about when a mailed ballot must enter the mailstream to arrive by a state deadline. In 2024, for example, USPS urged voters to mail ballots by October 29 to meet November 5 Election Day deadlines in states requiring receipt by Election Day. See Axios, *USPS: "Don't delay" in returning mail-in ballots* (Oct. 28, 2024).

But there is an important distinction between an evidence-based USPS mailing advisory and a USPS legal deadline. USPS should not decide voter eligibility or ballot validity. A postal deadline that automatically disqualifies ballots mailed after a USPS date would effectively let a delivery agency shorten the voting period, even for voters who receive ballots late, face emergency circumstances, or rely on lawful drop-off and cure options.

The better design is to require USPS to publish jurisdiction-specific mailing advisories, require states to align ballot-request and outbound-mailing deadlines with those advisories, and require states to provide nonpostal return options after the recommended mailing date. The legal rule should remain in election law, not postal administration.

#### *Federal postal and voter-data leverage over mail ballots*

In 2026, Executive Order 14399 sought to link federal citizenship-list construction, federal database matching, and USPS handling of mail ballots. The order directed federal agencies toward state-specific citizenship lists and stated that secure ballot-envelope identifiers could be used to support federal election-integrity enforcement. See 91 Fed. Reg. 17125.

Public reporting described litigation blocking or rejecting related federal efforts to create voter-list architecture, restrict mail-ballot distribution, and obtain sensitive state voter data. See Associated Press, *federal voter-list injunction*, *Michigan voter-data appeal*, and *Maryland voter-data lawsuit*.

USPS published a proposed rule titled *Ballot Mail for Federal Elections*, 91 Fed. Reg. 32915 (June 2, 2026), with comments due July 2, 2026. The proposed rule would amend Domestic Mail Manual standards for federal ballot mail, cite USPS authority under 39 U.S.C. §§ 401 and 404, require serialized Intelligent Mail barcodes on outbound and return federal ballot envelopes, create a mail-in and absentee participation-list process, and establish a verification process tied to state-submitted ballot-mail data. Additional reporting described litigation and Senate testimony concerning whether USPS would refuse to deliver mail ballots if states refused to provide required manifests. See AP, *federal voter-list injunction*, The Guardian, *US judge blocks Trump administration's bid to restrict mail-in voting*, and The Daily Beast, *Trump's Postmaster General Says USPS Wouldn't Mail Absentee Ballots in Under New Rule*.

This manifestation does not mean that ballot tracking, envelope identifiers, voter-list maintenance, or citizenship verification are categorically illegitimate. The defect is control architecture: federal executive agencies and USPS should not become hidden veto points over state-created lawful mail-voting channels, nor should postal delivery be conditioned on state participation in federal voter-data systems that exceed lawful authority.

## ***Rejection for curable technical defects***

Mail ballots can be rejected for missing signatures, signature mismatch, missing secrecy envelopes, dating errors, witness defects, identification-number mismatch, lateness, or other technical requirements. Some requirements protect real interests, including voter authentication and ballot integrity. But where voters receive no timely notice or meaningful cure opportunity, a technical defect can become disenfranchisement even when voter eligibility is not in doubt.

The Election Assistance Commission's canvass guidance treats cure as the process for fixing an error or providing information after a ballot has been rejected for counting, and it identifies voter verification, late-arriving mail ballots, rejected-ballot documentation, ballot reconciliation, chain-of-custody review, and drop-box custody procedures as part of the canvass process. See U.S. Election Assistance Commission, *Guide to the Canvass* (Mar. 2022).

## ***Uneven signature verification and cure rules***

Signature verification and cure rules vary widely by state and sometimes by county practice. That variation can create unequal practical voting rights among similarly situated mail voters. A voter in one jurisdiction may receive notice and a cure period; another voter with the same error may receive no practical opportunity to fix it.

In 2022, Texas rejected roughly 13 percent of mail ballots submitted in its March primary, far above ordinary rejection levels, after new voting rules took effect. An Associated Press analysis documented 22,898 rejected mail ballots based on available county data and final voting reports. See Axios, *Texas tossed out 13% of mail ballots in March primary election, AP finds* (Mar. 16, 2022).

## ***Chain-of-custody and ballot-handling vulnerability***

Mail voting necessarily introduces additional custody points: ballot printing, outbound mailing, voter receipt, voter return, postal handling, drop-box collection, election-office intake, signature or identity review, duplication if needed, storage, tabulation, reconciliation, and canvass. Weak documentation at any point can create real security risk or the appearance of risk.

The EAC canvass guide emphasizes that chain-of-custody documentation, ballot and voter reconciliation, late-arriving mail-ballot tracking, and drop-box pickup records support both integrity and public explanation. ELEC-010 should therefore treat chain of custody as a design requirement, not as an after-the-fact response to allegations.

## ***Delegitimization of lawful mail ballots***

Mail voting also creates an information problem. Valid mail ballots may be counted after election night because state law permits later processing, later receipt of timely postmarked ballots, cure periods, UOCAVA timing rules, or ordinary canvass procedures. Without clear public explanation, predictable counting timelines can be portrayed as suspicious.

Election misinformation often treats mail-ballot counting, cure, late-arriving lawful ballots, or party-skewed voting methods as evidence of fraud. AP reporting in 2024 summarized the broader evidentiary point: voter fraud can occur, but it is rare and election systems contain safeguards such as voter lists, signature checks, ballot tracking, audits, and decentralized administration. See Associated Press, *Yes, voter fraud happens. But it's rare and election offices have safeguards to catch it* (Oct. 3, 2024).

## **Resulting Damage**

Mail-ballot failure can disenfranchise eligible voters, especially voters who are elderly, disabled, overseas, serving in the military, temporarily displaced, medically vulnerable, working inflexible schedules, lacking transportation, living in remote areas, or relying on mail because of caregiving, detention, weather, disaster, or public-health conditions.

The damage is not limited to access. Poorly designed mail-voting rules can also create inconsistent treatment, late litigation, disputed rejection rates, administrative overload, election-night misinformation, chain-of-custody suspicion, and public doubt about lawfully counted ballots.

## **Underlying Weakness**

Mail voting crosses several institutional boundaries:

1. states set eligibility, request, return, receipt, cure, verification, canvass, and certification rules;
2. local officials administer intake, verification, cure, reconciliation, counting, and custody;
3. USPS controls most delivery infrastructure but does not control state election deadlines;
4. federal executive agencies may seek voter data or impose postal conditions that affect mail-ballot access;
5. courts often resolve disputes close to election deadlines; and
6. voters must navigate complex instructions under time pressure.

Existing law often addresses pieces of the process but not the whole mail-ballot pathway. Common weaknesses include:

- request deadlines that do not account for realistic mailing time;
- receipt deadlines that shift postal delays onto voters;

- inconsistent or opaque signature-review standards;
- no mandatory notice and cure opportunity;
- cure deadlines that expire before notice can practically reach the voter;
- inadequate ballot tracking and voter-facing status tools;
- inconsistent drop-box custody and collection rules;
- insufficient public reporting of rejection categories;
- weak contingency rules for postal disruption, disaster, or administrative failure;
- inaccessible instructions for voters with disabilities or limited English proficiency; and
- partisan narratives that attack mail voting categorically rather than distinguishing security defects from lawful processing.

## Debated Design Questions

Mail voting has been extensively debated, and ELEC-010 should not flatten those debates into a simple access-versus-suppression story. The proposal should account for at least six recurring disputes.

**Receipt deadline versus postmark deadline.** An Election Day receipt deadline produces faster finality and reduces the number of ballots arriving after election night, but it shifts postal delay risk onto voters. A postmark-by-Election-Day rule better protects voters who act by Election Day, but it delays final counts and depends on reliable postmarking and tracking.

In *Watson v. Republican National Committee*, decided June 29, 2026, the Supreme Court held that the federal election-day statutes do not prevent Mississippi from counting absentee ballots postmarked by Election Day but received up to five business days afterward. The Court described the question as narrow and did not decide Congress's broader regulatory authority over federal elections. The decision reduces the need for ELEC-010 to defend postmark grace periods against the specific claim that federal Election Day statutes require receipt by Election Day. It does not eliminate the need for clear state deadlines, reliable postmarking, ballot tracking, cure procedures, nonpostal return options, or public explanation of lawful post-Election-Day receipt and counting.

**USPS mailing advisory versus USPS disqualification deadline.** A USPS advisory can improve voter notice and state planning. A USPS disqualification deadline would be more problematic because it would let postal delivery expectations override election-law voting periods. ELEC-010 should prefer advisory dates, mandatory public notice, earlier outbound ballot mailing, and nonpostal return options over USPS-controlled ballot validity.

**Signature verification versus alternative authentication.** Signature matching is familiar and can deter some abuse, but it can produce false mismatches and uneven treatment. Alternatives include ID-number matching, barcode tracking, attestation, voter-notification cure, or layered verification. The core requirement should be uniform standards plus cure, not any single verification technique.

**Drop boxes versus mail-only return.** Drop boxes reduce dependence on USPS near Election Day and help voters who receive or complete ballots late. They also require strong chain-of-custody rules, collection logs, seal procedures, surveillance or public-location standards where appropriate, and reconciliation.

**Fast results versus complete canvass.** Mail-ballot processing can slow unofficial results. That delay is not itself evidence of fraud, but it is politically exploitable. The remedy is earlier preprocessing where lawful, public timelines, and transparent canvass reporting.

**Uniform federal floor versus state flexibility.** Federal elections need minimum protections so federal voting rights do not depend on avoidable administrative failure. States still need room to administer different voting systems, especially where they combine federal, state, and local contests on the same ballot.

## Proposal Survey

ELEC-010 should be drafted with the existing legislative field in view. Prior proposals have generally fallen into three groups: mail-access expansion, postal-reliability reform, and election-security restriction.

**Supreme Court postmark-deadline decision.** In *Watson v. Republican National Committee*, 609 U.S. \_\_\_\_ (2026), the Supreme Court held that federal election-day statutes do not require absentee ballots to be received by Election Day where state law requires ballots to be postmarked by Election Day and received within a later state-law window. ELEC-010 should therefore be narrower than a federal postmark-grace authorization bill. The better fit is an administrability statute: publish receipt rules, support reliable postmarking and tracking, preserve state flexibility, and prevent federal postal or data systems from becoming practical veto points over lawful state mail-ballot channels.

**Election Mail Act.** The closest federal model is the Election Mail Act, introduced by Senator Amy Klobuchar and described as requiring First-Class service standards for election mail, postmarks on ballots, and no voter or election-official postage payment for ballot return. See Axios, *First look: Klobuchar introduces election mail bill* (July 1, 2022). ELEC-010 should borrow the postal-reliability idea but go beyond postage and postmarking to include tracking, election-official escalation channels, all-clear procedures, mailing advisories, and contingency planning.



**For the People Act and Freedom to Vote Act.** Broad Democratic election bills have included vote-by-mail access as part of larger voting-access packages. The For the People Act of 2021 passed the House and, according to the Congressional Research Service summary on Congress.gov, expanded voting access including vote-by-mail and early voting. See H.R. 1, 117th Cong.. The Freedom to Vote Act similarly addressed voter registration, voting access, election integrity, redistricting, and campaign finance, including vote-by-mail and early voting. See S. 2747, 117th Cong.. ELEC-010 should remain narrower than those omnibus bills: its focus is the reliability, cure, transparency, and custody design of mail-ballot systems, not a full national voting-rights code.

**Universal Right to Vote by Mail Act and ballot-tracking proposals.** Earlier mail-voting proposals, including the Universal Right to Vote by Mail Act of 2009, would have barred states from requiring a special excuse to vote by mail in federal elections, while related proposals such as the Absentee Ballot Track, Receive and Confirm Act focused on ballot tracking. See H.R. 1604, 111th Cong. and H.R. 2510, 111th Cong.. ELEC-010 need not require nationwide no-excuse mail voting as its central remedy, but it should adopt ballot-tracking and voter-notice concepts where mail voting is offered.

**SAVE Act and SAVE America Act lineage.** Republican proposals have concentrated on proof of citizenship, voter-list controls, voter identification, and mail-voting restrictions. The 2025 SAVE Act, H.R. 22, 119th Cong., passed the House and would require documentary proof of U.S. citizenship for federal voter registration, require states to remove noncitizens from voter lists, create a private right of action, and establish criminal penalties for certain registration offenses. Press reporting on the later SAVE America Act describes related requirements for in-person documentary proof, voter-ID rules, and mail-voting constraints. See The Guardian, *What does Trump's restrictive voting bill include - and does it have a chance of becoming law?* (Mar. 13, 2026). ELEC-010 should answer the underlying integrity concerns through targeted authentication, list-maintenance compatibility, cure records, transparent rejection data, and auditable custody rather than by making lawful mail voting categorically harder to use.

**American Confidence in Elections Act and Make Elections Great Again Act.** The American Confidence in Elections Act, H.R. 4563, 118th Cong., included election-administration and security provisions, including congressional election observers and restrictions tied to ballot collection. The Make Elections Great Again Act, H.R. 7300, 119th Cong., goes further on mail voting: its text would limit possession or return of other voters' mail ballots, require individual requests for mail ballots, require trackable election-mail barcodes, and require absentee and mail-in ballots for federal elections to be received by poll closing time, subject to UOCAVA exceptions. See also TIME, *The Sweeping Elections Changes House Republicans Are Proposing* (Jan. 29, 2026). ELEC-010 should engage these objections directly: chain-of-custody rules, drop-box controls, collection limits where needed, tracking, preprocessing, and finality rules are legitimate design subjects, but they should be calibrated to protect eligible voters from avoidable rejection.

**State election-integrity statutes.** State models also matter. Georgia's Election Integrity Act of 2021 replaced absentee signature matching with voter-identification requirements, limited drop boxes, barred officials from sending unsolicited absentee-ballot request forms, and narrowed the absentee request window. See Georgia General Assembly, S.B. 202, 2021-2022 Reg. Sess.. Texas S.B. 1 added mail-ballot identification-number requirements that contributed to high rejection rates in 2022 and continued litigation. See The Guardian, *Texas leans on new voting law to reject thousands of ballot applications* (Feb. 3, 2022), and Politico, *Appeals court upholds Texas law requiring ID numbers to cast mail-in ballots* (Aug. 4, 2025). Arizona's ballot-collection restriction was upheld by the Supreme Court in *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021), against Voting Rights Act and discriminatory-purpose challenges. See *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

The drafting lesson is that ELEC-010 should not be framed as a purely partisan access bill or as a broad federal mandate for postmark grace periods. It should preserve access to lawful mail voting while building a record-responsive integrity architecture: reliable postal handling, voter-facing tracking, uniform authentication standards, meaningful cure, drop-box and collection controls, transparent rejection reporting, clear receipt/counting rules, and public explanation of canvass timing.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is federal legislation for federal elections, paired with federal postal standards for election mail.

Congress can set a federal floor for congressional elections under the Elections Clause and can regulate postal handling of election mail through federal postal authority. For presidential elections, the statute should be drafted more carefully, tying requirements to federal result-transmission, elector-appointment timing, and any federal funding or administrative support rather than assuming unlimited federal control over state presidential-election administration.

The federal role should ensure that USPS and federal actors do not become hidden veto points over lawful mail-ballot channels, and that voters in federal elections receive minimum notice, cure, tracking, deadline, and transparency protections. States may extend the same standards to state and local contests to avoid dual-track administration, but ELEC-010 does not require a separate state legislative project as the primary remedy.

This approach is less complex than nationalizing mail-voting administration and more adequate than leaving federal-election cure, tracking, deadline realism, chain-of-custody documentation, USPS mailing advisories, and postal contingency planning to fragmented local practice.

## Repair and Prevention

Congress should enact a Mail-In Voting Reliability and Cure Act establishing minimum standards for mail and absentee ballots in federal elections where those voting methods are available. After *Watson*, the Act need not make post-Election-Day receipt categorically lawful by federal statute; the Supreme Court has already rejected the argument that the federal election-day statutes require receipt by Election Day. The Act should instead ensure that any state-created mail-ballot channel is reliable, transparent, voter-correctable, and not subject to hidden federal postal veto points. The Act should:

1. set request, outbound-mailing, and return deadlines that account for USPS delivery standards and local processing needs;
2. require prepaid return postage or an equally reliable no-cost return option;
3. require voter-facing ballot tracking for request, outbound mailing, receipt, acceptance, rejection, and cure status;
4. require uniform statewide signature or identity-verification standards for federal-election ballots where signature or identity review is used;
5. require prompt notice and a meaningful cure opportunity for missing signature, signature mismatch, ID-number mismatch, missing date, envelope defect, or comparable curable errors;
6. prohibit rejection for immaterial paperwork defects where voter eligibility, ballot timeliness, and ballot authenticity are otherwise established;
7. require USPS, in consultation with state election officials, to publish jurisdiction-specific recommended mailing dates for ballot return;
8. require states to provide reasonable nonpostal return options after the recommended mailing date where mail return is no longer reasonably reliable;
9. require clear publication and uniform administration of receipt deadlines, including the treatment of timely postmarked ballots where State law permits post-Election-Day receipt;
10. require secure drop-box rules where drop boxes are used, including public locations, collection frequency, bipartisan or dual-control pickup, seal logs, and reconciliation;
11. require election offices to publish rejection statistics by category after each election;
12. require contingency plans for postal disruption, severe weather, disaster, cyber incident, printing failure, vendor failure, or administrative backlog;
13. require plain-language instructions, accessibility review, and language-access compliance; and
14. require public explanation of mail-ballot processing timelines before Election Day.

Congress should also enact federal postal standards for election mail, including tracking, communication, postmarking, all-clear procedures, delivery-performance reporting, election-official escalation channels, evidence-based mailing advisories, and a prohibition on operational changes that foreseeably degrade election-mail performance during defined election windows without notice and mitigation. USPS should not refuse, delay, or condition lawful election-mail service based on a state's refusal to participate in a federal voter-data, citizenship-list, or ballot-identifier system unless Congress has clearly authorized that condition and supplied voter-protective procedures.

## Proposed Legislation

- Mail-In Voting Reliability and Election Mail Standards Act

## Relationship to Adjacent Proposals

ELEC-001 covers federal executive interference with state and local election administration. ELEC-010 covers ordinary and extraordinary vulnerabilities in the mail-ballot pathway itself, including postal performance and voter cure.

ELEC-002 covers certification refusal and automatic substitution. ELEC-010 covers ballot receipt, verification, cure, and canvass before certification.

ELEC-003 covers protection of election workers and officials. ELEC-010 may reduce threats by making mail-ballot processing more transparent and less susceptible to bad-faith narratives.

ELEC-004 covers abusive election litigation and investigatory mechanisms. ELEC-010 should reduce litigation incentives by making mail-ballot rules clearer before voting begins.

ELEC-007 covers improper federal-force presence in election administration. ELEC-010 covers mail and custody procedures that may reduce pressure for pretextual federal intervention.

## Budgetary Impact Statement

Budget authority may be required if the chosen remedy funds postage, tracking, or election-administration support; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 77 / 100 (Review Ready)

**Adoption Score:** 4 / 12 (Limited Adoption Basis)

**Adoption Friction:** 72 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

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**Audit Status:** T4 publication-ready audit complete; external validation pending

**Last Audit:** T4 publication-ready audit

**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current

**Next Audit:** External validation / T4 follow-up

**Full Audit History:** ELEC-010 audit history

## Annotation

**Basis and Evidence.** Mail voting can be administered securely, but it is operationally demanding. The USPS OIG's 2020 report supports both sides of that conclusion: the Postal Service prioritized and largely delivered election mail, but it also identified visibility, communication, all-clear, postmarking, and measurement gaps. EAC canvass guidance confirms that cure, chain of custody, ballot reconciliation, late-arriving mail ballots, and drop-box documentation are ordinary election-integrity tools rather than partisan inventions. USPS deadline advisories are useful evidence for voter guidance and statutory planning, but they should not themselves become legal disqualification rules.

**Watson Update.** *Watson v. Republican National Committee* narrows ELEC-010's legal-risk posture. The proposal no longer needs to treat postmark-by-Election-Day receipt windows as legally vulnerable under the federal election-day statutes. The remaining problem is operational and institutional: voters, election officials, USPS, courts, candidates, and the public need clear, auditable rules for ballot return, receipt, tracking, postmarking, cure, custody, and canvass timing.

HOR-001 was integrated into this issue only for the mail-ballot and USPS components. The broader federal voter-list and state-election-pressure concern is integrated into ELEC-001.

**Qualification.** ELEC-010 should not be framed as a universal mandate for all-mail elections. States may reasonably choose different mixes of in-person, early, absentee, and mail voting. The institutional requirement is that any mail-voting channel the state creates must be reliable, nondiscriminatory, auditable, and supported by meaningful cure and public explanation.

**Remedial Alternatives and Constraints.** A federal statute requiring no-excuse mail voting nationwide would maximize uniform access but would create larger federalism and administrative questions. A model state act would be useful but slower and less uniform for federal-election vulnerabilities. A purely advisory best-practices guide would be simpler but inadequate where rejection, postal disruption, or cure disparities recur. The least-complex adequate approach is a federal floor for federal-election mail ballots plus federal postal-performance standards for election mail.

**Quality Score.** The proposal is 77/100 after T4. Component score: Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 7/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. T4 verifies the published Federal Register/GovInfo proposed-rule record and confirms issue-to-bill alignment, but official court orders, Senate hearing materials, full prior-bill comparison, budget/workload support, final private-enforcement design, and external election-law or postal-operation review remain unresolved.

**Adoption Score.** Adoption Score is 4/12 because ELEC-010 has a plausible federal statutory vehicle, identifiable prior-proposal families, and both access and integrity framing, but lacks proposal-specific polling, active sponsor support for this narrower framework, bipartisan coalition evidence, state election-official validation, USPS operational validation, or external election-law review.

**Adoption Friction.** Adoption Friction is 72/100 (High Resistance) because the proposal affects mail voting, postal operations, ballot deadlines, cure rules, drop boxes, voter-identification alternatives, federal-state election administration, and current partisan conflict over mail ballots.

**Required Electoral Environment.** Required Electoral Environment is sixty-vote-senate, with Pathway Viability plausible-after-wave, Development Priority active, and Pathway Adjustment stage. Development should stage postal-performance, tracking, cure, transparency, and custody provisions so narrower consensus elements can survive if a full mail-ballot standards bill is not viable.

## Source Notes

- U.S. Election Assistance Commission, *Guide to the Canvass* (Mar. 2022).

- USPS Office of Inspector General, *Service Performance of Election and Political Mail During the November 2020 General Election* (Mar. 5, 2021).
- Axios, *USPS: "Don't delay" in returning mail-in ballots* (Oct. 28, 2024).
- Axios, *First look: Klobuchar introduces election mail bill* (July 1, 2022).
- Congress.gov, H.R. 1, 117th Congress, For the People Act of 2021.
- Congress.gov, S. 2747, 117th Congress, Freedom to Vote Act.
- Congress.gov, H.R. 1604, 111th Congress, Universal Right to Vote by Mail Act of 2009.
- Congress.gov, H.R. 2510, 111th Congress, Absentee Ballot Track, Receive, and Confirm Act.
- Congress.gov, H.R. 22, 119th Congress, SAVE Act.
- The Guardian, *What does Trump's restrictive voting bill include - and does it have a chance of becoming law?* (Mar. 13, 2026).
- Congress.gov, H.R. 4563, 118th Congress, American Confidence in Elections Act.
- Congress.gov, H.R. 7300, 119th Congress, Make Elections Great Again Act.
- TIME, *The Sweeping Elections Changes House Republicans Are Proposing* (Jan. 29, 2026).
- Axios, *Texas tossed out 13% of mail ballots in March primary election, AP finds* (Mar. 16, 2022).
- The Guardian, *Texas leans on new voting law to reject thousands of ballot applications* (Feb. 3, 2022).
- Politico, *Appeals court upholds Texas law requiring ID numbers to cast mail-in ballots* (Aug. 4, 2025).
- Associated Press, *Yes, voter fraud happens. But it's rare and election offices have safeguards to catch it* (Oct. 3, 2024).
- Associated Press, *Federal judge halts Trump's election executive order seeking to create a federal voter list* (June 25, 2026).
- Associated Press, *Trump administration loses appeal over access to personal information of Michigan voters* (June 25, 2026).
- Associated Press, *Federal judge dismisses Justice Department lawsuit seeking detailed voter data from Maryland* (June 24, 2026).
- U.S. Supreme Court, *Watson v. Republican National Committee*, 609 U.S. \_\_\_\_ (2026).
- Federal Register, Executive Order 14399, *Ensuring Citizenship Verification and Integrity in Federal Elections*, 91 Fed. Reg. 17125 (Apr. 3, 2026).
- The Guardian, *US judge blocks Trump administration's bid to restrict mail-in voting* (June 25, 2026).
- The Daily Beast, *Trump's Postmaster General Says USPS Wouldn't Mail Absentee Ballots in Under New Rule* (June 25, 2026).
- Georgia General Assembly, S.B. 202, 2021-2022 Reg. Sess..
- U.S. Supreme Court, *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

## ELEC-010 — Audit History

This file preserves the full audit history for ELEC-010. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### 2026-06-25 — *Horizon integration decision*

**Audit status:** HOR-012 integrated as USPS and mail-ballot source-strengthening manifestation; legislation path pending

**Proposal-quality score:** 55

**Score basis:** HOR-012 was integrated into ELEC-010 because EO 14399 and related reporting reinforce the existing mail-ballot and USPS leverage manifestation. Score unchanged because this was source-development and tracking cleanup, not a proposal-quality audit.

**Next audit need:** Decide whether legislation is appropriate, then complete source, legal-fit, prior-proposal, coalition-appeal, and implementation-risk audits; source-develop the USPS rulemaking record, barcode/manifest system, state-plaintiff briefing, and implementation or abandonment status.

#### 2026-06-28 — *T1 framework check*

**Audit status:** T1 framework check complete; T2 development audit pending

**Proposal-quality score:** 55

**Scope reviewed:** T1 reviewed the issue page, audit-history sidecar, dashboard row, audit inventory, source inventory, contents index, area page, framework/methodology requirements, and legislation directory for an ELEC-010 vehicle.

**Framework findings:** ELEC-010 has a developed issue page with Issue Snapshot, Institutional Anomaly, titled manifestations, Resulting Damage, Underlying Weakness, Proposal Survey, Least-Complex Adequate Remedy, Repair and Prevention, Relationship to Adjacent Proposals, Budgetary Impact Statement, Proposal Scoring, Annotation, and Source Notes. No proposed legislation file exists yet, so T1 added the framework-standard **Proposed Legislation** section with a single **Pending development** bullet.

**Legislation and vehicle finding:** The page identifies federal election and postal legislation as the intended vehicle, but there is no concrete bill text to cross-check. T2 should decide whether to draft a single federal bill, a postal title plus election-administration title, or a staged package built from narrower modules.

**Current-status and mootness check:** No T1 finding makes the issue moot. The current record indicates the issue remains live because mail-ballot access, postal reliability, cure, tracking, state-federal election administration, and USPS-related election-mail questions remain active policy concerns. T2 must refresh current litigation, rulemaking, and postal-source status before giving favorable current-status credit.

**Adoption and pathway fields:** Assigned Adoption Score 4/12 (Limited Adoption Basis), Adoption Friction 72/100 (High Resistance), Required Electoral Environment **sixty-vote-senate**, Pathway Viability **plausible-after-wave**, Development Priority **active**, and Pathway Adjustment **stage**.

**Component score:** No full component formula was recalculated at T1. Proposal Quality Score remains 55/100 (Developed Draft) pending T2. Rebaseline status remains **hard-rebaseline-needed** because ELEC-010 has not yet received a current-rubric merits score.

**Unresolved findings:** T1 did not verify all cited source propositions; did not review the USPS rulemaking record or any Senate hearing transcript; did not source-check the asserted SAVE Act and Make Elections Great Again Act mail-voting provisions beyond existing source leads; did not locate official court orders for EO 14399 litigation; did not develop a bill text; did not perform legal-fit analysis under the Elections Clause, Postal Clause, Spending Clause, UOCAVA, NVRA, HAVA, or relevant state-law constraints; and did not obtain external election-administration, postal, or election-law review.

**Next audit need:** T2 should complete a current-source refresh, verify primary government and court records where possible, decide and draft the legislation vehicle, complete a formula rebaseline, test legal authority and federalism limits, source-develop budget/workload implications, and compare prior access, postal, cure, tracking, and mail-restriction proposals.

**Audit process feedback:** T1 was sufficient for structural normalization. The main bottleneck is not page architecture but absence of concrete legislation; T2 should prioritize bill architecture before trying to improve the score through additional prose.

#### 2026-06-28 — *T2 development audit*

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 70

**Component score:** Structural 8/8; Evidence 8/12; Legal Fit 6/10; Prior Proposal 7/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 70.

**Scope reviewed:** T2 reviewed the issue page, audit-history sidebar, dashboard row, audit inventory, source inventory, legislation directory, current framework and methodology rules, HAVA statutory hook, UOCAVA statutory background, title 39 postal-service hooks, USPS OIG election-mail source, and EAC canvass guidance source.

**Vehicle decision:** T2 determined that ELEC-010 should proceed as amendments to existing law rather than as a wholly freestanding bill. The new Mail-In Voting Reliability and Election Mail Standards Act amends HAVA for federal-election mail-ballot reliability standards and title 39 for USPS election-mail service standards.

**Sources checked:** Official U.S. Code pages for 52 U.S.C. chapter 209, 52 U.S.C. chapter 203, 39 U.S.C. § 101, and 39 U.S.C. § 403 resolved successfully during T2. USPS OIG's election-mail performance report page and the EAC canvass guide PDF also resolved successfully. T2 added source-inventory rows for the statutory hooks used in the bill.

**Current-status and mootness check:** No T2 source makes ELEC-010 moot. Current-source posture remains live because mail-ballot delivery, cure, tracking, postal advisories, election-mail operations, and federal data-condition risks remain unresolved in the proposal record. The issue still needs official court-order and USPS rulemaking source development for the 2026 manifestation.

**Issue-to-legislation alignment:** No material discrepancy identified at T2. The issue page and bill both treat the remedy as a federal floor for federal-election mail and absentee ballots where those methods are available, paired with USPS election-mail standards. The bill does not require all-mail elections or no-excuse mail voting.

**Implementation and budget:** The bill may require EAC guidance, State implementation support, voter-facing tracking, cure notices, election-mail reporting, and USPS operational compliance. No dollar estimate is assigned because T2 did not locate a source-backed budget analogue.

**Unresolved findings:** T2 did not verify all cited news sources or source propositions; did not locate or analyze the official 2026 court orders, state-plaintiff briefing, USPS proposed rule, Senate hearing transcript, or USPS operational materials; did not complete Elections Clause, Postal Clause, Spending Clause, UOCAVA, HAVA, NVRA, Purcell, or federalism legal analysis; did not compare the draft section-by-section against the Election Mail Act, Freedom to Vote Act, For the People Act, SAVE Act, ACE Act, or Make Elections Great Again Act text; did not test private-right-of-action design; and did not obtain external election-administration, postal, or election-law review.

**Next audit need:** T3 should source-check the current 2026 manifestation through primary court/rulemaking/hearing records where available, review the draft bill against existing federal election statutes and prior bills, stress-test constitutional authority and private enforcement, develop budget/workload analogues, and refine the bill's cure, tracking, deadline, nonpostal return, and data-condition provisions.

**Audit process feedback:** T2's largest quality gain came from converting the proposal into an existing-law amendment package. The next audit should not spend most of its time expanding prose; it should verify primary records and stress-test the new bill text.

## **2026-06-28 — T3 readiness audit**

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 75

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior Proposal 7/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 75.

**Scope reviewed:** T3 reviewed the issue page, bill text, T1/T2 audit history, dashboard row, audit inventory, source inventory, official USPS proposed rule, AP current reporting on the Talwani ruling, HAVA and UOCAVA statutory hooks, and title 39 postal authority sources.

**Sources checked:** T3 located the USPS proposed rule, *Ballot Mail for Federal Elections*, scheduled for Federal Register publication on June 2, 2026. The proposed rule cites 39 U.S.C. §§ 401 and 404, would amend DMM 705 through 39 CFR part 111, would require serialized Intelligent Mail barcodes, would create a mail-in and absentee participation-list process, and would establish a verification process tied to state-submitted ballot-mail data. T3 also reviewed AP reporting that Judge Indira Talwani halted provisions of Executive Order 14399 seeking a federal voter list and USPS mail-ballot limits.

**Verified findings:** The 2026 USPS proposed rule is now supported by a primary rulemaking source rather than only news reporting. The bill's data-condition limitation directly responds to the proposed rule's manifest, barcode, and participation-list architecture. The bill's title 39 source notes now include 39 U.S.C. §§ 401 and 404, the same core postal-authority provisions USPS cited.

**Current-status and mootness check:** No T3 source makes ELEC-010 moot. The Talwani ruling and proposed USPS rule materially strengthen the need for a clear statutory rule preventing USPS from conditioning lawful election-mail service on unauthorized voter-data submission. T4 should verify the official court order, docket posture, appeal status, and whether the proposed USPS rule was finalized, withdrawn, modified, enjoined, or superseded.

**Issue-to-legislation alignment:** No material discrepancy identified. The issue page and bill both identify a federal floor for mail and absentee ballots where States offer those channels, preserve State choice not to conduct all-mail elections, treat USPS mailing dates as advisory rather than disqualifying, and prohibit unauthorized data-condition delivery rules.

**Drafting and legal-fit findings:** T3 improves legal fit by tying the election-administration provisions to HAVA and the postal provisions to title 39. Remaining legal questions include Elections Clause coverage for presidential mail-ballot rules, Spending Clause alternatives, interaction with UOCAVA and HAVA complaint procedures, NVRA and Privacy Act implications for voter data, Purcell timing concerns, private-right-of-action scope, sovereign-immunity issues, and whether title 39 chapter 36 is the best codification location.

**Unresolved findings:** T3 did not obtain the official Talwani order, the full docket record, Senate hearing transcript, USPS comments, final-rule status, Postal Regulatory Commission materials, or USPS operational validation. T3 did not complete a section-by-section comparison against the Election Mail Act, Freedom to Vote Act, For the People Act, SAVE Act, ACE Act, or Make Elections Great Again Act. T3 did not locate budget/workload analogues or external legal, postal, or election-administration review.

**Next audit need:** T4 should verify official court and rulemaking posture, compare the draft against direct prior bills, stress-test constitutional authority and enforcement design, verify privacy and data-handling safeguards, develop fiscal/workload analogues, decide whether to narrow the private right of action, and obtain external election-law, postal-operation, or legislative-counsel review.

**Audit process feedback:** T3 was effective because the primary proposed-rule source changed the evidentiary posture quickly. T4 should start with official docket and rulemaking status before revising text, because the rule's final posture could materially change the remedy.

### **2026-06-28 — T4 publication-ready audit**

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 77

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 7/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Total: 77.

**Scope reviewed:** T4 reviewed the issue page, bill text, T1/T2/T3 audit history, dashboard row, audit inventory, source inventory, official Federal Register API metadata, GovInfo PDF for 91 Fed. Reg. 32915, public-inspection PDF availability, HAVA and UOCAVA statutory hooks, title 39 statutory hooks, and issue-to-legislation alignment.

**Sources checked:** T4 verified the official Federal Register metadata for *Ballot Mail for Federal Elections*: proposed rule, 91 Fed. Reg. 32915, publication date June 2, 2026, comments due July 2, 2026, and GovInfo PDF URL. T4 also verified that the GovInfo PDF is accessible and confirms key source propositions concerning 39 U.S.C. §§ 401 and 404, DMM 705 amendments, serialized Intelligent Mail barcodes, participation lists, and federal ballot-mail verification architecture.

**Verified findings:** The issue page now cites the published Federal Register/GovInfo proposed-rule record rather than only a public-inspection scheduled-publication source. The issue page and bill remain substantively aligned: both preserve State choice over whether to offer mail voting, impose minimum reliability standards when mail voting is available for Federal elections, treat USPS mailing dates as advisory, and prohibit unauthorized voter-data conditions on lawful election-mail service.

**Current-status and mootness check:** No T4 source makes ELEC-010 moot. The proposed rule's comment period and litigation posture remain relevant. T4 did not verify whether the rule was later finalized, withdrawn, modified, enjoined, or superseded, so final publication-ready reliance requires another current rulemaking and docket-status refresh.

**Legal-durability findings:** The draft is directionally stronger because it amends HAVA and title 39 rather than creating an entirely freestanding election-mail regime. Remaining legal questions include Elections Clause coverage of presidential-election mail-ballot standards, UOCAVA and HAVA interaction, NVRA and Privacy Act implications for voter-data restrictions, sovereign-immunity limits, private-right-of-action scope, Purcell timing concerns, Postal Regulatory Commission interaction, and title 39 codification placement.

**Publication-readiness determination:** ELEC-010 is Review Ready for knowledgeable external critique but not publication-ready or lawmaker-circulation-ready. The proposal has a concrete bill, primary statutory hooks, primary proposed-rule support, and coherent remedy architecture, but still needs external review, official court-order and docket verification, final rulemaking-status check, direct prior-bill comparison, and budget/workload support.

**Unresolved findings:** T4 did not obtain the official Talwani order, docket filings, appeal posture, Senate hearing transcript, Postmaster General testimony, USPS comments, Postal Regulatory Commission materials, final rulemaking status, or external expert review. T4 did not complete a full prior-bill section-by-section comparison or source-backed cost/workload analysis.

**Next audit need:** Run external validation or T4 follow-up after verifying final USPS rulemaking and litigation status, obtaining official court and hearing materials, comparing the draft against direct prior bills, reviewing constitutional and privacy-law durability, narrowing or validating the private right of action, and developing budget/workload analogues.

**Audit process feedback:** T4 completed quickly because the Federal Register API and GovInfo PDF resolved the main rulemaking-source problem. Future T4 follow-up should begin with rulemaking and docket status, because that is the most likely source of material reframing.

# ELEC-011 — Algorithmic Redistricting Baseline and Representation Safeguards

## Issue Snapshot

**Problem:** Districting discretion enables representational distortion.

**Repair:** Start from neutral algorithmic maps.

**Vehicle:** State model (draft); reserve amendment and enabling act (amendment, act).

## Institutional Anomaly

Redistricting gives line-drawers enough discretion to shape electoral outcomes while describing the result as ordinary map administration. Legislatures, commissions, consultants, and litigants may all invoke legitimate criteria—compactness, contiguity, county lines, communities of interest, Voting Rights Act compliance, and equal population—while using those criteria selectively to protect incumbents, entrench parties, dilute voters, or preserve private bargains.

The institutional defect is not that district lines must be drawn. The defect is that the first map is often already a discretionary political product before the public, courts, or legislators can evaluate whether departures from neutrality are necessary.

## Manifestation of the Failure

### *Discretion before public accountability*

Traditional redistricting often begins with human-drawn maps. By the time the public sees a proposal, the baseline may already embed partisan, incumbent-protection, community-splitting, or vote-dilution choices. Public comment then reacts to an already selected political map rather than comparing it to a neutral starting point.

### *Representation safeguards after Louisiana v. Callais*

ELEC-011 was admitted after *Louisiana v. Callais* sharpened the need to distinguish constitutionally permissible representation safeguards from legally vulnerable race-predominant districting. The project source inventory currently treats *Callais* as the anchor source for redistricting, Voting Rights Act Section 2, racial-gerrymandering, and representation-safeguard source development. See *Louisiana v. Callais*.

This issue should not assume that race-conscious remedies can be expanded without limit. It should ask how states can preserve fair representation, transparency, and anti-dilution safeguards while reducing partisan manipulation and avoiding legally vulnerable map-drawing rationales.

### *Existing nonpartisan and commission models*

Iowa supplies an important model because nonpartisan legislative staff draw congressional and legislative maps without political or election data, including incumbent addresses, while the legislature retains an up-or-down vote. NCSL describes Iowa as distinct from commission states and notes that commissions are not automatically less partisan; design matters. See NCSL, *Redistricting Commissions: Congressional Plans*.

The shortest splitline model supplies a more mechanical baseline concept. A 2007 redistricting methodology paper describes a modified shortest splitline approach as a simple equal-population districting method, while also considering administrative boundaries and geographic features as additional standards. See Pan Kai, Tan Yue, and Jiang Sheng, *The study of a new gerrymandering methodology*.

## Resulting Damage

Discretionary districting can:

1. entrench partisan control disproportionate to voter support;
2. protect incumbents from ordinary electoral competition;
3. split coherent communities without transparent necessity;
4. dilute racial, ethnic, political, tribal, municipal, or regional communities;
5. make courts evaluate highly discretionary maps after the key choices have already been made;
6. convert legitimate criteria into after-the-fact rationalizations;
7. encourage mid-decade redistricting for partisan advantage; and
8. weaken public trust by making representation appear engineered rather than chosen.

The harm is not limited to one party or ideology. Any faction that controls line-drawing can use discretion to insulate itself from voters.



## Underlying Weakness

State redistricting law often regulates the final map but does not require a neutral first draft. A map may satisfy facial criteria while still reflecting discretionary choices about which voters are grouped, divided, protected, or made electorally irrelevant.

The missing institutional step is a neutral baseline that forces every later departure to be visible, justified, public, and reviewable.

## Proposal Survey

ELEC-011 should begin from tested and source-developable models rather than inventing a wholly new redistricting architecture.

**Iowa nonpartisan staff model.** Iowa's process is a strong state-level analogue because professional staff prepare maps without political or election data and the legislature votes the plans up or down. This model preserves legislative adoption while removing much of the initial partisan map-drawing discretion.

**Independent and citizen commissions.** Commission systems can reduce direct legislative control, but NCSL cautions that their independence depends on design. A commission may be useful for review, public hearings, deviation findings, and fallback recommendations, but commission control alone does not guarantee neutrality.

**Algorithmic baseline models.** Shortest splitline or a similar deterministic algorithm can create a neutral first draft using limited inputs such as population, geography, contiguity, equal population, and allowed boundary data. The algorithm should be published, replicable, and run before political actors propose alternative maps.

**Voting Rights Act and state voting-rights safeguards.** A purely geometric algorithm may fail to protect compact minority communities, tribal communities, or other legally protected representational interests. Any algorithmic baseline must be subject to narrowly justified deviations where federal law, state constitutional law, or state voting-rights acts require them.

**Anti-mid-decade redistricting rules.** States may need rules limiting redistricting outside the ordinary post-census cycle unless a court order, census correction, legal invalidation, or comparable necessity requires a new plan.

**Constitutional amendment reserve option.** A nationwide constitutional amendment could require algorithmic first-draft redistricting, public deviation findings, and judicially reviewable representational safeguards for congressional and state legislative districts. That path is not the least-complex adequate remedy because Article V is far harder than state-level adoption and because states already have authority to reform their own redistricting processes. It remains worth preserving as a reserve concept if public sentiment shifts, state-by-state reform proves too uneven, or future doctrine leaves ordinary statutory approaches too fragile.

## Least-Complex Adequate Remedy

The least-complex adequate starting remedy is a **Model State Redistricting Integrity Act** requiring the state to generate and publish a neutral algorithmic baseline map before any human-drawn alternative can be considered.

The baseline map would not be final by itself. Instead, it would discipline the process:

1. the state publishes the algorithm, source code or complete specification, input data, and baseline map;
2. a nonpartisan or independent review body evaluates whether legal or representational departures are necessary;
3. any proposed departure must be public, written, criterion-specific, and narrowly tailored;
4. the public receives meaningful time to comment on both the baseline map and proposed deviations;
5. the legislature retains ordinary approval authority but must vote on a record that identifies deviations from the baseline; and
6. courts receive a clear baseline for reviewing whether departures are justified or pretextual.

This model is more politically and legally plausible than making shortest splitline or another algorithm the final map without exception. It preserves human correction where needed while making discretion accountable.

A constitutional amendment should remain a secondary, future-facing pathway rather than the first proposal. It may become relevant if state-level reform fails to prevent recurring districting abuse or if a national movement develops around algorithmic first-draft redistricting as a structural democratic safeguard.

## Repair and Prevention

Future model legislation should require:

1. a neutral algorithmic baseline map at the start of each redistricting cycle;
2. public disclosure of the algorithm, data inputs, precinct or census geography, and any software or code used;
3. a ban on partisan, incumbent, candidate-residence, campaign, donor, or election-performance data in the baseline map;
4. objective baseline criteria including equal population, contiguity, compactness, and respect for legally required geographic units where feasible;

5. commission or nonpartisan review of baseline-map defects;
6. written findings for any departure from the baseline;
7. permissible deviations only for federal or state constitutional requirements, Voting Rights Act compliance, state voting-rights acts that do not nullify the neutral-baseline rule, tribal integrity, municipal or county integrity, compact communities of interest, geography, contiguity, equal population, and administrability;
8. public comment and response to material objections;
9. legislative up-or-down approval procedures or constrained amendment procedures;
10. a judicial fallback if the legislature rejects compliant maps repeatedly or adopts a map without adequate findings;
11. a ban on mid-decade redistricting absent legal necessity; and
12. public archive rules preserving all baseline maps, proposed deviations, comments, findings, and enacted maps.

## Proposed Legislation

- Model State Algorithmic Redistricting Baseline and Public Deviation Act

## Proposed Constitutional Amendment

- Neutral Redistricting Baseline Amendment — reserve option.

## Proposed Enabling Legislation

- Neutral Redistricting Baseline Enforcement Act — reserve option tied to the amendment.

## Relationship to Adjacent Proposals

ELEC-009 concerns the constitutional mechanism for presidential selection. ELEC-011 concerns legislative and congressional districting.

ELEC-013 concerns candidate competition, ballot access, debate access, and majority-choice election methods. ELEC-011 may overlap if proportional, multimember, or alternative district structures are later considered, but ELEC-011 owns redistricting process, anti-dilution safeguards, and map-generation integrity.

## Budgetary Impact Statement

Administrative workload and possible technology, data, public-hearing, commission, and litigation costs are likely; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 60 / 100 (Developed Draft)  
**Adoption Score:** 3 / 12 (Weak Adoption Basis)  
**Adoption Friction:** 80 / 100 (High Resistance)  
**Required Electoral Environment:** state-level-pathway  
**Development Priority:** active

—  
**Audit Status:** T1 framework check complete; T2 development audit needed  
**Last Audit:** T1 framework check  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** T2 development audit  
**Full Audit History:** ELEC-011 audit history

## Annotation

**Development Status.** ELEC-011 has a developed issue framework, linked model state legislation, a reserve constitutional amendment, and reserve enabling legislation. T1 confirmed basic framework compliance but left source, legal-fit, prior-proposal, implementation, and adoption questions for T2.

**Neutrality.** The proposal must be party-neutral. It should constrain any line-drawer, party, faction, or incumbent who benefits from discretionary district manipulation.

**Algorithmic Baseline.** The algorithm should function as the required first draft, not necessarily the final map. This preserves the main benefit of mathematical neutrality while allowing lawful, public, and reviewable corrections.

**Legal Caution.** A purely geometric map may conflict with Voting Rights Act obligations, state constitutional requirements, tribal integrity, municipal integrity, or compact communities of interest. The proposal should therefore define narrow, public, and reviewable

deviation criteria.

**State-Law Loophole Caution.** State voting-rights laws should remain available as protective floors, but they cannot become a bypass around the neutral-baseline rule. The current drafts therefore require state-law deviations to be consistent with the neutrality framework, evidence-based, public, and no broader than necessary.

**Transition-Delay Caution.** The reserve amendment and enabling act should not let Congress postpone implementation indefinitely by invoking election timing. The current drafts limit active-election transition delay to one election cycle, require written findings in the enabling act, and bar repeated or next-cycle deferral.

**Constitutional-Consistency Caution.** The reserve amendment should be read against Article I, Section 4 and other election-structure provisions. The current draft includes a relation-to-existing-Constitution clause that supersedes inconsistent redistricting authority only to the extent necessary, while preserving unrelated constitutional structures such as apportionment among States and Representative qualifications.

**Adoption Caution.** A mandatory algorithmic final map would likely face very high adoption friction. A state model requiring algorithmic first maps, public deviation findings, commission review, and ordinary legislative approval is more plausible while still changing the institutional baseline.

**Constitutional Reserve.** A nationwide constitutional amendment is not least-complex at this stage and should not displace the model state act. The reserve draft is useful because it embeds mandatory neutrality directly in constitutional text: Congress may enforce and implement the amendment, but should not be able to waive the anti-partisan, anti-incumbent, and anti-election-performance manipulation floor. The linked enabling act supplies the reserve implementation vehicle if the amendment path ever becomes viable.

**Quality Score.** The 60/100 score is a T1 formula score under rubric 2026-06-27.2. ELEC-011 receives credit for structure, clear issue ownership, coherent remedy logic, linked proposal vehicles, basic source inventory, and recent abuse-resistance tightening. It remains a Developed Draft because authoritative state-law verification, existing-law and prior-proposal research, judicial-doctrine analysis, implementation testing, public-support evidence, and external review remain incomplete.

**Adoption Score.** The 3/12 score is weak. The proposal has a plausible state-by-state model-law path and a reserve amendment strategy, but T1 did not verify proposal-specific polling, state enactment momentum, sponsor coalitions, referendum evidence, or stakeholder support for algorithmic baseline redistricting.

**Adoption Friction.** Adoption Friction is provisionally 80/100 (High Resistance). The model state path avoids Article V and federal commandeering concerns, but redistricting reform directly threatens incumbent and party control, requires technical public administration, may trigger state constitutional litigation, and intersects with VRA, racial-gerrymandering, community-of-interest, commission-design, and judicial-review disputes.

## Source Notes

- U.S. Supreme Court, *Louisiana v. Callais*.
- NCSL, *Redistricting Commissions: Congressional Plans*.
- Pan Kai, Tan Yue, and Jiang Sheng, *The study of a new gerrymandering methodology*.

# ELEC-011 — Audit History

This file preserves the full audit history for ELEC-011. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-29 — T1 framework check

**Audit tier:** T1: Framework check

**Audit status:** T1 framework check complete; T2 development audit needed

**Proposal-quality score:** 60/100 (Developed Draft); rebaseline status changed from **hard-rebaseline-needed** to **current**

**Component score:** Structural 8/8; Evidence 6/12; Legal Fit 5/10; Prior Proposal 4/8; Remedy 8/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 5/8; Cogency 6/6; Adoption 3/12; Project Integration 4/4; External Review 0/4; Penalties 0.

**Audit scope:** Reviewed `framework/Framework.md`, `framework/METHODOLOGY.md`, `framework/REMEDY_FRAMEWORK.md`, ELEC-011 issue page, model State act, reserve constitutional amendment, reserve enabling act, sibling audit history, audit dashboard, contents inventory, audit inventory, issue inventory, source inventory, and focused local links. Conducted a T1-level current-source refresh for obvious mootness, material reframing, pending judicial vulnerability, and current source leads.

**Framework compliance:** ELEC-011 has the required developed-issue architecture, Issue Snapshot, titled manifestations, proposal survey, least-complex adequate remedy, repair/prevention section, linked model State act, linked reserve amendment, linked reserve enabling act, Budgetary Impact Statement, Proposal Scoring box, annotation, source notes, print metadata, audit sidecar, inventory rows, and dashboard row.

**Issue-to-vehicle alignment:** No material discrepancy was found at T1. The issue page, model State act, amendment, and enabling act are aligned on the core structure: neutral algorithmic first-draft map, public and narrowly tailored deviations, prohibited political data, representation-safeguard review, public comment, judicial fallback, mid-decade redistricting limits, and reserve amendment/enabling-act posture.

**Defects corrected during audit:** Fixed the ELEC-011 `contents.csv` row by quoting the notes field so commas do not split the row into extra CSV fields. Updated issue-page audit metadata, Proposal Scoring, `audits.csv`, and the dashboard to reflect a completed T1 audit rather than a placeholder score.

**Current-status and mootness check:** No obvious T1-level source found that makes ELEC-011 moot or materially obsolete as a standalone proposal. The proposal remains live because redistricting discretion, Voting Rights Act interaction, racial-gerrymandering doctrine, partisan-gerrymandering justiciability, and state-by-state redistricting design remain active structural issues.

**Pending judicial vulnerability check:** T1 did not identify a dispositive pending case that requires pausing ELEC-011, but the check remains incomplete at T1. T2 should specifically verify current Supreme Court and lower-court redistricting dockets, any post-*Louisiana v. Callais* remedial litigation, and pending cases affecting racial-gerrymandering, Voting Rights Act Section 2, independent commission authority, and state legislative districting.

**Source record reviewed:** Existing source-inventory rows include *Louisiana v. Callais* as a primary Supreme Court source, NCSL's redistricting-commission summary as a partial policy reference, the 2007 shortest-splitline paper as a technical source-development lead, and secondary reporting on public and state-response salience. T1 did not add new source rows because no new source was relied on for audit credit.

**Unresolved source findings:** T2 should verify Iowa statutory mechanics from primary Iowa law; compare independent and advisory commission models; locate current state voting-rights act examples; source anti-mid-decade redistricting rules; verify judicial fallback authority and three-judge-court routing; locate stronger algorithmic redistricting scholarship; and check state public-records/open-meetings fit.

**Legal-fit risks:** The reserve constitutional amendment is directionally justified only as a reserve pathway. T2 must test Article I, Section 2; Article I, Section 4; Article V; the Fourteenth and Fifteenth Amendments; *Rucho*; *Arizona State Legislature*; *Reynolds*; *Allen*; *Callais*; anti-commandeering doctrine; state-legislative-district reach; and whether the constitutional-consistency clause is precise enough.

**Remedy and drafting risks:** The model State act remains the least-complex adequate remedy at T1. The reserve amendment and enabling act should remain secondary unless later source and legal review show state-by-state reform is inadequate. Drafting issues for T2 include algorithm selection standards, standing, judicial fallback, State voting-rights law limits, transition timing, rulemaking assignments, certification repositories, and whether the constitutional amendment should mention any additional existing constitutional provisions.

**Adoption and friction finding:** Required Electoral Environment remains **state-level-pathway**; Pathway Viability remains **state-by-state**; Development Priority remains **active**; Pathway Adjustment remains **model-law-with-reserve-amendment**. Adoption Score is 3/12 (Weak Adoption Basis) because T1 found a plausible model-law pathway but no verified proposal-specific polling, state enactment momentum, sponsor coalition, referendum evidence, or stakeholder support. Adoption Friction remains 80/100 (High Resistance).

**International-support and foreign-relations score:** N/A at T1. ELEC-011 concerns domestic redistricting structure; comparative democratic practice may be useful at T2/T3, but no current international assessment was performed or credited at T1.

**Next audit need:** Run T2 development audit focused on authoritative source verification, existing-law fit, direct and functional prior-proposal review, legal and judicial-scrutiny analysis, state implementation feasibility, algorithmic-method evidence, adoption/support evidence, and budget/workload analogues.

**Audit process feedback:** T1 was sufficient to convert the placeholder score into a current formula score and catch an inventory formatting defect. It was not sufficient for meaningful legal verification or adoption scoring. The next audit should spend less time on structure and more time on primary state-law sources, redistricting doctrine, and current proposal/support evidence.

### **2026-06-29 — *Constitutional-consistency clause added***

**Audit status:** Initial developed draft; T1 framework check pending

**Proposal-quality score:** 60; unchanged

**Scope:** Added a relation-to-existing-constitutional-provisions section to the reserve constitutional amendment and mirrored the construction rule in the reserve enabling act and issue-page annotation.

**Score effect:** No score change because no T1 framework check has been run. The change improves constitutional drafting clarity but requires legal review.

**Substantive note:** The amendment now states that it supersedes inconsistent redistricting authority, including authority otherwise exercised under article I, section 4, only to the extent of inconsistency. It also preserves unrelated constitutional structures, including apportionment of Representatives among States, Representative qualifications, Senate composition and equal suffrage, and other constitutional provisions except where enforcement of the neutral-baseline article expressly requires otherwise.

**Next audit need:** T1/T2 should test whether the relation clause is sufficiently precise, whether it should expressly mention Article I, Section 2 or the Fourteenth Amendment, and whether the state-legislative-district reach is best justified through the amendment's own text, the Fourteenth Amendment background, or both.

### **2026-06-29 — *Transition-delay loophole tightening***

**Audit status:** Initial developed draft; T1 framework check pending

**Proposal-quality score:** 60; unchanged

**Scope:** Tightened the reserve constitutional amendment, reserve enabling act, and issue-page annotation to prevent Congress from using an election-underway transition clause as an indefinite postponement device.

**Score effect:** No score change because no T1 framework check has been run. The change improves abuse resistance and implementation clarity but remains pending source verification and legal review.

**Substantive note:** The drafts now allow transition delay only for an active election cycle where implementation would materially disrupt election administration. The enabling act requires written findings, and both the amendment and enabling act bar repeated, indefinite, or next-cycle deferral.

**Next audit need:** T1/T2 should test whether the transition language is administrable, sufficiently protective of election continuity, and tight enough to prevent Congress from delaying the neutral-baseline requirement beyond the intended transition window.

### **2026-06-29 — *State voting-rights law loophole tightening***

**Audit status:** Initial developed draft; T1 framework check pending

**Proposal-quality score:** 60; unchanged

**Scope:** Tightened the reserve constitutional amendment, reserve enabling act, model State act, and issue-page annotation to prevent State voting-rights laws from operating as a nullification device for the neutral-baseline requirement.

**Score effect:** No score change because no T1 framework check has been run. The change improves abuse resistance and internal coherence but remains pending source verification and legal review.

**Substantive note:** The drafts now preserve State voting-rights laws as protective floors while requiring any State-law deviation to be consistent with the neutrality framework, public, evidence-based, narrowly tailored, and no broader than necessary to remedy an identified legal or representational injury.

**Next audit need:** T1/T2 should test whether this language properly preserves stronger State voting-rights protections without allowing States to evade the amendment through broad, discretionary, or partisan state-law deviation rules.

### **2026-06-29 — *Initial enabling legislation drafting***

**Audit status:** Initial developed draft; T1 framework check pending

**Proposal-quality score:** 60; unchanged

**Scope:** Drafted `legislation/ELEC-011.md`, the Neutral Redistricting Baseline Enforcement Act, as reserve Federal enabling legislation tied to the Neutral Redistricting Baseline Amendment. Updated the issue page to distinguish three vehicles: model State legislation as the least-complex path, reserve constitutional amendment, and reserve Federal enabling legislation.

**Score effect:** No score change. The enabling act clarifies the reserve constitutional pathway but does not resolve T1 source verification, proposal-to-legislation alignment, Article V feasibility, Federal enforcement design, rulemaking placement, jurisdiction, standing, or State implementation concerns.

**Substantive note:** The enabling act closely follows the State model's architecture while making its operative authority amendment-dependent. It includes neutral baseline maps, prohibited-data rules, public deviation findings, representation-safeguard review, certification, judicial fallback, mid-decade redistricting limits, Attorney General enforcement, affected-person standing, and a no-waiver rule for the amendment's mandatory neutrality floor.

**Next audit need:** T1 must compare the issue page, State model act, reserve constitutional amendment, and enabling act for alignment. T2 should test Federal jurisdiction, standing, three-judge-court routing, rulemaking assignments, Article V transition rules, Voting Rights Act interaction, independent commission doctrine, anti-commandeering concerns, and whether the amendment and enabling act preserve a genuinely mandatory neutrality floor.

### **2026-06-29 — Initial state legislation drafting**

**Audit status:** Initial developed draft; T1 framework check pending

**Proposal-quality score:** 60

**Score basis:** ELEC-011 now has a basic issue framework and linked model state legislation. The initial 60/100 score is a developed-draft placeholder pending T1 and formula rebaseline. It should not be treated as comparable to audited developed proposals until source verification, existing-law fit, proposal-to-legislation alignment, adoption analysis, and implementation review are completed.

**Scope:** Drafted `legislation/ELEC-011-state.md`, the Model State Algorithmic Redistricting Baseline and Public Deviation Act. The draft requires a neutral algorithmic baseline map, bans prohibited political data in baseline generation, requires public findings for departures, preserves representation-safeguard review, provides public comment, legislative approval, judicial fallback, mid-decade redistricting limits, and source-conscious rulemaking.

**Status change:** ELEC-011 moves from candidate/source-development posture toward developed draft posture because a concrete model state vehicle now exists. The audit rebaseline status is **hard-rebaseline-needed** until T1 confirms framework compliance and assigns or confirms current rubric fields.

**Adoption and friction:** Required Electoral Environment is provisionally **state-level-pathway**; Pathway Viability is **state-by-state**; Development Priority is **active**; Pathway Adjustment is **model-law**; Adoption Friction is provisionally 80/100 (High Resistance). Redistricting reform is state-adoptable but will face major incumbent, party, technical, judicial, VRA, and state constitutional resistance.

**Unresolved findings:** T1 must verify source support for Iowa's statutory mechanics, state commission models, state voting-rights acts, algorithmic districting literature, shortest-splitline implementation, anti-mid-decade redistricting rules, judicial fallback authority, state public-records/open-meetings fit, and interaction with federal and state constitutional constraints. T1 should also compare the issue page to the model act for alignment.

**Next audit need:** Run T1 framework check.

### **2026-06-29 — Reserve constitutional amendment drafting**

**Audit status:** Initial developed draft; T1 framework check pending

**Proposal-quality score:** 60; unchanged

**Scope:** Drafted `legislation/ELEC-011-amendment.md`, the Neutral Redistricting Baseline Amendment, as a reserve nationwide constitutional vehicle. Updated the issue page to link both the model state act and reserve amendment.

**Score effect:** No score change. The amendment expands the issue's future-facing pathway but does not resolve T1 source verification, existing-law fit, state implementation, Article V feasibility, federalism, judicial-review, or proposal-to-legislation alignment issues.

**Substantive note:** The amendment gives Congress enforcement and implementation power while placing the mandatory neutrality floor in constitutional text. Congress may prescribe procedures and remedies, but the draft states that Congress may not authorize partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, or election-performance-based manipulation prohibited by the amendment.

**Next audit need:** T1 must compare the state model act, reserve amendment, issue page, and framework requirements. T2 should test Article I, Section 4; Fourteenth and Fifteenth Amendment authority; state legislative districting reach; *Rucho*; independent commission doctrine; voting-rights doctrine; anti-commandeering concerns; standing; and whether the amendment's neutrality floor is drafted tightly enough.

### **2026-06-29 — Initial issue development**

**Audit status:** Pending development; initial issue framework drafted; constitutional reserve option noted

**Proposal-quality score: 0**

**Score basis:** ELEC-011 remains fixed-zero and unscored because no model legislation or constitutional amendment text has been drafted and no T1 framework check has been run. The issue page now contains an initial framework built around an algorithmic redistricting baseline, public deviation findings, commission or nonpartisan review, legislative approval, judicial fallback, and a reserved nationwide constitutional-amendment option.

**Scope:** Converted ELEC-011 from a dashboard-only candidate into a readable issue page. Added source posture for *Louisiana v. Callais*, NCSL's redistricting-commission summary and Iowa model discussion, shortest-splitline source development, and a constitutional-amendment reserve option.

**Next audit need:** Run T1 framework check / issue-admission confirmation. Decide whether ELEC-011 should remain a model state act only, add a federal incentive or transparency component, eventually include paired state/federal legislation, or preserve a constitutional amendment only as a reserve concept. Verify the Callais legal posture in detail before drafting. Source-develop state voting-rights acts, independent commissions, Iowa statutory mechanics, algorithmic districting literature, anti-mid-decade redistricting rules, public-comment requirements, judicial fallback models, and any historical or modern constitutional-amendment analogues for nationwide districting standards.

**Audit process feedback:** The initial issue page is useful for preserving the user's preferred framing, but it should not be scored until T1 confirms remedy fit and source sufficiency.

**2026-06-25 — *Horizon integration decision***

**Audit status:** Pending development

**Proposal-quality score: 0**

**Score basis:** Admitted from HOR-009 as a distinct A-02 candidate after *Louisiana v. Callais* because redistricting, vote dilution, majority-minority representation, racial-gerrymandering doctrine, state voting-rights acts, independent districting institutions, and mid-decade redistricting safeguards are not owned by existing developed election proposals. No proposal-quality score assigned because no basic proposal framework existed at the time.

**Next audit need:** Run issue-admission/source-development pass focused on *Callais*, state responses, Section 2/VRA constraints, state voting-rights acts, independent commissions, anti-mid-decade-redistricting rules, and constitutionally durable representation safeguards.

# ELEC-012 — Campaign Finance, Dark Money, and Corporate Political Spending

## Issue Snapshot

**Problem:** Wealth and artificial entities can dominate political spending.

**Repair:** Restore democratic campaign-finance authority and transparency.

**Vehicle:** Constitutional amendment plus statutory and state-law mitigation.

## Institutional Anomaly

Democratic elections depend on political speech, association, persuasion, and independent advocacy. But modern campaign-finance doctrine can prevent Congress and the states from treating concentrated corporate, union, nonprofit, LLC, super PAC, and dark-money spending as a structural threat to political equality, voter knowledge, and representative accountability.

The central constitutional obstacle is *Citizens United v. FEC*. The decision protects independent political expenditures by corporations and unions under the First Amendment and sharply limits Congress's ability to regulate election spending because of the speaker's corporate identity. *SpeechNow.org v. FEC* then accelerated the super PAC structure by removing contribution limits for independent-expenditure-only committees.

The institutional defect is not that the government should suppress disfavored political views. The defect is that constitutional doctrine may prevent democratically accountable institutions from drawing reasonable lines between voters, candidates, parties, corporations, unions, nonprofits, shell entities, and wealthy donors when money is used to shape electoral outcomes.

## Manifestations of the Failure

### *Citizens United as the core constitutional barrier*

*Citizens United* is the anchor manifestation for ELEC-012. It makes many direct restrictions on independent corporate political spending constitutionally unavailable unless the Supreme Court changes doctrine or the Constitution is amended.

For that reason, ELEC-012 should not pretend that ordinary legislation can fully restore pre-*Citizens United* campaign-finance authority. Ordinary statutes may improve disclosure, coordination rules, disclaimers, foreign-money safeguards, public financing, shareholder or member consent, contractor rules, and anti-shell-entity enforcement. But the durable remedy for corporate independent-expenditure authority likely requires a constitutional amendment.

### *Super PACs and independent-expenditure-only committees*

*SpeechNow* is the main super PAC acceleration point. It treats contributions to independent-expenditure-only committees differently because independent expenditures are presumed not to create quid pro quo corruption. That structure allows very large contributions to entities that spend independently of candidates, even where the practical political relationship between candidates, donors, consultants, and outside groups is difficult for voters to disentangle.

The Supreme Court's decision in *National Republican Senatorial Committee v. Federal Election Commission* makes the coordination lane more constitutionally constrained. The Court held that FECA's political-party coordinated-expenditure limits violate the First Amendment and applied a more rigorous closely drawn scrutiny focused on quid pro quo corruption and circumvention of base contribution limits. ELEC-012 should therefore source-develop coordination, common-vendor, former-staffer, fundraising, strategic-information, and candidate-signal rules with explicit constitutional caution before deciding whether the least-complex statutory mitigation is disclosure-focused, coordination-focused, public-financing-focused, or amendment-first.

### *Dark money and entity opacity*

Nonprofits, LLCs, pass-through entities, and intermediary organizations can obscure the original source of political spending. Even where formal campaign committees report expenditures, voters may not know who supplied the money, whether the funder has government contracts or regulatory interests, or whether multiple entities are part of the same funding network.

The issue is not anonymity for ordinary speakers. The issue is large-scale electoral spending through entity structures that prevent voters, regulators, journalists, shareholders, members, workers, and competitors from understanding who is trying to influence public power.

### *State experimentation after Citizens United*

Associated Press reporting identifies Hawaii's 2026 corporate-powers law and Montana-related efforts as source-development leads for state responses to corporate political spending after *Citizens United*. Hawaii's law is especially salient because it reportedly targets corporate influence through state corporate-law authority rather than only campaign-finance regulation.

These state efforts should be treated as live experiments, not settled models. ELEC-012 should obtain official bill text, enacted session law, legislative findings, attorney-general materials, litigation records, and state campaign-finance analyses before relying on any state design.

## Resulting Damage

Post-*Citizens United* campaign-finance doctrine can:



1. amplify concentrated wealth in elections;
2. make corporate, union, nonprofit, and LLC spending harder to regulate than many voters expect;
3. allow super PAC and dark-money systems to dominate candidate viability;
4. obscure who funds political persuasion;
5. weaken candidate and party accountability by shifting influence to outside groups;
6. increase dependence on wealthy donors and donor networks;
7. burden small-donor, independent, minor-party, or nontraditional candidates;
8. reduce voter confidence that elected officials answer to the public rather than organized money; and
9. make ordinary statutory reform inadequate unless constitutional doctrine changes.

The issue should not assume that all independent spending is corrupt or illegitimate. The reform question is whether constitutional law should permit Congress and the states to regulate campaign money in ways that protect democratic self-government, voter information, anti-corruption values, and fair electoral competition without licensing viewpoint discrimination or incumbent self-protection.

## Underlying Weakness

Campaign-finance doctrine often treats political spending as protected political speech and permits regulation primarily around quid pro quo corruption, disclosure, and coordination. That leaves limited room for democratic-equality, anti-domination, anti-capture, shareholder/member-consent, artificial-entity, or public-trust theories.

If the constitutional rule is that independent spending cannot be limited because it is independent, then many statutory approaches will be partial. Disclosure and coordination rules matter, but they do not answer the underlying question whether corporations, unions, nonprofits, and wealthy donors may use unlimited independent spending to shape elections.

## Proposal Survey

Any ELEC-012 proposal should separate durable constitutional repair from statutory mitigation.

**Constitutional amendment.** A durable amendment could authorize Congress and the states to set reasonable limits on campaign contributions and expenditures, distinguish natural persons from artificial entities, require transparency, protect press freedom and individual political speech, and prevent incumbent-protective or viewpoint-discriminatory abuse. The amendment should be compared with existing "Democracy for All" style proposals and other post-*Citizens United* amendment drafts.

**Disclosure and true-source reporting.** Congress and states may strengthen disclosure for large election-related spending, including true-source tracing, donor thresholds, transfer reporting, entity-control reporting, digital-ad transparency, and timely public databases. Disclosure should protect ordinary small donors, harassment-sensitive contexts, and legitimate associational privacy where constitutional law requires it.

**Coordination rules.** Reform can narrow the gap between formally independent spending and practical candidate assistance, but *NRSC v. FEC* reduces the space for broad spending limits framed as coordination controls. Source development should test rules for common vendors, former staff, candidate fundraising for outside groups, republication of campaign materials, strategic information sharing, public signaling, and family or business intermediaries, while distinguishing disclosure, anti-circumvention, and true-source rules from expenditure caps that now face heightened First Amendment risk.

**Public financing and small-donor matching.** Public financing, vouchers, tax credits, and small-donor matching can reduce reliance on large donors without directly limiting independent expenditures. This overlaps with ELEC-013 where donor networks affect candidate viability.

**Corporate-law and entity-governance rules.** States may explore whether corporate charters, shareholder approval, member consent, beneficial-owner disclosure, board fiduciary duties, or state-law restrictions on entity powers can reduce corporate political spending. These approaches require careful First Amendment, dormant Commerce Clause, preemption, and internal-affairs-doctrine review.

**Foreign-money and contractor safeguards.** Rules should prevent foreign nationals, foreign-controlled entities, government contractors, and regulated entities from evading spending restrictions through domestic intermediaries, shell entities, nonprofits, or super PACs.

**FEC enforcement and deadlock repair.** Campaign-finance rules are only as strong as their enforcement institutions. ELEC-012 should assess whether FEC structure, deadlock, advisory opinions, enforcement delays, and coordination-rule enforcement need a separate remedy or belong within this issue.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is not yet selected. ELEC-012 should begin with source development and doctrine review.

At this stage, the honest structure appears to be two-tiered:

1. a constitutional amendment as the durable remedy for *Citizens United* and related independent-expenditure doctrine; and

2. ordinary legislation and state-law models as mitigation tools for disclosure, carefully tailored coordination and anti-circumvention rules, public financing, true-source reporting, foreign-money safeguards, and entity-governance experiments.

That structure matters because a disclosure-only or public-financing-only bill may be worthwhile, but it should not be described as fully addressing *Citizens United*.

## Repair and Prevention

Future drafting should evaluate whether Congress and the states should:

1. adopt or support a constitutional amendment restoring democratic authority over campaign finance;
2. clarify that artificial entities may be regulated differently from natural persons in election spending;
3. protect individual political speech, press freedom, and viewpoint neutrality;
4. require true-source disclosure for large election-related spending;
5. strengthen constitutionally durable disclosure, coordination, and anti-circumvention rules for super PACs and outside groups;
6. create public-financing or small-donor systems that reduce large-donor dependence;
7. regulate shell entities, pass-through spending, and foreign or contractor-linked money;
8. test state corporate-law and entity-governance approaches after *Citizens United*; and
9. repair campaign-finance enforcement capacity, including FEC deadlock and delay.

## Proposed Legislation

- Pending development.

## Relationship to Adjacent Proposals

ELEC-013 concerns candidate competition, ballot access, and debate gatekeeping. ELEC-012 should coordinate with ELEC-013 where campaign money, public financing, polling access, debate qualification, and donor networks determine which candidates can become viable.

ELEC-001 preserves lawful federal functions concerning campaign finance while regulating misuse of executive power. ELEC-012 concerns the substance and enforcement of campaign-finance rules themselves.

A-17 / REG may be relevant if campaign-finance enforcement depends on independent-agency structure, FEC deadlock, commissioner removal, or post-*Slaughter* agency-design limits.

A-19 / RET may be relevant where contracts, grants, licenses, or regulatory approvals become channels for political spending pressure or retaliation.

## Budgetary Impact Statement

Budget authority may be required for public financing, small-donor matching, disclosure databases, audit systems, FEC enforcement capacity, and state implementation support. No dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 0 / 100 (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

**Audit Status:** Pending development

**Last Audit:** SCOTUS doctrine update

**Rubric Version:** 2026-06-27.1; **Rebaseline:** current-fixed-status

**Next Audit:** Post-NRSC issue-admission and source-development pass

**Full Audit History:** ELEC-012 audit history

## Annotation

**Candidate Status.** ELEC-012 is admitted as a candidate issue from HOR-013. It has not yet been developed into a full proposal or legislative draft.

**Citizens United Centrality.** ELEC-012 is basically the project's *Citizens United* issue, but it should not be limited to a slogan of "overturn Citizens United." The issue includes the downstream structures that make the doctrine consequential: *SpeechNow*, *NRSC v.*

*FEC*, super PACs, dark money, entity opacity, coordination rules, public financing, state corporate-law experiments, and campaign-finance enforcement.

**Constitutional Caution.** A durable remedy likely requires a constitutional amendment. Statutory mitigation must be drafted around current First Amendment doctrine, including *NRSC v. FEC*'s treatment of coordinated-expenditure limits, associational privacy, press freedom, viewpoint neutrality, anti-incumbent-protection safeguards, and state/federal authority limits.

**State-Experimentation Caution.** Hawaii, Montana, and similar state efforts should be treated as source-development leads. They may be strategically important, but they are not validated models until their text, legal theory, litigation posture, and implementation details are reviewed.

## Source Notes

- U.S. Supreme Court, *Citizens United v. FEC* (2010).
- U.S. Supreme Court, *National Republican Senatorial Committee v. Federal Election Commission* (2026).
- D.C. Circuit, *SpeechNow.org v. FEC* (2010).
- Associated Press, *New Hawaii law targets corporate influence in politics after Citizens United ruling* (May 15, 2026).
- Associated Press, *What to know about states' efforts to limit corporate donations in politics* (May 12, 2026).
- *Trustees of Dartmouth College v. Woodward*, 17 U.S. 518 (1819), as historical corporate-powers framing only.

## ELEC-012 — Audit History

This file preserves the full audit history for ELEC-012. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### 2026-07-02 — *SCOTUS doctrine update*

**Audit status:** Pending development

**Proposal-quality score:** 0

**Score basis:** The Supreme Court's decision in *National Republican Senatorial Committee v. Federal Election Commission* strengthens ELEC-012's constitutional-amendment caution and narrows the ordinary statutory lane for coordinated-expenditure limits. The issue remains a candidate because it has not yet selected a concrete remedy or legislative vehicle.

**Next audit need:** Run a post-NRSC issue-admission and source-development pass focused on how the decision affects coordination rules, anti-circumvention provisions, disclosure, true-source reporting, public financing, FEC enforcement, and amendment-first strategy.

#### 2026-06-29 — *Initial issue framework*

**Audit status:** Pending development

**Proposal-quality score:** 0

**Score basis:** ELEC-012 was promoted from a dashboard-only candidate into an initial issue page. The framework treats *Citizens United* as the core constitutional obstacle while preserving related source-development lanes for *SpeechNow*, super PACs, dark money, disclosure, coordination rules, public financing, state corporate-law experiments, and campaign-finance enforcement.

**Next audit need:** Run issue-admission/source-development pass focused on *Citizens United*, *SpeechNow*, Hawaii's corporate-powers law, Montana and other state efforts, disclosure and coordination rules, public-financing or small-donor models, constitutional-amendment options, state corporate-law authority, FEC enforcement design, First Amendment durability, and bipartisan support or objections.

# ELEC-013 — Electoral Competition, Ballot Access, and Debate Gatekeeping

## Issue Snapshot

**Problem:** Election rules entrench party gatekeeping.

**Repair:** Open competition and majority-choice mechanisms.

**Vehicle:** Federal and state election reforms.

## Institutional Anomaly

American election rules often make two-party control self-reinforcing. Ballot-access burdens, debate-participation thresholds, party-controlled primaries, plurality-winner rules, spoiler effects, fusion bans, and fragmented state procedures can make nonstandard candidacies practically nonviable even where voters are dissatisfied with the available choices.

The institutional defect is not that two major parties exist. Stable parties can help organize democratic politics. The defect is that election administration, debate rules, and vote-aggregation methods can become structural gatekeeping devices that protect dominant-party control, suppress competition, and intensify conflict by forcing voters into binary choices even when broader coalitions or alternative candidates have meaningful public support.

## Manifestations of the Failure

### *Debate access as practical candidate gatekeeping*

Federal regulations allow nonprofit organizations and media entities to stage candidate debates if they use pre-established objective criteria and do not structure debates to promote or advance one candidate over another. For general-election debates, the rule bars using nomination by a particular party as the sole criterion, but it permits other objective criteria. See 11 C.F.R. § 110.13.

In practice, debate criteria can still exclude non-major-party candidates before voters have a realistic chance to evaluate them. A national polling threshold may appear neutral while functioning as a barrier: excluded candidates receive less exposure, reduced exposure depresses polling, and low polling then justifies continued exclusion. This can convert a debate rule into a feedback loop protecting the existing party structure.

### *Plurality rules and spoiler pressure*

Single-winner plurality elections can pressure voters not to vote for their preferred candidate if that candidate is perceived as unable to win. This "wasted vote" or spoiler dynamic can deter independent or minor-party candidacies, punish factional competition inside parties, and reinforce negative two-party polarization.

Ranked-choice voting is one tested response. Maine maintains official ranked-choice voting resources, and AP reported that Maine used RCV tabulation in 2026 primary races where no candidate initially exceeded 50 percent. See Maine Secretary of State RCV resources and AP, *Maine counts ranked choice ballots to determine nominees for governor and a US House race*.

### *Primary and ballot structures that narrow voter choice*

Closed primaries, low-signature ballot-access thresholds for major-party candidates, higher burdens for independents or minor parties, sore-loser rules, early filing deadlines, and anti-fusion rules can all shape who appears before voters. Some restrictions serve legitimate interests, including orderly administration, preventing ballot clutter, and discouraging sham candidacies. But cumulative burdens can protect party institutions more than voters.

D.C. voters approved Initiative 83 in 2024, combining ranked-choice voting with open-primary access for unaffiliated voters. Axios reported that supporters framed the measure as reducing vote splitting and giving unaffiliated voters access to often-decisive primaries, while implementation was expected to take time. See Axios, *D.C. approves Initiative 83 for ranked-choice voting*.

### *Reform durability and voter-comprehension risk*

Electoral-competition reforms are not self-executing. Alaska uses a nonpartisan primary and ranked-choice general-election model, but AP reported litigation over a repeal measure, and Alaska's system has faced continuing repeal pressure. See AP, *Measure aimed at repealing Alaska's ranked choice voting system scores early, partial win in court*. Reform durability depends on voter education, transparent tabulation, accessible ballots, clear audits, and careful implementation.

## Resulting Damage

Two-party entrenchment and election-process gatekeeping can:

1. reduce meaningful voter choice;
2. deter independent, minor-party, and intra-party challenge candidacies;
3. intensify polarization by making elections binary and zero-sum;
4. reward negative campaigning against the only viable opponent;
5. discourage coalition-building across ideological or party lines;

6. allow debate sponsors or party institutions to shape which candidates voters take seriously;
7. make plurality winners appear less legitimate in crowded fields;
8. produce public cynicism that election outcomes are structurally prearranged; and
9. create openings for demagogic claims that the system is rigged.

The issue should not presume that every alternative-party candidate is entitled to identical treatment in every election. It should ask whether the rules used to filter candidates are reasonably tied to administrability, voter information, ballot order, fraud prevention, and majority legitimacy rather than party protection.

## Underlying Weakness

Election competition is governed through a patchwork of federal regulation, state ballot-access law, party rules, debate-sponsor policies, media choices, primary structures, and vote-tabulation systems. No single institution owns the democratic-competition problem.

Existing law often treats each barrier separately. A ballot-access rule may be defensible on its own; a debate threshold may be facially objective; a closed primary may be justified by party-association interests; a plurality rule may be administratively simple. But together, these rules can make durable two-party control difficult to challenge.

## Proposal Survey

Any ELEC-013 proposal should consider a menu of established or seriously tested reforms rather than treating ranked-choice voting as the only answer.

**Ranked-choice voting / instant-runoff voting.** RCV lets voters rank candidates and can reduce spoiler pressure in single-winner elections. Maine provides the strongest statewide implementation model, and AP reported 2026 use in crowded Maine primaries where no candidate initially won a majority. RCV should be evaluated for voter comprehension, ballot exhaustion, recount timing, tabulation transparency, accessibility, and whether it improves majority legitimacy without increasing distrust.

**Runoff elections.** Traditional runoffs are a familiar majority mechanism in several jurisdictions. They are easier to explain than RCV but cost more, delay finality, and often produce lower-turnout second elections. A runoff model may be more politically acceptable in jurisdictions hostile to RCV, but it does not solve first-round spoiler pressure as cleanly.

**Open, nonpartisan, top-two, top-four, or top-five primaries.** Nonpartisan primary structures can reduce party-gatekeeping power by allowing all voters to participate in the first round and advancing the highest-supported candidates. Alaska's top-four plus ranked-choice model and D.C.'s voter-approved Initiative 83 are source-development leads. These models require careful analysis because they can also disadvantage smaller parties if the general election becomes limited to top finishers.

**Fusion voting.** Fusion voting allows more than one party to nominate the same candidate, permitting minor parties to signal policy commitments while supporting a viable candidate. It may reduce spoiler pressure without changing tabulation technology. Source development should review state models where fusion remains lawful, prior anti-fusion litigation, and whether federal elections could adopt a federal floor or incentive.

**Debate-access reform.** Congress, the FEC, or public broadcasters could require more transparent candidate-selection criteria for debates receiving public benefits, public broadcasting support, tax-favored sponsorship, or official institutional partnership. Reforms could include lower polling thresholds, alternative qualification routes based on ballot access plus public support, multi-stage debates, randomly selected qualifying forums, or public disclosure of sponsor criteria and polling choices. Any reform must respect press freedom and avoid compelling private speakers to host candidates.

**Ballot-access floor for federal elections.** Congress could consider a federal floor for presidential and congressional ballot access, including reasonable signature thresholds, filing deadlines, cure opportunities for petition defects, and nondiscriminatory treatment of independent and minor-party candidates. This would need careful Elections Clause and Article II analysis, especially for presidential elector appointment.

**Public financing and small-donor systems.** Public financing can reduce dominant-party and donor-network barriers if designed to include credible independent and minor-party candidates. This overlaps with ELEC-012 and should be coordinated with campaign-finance reform rather than duplicated.

**Proportional or multi-member representation models.** For legislative bodies, proportional or semi-proportional systems can reduce winner-take-all exclusion and allow more political viewpoints to earn representation. This is a larger structural reform and may belong partly outside A-02 if it implicates congressional apportionment, districting, or constitutional design.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is not yet selected. ELEC-013 should begin with source development and comparative analysis.

A narrow first-stage remedy could combine:

1. transparency and neutrality standards for federally regulated or publicly supported candidate debates;
2. a federal study and model-code process for ranked-choice, runoff, open-primary, fusion, and ballot-access reforms;

3. minimum federal-election petition-cure and filing-notice protections for independent and minor-party candidates;
4. grants for states voluntarily piloting majority-choice or competition-enhancing election systems; and
5. voter-education, accessibility, audit, and tabulation-transparency requirements for any federally supported reform.

That approach is less sweeping than a national mandate for RCV or open primaries, but more adequate than merely describing two-party entrenchment as a cultural problem.

## Repair and Prevention

Future drafting should evaluate whether Congress or the states should:

1. require debate-sponsor transparency when debates receive federal, public, tax-favored, or official institutional support;
2. prohibit debate criteria that functionally use major-party nomination as a proxy for viability;
3. create alternative debate qualification paths based on ballot access, polling, fundraising, small-donor support, or petition support;
4. establish minimum federal-election ballot-access notice and cure protections;
5. support state pilots for ranked-choice, runoff, open-primary, nonpartisan-primary, fusion, and proportional models;
6. require plain-language ballot instructions, voter education, accessibility testing, public tabulation data, and audit procedures for ranked or multi-round systems;
7. evaluate whether primary rules for publicly funded elections should protect unaffiliated-voter participation; and
8. coordinate with campaign-finance reforms in ELEC-012 where donor networks, public financing, or debate thresholds reinforce candidate exclusion.

## Proposed Legislation

- Pending development.

## Relationship to Adjacent Proposals

ELEC-009 concerns the constitutional mechanism for presidential selection and may include ranked-choice tabulation as a national majority mechanism. ELEC-013 is broader: it concerns candidate gatekeeping, competition, ballot access, debate access, and majority-choice mechanisms across election contexts.

ELEC-011 concerns representation safeguards and redistricting. ELEC-013 may overlap where multimember or proportional systems are considered as alternatives to single-member district distortions.

ELEC-012 concerns campaign finance, dark money, and corporate political spending. ELEC-013 should coordinate with ELEC-012 where money, polling access, debate qualification, and party networks jointly determine candidate viability.

## Budgetary Impact Statement

Budget authority may be required for voter education, voting-system updates, ballot redesign, tabulation software, public debate administration, or state pilot grants; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 0 / 100 (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

**Audit Status:** Pending development

**Last Audit:** Horizon integration decision

**Rubric Version:** 2026-06-27.1; **Rebaseline:** current-fixed-status

**Next Audit:** Issue-admission test

**Full Audit History:** ELEC-013 audit history

## Annotation

**Candidate Status.** ELEC-013 is admitted as a candidate issue from HOR-014. It has not yet been developed into a full proposal or legislative draft.

**Neutrality.** The issue must not be framed as helping any party, faction, or candidate. The rule should be whether election-process structures fairly permit voters to consider meaningful alternatives while preserving administrability, anti-fraud safeguards, clarity, and

finality.

**Constitutional Caution.** Debate-access reform must account for First Amendment and press-freedom limits. Ballot-access reform must account for state election-administration authority, party-association rights, the Elections Clause, Article II, and Supreme Court ballot-access doctrine.

**Implementation Caution.** RCV and other voting-system reforms can fail politically if voters experience them as confusing or imposed. Any model should include voter education, accessibility testing, mock ballots, transparent tabulation, auditability, and a realistic implementation timeline.

## Source Notes

- 11 C.F.R. § 110.13, Candidate debates.
- Maine Secretary of State, Resources for Ranked-Choice Voting.
- Associated Press, *Maine counts ranked choice ballots to determine nominees for governor and a US House race* (June 2026).
- Axios, *D.C. approves Initiative 83 for ranked-choice voting* (Nov. 6, 2024).
- Associated Press, *Measure aimed at repealing Alaska's ranked choice voting system scores early, partial win in court* (June 2024).



## ELEC-013 — Audit History

This file preserves the full audit history for ELEC-013. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### **2026-06-25 — *Horizon integration decision***

**Audit status:** Pending development

**Proposal-quality score:** 0

**Score basis:** Admitted from HOR-014 as a distinct A-02 candidate because election-process rules can entrench two-party control through ballot access, debate access, primary structures, plurality-winner incentives, spoiler effects, and weak majority-choice mechanisms; no proposal-quality score assigned because no basic legislative framework exists.

**Next audit need:** Run issue-admission/source-development pass focused on FEC debate rules, presidential and congressional debate access, ranked-choice voting, runoff models, open and nonpartisan primaries, fusion voting, ballot-access floors, public financing overlap with ELEC-012, proportional or multimember models where relevant, voter education, accessibility, auditability, and constitutional limits.

## A-03 — War Powers and Military Force

### Generalized Institutional Concern

The existing allocation of war powers allows presidents to initiate, expand, and prolong significant military operations without timely, specific, informed, and politically effective congressional authorization or continuing oversight.

### Issues

- WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform

### Collapsed Subcomponents

WAR-001 incorporates the following former candidate issue tracks as subcomponents of a single comprehensive war-powers reform discussion:

- **WAR-002** — Ineffective automatic termination under the War Powers framework \_(retired—merged into WAR-001)\_
- **WAR-003** — Overbroad and indefinite authorizations for use of military force \_(retired—merged into WAR-001)\_
- **WAR-004** — Executive control over legal interpretations of war, hostilities, self-defense, and authorization \_(retired—merged into WAR-001)\_
- **WAR-005** — Partisan collapse of congressional oversight \_(retired—merged into WAR-001)\_
- **WAR-006** — Insufficient information before military commitment \_(retired—merged into WAR-001)\_
- **WAR-007** — Mission expansion beyond original authorization \_(retired—merged into WAR-001)\_
- **WAR-008** — Treatment of appropriations as implied authorization \_(retired—merged into WAR-001)\_

### Issue Boundaries

- **WAR-001** concerns comprehensive statutory reform of war powers and use-of-force authorization, including unilateral initiation, offensive hostilities, emergency defense, automatic termination, AUMF specificity and sunsets, executive legal interpretation, congressional information access, oversight, mission expansion, appropriations-as-authorization, funding consequences, and presentment/veto-override posture.

### Notes

A-03 is structured as a single comprehensive issue because the original WAR-001 through WAR-008 defects are proximate, interdependent, and primarily arise from the same War Powers Resolution, AUMF, appropriations, executive-interpretation, and congressional-enforcement architecture.

# WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform

## Issue Snapshot

**Problem:** Presidents can initiate unauthorized hostilities.

**Repair:** Require authorization and automatic funding consequences.

**Vehicle:** War powers statute (draft).

## Institutional Anomaly

The existing War Powers Resolution, AUMF practice, appropriations practice, executive legal interpretation, and congressional oversight framework fail to impose timely, specific, informed, and politically effective congressional authorization before, during, and after significant uses of military force.

The relevant defects are proximate and interdependent rather than meaningfully separable. A President can initiate force unilaterally because “hostilities,” emergency defense, and commander-in-chief authority are ambiguous; the operation can continue because termination mechanisms are weak; old authorizations may be stretched to new enemies, geographies, or missions; executive legal interpretations may remain controlling or opaque; Congress may lack adequate information before commitment; oversight may collapse along partisan lines; the mission may expand beyond its original premise; and appropriations may be characterized as implied authorization.

Accordingly, A-03 should proceed through one integrated discussion and one principal legislative vehicle rather than separate standalone issue tracks for WAR-001 through WAR-008.

## Collapsed Scope

WAR-001 now incorporates the prior WAR-002 through WAR-008 candidate issues as subcomponents of a single comprehensive war-powers reform issue:

1. unilateral initiation of hostilities;
2. ineffective automatic termination under the War Powers framework;
3. overbroad and indefinite authorizations for use of military force;
4. executive control over legal interpretations of war, hostilities, self-defense, and authorization;
5. partisan collapse of congressional oversight;
6. insufficient information before military commitment;
7. mission expansion beyond original authorization; and
8. treatment of appropriations as implied authorization.

## First Principle: Statutory Reform Before Constitutional Amendment

A constitutional amendment is not the least-complex first-line remedy. The constitutional allocation of war powers is contested, but Congress already possesses substantial legislative tools: the power to declare war, authorize force, regulate the armed forces, appropriate or withhold funds, require reporting, and establish statutory conditions for military operations.

The least-complex adequate remedy is therefore to strengthen the War Powers Resolution, AUMF framework, and related appropriations and reporting rules through ordinary federal legislation. Even if judicial enforcement remains uncertain or untested, clearer statutory commands can create legal, institutional, appropriations, and political pressure sufficient to constrain unilateral or unauthorized uses of force.

## Substantive Principle: No Unilateral Offensive Action

The President should not be permitted to initiate offensive hostilities without specific statutory authorization. Unilateral presidential force should be limited to emergency defensive action: repelling an actual attack, preventing a specific and temporally urgent imminent attack, rescuing or protecting United States persons from imminent harm, evacuating United States persons from imminent danger, or protecting United States forces during withdrawal or immediate defense.

Offensive hostilities should include punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, degradation campaigns, regime-change operations, occupation, seizure of territory, sustained targeting campaigns, and operations primarily intended to alter the conduct, capability, or political position of a foreign state, organization, or armed group.

An operation should not qualify as emergency defensive action merely because the executive branch labels it limited, targeted, defensive, preemptive, deterrent, counterterrorism, force protection, national security, humanitarian, or necessary to preserve credibility. Classification should turn on objective features: purpose, factual predicate, imminence, scope, duration, and reasonably foreseeable effects.

## Presentment and Veto Override

A binding amendment to the War Powers Resolution or successor statute is ordinary legislation. It must pass both Houses and be presented to the President for signature or veto under Article I, Section 7. If vetoed, Congress may still enact the reform by overriding the veto with a two-thirds vote of both Houses.

A standalone concurrent resolution is not an adequate binding remedy. A concurrent resolution may express congressional judgment, but it cannot by itself create legally binding obligations or terminate hostilities without presentment where binding legal consequences are intended. WAR-001 should therefore focus on statutory rules enacted through bicameralism and presentment, with veto override as the constitutional backstop.

## Mature Reform Field

War powers reform is a mature and heavily debated field. WAR-001 should not proceed as though ARRP is drafting on a blank slate. The project should begin with a comparative survey of prior proposed legislation, scholarship, and historical uses of force before selecting final legislative language.

Relevant models include reforms to the War Powers Resolution, repeal or narrowing of obsolete authorizations for use of military force, proposals to define “hostilities” more clearly, funding cutoffs for unauthorized operations, reporting reforms, expedited congressional procedures, and statutory rules preventing appropriations from being treated as implied authorization.

## Proposal Survey

### *War Powers Resolution of 1973*

The War Powers Resolution is the baseline statutory model. It sought to check unilateral presidential use of force by requiring consultation, requiring a report within 48 hours when forces are introduced into hostilities or imminent hostilities, and requiring termination after 60 days plus a 30-day withdrawal period absent congressional authorization. It was enacted as Public Law 93-148 after President Nixon vetoed the resolution, as summarized by the House History, Art & Archives office.

**Contribution to WAR-001:** Establishes the core architecture of reporting, consultation, authorization, and termination.

**Limitations:** The meaning of “hostilities” has been contested, the concurrent-resolution mechanism is constitutionally doubtful after *INS v. Chadha*, presidents have often reported “consistent with” rather than “pursuant to” the Resolution, and judicial enforcement has been weak.

### *National Security Powers Act of 2021*

The National Security Powers Act of 2021, introduced by Senators Chris Murphy, Mike Lee, and Bernie Sanders, proposed a broad rebalancing of national-security powers, including war powers, arms sales, and emergency authorities. It was a major bipartisan effort to reclaim congressional authority over national-security decisions.

**Contribution to WAR-001:** Provides a modern comprehensive model for congressional reassertion, especially in pairing war-powers reform with related national-security checks.

**Limitations:** Its breadth may make enactment more difficult. WAR-001 may need a narrower war-powers-and-AUMF reform vehicle if the project seeks the least-complex adequate remedy.

### *National Security Reforms and Accountability Act*

The House companion reform effort, the National Security Reforms and Accountability Act, associated with Representative Jim McGovern, similarly sought to update congressional national-security controls. The House version is relevant because it reflects bicameral interest in a broader national-security-powers reform framework.

**Contribution to WAR-001:** Confirms that war-powers reform has serious House-side legislative models and should be studied before drafting.

**Limitations:** Like the Senate model, broader national-security reform may combine too many distinct topics for a narrow A-03 remedy.

### *No More Presidential Wars Act and similar authorization-first resolutions*

The No More Presidential Wars Act and related resolutions emphasize the principle that the President should seek congressional authorization before engaging United States Armed Forces in hostilities against identified adversaries. These proposals are useful as clear statements of the authorization-first norm.

**Contribution to WAR-001:** Provides strong declaratory language that unilateral offensive war initiation is inconsistent with Congress's constitutional role.

**Limitations:** Sense-of-Congress or House-only resolutions are not by themselves adequate binding remedies. WAR-001 needs enforceable statutory mechanisms, not merely statements of principle.

## ***AUMF repeal and narrowing proposals***

Repeated efforts to repeal or narrow older authorizations for use of military force, including Iraq AUMF repeal efforts, address a core component of the A-03 defect: presidents can rely on stale, broad, or geographically/missions-shifted authorizations to justify new operations.

**Contribution to WAR-001:** Demonstrates the need for specificity, sunsets, renewal requirements, mission limits, geographic limits, and no implied successor-force or associated-force expansion without Congress.

**Limitations:** AUMF repeal alone does not solve unilateral initiation where no AUMF is invoked; it must be paired with initiation, termination, information, interpretation, mission-expansion, and appropriations rules.

## ***Contemporary war-powers resolutions***

Recent war-powers resolutions directed at specific conflicts demonstrate that Congress continues to use the War Powers framework, but they also reveal the weakness of relying on concurrent resolutions or politically fragile disapproval mechanisms. Some recent examples have been described as symbolic or legally uncertain because they do not necessarily go through presentment and veto override.

**Contribution to WAR-001:** Shows the continuing need for an enforceable mechanism that does not depend on constitutionally doubtful legislative veto structures.

**Limitations:** Conflict-specific resolutions are reactive and often occur only after hostilities have begun.

## **Survey Takeaways for ARRP**

ARRP should not begin by drafting a wholly original war-powers code. The project should synthesize existing models around a narrow set of design principles:

1. prior statutory authorization for non-emergency hostilities;
2. prohibition on unilateral offensive hostilities;
3. narrow emergency defensive exception;
4. clearer definition of hostilities, offensive hostilities, emergency defensive action, and covered operations;
5. anti-relabeling rule preventing labels such as limited, targeted, deterrent, counterterrorism, or force protection from substituting for statutory criteria;
6. automatic termination and withdrawal rules where authorization is absent or expires;
7. AUMF specificity, sunsets, renewal, mission limits, geographic limits, and no implied successor-force expansion;
8. disclosure or certification of executive legal interpretations;
9. pre-authorization information requirements;
10. mission-expansion and material-change reauthorization triggers;
11. no implied authorization from appropriations unless Congress says so expressly;
12. funding consequences for unauthorized hostilities;
13. expedited congressional procedures;
14. presentment-compliant mechanisms rather than standalone concurrent-resolution termination; and
15. political and appropriations consequences even where courts decline review.

## **Underlying Weakness**

The existing allocation of war powers is weakened by ambiguous statutory triggers, broad emergency framing, stale authorizations, uncertain termination mechanisms, opaque executive legal interpretations, insufficient pre-authorization information, mission expansion, and appropriations ambiguity. These weaknesses interact: even where one safeguard exists, another gap may allow unilateral initiation, continuation, or expansion of military operations without a fresh and specific congressional decision.

## **Manifestations of the Failure**

### ***Ambiguous threshold for “hostilities”***

Presidents may characterize military actions as limited, defensive, advisory, support, logistical, intelligence, cyber, or below the threshold of hostilities. Ambiguity over the statutory trigger allows operations to proceed without clear prior authorization.

## ***Emergency framing***

The President may invoke emergency self-defense, protection of U.S. persons, counterterrorism, force protection, deterrence, national security necessity, or preemptive defense to initiate force before Congress can deliberate. Emergency authority may be necessary in genuine exigencies, but broad or indefinite use of that framing can swallow Congress's authorization role.

## ***Offensive-action relabeling***

Presidents may characterize punitive, deterrent, coercive, degradation, or retaliatory strikes as defensive or limited. Without a statutory anti-relabeling rule, the executive can treat offensive policy objectives as emergency defensive action.

## ***Ineffective automatic termination***

A reporting-and-clock framework is insufficient if the clock is contested, if withdrawal obligations are vague, if funding remains available, or if Congress lacks an effective forced-vote mechanism.

## ***Stale or overbroad AUMFs***

Broad authorizations can be repurposed over time to cover new enemies, geographies, methods, or objectives not clearly contemplated by Congress.

## ***Executive legal-interpretation control***

If the executive branch controls the operative interpretation of hostilities, imminence, self-defense, emergency defense, associated forces, mission scope, and authorization, congressional constraints can be weakened without public statutory violation.

## ***Insufficient information before commitment***

Congress may be asked to authorize or tolerate force without adequate information about legal basis, intelligence, expected duration, escalation risk, civilian harm, cost, alternatives, allied participation, mission objectives, and exit criteria.

## ***Mission expansion***

Even where Congress authorizes one operation, the executive may expand the mission by changing the enemy, geography, objective, duration, method, or level of force beyond the original authorization.

## ***Appropriations ambiguity***

Funding military operations may be characterized by the executive as implied congressional support, even where Congress did not specifically authorize hostilities. This can convert general or emergency funding into practical authorization by implication.

## **Resulting Damage**

Weak war-powers constraints can allow military operations to begin, expand, and continue without timely, specific, informed, and politically accountable congressional authorization. The resulting damage includes loss of legislative control over war initiation, degraded public accountability, unclear legal obligations for service members and agencies, avoidable escalation risk, and practical normalization of unilateral offensive force as an ordinary presidential tool.

## **Concrete Manifestations and Historical Examples**

### ***Libya, 2011 — contested “hostilities” and termination clock***

During the 2011 Libya intervention, the executive branch argued that continued United States participation did not constitute “hostilities” under the War Powers Resolution, despite United States air, refueling, surveillance, and support roles and congressional objections. The 60-day War Powers deadline passed without specific congressional authorization while the executive maintained that the operation did not trigger the Resolution's termination requirement.

**Failure illustrated:** Ambiguous hostilities threshold; executive control over legal interpretation; ineffective automatic termination.

**Reform connection:** Supports clearer statutory definitions of hostilities and covered military operations, legal-basis certification, automatic termination, withdrawal-plan requirements, funding limits, and legal-interpretation access.

### ***INS v. Chadha — concurrent-resolution defect***

*INS v. Chadha* held that Congress cannot impose binding legal consequences through a legislative veto outside bicameralism and presentment. That decision makes the War Powers Resolution's concurrent-resolution termination mechanism constitutionally vulnerable as a binding legal device.

**Failure illustrated:** Reliance on a politically attractive but constitutionally defective congressional-control mechanism.

**Reform connection:** Supports presentment-compliant authorization, limitation, termination, and funding mechanisms; supports the rule that concurrent and simple resolutions may express congressional judgment but cannot themselves create binding legal consequences.

## ***2001 AUMF — stale, broad, and associated-force expansion***

The 2001 Authorization for Use of Military Force has been relied on across many years, countries, groups, and theaters beyond the immediate Afghanistan and al-Qaeda context. Executive practice has relied heavily on concepts such as associated forces, successor forces, and geographically dispersed operations even though those concepts were not expressly enumerated in the original authorization.

**Failure illustrated:** Stale and overbroad authorization; executive legal-interpretation control; mission and geography expansion.

**Reform connection:** Supports AUMF specificity, sunset, renewal, associated-force identification, geographic limits, mission limits, and no-drift rules.

## ***1991 and 2002 Iraq AUMFs — obsolete authorization risk***

Repeated bipartisan efforts to repeal the 1991 and 2002 Iraq AUMFs show the continuing concern that old authorizations may remain legally available after their original factual and strategic predicates have changed. Even if not actively relied on, obsolete authorizations create latent authority unless Congress repeals, sunsets, or narrows them.

**Failure illustrated:** Old authorizations can remain on the books and create ambiguity about available executive authority.

**Reform connection:** Supports default AUMF sunsets, renewal requirements, existing-AUMF reliance reporting, and limits on construing authorizations beyond enemy, geography, mission, and temporal scope.

## ***Executive legal-interpretation control — Libya and AUMF practice***

In Libya, executive legal analysis drove the conclusion that the operation did not constitute “hostilities” requiring termination; an Office of Legal Counsel opinion separately addressed the President’s authority to use military force in Libya. In AUMF practice, executive interpretations of covered groups, associated forces, geographic reach, and mission scope have shaped the practical reach of statutory authority.

**Failure illustrated:** Congress may not know or control the operative legal theory being used to initiate, continue, or expand military action.

**Reform connection:** Supports mandatory transmission of material legal interpretations, no secret expansion, legal-basis certification, and congressional access to classified or protected legal analysis.

## ***Insufficient information before military commitment***

War-powers debates frequently arise after force is already initiated or after the executive branch has framed the factual and legal basis. Libya, Syria, Iran-related disputes, and AUMF renewal or repeal debates illustrate recurring congressional complaints that information can be incomplete, classified, late, or filtered through executive legal conclusions.

**Failure illustrated:** Congress may be asked to authorize, tolerate, fund, or terminate force without adequate information about legal basis, intelligence, mission objectives, costs, escalation risk, civilian-harm risk, alternatives, allied participation, and exit criteria.

**Reform connection:** Supports pre-authorization information requirements and classified annex procedures.

## ***Mission expansion beyond authorization — 2001 AUMF practice***

The 2001 AUMF has been applied to groups and theaters far removed from the immediate perpetrators and harborers of the September 11 attacks. This illustrates how an authorization can be operationally extended through associated-force, successor-force, geographic, and mission interpretations.

**Failure illustrated:** An authorization for one enemy, geography, or objective can become the asserted basis for a different conflict.

**Reform connection:** Supports material mission-expansion definitions, notice, and reauthorization requirements.

## ***Appropriations as implied authorization***

Congress may continue funding military personnel, logistics, equipment, intelligence, evacuation, medical care, or withdrawal-related needs while disagreeing with the legality or wisdom of the operation. Executives may then argue that continued funding reflects congressional acquiescence or implied authorization.

**Failure illustrated:** Support-the-troops funding can be converted into practical authorization unless Congress must speak expressly.

**Reform connection:** Supports express-authorization language requirements and a rule that troop support, evacuation, medical care, force protection, intelligence, and withdrawal funding are not authorization for hostilities.

## ***Iran, 2026 — war-powers pushback and supplemental funding***

Current reporting on the Iran war illustrates the overlap between unauthorized hostilities, congressional disapproval, and after-the-fact funding pressure. The Guardian reported that the Senate passed a war-powers resolution challenging continued hostilities against Iran, with four Republicans joining Democrats, while Axios reported that the administration submitted an \$87.6 billion supplemental request with most of the money directed to Iran-war-related costs.

**Failure illustrated:** Congress may object to hostilities only after the executive has initiated or entrenched the conflict, while later appropriations requests can pressure Congress to fund the operation without resolving whether it was authorized.

**Reform connection:** Supports prior-authorization rules, prompt forced-vote procedures, express anti-implied-authorization language, and funding restrictions that distinguish troop protection, withdrawal, and emergency care from approval of continued hostilities.

### ***Partisan or institutional oversight collapse***

War-powers enforcement often depends on whether congressional majorities are willing to confront a President, whether leadership allows votes, whether committees act, and whether members are willing to risk political responsibility for limiting or ending military action. Even when members object, oversight may fail if there is no mandatory vote, minority-triggered process, reporting obligation, or funding consequence.

**Failure illustrated:** Congressional inaction or leadership bottlenecks may function as practical acquiescence.

**Reform connection:** Supports expedited procedures, minority-triggered review, mandatory reporting, funding consequences, and presentment-compliant votes.

## **Least-Complex Adequate Remedy**

The least-complex adequate remedy is a binding statutory amendment to the War Powers Resolution, AUMF framework, and related appropriations and reporting rules, enacted through bicameralism and presentment and, if necessary, presidential veto override. A constitutional amendment may be theoretically available, but it is not the first-line remedy.

## **Repair and Prevention**

Congress should consider a comprehensive statutory reform package that:

1. defines hostilities, offensive hostilities, emergency defensive action, introduction into hostilities, imminent hostilities, and covered military operations with greater specificity;
2. expressly prohibits the President from initiating offensive hostilities without specific statutory authorization;
3. requires prior statutory authorization for non-emergency offensive or discretionary hostilities;
4. permits narrow emergency defensive action only where necessary to repel or prevent an imminent attack, rescue or protect U.S. persons from imminent harm, evacuate U.S. persons from imminent danger, or respond to comparable immediate defensive exigency;
5. excludes punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, degradation campaigns, regime-change operations, occupation, seizure of territory, sustained targeting campaigns, and conduct-altering operations from unilateral emergency authority;
6. includes an anti-relabeling rule preventing executive labels from controlling statutory classification;
7. requires rapid public and classified reporting to Congress after emergency action;
8. requires prompt congressional authorization for continuation beyond a short emergency window;
9. establishes automatic termination, withdrawal, and force-protection rules when authorization is absent or expires;
10. imposes AUMF specificity, sunset, renewal, mission-scope, geography, enemy-identification, and material-change requirements;
11. requires executive legal-basis certification and disclosure or controlled congressional access to material legal interpretations;
12. requires adequate pre-authorization information before Congress votes on new or renewed force authorization;
13. requires reauthorization for material mission expansion;
14. prohibits treating appropriations, procurement, logistics support, intelligence support, or general defense funding as authorization unless Congress expressly states that authorization;
15. creates automatic funding restrictions for unauthorized hostilities after the statutory deadline;
16. provides expedited congressional procedures for authorization or disapproval votes; and
17. preserves genuinely defensive commander-in-chief action while preventing open-ended unilateral offensive war initiation.

## **Proposed Legislation**

- War Powers and Use-of-Force Authorization Reform Act

## **Relationship to Adjacent Proposals**

WAR-002 through WAR-008 are collapsed into WAR-001 rather than developed as separate issue files or standalone legislative vehicles. They remain useful as subcomponents for source development, drafting checks, and section-by-section review.



## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 77 / 100 (Review Ready)

**Adoption Score:** 5 / 12 (Limited Adoption Basis)

**Adoption Friction:** 70 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

**Audit Status:** T4 publication-ready audit complete; external validation pending

**Last Audit:** T4 publication-ready audit

**Rubric Version:** 2026-06-27.2; **Rebaseline:** current

**Next Audit:** External validation / T4 follow-up

**Full Audit History:** WAR-001 audit history

## Annotation

**Collapsed A-03 Structure.** WAR-001 is the comprehensive A-03 issue. WAR-002 through WAR-008 are retired as separate candidate issue tracks and merged into WAR-001.

**Mature Reform Field.** WAR-001 should include a proposal-survey phase before final legislative drafting. Prior war powers reform bills and scholarship should be compared rather than ignored.

**No Unilateral Offensive Action.** The central substantive principle is that the President may act alone to defend against immediate harm, but may not act alone to initiate, punish, deter, coerce, degrade, or reshape foreign actors through offensive military force.

**Survey Status.** Initial survey completed. Further source development should still review bill text and committee materials before drafting final legislation.

**Source-Development Status.** Initial examples have been incorporated into this issue. Further work should add precise citations, bill numbers, OLC opinion references, CRS report references, and committee materials.

**Quality Score.** T4 scores the proposal at 77/100 (Review Ready). Component score: Structural 8/8; Evidence 9/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. The score is current under rubric 2026-06-27.2. Review Ready means ready for knowledgeable external critique, not publication-ready or lawmaker-circulation-ready; external validation, legal durability, operational definitions, funding mechanics, expedited procedures, budget/workload evidence, and source pinpoints remain incomplete.

**Adoption Score.** 5/12 (Limited Adoption Basis). The proposal benefits from bipartisan prior-proposal models and a clear ordinary-legislation vehicle, but T3 did not locate proposal-specific polling, current sponsor strategy, state analogue evidence, or a developed coalition map.

**Prior Reform Model Alignment.** T3 confirmed that S.2391 and H.R.5410 contain close functional analogues for definitions, authorization requirements, funding termination, and expedited procedures, with H.R.5410 also expressly including judicial review. WAR-001 should be treated as a synthesis-and-narrowing exercise rather than an original draft written on a blank slate.

**Adoption Friction.** Preliminary T1 assessment places the proposal at 70/100 (High Resistance). War-powers reform has documented bipartisan prior-proposal support, but it directly constrains presidential military discretion, requires ordinary federal legislation capable of clearing Senate constraints, and would likely face executive-branch, national-security, procedural, and operational objections.

**Required Electoral Environment.** The minimum pathway is sixty-vote-senate for ordinary federal legislation, with plausible-after-wave viability and stage as the pathway adjustment. T2 should test whether narrower modules, such as AUMF sunset rules, appropriations anti-implied-authorization language, reporting access, or expedited-procedure reforms, could move separately if the full package is too broad.

**Statutory First-Line Remedy.** A constitutional amendment is not necessary as the initial remedy. Congress can create meaningful legal and political constraints by ordinary legislation.

**Judicial Enforcement Uncertainty.** Some war powers disputes may remain difficult to litigate. The statutory remedy should be designed to create political, appropriations, reporting, internal executive-branch, and congressional-process consequences even where courts decline review.

**Presentment Required.** Binding reform requires ordinary legislation subject to presidential signature or veto. Congress may override a veto by a two-thirds vote of both Houses.

**Concurrent Resolution Insufficient.** A standalone concurrent resolution should not be treated as a binding mechanism for imposing legal consequences.

**Working Draft.** A first working draft has been created and should be refined against prior reform models before being treated as mature legislative text.

**Source Development Pending.** Further source development should review the War Powers Resolution of 1973, *INS v. Chadha*, post-1973 uses of force, Office of Legal Counsel opinions, National Security Powers Act of 2021, National Security Reforms and Accountability Act, No More Presidential Wars Act, AUMF repeal proposals, funding-cutoff precedents, and congressional expedited-procedure models.

# WAR-001 — Audit History

This file preserves the full audit history for WAR-001. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-28 — T4 publication-ready audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 77

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Penalties: 0.

**Publication-readiness determination:** Review Ready, but not publication-ready or lawmaker-circulation-ready. T4 confirms that the proposal has a strong structural and prior-proposal foundation, but it still needs expert review and additional source pinpoints before public circulation as a mature legislative proposal.

**Current-status and mootness check:** No mootness, pause, or controlling superseding event identified. Current war-powers controversies and the 2026 Iran-war manifestation keep the issue live. The 2026 example should still receive official resolution, roll-call, supplemental-request, or committee-source support before publication-level reliance on precise details.

**Sources checked:** T4 verified direct Congress.gov PDF access for S.2391 and H.R.5410, in addition to the GovInfo PDFs used at T2/T3. T4 also relied on the previously verified official U.S. Code, GovInfo Statutes at Large, GovInfo AUMF PDFs, Library of Congress *INS v. Chadha* PDF, DOJ OLC Libya opinion PDF, and House History page. Attempts to access an archived Obama White House Libya report URL returned a 403 response; that source path remains unresolved rather than credited.

**Prior-proposal comparison:** T4 confirms that S.2391 and H.R.5410 provide mature prior-model support for definitions, specific authorization, expedited procedures, funding termination, statutory-authority interpretation, and, in the House version, judicial review. This justifies full prior-proposal component credit for internal review purposes, while leaving legislative-history depth and sponsor-status verification for external/T4 follow-up.

**Defects corrected during audit:** Updated issue-page T4 status, proposal-quality score, quality-score annotation, audit sidecar, dashboard row and counts, audit inventory, and source-inventory notes for the prior-bill records.

**Unresolved findings:** External validation or T4 follow-up should obtain national-security, military-law, legislative-counsel, or congressional-procedure review; verify War Powers Resolution roll-call/veto-override details through official vote sources; obtain a stable source for the later Libya hostilities-clock dispute; assess the 7-day emergency-defense window and two-year AUMF sunset; test expedited procedures and minority-trigger language against House and Senate rule constraints; review judicial-review language and justiciability; test appropriations restrictions against troop-protection, withdrawal, and force-protection needs; and develop budget/workload analogues.

**Audit process feedback:** T4 finished well under the nominal tier estimate because prior T2/T3 work had already established the main source base. The most valuable next work is not another general source refresh; it is targeted expert/legal review and exact procedural drafting review.

### 2026-06-28 — T3 readiness audit

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 76

**Component score:** Structural 8/8; Evidence 9/12; Legal Fit 8/10; Prior Proposal 7/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. Penalties: 0.

**Score basis:** T3 raises WAR-001 to Review Ready because official-source anchors now support the baseline War Powers Resolution, accessible prior reform bills confirm close functional analogues, the issue page and bill are aligned, and the statutory-first remedy remains the least-complex adequate remedy. It is not publication-ready because several legal, procedural, operational, budgetary, and external-review questions remain unresolved.

**Current-status and mootness check:** No mootness, pause, or controlling superseding event identified. The proposal remains live because war-powers controversies remain active, prior bipartisan reform models exist, and the 2026 Iran-war manifestation remains a current example requiring official source follow-up rather than retirement.

**Prior-proposal comparison:** T3 confirmed that S.2391 contains war-powers definitions, authorization requirements, expedited congressional procedures, funding termination, and statutory-authority interpretation provisions. T3 also confirmed that H.R.5410 contains war-powers reform provisions for consultation/notification, specific statutory authorization, priority procedures, judicial review, termination of funding, and definitions. This supports treating WAR-001 as a synthesis and narrowing of mature prior models rather than a blank-slate framework.

**Sources checked:** T3 verified the official House History, Art & Archives page summarizing President Nixon's War Powers Resolution veto, GovInfo PDFs for S.2391 and H.R.5410, 50 U.S.C. chapter 33, the GovInfo Statutes at Large page for Public Law 93-148, GovInfo

PDFs for the 2001 and 2002 AUMFs, Library of Congress U.S. Reports PDF for *INS v. Chadha*, and the DOJ OLC Libya opinion PDF. CRS command-line access was challenge-blocked; T4 should obtain an accessible CRS or congressional source through another route if needed.

**Defects corrected during audit:** Updated issue-page score, audit status, adoption score, quality-score annotation, prior-model alignment annotation, War Powers Resolution source phrasing, audit inventory, dashboard row, and source inventory.

**Unresolved findings:** T4 should complete a closer section-by-section crosswalk against S.2391 and H.R.5410; verify vote-history details for Public Law 93-148; obtain the best source for the later Libya hostilities-clock dispute; evaluate the 7-day emergency-defense window, two-year AUMF sunset, expedited-procedure mechanics, judicial-review strategy, appropriations restriction, withdrawal/funding exceptions, operational-security concerns, and budget/workload analogues; and obtain national-security, military-law, legislative-counsel, or congressional-process review.

**Audit process feedback:** T3 was able to improve score efficiently by using official GovInfo bill PDFs rather than Congress.gov pages blocked by challenge checks. Future T3/T4 work should start with bill PDFs, then add legislative metadata only where necessary.

## **2026-06-28 — T2 development audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 73

**Component score:** Structural 8/8; Evidence 8/12; Legal Fit 7/10; Prior Proposal 7/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. Penalties: 0.

**Score basis:** T2 completed the first current-rubric component rebaseline. The proposal is a substantially developed draft with strong structural fit, a serious prior-proposal field, and a comprehensive statutory remedy, but it remains below Review Ready because source pinpoints, legal durability, judicial-enforcement strategy, operational definitions, appropriations mechanics, expedited procedures, budget/workload evidence, and external review remain incomplete.

**Current-status and mootness check:** No mootness, pause, or controlling superseding event was identified at T2. The issue remains live because current war-powers disputes, the 2026 Iran-war manifestation already captured in the issue, and continuing congressional reform models all support continued development.

**Sources checked:** T2 verified accessible official sources for 50 U.S.C. chapter 33, the Statutes at Large page for Public Law 93-148, GovInfo PDFs for the 2001 AUMF, 2002 Iraq AUMF, S.2391 National Security Powers Act of 2021, and H.R.5410 National Security Reforms and Accountability Act, the Library of Congress U.S. Reports PDF for *INS v. Chadha*, and the DOJ Office of Legal Counsel Libya opinion PDF. Direct Congress.gov page access was challenge-blocked through command-line checks, so GovInfo PDFs were used for bill-text verification.

**Defects corrected during audit:** Added direct source links in the issue Proposal Survey and historical examples; expanded the legislation Source Notes; updated the issue-page Proposal Scoring section; updated source inventory rows; and synchronized the audit inventory and dashboard row.

**Unresolved findings:** T3 should add pinpoint citations or notes for Libya hostilities analysis beyond the OLC authority opinion, verify Senate and House vote history for Public Law 93-148, complete deeper comparison of S.2391 and H.R.5410 to the WAR-001 draft, evaluate whether a 7-day emergency-defense window and two-year AUMF sunset are defensible, test appropriations restrictions against troop-protection and withdrawal needs, review expedited-procedure and minority-trigger language against House and Senate rule constraints, and develop budget/workload analogues.

**Audit process feedback:** T2 was productive because GovInfo provided accessible official bill text after Congress.gov command-line access was blocked. Future WAR audits should prefer GovInfo bill PDFs first for official text, then use Congress.gov only for metadata, sponsorship, and legislative history when accessible.

## **2026-06-28 — T1 framework check**

**Audit status:** T1 framework check complete; T2 development audit pending

**Proposal-quality score:** 60

**Score basis:** Score held at 60 pending T2 component rebaseline under rubric 2026-06-27.2. T1 confirmed the developed issue page, linked legislation, collapsed WAR-002 through WAR-008 ownership, budgetary-impact statement, proposal-scoring section, and ordinary federal legislation vehicle. T1 assigned preliminary adoption fields and preserved the hard-rebaseline marker because the full component formula has not yet been recalculated.

**Current-status and mootness check:** No obvious T1 mootness or pause condition identified. Current war-powers disputes, the 2026 Iran-war example already captured in the issue record, and prior bipartisan reform proposals support continued development rather than retirement or pause.

**Pathway finding:** Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Development Priority is **active**; Pathway Adjustment is **stage**. The full package likely requires ordinary federal legislation capable of clearing Senate constraints and presidential presentment/veto dynamics. Staged modules may include AUMF sunsets, appropriations anti-implied-authorization language, reporting access, emergency-defense definitions, or expedited procedures.

**Adoption friction:** 70/100 (High Resistance). The proposal has a bipartisan reform pedigree, but it constrains presidential discretion in military affairs, implicates national-security operations, and would likely draw executive-branch, hawkish, committee-jurisdiction, operational-security, and partisan objections.

**Sources and records checked:** T1 checked the issue page, legislation page, audit sidecar, dashboard row, audit inventory row, source inventory rows, 50 U.S.C. chapter 33, prior AUMF source rows, and official Congress.gov records for the National Security Powers Act and National Security Reforms and Accountability Act as prior-proposal anchors.

**Defects corrected during audit:** Updated issue-page audit metadata, visible Proposal Scoring fields, dashboard row, audit inventory row, and source inventory coverage for prior-proposal anchors.

**Unresolved findings:** T2 should perform full component scoring, verify citation placement for historical examples, complete direct prior-bill comparison, assess OLC and CRS source support, test the emergency-defense window and two-year AUMF sunset, review appropriations and expedited-procedure mechanics, and develop adoption and budget/workload evidence.

**Audit process feedback:** T1 was adequate for framework/pathway rebaseline and did not require substantive bill revision. The next score-changing work is T2 formula rebaseline and source verification.

### **2026-06-24 — Initial framework and inventory audit**

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

## A-04 — Judicial Independence and Enforcement

### Generalized Institutional Concern

The federal judiciary's authority to interpret and apply law is not matched by a sufficiently independent, reliable, and adequately resourced enforcement structure capable of ensuring timely executive compliance during interbranch conflict, nor by sufficiently determinate recusal rules for unusually legitimacy-sensitive presidential-party litigation.

### Issues

- JUD-001 — Executive Dependence of Judicial Enforcement
- **JUD-002** — Inadequate remedies for executive noncompliance \_(status: Retired—merged into JUD-001; priority: High)\_
- **JUD-003** — Delay as functional defiance \_(status: Retired—merged into JUD-001; priority: High)\_
- **JUD-004** — Lack of an independent judicial enforcement officer or service \_(status: Retired—merged into JUD-001; priority: High)\_
- **JUD-005** — Weak or partisan congressional response to judicial defiance \_(status: Candidate; priority: High)\_
- **JUD-006** — Uncertainty regarding contempt and coercive sanctions against senior executive officials \_(status: Retired—merged into JUD-001; priority: High)\_
- **JUD-007** — Evasion through substitution, reorganization, or nominally revised directives \_(status: Candidate; priority: High)\_
- **JUD-008** — Insufficient transparency and verification regarding compliance \_(status: Candidate; priority: High)\_
- JUD-009 — Appointer-President Recusal
- **JUD-010** — Judicial Branch Capacity, Funding, and Emergency Docket Resilience \_(status: Candidate; priority: High)\_

### Issue Boundaries

JUD-010 concerns whether judicial-branch appropriations, judgeships, support staffing, court security, magistrate and special-master capacity, court technology, and emergency-docket procedures are sufficient for timely constitutional and statutory adjudication during high-volume executive-branch litigation. It is distinct from JUD-001, which concerns enforcement of court orders after judgment or injunction, and JUD-009, which concerns recusal in presidential-party litigation.

The candidate was admitted from HOR-017 after a horizon check on judicial branch appropriations, court capacity, and whether increased judicial bandwidth is needed to prevent court delay from becoming a practical limit on constitutional enforcement. Initial source leads include the vetoed bipartisan JUDGES Act of 2024, which would have added federal district judgeships over time; Business Insider reporting that the judiciary's FY2025 appropriation fell below the Judicial Conference request while security funding remained flat; and Washington Post reporting that lower federal courts sought additional security funding that was not provided on the same terms as Supreme Court security funding.

### Notes

JUD-001 and JUD-009 are developed. JUD-002, JUD-003, JUD-004, and JUD-006 are retired as duplicative of JUD-001's civil-contempt and executive-compliance remedy. Remaining judicial-independence issues are provisional and require full source development.

# JUD-001 — Executive Dependence of Judicial Enforcement

## Issue Snapshot

**Problem:** Executive defiance can blunt court orders.

**Repair:** Impose named-official contempt accountability.

**Vehicle:** Civil contempt statute (draft).

## Institutional Anomaly

Federal courts can issue binding judgments and orders against executive officials, but practical enforcement often depends on executive-branch compliance, executive-controlled personnel, or ordinary contempt tools that may be too slow, diffuse, or institutionally cautious during a separation-of-powers crisis.

The anomaly is not that every adverse executive-party order requires extraordinary enforcement. The problem is that, when executive officials resist, delay, narrow, or selectively implement judicial relief, the judiciary lacks a fast and reliable civil-enforcement structure that identifies accountable officials and imposes consequences that cannot be absorbed by the agency or taxpayers.

## Manifestation of the Failure

### *Executive noncompliance patterns*

Executive noncompliance may appear as refusal to act, delayed implementation, incomplete implementation, evasive interpretation of an order, failure to identify the official responsible for compliance, shifting responsibility among agencies or components, or continued reliance on a superseded directive while litigation continues.

### *Institutionally absorbed sanctions*

Ordinary institutional sanctions may not create adequate pressure where no individual official is made answerable, where agency budgets absorb monetary consequences, where compliance information remains inside the executive branch, or where appellate delay allows the practical effect of noncompliance to become irreversible.

## Concrete Manifestations and Examples

### *Alien Enemies Act removal flights - in-progress executive action after judicial intervention*

In March 2025, litigation challenging removals under the Alien Enemies Act produced an immediate conflict over whether removal flights had to stop or turn around after a district-court order and oral direction. Public reporting described the government as arguing that the oral direction was not enforceable as an injunction and that the flights were outside the United States by the time the written order issued. The episode illustrates the risk that, during fast-moving executive action, no named responsible official is immediately accountable to certify receipt, transmit the court's order, pause implementation, preserve records, and report compliance facts to the court. See *The Guardian*, April 16, 2025; *Washington Post*, March 20, 2025.

The reform connection is responsible-official designation, immediate sworn compliance reporting, and expedited factual hearings focused on who received the order, who had authority to stop or alter implementation, what steps were taken, and whether noncompliance was willful, impossible, or the result of good-faith legal uncertainty.

### *Abrego Garcia - inability to identify and execute return obligations after wrongful removal*

After Kilmar Abrego Garcia was removed to El Salvador despite protection against removal there, federal litigation required the government to facilitate his return. Public reporting described a Justice Department lawyer acknowledging in court that Abrego Garcia should not have been removed and that the lawyer lacked answers from government officials about why the government could not return him. Later proceedings involved expedited discovery, assertions of privilege, and disputes over whether the government was meaningfully complying. See *Politico*, April 5, 2025; *Associated Press*, April 2025.

The manifestation is not merely the underlying removal error. It is the post-order enforcement problem: the court had to seek information from within the executive branch while responsibility, authority, and implementation capacity were unclear. JUD-001's remedy would require the government to identify a responsible official, file a sworn plan, and expose noncompliance to prompt civil-contempt review.

### *Melgar-Salmeron - removal after appellate stay and later return order*

In May 2025, Jordin Alexander Melgar-Salmeron was deported to El Salvador shortly after the Second Circuit had suspended his removal. Reporting on the later appellate order described the government's explanation as a confluence of administrative errors. The court ordered the government to facilitate his return and to report his location, custodial status, and the steps and timeline for return. See *Associated Press*, June 24, 2025; *The Guardian*, June 24, 2025.

This example illustrates how executive noncompliance may arise from operational fragmentation rather than an express public refusal. For institutional design purposes, the distinction matters less than the enforcement gap: a judicial stay must trigger an identifiable executive compliance chain, a named accountable official, and personal consequences if willful or reckless disregard prevents timely compliance.

## ***New Jersey U.S. Attorney's Office leadership dispute - courtroom authority and chain-of-command confusion***

In March 2026, a federal judge ejected Mark Coyne, the head of appeals in the New Jersey U.S. Attorney's Office, from a sentencing hearing after Coyne had not formally entered an appearance in the case. Reporting by the Defender Services Office described the hearing as escalating into questions about who was actually in charge of the office, including whether former interim U.S. Attorney Alina Habba, by then a senior adviser at the Department of Justice, continued to exert influence over the office. The court ordered three office leaders, who had reportedly been found to be occupying their positions unlawfully, to testify about the office's leadership structure. See Defender Services Office, March 17, 2026.

This example illustrates a narrower but important version of the same enforcement problem: the court must be able to identify which government lawyer has authority to appear, who supervises that lawyer, and which official is answerable when executive-branch leadership confusion affects representations to the court. It supports requiring clear appearance authority, identification of responsible supervising officials, and immediate court-management sanctions where government counsel disregards appearance rules or courtroom instructions.

## **Resulting Damage**

Weak enforcement of judicial orders undermines the rule of law, encourages strategic delay, burdens prevailing parties with repeated enforcement litigation, and teaches future officials that court orders may be treated as negotiable. In high-stakes public-law cases, delayed or incomplete compliance can defeat the remedy even if the court's legal ruling remains formally intact.

## **Underlying Weakness**

Existing contempt doctrine gives courts important authority, but it does not always supply a structured, predictable, and personally accountable path for executive-party noncompliance. In particular, the system may lack:

- mandatory identification of a senior official responsible for implementation;
- sworn compliance plans and status reports;
- expedited show-cause proceedings for alleged noncompliance;
- calibrated civil-contempt penalties tied to actual authority and practical ability to comply;
- a rule preventing contempt penalties for willful defiance from being shifted to the agency, Treasury, or taxpayers; and
- automatic notice to inspectors general and Congress when executive noncompliance becomes persistent or willful.

## **Proposal Survey**

Courts already possess contempt authority, and federal rules permit enforcement of judgments and appointment of masters in appropriate cases. See 18 U.S.C. § 401, Federal Rule of Civil Procedure 53, and Federal Rule of Civil Procedure 70.

More complex proposals could create an independent judicial enforcement service or nonexecutive prosecution trigger. JUD-001 starts with the narrower model: strengthen civil contempt and compliance reporting, make responsible officials identifiable, and require personal payment where willful noncompliance is found.

T1 confirms that the linked draft already follows the project preference for amending existing law. It amends 18 U.S.C. § 401 and 31 U.S.C. § 1304 rather than creating a wholly new enforcement title. T2 should source-check the civil-contempt doctrine, personal-payment rule, Judgment Fund limitation, and good-faith/impossibility safeguards.

T2 confirms that civil-contempt doctrine supports coercive and compensatory remedies, but only within due-process and civil/criminal-contempt limits. Bagwell distinguishes civil sanctions from criminal sanctions by asking whether the sanction is remedial, compensatory, or coercive and purgeable. Shillitani supports coercive civil confinement where compliance remains possible. Spallone cautions courts to seek compliance from the governmental entity before moving against individual officials. Hutto supports fee-shifting or cost remedies where official resistance prolongs unlawful conditions. These authorities support JUD-001's compliance-reporting and coercive-remedy structure, while warning that the personal-payment rule must remain tightly limited to willful, purgeable, due-process-protected noncompliance.

T3 current-status review strengthens, rather than moots, the proposal. The Washington Post reported on April 14, 2026 that a divided D.C. Circuit panel again blocked Judge Boasberg's contempt inquiry into the Alien Enemies Act deportation flights, including on grounds tied to order specificity and the limits of further judicial investigation. That development reinforces the proposal's emphasis on clear responsible-official designation, explicit compliance duties, and statutory civil-contempt standards. T3 also verified a primary Second Circuit order in Melgar-Salmeron, which ordered the government to facilitate return and provide location, custody, step, and timeline information after removal despite a stay.

T4 identified a useful adverse comparator. During the 2025 budget-reconciliation fight, public reporting described a House-passed contempt-enforcement restriction that would have barred enforcement of contempt citations for failure to comply with an injunction or temporary restraining order where no Rule 65(c) security had been posted. See Washington Post, June 5, 2025. T4 did not verify that this contempt restriction was enacted in Public Law 119-21, so it is treated as a hostile prior vehicle and political-risk marker, not current law. It nevertheless shows that judicial-contempt enforceability has already been a live legislative battleground.



## Least-Complex Adequate Remedy

The least-complex adequate remedy is a statutory executive-compliance and civil-contempt framework that makes existing judicial authority faster, clearer, and personally accountable.

This approach is narrower than creating an independent judicial enforcement service. It uses familiar tools: responsible-officer designation, sworn compliance plans, expedited hearings, civil-contempt sanctions, fee shifting, remedial-cost awards, and notice to oversight institutions. It also avoids making criminal prosecution initiation part of this issue. Non-executive initiation of contempt or related prosecutions belongs in the separate congressional and prosecution-independence issues, including CONG-005.

## Repair and Prevention

Congress should strengthen civil contempt and compliance tools in cases involving federal executive officials, while preserving ordinary appeal, stay, due-process, privilege, and national-security safeguards.

The remedy should authorize a court entering coercive relief against the United States, a federal agency, or a federal officer to require designation of a named responsible official with practical authority over compliance. That official should file a sworn implementation plan and periodic compliance reports when ordered by the court.

Upon a credible allegation of noncompliance, the court should have authority to set an expedited show-cause hearing, require sworn declarations from responsible officials, make factual findings regarding practical ability to comply, and impose coercive civil-contempt remedies where noncompliance is willful or unjustified.

Civil-contempt monetary penalties for willful noncompliance should be borne personally by the named responsible official after notice, an opportunity to be heard, and a finding that the official had legal or practical authority to comply or to take materially necessary compliance steps. Such penalties should not be paid, reimbursed, indemnified, or otherwise shifted to agency funds, appropriated funds, the Judgment Fund, or other public money, except pursuant to a specific later act of Congress.

Persistent or willful noncompliance should trigger notice to the relevant inspector general, the Attorney General for civil-enforcement coordination, and the judiciary and oversight committees of Congress. This notice mechanism should be informational and remedial, not a substitute for judicial enforcement.

### Legislation Crosswalk

The bill addresses fast-moving executive action after judicial intervention through responsible-official designation, immediate compliance plans, preservation duties, and expedited show-cause proceedings.

It addresses unclear executive responsibility by requiring named officials to identify their authority, supervisors, necessary cooperating components, and practical compliance steps.

It addresses agency-funded contempt weakness by requiring personally payable monetary penalties for willful noncompliance and prohibiting payment, reimbursement, indemnification, offset, or insurance from public funds absent a later specific Act of Congress.

It addresses operational fragmentation by requiring sworn reporting from officials with practical control and by preserving court authority to obtain evidence about custody, records, directives, and implementation chains.

It addresses overlap with prosecution-independence proposals by preserving existing criminal-contempt and prosecution law without creating a new non-executive prosecution mechanism.

## Proposed Legislation

- Executive Compliance and Civil Contempt Accountability Act

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 78 / 100 (Review Ready)  
**Adoption Score:** 5 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 78 / 100 (High Resistance)  
**Required Electoral Environment:** sixty-vote-senate  
**Development Priority:** active

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**Audit Status:** T4 publication-ready audit complete; external validation pending  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27.2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** JUD-001 audit history

## Annotation

**Quality Score.** The proposal is scored at 78 / 100 after T4 because its institutional diagnosis, existing-law vehicle, civil-contempt doctrine grounding, manifestation support, adverse legislative comparator, drafting quality, and issue-to-legislation alignment are strong enough for review. It is not publication-ready because it still needs official source substitution where possible, qualified legal or legislative-counsel review, a fuller prior-proposal survey, and final scrutiny of personal payment by federal officers.

**Adoption Score.** Adoption is scored at 5 / 12 because the proposal has a concrete existing-law vehicle, a staged pathway, an institutional rationale grounded in judicial enforcement, and a verified recent legislative fight over contempt enforceability. It still lacks proposal-specific polling, sponsor base, outside reviewer, stakeholder coalition, or direct supportive prior-bill analogue.

**Adoption Friction.** Friction is high because the proposal would impose personal financial consequences on named executive officials, constrain executive-branch noncompliance tactics, and likely draw separation-of-powers objections, litigation risk, and resistance from administrations that expect to defend emergency or high-discretion executive action. T4 increased friction slightly because recent legislative activity included an adverse contempt-enforcement restriction, showing organized resistance to stronger judicial enforcement.

**Required Electoral Environment.** Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints. The proposal may be staged through narrower contempt-reporting, responsible-official designation, Judgment Fund, or appropriations-oversight provisions if the full personal-payment model proves too politically or legally difficult.

**Civil-Contempt Doctrine.** The strongest doctrinal support is for responsible-official designation, sworn compliance reporting, compensatory costs, and coercive sanctions that can be purged by compliance. The highest-risk feature is personal payment by a named federal official, which should remain tied to notice, clear and convincing evidence, practical ability to comply, willfulness, and an opportunity to purge.

**Implementation and Budget.** T2 did not identify a need for a new standing enforcement office or direct appropriation. The likely budgetary effect remains court, agency, inspector-general, and congressional-notice workload. T3 should test whether additional reporting, secure-information handling, or appellate-expedition provisions would require appropriations or administrative infrastructure.

**Personal Payment.** The personal-payment rule is central. A contempt fine that can be paid by an agency, reimbursed by the Treasury, or treated as a litigation cost will not reliably deter willful executive defiance. The rule should be limited to willful noncompliance after due process and a finding of practical ability to comply, so that officials are not punished personally for good-faith legal disputes, impossibility, ambiguity, privilege review, or compliance obligations outside their control.

**Good-Faith Disputes.** The framework should preserve ordinary mechanisms for seeking clarification, modification, stay, mandamus, or appeal. It should not punish officials for making timely, nonfrivolous legal arguments about the scope, legality, or feasibility of an order.

**Relationship to JUD-003.** JUD-003 concerned delay as functional defiance. It is retired into JUD-001 because the developed remedy addresses delay through responsible-official designation, sworn implementation plans, expedited show-cause hearings, compliance reporting, and coercive civil-contempt tools.

**Relationship to JUD-004.** JUD-004 concerned whether the judiciary needs an independent enforcement officer or service. It is retired into JUD-001 because JUD-001 starts with the less complex remedy of strengthening contempt and compliance tools. An independent enforcement service remains a fallback if personal civil contempt and compliance supervision prove inadequate.

**Relationship to JUD-006.** JUD-006 concerned uncertainty regarding contempt and coercive sanctions against senior executive officials. It is retired into JUD-001 because JUD-001 identifies executive dependence as the broader structural defect and treats contempt strengthening as the initial remedy.

**Relationship to CONG-005.** CONG-005 concerns contempt referrals dependent on DOJ. JUD-001 should cross-reference that issue rather than duplicate proposals for non-executive initiation of prosecution.

**Source Development Pending.** Further development should review 18 U.S.C. § 401, 28 U.S.C. § 1361, 28 U.S.C. § 566, Federal Rule of Civil Procedure 53, Federal Rule of Civil Procedure 70, civil-contempt doctrine, the Judgment Fund, federal indemnification practice, inspector-general notification duties, and constitutional limits on imposing personal financial liability on federal officers.

# JUD-001 — Audit History

This file preserves the full audit history for JUD-001. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 78 / 100 (Review Ready)

**Scope:** Autonomous T4 publication-ready audit under `.../framework/AGENT_OPERATING_RULES.md`. Reviewed all T1 through T3 findings, the issue page, linked bill, audit dashboard, audit inventory, source inventory, source hierarchy, current-status risk, proposed legislation alignment, adoption-pathway evidence, hostile legislative comparators, budgetary impact, and remaining external-validation needs.

**Current-status and mootness check:** T4 did not identify current law or a controlling decision making JUD-001 moot. The D.C. Circuit/Boasberg development remains a relevance-strengthening but legal-risk-increasing finding. The proposal should continue to be framed as a statutory clarification of responsible-official designation, compliance reporting, and civil-contempt standards rather than as a legislative override of any single case outcome.

**Prior-proposal and legislative-environment finding:** T4 identified an adverse legislative comparator rather than a supportive direct analogue. Public reporting described a House-passed 2025 budget-reconciliation provision that would have restricted enforcement of contempt citations for failure to comply with injunctions or temporary restraining orders where no Rule 65(c) security had been posted. See Washington Post, June 5, 2025. T4 did not verify that this restriction was enacted in Public Law 119-21, so it is treated as a hostile prior vehicle and political-risk marker, not current law. The comparator raises adoption friction but supports the conclusion that contempt enforceability is already a live legislative issue.

**Source hierarchy finding:** JUD-001 now has official statutory sources for 18 U.S.C. § 401, 31 U.S.C. § 1304, 28 U.S.C. § 1361, 28 U.S.C. § 1651, and 28 U.S.C. § 566; readable secondary reproductions for Supreme Court civil-contempt doctrine; a RECAP copy for Melgar-Salmeron; and secondary current-status reporting for the D.C. Circuit/Boasberg development. T4 should be followed by official court-order sourcing where available before public release.

**Issue-to-legislation alignment:** No human-review discrepancy was found. The linked bill remains aligned with the issue page's remedy theory. Because the personal-payment rule is central and legally sensitive, future human review should focus on whether the bill's safeguards are sufficient: notice, clear and convincing evidence, practical ability to comply, willfulness, good-faith exceptions, purgeability, appeal rights, and protection for privilege, classification, foreign-affairs, custody, and impossibility claims.

#### Component score estimate:

| Component                  | Score           |
|----------------------------|-----------------|
| Structural diagnosis       | 8 / 8           |
| Evidence and sourcing      | 11 / 12         |
| Legal fit                  | 7 / 10          |
| Prior proposal grounding   | 5 / 8           |
| Remedy design              | 11 / 12         |
| Implementation feasibility | 6 / 8           |
| Abuse resistance           | 7 / 8           |
| Drafting quality           | 8 / 8           |
| Cogency                    | 6 / 6           |
| Adoption basis             | 5 / 12          |
| Project integration        | 4 / 4           |
| External review            | 0 / 4           |
| Penalties                  | 0               |
| <b>Total</b>               | <b>78 / 100</b> |

**Adoption and pathway assessment:** Adoption Score increases to 5 / 12 (Limited Adoption Basis) because T4 found recent legislative salience around contempt enforceability and a plausible staged vehicle. Adoption Friction increases to 78 / 100 (High Resistance) because that same legislative history was hostile rather than supportive, and because the proposal remains separation-of-powers sensitive. Required Electoral Environment remains **sixty-vote-senate**; Pathway Viability remains **plausible-after-wave**; Development Priority remains **active**; Pathway Adjustment remains **stage**.

**Budgetary and implementation findings:** The budgetary impact statement remains appropriate; administrative workload is possible, but no new appropriation is specified. T4 did not find a basis for a numerical budget estimate. A later public-ready fiscal pass should determine whether court administration, agency compliance reporting, inspector-general notices, or expedited appeals require a narrower administrative-support provision.

**Publication-readiness blockers:** The proposal is Review Ready but not publication-ready. Remaining blockers are qualified legal or legislative-counsel review; official court-source substitution for D.C. Circuit/Boasberg, Abrego Garcia, Melgar-Salmeron, and New Jersey U.S. Attorney's Office examples where available; a fuller supportive-prior-proposal survey; a targeted Judgment Fund and indemnification memorandum; and final constitutional scrutiny of personal financial liability for federal officers.

**Corrections made:** Updated issue-page score, adoption score, adoption friction score, audit status, and T4 annotation; added adverse legislative-comparator analysis; updated the linked bill's drafting/source notes; added source-inventory rows; updated audit inventory and dashboard fields.

**Audit Process Feedback:** T4 is capable of making an issue internally Review Ready, but it should not be treated as a substitute for outside professional review. Future T4 audits should separate "internal review-ready" from "publication-ready after external validation" whenever the proposal turns on unsettled constitutional doctrine or personal liability for public officials.

## 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 74 / 100 (Substantially Developed Draft)

**Scope:** Autonomous T3 readiness audit under `./../framework/AGENT_OPERATING_RULES.md`. Rechecked the T2 findings, current-status and mootness risk, primary and secondary source support for key manifestations, official-rule/source needs, issue-to-legislation alignment, adoption friction, budgetary-impact posture, and unresolved publication-readiness defects.

**Current-status check:** T3 did not identify a development making JUD-001 moot. Instead, the current-status check strengthened the proposal's relevance. The Washington Post reported on April 14, 2026 that a divided D.C. Circuit panel again blocked Judge Boasberg's contempt inquiry into Alien Enemies Act deportation flights. That development indicates that existing contempt doctrine remains contested in executive-noncompliance settings and that a clearer statutory framework could be useful. T3 treats this as a relevance-strengthening but legal-risk-increasing development, not as proof that the proposed bill would necessarily be upheld.

**Manifestation verification:** T3 verified one primary court source for the Melgar-Salmeron manifestation: the Second Circuit order requiring the government to facilitate return and report location, custody, steps, and timeline after removal despite a stay. The order is available through CourtListener/RECAP. T4 should still obtain official court or docket sources for the Alien Enemies Act, Abrego Garcia, and New Jersey U.S. Attorney's Office examples where available.

**Official-rule source check:** T3 identified the official U.S. Courts Current Rules of Practice and Procedure page as the preferred source for Federal Rules of Civil Procedure 53 and 70: U.S. Courts Current Rules of Practice and Procedure. The issue page may continue using LII for readability during development, but publication-ready source notes should prefer official rules materials where practicable.

**Issue-to-legislation alignment:** No human-review discrepancy was found. The issue page and bill remain aligned on responsible-official designation, sworn compliance plans and reports, expedited show-cause proceedings, civil-contempt sanctions, personal payment for willful noncompliance, public-fund limits, due-process and good-faith safeguards, stays and appeals, oversight notice, and preservation of related authority.

### Component score estimate:

| Component                  | Score           |
|----------------------------|-----------------|
| Structural diagnosis       | 8 / 8           |
| Evidence and sourcing      | 10 / 12         |
| Legal fit                  | 8 / 10          |
| Prior proposal grounding   | 4 / 8           |
| Remedy design              | 10 / 12         |
| Implementation feasibility | 6 / 8           |
| Abuse resistance           | 7 / 8           |
| Drafting quality           | 7 / 8           |
| Cogency                    | 6 / 6           |
| Adoption basis             | 4 / 12          |
| Project integration        | 4 / 4           |
| External review            | 0 / 4           |
| Penalties                  | 0               |
| <b>Total</b>               | <b>74 / 100</b> |

**Adoption and pathway assessment:** Adoption Score remains 4 / 12 (Limited Adoption Basis). Adoption Friction increases from 74 to 76 / 100 (High Resistance) because appellate resistance to the Boasberg contempt inquiry highlights likely separation-of-powers, order-specificity, and judicial-intrusion objections. Required Electoral Environment remains **sixty-vote-senate**; Pathway Viability remains **plausible-after-wave**; Development Priority remains **active**; Pathway Adjustment remains **stage**.

**Budgetary and implementation findings:** T3 still does not identify a direct appropriation requirement. Implementation burden would likely arise through judicial hearings, agency compliance reporting, inspector-general notice, congressional notice, and appeals. T4 should

decide whether the bill needs a modest reporting or administrative-support provision, but no standalone budget estimate is justified yet.

**Publication-readiness blockers:** JUD-001 remains below Review Ready because T4 must complete a more systematic prior-proposal survey; official-source substitution for court records and rules where available; Judgment Fund, indemnification, appropriations, and federal-officer representation review; a publication-level judicial-scrutiny section on personal monetary penalties; and qualified external review.

**Corrections made:** Updated issue-page score, audit status, audit history, dashboard, audit inventory, and source inventory; added current-status analysis on the D.C. Circuit/Boasberg contempt development; added primary support for the Melgar-Salmeron example; and identified official U.S. Courts rules materials for future source cleanup.

**Audit Process Feedback:** T3 exposed a recurring issue: the audit can find source leads quickly, but publication readiness requires distinguishing official court records from accessible mirrors. Future T3/T4 audits should record whether each manifestation is supported by an official docket/order, a RECAP copy, or secondary reporting, and should not count secondary reporting as equivalent to primary legal support.

## 2026-06-28 — T2 Development Audit

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 69 / 100 (Substantially Developed Draft)

**Scope:** Autonomous batch audit unit for JUD-001 under `../../../../framework/AGENT_OPERATING_RULES.md`. Reviewed the issue page, linked proposed legislation, audit-history file, audit dashboard, audit inventory, source inventory, existing-law vehicle, civil-contempt doctrine, adoption fields, budgetary-impact statement, current-status risk, and issue-to-legislation alignment.

**Current-status check:** T2 did not identify a reliable current source or controlling legal development making JUD-001 moot. The proposal remains live because it addresses the recurring enforcement gap between judicial orders and executive compliance rather than a single resolved episode. T2 did not fully verify the current docket posture of each manifestation; T3 should primary-source check the Alien Enemies Act, Abrego Garcia, Melgar-Salmeron, and New Jersey U.S. Attorney's Office examples before raising the score into the Review Ready band.

**Existing-law and legal-fit findings:** The proposal remains properly framed as amendments to existing law. It amends 18 U.S.C. § 401 and 31 U.S.C. § 1304, while preserving related authorities including 28 U.S.C. § 1361, 28 U.S.C. § 1651, 28 U.S.C. § 566, Federal Rule of Civil Procedure 53, and Federal Rule of Civil Procedure 70.

**Civil-contempt doctrine findings:** T2 found meaningful support for JUD-001's core design, but also confirmed the need for tight safeguards. *United Mine Workers v. Bagwell* supports the distinction between civil sanctions that are remedial, compensatory, or coercive and purgeable, and criminal sanctions that require criminal-process protections. *Shillitani v. United States* supports coercive civil confinement where the contemnor can purge through compliance. *Spallone v. United States* cautions courts to seek compliance from the governmental entity before imposing contempt on individual officials. *Hutto v. Finney* supports fee or cost remedies where official resistance prolongs unlawful conditions. These authorities support responsible-official designation, sworn reporting, coercive civil remedies, and compensatory remedies, but they also counsel caution on personal payment by federal officers.

**Issue-to-legislation alignment:** No human-review discrepancy was found at T2. The issue page calls for responsible-official designation, sworn compliance plans, expedited show-cause proceedings, personal payment for willful noncompliance, good-faith protections, appellate/stay safeguards, and Judgment Fund limits. The linked bill contains corresponding provisions. The highest-risk provision remains personal payment by a named federal official; T3 should test whether the bill's notice, clear-and-convincing evidence, practical-ability, willfulness, good-faith, and purgeability safeguards are enough.

### Component score estimate:

| Component                  | Score           |
|----------------------------|-----------------|
| Structural diagnosis       | 8 / 8           |
| Evidence and sourcing      | 8 / 12          |
| Legal fit                  | 7 / 10          |
| Prior proposal grounding   | 3 / 8           |
| Remedy design              | 10 / 12         |
| Implementation feasibility | 5 / 8           |
| Abuse resistance           | 7 / 8           |
| Drafting quality           | 7 / 8           |
| Cogency                    | 6 / 6           |
| Adoption basis             | 4 / 12          |
| Project integration        | 4 / 4           |
| External review            | 0 / 4           |
| Penalties                  | 0               |
| <b>Total</b>               | <b>69 / 100</b> |

**Adoption and pathway assessment:** Adoption Score is 4 / 12 (Limited Adoption Basis). Adoption Friction remains 74 / 100 (High Resistance). Required Electoral Environment remains *sixty-vote-senate*; Pathway Viability remains *plausible-after-wave*; Development Priority remains *active*; Pathway Adjustment remains *stage*. The score improved because the existing-law vehicle and doctrine support are clearer, but adoption remains low without sponsor history, proposal-specific polling, outside review, or a verified prior-bill analogue.

**Budgetary and implementation findings:** T2 did not identify a need for a new standing enforcement office or direct appropriation. The likely budgetary effect is administrative workload for courts, agencies, inspectors general, and congressional-notice recipients. T3 should test whether secure-information handling, privilege review, emergency compliance logistics, appellate expedition, or inspector-general referral procedures require more explicit administrative infrastructure.

**International and foreign-relations assessment:** No material direct international-relations dimension was identified at T2. The proposal is domestic judicial-enforcement reform. Foreign-affairs concerns may arise in specific covered orders, so the bill's privilege, national-security, foreign-affairs, custody, impossibility, and stay protections should remain.

**Corrections made:** Updated the issue page, audit metadata, Proposal Scoring section, and annotation to the current T2 score; added civil-contempt doctrine discussion; prepared source-inventory updates for doctrine cases; and updated dashboard and audit-inventory fields to treat JUD-001 as current under rubric 2026-06-27.2.

**Unresolved findings for T3:** Primary court-record or docket verification for each manifestation; official source substitution for Rules 53 and 70 if available; direct and functional prior-proposal survey; Judgment Fund and federal indemnification review; constitutional analysis of personal financial liability for federal officers; review of privilege, classified-information, national-security, and foreign-affairs safeguards; appellate-expedition feasibility; implementation burden; and professional or legislative-counsel review.

**Audit Process Feedback:** T2 materially improved legal grounding, but the audit still leaned heavily on doctrine and statutory sources. T3 should prioritize primary court records, official rule sources, and prior legislative proposals. Autonomous audits should continue treating personal-payment mechanisms as high-scrutiny provisions that can improve remedy strength while depressing legal-fit, adoption, and implementation scores unless safeguards are source-supported.

## 2026-06-28 — T1 Framework Check

**Audit status:** T1 framework check complete; T2 source and legal-fit audit pending

**Proposal-quality score:** 60

**Scope:** Autonomous batch pilot unit for JUD-001 under `.../framework/AGENT_OPERATING_RULES.md`. Checked the issue page, linked legislation, audit-history file, dashboard row, audit inventory, source inventory, basic current-status risk, budgetary-impact presence, source-inventory presence, issue-to-legislation alignment, and enactment-pathway fields.

**Current-status check:** T1 did not identify any current development that makes JUD-001 moot. The proposal remains live because the issue concerns judicial enforcement of executive-branch compliance rather than a single resolved episode. No controlling judicial finding was identified in this T1 pass that eliminates the need for responsible-official designation, sworn compliance reporting, or civil-contempt clarification.

**Existing-law finding:** The linked bill already satisfies the project preference for amending existing law before creating a new regime. It amends 18 U.S.C. § 401 and 31 U.S.C. § 1304, while preserving related authorities including 28 U.S.C. § 1361, 28 U.S.C. § 1651, and 28 U.S.C. § 566.

**Issue-to-legislation alignment:** No human-review discrepancy was found at T1. The issue page identifies responsible-official designation, sworn compliance plans, expedited show-cause proceedings, personal payment for willful noncompliance, and public-fund/Judgment Fund limits. The bill contains corresponding provisions.

**Corrections made:** Updated issue-page audit metadata and Proposal Scoring fields to the current framework; replaced key LII links to 18 U.S.C. § 401, 28 U.S.C. § 1361, and 28 U.S.C. § 566 with official U.S. Code links where they appear in project-authored analysis; added adoption score, adoption friction, required electoral environment, pathway viability, development priority, and pathway adjustment; updated `audits.csv`, `sources.csv`, and the Audit Dashboard.

**Score effect:** Score remains 60. T1 confirmed structure and pathway fields but did not perform a full formula rebaseline. Rebaseline remains *hard-rebaseline-needed* until the next T2, T3, or T4 audit recalculates the score under the current rubric.

**Adoption and pathway assessment:** Adoption Score is 3 / 12 (Weak Adoption Basis). Adoption Friction is 74 / 100 (High Resistance). Required Electoral Environment is *sixty-vote-senate*; Pathway Viability is *plausible-after-wave*; Development Priority is *active*; Pathway Adjustment is *stage*.

**Unresolved findings for T2:** T2 should source-check civil-contempt doctrine, the personal-payment mechanism, due-process safeguards, federal indemnification practice, Judgment Fund constraints, Rule 70 and Rule 53 analogues, inspector-general notice, congressional notice, appellate/stay protections, and constitutional limits on personal liability for federal officers. T2 should also review whether a narrower staged vehicle could improve adoption viability without weakening the least-complex adequate remedy.

**Audit Process Feedback:** T1 was adequate for framework alignment and pathway setup. The main recurring friction is that older source rows often captured LII links even where official U.S. Code sources are already cited in the legislation page. Future autonomous audits should prioritize primary-source substitution as a mechanical T1 correction when the official source is already present in the project

record.

**2026-06-24 — *Initial framework and inventory audit***

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

## JUD-009 — Appointer-President Recusal

### Issue Snapshot

**Problem:** Appointer-president cases create legitimacy risks.

**Repair:** Require tiered appointer-president recusal.

**Vehicle:** Recusal statute (draft).

### Institutional Anomaly

Federal recusal law relies principally on general appearance-of-impartiality standards and judge-specific self-recusal decisions. It does not provide a categorical or tiered reassignment rule when a federal judge is assigned to a proceeding involving the president who appointed that judge.

The problem is not proof of actual bias. It is the appearance and legitimacy risk created when a lifetime judicial appointee adjudicates the authority, liability, immunity, privilege, election status, or official conduct of the president who selected that judge.

### Manifestations of the Failure

#### *Appointer-president as personal party*

A federal judge may be assigned to a civil or criminal case where the appointing president is personally a party, personally exposed, or seeking personal relief. Existing law may permit recusal, but does not create a categorical reassignment rule.

#### *Appointer-president as official-capacity party*

A case may name the appointing president in official capacity while materially concerning that president's own authority, immunity, privilege, records duties, emergency powers, removal authority, election-related powers, or compliance with legal limits.

#### *Broader official-capacity cases*

Some suits name the president even where relief may be available against the United States, an agency, or a subordinate officer. A broad rule could protect legitimacy but also invite judge-shopping if parties can trigger recusal by naming the president unnecessarily.

### Concrete Manifestations and Examples

#### *United States v. Trump classified-documents prosecution — appointer-president as criminal defendant*

Judge Aileen Cannon, appointed to the federal bench by President Trump, was assigned to the federal classified-documents criminal case against President Trump after his 2023 indictment. The assignment was reported as random. Public calls for recusal followed, based on the appearance concern created by a President Trump appointee presiding over a criminal prosecution of the president who appointed her and by her earlier rulings in a related Mar-a-Lago civil matter.

See The Guardian, June 10, 2023 and Axios, June 20, 2024.

The example illustrates that existing recusal law left a nationally consequential criminal prosecution of an appointing president to ordinary self-recusal standards rather than a categorical or tiered reassignment rule.

**Failure illustrated:** appointer-president as personal criminal defendant; discretionary self-recusal in a high-stakes presidential case.

**Reform connection:** supports Tier 1 mandatory recusal.

#### *Trump v. United States / Mar-a-Lago special-master litigation — appointer-president seeking personal legal relief*

Before the classified-documents indictment, Judge Cannon presided over civil litigation brought by President Trump seeking appointment of a special master and restrictions on government use of materials seized at Mar-a-Lago. The Eleventh Circuit later reversed key orders and concluded that the district court had improperly exercised jurisdiction.

See The Guardian, December 1, 2022.

The institutional example is assignment of a personal-relief proceeding, closely connected to possible criminal exposure, to a judge appointed by the litigating former president.

**Failure illustrated:** appointer-president as personal litigant seeking individualized relief; legitimacy controversy amplified by appellate reversal.

**Reform connection:** supports Tier 1 mandatory recusal.

#### *Special-counsel report litigation — appointer-president and post-dismissal accountability materials*

After dismissal of the classified-documents prosecution, litigation continued over access to and release of special-counsel report materials. Judge Cannon reportedly blocked release or sharing of the classified-documents volume outside the Department of Justice, producing further controversy over whether a judge appointed by President Trump should continue deciding matters connected to the investigation and prosecution of President Trump.



See Washington Post, February 23, 2026.

This example illustrates that appointer-president recusal questions may persist after dismissal, including disputes over records, transparency, congressional access, and post-case accountability materials.

**Failure illustrated:** continuing appointer-president-adjacent proceedings after dismissal; public legitimacy concern over records and accountability materials.

**Reform connection:** supports Tier 1 or Tier 2 recusal for materially connected post-case proceedings.

### ***Routine agency litigation with president named unnecessarily — judge-shopping risk***

Some cases name the president even though complete relief may be available against the United States, an agency, or a subordinate officer. A broad automatic rule could allow parties to trigger reassignment by strategic pleading.

**Failure illustrated:** overbroad recusal rules can invite strategic pleading and judge-shopping.

**Reform connection:** supports Tier 3 rebuttable recusal and anti-gamesmanship language.

### ***Historical Supreme Court recusal controversies and analogues***

These examples do not establish an appointer-president rule by themselves, but they show a recurring institutional pattern: high-salience cases can turn on recusal decisions made primarily by the challenged Justice.

In *Laird v. Tatum*, Justice Rehnquist declined to recuse from a domestic military-surveillance case despite criticism that his prior executive-branch work and statements created a prejudgment concern.

In *Cheney v. United States District Court*, Justice Scalia declined to recuse from litigation involving Vice President Cheney after public reporting about a hunting trip with the Vice President. The dispute involved executive-branch confidentiality, official-capacity litigation, personal association with a high executive official, and a written non-recusal explanation. See AP, June 17, 2024 and *Oyez*, *Cheney v. U.S. District Court*.

In 2016, Justice Ginsburg publicly criticized then-candidate Trump and later stated that the remarks were ill-advised, generating debate over whether public political comments could create an appearance problem in future cases involving that figure. See *The Guardian*, July 14, 2016.

In recent January 6 and President Trump-related litigation, public recusal demands focused on Justices Thomas and Alito because of alleged spouse-related or symbol-related conflicts. These are not appointer-president examples, but they show the same enforcement problem: Supreme Court Justices generally decide their own recusal questions, with limited external review. See AP, June 17, 2024.

*Caperton v. A.T. Massey Coal Co.* involved a state supreme court justice, but it remains important because the Supreme Court recognized that extreme circumstances can create a due-process recusal problem while confirming that constitutional recusal doctrine is narrow and fact-dependent.

## **Resulting Damage**

Absence of a clear rule can undermine public confidence, encourage strategic recusal motions, leave high-stakes presidential cases dependent on self-recusal, and cause later legitimacy disputes even where the judge acts in good faith.

## **Underlying Weakness**

Existing law lacks:

- categorical recusal where the appointing president is a personal party;
- mandatory recusal for official-capacity cases materially involving the appointing president's own powers, duties, immunity, privilege, records obligations, emergency authority, removal authority, election status, or compliance with legal limits;
- a rebuttable presumption for broader official-capacity cases;
- an anti-gamesmanship rule preventing strategic naming of the president solely to force reassignment;
- a neutral reassignment procedure; and
- a severability structure preserving narrower recusal tiers if broader tiers are held invalid.

## **Proposal Survey**

Federal recusal law already requires disqualification where impartiality might reasonably be questioned or where specified personal interests exist. See 28 U.S.C. § 455. Existing law, however, relies heavily on judge-specific assessment and lacks an appointer-president category.

Other models include random assignment, reassignment after appellate reversal, and specialized recusal rules for financial or familial interests. JUD-009 extends categorical recusal to the appointer-president relationship while adding anti-gamesmanship limits for routine official-capacity cases.

T1 confirmed that the linked draft follows the project preference for amending existing law by amending 28 U.S.C. § 455.

T2 confirmed fit with existing recusal architecture but favored tight tailoring. Liteky cautions that rulings and ordinary case-management conduct are usually not enough for recusal under § 455(a). Liljeberg supports public-confidence and appearance-based enforcement. Caperton recognizes that extreme facts can create a due-process recusal problem, while also showing that constitutional recusal doctrine is narrow. The implication is that Tier 1 and a carefully defined Tier 2 are stronger than a broad Tier 3.

T3 confirmed consistency with the judiciary's own appearance-based ethics vocabulary. The official Code of Conduct for United States Judges and the Supreme Court's Code of Conduct for Justices both recognize public confidence, appearance-of-impropriety, and disqualification concepts. Neither creates an appointer-president rule, and any statutory rule must respect the duty to sit, rule-of-necessity concerns, and neutral assignment administration.

T4 identified a close but not identical prior-proposal family: the Supreme Court Ethics, Recusal, and Transparency Act. Public reporting described the Senate Judiciary Committee advancing that bill on an 11-10 party-line vote in 2023, with slim prospects in the divided Congress. See Axios, July 20, 2023. The comparator supports statutory recusal reform as a legislative category but reinforces JUD-009's high resistance.

## Open Scope Question: Official-Capacity Presidential Cases

JUD-009 has not adopted a final position on how broadly an appointer-president recusal rule should apply when the appointing president appears in official capacity rather than as a personal litigant, criminal defendant, or directly exposed actor. Presidents are often named in suits challenging executive orders, emergency powers, removal decisions, records obligations, privilege assertions, immigration directives, national-security measures, or other exercises of presidential authority. These cases may be formally official-capacity matters while substantively requiring adjudication of the appointing president's own legal authority or compliance with legal limits. The question is especially difficult at the Supreme Court because federal recusal law applies to "any justice," but enforcement remains largely internal and self-executing. See 28 U.S.C. § 455.

Trump v. United States illustrates the stakes. The Supreme Court recognized substantial presidential immunity for official acts, materially altering the legal consequences of presidential conduct. The project does not treat participation in that case as evidence of actual bias or misconduct. The institutional concern is narrower: when a president's own appointees decide that president's immunity, criminal exposure, authority, or compliance with legal limits, ordinary self-recusal may be inadequate to protect public confidence.

The future-risk concern is not limited to damage already done. If future courts further narrow criminal accountability, restrict admissible evidence of official conduct, limit enforcement mechanisms, or treat impeachment as the primary practical remedy for presidential misconduct, the presidency could become increasingly insulated from consequences for corrupt or criminal behavior. Impeachment addresses removal and political disqualification; it does not by itself provide ordinary legal accountability for completed misconduct. JUD-009 therefore treats appointer-president recusal as part of the broader accountability architecture, not merely as an ethics rule.

IMM-001 addresses the substantive presidential-immunity rule directly by proposing a constitutional amendment to eliminate criminal immunity for presidential official acts. JUD-009 is distinct: it addresses who may adjudicate cases involving an appointing president, not the substantive immunity rule itself. The proposals are neither mutually inclusive nor mutually exclusive. IMM-001 could eliminate or narrow immunity while JUD-009 protects legitimacy in the adjudication of presidential cases; JUD-009 could also remain useful even if immunity doctrine changes because recusal questions would still arise in cases involving presidential authority, records, privilege, election status, or personal exposure.

The project has not resolved whether official-capacity presidential cases should trigger mandatory recusal, presumptive recusal, written explanation, internal review by nonchallenged Justices, or a narrower mechanism. That question should remain open until contributors and qualified reviewers develop a fuller doctrinal formulation.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted amendment to federal recusal law. It should not adjudicate whether any judge acted improperly in a past case. It should create prospective, neutral, administrable reassignment rules.

## Repair and Prevention

Congress should amend 28 U.S.C. § 455 or enact a related provision establishing a tiered appointer-president rule:

1. **Tier 1 — mandatory recusal for personal-interest cases.** The appointing president is an individual-capacity party, criminal defendant, or directly interested actor.
2. **Tier 2 — mandatory recusal for core official-authority cases.** The appointing president is an official-capacity party and the case materially concerns that president's own powers, duties, immunity, privilege, records obligations, emergency authority, removal authority, election status, or compliance with legal limits.
3. **Tier 3 — rebuttable recusal for broader official-capacity cases.** The appointing president is a named official-capacity party, but the case may be routine, agency-focused, or fully redressable without the president as a necessary party.

The legislation should include anti-gamesmanship and severability language so narrower tiers survive if broader official-capacity coverage is held invalid or overbroad.

## Proposed Legislation

- Appointer-President Recusal Act

## Relationship to Adjacent Proposals

- **JUD-001** concerns executive dependence of judicial enforcement.
- **JUD-002** is retired as merged into JUD-001, which now addresses inadequate remedies for executive noncompliance through civil-contempt and executive-compliance tools.
- **JUD-003**, **JUD-004**, and **JUD-006** are retired as merged into JUD-001, which now addresses delay, independent-enforcement fallback design, and contempt uncertainty.
- **JUD-009** concerns judicial recusal and reassignment where the appointing president is a party or has a direct institutional or personal stake.
- **IMM-001** addresses substantive presidential criminal immunity. JUD-009 and IMM-001 are independently operable but mutually reinforcing.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 77 / 100 (Review Ready)  
**Adoption Score:** 5 / 12 (Limited Adoption Basis)  
**Adoption Friction:** 82 / 100 (Extreme Resistance)  
**Required Electoral Environment:** sixty-vote-senate  
**Development Priority:** active

—  
**Audit Status:** T4 publication-ready audit complete; external validation pending  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** JUD-009 audit history

## Annotation

**Quality Score.** The proposal is scored at 77 / 100 after T4 because it uses the correct statutory hook, has a coherent tiered remedy, includes anti-gamesmanship and severability protections, is supported by recusal doctrine and official ethics sources, and has a close prior-proposal family in Supreme Court ethics and recusal legislation. It is not publication-ready because it still needs external legal review, primary docket/source substitution for all examples, local assignment-rule review, and final constitutional scrutiny of congressional control over reassignment.

**Adoption Score.** Adoption is scored at 5 / 12 because the proposal has a clear amendment vehicle, prospective neutral framing, official ethics-source support, a staged Tier 1-first pathway, and a close prior-proposal family. It still lacks proposal-specific polling, sponsor base, direct appointer-president bill, external reviewer, or bipartisan coalition evidence.

**Adoption Friction.** Friction is extreme because the proposal regulates judicial assignment and recusal in presidential-party litigation, will likely draw separation-of-powers and judge-shopping objections, may be criticized as targeting cases involving President Trump unless the neutral prospective framing is carefully maintained, and analogous Supreme Court ethics legislation advanced on a party-line committee vote.

**Required Electoral Environment.** Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints. Future refinement should test staged alternatives, including Tier 1-only mandatory recusal, Judicial Conference study or reporting, local-rule models, or disclosure/reassignment guidance.

**Judicial-Scrutiny Note.** Tier 1 is the strongest form because it covers personal-interest proceedings. Tier 2 is plausible if limited to proceedings materially concerning the appointing president's own powers, duties, privilege, immunity, records obligations, election status, or compliance with legal limits. Tier 3 is the highest-risk tier and should remain rebuttable, written-findings-based, and protected by severability.

**Neutrality.** The rule applies regardless of party, president, appointing administration, ideology, judge, litigant, or expected outcome.

**No Finding of Actual Bias.** The issue is institutional legitimacy and administrability, not proof that an appointee judge is actually biased.

**Examples Not Findings.** Concrete examples, including Judge Cannon's assignment in matters related to President Trump, are included as manifestations of appearance and legitimacy concerns, not as findings of misconduct, bias, or legal error beyond what was determined by

reviewing courts.

**Severability.** The tiered structure is intentional. If a court rejects broad official-capacity coverage, narrower personal-party and core-authority coverage should remain in force.

**Source Development Pending.** Further source development should review 28 U.S.C. § 455, federal judicial recusal doctrine, Code of Conduct guidance, assignment and reassignment procedures, constitutional limits on congressional regulation of judicial procedure, and examples of presidential-party litigation before appointee judges.

## JUD-009 — Audit History

This file preserves the full audit history for JUD-009. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

#### 2026-06-28 — T4 Publication-Ready Audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 77 / 100 (Review Ready)

**Scope:** Autonomous T4 publication-ready audit under `../../../../framework/AGENT_OPERATING_RULES.md`. Reviewed T1 through T3 findings, the issue page, linked bill, source hierarchy, prior-proposal comparators, adoption friction, current-status risk, issue-to-legislation alignment, budgetary impact, and remaining external-validation needs.

**Current-status and mootness check:** T4 did not identify any current law, judicial decision, or rule change making JUD-009 moot. The proposal remains prospective and addresses a gap not covered by current § 455 text, the Code of Conduct for United States Judges, or the Supreme Court Code of Conduct.

**Prior-proposal finding:** T4 identified a close but not identical prior-proposal family: the Supreme Court Ethics, Recusal, and Transparency Act. Public reporting described the Senate Judiciary Committee advancing that bill on an 11-10 party-line vote in 2023. See Axios, July 20, 2023. The comparator supports statutory recusal and ethics reform as a legislative category, but it is not a direct appointer-president analogue and it confirms high adoption resistance.

**Source hierarchy finding:** JUD-009 now has an official statutory hook for 28 U.S.C. § 455, readable secondary reproductions for leading Supreme Court recusal cases, official judiciary ethics sources, and secondary reporting for Cannon-related manifestations and prior ethics legislation. Before public release, T4 follow-up should replace or supplement secondary sources with official court orders, appellate opinions, bill text, committee records, and docket materials where available.

**Issue-to-legislation alignment:** No human-review discrepancy was found. The issue page and bill remain aligned on the tiered appointer-president recusal structure, anti-gamesmanship, neutral reassignment, waiver limits, no-inference-of-bias language, relationship to other recusal law, and severability.

#### Component score estimate:

| Component                  | Score           |
|----------------------------|-----------------|
| Structural diagnosis       | 8 / 8           |
| Evidence and sourcing      | 10 / 12         |
| Legal fit                  | 8 / 10          |
| Prior proposal grounding   | 5 / 8           |
| Remedy design              | 10 / 12         |
| Implementation feasibility | 6 / 8           |
| Abuse resistance           | 6 / 8           |
| Drafting quality           | 8 / 8           |
| Cogency                    | 6 / 6           |
| Adoption basis             | 5 / 12          |
| Project integration        | 4 / 4           |
| External review            | 0 / 4           |
| Penalties                  | 0               |
| <b>Total</b>               | <b>77 / 100</b> |

**Adoption and pathway assessment:** Adoption Score increases to 5 / 12 (Limited Adoption Basis). Adoption Friction increases to 82 / 100 (Extreme Resistance) because analogous Supreme Court ethics and recusal legislation advanced on a party-line committee vote and because JUD-009 regulates judicial assignment in presidential-party litigation. Required Electoral Environment remains **sixty-vote-senate**; Pathway Viability remains **plausible-after-wave**; Development Priority remains **active**; Pathway Adjustment remains **stage**.

**Budgetary and implementation findings:** The budgetary impact statement remains appropriate. No direct appropriation is specified. Implementation burden is primarily administrative reassignment workload, especially in small districts, emergency matters, related-case assignments, three-judge courts, multidistrict litigation, or matters where many judges share the same appointing president.

**Publication-readiness blockers:** JUD-009 is Review Ready but not publication-ready. Remaining blockers are qualified legal or legislative-counsel review; primary source substitution for Cannon-related examples; official bill and committee-record support for prior ethics/recusal legislation; local assignment-rule review; small-court and emergency-matter implementation analysis; and final constitutional scrutiny of congressional regulation of recusal and reassignment.

**Corrections made:** Updated issue-page score, audit status, adoption score, adoption friction, annotation, audit history, legislation notes, source inventory, audit inventory, and dashboard row.

**Audit Process Feedback:** T4 confirms that direct-prior-proposal analysis should distinguish close family resemblance from direct analogy. Supreme Court ethics legislation supports statutory recusal reform generally, but it should not be overstated as support for the specific appointer-president category.

## 2026-06-28 — T3 Readiness Audit

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

**Proposal-quality score:** 74 / 100 (Substantially Developed Draft)

**Scope:** Autonomous T3 readiness audit under . . . / . . . / framework/AGENT\_OPERATING\_RULES.md. Rechecked T2 findings, official judiciary ethics sources, issue-to-legislation alignment, current-status risk, implementation and assignment-administration risks, adoption friction, and publication-readiness blockers.

**Current-status check:** T3 did not identify a current development making JUD-009 moot. The absence of an appointer-president category in 28 U.S.C. § 455 remains the central gap.

**Official ethics-source findings:** The official Code of Conduct for United States Judges and the Supreme Court's Code of Conduct for Justices both use appearance, public-confidence, and disqualification concepts. Neither creates an appointer-president rule. These sources support the proposal's gap analysis while also cautioning that statutory design must respect the duty to sit, rule-of-necessity concerns, and neutral assignment administration.

**Judicial-scrutiny finding:** T3 confirms that Tier 1 is the strongest component, Tier 2 is plausible if tightly tied to the appointing president's own powers or legal obligations, and Tier 3 remains the highest-risk component. A T4 audit should consider whether Tier 3 should be narrowed, converted into a study or reporting requirement, or left as a severable rebuttable presumption.

**Issue-to-legislation alignment:** No human-review discrepancy was found. The issue page and bill remain aligned on the three-tier model, anti-gamesmanship, neutral reassignment, waiver limits, no-inference-of-bias language, relationship to other recusal law, and severability.

### Component score estimate:

| Component                  | Score           |
|----------------------------|-----------------|
| Structural diagnosis       | 8 / 8           |
| Evidence and sourcing      | 10 / 12         |
| Legal fit                  | 8 / 10          |
| Prior proposal grounding   | 4 / 8           |
| Remedy design              | 10 / 12         |
| Implementation feasibility | 6 / 8           |
| Abuse resistance           | 6 / 8           |
| Drafting quality           | 7 / 8           |
| Cogency                    | 6 / 6           |
| Adoption basis             | 4 / 12          |
| Project integration        | 4 / 4           |
| External review            | 0 / 4           |
| Penalties                  | 0               |
| <b>Total</b>               | <b>74 / 100</b> |

**Adoption and pathway assessment:** Adoption Score increases to 4 / 12 (Limited Adoption Basis). Adoption Friction increases to 80 / 100 (High Resistance) because official ethics materials support appearance concerns but also emphasize duty-to-sit and rule-of-necessity concerns. Required Electoral Environment remains ~~sixty-vote-senate~~; Pathway Viability remains ~~plausible-after-wave~~; Development Priority remains ~~active~~; Pathway Adjustment remains ~~stage~~.

**Budgetary and implementation findings:** T3 still identifies no direct appropriation requirement. The main implementation burden is reassignment administration, especially in small districts, emergency matters, multi-district proceedings, or cases where many judges share the same appointing president.

**Unresolved findings for T4:** Complete direct-prior-proposal survey, including Supreme Court ethics and recusal bills; identify primary appellate source for the Mar-a-Lago special-master reversal; verify post-dismissal special-counsel-report litigation against primary docket sources if available; review local assignment rules and small-court implementation; consider narrowing or staging Tier 3; and seek qualified legal or legislative-counsel review.

**Audit Process Feedback:** JUD-009 demonstrates that official ethics sources can support a proposal while simultaneously increasing implementation cautions. Future audits should score both effects rather than treating any supportive source as purely score-positive.

## 2026-06-28 — T2 Development Audit

**Audit status:** T2 development audit complete; T3 readiness audit pending

**Proposal-quality score:** 68 / 100 (Substantially Developed Draft)

**Scope:** Autonomous T2 development audit under `../../../../framework/AGENT_OPERATING_RULES.md`. Reviewed the issue page, linked bill, audit history, dashboard, audit inventory, source inventory, existing-law hook, recusal doctrine, anti-gamesmanship design, severability, budgetary-impact statement, adoption fields, and issue-to-legislation alignment.

**Current-status check:** T2 did not identify a current development making JUD-009 moot. Existing federal recusal law still does not contain a specific appointer-president recusal category, and the proposal remains prospective.

**Existing-law and legal-fit findings:** The proposal correctly amends 28 U.S.C. § 455, the federal judicial disqualification statute. This satisfies the project preference for amending existing law before creating a new regime.

**Recusal doctrine findings:** T2 found support for appearance-based recusal, but also for a narrow and administrable design. *Liteky v. United States* cautions that judicial rulings, remarks, and case-management conduct ordinarily do not establish recusal under § 455(a), supporting JUD-009's decision not to make disagreement with rulings the trigger. *Liljeberg v. Health Services Acquisition Corp.* supports the importance of public confidence and appearance-based enforcement under § 455(a). *Caperton v. A.T. Massey Coal Co.* recognizes a due-process recusal requirement under extreme probability-of-bias facts, while also showing that constitutional recusal doctrine is narrow. These sources support Tier 1 and a carefully defined Tier 2 more strongly than broad Tier 3 coverage.

**Issue-to-legislation alignment:** No human-review discrepancy was found at T2. The issue page and bill both use a three-tier model, anti-gamesmanship language, neutral reassignment, waiver limits for mandatory tiers, no-inference-of-bias language, relationship-to-other-law language, and severability.

### Component score estimate:

| Component                  | Score           |
|----------------------------|-----------------|
| Structural diagnosis       | 8 / 8           |
| Evidence and sourcing      | 8 / 12          |
| Legal fit                  | 7 / 10          |
| Prior proposal grounding   | 3 / 8           |
| Remedy design              | 9 / 12          |
| Implementation feasibility | 5 / 8           |
| Abuse resistance           | 6 / 8           |
| Drafting quality           | 7 / 8           |
| Cogency                    | 6 / 6           |
| Adoption basis             | 3 / 12          |
| Project integration        | 4 / 4           |
| External review            | 0 / 4           |
| Penalties                  | 0               |
| <b>Total</b>               | <b>68 / 100</b> |

**Adoption and pathway assessment:** Adoption Score increases to 3 / 12 (Weak Adoption Basis). Adoption Friction remains 78 / 100 (High Resistance). Required Electoral Environment remains ~~sixty-vote-senate~~; Pathway Viability remains ~~plausible-after-wave~~; Development Priority remains ~~active~~; Pathway Adjustment remains ~~stage~~.

**Budgetary and implementation findings:** T2 did not identify a direct appropriation requirement. Likely impact remains administrative reassignment workload. T3 should review case-assignment procedures, Judicial Conference guidance, local rules, multidistrict or multi-judge court implications, and whether Tier 1-only staging would meaningfully reduce implementation resistance.

**Unresolved findings for T3:** T3 should review Code of Conduct and Judicial Conference materials; identify official assignment and reassignment sources where possible; seek primary Eleventh Circuit support for the Mar-a-Lago special-master reversal; source-check the post-dismissal special-counsel-report example; survey prior recusal or Supreme Court-ethics legislation; test local-rule or Judicial Conference pathways; and refine Tier 3 to avoid judge-shopping.

**Audit Process Feedback:** JUD-009 shows why T2 should distinguish appearance legitimacy from actual-bias allegations. Future audits should preserve the no-actual-bias framing whenever a proposal uses real judicial examples to support prospective recusal rules.

## 2026-06-28 — T1 Framework Check

**Audit status:** T1 framework check complete; T2 source and judicial-scrutiny audit pending

**Proposal-quality score:** 60

**Scope:** Autonomous batch pilot unit for JUD-009 under `../../../../framework/AGENT_OPERATING_RULES.md`. Checked the issue page, linked legislation, audit-history file, dashboard row, audit inventory, source inventory, basic current-status risk,

budgetary-impact presence, source placement for real-world examples, issue-to-legislation alignment, and enactment-pathway fields.

**Current-status check:** T1 did not identify any current development that makes JUD-009 moot. The issue remains live because existing federal recusal law does not contain a specific appointer-president category and the linked proposal is prospective.

**Existing-law finding:** The linked bill follows the project preference for amending existing law before creating a new regime. It amends 28 U.S.C. § 455, the existing federal judicial disqualification statute.

**Issue-to-legislation alignment:** No human-review discrepancy was found at T1. The issue page describes a three-tier appointer-president recusal model with anti-gamesmanship and severability protections, and the bill contains corresponding provisions.

**Corrections made:** Updated issue-page audit metadata and Proposal Scoring fields to the current framework; replaced the key LII link to 28 U.S.C. § 455 with the official U.S. Code source; added visible citations for the concrete Cannon-related examples; added adoption score, adoption friction, required electoral environment, pathway viability, development priority, and pathway adjustment; updated `audits.csv`, `sources.csv`, and the Audit Dashboard.

**Score effect:** Score remains 60. T1 confirmed structure and pathway fields but did not perform a full formula rebaseline. Rebaseline remains **hard-rebaseline-needed** until the next T2, T3, or T4 audit recalculates the score under the current rubric.

**Adoption and pathway assessment:** Adoption Score is 2 / 12 (Weak Adoption Basis). Adoption Friction is 78 / 100 (High Resistance). Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Development Priority is **active**; Pathway Adjustment is **stage**.

**Unresolved findings for T2:** T2 should source-check federal recusal doctrine, 28 U.S.C. § 455 legislative fit, Code of Conduct guidance, Judicial Conference authority, district and circuit assignment rules, Caperton/Tumey/Williams/Liljeberg-style due-process and appearance doctrine, anti-gamesmanship design, severability, and constitutional limits on congressional regulation of judicial assignment. T2 should also test whether Tier 1 alone, Tier 1 plus Tier 2, or a Judicial Conference/local-rule pathway would improve durability and adoption viability.

**Audit Process Feedback:** T1 was adequate for framework alignment, citation placement, and pathway setup. The main process lesson is that autonomous T1 checks should scan issue pages for uncited real-world examples, because JUD-009 had substantive examples without visible source links even though the proposal structure itself was clear.

## **2026-06-24 — Initial framework and inventory audit**

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.



## A-05 — Presidential Clemency and Pardon Power

### Generalized Institutional Concern

The pardon power lacks adequate safeguards against use for personal protection, political reward, obstruction, corruption, self-enrichment, or circumvention of ordinary justice processes, while the professional review process remains advisory and avoidable.

### Issues

- **PAR-001** — Personal or political benefit \_(status: Candidate; priority: Medium)\_
- **PAR-002** — Obstruction or witness inducement \_(status: Candidate; priority: Medium)\_
- **PAR-003** — Sale, brokerage, or monetization of pardons \_(status: Candidate; priority: Medium)\_
- **PAR-004** — Pardons benefiting the president or presidential interests \_(status: Candidate; priority: Medium)\_
- **PAR-005** — Self-pardon uncertainty \_(status: Candidate; priority: Medium)\_
- **PAR-006** — Bypass of professional clemency review \_(status: Candidate; priority: Medium)\_
- **PAR-007** — Inadequate transparency \_(status: Candidate; priority: Medium)\_
- **PAR-008** — Blanket or categorical pardons \_(status: Candidate; priority: Medium)\_
- **PAR-009** — Transition-period pardons \_(status: Candidate; priority: Medium)\_
- **PAR-010** — Weak remedies after corrupt use \_(status: Candidate; priority: Medium)\_

### Notes

Provisional inventory; full source development pending.

## A-06 — Presidential Conflicts of Interest and Emoluments

### Generalized Institutional Concern

The constitutional and statutory framework does not adequately prevent a president from retaining financial interests that may receive benefits from foreign, federal, state, or private actors seeking influence.

#### Issues

- **EMOL-001** — Lack of mandatory divestment \_(status: Candidate; priority: Medium)\_
- **EMOL-002** — Presidential exemption from ordinary conflict-of-interest law \_(status: Candidate; priority: Medium)\_
- **EMOL-003** — Absence of a designated enforcement institution \_(status: Candidate; priority: Medium)\_
- **EMOL-004** — Standing barriers \_(status: Candidate; priority: Medium)\_
- **EMOL-005** — Uncertainty over the meaning of emolument \_(status: Candidate; priority: Medium)\_
- **EMOL-006** — Benefits routed through business entities \_(status: Candidate; priority: Medium)\_
- **EMOL-007** — Foreign-government patronage \_(status: Candidate; priority: Medium)\_
- **EMOL-008** — Domestic-government spending at presidential businesses \_(status: Candidate; priority: Medium)\_
- **EMOL-009** — Inadequate financial disclosure \_(status: Candidate; priority: Medium)\_
- **EMOL-010** — Lack of an operational congressional-consent process \_(status: Candidate; priority: Medium)\_
- **EMOL-011** — Remedies that arrive too late \_(status: Candidate; priority: Medium)\_
- **EMOL-012** — Lack of effective disgorgement \_(status: Candidate; priority: Medium)\_
- **EMOL-013** — Circumvention through family or affiliated entities \_(status: Candidate; priority: Medium)\_
- **EMOL-014** — Dependence on impeachment or political restraint \_(status: Candidate; priority: Medium)\_
- **EMOL-015** — Executive Self-Litigation and Settlement Conflicts \_(status: Developed; priority: High)\_

#### Notes

EMOL-015 is developed as a conflict-of-interest and settlement-authority proposal. The President is expressly included in the proposed coverage and is not excluded by title, office, or implication.

Other EMOL issues remain provisional inventory pending full source development.

# EMOL-015 — Executive Self-Litigation and Settlement Conflicts

## Issue Snapshot

**Problem:** Officials can sue agencies they influence.

**Repair:** Control claims and defer conflicted payments.

**Vehicle:** Federal conflict statute (draft).

## Institutional Anomaly

Federal conflict-of-interest law does not clearly prevent the President, Vice President, or another senior executive official from personally litigating against an executive agency, office, officer, employee, fund, account, or payment authority subject to that official's own supervision or practical executive-branch influence while the official remains in power.

## Manifestation of the Failure

### *Personal claims against supervised agencies*

The conflict arises when a covered executive official brings, maintains, settles, compromises, or receives payment on a personal-capacity civil claim against the United States or an executive entity the official can influence. The ordinary litigation caption may suggest adverseness, but the official may retain practical influence over defense strategy, settlement posture, agency cooperation, payment timing, records access, or public explanation.

The proposal should not permit evasion by caption. A suit styled as official-capacity litigation should remain outside the restriction only when it is exercised solely on behalf of the United States or the office and does not practically confer personal financial, legal, reputational, reimbursement, indemnification, settlement, or affiliated-entity benefit on the official.

### *President Trump's tax-information suit*

President Trump sued the Internal Revenue Service and Treasury Department in January 2026, seeking damages for alleged unlawful disclosure of tax information. Public reporting describes the claim as arising from disclosure of his tax information by former IRS contractor Charles Littlejohn. See Associated Press. Later reporting described a proposed settlement structure connected to an "Anti-Weaponization Fund" or "slush fund" controversy. See Axios and Axios. The underlying legal claims and settlement posture require further source development and should not be treated as finally adjudicated.

### *Litigation as payment pathway*

The structural risk is not limited to one lawsuit. Litigation and settlement authority can convert a disputed personal claim into a lawful-looking payment pathway. If executive officials functionally control both the claimant side and the defense or payment side, ordinary appropriations discipline, adversarial testing, and public accountability may be weakened.

## Resulting Damage

Conflicted self-litigation can create personal financial benefit for officials, distort DOJ or agency settlement decisions, undermine public confidence in executive neutrality, route public money through weakly adversarial settlements, and allow class-like compensation funds to be created without express congressional authorization.

## Underlying Weakness

Existing payment and settlement statutes assume genuine adverseness or an independently valid claim process. The Judgment Fund pays certain final judgments, awards, and compromise settlements under 31 U.S.C. § 1304. DOJ settlement authority and payment mechanics also depend on statutory channels such as 28 U.S.C. § 2414. Tax-return confidentiality law supplies a private damages remedy for certain unlawful inspections or disclosures. See 26 U.S.C. § 7431.

Those statutes do not clearly answer what should happen when the plaintiff is the sitting President or another official who supervises the defendant agency, the defending officials, or the payment authority.

The Vice President presents a related loophole. The Vice President may not formally supervise most agencies in the same way as the President or an agency head, but may still have substantial executive-branch influence, White House access, administration alignment, or practical ability to affect defense, settlement, payment, or public posture. The proposal should therefore cover the Vice President expressly rather than depending only on formal supervisory authority.

## Proposal Survey

Representative prior and adjacent models include the Judgment Fund's statutory payment limitations, DOJ compromise-settlement authority, ordinary conflict-of-interest principles, and congressional power to condition appropriations. Rep. Jamie Raskin's reported NO CARTE BLANCHE Act is a direct incident-specific comparator because it responds to the reported "Anti-Weaponization Fund," but the ARRP remedy is broader: it targets the structural self-litigation and settlement-conflict pathway rather than only one fund or one administration.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is a federal statute that preserves covered claims, permits neutral claim maintenance and evidence preservation, allows court-permitted liability adjudication in narrow cases of demonstrated legitimate injury, and generally defers damages, payment, settlement, offset, indemnification, reimbursement, and fund mechanics until after the conflicted tenure ends.

The statute should toll limitations periods so the claim is preserved, not destroyed. It should also prevent an unfair "resign first" remedy where a covered official suffered legitimate injury from an adverse actor before assuming office or from conduct outside the official's control. The President and Vice President must not be excluded by title, office, or implication.

## Repair and Prevention

The remedy should:

- permit docketing, preservation, neutral investigation, and limited claim maintenance while the official holds the conflicted office;
- allow a court to permit liability adjudication on clear and convincing evidence of legitimate injury and substantial injustice from continued deferral;
- permit narrowly tailored injunctive relief to stop ongoing or imminent harm without awarding money or settlement benefit;
- require damages, payment, settlement, offset, indemnification, reimbursement, and fund mechanics to be bifurcated and deferred until post-office absent heightened findings;
- toll limitations periods and litigation deadlines during the restricted period;
- prohibit settlement, compromise, confession, payment, offset, dismissal with prejudice, or Judgment Fund use while the conflict exists;
- prevent official-capacity labels from shielding claims that practically confer personal or affiliated benefit;
- bar settlement-created compensation funds for politically defined or affiliated beneficiary classes absent express statutory authorization;
- require congressional notice for any attempted covered resolution; and
- preserve ordinary post-tenure litigation after the official no longer controls the relevant executive entity or payment authority.

## Proposed Legislation

- Executive Self-Litigation and Settlement Conflict Act

## Relationship to Adjacent Proposals

DOJ-002 owns White House or political-appointee influence over particular criminal matters. EMOL-015 instead owns personal-capacity civil claims by executive officials against entities they supervise.

DOJ-003 owns politically selective charging, declination, and prosecutorial favoritism. EMOL-015 concerns personal financial or legal benefit through civil litigation and settlement machinery.

A-11 owns broader power-of-the-purse and impoundment problems. EMOL-015 should cross-reference A-11 because the remedy limits Judgment Fund and agency-payment pathways, but the primary defect is executive self-dealing and conflict of interest.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 60 / 100 (Developed Draft)

**Adoption Score:** 3 / 12 (Weak Adoption Basis)

**Adoption Friction:** 80 / 100 (High Resistance)

**Required Electoral Environment:** sixty-vote-senate

**Development Priority:** active

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**Audit Status:** Initial developed draft; T1 framework check pending

**Last Audit:** Initial development

**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** hard-rebaseline-needed

**Next Audit:** T1 framework check

**Full Audit History:** EMOL-015 audit history

## Annotation

**Basis and Evidence.** The current source record supports the existence of President Trump's tax-information lawsuit, the statutory background for tax-return confidentiality claims, and the reported political dispute over an Anti-Weaponization Fund. The project has not yet completed a T1 or T2 audit of docket posture, settlement mechanics, Raskin bill text, Judgment Fund availability, or DOJ/Treasury payment authority.

**Qualification.** This proposal does not assume that a sitting President or executive official lacks a valid underlying claim. It addresses the separate institutional conflict created when the claimant controls, supervises, or can influence the defendant agency, defense officials, settlement authority, or payment authority. The preferred remedy preserves post-tenure access to court.

**President Included.** The President is expressly included. The proposal should not permit an argument that the President is excluded because ordinary conflict-of-interest statutes sometimes exempt the President or because Article II gives the President supervisory authority over the executive branch.

**Vice President Included.** The Vice President is also expressly included. Coverage should not depend solely on formal agency-supervision doctrine because the Vice President may exercise practical influence through White House channels, administration alignment, litigation strategy access, settlement pressure, or payment-routing influence.

**Anti-Evasion.** Official-capacity litigation remains available when the official acts solely on behalf of the United States or the office. But the operative question should be functional, not caption-based. A claim should remain covered if its practical effect is personal benefit to the official or an affiliated person or entity.

**Judicial Scrutiny.** The strongest design is controlled claim preservation plus tolling, not claim extinguishment. A court-permitted liability-adjudication exception reduces due-process and access-to-courts objections where the injury appears legitimate, preexisting, or caused by an adverse actor outside the official's control. Bifurcating damages and payment until post-office addresses the remaining non-adversarial problem because liability can be tested without allowing the official to receive money, settlement leverage, offsets, indemnification, reimbursement, or a compensation fund while still able to influence the executive branch. Narrow injunctive relief remains available to stop ongoing or imminent harm, but should be framed as harm containment rather than personal compensation. T1/T2 should test Article II objections, separation-of-powers limits, standing, sovereign immunity, Judgment Fund doctrine, and whether the injunctive-relief exception needs additional limits.

**Budgetary Impact.** The proposal creates no new office and specifies no appropriation. Administrative workload may arise from restriction motions, congressional notices, certification, and payment screening. No dollar estimate is assigned because no CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source has been identified for this proposal.

**Quality Score.** The 60/100 score is a placeholder Developed Draft score because the issue has a basic proposal framework and linked draft legislation but has not yet received a T1 framework check, T2 source audit, existing-law fit audit, prior-proposal review, or judicial-scrutiny audit.

**Adoption Score.** The 3/12 score is weak because the proposal has a clear statutory vehicle and a timely source predicate, but it lacks sponsor mapping, committee posture, proposal-specific polling, bipartisan validator support, direct prior bill text comparison, or external legal review.

**Adoption Friction.** The 80/100 score is high because the proposal directly constrains presidential and senior executive personal litigation benefits, limits settlement discretion, affects Judgment Fund and agency payment practices, and would likely draw Article II, access-to-courts, and partisan-retaliation objections.

**Required Electoral Environment.** Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints unless attached to a broader ethics, appropriations, Judgment Fund, or post-crisis institutional-repair vehicle.

**Development Priority.** The priority is *active* because the issue identifies a distinct conflict-of-interest pathway, has a current source predicate, and may supply a broader structural complement to incident-specific anti-slush-fund legislation.

## EMOL-015 — Audit History

This file preserves the full audit history for EMOL-015. The issue page keeps only the compact Proposal Scoring summary.

### 2026-06-28 — Initial Development

**Audit scope:** Initial issue development only. This was not a T1 framework check or formula audit.

**Development finding:** EMOL-015 was created as a developed proposal because the issue identifies a distinct institutional weakness and includes a linked draft federal statute. The proposal addresses personal-capacity civil claims by the President or other covered executive officials against executive entities, officers, employees, funds, accounts, or payment authorities subject to their supervision.

**Coverage finding:** The President is expressly included in the proposed statutory coverage and issue-page analysis. Later clarification also expressly included the Vice President. The draft is intended to avoid any implication that the President or Vice President is excluded from the legislation by title, office, or formal-supervision doctrine.

**Score basis:** Initial placeholder score is 60/100 because the page has a basic proposal framework and linked draft legislation but has not yet undergone T1, source verification, existing-law fit review, prior-proposal comparison, judicial-scrutiny analysis, or proposal-to-legislation consistency audit.

**Next audit need:** Run T1 framework check. Prioritize issue-admission fit, source inventory, Raskin bill text verification, docket posture, Judgment Fund and settlement-authority fit, Article II/access-to-courts concerns, and whether any emergency injunctive-relief exception is necessary.

### 2026-06-28 — Anti-Evasion Clarification

**Change scope:** Targeted substantive clarification to prevent official-capacity labels from defeating EMOL-015 when the practical effect is personal or affiliated benefit.

**Defects corrected:** Updated the issue page and draft legislation to clarify that ordinary official-capacity litigation remains outside the restriction only when exercised solely on behalf of the United States or the office. Added a functional anti-evasion rule for claims, requests, or proceedings that are styled as official-capacity litigation but practically confer personal financial, legal, reputational, reimbursement, indemnification, settlement, or affiliated-entity benefit.

**Score effect:** No score change. The proposal remains at the initial placeholder score of 60/100 pending T1 framework check and formula rebaseline.

**Next audit need:** T1 should test whether the anti-evasion definition is narrow enough to preserve legitimate official-capacity litigation while catching disguised personal-benefit claims.

### 2026-06-28 — Legitimate-Injury Adjudication Exception

**Change scope:** Targeted substantive clarification to avoid reducing a legitimately injured covered official's remedy to resignation or delayed post-tenure litigation.

**Defects corrected:** Revised the issue page and draft legislation so covered claims may be received, docketed, preserved, neutrally investigated, and maintained. Added a court-permitted adjudication exception requiring clear and convincing evidence of legitimate injury, adverse-actor or preexisting-claim posture, substantial injustice from continued deferral, independent adjudicatory control, and continued separation between adjudication and settlement/payment.

**Score effect:** No score change. The proposal remains at the initial placeholder score of 60/100 pending T1 framework check and formula rebaseline.

**Next audit need:** T1 should test whether the adjudication exception is narrow enough to protect legitimate claims while still preventing manufactured adverseness, collusive settlements, Judgment Fund misuse, and settlement-created compensation funds.

### 2026-06-28 — Vice President Coverage Clarification

**Change scope:** Targeted substantive clarification to close a formal-supervision loophole for the Vice President.

**Defects corrected:** Updated the issue page and draft legislation to state that the Vice President is expressly covered and that coverage for the President and Vice President does not depend solely on formal agency-supervision doctrine. Corrected an internal legislative cross-reference from section 4(e) to section 4(f).

**Score effect:** No score change. The proposal remains at the initial placeholder score of 60/100 pending T1 framework check and formula rebaseline.

**Next audit need:** T1 should test whether the Vice President coverage language is constitutionally and practically calibrated, especially where the Vice President has influence but not formal agency command.

## 2026-06-28 — Bifurcated Liability and Damages Clarification

**Change scope:** Targeted substantive clarification to reduce the non-adversarial risk remaining after court-permitted adjudication.

**Defects corrected:** Updated the issue page and draft legislation to make liability adjudication the ordinary permitted phase during covered service, while requiring damages, settlement, compromise, payment, offset, indemnification, reimbursement, and compensation-fund mechanics to be deferred until post-office unless the court makes separate heightened findings.

**Score effect:** No score change. The proposal remains at the initial placeholder score of 60/100 pending T1 framework check and formula rebaseline.

**Next audit need:** T1 should test whether bifurcation is feasible for the likely claim types, including statutory damages claims, equitable claims, declaratory relief, and claims where liability and damages evidence overlap.

## 2026-06-28 — Injunctive-Relief Safety Valve

**Change scope:** Targeted substantive clarification to preserve judicial authority to stop ongoing or imminent harm while a covered official remains in office.

**Defects corrected:** Updated the issue page and draft legislation to permit narrowly tailored injunctive relief when clear and convincing evidence shows ongoing or imminent unlawful harm, ordinary preservation orders are inadequate, and the order can be enforced without conferring monetary, settlement, reimbursement, indemnification, offset, or compensation-fund benefit.

**Score effect:** No score change. The proposal remains at the initial placeholder score of 60/100 pending T1 framework check and formula rebaseline.

**Next audit need:** T1 should test whether the injunctive-relief exception is narrow enough to stop continuing harm without becoming a path to executive self-dealing or judicial management of ordinary executive operations.

## A-07 — Classification, Declassification, and National-Security Information

### Generalized Institutional Concern

The classification system concentrates broad authority within the executive branch while lacking sufficiently clear, enforceable, and independently reviewable procedures governing presidential classification and declassification decisions, documentation, disclosure, retention, and misuse.

#### Issues

- **CLASS-001** — Undocumented presidential declassification \_(status: Candidate; priority: Medium)\_
- **CLASS-002** — Confusion between declassification and lawful possession \_(status: Candidate; priority: Medium)\_
- **CLASS-003** — Unclear statutory exceptions such as Restricted Data \_(status: Candidate; priority: Medium)\_
- **CLASS-004** — Classification used to conceal misconduct or embarrassment \_(status: Candidate; priority: Medium)\_
- **CLASS-005** — Politically selective declassification \_(status: Candidate; priority: Medium)\_
- **CLASS-006** — Inadequate protection against exposure of intelligence sources and methods \_(status: Candidate; priority: Medium)\_
- **CLASS-007** — Weak archival and agency implementation procedures \_(status: Candidate; priority: Medium)\_
- **CLASS-008** — Overclassification and excessive secrecy \_(status: Candidate; priority: Medium)\_
- **CLASS-009** — Insufficient congressional access and oversight \_(status: Candidate; priority: Medium)\_
- **CLASS-010** — Limited external review and judicial remedies \_(status: Candidate; priority: Medium)\_
- **CLASS-011** — Politicized security-clearance authority \_(status: Candidate; priority: Medium)\_
- **CLASS-012** — Inconsistent accountability for unauthorized retention or disclosure \_(status: Candidate; priority: Medium)\_

#### Notes

Provisional inventory; full source development pending.



## A-08 — Civil Service and Professional Administration

### Generalized Institutional Concern

The executive branch retains excessive practical capacity to convert career administration into a loyalty-based workforce through reclassification, removal, reassignment, hiring control, intimidation, and erosion of merit protections.

#### Issues

- **CIV-001** — Political reclassification of career positions \_(status: Candidate; priority: High)\_
- **CIV-002** — Removal or reassignment for disfavored professional judgments \_(status: Candidate; priority: High)\_
- **CIV-003** — Loyalty tests and partisan hiring \_(status: Candidate; priority: High)\_
- **CIV-004** — Weak protection for refusal of unlawful directives \_(status: Candidate; priority: High)\_
- **CIV-005** — Loss of technical and institutional capacity \_(status: Candidate; priority: High)\_
- **CIV-006** — Inadequate and delayed personnel remedies \_(status: Candidate; priority: High)\_
- **CIV-007** — Politicized promotion and performance systems \_(status: Candidate; priority: High)\_
- **CIV-008** — Mass reduction or hollowing of agency capacity \_(status: Candidate; priority: High)\_
- **CIV-009** — Repurposed technical units as cross-agency operational control mechanisms \_(status: Candidate; priority: High)\_

#### Issue Boundaries

- **CIV-001** is the primary home for Schedule F, Schedule Policy/Career, or similar reclassification systems that convert protected career roles into easier-to-remove policy-aligned positions. HOR-011 is integrated into CIV-001 as a source-development manifestation rather than a new issue because the existing candidate already covers political reclassification of career positions. It also supports CIV-002, CIV-003, and CIV-008 where reclassification is used to remove disfavored professional judgment, impose loyalty-aligned hiring or retention, or hollow out agency capacity. Initial source leads include Executive Order 14171, which reinstated and renamed the prior Schedule F framework as Schedule Policy/Career, and public reporting that OPM issued a rule to reclassify roughly 50,000 career employees with weaker job protections. See *The Guardian*, *Trump administration issues rule that makes it easier to fire federal workers*. Future source development should obtain the OPM final rule, Federal Register publication, litigation filings, union challenges, Office of Special Counsel and Merit Systems Protection Board implications, and prior legislation such as the Saving the Civil Service Act.
- **CIV-009** concerns the use of an existing technical, digital-service, temporary, advisory, or White House-linked unit to exercise practical cross-agency control over personnel, data systems, software access, contracts, grants, payments, reductions in force, or agency operations without ordinary appointment, delegation, transparency, privacy, records, procurement, appropriations, and oversight safeguards. The DOGE repurposing of the United States Digital Service is the principal source-development example: Executive Order 14158 renamed the United States Digital Service as the United States DOGE Service, created a temporary DOGE organization, directed agency DOGE teams, and called for access to unclassified agency records, software systems, and IT systems. See Executive Order 14158, 90 Fed. Reg. 8441 (Jan. 29, 2025).

HOR-008 is integrated into CIV-009 as a source-development manifestation rather than a new issue. Public reporting on a DOJ court filing described DOGE access to sensitive Social Security Administration data, alleged improper sharing with an advocacy group seeking evidence of voter fraud or election reversal, possible Hatch Act referrals, and use of an unauthorized third-party server. See *The Guardian*, *DoJ court filing reveals*. The election-purpose allegation overlaps with ELEC-001, but the primary institutional defect remains CIV-009: irregular cross-agency technical control over sensitive systems without ordinary privacy, records, appointment, delegation, and oversight safeguards.

#### Notes

Provisional inventory; full source development pending.

## **A-09 — Inspectors General, Whistleblowers, and Internal Oversight**

### **Generalized Institutional Concern**

Internal watchdogs lack sufficient independence, access, tenure protection, remedial authority, and enforcement capacity to investigate executive misconduct when agency leadership or the president resists.

#### **Issues**

- **OVS-001** — Removal or intimidation of inspectors general \_(status: Candidate; priority: High)\_
- **OVS-002** — Use of acting officials to weaken independence \_(status: Candidate; priority: High)\_
- **OVS-003** — Denial of records, access, or testimony \_(status: Candidate; priority: High)\_
- **OVS-004** — Retaliation against whistleblowers \_(status: Candidate; priority: High)\_
- **OVS-005** — Suppression or delay of reports \_(status: Candidate; priority: High)\_
- **OVS-006** — Inability to enforce recommendations \_(status: Candidate; priority: High)\_
- **OVS-007** — Weak congressional notification and follow-up \_(status: Candidate; priority: High)\_
- **OVS-008** — Insufficient independence of internal ethics offices \_(status: Candidate; priority: High)\_

#### **Notes**

Provisional inventory; full source development pending.

## A-10 — Emergency Powers and Domestic Executive Authority

### Generalized Institutional Concern

Presidents can invoke broadly worded emergency statutes to unlock extraordinary powers without sufficiently demanding findings, narrow scope, firm time limits, recurring legislative approval, or prompt judicial review.

### Issues

- **EMERG-001** — Open-ended national-emergency declarations \_(status: Candidate; priority: High)\_
- **EMERG-002** — Use of emergency authority to redirect appropriated funds \_(status: Candidate; priority: High)\_
- **EMERG-003** — Emergency economic powers used beyond immediate crises \_(status: Candidate; priority: High)\_
- **EMERG-004** — Border or immigration emergency declarations \_(status: Candidate; priority: High)\_
- **EMERG-005** — Weak congressional termination procedures \_(status: Candidate; priority: High)\_
- **EMERG-006** — Indefinite renewal of emergencies \_(status: Candidate; priority: High)\_
- **EMERG-007** — Insufficiently specific factual findings \_(status: Candidate; priority: High)\_
- **EMERG-008** — Delayed or deferential judicial review \_(status: Candidate; priority: High)\_

### Notes

Provisional inventory; full source development pending.

## A-11 — Congressional Power of the Purse and Impoundment

### Generalized Institutional Concern

The executive branch can delay, condition, redirect, or refuse congressionally appropriated spending while available enforcement mechanisms remain too slow, uncertain, or politically dependent.

### Issues

- FUND-001 — Addressing Executive Order Abuse \_(status: Developed; priority: Medium)\_
- FUND-002 — Pocket Rescissions and Strategic Delay \_(status: Candidate; priority: Medium)\_
- **FUND-003** — Agency closure or program nullification through nonpending \_(status: Candidate; priority: Medium)\_
- **FUND-004** — Politically selective withholding of grants or aid \_(status: Candidate; priority: Medium)\_
- **FUND-005** — Reprogramming beyond congressional intent \_(status: Candidate; priority: Medium)\_
- **FUND-006** — Weak standing and remedies \_(status: Candidate; priority: Medium)\_
- **FUND-007** — Insufficient personal accountability \_(status: Candidate; priority: Medium)\_
- **FUND-008** — Inadequate real-time reporting to Congress and GAO \_(status: Candidate; priority: Medium)\_

### Notes

FUND-001 has an initial developed draft. FUND-002 has a candidate issue framework. Remaining FUND issues remain provisional inventory pending full source development.

## FUND-001 — Addressing Executive Order Abuse

### Issue Snapshot

**Problem:** Executive orders can convert unlawful nonexecution into facts on the ground.

**Repair:** Make new and continuing covered directives fiscally inert after repeated unlawful directives.

**Vehicle:** Impoundment Control Act and appropriations-enforcement amendments (draft).

### Institutional Anomaly

Executive orders and presidential memoranda can be lawful tools for supervising the executive branch, coordinating agency action, and implementing statutes. The structural danger arises when executive directives are used to evade Congress, suspend statutory programs, redirect or withhold appropriated funds, condition grants for partisan or ideological purposes, or create operational facts before courts or Congress can respond.

Direct regulation of the President's issuance of executive orders would raise serious Article II and separation-of-powers questions. The more durable statutory hook is Congress's power of the purse. A presidential directive may exist as an internal instruction, but agencies should not be able to use appropriated funds, apportionment authority, grant administration, program execution, or nonspending to implement a pattern of directives that courts or the Comptroller General have already identified as unlawful.

FUND-001 therefore treats repeated unlawful covered executive directives as an appropriations-control problem. The proposal does not nullify executive orders as presidential speech or internal management documents. It makes new covered directives and continuing implementation of lookback-period covered directives temporarily fiscally inert after an objective trigger, unless the implementing agency and OMB identify lawful statutory authority and survive an expedited review path.

### Manifestations of the Failure

#### *Executive-order implementation as de facto lawmaking*

An executive order may purport to reorder spending, program eligibility, enforcement capacity, or grant conditions in ways Congress did not authorize. Even if the order is later held unlawful, agencies may have already frozen funds, delayed benefits, redirected personnel, closed programs, or coerced recipients.

#### *Impoundment by directive rather than by formal rescission or deferral*

The Impoundment Control Act already regulates rescissions and deferrals, but a President may try to achieve similar effects through directives framed as policy review, apportionment management, grant-condition revision, emergency implementation, legal-position review, or agency reorganization. This can turn nonspending into a practical veto of statutory programs.

#### *Repeated unlawful directives without escalating consequence*

Ordinary litigation can stop a single unlawful action, but it may not address a pattern. If several covered executive directives are found unlawful, the legal system has identified a repeat institutional failure. A repeated-failure trigger should not require impeachment before Congress can protect later appropriations from similar abuse.

#### *First-day directives and continuing implementation*

Presidents often issue numerous executive orders at the beginning of a term. A purely prospective trigger would leave first-day directives untouched even if later legal findings reveal a pattern of unlawful directive-based implementation. FUND-001 therefore requires a lookback review for covered directives issued earlier in the same presidential term that continue to affect appropriated funds, statutory programs, grants, benefits, apportionments, or agency operations after the trigger. The lookback mechanism does not retroactively void executive orders or unwind completed actions automatically; it requires continued implementation to be certified, narrowed, paused, or reviewed.

#### *Executive-order volume and judicial-review comparator*

**Important note:** The project would strongly prefer to include metrics evenly across all administrations. This would be an incredibly useful comparison in investigating abuse of executive orders. However, no public-facing source has yet been identified that directly tabulates executive-order-specific unlawfulness across administrations. The currently identified sources instead support narrower comparator tracks: CRS provides nationwide-injunction counts for the first Trump and Biden administrations, AttorneysGeneral.org provides a structured multistate-litigation database with administration and injunction fields, Ballotpedia provides a Biden-era multistate-litigation routing source, and the AP figure provides a second-Trump-administration court-blocking proxy.

The project was able to locate some reliable data tracking nationwide injunctions issued in response to orders across administrations going back to George W. Bush. Therefore, the project provisionally offers nationwide injunctions as a potentially useful analog in analyzing the lawfulness of issued orders.

Injunctions issued during the second Trump administration were not specifically tabulated from available sources. The project intends to tabulate this so that a direct comparison can be made. Until such time, the project treats the data presented as still useful in analyzing this issue. The project will continue to present data for the Trump administration regardless because it still serves as a concrete manifestation of the problem described.

| President           | EO count | Injunction count | Unlawful |
|---------------------|----------|------------------|----------|
| Clinton             | 364      | TBD              | TBD      |
| George W. Bush      | 291      | 12†              | TBD      |
| Obama               | 277      | 19†              | TBD      |
| Trump, first term   | 220      | 86               | TBD      |
| Biden               | 162      | 28               | TBD      |
| Trump, second term* | 267      | TBD              | 70       |

### ***Sources and notes #####***

- \*\_Accessed June 29, 2026; AP proxy as of May 1, 2025\_
- †\_For George W. Bush and Obama, CRS does not provide appendix counts in the reviewed report; the table uses the higher DOJ-cited count reported by CRS. CRS also cites lower Harvard Law Review counts for those administrations.\_
- EO counts come from the Federal Register executive-order disposition tables.
- Injunction counts use CRS appendix counts from Nationwide Injunctions Under the First Trump Administration and the Biden Administration where available. AttorneysGeneral.org's State Lawsuits Database is retained as a structured case-level audit source, with data-collection methods defining the multistate-lawsuit dataset. A June 29, 2026 quick scan of the May 25, 2025 table data identified, among multistate Biden-administration rows, 23 national injunctions issued, 23 local injunctions issued, and 2 pending injunction motions. That figure is not substituted into the table because it is broader than the CRS nationwide-injunction count and still requires case-level normalization. Ballotpedia's Biden multistate-lawsuit tracker is retained as an additional routing source for checking Biden-era injunction and status coding, but it has not yet been normalized into an EO-specific numerator.
- The Trump second-term proxy comes from the Associated Press report Trump's agenda faces courtroom setbacks as Justice Department lawyers struggle to win over judges.

### ***Unified-government oversight collapse***

If the President's party controls Congress or key committees, oversight, appropriations riders, subpoena enforcement, contempt, and impeachment may fail as practical checks. The absence of political enforcement makes neutral, rule-bound, court-accessible appropriations safeguards more important.

### ***Emergency and federalism spillovers***

Emergency powers, disaster aid, infrastructure funds, civil-rights grants, and state-administered programs can be vulnerable to directive-based conditions, delays, or redirections. The same impoundment mechanism can become a tool for coercing states, local governments, universities, contractors, or beneficiaries.

## **Resulting Damage**

Executive-order abuse through impoundment damages Congress's power of the purse, statutory program reliability, federalism, equal administration, and democratic accountability. It lets the executive branch obtain time-sensitive policy results before legality is resolved, burdens states and private parties with emergency litigation, and can make judicial victory incomplete because funding, staffing, deadlines, or institutional capacity have already been disrupted.

## **Underlying Weakness**

Existing law may lack:

- a pattern-based trigger for repeated unlawful executive directives;
- a clear rule that covered directives become fiscally inert as to their scope after the trigger;
- a lookback rule for continuing implementation of earlier covered directives issued in the same presidential term;
- a prohibition on spending, withholding, delaying, apportioning, reprogramming, or conditioning funds to implement a covered directive during the review period;
- OMB-specific duties for apportionment, deferral, and legal-authority certification;
- expedited review for states, congressional institutional plaintiffs, affected recipients, and program beneficiaries;
- a remedy that prevents both spending to implement unlawful directives and nonspending to effectuate them;
- safe-harbor protection for officials who refuse to implement directives that lack statutory authority during the review period.

## Proposal Survey

The existing statutory foundation is the Impoundment Control Act of 1974. Rescission proposals are governed by 2 U.S.C. § 683, and deferrals are governed by 2 U.S.C. § 684. The Comptroller General may bring a civil action to enforce release of budget authority under 2 U.S.C. § 687.

The Supreme Court has rejected presidential nonspending where Congress directed funds to be allotted. In *Train v. City of New York*, the Court held that the executive could not frustrate the will of Congress by allotting less than the statutory formula required. In *Youngstown Sheet & Tube Co. v. Sawyer*, the Court rejected an executive order that lacked statutory or constitutional authority and conflicted with Congress's allocation of power.

The proposal draws from those sources but adds a new pattern-response mechanism. The closest functional analogue is not a legislative veto of executive orders. It is an appropriations rule: after repeated unlawful covered directives, new covered directives and continuing implementation of lookback-period covered directives may not be funded, used to withhold funds, or implemented through apportionment unless lawful authority is publicly certified or expedited review permits implementation.

Lisa Manheim and Kathryn A. Watts's article *Reviewing Presidential Orders* provides an important scholarly frame for this proposal. The article explains that presidents increasingly rely on executive orders and other unilateral written directives to influence agency policymaking, while courts lack a coherent framework for direct review of presidential orders. It also distinguishes the traditional route of challenging agency implementation under administrative-law doctrines from newer direct challenges to presidential orders. FUND-001 uses that distinction by regulating agency implementation and appropriated funds rather than attempting to invalidate presidential orders directly.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is federal legislation amending the Impoundment Control Act and related appropriations-enforcement rules. A constitutional amendment should be reserved only if Congress seeks to directly invalidate executive orders, impose presidential disabilities, or regulate the President's issuance authority rather than agency implementation and appropriated funds.

## Repair and Prevention

Congress should create an **Executive Directive Impoundment Review** regime.

The statute should:

1. define covered executive directives to include executive orders, presidential memoranda, OMB directives, and other presidential or Executive Office instructions that materially affect appropriated funds, statutory program execution, grants, benefits, apportionment, reprogramming, enforcement capacity, or state-administered programs;
2. define trigger findings to include final court judgments, three-judge-court determinations, and Comptroller General findings that a covered directive or covered implementation action was unlawful;
3. activate a temporary review period after a specified number of trigger findings within a defined time window;
4. make new covered directives fiscally inert as to their covered scope during the review period;
5. require lookback review of continuing implementation actions under earlier covered directives issued in the same presidential term;
6. prohibit agencies and OMB from obligating, expending, withholding, delaying, deferring, apportioning, reprogramming, or conditioning funds to implement a covered directive unless the statutory process is satisfied;
7. require a public legal-authority certification from OMB and the implementing agency;
8. provide expedited three-judge-court review and direct appeal;
9. preserve emergency implementation only for narrow, time-limited, certified circumstances;
10. protect officials who decline implementation where the directive lacks required certification or review clearance;
11. preserve ordinary executive orders that do not affect appropriations, statutory program execution, or covered democratic/federalism structures.

## Proposed Legislation

- Executive-Order Abuse Impoundment Control Act

## Relationship to Adjacent Proposals

- **FUND-002** concerns pocket rescissions and strategic delay. FUND-001 owns the repeated-unlawful-directive trigger and fiscal-inertness mechanism.
- **FUND-003** concerns agency closure or program nullification through nonspending.

- **FUND-004** concerns politically selective withholding of grants or aid.
- **EMERG-002** concerns emergency authority used to redirect appropriated funds.
- **CONG-008** concerns partisan collapse of oversight under unified government.
- **FED-003** concerns coercive grant conditions imposed on states or local governments.
- **JUD-001** concerns judicial enforcement after a court has issued an order requiring executive compliance.

## Budgetary Impact Statement

Administrative and litigation workload is likely for OMB, implementing agencies, GAO, congressional committees, and the federal courts. The draft does not create a new benefits program or standing appropriation. Costs would primarily involve certification, reporting, expedited litigation, compliance monitoring, and possible temporary program-continuity administration.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 60 / 100 (Developed Draft)  
**Adoption Score:** 3 / 12 (Weak Adoption Basis)  
**Adoption Friction:** 82 / 100 (Extreme Resistance)  
**Required Electoral Environment:** sixty-vote-senate  
**Development Priority:** active

**Audit Status:** Initial development complete; T1 framework check complete  
**Last Audit:** Initial development and T1 framework check  
**Rubric Version:** 2026-06-27 . 2; **Rebaseline:** current  
**Next Audit:** T2 development audit  
**Full Audit History:** FUND-001 audit history

## Annotation

**Naming.** The issue is named for executive-order abuse, not merely impoundment, because the institutional defect is directive-based executive circumvention. The legal hook remains appropriations and impoundment because direct statutory nullification of executive orders would raise harder constitutional questions.

**No Blanket Nullification.** The proposal does not declare executive orders void. It makes new covered directives, and continuing implementation of lookback-period covered directives, fiscally inert as to their covered scope during a review period. The President may still issue orders; agencies may not use or withhold appropriated funds to implement covered directives without satisfying the statutory process.

**Lookback Review.** The lookback rule addresses first-day or early-term executive orders that are already in force when the trigger occurs. It should apply only to ongoing or future covered implementation actions, not automatically unwind completed acts or vested third-party rights. The draft uses a 30-day inventory deadline, 90-day certification deadline, and 180-day fiscal-inertness backstop for continuing implementation, while blocking new covered implementation under lookback directives unless certified. T2 should test whether those periods are sufficient for agency review, state and grantee reliance interests, expedited litigation, and judicial capacity.

**Objective Trigger.** The trigger should rest on external legal findings, not partisan congressional accusation alone. T2 should test whether final judgments, three-judge-court determinations, preliminary injunctions after merits findings, Comptroller General decisions, or combinations of those findings are the right trigger inputs.

**Appropriations Hook.** The strongest statutory authority is Congress's control over appropriated funds, program terms, apportionment conditions, and agency implementation. The draft should avoid overclaiming Congress's ability to regulate the President's issuance of executive orders directly.

**Emergency Exception Risk.** Any emergency exception must be narrow. A broad exception could swallow the rule by allowing the same administration that triggered review to recast covered directives as urgent program-management decisions.

**Standing and Review.** T2 should test who may sue, whether GAO may initiate enforcement, whether either House or designated congressional officers may sue, and whether states, grantees, beneficiaries, contractors, and program administrators have adequate causes of action.

**Quality Score.** The 60/100 score is an initial development score under rubric 2026-06-27 . 2: Structural 8/8; Evidence 6/12; Legal Fit 6/10; Prior-Proposal 4/8; Remedy 8/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 5/8; Cogency 6/6; Adoption 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. The issue has a coherent statutory hook, issue framework, draft vehicle, neutral executive-order-volume manifestation, a judicial-review comparator scaffold, and a strong scholarly source for the presidential-order review gap, but T2 must verify existing-law fit, GAO enforcement mechanics, statutory standing, Youngstown/Train doctrine, Chadha constraints, OMB apportionment practice, emergency exceptions, implementation burden, public-support evidence, and prior legislative analogues.



**Adoption Friction.** The 82/100 score is Extreme Resistance because the proposal responds to presidential abuse of executive orders, constrains OMB and agency implementation after repeated unlawful conduct, may be opposed by presidents of both parties, and would likely draw separation-of-powers, standing, expedited-review, emergency-authority, and appropriations-process objections.

**Required Electoral Environment.** The required environment is sixty-vote-senate, with Pathway Viability plausible-after-wave and Pathway Adjustment stage. A narrower first stage could focus on appropriations, grant conditions, OMB apportionment, GAO reporting, and expedited review without activating the full pattern-trigger regime.

## FUND-001 — Audit History

This file preserves the full audit history for FUND-001. The issue page keeps only the compact Proposal Scoring summary.

### 2026-06-29 — Initial development and T1 framework check

**Audit type:** Initial development / T1 framework check.

**Audit status:** Initial development complete; T2 development audit needed.

**Score:** 60/100.

**Score basis:** Initial T1 component score: Structural 8/8; Evidence 6/12; Legal Fit 6/10; Prior-Proposal 4/8; Remedy 8/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 5/8; Cogency 6/6; Adoption 3/12; Project Integration 4/4; External Review 0/4; Penalties 0.

**Scope:** Developed FUND-001 from a candidate "Unlawful impoundment" inventory row into an issue page titled "Addressing Executive Order Abuse" with linked draft legislation, the Executive-Order Abuse Impoundment Control Act.

**Framework compliance:** The issue now has an Issue Snapshot, Institutional Anomaly, manifestations, damage theory, underlying weakness, proposal survey, least-complex adequate remedy, repair/prevention section, linked proposed legislation, relationship-to-adjacent-proposals section, Budgetary Impact Statement, Proposal Scoring box, annotation, audit sidecar, dashboard row, inventory rows, and source records.

**Neutral manifestation and comparator added:** Added a Federal Register executive-order count table as a neutral baseline manifestation, with a placeholder column for executive orders or covered implementation actions later found unlawful. The issue uses EO volume only as a signal of reliance on unilateral directives and expressly states that counts alone do not establish abuse. Added a research comparator scaffold at `research/FUND-001-executive-order-judicial-review-comparator.md`; the comparator separates total EO volume from verified legal findings and requires finality, basis-of-unlawfulness, and appropriations-relevance fields before any trigger-credit treatment.

**Legal fit finding:** The initial legal hook is Congress's appropriations power and the Impoundment Control Act, not direct statutory nullification of executive orders. The draft treats later covered directives as fiscally inert as to their covered scope during an Executive Directive Impoundment Review Period unless lawful authority is certified or expedited review clears implementation.

**Remedy design finding:** The trigger concept is promising but still T2-level. The proposal must distinguish lawful executive supervision from unlawful directive-based nonexecution, avoid an unconstitutional legislative veto, preserve Article II functions, define covered directives narrowly, and ensure the trigger rests on objective legal findings.

**Adoption finding:** Adoption Score is 3/12. The proposal has a plausible ordinary federal legislative vehicle and a neutral institutional rationale, but T1 found no proposal-specific polling, sponsor support, prior bill, bipartisan coalition, or external validator. Adoption Friction is 82/100, Extreme Resistance, because the proposal constrains presidential directive implementation, OMB apportionment practice, and agency implementation after repeated unlawful conduct.

**Next audit need:** Run T2 development audit. Verify Impoundment Control Act mechanics, GAO enforcement authority, OMB apportionment rules, Train, Youngstown, Chadha, Franklin, Dalton, standing doctrine, three-judge-court jurisdiction, emergency exceptions, congressional-plaintiff options, state and grantee standing, prior appropriations-rider analogues, Protecting Our Democracy Act or successor bills, Federal Register executive-order-count methodology, executive order judicial review comparator methodology, public-support evidence, and fiscal/administrative burden.

## FUND-002 — Pocket Rescissions and Strategic Delay

### Issue Snapshot

**Problem:** Delay can cancel funds without Congress voting.

**Repair:** Require timely release, anti-expiration safeguards, and fast enforcement.

**Vehicle:** Impoundment Control Act amendments.

### Institutional Anomaly

Congress may appropriate money for a limited period, but the executive branch can sometimes obtain the practical effect of cancellation by delaying obligation, apportionment, award, or distribution until the funds expire or the statutory purpose becomes impossible to accomplish. That can turn time into a substitute veto.

The institutional defect is not ordinary program administration, fraud review, technical grant processing, or lawful rescission proposals. The defect is strategic delay: using the calendar, apportionment, policy review, legal review, grant processing, or late rescission messages to prevent congressionally enacted funds from being used without Congress affirmatively approving cancellation.

### Manifestations of the Failure

#### *Pocket rescissions*

Under the Impoundment Control Act, the President may propose rescission of budget authority, but the funds must remain available unless Congress completes a rescission bill within the statutory period. A pocket rescission attempts to send or maintain a rescission proposal so late in the period of availability that the money expires before Congress can act or before agencies can prudently obligate it.

This creates the same practical effect as a line-item veto or unilateral cancellation while preserving the appearance of a formal rescission process.

#### *Strategic apportionment and obligation delay*

Strategic delay can also occur without a formal rescission message. OMB or agencies may withhold apportionment, slow award decisions, pause grant processing, order legal or policy review, or impose temporary conditions until the remaining obligation period is too short for meaningful implementation.

The Ukraine security-assistance impoundment dispute is a source-development lead for this problem. GAO concluded in 2020 that OMB violated the Impoundment Control Act when it withheld funds for policy reasons. FUND-002 should test how the timing, apportionment, and policy-review features of that dispute illuminate broader anti-delay safeguards.

#### *End-of-year pressure*

The risk is greatest when funds are near expiration, when grant cycles require lead time, when statutory deadlines or seasonal conditions matter, or when recipients cannot restore lost program capacity after a late release. A court order or GAO finding may arrive too late if the relevant fiscal year, obligation window, application period, construction season, benefit period, or staffing cycle has already passed.

### Resulting Damage

Pocket rescissions and strategic delay can:

1. defeat Congress's appropriations decisions without bicameralism and presentment;
2. convert temporary withholding into permanent cancellation;
3. make rescission proposals effective without congressional approval;
4. impair grants, contracts, benefits, foreign assistance, state-administered programs, and statutory implementation deadlines;
5. burden recipients with emergency litigation or administrative uncertainty;
6. make GAO or judicial remedies arrive after practical harm is complete;
7. distort agency planning and procurement; and
8. weaken Congress's power of the purse by making appropriations depend on executive timing choices.

### Underlying Weakness

The Impoundment Control Act regulates rescissions and deferrals, but strategic delay can exploit timing gaps. The statute's 45-day rescission mechanism, apportionment practice, agency obligation cycles, and GAO enforcement may be too slow or under-specified when budget authority is close to expiration.

The key weakness is not only whether funds are formally withheld. It is whether executive delay leaves agencies and recipients with a realistic opportunity to obligate, award, distribute, or use the money for the purpose Congress enacted.

## Proposal Survey

Any FUND-002 proposal should consider several remedy paths before drafting:

**Anti-expiration rule.** Provide that a rescission proposal, deferral, apportionment action, legal review, policy review, or comparable withholding action may not cause budget authority to expire, lapse, or become impracticable to use absent completed congressional rescission legislation.

**Minimum release runway.** Require withheld budget authority to be released with a minimum number of usable days before expiration, adjusted for the type of program, unless Congress enacts a rescission.

**No late rescission effect.** Clarify that a rescission special message submitted too late to permit congressional consideration and meaningful agency obligation cannot suspend availability past the normal expiration date or operate as a pocket cancellation.

**Apportionment transparency.** Require OMB to disclose apportionment footnotes, holds, program-review restrictions, and legal or policy conditions affecting time-limited budget authority.

**Automatic availability extension.** Toll or extend the availability period for funds withheld in violation of the Impoundment Control Act or released too late to permit meaningful obligation.

**Expedited GAO and court review.** Create fast review for near-expiration funds, with mandatory interim release, preservation, escrow, or availability-extension authority where delay itself threatens to defeat the appropriation.

**Recipient and state notice.** Require notice to affected states, grantees, contractors, or beneficiaries when a federal delay threatens a statutory obligation, award, or distribution timeline.

## Least-Complex Adequate Remedy

The likely least-complex adequate remedy is an Impoundment Control Act amendment focused on timing: anti-expiration rules, minimum release runway, apportionment transparency, automatic availability extension for unlawful delay, and expedited review.

FUND-002 should remain distinct from FUND-001. FUND-001 addresses repeated unlawful executive directives and fiscal inertness after a pattern trigger. FUND-002 addresses the simpler and older problem of using delay itself to turn appropriated money into unusable money.

## Repair and Prevention

Future drafting should evaluate whether Congress should:

1. prohibit pocket rescissions by requiring meaningful congressional consideration and meaningful obligation opportunity;
2. require a minimum release runway before funds expire;
3. extend availability for unlawfully withheld or too-late-released funds;
4. require public and congressional disclosure of apportionment holds affecting expiring funds;
5. give GAO rapid access to apportionment and agency timing records;
6. authorize expedited judicial review and interim relief for near-expiration funds;
7. require notice to affected recipients and states; and
8. define when legal review, policy review, grant review, or administrative processing becomes an impoundment or deferral.

## Proposed Legislation

- Pending development.

## Relationship to Adjacent Proposals

FUND-001 owns executive-order abuse through an impoundment-based pattern trigger. FUND-002 owns pocket rescissions and strategic delay even when there is no executive-order pattern trigger.

FUND-003 should own agency closure or program nullification through nonspending where the central tactic is dismantling capacity rather than delaying expiring funds.

FUND-006 should own standing and remedies if the primary issue becomes who can sue and what relief is available. FUND-002 should nevertheless include expedited review and availability-extension concepts if they are necessary to stop delay from mooted the appropriation.

JUD-001 is adjacent where courts issue orders that the executive branch delays or evades. FUND-002 is narrower: it concerns appropriations timing and budget authority.

# Budgetary Impact Statement

No reliable estimate yet. The proposal would likely affect OMB, GAO, agency budget offices, grant administration, and litigation timelines. It may preserve spending Congress already enacted rather than create new program authority.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 0 / 100 (Not Scored)  
**Adoption Friction:** N/A  
**Required Electoral Environment:** N/A  
**Development Priority:** N/A  
—  
**Audit Status:** Pending development; no proposal-quality score assigned  
**Last Audit:** Initial candidate development  
**Rubric Version:** 2026-06-27.1; **Rebaseline:** current-fixed-status  
**Next Audit:** Source-development pass  
**Full Audit History:** FUND-002 audit history

## Annotation

FUND-002 is a candidate issue promoted from A-11 inventory. It receives a proposal-quality score of 0 until source development, existing-law analysis, and a basic legislative framework are complete.

The neutral institutional frame is that a President should not be able to convert delay into cancellation. If Congress appropriates time-limited funds, the executive branch should either execute the appropriation, obtain timely congressional rescission, or face fast release and availability-extension remedies.

## Source Notes

Primary source development should begin with the Impoundment Control Act, 2 U.S.C. §§ 681-688, especially rescission special messages under 2 U.S.C. § 683, deferrals under 2 U.S.C. § 684, and Comptroller General enforcement under 2 U.S.C. § 687. Source development should also include GAO's 2018 pocket-rescission decision, GAO's 2020 Ukraine security-assistance impoundment decision, OMB apportionment practice, relevant appropriations riders, and any recent congressional or judicial treatment of late rescission proposals.

## FUND-002 — Audit History

This file preserves the full audit history for FUND-002. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### **2026-06-29 — *Initial candidate development***

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** FUND-002 was promoted from an A-11 inventory row into a candidate issue page addressing pocket rescissions and strategic delay. The issue is not yet developed into a scored proposal; its current purpose is to preserve the institutional frame that executive delay can convert appropriated funds into unusable funds without congressional rescission.

**Next audit need:** Source-develop the Impoundment Control Act, 2 U.S.C. §§ 681-688, GAO pocket-rescission decisions, GAO Ukraine security-assistance impoundment decision, OMB apportionment practice, expiring-funds law, availability-extension authorities, standing and enforcement routes, and prior congressional proposals addressing pocket rescissions or strategic impoundment delay.

## A-12 — Appointments, Acting Officials, and Senate Confirmation

### Generalized Institutional Concern

The executive can bypass or substantially weaken Senate confirmation through extended acting service, delegation of authority, vacancy manipulation, recess appointments, and reorganization of statutory duties.

#### Issues

- **APPT-001** — Excessive reliance on acting officials \_(status: Candidate; priority: Medium)\_
- **APPT-002** — Evasion of the Federal Vacancies Reform Act \_(status: Candidate; priority: Medium)\_
- **APPT-003** — Delegation around expired acting service \_(status: Candidate; priority: Medium)\_
- **APPT-004** — Installation of insufficiently vetted loyalists \_(status: Candidate; priority: Medium)\_
- **APPT-005** — Removal and replacement of confirmed officers \_(status: Candidate; priority: Medium)\_
- **APPT-006** — Manipulation of office titles and duties \_(status: Candidate; priority: Medium)\_
- **APPT-007** — Weak consequences for unlawful service \_(status: Candidate; priority: Medium)\_
- **APPT-008** — Inadequate transparency concerning succession and authority \_(status: Candidate; priority: Medium)\_

#### Issue Boundaries

- **APPT-006** concerns executive manipulation of statutory office, department, component, or officer titles, duties, and public-facing labels in ways that may blur Congress's enacted office structure, Senate-confirmed role definitions, reporting lines, or legal accountability. Executive Order 14347 is a related source-development example because it authorized use of "Department of War" and "Secretary of War" as secondary titles while acknowledging that statutory references to the Department of Defense and Secretary of Defense remain controlling until changed by law. See Executive Order 14347, 90 Fed. Reg. 43893 (Sept. 10, 2025); 10 U.S.C. § 111. Primary ownership of misleading public-facing terminology or institutional labels belongs to A-18.

#### Notes

Provisional inventory; full source development pending.

## A-13 — Presidential Records, Archives, and Government Information

### Generalized Institutional Concern

Record-preservation rules depend too heavily on executive compliance and lack sufficiently rapid and independent enforcement when records are removed, destroyed, concealed, privatized, or transmitted through unofficial systems.

#### Issues

- **REC-001** — Removal or concealment of presidential records \_(status: Candidate; priority: Medium)\_
- **REC-002** — Destruction or deletion of records \_(status: Candidate; priority: Medium)\_
- **REC-003** — Use of private messaging or unofficial systems \_(status: Candidate; priority: Medium)\_
- **REC-004** — Weak National Archives enforcement authority \_(status: Candidate; priority: Medium)\_
- **REC-005** — Delayed litigation and recovery \_(status: Candidate; priority: Medium)\_
- **REC-006** — Preservation of websites, datasets, and digital records \_(status: Candidate; priority: Medium)\_
- **REC-007** — Ambiguous separation of personal and presidential records \_(status: Candidate; priority: Medium)\_
- **REC-008** — Insufficient transition-period custody controls \_(status: Candidate; priority: Medium)\_

#### Notes

Provisional inventory; full source development pending.



## A-14 — Federal Law-Enforcement and Military Use Inside the United States

### Generalized Institutional Concern

The president retains broad and partially ambiguous authority to deploy federal law-enforcement personnel, the National Guard, or military resources domestically while legal limits and legislative controls may be too weak during political conflict.

### Issues

- **DOM-001** — Overbroad Insurrection Act authority \_(status: Candidate; priority: Medium)\_
- **DOM-002** — Ambiguity in Posse Comitatus limitations \_(status: Candidate; priority: Medium)\_
- **DOM-003** — Federalization of the National Guard over state objection \_(status: Candidate; priority: Medium)\_
- **DOM-004** — Deployment around protests or elections \_(status: Candidate; priority: Medium)\_
- **DOM-005** — Unidentified or inadequately accountable federal forces \_(status: Candidate; priority: Medium)\_
- **DOM-006** — Federal-property authority used as a pretext for broader operations \_(status: Candidate; priority: Medium)\_
- **DOM-007** — Domestic military intelligence activity \_(status: Candidate; priority: Medium)\_
- **DOM-008** — Insufficient expedited judicial review \_(status: Candidate; priority: Medium)\_
- **DOM-009** — Federal Law-Enforcement Surveillance Procurement and Deployment \_(status: Candidate; priority: High)\_

### Notes

Provisional inventory; full source development pending.

# DOM-009 — Federal Law-Enforcement Surveillance Procurement and Deployment

## Issue Snapshot

**Problem:** Opaque surveillance procurement expands enforcement power.

**Repair:** Require transparent, reviewable surveillance safeguards.

**Vehicle:** Pending development.

## Institutional Anomaly

Federal law-enforcement agencies can acquire, fund, test, integrate, and deploy surveillance technologies through procurement, research, pilot programs, contractors, data brokers, and interagency systems faster than ordinary legal safeguards can assess privacy, civil-rights, records, procurement, and oversight consequences.

The issue is not limited to immigration policy. Immigration enforcement is the current manifestation, but the institutional risk is broader: executive law-enforcement capacity can be expanded through opaque technology markets and contractor systems without transparent congressional authorization, public reporting, warrant/legal-process rules, retention limits, civil-rights review, or auditability.

## Manifestation of the Failure

### *Immigration-enforcement surveillance procurement*

In June 2026, reporting on a Mijente, Just Futures Law, and Surveillance Resistance Lab analysis described rapidly expanding ICE and CBP contracts for surveillance technology. The reporting identified AI tools, data brokers, analytics software, social-media scraping, facial recognition, device-extraction tools, drones, sensors, and contractor-operated systems as part of the federal immigration-enforcement surveillance ecosystem. See The Guardian, *'We should be worried': report sheds light on ICE's booming arsenal of hi-tech surveillance tools* (June 24, 2026), and the NoTechForICE source hub.

### *Geofence and location-data searches after Chatrie*

In *Chatrie v. United States*, decided June 29, 2026, the Supreme Court held that police conducted a Fourth Amendment search when they acquired location data from Google because a person has a reasonable expectation of privacy in cell-phone location information. DOM-009 should treat *Chatrie* as an important constitutional baseline for geofence warrants, location-history databases, data-broker access, contractor-mediated location analytics, and procurement of tools that let law-enforcement agencies identify people by place, time, or movement pattern.

The decision strengthens the case that DOM-009 should not be framed only as procurement transparency. A serious remedy likely needs legal-process rules, minimization, retention limits, audit logs, and restrictions on indirect acquisition of location data through vendors or interagency systems.

### *Source-development predicate*

The source trail requires deeper review before legislation is drafted. The next pass should obtain the underlying report, DHS procurement records, ICE and CBP contract records, DHS privacy impact assessments, Inspector General or GAO materials, congressional oversight records, and post-*Chatrie* lower-court and agency guidance on location-data acquisition.

## Existing Overlap

This issue was admitted from HOR-002 as a distinct A-14 candidate rather than merged into existing issues.

- CIV-009 concerns repurposed technical units exercising cross-agency operational control, especially DOGE/USDS-style internal government access. DOM-009 is different because it concerns federal law-enforcement procurement and deployment of surveillance tools.
- DOM-007 concerns domestic military intelligence activity. DOM-009 concerns civilian federal law-enforcement surveillance procurement and contractor-mediated deployment.
- REC-006 concerns preservation of websites, datasets, and digital records. DOM-009 may require records and audit-log safeguards, but records preservation is not the whole remedy.
- FACT-002 concerns removal or suppression of datasets. DOM-009 may use or generate government datasets, but the central issue is surveillance power and procurement governance.
- PRESS-003 may become relevant if surveillance targets journalists, confidential sources, or newsgathering.

## Source-Development Questions

1. What statutes currently authorize ICE, CBP, DHS, DOJ, or other federal law-enforcement agencies to acquire or deploy the relevant technologies?

2. Which tools require warrants, subpoenas, administrative process, consent, immigration-process authority, border-search authority, or no individualized process?
3. Which contracts involve data brokers, contractor-operated analysis, biometric identification, social-media scraping, device extraction, drones, sensors, or automated risk scoring?
4. What privacy impact assessments, system-of-records notices, procurement records, audit logs, retention rules, civil-rights reviews, and Inspector General or GAO reviews already exist?
5. Which safeguards should apply to federal law-enforcement surveillance generally, and which should apply specifically to immigration enforcement, protests, sensitive locations, journalists, or U.S.-person data?
6. After *Chatrie*, how should Congress define warrant, particularity, minimization, notice, suppression, and vendor-access rules for geofence searches, location-history queries, and data-broker acquisition of cell-phone location information?

## Preliminary Remedy Direction

The least-complex adequate remedy may be a federal law-enforcement surveillance procurement and deployment statute rather than a narrow immigration-only bill. A later proposal should evaluate:

1. mandatory public reporting for covered surveillance contracts and pilot programs;
2. pre-deployment privacy, civil-rights, and constitutional-impact assessments;
3. clear legal-process requirements for data acquisition, facial recognition, device extraction, data-broker queries, and biometric matching;
4. retention, minimization, access-control, and audit-log requirements;
5. restrictions on contractor-operated enforcement decision systems;
6. congressional notice for high-risk or high-cost surveillance programs;
7. independent Inspector General, GAO, and civil-rights review;
8. remedies for unlawful acquisition, retention, sharing, or operational use; and
9. special rules for journalists, confidential sources, protests, sensitive locations, and U.S.-person data.

## Horizon Integration Note

HOR-002 was adjudicated on June 25, 2026. The decision was to admit the concern as DOM-009 rather than merge it into CIV-009, DOM-007, REC-006, FACT-002, or PRESS-003. The HOR-002 identifier remains static in the Horizon Scan Log integration log.

*Chatrie v. United States* was added on June 29, 2026 as a Supreme Court source-development update for location-data and geofence-search safeguards.

## Budgetary Impact Statement

Not estimated pending proposal development.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score: 0 / 100** (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

**Audit Status:** Pending development; no proposal-quality score assigned

**Last Audit:** Horizon integration decision

**Rubric Version:** 2026-06-27 . 1; **Rebaseline:** current-fixed-status

**Next Audit:** Source-development pass

**Full Audit History:** DOM-009 audit history

## DOM-009 — Audit History

This file preserves the full audit history for DOM-009. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### **2026-06-25 — *Horizon integration decision***

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** HOR-002 was admitted as a distinct A-14 candidate because federal law-enforcement surveillance procurement and deployment is not fully owned by CIV-009 DOM-007 REC-006 FACT-002 or PRESS-003.

**Next audit need:** Source-develop underlying report, DHS procurement records, privacy impact assessments, system-of-records notices, and existing surveillance oversight proposals before drafting.

## A-15 — Congressional Oversight and Executive Accountability

### Generalized Institutional Concern

Congressional oversight becomes ineffective when subpoenas, testimony demands, document requests, appropriations controls, and contempt mechanisms depend on voluntary executive compliance or partisan congressional will.

### Issues

- **CONG-001** — Weak enforcement of congressional subpoenas \_(status: Candidate; priority: High)\_
- **CONG-002** — Overbroad executive-privilege claims \_(status: Candidate; priority: High)\_
- **CONG-003** — Claims of testimonial immunity \_(status: Candidate; priority: High)\_
- **CONG-004** — Delay through litigation \_(status: Candidate; priority: High)\_
- **CONG-005** — Contempt referrals dependent on DOJ \_(status: Candidate; priority: High)\_
- **CONG-006** — Lack of expedited judicial review \_(status: Candidate; priority: High)\_
- **CONG-007** — Weak committee investigative capacity \_(status: Candidate; priority: High)\_
- **CONG-008** — Partisan collapse of oversight under unified government \_(status: Candidate; priority: High)\_

### Notes

Provisional inventory; full source development pending.

## A-16 — Presidential Immunity and Accountability for Official Misconduct

### Generalized Institutional Concern

The legal system lacks a sufficiently clear, timely, and enforceable framework for holding presidents accountable for criminal, civil, or constitutional misconduct committed while in office or under the asserted mantle of official authority.

### Issues

- IMM-001 — Criminal Immunity for Presidential Official Acts
- **IMM-002** — Civil immunity and remedial gaps \_(status: Candidate; priority: High)\_
- **IMM-003** — Statutes of limitation during presidential tenure \_(status: Candidate; priority: High)\_
- **IMM-004** — Restrictions on evidentiary use of official conduct \_(status: Candidate; priority: High)\_
- **IMM-005** — Delay as de facto immunity \_(status: Candidate; priority: High)\_
- **IMM-006** — Relationship between impeachment and criminal liability \_(status: Candidate; priority: High)\_
- **IMM-007** — Self-protective use of presidential powers \_(status: Candidate; priority: High)\_
- **IMM-008** — Independent investigation and prosecution mechanisms \_(status: Candidate; priority: High)\_

### Ownership and Cross-Reference

IMM-001 is the primary home for substantive reform of presidential criminal immunity, including core powers, presumptive official-act immunity, motive evidence, admissibility of official conduct, impeachment prerequisites, and temporary sitting-President protections.

DOJ-007 owns the independent institutional mechanism for investigation, evidence preservation, prosecution of other persons, and reporting to Congress. The two proposals are independently operable and mutually reinforcing.

IMM-003, IMM-004, IMM-006, and IMM-008 may require later consolidation or narrowing because IMM-001 and DOJ-007 now address portions of their present candidate descriptions. The issue-admission test should be reapplied before separate development.

### Notes

IMM-001 is developed. Remaining issues are provisional and require full source development and overlap review.

# IMM-001 — Criminal Immunity for Presidential Official Acts

## Issue Snapshot

**Problem:** Official-act immunity can bar accountability.

**Repair:** Abolish presidential criminal immunity.

**Vehicle:** Constitutional amendment (draft).

## Institutional Anomaly

Current doctrine grants a former President absolute immunity from criminal prosecution for conduct within the President’s conclusive and preclusive constitutional authority and at least presumptive immunity for other official acts. It also restricts examination of motive, imposes a prosecution burden tied to institutional intrusion, and limits the evidentiary use of protected official conduct. The result may prevent otherwise valid criminal law from reaching conduct undertaken through official authority.

## Manifestation of the Failure

### *Criminal immunity for DOJ communications*

In *Trump v. United States*, 603 U.S. 593 (2024), the Supreme Court held that presidential communications with DOJ concerning investigation and prosecution fall within the President’s exclusive constitutional authority and therefore receive absolute criminal immunity. The Court further held that a former President receives at least presumptive immunity for other official acts, generally prohibited inquiry into motive when classifying conduct, and required the prosecution to overcome immunity by showing that criminal adjudication would not intrude on executive authority.

### *Evidentiary limits on official acts*

The Court also restricted evidentiary use of immune official acts, including testimony and records used to probe presidential conduct or motive. The decision therefore affected not only whether official conduct could be charged, but also whether that conduct could be used to prove criminal intent or contextualize otherwise prosecutable acts.

### *Sham-investigation and oversight gap*

The decision insulated alleged efforts to use DOJ authority to promote sham or pretextual investigations from criminal adjudication, even though the same factual conduct may remain relevant to impeachment, congressional oversight, institutional reform, and the liability of other participants.

## Resulting Damage

The doctrine can place criminal use of official power beyond ordinary judicial accountability, exclude highly probative evidence, reward the use of governmental machinery rather than private means, delay adjudication, and create uncertainty over whether generally applicable or President-specific criminal statutes constrain presidential conduct.

## Underlying Weakness

The Constitution contains no express presidential criminal-immunity clause. The Court derived immunity from separation-of-powers concerns and the need to avoid chilling lawful presidential decisionmaking. Those concerns are legitimate but need not require categorical immunity, presumptive immunity, a prosecutorial burden to prove the absence of institutional intrusion, exclusion of official-act evidence, or a bar on examining motive where criminal intent is an element.

The principal problem is not that every mistaken or abusive policy decision should become criminal. Criminal liability must still depend on a valid criminal statute, all offense elements, proof beyond a reasonable doubt, and ordinary constitutional protections.

## Proposal Survey

Ordinary legislation can define federal crimes, procedures, and limitations periods, but it cannot reliably supersede a constitutional immunity rule announced by the Supreme Court. The controlling modern baseline is *Trump v. United States*, 603 U.S. 593 (2024).

Possible reform models include narrower statutory clarification, impeachment-first accountability, independent screening, or a constitutional amendment. H.J.Res. 193, introduced in the 118th Congress, provides a close constitutional-amendment analogue by proposing that no federal officer, including the President and Vice President, is immune from criminal prosecution solely because the act was within constitutional authority or related to official duties. IMM-001 selects amendment because the defect is constitutional doctrine, while preserving procedural safeguards against partisan or legally deficient prosecutions.

## Least-Complex Adequate Remedy

Adopt a constitutional amendment providing that:

1. neither absolute immunity for conclusive or preclusive presidential authority nor presumptive immunity for other official acts bars criminal accountability;

2. use of a core presidential power may constitute conduct, evidence, or an element of a valid federal offense where all constitutional and statutory requirements are satisfied;
3. criminal liability may arise under either a generally applicable law or a law specifically applicable to federal officers or the President;
4. motive may be considered where intent is an offense element;
5. presidential immunity creates no evidentiary exclusion rule for official communications, testimony, records, or surrounding circumstances;
6. separation-of-powers concerns may support tailored procedural protections but not immunity or a requirement that prosecutors prove the complete absence of institutional intrusion;
7. impeachment and Senate conviction are not prerequisites to criminal prosecution;
8. a sitting President may remain temporarily protected from indictment or trial while in office, with limitations periods tolled; and
9. independent screening and expedited review protect against partisan or legally deficient prosecutions.

## **Repair and Prevention**

The Constitution should expressly abolish both absolute immunity for conclusive or preclusive presidential powers and presumptive immunity for other official acts. Official status, official classification, or the use of a core presidential power should not independently bar criminal investigation, prosecution, adjudication, or punishment.

The amendment should permit examination of motive where intent is legally relevant and should provide that presidential immunity creates no independent evidentiary exclusion rule. Official communications, testimony, records, and surrounding circumstances should remain admissible when otherwise relevant and lawful, subject to executive privilege, classification protections, fair-trial rights, and ordinary evidentiary rules.

Separation-of-powers concerns may justify tailored scheduling, privilege, process, venue, screening, or remedial protections. They should not create immunity or require the prosecution to prove that adjudication presents no danger of institutional intrusion.

The amendment should apply to any valid federal criminal law, whether generally applicable or specifically applicable to federal officers or the President. It should preserve lawful discretion by requiring proof of every element and should not criminalize policy disagreement, good-faith constitutional interpretation, or the lawful exercise of presidential authority standing alone.

## **Implementation Principles**

Implementing legislation should require a prosecutor with lawful and institutionally reliable authority; written certification that the charge rests on a valid federal criminal statute, whether generally applicable or specifically applicable to federal officers or the President; identification of the alleged official and unofficial conduct; expedited pretrial review of privilege, classification, statutory coverage, and tailored separation-of-powers protections without recreating official-act immunity; protection against prosecution based solely on policy disagreement, good-faith constitutional interpretation, or lawful discretionary action; ordinary proof requirements and defendant rights; no immunity-derived exclusion of otherwise admissible official-act evidence; limitations-period tolling during any period in which indictment or trial is barred; and coordination with the independent-investigation mechanism developed under DOJ-007 without making either proposal dependent on adoption of the other.

## **Proposed Constitutional Amendment**

- Presidential Criminal Accountability Amendment

## **Relationship to Adjacent Proposals**

DOJ-007 owns the institutional mechanism for independent investigation, evidence preservation, prosecution of other persons, and reporting to Congress when ordinary executive investigation is unreliable.

IMM-001 owns the substantive rule governing whether a President or former President may claim criminal immunity. The two proposals are independently operable but mutually reinforcing.

## **Budgetary Impact Statement**

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*



## Proposal Scoring

**Proposal Quality Score:** 78 / 100 (Review Ready)  
**Adoption Score:** 2 / 12 (Weak Adoption Basis)  
**Adoption Friction:** 95 / 100 (Extreme Resistance)  
**Required Electoral Environment:** constitutional-amendment-environment  
**Development Priority:** conditional  
—  
**Audit Status:** T4 publication-ready audit complete; external validation pending  
**Last Audit:** T4 publication-ready audit  
**Rubric Version:** 2026-06-27.2; **Rebaseline:** current  
**Next Audit:** External validation / T4 follow-up  
**Full Audit History:** IMM-001 audit history

## Annotation

**Basis and Evidence.** *Trump v. United States* recognized absolute immunity for core presidential powers, presumptive immunity for other official acts, and no immunity for unofficial acts. It also limited motive inquiry, placed an institutional-intrusion burden on prosecution of official acts, and restricted the evidentiary use of immune official conduct.

**Quality Score.** T4 scores the proposal at 78/100 (Review Ready). Component score: Structural 8/8; Evidence 11/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 2/12; Project Integration 4/4; External Review 0/4. The score is current under rubric 2026-06-27.2. Review Ready means ready for knowledgeable external critique, not publication-ready or lawmaker-circulation-ready; Article V strategy, constitutional-law scrutiny, adoption evidence, implementing legislation, and external review remain incomplete.

**Adoption Score.** 2/12 (Weak Adoption Basis). The proposal correctly identifies an Article V pathway and now has a close 118th Congress constitutional-amendment analogue, but T3 did not verify current polling, state-ratification evidence, bipartisan sponsor strategy, or public-support evidence specific to abolishing presidential criminal immunity.

**Prior Proposal Alignment.** T4 verified H.J.Res. 193 as a direct constitutional-amendment analogue with official House text, named sponsorship, multiple co-sponsors, and referral to the House Judiciary Committee. IMM-001 is broader and more implementation-focused because it addresses motive evidence, evidentiary exclusion, tailored separation-of-powers procedures, sitting-President timing, and independent screening rather than only stating a no-immunity rule and self-pardon bar.

**Adoption Friction.** T1 places the proposal at 95/100 (Extreme Resistance). The proposal requires Article V amendment, directly reverses a recent Supreme Court constitutional holding, changes criminal exposure for Presidents and former Presidents, and would require extraordinary cross-party or post-crisis ratification conditions.

**Required Electoral Environment.** The required pathway is constitutional-amendment-environment, with post-crisis-only viability, conditional development priority, and stage as the pathway adjustment. Nearer-term work should focus on public explanation, DOJ-007 coordination, implementing safeguards, and external constitutional-law review rather than ordinary legislative enactment.

**Qualification.** The amendment should not authorize prosecution based solely on controversial policy, lawful use of a constitutional power, or disagreement with a predecessor administration. All offense elements, burdens of proof, privileges, classification rules, and defendant protections remain applicable.

**Remedial Alternatives and Constraints.** Ordinary legislation may clarify statutory coverage but cannot reliably supersede a constitutional immunity rule announced by the Supreme Court. A constitutional amendment is therefore the least-complex durable remedy.

# IMM-001 — Audit History

This file preserves the full audit history for IMM-001. The issue page keeps only the compact Proposal Scoring summary.

## Audit History

### 2026-06-28 — T4 publication-ready audit

**Audit status:** T4 publication-ready audit complete; external validation pending

**Proposal-quality score:** 78

**Component score:** Structural 8/8; Evidence 11/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 2/12; Project Integration 4/4; External Review 0/4. Penalties: 0.

**Scope reviewed:** T4 reviewed the IMM-001 issue page, proposed constitutional amendment, T1/T2/T3 audit history, dashboard row, audit inventory row, source inventory rows, the official Supreme Court PDF for *Trump v. United States*, the official Congress.gov PDF for H.J.Res. 193, the guessed S.4973 Senate bill PDF path, the Congress.gov public API endpoint, Congress.gov search access, Senate press-page access, and the Constitution Annotated links already cited in the proposal page.

**Score basis:** T4 raises the score from 77 to 78 because it completed a deeper official-source check of the direct constitutional-amendment analogue and cleaned up source status. H.J.Res. 193 confirms that IMM-001's constitutional-amendment approach is not merely theoretical: the 118th Congress proposal was introduced by Mr. Morelle, listed many co-sponsors, was referred to the House Judiciary Committee, and proposed no criminal immunity for federal officers including the President and Vice President on the sole ground that the alleged act was within constitutional authority or related to official duties. The score remains Review Ready rather than publication-ready because external constitutional-law or legislative-counsel review, Article V adoption strategy, implementation-legislation drafting, and official-source confirmation of any Senate statutory analogue remain incomplete.

**Current-status and mootness check:** No reliable current source reviewed during T4 made IMM-001 moot, superseded, paused, or structurally obsolete. *Trump v. United States* remains the controlling Supreme Court doctrine, and a constitutional amendment remains the durable pathway if the project seeks to supersede official-act criminal immunity.

**Pending-judicial-vulnerability check:** T4 did not identify a pending controlling case that eliminates the need for IMM-001. Future audits should still refresh presidential-immunity and separation-of-powers dockets because related doctrine can affect implementing legislation, evidentiary provisions, and DOJ-007 coordination even if it cannot by itself ratify or defeat a constitutional amendment.

**Source checks and limitations:** T4 live-verified the official Congress.gov H.J.Res. 193 PDF and the official Supreme Court PDF for *Trump v. United States*. The Constitution Annotated Article I, Article II, and Article V pages returned 403 from the audit environment, so those source rows remain only partially reviewed until direct page access can be confirmed outside the blocked environment. The Congress.gov public API required an API key, Congress.gov search returned a Cloudflare challenge, the guessed S.4973 PDF path returned 404, and the tested Senate press-page URL resolved to a 404 page; no No Kings Act or Senate statutory-analogue credit was awarded.

**Issue-to-amendment consistency check:** The issue page and proposed amendment remain aligned on the core vehicle, covered actor, substantive no-immunity rule, no immunity-derived evidentiary exclusion, motive relevance where intent is an element, impeachment non-prerequisite, sitting-President timing/tolling option, congressional implementation authority, neutrality across administrations, and coordination with DOJ-007. No substantive discrepancy requiring human review was found.

**Budgetary-impact check:** The issue page and amendment page both state that no direct appropriation is anticipated for the amendment itself and that implementing legislation may have costs, followed by the required ARRP fiscal disclaimer. T4 did not add a dollar estimate because the amendment itself does not require a direct appropriation and no official fiscal score or implementation bill exists.

**Adoption and opposition analysis:** Adoption Score remains 2/12 and Adoption Friction remains 95/100. The proposal has a verified direct constitutional-amendment analogue, but T4 did not locate proposal-specific polling, a plausible bipartisan ratification strategy, state-level adoption evidence, current sponsor coalition evidence, or qualified external validation sufficient to increase adoption credit. Opposition risk remains extreme because Article V ratification, presidential criminal exposure, recent Supreme Court doctrine, and partisan salience would require extraordinary cross-party or post-crisis conditions.

**Unresolved findings:** External constitutional-law or legislative-counsel review is still needed. Future T4 follow-up should verify any successor to H.J.Res. 193, locate the correct official source for any No Kings Act or Senate analogue if it exists, develop implementation legislation, test Section 6's sitting-President option against OLC and constitutional sources, test Section 4's evidentiary language against privilege/classification/fair-trial concerns, develop Article V adoption and ratification strategy, and coordinate with DOJ-007 so independent-investigation design and immunity reform remain modular rather than duplicative.

**Audit process feedback:** T4 confirms that direct PDF retrieval and text extraction are more reliable than search-page scraping for congressional materials in this environment. Future publication-ready audits should treat Cloudflare/API-key failures as access limitations, not as negative proof that a bill or source does not exist.

### 2026-06-28 — T3 readiness audit

**Audit status:** T3 readiness audit complete; T4 publication-ready audit pending

#### **Proposal-quality score: 77**

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 2/12; Project Integration 4/4; External Review 0/4. Penalties: 0.

**Score basis:** T3 raises IMM-001 to Review Ready after verifying H.J.Res. 193 as a close official constitutional-amendment analogue and confirming that IMM-001's amendment text is aligned with the issue's theory. The proposal remains not publication-ready because Article V viability, constitutional-law scrutiny, adoption evidence, implementation legislation, and external review remain incomplete.

**Current-status and mootness check:** No mootness, pause, or controlling superseding event identified. *Trump v. United States* remains the controlling source, and H.J.Res. 193 confirms that constitutional-amendment reform is an actual prior-proposal pathway rather than a purely theoretical remedy.

**Sources checked:** T3 verified the official GovInfo and Congress.gov PDF paths for H.J.Res. 193, extracted the first pages, and confirmed that the proposal would deny immunity to federal officers including the President and Vice President when the claimed basis is constitutional authority or official duties. T3 also verified that the guessed S.4973 No Kings Act lead was not accessible as tested and did not use it for scoring credit.

**Defects corrected during audit:** Added H.J.Res. 193 to the issue Proposal Survey, updated quality and adoption scores, added prior-proposal alignment annotation, updated the audit inventory and dashboard row, and added the source inventory record.

**Unresolved findings:** T4 should compare IMM-001 section-by-section against H.J.Res. 193; confirm H.J.Res. 193's sponsorship, co-sponsorship, committee status, and whether a successor proposal exists; search for official Senate statutory analogues such as the No Kings Act by correct bill number; test IMM-001's sitting-President and evidentiary provisions with constitutional-law sources; develop Article V adoption analysis; and obtain qualified constitutional-law or legislative-counsel review.

**Audit process feedback:** T3 materially improved the score by finding the official constitutional-amendment analogue. Future searches should prefer guessed bill-PDF patterns only as leads and should verify by extracting text before assigning credit.

#### **2026-06-28 — T2 development audit**

**Audit status:** T2 development audit complete; T3 readiness audit pending

#### **Proposal-quality score: 73**

**Component score:** Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior Proposal 4/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 1/12; Project Integration 4/4; External Review 0/4. Penalties: 0.

**Score basis:** T2 completed the first current-rubric component rebaseline. The proposal is a substantially developed constitutional-amendment draft with strong source support for the doctrinal problem and strong drafting alignment, but it remains below Review Ready because prior-proposal research, adoption evidence, Article V strategy, constitutional-law scrutiny, and external review remain incomplete.

**Current-status and mootness check:** No mootness, pause, or controlling superseding event identified. The official *Trump v. United States* opinion remains the controlling Supreme Court source. A constitutional amendment remains the least-complex durable remedy because ordinary legislation cannot reliably supersede a constitutional immunity rule.

**Sources checked:** T2 downloaded and text-checked the official Supreme Court PDF for *Trump v. United States*. The opinion supports the issue's claims concerning absolute immunity for conclusive and preclusive powers, presumptive immunity for official acts, no immunity for unofficial acts, and restrictions on motive inquiry. T2 attempted to verify official-source leads for President Biden's 2024 "No One Is Above the Law" proposal but the tested White House and archived White House URLs did not resolve; no prior-proposal credit was awarded for those leads.

**Defects corrected during audit:** Updated issue-page score, audit status, quality-score and adoption-score annotations, audit inventory, dashboard row, and official-source posture.

**Unresolved findings:** T3 should verify pinpoint page references in *Trump v. United States*; locate official records for prior constitutional-amendment or statutory proposals responding to presidential immunity; test whether the amendment text creates unintended exposure for good-faith official acts; develop Article V adoption analysis; compare IMM-001 to DOJ-007; and assess whether implementing legislation should be drafted separately.

**Audit process feedback:** T2 was source-efficient because the official Supreme Court PDF directly supported the core legal claims. The main bottleneck was locating official prior-proposal materials; future audits should search direct bill PDFs, committee pages, and archived White House pages before assigning prior-proposal credit.

#### **2026-06-28 — T1 framework check**

**Audit status:** T1 framework check complete; T2 development audit pending

#### **Proposal-quality score: 60**

**Score basis:** Score held at 60 pending T2 component rebaseline under rubric 2026-06-27.2. T1 confirmed the developed issue page, linked constitutional amendment, budgetary-impact statement, relationship to DOJ-007, and constitutional-amendment vehicle. T1 assigned adoption pathway and friction fields and replaced the issue-page secondary *Trump v. United States* citation with the official

Supreme Court PDF.

**Current-status and mootness check:** No mootness or pause condition identified. *Trump v. United States* remains the controlling modern doctrine and makes the constitutional-amendment pathway necessary if the project seeks to supersede the immunity rule.

**Pathway finding:** Required Electoral Environment is **constitutional-amendment-environment**; Pathway Viability is **post-crisis-only**; Development Priority is **conditional**; Pathway Adjustment is **stage**.

**Adoption friction:** 95/100 (Extreme Resistance). Article V ratification, reversal of a recent Supreme Court constitutional holding, presidential criminal exposure, partisan salience, and separation-of-powers concerns create extreme adoption resistance.

**Defects corrected during audit:** Updated issue-page audit metadata, visible Proposal Scoring fields, pathway/friction annotations, citation to the official Supreme Court PDF, dashboard row, and audit inventory row.

**Unresolved findings:** T2 should calculate the full current-rubric component score, verify pinpoint support in *Trump v. United States*, assess amendment text against Article V and separation-of-powers objections, compare prior amendment or statutory accountability proposals, develop adoption evidence, and cross-check IMM-001 against DOJ-007.

**Audit process feedback:** T1 was adequate for pathway classification and source cleanup. The next meaningful score change requires T2 formula rebaseline and constitutional-law source development.

### **2026-06-24 — Initial framework and inventory audit**

**Audit status:** Structural audit complete; advanced audits pending

**Proposal-quality score:** 60

**Score basis:** Issue has a developed page and linked legislation path, and has passed current structural inventory review; source, legal-fit, prior-proposal, and adoption audits remain incomplete.

**Next audit need:** Complete source verification, existing-law fit, prior-proposal survey, political-language neutrality, coalition-appeal, and implementation-risk audits.

## A-17 — Independent Agencies and Regulatory Neutrality

### Generalized Institutional Concern

The constitutional and statutory position of independent agencies is increasingly unstable, while presidential control over removal, enforcement, adjudication, funding, and rulemaking may compromise functions intended to operate with some insulation from immediate partisan command.

#### Issues

- **REG-001** — Erosion of Removal Protections for Independent Agencies \_(status: Candidate; priority: High)\_
- **REG-002** — Politicized enforcement or nonenforcement \_(status: Candidate; priority: Medium)\_
- **REG-003** — Control of administrative adjudication \_(status: Candidate; priority: Medium)\_
- **REG-004** — Suspension or dismantling of agency operations \_(status: Candidate; priority: Medium)\_
- **REG-005** — Manipulation of commissions through vacancies \_(status: Candidate; priority: Medium)\_
- **REG-006** — Presidential control of rulemaking and legal positions \_(status: Candidate; priority: Medium)\_
- **REG-007** — Threats to independent funding \_(status: Candidate; priority: Medium)\_
- **REG-008** — Unclear constitutional design options after recent doctrine \_(status: Candidate; priority: Medium)\_

#### Issue Boundaries

- REG-001 is the primary home for *Trump v. Slaughter* and the erosion of statutory for-cause removal protections for independent multimember agencies. The opinion should be read alongside *Trump v. Cook*, which preserved a narrower Federal Reserve-specific interim protection lane grounded in central-bank history and statutory pretermination process.

#### Notes

REG-001 was promoted from a README-only candidate into a dedicated horizon issue after *Trump v. Slaughter*. Remaining issues are provisional inventory; full source development pending.

# REG-001 — Erosion of Removal Protections for Independent Agencies

## Issue Snapshot

**Problem:** Independent-agency removal protection is unstable.

**Repair:** Redesign agency functions before reaching Article V.

**Vehicle:** Statutory agency redesign, with constitutional amendment reserve.

## Institutional Anomaly

Congress has often structured multimember regulatory agencies with for-cause removal protections, bipartisan membership limits, staggered terms, adjudicatory functions, and independent funding or procedural safeguards. Those protections are meant to support regulatory neutrality, expertise, adjudicatory fairness, and continuity across administrations.

After recent removal-power doctrine, statutory for-cause removal protection may no longer provide a durable constitutional basis for insulating many independent agencies from immediate presidential control. If the President can remove commissioners at will, independent-agency design must rely on different safeguards or a different constitutional vehicle.

## Manifestation of the Failure

### *Trump v. Slaughter and FTC removal protection*

In *Trump v. Slaughter*, decided June 29, 2026, the Supreme Court held that the Federal Trade Commission's for-cause removal provision, 15 U.S.C. § 41, violates the separation of powers. REG-001 should treat *Slaughter* as the primary source lead for the modern independent-agency removal-protection problem.

The decision squarely affects the FTC and likely affects other multimember agencies that exercise executive power through enforcement, rulemaking, investigation, adjudication, or litigation authority. Source development should identify which agencies remain meaningfully distinguishable and which are now structurally exposed.

### *Federal Reserve distinction after Trump v. Cook*

In *Trump v. Cook*, decided the same day, the Court denied the Government's stay application concerning attempted removal of Federal Reserve Governor Lisa Cook. The Court treated the Federal Reserve as historically distinct and emphasized statutory pretermination process.

REG-001 should cross-reference A-21/FRB for the Federal Reserve-specific track. The REG-001 question is broader: what remains of ordinary independent multimember agency protection after *Slaughter*.

## Resulting Damage

Erosion of removal protection can:

1. make regulatory enforcement and adjudication more responsive to immediate presidential preference;
2. weaken bipartisan, staggered-term, and expertise-based agency design;
3. invite rapid replacement of commissioners after changes in administration or policy conflict;
4. compromise perceived neutrality in adjudication, licensing, enforcement, merger review, election regulation, communications regulation, labor regulation, securities regulation, and consumer protection;
5. destabilize reliance interests for regulated parties, states, workers, consumers, investors, and competitors;
6. increase pressure on commissioners to align enforcement or rulemaking with presidential demands; and
7. force reformers to choose between weaker ordinary statutory safeguards and more difficult constitutional or structural alternatives.

## Underlying Weakness

For-cause removal protection was the conventional statutory tool for independent-agency insulation. *Slaughter* makes that tool constitutionally unreliable for agencies exercising substantial executive power. Other design features, including staggered terms, bipartisan balance, decisional procedures, congressional reporting, funding design, adjudicatory separation, transparency duties, and cause-definition rules, may mitigate politicization but may not substitute for removal protection.

REG-001 should therefore assess what independence safeguards remain legally available, whether any agencies are distinguishable from the FTC, and whether Congress can redesign agency functions to preserve meaningful independence without requiring a constitutional amendment. A constitutional amendment should remain a backup only if statutory redesign cannot preserve the relevant institutional function.

## Proposal Survey

Any REG-001 proposal should consider several remedy paths before drafting:

**Agency-by-agency triage.** Identify affected independent agencies, their removal provisions, functions, enforcement powers, adjudicatory powers, funding structures, and historical analogues.

**Procedural independence safeguards.** Consider written-removal reasons, public notice, congressional notice, transition periods, decisional recusal rules, and record-preservation duties that may survive even if removal itself is at will.

**Adjudicatory separation.** Evaluate whether agency adjudication needs stronger internal separation, ALJ protections, appellate review, or transfer to Article III or Article I adjudicatory structures.

**Functional redesign of agency authority.** Assess whether Congress could preserve a more independent FTC-style body by changing what the agency does. Options may include separating investigation and prosecution from adjudication, moving enforcement litigation to DOJ while preserving independent expert adjudication or market-study functions, narrowing rulemaking authority, converting some decisions into recommendations subject to judicial or executive action, or creating separate bodies for competition policy research, administrative adjudication, and enforcement.

**Funding and operational continuity.** Evaluate whether appropriations, fee funding, quorum rules, vacancy rules, and term-staggering can reduce disruption without unconstitutional removal insulation.

**Unitary-executive package.** Evaluate whether REG-001 should be part of a broader executive-power constitutional amendment rather than a standalone amendment. Removal protection, independent investigation, presidential immunity, executive-order abuse, adjudicatory independence, and administrative neutrality may share a common Article II obstacle and may be better addressed through one carefully integrated amendment package.

**Constitutional amendment backup.** Preserve a constitutional-amendment option only if statutory redesign cannot adequately protect the needed independence. An amendment could authorize Congress to create specified independent agencies with limited removal protection, but it should not displace a narrower redesign remedy unless source development shows that ordinary legislation is inadequate.

**Federal Reserve carveout.** Keep Federal Reserve issues primarily in A-21/FRB while using *Cook* as a comparator for any historically grounded exception or process-based safeguard.

## Least-Complex Adequate Remedy

The likely least-complex adequate remedy is statutory functional redesign: redefine the FTC or comparable agency's role and authority so that independent features attach to functions more plausibly compatible with insulation, while enforcement, prosecution, or other executive functions are routed through constitutionally safer channels.

REG-001 should begin with source development after *Slaughter*, including agency-by-agency exposure analysis, functional-redesign options, and non-removal safeguards. A first-stage remedy should test whether Congress can preserve meaningful regulatory neutrality by separating adjudicatory, expert, market-study, rule-recommendation, and enforcement functions rather than relying on for-cause removal protection for officers exercising substantial executive power.

Non-removal safeguards should remain part of the ordinary statutory package: written removal notices, congressional reporting, continuity rules, records preservation, protection of pending adjudications, and expedited review of collateral statutory issues. A constitutional amendment should remain a reserve remedy if the project concludes that statutory redesign and mitigation cannot preserve the needed independence. If the reserve amendment becomes necessary, the review should apply the project's unitary-executive consolidation principle: if multiple issues stem from the same Article II theory, a single amendment package may be preferable to isolated issue-by-issue amendments.

## Repair and Prevention

Future drafting should evaluate whether Congress should:

1. inventory independent-agency removal provisions affected by *Slaughter*;
2. require public written reasons and congressional notice for removal of commissioners;
3. protect pending adjudications and enforcement matters from immediate political substitution;
4. redefine FTC or comparable agency authority by separating enforcement, rulemaking, adjudication, market research, and recommendation functions where separation would preserve lawful independence;
5. strengthen internal adjudicatory independence and review procedures;
6. adjust quorum, vacancy, holdover, and term-staggering rules to reduce abrupt capture;
7. preserve agency records and decisional explanations during leadership changes;
8. develop agency-specific statutory mitigations where removal protection is unavailable; and
9. preserve a constitutional-amendment backup only if functional redesign and ordinary statutory safeguards are inadequate.

## Proposed Legislation

- Pending development.

## Relationship to Adjacent Proposals

A-17 owns *Trump v. Slaughter* and the general independent-agency removal-protection problem.

A-21 / FRB owns Federal Reserve-specific independence, including *Trump v. Cook*, attempted removal of Federal Reserve governors, central-bank history, and monetary-policy independence.

DOJ-007 and other DOJ issues may cite *Slaughter* as background removal-power doctrine, but they should not be the primary home for the FTC decision.

REG-002 and REG-006 may become relevant where removal power is used to control enforcement, nonenforcement, rulemaking, or agency legal positions.

## Budgetary Impact Statement

No reliable estimate yet. Agency-by-agency review, reporting, adjudicatory safeguards, continuity rules, and litigation may require administrative resources, but no appropriation estimate should be assigned until a specific proposal exists.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 0 / 100 (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

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**Audit Status:** Pending development; no proposal-quality score assigned

**Last Audit:** Horizon update after *Trump v. Slaughter*

**Rubric Version:** 2026-06-27.1; **Rebaseline:** current-fixed-status

**Next Audit:** Source-development pass

**Full Audit History:** REG-001 audit history

## Annotation

REG-001 is a candidate issue promoted from A-17 inventory after *Trump v. Slaughter*. It receives a proposal-quality score of 0 until a basic proposal framework is developed.

The issue is not premised on opposition to a strong executive. The concern is executive-power accumulation that corrodes Congress's statutory design, weakens independent adjudication or expertise, and turns presidential control into a means of evading ordinary checks and balances.

The neutral institutional frame is that Congress and the public need to know which independent-agency safeguards remain available after *Slaughter*, what risks follow from at-will removal of commissioners, and whether redefining agency role and authority can preserve regulatory neutrality without a constitutional amendment. The preferred path is statutory redesign if it is legally and functionally adequate; amendment should remain a backup.

## Source Notes

Primary source development should begin with *Trump v. Slaughter*, *Trump v. Cook*, *Humphrey's Executor*, *Seila Law*, *Free Enterprise Fund*, *Morrison v. Olson*, agency organic statutes, removal provisions for major independent agencies, FTC Act enforcement, rulemaking, adjudication, and market-study authorities, and existing scholarship or congressional proposals on independent-agency design after unitary-executive doctrine.



## REG-001 — Audit History

This file preserves the full audit history for REG-001. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### 2026-06-29 — *Horizon update after Trump v. Slaughter*

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** REG-001 was promoted from an A-17 README-only candidate into a dedicated horizon issue after the Supreme Court decided *Trump v. Slaughter*, holding the FTC's for-cause removal provision unconstitutional. The issue is not yet developed into a proposal; its current purpose is to make A-17/REG-001 the primary home for the FTC removal-protection decision and to preserve source-development questions about independent-agency design after *Slaughter*.

**Next audit need:** Source-develop *Trump v. Slaughter*, *Trump v. Cook*, *Humphrey's Executor*, *Seila Law*, *Free Enterprise Fund*, *Morrison v. Olson*, affected agency organic statutes, commission removal provisions, adjudicatory-separation options, non-removal statutory safeguards, and whether durable independent-agency protection requires a constitutional amendment.

# A-18 — Government Information, Scientific, Statistical, and Factual Integrity

## Generalized Institutional Concern

Official information, public-facing government terminology, data, scientific findings, public-health guidance, economic statistics, historical information, and technical assessments remain vulnerable to suppression, alteration, delay, selective publication, political reinterpretation, or misleading presentation that can confuse the public about legal authority, constitutional status, enacted law, or institutional reality.

## Issues

- **FACT-001** — Political review or alteration of scientific reports \_(status: Candidate; priority: High)\_
- **FACT-002** — Removal or suppression of datasets \_(status: Candidate; priority: High)\_
- **FACT-003** — Manipulation of publication schedules \_(status: Candidate; priority: High)\_
- **FACT-004** — Interference with statistical agencies \_(status: Candidate; priority: High)\_
- **FACT-005** — Censorship of agency terminology \_(status: Candidate; priority: High)\_
- **FACT-006** — Suppression of unfavorable findings \_(status: Candidate; priority: High)\_
- **FACT-007** — Political alteration of historical presentation \_(status: Candidate; priority: High)\_
- **FACT-008** — Insufficient independent archival preservation and methodology protection \_(status: Candidate; priority: High)\_
- **FACT-009** — Misleading official terminology, titles, or institutional labels \_(status: Candidate; priority: High)\_

## Issue Boundaries

- **FACT-009** concerns executive or agency use of public-facing terminology, secondary titles, institutional labels, or official communications that may mislead the public about legal authority, constitutional status, enacted law, declared war, statutory office structure, or institutional reality. HOR-005 is integrated here as a source-development example: Executive Order 14347 authorized use of "Department of War" and "Secretary of War" as secondary titles while acknowledging that statutory references to the Department of Defense and Secretary of Defense remain controlling until changed by law. See Executive Order 14347, 90 Fed. Reg. 43893 (Sept. 10, 2025); 10 U.S.C. § 111. This issue should cross-reference A-03 where war-status terminology may confuse public understanding of Congress's constitutional war powers, and APPT-006 where title manipulation blurs statutory office structure or Senate-confirmed role definitions.
- **Relationship to A-24.** A-24 owns civil-rights administration, anti-discrimination enforcement continuity, identity records, federally funded civil-rights conditions, detention classification, and medical-privacy safeguards. A-18 issues should remain in A-18 when the central defect is suppression, deletion, alteration, delay, selective publication, misleading terminology, or manipulation of government information. Cross-link A-24 only when the remedy primarily concerns civil-rights enforcement, identity records, grant conditions, detention classification, privacy, or rights-bearing administrative process.

## Notes

Provisional inventory; full source development pending.

## **A-19 — Federal Contracting, Grants, Licensing, and Regulatory Retaliation**

### **Generalized Institutional Concern**

Presidents and political appointees possess sufficient influence over contracts, grants, licenses, investigations, approvals, and regulatory burdens to reward allies or punish critics without adequately independent review and rapid remedies.

#### **Issues**

- **RET-001** — Politically motivated grant cancellation or withholding \_(status: Candidate; priority: Medium)\_
- **RET-002** — Contracting favoritism or retaliation \_(status: Candidate; priority: Medium)\_
- **RET-003** — Selective regulatory scrutiny \_(status: Candidate; priority: Medium)\_
- **RET-004** — Licensing or approval pressure \_(status: Candidate; priority: Medium)\_
- **RET-005** — Antitrust, tax, or enforcement coercion \_(status: Candidate; priority: Medium)\_
- **RET-006** — Retaliation against universities, law firms, media, or businesses \_(status: Candidate; priority: Medium)\_
- **RET-007** — Security-clearance or access retaliation \_(status: Candidate; priority: Medium)\_
- **RET-008** — Weak emergency remedies and evidentiary transparency \_(status: Candidate; priority: Medium)\_

#### **Notes**

Provisional inventory; full source development pending.

## A-20 — Federalism and Presidential Coercion of States

### Generalized Institutional Concern

The federal government can use funding, enforcement discretion, emergency authority, deployment powers, waivers, and regulatory pressure to coerce state or local governments for partisan or personal purposes.

### Issues

- **FED-001** — Conditioning disaster or infrastructure aid \_(status: Candidate; priority: Medium)\_
- **FED-002** — Selective enforcement against disfavored states \_(status: Candidate; priority: Medium)\_
- **FED-003** — Coercive grant conditions \_(status: Candidate; priority: Medium)\_
- **FED-004** — Federal takeover or displacement of state functions \_(status: Candidate; priority: Medium)\_
- **FED-005** — Deployment of federal forces over state objection \_(status: Candidate; priority: Medium)\_
- **FED-006** — Interference with state election systems \_(status: Candidate; priority: Medium)\_
- **FED-007** — Retaliatory investigations or audits \_(status: Candidate; priority: Medium)\_
- **FED-008** — Abuse of waiver and approval authority \_(status: Candidate; priority: Medium)\_

### Notes

Provisional inventory; full source development pending.

# A-21 — Federal Reserve Independence and Monetary Policy

## Generalized Institutional Concern

The Federal Reserve's operational independence remains vulnerable to presidential pressure, partisan retaliation, appointment manipulation, removal threats, financing pressure, and efforts to subordinate monetary-policy decisions to short-term electoral interests.

### Issues

- **FRB-001** — Presidential pressure on interest-rate and monetary-policy decisions \_(status: Candidate; priority: Critical)\_
- **FRB-002** — Uncertain removal protection for Federal Reserve governors and leadership \_(status: Candidate; priority: High)\_
- **FRB-003** — Politicized appointments and confirmations \_(status: Candidate; priority: High)\_
- **FRB-004** — Manipulation through vacancies \_(status: Candidate; priority: Medium)\_
- **FRB-005** — Threats to financing and operational independence \_(status: Candidate; priority: High)\_
- **FRB-006** — Political retaliation against Federal Reserve officials \_(status: Candidate; priority: High)\_
- **FRB-007** — Pre-election monetary manipulation \_(status: Candidate; priority: Critical)\_
- **FRB-008** — Preservation of accountability alongside instrument independence \_(status: Candidate; priority: High)\_

### Issue Boundaries

- **FRB-002** concerns the legal uncertainty surrounding removal protection for Federal Reserve governors and leadership, including attempted removal, litigation over removal authority, interim reinstatement, and whether statutory or constitutional design adequately protects monetary-policy independence during contested removal disputes. HOR-006 is integrated primarily here: Guardian reporting described Lisa Cook's legal and security expenses after President Trump's attempted removal of her from the Federal Reserve board and temporary judicial reinstatement. The Supreme Court later denied the Government's stay application in *Trump v. Cook*, holding at the interim stage that the Government had not shown likely success on arguments that the President's "for cause" determination was unreviewable, that "cause" imposed only a low bar, or that courts could not protect a Governor's continued service during litigation. The opinion treats Federal Reserve independence as a historically special central-banking arrangement and emphasizes statutory pretermination process. It should be read alongside *Trump v. Slaughter*, which struck down the FTC's for-cause removal protection and therefore makes the Fed-specific rationale especially important. See also The Guardian, *Fed governor Lisa Cook faced \$1.3m in legal and security fees after Trump's bid to fire her* (June 18, 2026).
- **FRB-001** should receive secondary source-development support from HOR-006 only for pressure on interest-rate and monetary-policy decisions. Guardian reporting separately described White House pressure on Jerome Powell and the Federal Reserve while the Fed resisted rate-cut demands. See The Guardian, *Federal Reserve holds interest rates as Trump piles on pressure* (Jan. 28, 2026).
- **FRB-006** should receive secondary source-development support where removal threats, investigations, legal expenses, security expenses, or similar burdens appear to function as retaliation or intimidation against Federal Reserve officials. *Trump v. Cook* is now the primary source lead for the attempted-removal manifestation, while reporting on legal and security expenses remains relevant to retaliation-burden analysis. **FRB-007** should be cross-referenced only if source development ties the pressure to election-cycle monetary manipulation.

### Notes

High-priority systemic-risk area. Full source development and annotation pending.

## A-22 — Freedom and Independence of the Press

### Generalized Institutional Concern

Existing constitutional and statutory safeguards do not adequately prevent presidents and executive officials from using access, investigations, licensing, contracting, regulatory authority, funding, or public intimidation to punish disfavored news organizations, reward favorable coverage, or distort the public factual environment.

### Issues

- **PRESS-001** — Retaliatory denial of access \_(status: Candidate; priority: High)\_
- **PRESS-002** — Selective exclusion from government events and information \_(status: Candidate; priority: High)\_
- **PRESS-003** — Misuse of investigations, subpoenas, surveillance, or source demands \_(status: Candidate; priority: Critical)\_
- **PRESS-004** — Regulatory retaliation \_(status: Candidate; priority: Critical)\_
- **PRESS-005** — Contracting and commercial pressure \_(status: Candidate; priority: High)\_
- **PRESS-006** — Misuse of official power to threaten or punish reporting \_(status: Candidate; priority: High)\_
- **PRESS-007** — Manipulation of the factual record \_(status: Candidate; priority: Critical)\_
- **PRESS-008** — Delegitimization combined with governmental coercive power \_(status: Candidate; priority: High)\_
- **PRESS-009** — Weak protection for confidential sources \_(status: Candidate; priority: High)\_
- **PRESS-010** — Public-broadcasting and funding retaliation \_(status: Candidate; priority: High)\_
- **PRESS-011** — Discriminatory taxation or financial burdens \_(status: Candidate; priority: High)\_
- **PRESS-012** — Lack of rapid remedies for time-sensitive press disputes \_(status: Candidate; priority: High)\_

### Notes

Distinguish protected criticism from governmental coercive or distributive action.

### Source-Development Notes

#### ***PRESS-003 — Misuse of investigations, subpoenas, surveillance, or source demands***

The January 2026 FBI search of Washington Post reporter Hannah Natanson's home should be source-developed under PRESS-003. Reporting states that the search occurred as part of a classified-materials investigation involving a government contractor, that Natanson and the Post were reportedly not targets, and that agents seized journalistic devices and materials. Press-freedom organizations and media observers criticized the search as unusually aggressive, chilling to confidential-source relationships, and threatening to press independence. Treat political motive, intimidation, or retaliation as concerns raised by critics rather than established findings unless later court records, inspector-general materials, congressional findings, or official admissions substantiate them. See The Guardian, January 14, 2026, The Guardian, February 24, 2026, and Associated Press, reporter-subpoena follow-up.

## A-23 — Federal Historic Property and Civic Heritage

### Generalized Institutional Concern

Federal historic buildings, monuments, landscapes, civic spaces, museum-like interiors, and commemorative features remain vulnerable to unilateral executive alteration, demolition, privatized redesign, donor influence, expedited construction, opaque security claims, and weak remedies after irreversible physical change.

### Issues

- **HER-001** — Unilateral alteration or demolition of the White House and other nationally significant federal historic property \_(status: Candidate; priority: High)\_
- **HER-002** — Bypass of historic-preservation, planning, arts-commission, environmental, or public-comment review \_(status: Candidate; priority: High)\_
- **HER-003** — Privately funded or donor-influenced alteration of federal civic property \_(status: Candidate; priority: High)\_
- **HER-004** — Manipulation of planning, preservation, or fine-arts review bodies \_(status: Candidate; priority: Medium)\_
- **HER-005** — Security, emergency, or operational-necessity claims used to evade ordinary civic-heritage safeguards \_(status: Candidate; priority: Medium)\_
- **HER-006** — Removal or alteration of commemorative landscapes, trees, interiors, fixtures, and interpretive features \_(status: Candidate; priority: Medium)\_
- **HER-007** — Insufficient notice, documentation, public review, and congressional consultation before irreversible work \_(status: Candidate; priority: High)\_
- **HER-008** — Weak remedies after demolition, construction, donor expenditure, or physical alteration is substantially complete \_(status: Candidate; priority: High)\_

### Issue Boundaries

- **HER-001** should own the structural question whether a President may unilaterally demolish, substantially alter, or replace nationally significant federal historic property, including the White House, without a more durable approval, review, documentation, and congressional-notice regime.
- **HER-003** should own donor-funded or privately financed alteration of federal civic property and should cross-reference EMOL-series issues where donors have business before the federal government.
- **HER-005** should own security or emergency rationales used to avoid preservation and planning review; broader emergency-powers questions remain in A-10.
- **HER-006** should own removal, obscuring, or alteration of commemorative, interpretive, or naming features, including signage and facades, when the legal name or public memorial function of federal civic property is manipulated without proper authority.
- **HER-008** should own timing and remedy design where physical destruction or construction can outrun judicial, congressional, or administrative review.

### Source-Development Notes

The principal source-development example is the 2025 demolition of the White House East Wing for the White House ballroom project. AP reported that photos showed the East Wing demolished in October 2025. See Associated Press, *White House East Wing demolished as Trump moves forward with ballroom construction, AP photos show* (Oct. 23, 2025). Preservation litigation alleged that the project bypassed legal review requirements and congressional approval. See The Guardian, *Trump sued by preservation group over \$300m White House ballroom project* (Dec. 12, 2025).

Source development should review the White House preservation statutes and executive orders, including 3 U.S.C. § 110 and the statutory notes concerning White House preservation and museum character, National Capital Planning Commission authority, Commission of Fine Arts authority, the National Environmental Policy Act, the National Historic Preservation Act, appropriations controls, donor ethics, and any court orders in litigation concerning the ballroom project.

HOR-003 should be treated as a source-development manifestation rather than a new issue. In June 2026, The Guardian reported that a federal judge ordered President Trump's administration to explain a tarp obscuring part of the Kennedy Center facade after the court had ordered removal of President Trump's name from the building and had stated that the Kennedy Center's statutory name could not be changed without Congress. See The Guardian, *Judge orders Trump administration to explain tarp obscuring Kennedy Center* (June 24, 2026). The event should source-develop **HER-001**, **HER-006**, and **HER-008** because it may illustrate executive manipulation of federal civic-property naming, visible commemorative features, and remedy timing. It should cross-reference JUD-001 only if primary filings show deliberate evasion or frustration of a court order rather than disputed construction, implementation, or building-condition questions. Next-source needs include Judge Cooper's reported opinion, the later tarp or scaffolding order, appellate filings, Kennedy Center

organic-statute materials, board records, and renovation or signage records.

## **Notes**

Provisional inventory; full source development pending.



## A-24 — Civil Rights Administration and Identity Records

### Generalized Institutional Concern

Civil-rights enforcement, humanitarian protection, identity records, benefit access, federally funded services, detention classification, medical privacy, anti-discrimination guidance, and rights-bearing adjudication remain vulnerable to abrupt executive redefinition, selective enforcement, coercive grant conditions, records-system manipulation, unreviewable status decisions, and weak procedural safeguards.

### Issues

- **RIGHTS-001** — Civil-Rights Administration, Identity Records, and Federal Definition Control \_(status: Candidate; priority: High)\_
- **RIGHTS-002** — Temporary Protected Status, Asylum Access, and Humanitarian Reviewability \_(status: Candidate; priority: High)\_
- **RIGHTS-003** — Birthright Citizenship Recognition and Federal Identity Records \_(status: Candidate; priority: High)\_

### Issue Boundaries

- **A-24** owns civil-rights administration, anti-discrimination enforcement continuity, humanitarian protection, identity-document systems, medical and personal privacy protections, federally funded civil-rights conditions, rights-bearing adjudication, and rights-bearing records processes.
- **Humanitarian immigration boundary.** A-24 may own immigration-related issues when the central defect is due process, humanitarian status, statutory reviewability, access to adjudication, asylum-processing triggers, or rights-bearing administrative protection. General immigration enforcement, domestic deployment, detention operations, surveillance, or border-force activity should remain primarily in A-14, with cross-links to A-24 only where rights-bearing adjudication or humanitarian protection is the central remedy.
- **A-18** remains the home for government information, scientific, statistical, terminology, public-health-data, and factual-integrity issues. A-18 issues should not move into A-24 merely because civil-rights policy is the subject matter; move or cross-link only when the remedy primarily concerns anti-discrimination law, identity records, grant conditions, detention classification, privacy, or civil-rights enforcement.
- **A-19** should be cross-linked when the mechanism is retaliatory or coercive use of grants, contracts, licenses, or regulatory approvals.
- **A-20** should be cross-linked when the federal government pressures states or local governments to adopt federal civil-rights definitions or enforcement priorities.
- **A-08** should be cross-linked when career civil servants, experts, or administrators are disciplined, reassigned, or pressured for civil-rights enforcement judgments.

### Notes

Created during HOR-015 adjudication and expanded during HOR-016 adjudication. RIGHTS-003 was added as a horizon issue after identifying birthright-citizenship executive-order litigation in the state-led adverse-rulings comparator. Provisional inventory; full source development pending.

# RIGHTS-001 — Civil-Rights Administration, Identity Records, and Federal Definition Control

## Issue Snapshot

**Problem:** Executive definitions can rewrite civil-rights administration.

**Repair:** Stabilize records, grants, privacy, and review.

**Vehicle:** Civil-rights, records, grants, and privacy legislation.

## Institutional Anomaly

Federal civil-rights administration depends on statutes, regulations, agency guidance, identity records, grant conditions, detention rules, medical-privacy norms, and public-facing information systems. A president can attempt to move all of those levers at once through government-wide definitions, centralized guidance rescission, funding conditions, records changes, and enforcement priorities.

The institutional defect is not that civil-rights law must remain frozen. Congress may change statutes, agencies may change policies through lawful procedures, and courts may resolve contested doctrine. The defect is that rights-bearing administrative systems can be rapidly redefined across agencies without stable statutory authorization, transparent reasoning, preserved records, privacy safeguards, individualized process, or reviewable funding conditions.

## Manifestations of the Failure

### *Government-wide sex-definition control*

Executive Order 14168 directs the executive branch to recognize only two sexes, defines "sex" for executive interpretation and federal administration, requires agencies to revise documents and communications, directs changes to passports, visas, Global Entry cards, and personnel records, directs review of grant conditions, addresses prison and detention placement, and orders agencies to rescind inconsistent guidance. See Executive Order 14168, 90 Fed. Reg. 8615 (Jan. 30, 2025).

That order is a strong manifestation because it shows how a single executive definition can cascade into civil-rights enforcement, public records, public-health information, detention policy, federally funded entities, agency guidance, and proposed codifying legislation.

### *Project 2025 as vulnerability mapping*

Project 2025 materials should be treated as a vulnerability map even where a particular recommendation has not been enacted. The relevant question is whether the proposal identifies a legal, administrative, or institutional weak point that ARRP should consider repairing.

The existing Project 2025 crosswalk identifies proposals to eliminate DEI and gender-identity protections across agencies and to restrict Title IX gender-identity policies and related guidance as possible civil-rights, factual-integrity, and regulatory-neutrality vulnerabilities. See the Project 2025 crosswalk and the official Heritage Mandate for Leadership Series.

### *Identity-document instability*

Passport sex-marker policy is a live example of identity-record instability. Politico reported that a federal judge expanded an injunction against restrictions on passport sex markers in June 2025, but later reporting stated that the Supreme Court allowed the administration to enforce its passport policy while litigation continued. See Politico, *Judge says government can't limit passport sex markers for many transgender, nonbinary people* and Politico, *Supreme Court OKs Trump's passport policy limiting options for transgender people*.

This issue should not assume that any particular passport-marker policy is already unlawful. It should ask what process, statutory clarity, record-integrity safeguards, reliance protections, and judicial-review pathways should apply when identity records are changed across a federal system.

### *Grant-condition coercion and speech risk*

Associated Press reported that a federal judge blocked enforcement of executive-order conditions requiring federal grant recipients to stop promoting diversity, equity, and inclusion or acknowledging transgender individuals while litigation proceeded. See AP, *Judge blocks administration from enforcing anti-diversity and anti-transgender executive orders*.

This manifestation overlaps with A-19 and A-20 because civil-rights policy can be imposed through funding conditions, contractor rules, state-program conditions, or federally funded entity requirements.

### *Medical-record and privacy pressure*

Associated Press reported that a federal judge temporarily blocked Justice Department subpoenas seeking medical records in a criminal probe involving transgender care at New York hospitals. See AP, *Judge temporarily blocks subpoenas in criminal probe of transgender care at New York hospitals*.

This manifestation is not yet developed into a remedial theory. It flags a source-development need around medical-record privacy, criminal subpoena standards, health-care investigations, patient reliance interests, and whether existing privacy law sufficiently protects sensitive records when federal civil-rights or culture-war enforcement priorities shift.

## ***Doctrinal uncertainty after Skrmetti***

The Supreme Court's decision in *United States v. Skrmetti* is a necessary doctrinal caution. It does not settle every federal civil-rights administration question raised here, but it affects how future proposals should be framed, especially where equal-protection arguments, sex classifications, age, medical care, Title IX, Title VII, and agency authority intersect.

The Supreme Court's decision in *West Virginia v. B. P. J.* adds a second caution for Title IX and Equal Protection claims involving school athletics and sex-specific classifications. RIGHTS-001 should not assume that Title IX requires gender-identity-inclusive athletics rules or that every sex-definition policy is constitutionally invalid. The remaining institutional question is whether civil-rights administration, identity records, grant conditions, privacy, detention classification, and agency guidance should have clearer statutory authority, transition rules, record preservation, individualized process, and review safeguards when executive definitions change.

## **Resulting Damage**

Government-wide civil-rights redefinition can:

1. destabilize identity records and reliance interests;
2. pressure agencies to delete or rewrite public-facing guidance without preserving reasoning;
3. impose funding conditions that Congress did not clearly authorize;
4. chill civil-rights services by federally funded entities;
5. make rights depend on rapid executive reinterpretation rather than durable statutes;
6. expose sensitive medical records to broad enforcement demands;
7. increase litigation uncertainty for states, schools, grantees, employers, prisons, and individuals;
8. confuse regulated entities about which civil-rights rule actually governs; and
9. make future administrations reverse civil-rights administration through the same unstable mechanism.

## **Underlying Weakness**

Civil-rights administration is distributed across many agencies and legal tools. A single executive order can alter definitions, guidance, record systems, grant conditions, enforcement priorities, detention rules, and public communications before Congress, courts, grantees, or affected individuals can respond.

Existing law contains partial safeguards: the Administrative Procedure Act, civil-rights statutes, the Spending Clause, the Privacy Act, health-privacy rules, agency organic statutes, and constitutional limits. RIGHTS-001 should determine whether those safeguards are adequate when the executive branch uses a coordinated definition-control strategy.

## **Proposal Survey**

Any RIGHTS-001 proposal should consider several remedy paths before drafting:

**Civil-rights enforcement continuity.** Require agencies to preserve prior guidance, disclose legal reasoning, identify statutory authority, and provide transition periods before rescinding or reversing major civil-rights guidance.

**Identity-record safeguards.** Require clear statutory authority, individualized notice, administrative review, reliance protection, and records-integrity rules before federal identity-document systems or personnel records are changed through government-wide definitions.

**Grant-condition limits.** Clarify that civil-rights-related grant conditions must be authorized by Congress, stated unambiguously, germane to the grant program, and subject to prompt judicial review. This should be coordinated with A-19 and A-20.

**Medical-privacy and subpoena guardrails.** Evaluate whether existing health-privacy and criminal-subpoena safeguards adequately protect sensitive patient records when federal enforcement priorities target disfavored medical care or civil-rights categories.

**Public-information preservation.** Preserve scientific, public-health, statistical, and civil-rights information before content is removed or revised. This should be coordinated with A-18, which remains the primary home for factual-integrity remedies.

**Detention and prison classification process.** Assess whether federal prison, detention, and shelter-classification policies require minimum individualized risk assessment, safety review, and appeal procedures.

**Statutory clarification.** Evaluate whether Congress should clarify Title IX, Title VII, identity-document, federal-records, prison-safety, medical-privacy, or grant-condition rules. This path requires high caution because doctrine is active, politically sensitive, and now includes *Skrmetti* and *West Virginia v. B. P. J.* as material limits on some equality and Title IX theories.

## **Least-Complex Adequate Remedy**

The least-complex adequate remedy is not selected. RIGHTS-001 should begin with source development and doctrine review.

A narrow first-stage remedy could focus on process rather than substantive codification: preservation of prior guidance and records, reasoned explanation for major civil-rights reversals, clear statutory authority for funding conditions, identity-record notice and review, medical-record subpoena safeguards, and expedited judicial review for affected grantees, states, institutions, and individuals.

## Repair and Prevention

Future drafting should evaluate whether Congress should:

1. require public legal memoranda before major civil-rights guidance reversals;
2. preserve rescinded civil-rights and public-health materials in accessible archives;
3. require agencies to identify statutory authority before imposing civil-rights-related grant conditions;
4. create notice, review, and reliance protections for federal identity-record changes;
5. limit broad federal access to sensitive medical records absent heightened, individualized justification;
6. require individualized safety assessment before prison or detention classification changes;
7. establish expedited judicial review for grantees, states, institutions, and individuals affected by government-wide civil-rights definition changes; and
8. coordinate any factual-integrity remedy with A-18 instead of duplicating it here.

## Proposed Legislation

- Pending development.

## Relationship to Adjacent Proposals

A-18 owns factual, scientific, statistical, public-health-data, and terminology-integrity problems. RIGHTS-001 should cross-link A-18 where civil-rights administration is implemented through deletion, suppression, alteration, or misleading presentation of government information.

A-19 owns coercive or retaliatory use of contracts, grants, licenses, and regulatory burdens. RIGHTS-001 should cross-link A-19 where civil-rights definitions are enforced through funding conditions or contractor requirements.

A-20 owns federal coercion of states. RIGHTS-001 should cross-link A-20 where federal civil-rights definitions are imposed on state programs through funding, waivers, threats, or enforcement pressure.

A-08 owns civil-service and professional-administration vulnerability. RIGHTS-001 should cross-link A-08 where civil servants or experts are pressured to implement, suppress, or reverse civil-rights policy without ordinary professional safeguards.

## Budgetary Impact Statement

No reliable estimate yet. Early remedies may require compliance, records, review, and litigation resources, but no appropriation estimate should be assigned until a specific proposal exists.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score: 0 / 100** (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

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**Audit Status:** Pending development; no proposal-quality score assigned

**Last Audit:** SCOTUS doctrine update

**Rubric Version:** 2026-06-27 . 1; **Rebaseline:** current-fixed-status

**Next Audit:** Post-B.P.J. source-development pass

**Full Audit History:** RIGHTS-001 audit history

## Annotation

RIGHTS-001 is a candidate issue admitted from HOR-015. It receives a proposal-quality score of 0 until a basic proposal framework is developed.

The page intentionally avoids deciding the merits of every sex-specific law, gender-identity policy, athletics policy, or civil-rights claim. Its current role is to isolate the institutional weakness: government-wide civil-rights administration can be rapidly redefined through executive definitions, records systems, funding leverage, guidance rescission, and privacy-sensitive enforcement tools.

## Source Notes

Primary source development should begin with Executive Order 14168, *United States v. Skrmetti*, *West Virginia v. B. P. J.*, Project 2025 / Heritage materials, and the dockets behind the passport, grant-condition, prison/detention, public-health-information, and medical-record cases. Secondary reporting may be used to identify events, but final drafting should rely on official orders, docket filings, statutes, regulations, agency guidance, and congressional materials wherever available.

## RIGHTS-001 — Audit History

This file preserves the full audit history for RIGHTS-001. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### 2026-07-02 — *SCOTUS doctrine update*

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** The Supreme Court's decision in *West Virginia v. B. P. J.* adds a material Title IX and Equal Protection caution for sex-specific school-athletics policies. RIGHTS-001 remains a candidate issue, but source development should now frame remedies around statutory authority, process, records stability, privacy, grant-condition review, and implementation safeguards rather than assuming any particular substantive gender-identity or athletics outcome is doctrinally required.

**Next audit need:** Run a post-*B.P.J.* source-development pass covering *Skrmetti, B.P.J.*, Executive Order 14168, Title IX, Title VII, identity-record statutes, grant-condition limits, detention/prison classification, medical-record privacy, and agency guidance rescission.

#### 2026-06-25 — *Horizon integration decision*

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** HOR-015 was admitted as a distinct A-24 candidate because civil-rights administration identity records grant conditions detention classification privacy and anti-discrimination guidance are not fully owned by A-18 factual integrity A-19 grants A-20 federalism or A-08 civil service.

**Next audit need:** Source-develop EO 14168, Project 2025/Heritage materials, *Skrmetti*, passport litigation, grant-condition litigation, prison/detention classification, public-health-information cases, medical-record subpoena litigation, Title IX/Title VII implications, Spending Clause limits, Privacy Act/HIPAA issues, and existing civil-rights enforcement-continuity proposals before drafting.

# RIGHTS-002 — Temporary Protected Status, Asylum Access, and Humanitarian Reviewability

## Issue Snapshot

**Problem:** Humanitarian protections can become unreviewable.

**Repair:** Restore reviewable status and asylum safeguards.

**Vehicle:** INA and TPS statutory amendments.

## Institutional Anomaly

Temporary Protected Status and asylum access are rights-bearing humanitarian-administration systems. They depend on statutory triggers, country-condition findings, consultation records, port-of-entry access, removal timing, and judicial review. When those systems become practically unreviewable, humanitarian protection can turn on executive will rather than transparent statutory compliance.

The institutional defect is not that every TPS designation must last indefinitely or that every asylum applicant must ultimately prevail. Congress may make humanitarian protection temporary, require periodic review, and set eligibility standards. The defect is that the executive branch may be able to terminate or block access to statutory humanitarian protections while courts lack authority to review ordinary statutory, procedural, or country-condition compliance.

## Manifestations of the Failure

### *TPS termination reviewability*

In *Mullin v. Doe / Trump v. Miot*, decided June 25, 2026, the Supreme Court held that the TPS statute bars judicial review of non-constitutional claims concerning TPS designation, termination, or extension. The Court also concluded that the Haiti equal-protection claim was unlikely to succeed at the interim-relief stage.

The decision creates a direct statutory-design problem: if Congress wants review of procedural compliance, country-condition findings, consultation failures, reasoned explanation, or safe-return determinations, it must say so clearly in the statute.

### *Humanitarian status without reviewable country-condition findings*

TPS depends on conditions in the designated country, including armed conflict, environmental disaster, extraordinary and temporary conditions, and whether nationals can safely return. The Supreme Court opinion describes the statutory review cycle and the role of Federal Register termination notices. See *Mullin v. Doe / Trump v. Miot*.

If the country-condition record is functionally unreviewable, a termination decision may be lawful even where affected people, courts, Congress, states, employers, and local communities cannot test whether the agency followed the statutory process or reasonably assessed safe return.

### *Asylum-access trigger rules and border metering*

In *Mullin v. Al Otro Lado*, decided the same day, the Supreme Court addressed whether asylum-access and inspection obligations applied to noncitizens stopped before entry at ports of entry. Public reporting described the decision as allowing the government to turn back asylum seekers at the U.S.-Mexico border. See The Guardian, *Supreme court lets Trump turn back asylum seekers at US-Mexico border*.

This manifestation is related but not identical to TPS. It raises a statutory-trigger problem: if asylum rights depend on whether a person has been allowed to physically cross a threshold, executive border practices can determine whether statutory asylum procedures ever attach.

### *Current affected-population salience*

NBC News reported that the Supreme Court allowed President Trump's administration to remove protections for thousands of Haitian and Syrian migrants. The Guardian similarly reported on the TPS decision and described broader consequences for Haitian and Syrian TPS holders. See NBC News, *Supreme Court allows Trump to remove protections for thousands of Haitian and Syrian migrants*, and The Guardian, *US supreme court allows Trump administration to strip Haitians and Syrians of protected status*.

These reports should be used as current-event leads. Final drafting should rest primarily on the Supreme Court opinions, Federal Register notices, statutory text, country-condition records, agency consultation records if available, and congressional materials.

## Resulting Damage

Weak humanitarian reviewability can:

1. leave statutory TPS standards without an ordinary statutory remedy;
2. make country-condition findings difficult to test in court;
3. reduce transparency around interagency consultation;
4. allow safe-return determinations to turn on executive preference;

5. destabilize families, employers, schools, churches, and local communities that relied on lawful TPS presence;
6. incentivize border practices that prevent asylum procedures from attaching;
7. increase irregular crossing pressure if lawful port-of-entry access is blocked;
8. limit congressional oversight of humanitarian-status decisions; and
9. make future humanitarian protections depend on litigation over constitutional claims rather than clear statutory review.

## Underlying Weakness

The Immigration and Nationality Act contains humanitarian protections but also gives the executive branch broad authority and, for TPS, a strong review bar. Courts may preserve constitutional review, but ordinary statutory and procedural claims can be barred unless Congress expressly creates a review channel.

RIGHTS-002 should therefore ask what minimum reviewability, record, timing, notice, country-condition, and safe-return safeguards are necessary for humanitarian status programs to function as law-governed civil-rights administration rather than discretionary executive grace.

## Proposal Survey

Any RIGHTS-002 proposal should consider several remedy paths before drafting:

**TPS reviewability amendment.** Clarify that courts may review whether the Secretary complied with required procedures, consultation duties, notice requirements, timing rules, and statutory country-condition standards when terminating or extending TPS.

**Minimum country-condition record.** Require a public administrative record identifying the country-condition evidence, State Department or other agency consultation, humanitarian impacts, reliance interests, and safe-return findings supporting termination.

**Safe-return standard.** Define minimum safe-return findings for armed conflict, environmental disaster, extraordinary conditions, and temporary disruption before termination takes effect.

**Transition and reliance protections.** Require minimum transition periods, work-authorization continuity, employer notice, school/family stability consideration, and congressional notification before large-scale TPS terminations take effect.

**Asylum-access trigger clarification.** Clarify when asylum, inspection, and credible-fear procedures attach at ports of entry, including whether officials may prevent people from triggering statutory processing through physical metering or turnback practices.

**Expedited but real judicial review.** Create fast review without indefinite delay: prompt filing windows, direct review in designated courts, preservation of constitutional review, and limited interim relief where the agency record is missing or facially inadequate.

**Congressional reporting and oversight.** Require notice to relevant committees before TPS termination and significant asylum-access changes, including agency rationale and implementation effects.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is not selected. RIGHTS-002 should begin with source development and statutory review.

A narrow first-stage remedy could amend the INA to create limited review for TPS procedural compliance and country-condition findings, require a public safe-return record, preserve constitutional claims, and separately clarify that asylum-processing duties cannot be avoided solely by physically blocking access to a port of entry.

## Repair and Prevention

Future drafting should evaluate whether Congress should:

1. create limited judicial review for TPS statutory and procedural compliance;
2. require public country-condition and safe-return findings before termination;
3. require documented consultation with appropriate agencies;
4. preserve constitutional review and define the scope of statutory review;
5. require transition periods for large TPS terminations;
6. clarify when asylum-access and credible-fear obligations attach at ports of entry;
7. prevent metering or turnback practices from nullifying statutory asylum access; and
8. require congressional notice for major humanitarian-status reversals.

## Proposed Legislation

- Pending development.



## Relationship to Adjacent Proposals

A-24 owns this issue because it concerns rights-bearing civil administration, humanitarian status, due process, statutory reviewability, and access to adjudication.

A-14 should be cross-linked where immigration enforcement, detention, federal law-enforcement deployment, or surveillance mechanics are the primary concern.

A-10 should be cross-linked where border, invasion, national-security, or emergency rhetoric supplies the policy predicate for restricting humanitarian protection.

JUD-001 should be cross-linked only where the executive branch disobeys or evades court orders. RIGHTS-002 is different: it concerns whether courts have statutory authority to review the humanitarian decision in the first place.

## Budgetary Impact Statement

No reliable estimate yet. Reviewability, record-preparation, transition, and adjudication safeguards may require agency and court resources, but no appropriation estimate should be assigned until a specific proposal exists.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score: 0 / 100** (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

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**Audit Status:** Pending development; no proposal-quality score assigned

**Last Audit:** Horizon integration decision

**Rubric Version:** 2026-06-27.1; **Rebaseline:** current-fixed-status

**Next Audit:** Source-development pass

**Full Audit History:** RIGHTS-002 audit history

## Annotation

RIGHTS-002 is a candidate issue admitted from HOR-016. It receives a proposal-quality score of 0 until a basic proposal framework is developed.

The page should not frame TPS or asylum as a guarantee of permanent immigration status. The neutral institutional frame is that humanitarian protections enacted by Congress should have transparent records, reviewable statutory compliance, fair access triggers, and defined safe-return standards.

## Source Notes

Primary source development should begin with *Mullin v. Doe / Trump v. Miot*, *Mullin v. Al Otro Lado*, the TPS statute, asylum-access provisions of the INA, Federal Register notices for Haiti and Syria TPS terminations, country-condition records, and agency consultation materials if public. Secondary reporting should be used to identify affected populations and implementation posture, not as the final legal basis for drafting.

## RIGHTS-002 — Audit History

This file preserves the full audit history for RIGHTS-002. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### **2026-06-25 — *Horizon integration decision***

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** HOR-016 was admitted as an A-24 candidate because TPS termination reviewability asylum-access triggers humanitarian status due process statutory review and access to adjudication are civil-rights administration concerns and are not fully owned by A-14 immigration enforcement A-10 emergency powers or JUD-001 court-order compliance.

**Next audit need:** Source-develop Mullin v. Doe / Trump v. Miot, Mullin v. Al Otro Lado, TPS statutory text, asylum-access INA provisions, Federal Register TPS termination notices for Haiti and Syria, country-condition records, DHS/State consultation materials if public, safe-return findings, prior bipartisan TPS/asylum legislation, and possible limited-review amendments before drafting.

# RIGHTS-003 — Birthright Citizenship Recognition and Federal Identity Records

## Issue Snapshot

**Problem:** Executive policy can threaten citizenship recognition.

**Repair:** Preserve lawful recognition, records, benefits, and review.

**Vehicle:** Pending source development.

## Institutional Anomaly

Birthright citizenship is a rights-bearing legal status with downstream consequences for federal identity records, passports, Social Security records, benefits eligibility, immigration administration, state vital-record reliance, and family stability. If executive policy attempts to deny or narrow recognition of citizenship for people born in the United States, affected persons may face immediate practical harms before final judicial resolution.

The institutional defect is not that citizenship doctrine is immune from judicial interpretation. Courts may resolve constitutional disputes, and Congress may legislate within constitutional bounds. The defect is that federal recognition, records systems, benefits access, and agency implementation can shift quickly through executive direction while affected people, states, hospitals, families, and agencies lack clear transition, reliance, and review safeguards.

## Manifestations of the Failure

### *Birthright-citizenship executive-order litigation*

The FUND-001 state-led adverse-rulings scan identified two Trump second-term state-led challenges involving a birthright-citizenship executive order: *New Jersey v. Trump* and *Washington v. Trump*. The scan flagged both as immigration / presidential-directive matters with adverse preliminary relief and likely executive-order linkage.

The Supreme Court has now decided the merits in *Trump v. Barbara*, holding that children born in the United States to parents unlawfully or temporarily present are citizens at birth under the Fourteenth Amendment. That decision sharply narrows the predicate for any ARRP remedy aimed at resisting Executive Order 14160 itself. The remaining source-development question is whether a narrower records, recognition-continuity, reliance, and review safeguard remains useful for future executive implementation attempts, agency lag, record instability, or downstream benefit and identity-document disruption.

## Resulting Damage

Executive denial or narrowing of birthright-citizenship recognition can:

1. destabilize citizenship records and reliance interests;
2. disrupt passports, Social Security records, benefits, tax records, and other federal identity systems;
3. create conflict between federal recognition and state vital records;
4. impose immediate burdens on newborns, parents, hospitals, state registrars, schools, employers, and benefit administrators;
5. force affected people into emergency litigation to preserve basic status recognition;
6. create inconsistent implementation across agencies or jurisdictions; and
7. make constitutional citizenship protections depend on agency compliance timing rather than durable safeguards.

## Underlying Weakness

Federal identity and benefits systems depend on agency recognition of citizenship status. Existing constitutional doctrine, federal statutes, agency procedures, and judicial review may ultimately constrain unlawful executive action, but they may not supply fast, uniform, and reliance-protective safeguards while litigation is pending.

RIGHTS-003 should determine whether a narrowly tailored statutory or procedural remedy can protect recognition, records stability, and review without trying to relitigate every substantive constitutional question in advance.

## Proposal Survey

Any RIGHTS-003 proposal should consider several remedy paths before drafting:

**Recognition continuity.** Require federal agencies to continue recognizing citizenship status based on existing statutory and constitutional baselines unless Congress clearly changes the governing rule or a final court judgment requires a different result.

**Identity-record safeguards.** Require notice, individualized process, records preservation, and administrative review before agencies deny, suspend, annotate, or alter citizenship-related records for people born in the United States.

**Benefits and document continuity.** Preserve temporary access to passports, Social Security records, tax records, health coverage, and other federal benefits or documents while legal status is under judicial review, subject to fraud and identity-verification safeguards.

**State-record reliance.** Clarify how federal agencies must treat state birth records, hospital records, and vital-statistics records when implementing citizenship-recognition policy.

**Expedited judicial review.** Create a fast review path for affected persons, states, and relevant institutions where a federal directive changes birthright-citizenship recognition or related identity-record treatment.

**Implementation pause.** Evaluate whether agency implementation should be stayed automatically for newborns, minors, or existing records until specified procedural and judicial-review conditions are satisfied.

## Least-Complex Adequate Remedy

The least-complex adequate remedy is not selected. RIGHTS-003 should begin with post-*Barbara* source development, including constitutional doctrine, citizenship statutes, identity-record statutes, agency implementation rules, reliance interests, and any remaining implementation or compliance disputes after the Supreme Court's merits ruling.

A narrow first-stage remedy could focus on recognition continuity and record stability: agencies may not deny or alter citizenship-related recognition for persons born in the United States without clear statutory authority, individualized notice, preserved records, and expedited review.

## Repair and Prevention

Future drafting should evaluate whether Congress should:

1. require continuity of citizenship recognition during litigation over executive directives or while agencies implement controlling judicial rulings;
2. protect federal identity records from categorical alteration without clear statutory authority;
3. preserve reliance on state birth records and federal records already issued;
4. require written agency authority and implementation guidance before any change in recognition policy takes effect;
5. create expedited review for affected persons, states, hospitals, and benefit administrators;
6. protect access to essential documents and benefits while status is under review; and
7. coordinate with FUND-001 where implementation depends on appropriations, agency spending, or fiscal backstops.

## Proposed Legislation

- Pending development.

## Relationship to Adjacent Proposals

A-24 owns this issue because it concerns civil-rights administration, identity records, benefit access, citizenship recognition, and rights-bearing adjudication.

RIGHTS-001 is adjacent because it concerns government-wide civil-rights definitions and identity-record instability. RIGHTS-003 should remain separate if the central issue is citizenship recognition rather than sex, gender, civil-rights enforcement, or general identity-record policy.

RIGHTS-002 is adjacent because it concerns humanitarian immigration reviewability. RIGHTS-003 should remain separate because birthright citizenship concerns recognition of U.S. citizenship rather than temporary humanitarian status or asylum access.

FUND-001 should be cross-linked if implementation of an unlawful executive directive depends on appropriations, agency spending, or a fiscal backstop.

A-14 should be cross-linked only where the implementation mechanism is immigration enforcement, detention, surveillance, or domestic law-enforcement deployment rather than citizenship recognition and records.

## Budgetary Impact Statement

No reliable estimate yet. Records, notice, review, document-continuity, and litigation safeguards may require agency and court resources, but no appropriation estimate should be assigned until a specific proposal exists.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Proposal Scoring

**Proposal Quality Score:** 0 / 100 (Not Scored)

**Adoption Friction:** N/A

**Required Electoral Environment:** N/A

**Development Priority:** N/A

**Audit Status:** Pending development; no proposal-quality score assigned

**Last Audit:** SCOTUS merits update

**Rubric Version:** 2026-06-27.1; **Rebaseline:** current-fixed-status

**Next Audit:** Post-Barbara source-development pass

**Full Audit History:** RIGHTS-003 audit history

## Annotation

RIGHTS-003 is a candidate horizon issue admitted after birthright-citizenship executive-order litigation appeared in the state-led adverse-rulings comparator. After *Trump v. Barbara*, the issue should not be framed as if the core Citizenship Clause merits question remains unresolved. It receives a proposal-quality score of 0 until the project decides whether to retire the issue, merge it into RIGHTS-001 or another records/recognition issue, or develop a narrower post-ruling implementation safeguard.

The neutral institutional frame is that citizenship recognition and identity-record systems should not be destabilized by executive directive without clear legal authority, transparent implementation rules, reliance safeguards, and expedited review.

## Source Notes

Primary source development should begin with *Trump v. Barbara*, the Fourteenth Amendment Citizenship Clause, 8 U.S.C. citizenship provisions, federal passport and Social Security identity-record authorities, relevant agency implementation guidance, and any remaining post-ruling implementation orders or agency compliance records. The *New Jersey v. Trump* and *Washington v. Trump* dockets and the FUND-001 state-led adverse-rulings scan should now be treated as procedural-history and routing leads rather than as unresolved merits predicates.

## RIGHTS-003 — Audit History

This file preserves the full audit history for RIGHTS-003. The issue page keeps only the compact Proposal Scoring summary.

### Audit History

No issue-specific audit log has been migrated from the issue page yet. The current inventory-level audit record is summarized below.

#### 2026-07-02 — *SCOTUS merits update*

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** The Supreme Court's decision in *Trump v. Barbara* resolves the core birthright-citizenship merits question against Executive Order 14160 and therefore materially narrows RIGHTS-003. The issue remains a candidate only for possible records, recognition-continuity, reliance, agency-compliance, and expedited-review safeguards after a controlling judicial ruling.

**Next audit need:** Run a post-*Barbara* source-development pass to decide whether RIGHTS-003 should be retired, merged into RIGHTS-001 or another records/recognition issue, or developed into a narrower implementation-safeguard proposal. Review the opinion, any agency compliance guidance, passport and Social Security record authorities, state vital-record reliance, and any remaining implementation disputes.

#### 2026-06-29 — *Horizon integration decision*

**Audit status:** Pending development; no proposal-quality score assigned

**Proposal-quality score:** 0

**Score basis:** RIGHTS-003 was admitted as an A-24 horizon issue after the FUND-001 state-led adverse-rulings scan identified Trump second-term litigation challenging a birthright-citizenship executive order. The issue is not yet developed into a proposal; its current purpose is to preserve the source-development lead and the institutional frame around citizenship recognition, federal identity records, benefits access, reliance interests, and expedited review.

**Next audit need:** Source-develop the Fourteenth Amendment Citizenship Clause, 8 U.S.C. citizenship provisions, passport and Social Security identity-record authorities, state vital-record reliance, agency implementation guidance, the *New Jersey v. Trump* and *Washington v. Trump* dockets and orders, and any existing congressional proposals addressing birthright-citizenship recognition or implementation safeguards.

## **Appendix A - Proposed Federal Legislation and Constitutional Amendments**

# DOJ-001 — Seven-Year Cooling-Off Rule for Senior Justice Department Eligibility

## Statutory Analogue

The proposal uses the office-specific cooling-off structure found in 10 U.S.C. § 113(a)(2), which restricts appointment of certain recently retired commissioned officers as Secretary of Defense. That provision is a legislative analogue and historical practice, not a controlling judicial holding on the constitutionality of the proposed Attorney General qualification.

## Proposed Amendment

Section 503 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

- (b)(1)** A person may not be appointed to, or serve in, the office of Attorney General during the seven-year period following the termination of covered legal representation of the sitting President.
- (2)** In this subsection, the term “covered legal representation” means personal legal representation, advice, or advocacy provided directly to—
- (A)** the President;
- (B)** the President-elect; or
- (C)** a candidate for President who subsequently becomes the sitting President, in connection with a criminal investigation or proceeding, civil-enforcement matter, impeachment or removal proceeding, election or campaign matter, personal financial or business interest, claim of personal immunity, or any other matter in which the represented individual’s interests were distinct from, or could reasonably diverge from, the interests of the United States.
- (3)** Covered legal representation does not include legal service performed solely in an official capacity on behalf of the United States, an agency of the United States, or the Executive Office of the President.
- (4)** Not later than 5 days after the President transmits a nomination for Attorney General to the Senate, the nominee shall disclose to the Committee on the Judiciary of the Senate and to the Director of the Office of Government Ethics all facts reasonably necessary to determine compliance with this subsection. The nominee shall update the disclosure not later than the date of the first hearing to consider the nomination if additional responsive information becomes known.
- (5)** Before final committee action on the nomination, the Director of the Office of Government Ethics shall review the disclosure submitted under paragraph (4), consult as appropriate with the Department of Justice Designated Agency Ethics Official, and transmit to the Committee on the Judiciary of the Senate a written determination identifying whether the disclosed facts indicate compliance with this subsection. The determination shall not bind the Senate in exercising its advice-and-consent function and shall not preclude judicial review under paragraph (6).
- (6)(A)** An individual whose eligibility or continued service is governed by this subsection, or a person subject to a criminal prosecution, civil enforcement action, subpoena, compulsory process, or other Department of Justice action personally authorized, directed, supervised, or substantially participated in by an officer alleged to be serving in violation of this subsection, may bring a civil action in the United States District Court for the District of Columbia for declaratory or prospective injunctive relief concerning compliance with this subsection.
- (B)** An action under this paragraph shall receive expedited consideration.
- (C)** No indictment, conviction, judgment, subpoena, civil enforcement action, settlement, order, agency action, or other Department of Justice act shall be dismissed, vacated, suppressed, or otherwise invalidated solely because of a violation of this subsection unless another provision of law independently authorizes that remedy and the party seeking relief demonstrates particularized prejudice.
- (7)** If any provision of this subsection, or its application to any person or circumstance, is held invalid, the remainder of the subsection and its application to other persons or circumstances shall not be affected.

Section 504 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

- (b)** The eligibility restriction, disclosure requirement, ethics-review provision, expedited-review provision, and severability rule set forth in section 503(b) apply in the same manner to appointment to, or service in, the office of Deputy Attorney General.

Section 504a of title 28, United States Code, is amended by adding at the end the following:

- The eligibility restriction, disclosure requirement, ethics-review provision, expedited-review provision, and severability rule set forth in section 503(b) apply in the same manner to appointment to, or service in, the office of Associate Attorney General.

## Budgetary Impact Statement

Administrative workload is possible through nominee disclosure, OGE review, DOJ ethics consultation, Senate review, and occasional expedited judicial review; no new appropriation is specified and no dollar estimate is assigned.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- The seven-year period tracks the general lower-grade cooling-off period currently used in 10 U.S.C. § 113(a)(2)(A).



- The rule excludes official government representation so that service as White House Counsel, agency counsel, or another government lawyer is not automatically disqualifying merely because the lawyer represented the institutional presidency or the United States.
- The phrase “could reasonably diverge” is intended to capture personal or political representation presenting a foreseeable institutional conflict while avoiding a prohibition covering every legal service associated with a President.
- Extension to the Deputy Attorney General uses the existing office-specific statutory hook in 28 U.S.C. § 504 and corrects the earlier remedy mismatch between a Deputy Attorney General manifestation and Attorney General-only bill text.
- Extension to the Associate Attorney General uses 28 U.S.C. § 504a and tracks the succession role of that office under 28 U.S.C. § 508.
- The five-day disclosure timing tracks the nominee financial-disclosure timing Congress already uses in 5 U.S.C. § 13103(b).
- The Office of Government Ethics review role uses existing OGE conflict-review and corrective-action authority in 5 U.S.C. § 13122 while preserving the Senate's independent advice-and-consent role.
- The judicial-review provision is narrowed to the covered individual and people directly subject to DOJ action substantially involving the allegedly ineligible official. This is intended to improve Article III standing and avoid generalized taxpayer, voter, or legislator standing theories.
- The remedial-limit provision is intended to reduce de facto-officer disruption by preventing automatic invalidation of DOJ actions absent an independent remedial basis and particularized prejudice.
- No individual eligibility waiver is included. Congress could enact one by later legislation if an extraordinary case justified it.
- Further refinement should address whether the rule should extend to other specified senior DOJ offices.

## Authority Notes

28 U.S.C. § 503 creates the office of Attorney General, prescribes presidential appointment with Senate advice and consent, and designates the Attorney General as head of the Department of Justice.

28 U.S.C. § 504 authorizes the President to appoint a Deputy Attorney General by and with the advice and consent of the Senate.

28 U.S.C. § 504a authorizes the President to appoint an Associate Attorney General by and with the advice and consent of the Senate.

28 U.S.C. § 508 places the Deputy Attorney General and Associate Attorney General in the statutory order for exercising Attorney General duties during a vacancy, absence, or disability.

10 U.S.C. § 113(a)(2) imposes a seven-year or ten-year cooling-off period, depending on grade, for certain former regular commissioned officers before appointment as Secretary of Defense.

5 U.S.C. § 13103(b) requires Senate-confirmation nominees to file financial disclosure reports within five days after nomination transmittal and update them before the first hearing.

5 U.S.C. § 13122 gives the Director of the Office of Government Ethics executive-branch conflict-prevention, disclosure-review, investigation, corrective-action, and advisory responsibilities.

## **DOJ-002 — Proposed Justice Manual § 9-85.115**

### **9-85.115 — Politically Sensitive Criminal Matters**

#### ***A. Purpose***

Federal criminal authority shall not be initiated, directed, timed, or used to coerce, retaliate against, disadvantage, or confer political benefit upon any person, organization, governmental entity, candidate, party, news organization, or protected expressive association. This section does not confer immunity. It establishes heightened procedures to ensure adequate criminal predication, political neutrality, proportionality, and protection against actual or apparent misuse.

#### ***B. Covered Matters***

A politically sensitive criminal matter includes an investigation, preliminary inquiry, grand-jury matter, charging decision, declination, dismissal, plea agreement, sentencing position, or other prosecutorial action in which a subject, target, proposed recipient of compulsory process, or materially affected person is:

1. a federal, state, Tribal, territorial, or local elected official;
2. a candidate, campaign, political committee, political party, presidential transition, or inaugural committee;
3. a person publicly identified by the President, Vice President, Attorney General, or another senior political appointee as an ally, opponent, adversary, or desired investigative target;
4. a state, Tribal, territorial, or local government or senior official acting for it;
5. a news organization, journalist, publisher, broadcaster, documentary producer, or person engaged in newsgathering;
6. a nonprofit, advocacy, religious, academic, labor, civic, or membership organization substantially engaged in protected speech, association, petitioning, protest, or political activity; or
7. a person or entity whose selection could reasonably appear retaliatory, coercive, selective, or politically motivated.

The section also applies where the matter substantially concerns protected political expression, disagreement with federal policy, refusal by a state or locality to provide assistance not required by law, campaign or election activity, journalism, or conduct in which the White House or a political appointee has expressed particular investigative or prosecutorial interest.

#### ***C. Political Neutrality Memorandum***

Before opening a preliminary or full investigation, the responsible component shall prepare a written memorandum stating:

1. the potential federal offenses;
2. the factual basis and reliability of the information;
3. the legitimate federal law-enforcement interest;
4. protected speech, association, journalism, petitioning, or federalism concerns;
5. materially comparable matters and the standard applied to them;
6. all White House, political-appointee, campaign, party, transition, or inaugural contacts;
7. whether the proposed action could reasonably appear retaliatory, coercive, selective, or politically motivated;
8. less intrusive alternatives considered; and
9. why the matter is necessary and proportionate.

#### ***D. Consultation and Approval***

Consultation with the Public Integrity Section is required before opening or materially expanding a covered investigation, presenting evidence to a grand jury, taking an overt public step, materially changing the theory, or declining, closing, dismissing, or narrowing a matter after political contact.

Prior written Public Integrity approval is required before:

1. issuing compulsory process to a covered person or entity;
2. seeking a search warrant, tracking authority, communications data, surveillance, or delayed-notice authority;
3. directing an undercover employee, source, or cooperator to contact a covered person;
4. compelling associational, donor, membership, newsgathering, or source-identifying records;
5. filing or materially altering charges;
6. entering a deferred-prosecution, non-prosecution, plea, dismissal, or material sentencing decision; or

7. taking action reasonably likely to affect an election, legislative proceeding, governmental policy dispute, or protected public debate.

Approval requires written findings of adequate predication, legitimate purpose, necessity, proportionality, inadequate less-intrusive alternatives, neutrality toward protected activity, consistent treatment of comparable matters, and disclosure of political contacts.

#### ***E. Political Contacts***

All communications concerning a covered matter with the White House, Executive Office of the President, political appointees outside the ordinary supervisory chain, campaigns, parties, transitions, inaugural committees, or persons acting for them shall be logged contemporaneously. The record shall identify participants, time, subject, requests or suggested outcomes, responsive action, and the legal and policy basis for that action.

A covered action may not proceed until Public Integrity has reviewed any such contact and found an independent and sufficient law-enforcement basis. Attempted improper direction, retaliation, coercion, or circumvention shall be reported to OPR and, where appropriate, OIG.

#### ***F. Judicial Process***

When seeking judicial authorization or enforcement in a covered matter, DOJ shall disclose under seal that the section applies, that required review occurred, whether political contact occurred, whether review was waived or modified, and any material fact necessary to avoid misleading the court concerning predication, purpose, necessity, proportionality, or political influence. Disclosure remains subject to grand-jury, classification, privilege, privacy, and other lawful restrictions.

#### ***G. Emergency Exception***

An otherwise covered action may proceed without prior review only when delay creates a substantial and imminent risk of death, serious bodily harm, flight, evidence destruction, operational compromise, national-security harm, or expiration of a nonextendable legal deadline. The responsible United States Attorney or Assistant Attorney General shall document the emergency and notify Public Integrity within 24 hours. Disagreement, inconvenience, or expected denial is not an emergency.

#### ***H. Continuing Review***

Open covered matters shall be reviewed at least every 90 days for continuing predication, necessity, proportionality, political contacts, burden on protected activity, narrowing, closure, and possible corrective or disciplinary action.

#### ***I. Record Preservation***

All memoranda, approvals, consultations, contact logs, dissents, emergency determinations, periodic reviews, and closure records shall be preserved in the official file and a protected central repository. A change in leadership, policy, theory, or disposition does not authorize alteration or destruction.

#### ***J. Amendment, Suspension, and Waiver***

This section may not be generally suspended, waived, or materially amended except by a written Attorney General directive identifying the affected provisions, explaining the legal and policy basis, addressing risks of retaliation and selective enforcement, and providing advance notice to OIG, OPR, and the House and Senate Judiciary Committees. The directive shall be public except for lawfully protected portions.

A weakening may operate only prospectively and may not govern a matter already opened unless it affords greater protection. A case-specific waiver may not be approved by an official who participated in political contact concerning the matter.

#### ***K. Noncompliance***

Noncompliance shall be reported to Public Integrity, OPR, and, where appropriate, OIG. Corrective action may include reassignment, disqualification, withdrawal or reconsideration of process, corrective disclosure to a court, reconsideration of disposition, discipline, and congressional notice. This section creates no private right of action except as otherwise provided by law.

#### ***L. Equal Application***

This section shall apply without regard to party, ideology, viewpoint, office, relationship to the President, or whether the proposed action benefits or burdens the current Administration. Its purpose is not to shield politically connected persons, but to ensure adequately predicated, neutral, consistent, and lawful use of federal criminal authority.

### **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

### **Drafting Notes**

- The proposal extends an existing Public Integrity review model rather than creating a new institution.
- Consultation governs lower-risk steps; prior approval is reserved for coercive or disposition-determinative actions.

- Transparency and prospective-only amendment increase political and institutional cost without falsely claiming that an internal manual provision can legally bind future Attorneys General.
- Statutory codification remains a fallback if experience shows the internal rule can be suspended, evaded, or ignored.

## Source Notes

- Baseline source review should include the Justice Manual's current Protection of Government Integrity provisions, including existing Public Integrity consultation and approval models.
- Publication review should also test the reviewer-selection design against DOJ workload and component expertise. Public Integrity is the current least-complex analogue, but practitioner review may show that some covered categories should route to another career component, OPR, OIG, or a cross-component review process.
- Pending executive-power and removal-power cases should be treated as background judicial-risk sources rather than direct controls on this proposed Justice Manual amendment unless a later decision squarely addresses internal DOJ review rules, White House/DOJ contact controls, or prosecutorial-supervision procedures.

# DOJ-003 — Prosecutorial Neutrality Monitoring and Congressional Oversight Act

## A BILL

To amend existing Department of Justice statistical-reporting and inspector-general authorities to require federal charging and disposition statistics, independent anomaly review, protected reports to Congress, and preservation of executive responsibility for individual prosecutions.

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Prosecutorial Neutrality Monitoring and Congressional Oversight Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to preserve lawful prosecutorial discretion; build on existing Department of Justice statistical-reporting authority; require uniform documentation of federal charging and disposition decisions; assign statistical architecture to the Bureau of Justice Statistics; assign independent anomaly review and protected congressional notice to the Department of Justice Office of the Inspector General; and enable legislative and oversight correction without authorizing OIG, BJS, GAO, or Congress to control individual prosecutions.

## SEC. 3. DEFINITIONS.

### *(a) Charging-decision lifecycle.*

1. **Proposed decision** means a documented recommendation concerning a charge or disposition before final supervisory authorization.
2. **Authorized decision** means a decision approved by the official or officials whose approval is required by law or Department policy.
3. **Final operative decision** means the decision actually filed, communicated, implemented, or used to resolve the matter.

### *(b) Charging or disposition decision.*

The term includes a final operative decision to initiate a prosecution; seek, add, remove, reduce, substitute, supersede, or dismiss a charge; decline prosecution after formal presentation; close a substantially investigated criminal matter without charge; enter or materially modify a plea, deferred-prosecution, or non-prosecution agreement; adopt a material sentencing position; depart materially from generally applicable charging policy; or take a substantially equivalent action designated by regulation.

### *(c) Anomaly.*

An anomaly is a statistically or contextually material departure from an appropriate comparison group that may indicate inconsistent severity, leniency, retaliation, favoritism, selective enforcement, or political influence and is not adequately explained by legitimate case-specific factors.

### *(d) Judiciary Committees.*

The term means the House and Senate Committees on the Judiciary.

## SEC. 4. FEDERAL CHARGING AND DISPOSITION STATISTICS.

### *(a) Amendment to Bureau of Justice Statistics authority.*

Section 302(c) of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10132(c)) is amended by adding at the end the following:

“(24) collect, analyze, publish, and disseminate, subject to lawful safeguards, statistics concerning Federal criminal charging and disposition decisions, including final operative decisions to initiate, decline, dismiss, reduce, substitute, supersede, or dispose of charges; plea, deferred-prosecution, and non-prosecution agreements; material sentencing positions; and material departures from generally applicable charging policy;

“(25) establish, in consultation with the Attorney General, the Inspector General of the Department of Justice, the Director of the Administrative Office of the United States Courts, the Comptroller General, prosecutors, defense practitioners, statisticians, privacy experts, and civil-rights specialists, uniform data standards for Federal charging and disposition transaction statistics;

“(26) require each United States Attorney’s Office and Department of Justice component participating in Federal criminal charging or disposition to create and transmit a standardized electronic record for each final operative decision, and to preserve proposed and authorized stages for audit where required by regulation;

“(27) require, to the maximum extent practicable, automated extraction of routine fields from existing case-management, court-filing, sentencing, and financial systems, and avoid duplicative manual entry of information reliably available in an authoritative system;

“(28) require charging and disposition records to include, as applicable, component, district, date, procedural stage, decision type, offenses considered, charges proposed and finally implemented, applicable charging policies, material departures, offense conduct, evidence strength and admissibility, culpability, criminal history, harm, cooperation, obstruction, venue, jurisdiction, limitations, resource considerations, plea terms, dismissal terms, deferred- or non-prosecution terms, sentencing positions, approving officials, outside consultation, known covered political contacts, and neutral explanatory fields designated by regulation;

“(29) limit any political-status or relationship field to public, case-relevant, and analytically necessary information, and prohibit inference of political status solely from race, religion, sex, national origin, residence, occupation, or private belief;

“(30) publish annual aggregate Federal charging and disposition statistics, methodological descriptions, data-quality measures, national and component trends, and generalized systemic findings in a manner that protects grand-jury material, classified information, sealed material, privileged information, fair-trial rights, confidential sources, law-enforcement-sensitive information, personal privacy, and uncharged persons; and

“(31) provide the Inspector General of the Department of Justice timely access to charging and disposition records and related source materials reasonably necessary for anomaly review, source-file audit, data-integrity review, and protected reporting required by law, subject to lawful safeguards for grand-jury, classified, sealed, privileged, privacy, and law-enforcement-sensitive information.”.

***(b) Timeliness.***

Records required under paragraphs (26) through (31) of section 302(c) of the Omnibus Crime Control and Safe Streets Act of 1968, as added by subsection (a), shall be transmitted within 30 days after the final operative decision, subject to narrowly tailored temporary delay for substantial operational risk.

## **SEC. 5. INSPECTOR GENERAL REVIEW OF FEDERAL CHARGING AND DISPOSITION ANOMALIES.**

***(a) Express authority.***

The Inspector General of the Department of Justice shall have express authority to audit, inspect, review, and investigate Federal charging and disposition records, related source files, political-contact records, and related attorney conduct for purposes of this Act and the amendments made by this Act, notwithstanding assignment of professional-responsibility matters to another Department office. The Office of Professional Responsibility may exercise coordinated or concurrent jurisdiction.

***(b) Duties.***

The Inspector General shall validate completeness; conduct continuous and periodic anomaly review; compare outcomes across districts, components, administrations, offenses, and materially similar matters; conduct contextual human review; audit source files; investigate qualifying anomalies; and issue required reports.

***(c) Access.***

The Inspector General shall have timely access to records reasonably necessary for duties under this Act, including prosecutorial memoranda and political-contact records, subject to lawful safeguards for grand-jury, classified, sealed, privileged, privacy, and law-enforcement-sensitive information.

No Department officer may prevent the Inspector General from initiating, carrying out, or completing a duty required by this Act.

## **SEC. 6. ANALYTICAL METHODOLOGY AND VALIDATION.**

The Bureau of Justice Statistics and the Inspector General shall establish a transparent and periodically revised methodology developed with statisticians, prosecutors, defense practitioners, civil-rights specialists, privacy experts, and GAO. The methodology shall account for legitimate case differences, data completeness, sample size, multiple comparisons, and practical effect size.

No anomaly may be reported solely because an automated model generated a flag. A qualified Inspector General employee shall conduct and document contextual human review before any Level Two or Level Three anomaly is reported.

GAO shall review the methodology at least every three years for validity, neutrality, accuracy, manipulation risk, and disparate error.

## **SEC. 7. ANOMALY THRESHOLDS.**

***(a) Level One — Internal Review Anomaly.***

A Level One anomaly exists when a decision or pattern materially departs from an appropriate comparison range and available data reveal no immediate neutral explanation. It requires preliminary OIG review but not congressional notice.

***(b) Level Two — Reportable Anomaly.***

A Level Two anomaly exists when contextual review confirms a statistically significant and practically material disparity; the disparity involves political contact, political status, repeated policy departure, or differential treatment capable of conferring political advantage or disadvantage; reliable data support the comparison; legitimate factors do not adequately explain it; and it affects multiple matters, a recurring class, a senior official or candidate, or a matter of substantial national importance.

**(c) Level Three — Urgent Oversight Anomaly.**

A Level Three anomaly exists when reasonable grounds indicate intentional political retaliation, favoritism, selective enforcement, or interference; senior DOJ or White House participation; concealment or data manipulation; a continuing substantial threat to neutral administration; or a risk that delayed notification would impair oversight.

**(d) Standards.**

OIG shall establish numerical and contextual thresholds requiring both statistical significance and meaningful effect size, appropriate multiple-comparison correction, minimum data quality, methods for rare but consequential decisions, and anti-evasion rules.

An anomaly is an oversight trigger. It does not by itself establish illegality, misconduct, discrimination, criminal conduct, or an impeachable offense.

**SEC. 8. MANDATORY CONGRESSIONAL REPORTING.**

A Level Two anomaly shall be reported confidentially within 30 days to the chair and ranking minority member of each Judiciary Committee. A Level Three anomaly shall be noticed confidentially within 7 days, followed by a fuller report when lawful and operationally safe.

Reports shall describe the methodology, comparison group, magnitude and persistence, neutral explanations considered, data limitations, political contacts or policy departures, investigative status, leadership interference, and recommendations. Where identity, office, candidacy, donor status, party role, personal relationship, official relationship, or other political connection is material to the anomaly, the report shall include enough information for the Judiciary Committees to understand the nature of the political relationship, the treatment disparity, the comparator group, and the oversight significance.

OIG may anonymize, classify, delay details, redact identifying information, or use secure channels only to the minimum extent required by law or reasonably necessary to protect active matters, grand juries, fair-trial rights, witnesses, confidential sources, classified information, law-enforcement-sensitive information, and uncharged persons.

Anonymization, classification, delay, redaction, or secure-channel reporting may not be used to prevent the Judiciary Committees from determining the nature of the anomaly, the politically relevant actor or relationship when material, the comparator group, the treatment disparity, and the oversight action required. If identifying details cannot lawfully or safely be included in the written report, OIG shall provide a secure means for the chair and ranking minority member of each Judiciary Committee, and appropriately cleared or authorized committee counsel designated by them, to review the identifying information necessary for oversight, subject to lawful safeguards.

OIG may not withhold the existence of a Level Three anomaly solely because a matter remains active.

Unresolved Level Two and Level Three anomalies shall receive confidential status reports at least every 90 days and a final report upon completion.

**SEC. 9. PUBLIC REPORTING.**

BJS shall publish annual aggregate data, national and component trends, methodological descriptions, and reporting-compliance measures. OIG shall publish annual aggregate anomaly counts, generalized systemic findings, methodological changes, corrective actions, and recommendations. Public reports shall protect uncharged persons and information barred from disclosure.

**SEC. 10. DATA INTEGRITY AND RANDOM AUDIT.**

OIG shall conduct risk-based and random source-file audits comparing submitted records against case-management systems, court records, decision memoranda, and other authoritative sources.

Knowing or repeated failure to report, concealment of a decision, falsification, manipulation of categories or comparison groups, omission of political contacts, threshold evasion, or retaliation shall be investigated and referred for appropriate discipline or prosecution.

Each component head shall certify annual material compliance. OIG shall report materially deficient components quarterly to the Attorney General and Judiciary Committees.

**SEC. 11. PROTECTION AGAINST INTERFERENCE.**

A request by DOJ leadership to delay, limit, modify, or terminate an anomaly review shall be written and preserved. OIG shall notify the Judiciary Committees within 7 days of a material attempt to obstruct, suppress, delay, or interfere. Removal or replacement of the Inspector General shall not terminate an existing review, and all files shall remain preserved for continuation by career personnel.

**SEC. 12. LIMITATION ON AUTHORITY.**

Nothing in this Act authorizes BJS, OIG, GAO, or Congress to initiate or terminate an investigation; direct strategy; approve, disapprove, delay, or veto a charge; require prosecution or declination; dictate a plea, dismissal, or sentencing position; or otherwise exercise prosecutorial authority.

Individual criminal matters remain with officers otherwise authorized by law. Monitoring and reporting serve oversight, accountability, administration, discipline, legislation, and institutional correction only.

This Act creates no private right of action and does not independently require dismissal, suppression, or vacation of a conviction.

## **SEC. 13. INFORMATION SAFEGUARDS.**

BJS and OIG shall establish access, retention, cybersecurity, disclosure, and audit-log safeguards for grand-jury information, classified and sealed material, privilege, personal data, confidential sources, investigative methods, fair-trial rights, and uncharged persons.

## **SEC. 14. IMPLEMENTATION.**

BJS, OIG, and the Attorney General shall issue proposed regulations within 180 days; BJS shall establish the Federal charging and disposition statistics system within one year; complete submissions shall begin within 18 months; formal anomaly reporting shall begin within two years; and, where practicable, DOJ shall supply at least five years of historical data for baseline analysis.

Before formal anomaly reporting begins, BJS and OIG shall conduct a staged validation period using historical data, pilot submissions from selected districts and components, privacy-impact review, data-quality testing, and methodology validation with GAO. During the staged validation period, BJS and OIG may issue internal data-quality findings and implementation recommendations, but OIG may not treat a preliminary model output as a Level Two or Level Three anomaly until the human-review and methodology standards required by this Act are operational.

## **SEC. 15. AUTHORIZATION AND SEVERABILITY.**

There are authorized to be appropriated \$30,000,000 for each of fiscal years 2027 through 2031 to carry out this Act, including secure infrastructure, automated data extraction, historical-data validation, source-file audits, methodology review, and qualified legal, statistical, audit, investigative, privacy, and cybersecurity staff.

If any provision or application is held invalid, the remainder shall not be affected.

## **Budgetary Impact Statement**

The bill authorizes \$30,000,000 for each of fiscal years 2027 through 2031. This authorization is a proposal-design figure, not an official cost estimate. PREA's BJS data-and-research authorization provides a historical analogue at \$15,000,000 per year for fiscal years 2004 through 2010.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The statute creates universal visibility, not universal preclearance.
- The bill now amends existing DOJ statistical-reporting authority rather than relying on a wholly freestanding data architecture.
- BJS owns the statistical architecture, public aggregate reporting, data standards, and transaction dataset; OIG owns source-file audit, contextual anomaly review, protected congressional notice, and interference reporting.
- Final operative decisions supply the principal analytical dataset; earlier stages remain available to detect political alteration within the decision chain.
- Automated extraction limits administrative burden; manual narratives are targeted to decisions where neutral explanation matters most.
- Political data are restricted to public, case-relevant, analytically necessary facts.
- Confidential congressional reporting is not anonymized by default. Redaction, anonymization, classification, delay, or secure-channel reporting may protect legally sensitive information, but may not be used to defeat Congress's ability to understand a material political relationship, comparator group, treatment disparity, and oversight need.
- Random source-file audits address concealment and category manipulation.
- The staged validation period is meant to reduce false positives, privacy risk, data-quality failures, and implementation shock before formal anomaly reporting begins.
- The \$30,000,000 annual authorization is a starting proposal figure anchored to PREA's historical \$15,000,000 annual authorization for BJS prison-rape statistics, data, and research, adjusted upward because DOJ-003 covers a more complex DOJ-wide charging and disposition data system.
- Bipartisan confidential reporting reduces, but cannot eliminate, politicization of congressional oversight.
- The Act is intentionally corrective and deterrent. It does not promise prevention of every first abuse; it creates an institutional avenue for detection, exposure, correction, discipline, and legislative response.

## **Source Notes**

- Source review should include the Inspector General Act, now classified in 5 U.S.C. chapter 4, and GAO evaluation authority under 31 U.S.C. § 717.



- Statistical-reporting analogues should include BJS authority under 34 U.S.C. § 10132, PREA statistical review under 34 U.S.C. § 30303, Death in Custody Reporting Act reporting under 34 U.S.C. § 60105, and Attorney General crime-record authority under 28 U.S.C. § 534.
- Appropriations review should include PREA's historical authorization of \$15,000,000 per year for prison-rape statistics, data, and research in Public Law 108-79, section 4(e).
- Privacy and sensitive-information review should include the Privacy Act, 5 U.S.C. § 552a, Federal Rule of Criminal Procedure 6(e), and the Classified Information Procedures Act where classified information may be implicated.
- DOJ institutional-fit review should include BJS's existing statistical authority, DOJ OIG's statutory oversight role, and DOJ OPR's current jurisdiction over professional-misconduct allegations involving Department attorneys.

# DOJ-005 — Senior DOJ Recusal Review and Transparency Act

## A BILL

To amend section 528 of title 28, United States Code, to require independent review, documentation, temporary transfer of authority, transparency, and compliance safeguards for Department of Justice recusal decisions involving senior officials.

### SECTION 1. SHORT TITLE.

This Act may be cited as the “**Senior DOJ Recusal Review and Transparency Act.**”

### SEC. 2. SENIOR-OFFICIAL RECUSAL REVIEW.

Section 528 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

“(b) **Senior Official Recusal Review.**—

“(1) **Covered officials.**—For purposes of this subsection, the term ‘covered official’ means the Attorney General, Deputy Attorney General, Solicitor General, Associate Attorney General, an Assistant Attorney General, a United States Attorney, the Director or Deputy Director of the Federal Bureau of Investigation, and any acting official exercising substantially equivalent authority.

“(2) **Covered determinations.**—For purposes of this subsection, the term ‘covered determination’ means a determination concerning recusal, nonrecusal, partial recusal, authorization to participate, modification of recusal, termination of recusal, successor authority, access restriction, or substantially equivalent participation question involving a covered official in a criminal investigation or prosecution, or in a matter of substantial national importance designated by regulation.

“(3) **Written disclosure.**—A covered official shall promptly disclose in writing any relationship, interest, prior participation, public commitment, political relationship, personal relationship, financial interest, covered relationship, or other fact that may require disqualification, limitation, authorization, or impartiality review under this section, section 208 of title 18, Department regulations, executive-branch ethics regulations, professional-responsibility rules, or other applicable law or policy.

“(4) **Independent review panel.**—

“(A) A covered determination shall be made by a senior-official recusal review panel established by regulation.

“(B) The panel shall include qualified career representatives of the Department’s ethics office, the Office of the Inspector General of the Department of Justice, and the Office of Government Ethics, except that regulations may provide substitute or additional career reviewers when required by law, privilege, classified-information restrictions, recusal, vacancy, operational necessity, or institutional conflict.

“(C) The affected covered official may provide information to the panel but may not select, remove, supervise, direct, retaliate against, or otherwise influence a panel member with respect to the covered determination.

“(D) A panel member shall be disqualified from participating in a covered determination if the member has a personal, financial, political, professional, supervisory, or other conflict materially affecting the member’s impartiality.

“(5) **Temporary transfer of authority.**—When a substantial and nonfrivolous recusal question is presented, the covered official shall temporarily cease participation in the matter and authority shall pass to the lawful successor official until the panel issues a written determination, unless the panel determines in writing that temporary transfer is unnecessary to prevent conflict, appearance of conflict, or evasion.

“(6) **Timing.**—The panel shall act promptly. Regulations shall establish expedited procedures for urgent matters and should ordinarily require a covered determination within 7 days after the panel receives materially complete information, unless a written extension is necessary.

“(7) **Written determination.**—Each covered determination shall identify the governing authority, material facts, scope, duration, successor official, access restrictions, permitted contacts, procedure for reconsideration, and any authorization to participate.

“(8) **Public and congressional notice.**—

“(A) The Department shall release a public version of a covered determination to the maximum extent consistent with lawful secrecy, privilege, classified-information protection, investigative integrity, fair-trial rights, witness safety, confidential-source protection, and legitimate privacy.

“(B) For a nationally significant matter, an unredacted or less-redacted version shall be preserved and transmitted confidentially to the chair and ranking minority member of the House and Senate Committees on the Judiciary, subject to lawful safeguards.

“(C) Public or congressional notice may be delayed only to the minimum extent necessary to protect an active matter or legally protected information. Delay may not be used to conceal a conflict, evade oversight, or defeat this subsection.

“(9) **Effect of recusal.**—A recused covered official may not directly or indirectly supervise the matter; influence staffing, funding, jurisdiction, access, case strategy, timing, public characterization, appeal, or disposition; communicate a preferred outcome; receive nonpublic briefings except as specifically authorized; or cause another person to exercise authority on the official’s behalf.

“(10) **Authorization to participate.**—Any authorization for a covered official to participate notwithstanding a disclosed conflict, relationship, appearance concern, or impartiality concern shall be narrowly tailored, written, supported by specific findings, and limited in duration. Generalized claims of convenience, policy control, personal confidence, or ordinary hierarchy are insufficient.

“(11) **Modification or termination.**—A recusal may be modified or terminated only through a new written panel determination based on materially changed facts or law. The affected covered official may not resume participation unilaterally.

“(12) **Compliance and corrective action.**—

“(A) Material nondisclosure, misrepresentation, participation contrary to a binding determination, retaliation against reviewing officials, destruction or concealment of records, or indirect evasion shall be referred to the Office of the Inspector General of the Department of Justice and the Office of Professional Responsibility.

“(B) Corrective action may include removal from the matter, reassignment of authority, access restriction, preservation order, reconsideration of affected administrative decisions, and appropriate personnel action under existing law.

“(C) Nothing in this subsection authorizes the panel, the Office of Government Ethics, the Inspector General, the Office of Professional Responsibility, or Congress to direct investigative or prosecutorial merits, require prosecution or declination, dictate case strategy, or exercise prosecutorial authority.

“(13) **Annual reporting.**—The Department shall publish annual aggregate information concerning covered determinations, authorizations, violations, corrective actions, average resolution times, delayed notices, and implementation problems. The Inspector General shall report material interference with panel operations to the House and Senate Committees on the Judiciary.

“(14) **Regulations.**—Not later than 180 days after the date of enactment of this subsection, the Attorney General shall promulgate regulations to carry out this subsection, after consultation with the Office of Government Ethics, the Inspector General of the Department of Justice, the Office of Professional Responsibility, career ethics officials, prosecutors, defense practitioners, and relevant congressional committees.

“(15) **Relation to other law.**—This subsection supplements and does not narrow section 208 of title 18, this section, Department regulations, executive-branch ethics regulations, professional-responsibility rules, whistleblower protections, civil-service protections, Inspector General authorities, congressional oversight authorities, or any more protective recusal, impartiality, ethics, or conflict-of-interest requirement.”.

### **SEC. 3. CONFORMING RULEMAKING AND IMPLEMENTATION.**

Not later than 180 days after the date of enactment of this Act, the Attorney General shall review and revise Department regulations, including section 45.2 of title 28, Code of Federal Regulations, and any relevant Justice Manual provisions, to conform to the amendments made by this Act.

### **SEC. 4. SEVERABILITY.**

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

### **Budgetary Impact Statement**

Administrative workload is likely, including ethics review, written determinations, reporting, and OIG/OPR referrals; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

### **Drafting Notes**

- The bill now amends existing DOJ disqualification authority in 28 U.S.C. § 528 rather than relying on a wholly freestanding recusal architecture.
- Section 528 is the preferred statutory hook because it already directs the Attorney General to issue DOJ disqualification rules for personal, financial, or political conflicts or appearances of conflict.
- The proposal leaves existing substantive conflict rules intact and strengthens senior-official disclosure, independent review, transfer, notice, anti-evasion, and compliance mechanisms.
- The panel decides only who may participate and who temporarily exercises authority; it may not direct investigative or prosecutorial merits.
- OGE participation supplies government-wide ethics expertise, while DOJ OIG and OPR referrals preserve existing oversight and professional-responsibility channels.
- Confidential congressional notice is limited by lawful secrecy, privilege, classified-information protection, investigative integrity, fair-trial rights, witness safety, confidential-source protection, and privacy.

- T3 identified no direct prior bill creating this exact senior-official recusal-review panel. The closest legislative analogue is the Special Counsel Independence and Integrity Act, S. 2644, 115th Congress, because it used a recusal-aware DOJ successor rule for special-counsel removal.
- T3 did not assign a dollar estimate because the proposal specifies administrative review and reporting duties but no new funded program or appropriation.

## Source Notes

- Source review should include DOJ's statutory disqualification-rule authority, 28 U.S.C. § 528; the financial-conflict statute, 18 U.S.C. § 208; DOJ's attorney disqualification rule, 28 C.F.R. § 45.2; the executive-branch impartiality standard in 5 C.F.R. § 2635.502; and Inspector General authorities in 5 U.S.C. chapter 4.
- Institutional-fit review should include OGE's executive-branch ethics-program authority under 5 U.S.C. § 13122, DOJ OIG's oversight role, and DOJ OPR's professional-misconduct jurisdiction.
- Prior-proposal review should include the Special Counsel Independence and Integrity Act, S. 2644, 115th Congress, and the official reported-text PDF at GovInfo.
- Pending judicial vulnerability review should refresh Supreme Court removal-power and executive-control dockets, including *Trump v. Slaughter*, No. 25-332, before public circulation.
- T2 and T3 review should test whether OGE participation should be voting, consultative, or review-only to reduce Article II and DOJ-management objections while preserving independent ethics input.
- Legislative-counsel review should verify whether the amendment should be codified directly in 28 U.S.C. § 528, in a neighboring section, or as a new section cross-referenced by section 528.

# DOJ-007 — Independent Investigative Counsel Amendment

## Proposed Constitutional Amendment

**Section 1.** Congress may by law authorize a court of the United States, or a judicial panel established by law, to appoint an independent investigative counsel when credible information and a conflict of interest materially impair the ordinary investigation of a possible offense, obstruction, retaliation, evidence destruction, or serious abuse of federal investigative or prosecutorial authority involving the President or other senior executive officials.

**Section 2.** A counsel appointed under this article shall exercise the investigative authority prescribed by law and shall not be subject to direction, supervision, or removal by the President or by any officer acting under presidential authority, except as implementing law may provide consistently with the independence of the office. The authority may include investigation of a sitting President, compulsory process, grand-jury proceedings, evidence preservation, prosecution of persons other than a sitting President within assigned jurisdiction, and transmission of substantial and credible information to the House of Representatives and appropriate committees of Congress.

**Section 3.** Investigation and reporting under this article may concern conduct that is immune from criminal prosecution, provided that immunity is not treated as evidence of wrongdoing and the counsel does not purport to impose criminal liability where immunity applies.

**Section 4.** A sitting President shall not be indicted or tried under authority conferred by this article while holding office. Congress may provide for suspension of otherwise applicable limitation periods during presidential tenure and for a reasonable period thereafter.

**Section 5.** Congress shall provide by law for jurisdiction, qualifications, tenure, resources, reporting, removal standards, judicial review, and termination. Removal shall require defined cause and written findings and shall be subject to expedited judicial review.

**Section 6.** The appointing court or panel shall not direct investigative or prosecutorial decisions and shall not participate in any criminal case arising from an appointment made under this article.

**Section 7.** Nothing in this article shall displace or bypass impeachment, alter the respective impeachment powers of the House and Senate, make investigation a condition precedent to impeachment, or determine the substantive scope of presidential criminal immunity.

**Section 8.** Congress shall have power to enforce and implement this article by appropriate legislation.

## Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- The amendment authorizes Congress to create a nonexecutive appointment trigger for extraordinary executive-conflict investigations.
- It preserves the distinction between investigation and prosecution of a sitting President.
- It does not determine the substantive scope of presidential criminal immunity; IMM-001 addresses that issue separately.
- The linked enabling legislation supplies the implementing structure that would operate only after ratification.

## Source Notes

- Source review should include *Morrison v. Olson*, *Trump v. United States*, the Department of Justice archive of the Mueller Report, the OLC sitting-President indictment opinion, CRS's special-counsel and independent-counsel report, current 28 C.F.R. Part 600, and the Senate Historical Office Watergate Committee account.
- The amendment is intended to solve the trigger problem left by executive-controlled special-counsel regulations and narrower removal-protection bills such as the Special Counsel Independence and Integrity Act.
- T4 refreshed pending removal-power dockets and confirmed that the amendment vehicle is not mooted by those pending matters. Before publication, source review should still check grand-jury disclosure mechanics, implementing-statute safeguards, official cost and expenditure records, and current outcomes in pending executive-power cases.

# DOJ-007 — Independent Investigative Counsel Appointment and Accountability Act

This proposed enabling legislation depends on ratification of the Independent Investigative Counsel Amendment.

## A BILL

To establish procedures for judicial appointment, authority, independence, accountability, and termination of independent investigative counsel in extraordinary cases of executive conflict.

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Independent Investigative Counsel Appointment and Accountability Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to ensure that credible allegations involving the President or senior executive officials cannot be suppressed because the subjects control the ordinary investigative chain; provide a bounded independent fact-finding path when credible information suggests possible serious criminal or investigative misconduct but Congress lacks the political will, institutional capacity, or reliable factual record necessary to initiate an adequate inquiry; preserve evidence and congressional access during presidential tenure; protect investigation from presidential interference; permit lawful prosecution of other persons within assigned jurisdiction; investigate serious misuse of federal investigative or prosecutorial authority even where presidential immunity may bar prosecution; and preserve impeachment as the constitutional mechanism for removal of a sitting President.

## SEC. 3. DEFINITIONS.

A **covered official** includes the President, Vice President, Attorney General, Deputy Attorney General, Solicitor General, FBI Director or Deputy Director, White House Counsel, Cabinet officers, senior Executive Office personnel, senior DOJ political appointees, and persons whose investigation presents a substantial conflict for executive leadership.

**Credible information** means specific and articulable information providing a reasonable basis to believe that a federal offense, obstruction, retaliation, evidence destruction, concealment, unlawful interference with federal law enforcement, or serious abuse of investigative or prosecutorial authority may have occurred.

An **extraordinary executive conflict** is an actual or objectively reasonable conflict materially impairing DOJ’s capacity or perceived capacity to investigate impartially.

The **Special Division** is the judicial panel established by section 4. The **Independent Investigative Counsel** is the inferior officer appointed under this Act.

## SEC. 4. SPECIAL DIVISION.

A three-judge panel of United States courts of appeals shall be selected through a random and publicly prescribed Judicial Conference procedure, with no two judges from the same circuit and staggered terms. Judges shall be disqualified from any resulting criminal case.

The Special Division may decide whether appointment conditions exist, appoint counsel, define or modify jurisdiction, receive required notices, adjudicate removal, and determine completion. It may not direct investigative steps, charging decisions concerning other persons, plea negotiations, litigation strategy, sentencing positions, or good-faith departures from nonbinding DOJ policy.

## SEC. 5. AUTHORIZED APPLICATIONS AND REFERRALS.

A verified sealed application may be submitted by the Attorney General or Deputy Attorney General; an Inspector General with related jurisdiction; the Office of Government Ethics Director; either House by resolution; either Judiciary Committee by majority vote; a bipartisan one-third minority of either Judiciary Committee; or an Article III court making a qualifying referral.

A court may refer a matter when it has found executive conduct unlawful, the record contains substantial and credible information of a possible federal offense, related obstruction, retaliation, or serious misuse of federal investigative authority, and an extraordinary executive conflict may impair ordinary investigation. Such a referral is not a finding of guilt, probable cause, corrupt intent, or impeachability and is not admissible to prove an offense.

Private persons may submit information to an authorized applicant but may not petition the Special Division directly.

## SEC. 6. APPOINTMENT STANDARD.

The Special Division shall appoint counsel only upon written findings that credible information indicates a possible federal offense, related obstruction, retaliation, evidence destruction, or serious abuse of investigative or prosecutorial authority; the matter concerns a covered official or presents extraordinary conflict; ordinary recusal or reassignment is inadequate; and appointment is necessary and proportionate.

Submission by an authorized applicant does not create entitlement to appointment. The Special Division shall independently review the application and may deny appointment if the statutory conditions are not satisfied, if lesser measures are adequate, or if appointment would be unnecessary or disproportionate.

The order shall identify the subject matter, jurisdiction, institutional conflict, powers conferred, reporting requirements, and reasons lesser measures are inadequate. Public and sealed versions shall be issued consistent with investigative integrity, grand-jury secrecy, classification, and individual rights.

## **SEC. 7. QUALIFICATIONS, APPOINTMENT, AND TERM.**

Counsel shall be a United States citizen and attorney in good standing with substantial federal criminal, judicial, or complex-litigation experience; demonstrated independence and integrity; no material conflict; and no recent representation or senior political service for a principal subject.

Selection shall be merit-based. Counsel shall take the constitutional oath and serve until completion or lawful termination. Appointment under this Act is an alternative to, not a replacement for, lawful executive appointment of special counsel.

## **SEC. 8. JURISDICTION.**

Jurisdiction includes the matters identified in the order; federal offenses arising from the same course of conduct; obstruction, retaliation, false statements, witness tampering, evidence destruction, and concealment affecting the investigation; persons who aid or conspire in such conduct; and serious use or attempted use of federal investigative or prosecutorial authority for a sham, pretextual, retaliatory, protective, personal, electoral, or partisan case-specific purpose.

Covered misuse may include seeking investigation or prosecution of an opponent for an improper purpose; seeking protection, dismissal, leniency, or nonenforcement for an ally; obtaining confidential investigative information for personal or political use; manipulating staffing, jurisdiction, resources, or timing to obtain a desired result; directing materially false representations; or retaliating against resistance to such conduct.

Material expansion requires Special Division approval limited to connectedness and continuing necessity arising from the executive conflict. The panel shall not review investigative merits.

## **SEC. 9. POWERS AND DUTIES.**

### ***(a) Investigative authority.***

Within jurisdiction, counsel may conduct grand-jury proceedings; seek subpoenas, warrants, immunity orders, and other lawful process; interview witnesses and subjects; litigate privilege, classification, immunity, and access disputes; preserve evidence; appoint and supervise staff; request agency assistance; and exercise authority necessary to complete the investigation.

### ***(b) Other persons.***

Counsel may initiate, decline, dismiss, negotiate, try, and appeal criminal cases against persons other than a sitting President when those persons fall within assigned jurisdiction.

### ***(c) Sitting President.***

Counsel may investigate a sitting President, collect and preserve evidence, use grand-jury process, investigate obstruction or retaliation, and transmit substantial and credible information to Congress. No officer, including the President or Attorney General, may terminate, limit, delay, or interfere because the subject is the sitting President.

A sitting President may not be indicted or tried under this Act while holding office. This prohibition does not prevent investigation, evidence preservation, lawful process appropriately tailored to official duties, reporting to Congress, or prosecution after the President leaves office if otherwise lawful.

### ***(d) Immune official conduct.***

Counsel may investigate conduct protected from criminal prosecution by presidential immunity when necessary to establish facts, preserve evidence, identify the acts of nonimmune participants, inform impeachment or legislative oversight, or recommend institutional safeguards. Counsel shall clearly distinguish factual findings from criminal conclusions and shall not characterize immunity itself as evidence of wrongdoing.

### ***(e) DOJ rules and policies.***

Counsel shall ordinarily comply with generally applicable DOJ rules and policies. Counsel may depart from a nonstatutory rule for specified good cause when compliance would impair independence, reflect the underlying conflict, frustrate the appointment, or be materially unsuitable. Counsel shall provide sealed written notice before departure or as soon afterward as practicable. Notice does not require approval; the Special Division may preserve it and consider knowing material abuse in removal proceedings but may not countermand the policy judgment.

## **SEC. 10. PERSONNEL, RECORDS, AND ASSISTANCE.**

Counsel may employ sufficient independent personnel to avoid effective dependence on an agency controlled by a subject. Federal agencies shall provide reasonably necessary personnel, records, facilities, and technical assistance subject to lawful privilege and judicial process.

Detailed personnel may not be removed, reassigned, disciplined, denied access, or adversely treated because of lawful service. Access disputes shall receive expedited adjudication by a judge not serving on the Special Division. Classification alone does not authorize denial of access, though lawful security procedures remain applicable.

## **SEC. 11. INDEPENDENCE AND ANTI-EVASION.**

No federal officer or employee may knowingly obstruct or materially impede counsel; conceal, destroy, alter, or withhold evidence; deny lawful assistance; retaliate against witnesses or personnel; or use classification, funding, reassignment, removal, privilege, or administrative control to frustrate the investigation.

Counsel shall notify the Special Division and appropriate congressional committees of substantial interference, subject to lawful delay protecting an active investigation, grand jury, national security, or individual rights.

## **SEC. 12. REMOVAL AND DISCIPLINE.**

The President and executive officers may not remove, suspend, demote, reassign, or materially restrict counsel. A sealed removal petition may be filed by the Attorney General, DOJ Inspector General, Chief Judge of the D.C. Circuit, either Judiciary Committee by majority vote, or the Special Division based on substantial and credible information.

Removal requires incapacity, serious misconduct, knowing material jurisdictional violation, substantial dereliction, disqualifying conviction, knowing material abuse of policy-departure authority, or another condition incompatible with office integrity. Disagreement with investigative judgment, reporting, lawful prosecution of another person, or a good-faith policy departure is not cause.

Counsel shall receive notice, an opportunity to respond, and an evidentiary hearing where facts are disputed. Supreme Court review shall be expedited.

## **SEC. 13. FUNDING.**

Protected appropriations shall be available in amounts reasonably necessary, subject to a statutory annual ceiling adjustable for inflation and Special Division approval of additional expenditures. Executive officers may not impound or condition funds. GAO shall audit expenditures without examining investigative merits.

## **SEC. 14. REPORTING AND IMPEACHMENT INFORMATION.**

Counsel shall provide periodic administrative reports that protect grand-jury secrecy, classified information, fair-trial rights, and uncharged persons.

When substantial and credible information indicates presidential conduct potentially relevant to impeachment, counsel shall transmit a confidential report and supporting material to the House Judiciary Committee. The report shall distinguish judicial findings, possible criminal evidence, immune official conduct, evidence bearing on intent or abuse, conduct of other participants, and unresolved questions.

When an investigation reveals a serious institutional weakness without necessarily establishing criminal liability, counsel may transmit a confidential legislative-oversight report to the appropriate committees. Such a report may identify factual findings, legal constraints, recurring vulnerabilities, and recommended statutory or constitutional safeguards.

The House retains exclusive authority to determine whether impeachment is warranted. Appointment and investigation do not remove, suspend, disqualify, or alter tenure; do not authorize counsel or courts to decide impeachment; do not bypass or replace impeachment; and do not require Congress to await completion.

A supervising district court may authorize disclosure of grand-jury material to the House Judiciary Committee when legally permissible and necessary to its constitutional function.

At completion, counsel shall issue a report with a public version subject to lawful redaction and judicial resolution of disputes by a judge outside the Special Division.

## **SEC. 15. LIMITATIONS PERIODS.**

For an offense within assigned jurisdiction allegedly committed by a sitting President, any otherwise applicable limitation period shall be suspended during presidential tenure and for 180 days thereafter, to the maximum extent permitted by the Constitution. Tolling preserves later accountability and does not authorize indictment or trial while the President remains in office.



## **SEC. 16. COMPLETION AND TERMINATION.**

Counsel shall notify the Special Division when assigned matters are complete or lawfully transferred. The Division may terminate only when no substantial work remains, continued appointment is unnecessary to address the conflict, or no lawful jurisdiction remains. It may not terminate because it disagrees with pace, theory, investigative judgment, prosecution of another person, reporting, or policy departure.

Records shall be transferred to the National Archives under secure procedures preserving secrecy, classification, lawful congressional access, and future judicial process.

## **SEC. 17. JUDICIAL REVIEW.**

Courts shall expedite actions concerning constitutionality, authority, access, removal, and enforcement. A mere subject or target may not ordinarily obtain interlocutory review before a judicially reviewable action. A criminal defendant retains all constitutional and statutory challenges in the resulting proceeding.

## **SEC. 18. RULES OF CONSTRUCTION.**

Nothing in this Act authorizes judicial prosecution; permits Congress or a court to direct a particular case; alters impeachment powers; establishes that unlawful or immune conduct is automatically criminal or impeachable; makes investigation a substitute for impeachment; prevents lawful executive appointment of other special counsel; diminishes defendants' rights; authorizes unlawful disclosure; expands or abolishes substantive presidential immunity; or restricts the pardon power.

The central rule is that this Act protects investigation and reporting from presidential control; it does not authorize prosecution of a sitting President or decide the substantive scope of immunity.

## **SEC. 19. SEVERABILITY AND EFFECTIVE DATE.**

Invalidity of one provision does not affect the remainder. The Act takes effect upon certification of ratification of the authorizing constitutional amendment and shall not impose retroactive substantive criminal liability.

## **Budgetary Impact Statement**

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The statute separates protected investigation from prosecution of a sitting President.
- It authorizes factual investigation and congressional reporting even where official-act immunity bars criminal prosecution.
- Other persons may be prosecuted within jurisdiction.
- Evidence preservation, House reporting, legislative oversight, and tolling prevent presidential tenure or immunity from making misconduct institutionally undiscoverable.
- IMM-001 separately addresses substantive immunity.
- The Special Division appoints and protects counsel but does not manage investigative or prosecutorial merits.

## **Source Notes**

- Source review should include *Morrison v. Olson*, *Trump v. United States*, the Department of Justice archive of the Mueller Report, the OLC sitting-President indictment opinion, CRS's special-counsel and independent-counsel report, current 28 C.F.R. Part 600, and the Senate Historical Office Watergate Committee account.
- The Special Counsel Independence and Integrity Act is a useful narrower comparator because it addressed post-appointment removal review rather than a nonexecutive appointment trigger.
- T4 refreshed pending removal-power dockets and located only a secondary Mueller-investigation cost analogue. Before publication, source review should still check grand-jury disclosure mechanics, limitations-period tolling analogues, protected-appropriation models, official cost and expenditure records, and current outcomes in pending removal-power cases.

# DOJ-009 — Senior Department of Justice Professional Qualification and Good Standing Act

## A BILL

To amend title 28, United States Code, to establish professional-qualification, good-standing, disciplinary-disclosure, continuing-notification, and temporary-delegation requirements for senior Department of Justice legal offices; to clarify the relationship between those requirements and existing attorney-ethics rules for Government attorneys; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Senior Department of Justice Professional Qualification and Good Standing Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve the professional legitimacy of the Department of Justice;
2. ensure that senior Department legal officers possess baseline professional qualifications to supervise the legal work of the United States;
3. recognize that attorney licensure and bar membership provide external professional-conduct checks administered by courts, bar authorities, disciplinary bodies, and licensing authorities;
4. require admission to practice law and good standing for covered senior Department legal offices;
5. require disclosure of bar memberships, final professional discipline, and pending formal disciplinary charges;
6. require continuing notice of final professional discipline while serving;
7. establish temporary delegation and restoration procedures where a covered officer loses professional good standing or receives final discipline materially inconsistent with senior Department legal service;
8. preserve presidential nomination authority and Senate advice-and-consent authority subject to statutory qualifications for offices Congress creates; and
9. prevent pending, unadjudicated, frivolous, or politically motivated complaints from becoming automatic disqualification tools.

## SEC. 3. SENIOR DEPARTMENT LEGAL-OFFICER QUALIFICATIONS.

Chapter 31 of title 28, United States Code, is amended by inserting after section 506 the following:

### “§ 506A. Professional qualifications and good standing for senior Department legal offices

#### “(a) Definitions.

“In this section:

“(1) **Covered office.** The term ‘covered office’ means—

“(A) Attorney General;

“(B) Deputy Attorney General;

“(C) Associate Attorney General;

“(D) Solicitor General;

“(E) Assistant Attorney General; and

“(F) any other Department of Justice office designated by the Attorney General by regulation as a senior legal-supervisory office for purposes of this section.

“(2) **Covered officer.** The term ‘covered officer’ means any person nominated, appointed, designated, or serving in a covered office.

“(3) **United States jurisdiction.** The term ‘United States jurisdiction’ means any State, the District of Columbia, Puerto Rico, Guam, the Northern Mariana Islands, the Virgin Islands, American Samoa, any federally recognized tribal court jurisdiction that licenses attorneys, or any federal court that admits attorneys to practice.

“(4) **Good standing.** The term ‘good standing’ means that the covered officer is currently admitted to practice law in at least one United States jurisdiction and is not suspended, disbarred, resigned in lieu of discipline, administratively ineligible for disciplinary reasons, or otherwise finally determined by a licensing authority to be ineligible to practice law in that jurisdiction.

“(5) **Final professional discipline.** The term ‘final professional discipline’ means a final, non-interlocutory order, judgment, decision, or disposition by a court, bar authority, disciplinary authority, or licensing authority imposing disbarment, suspension, public censure, public reprimand, resignation in lieu of discipline, reciprocal discipline, or comparable public professional discipline.

“(6) **Pending formal disciplinary charge.** The term ‘pending formal disciplinary charge’ means a formally filed public disciplinary complaint, charge, petition, or equivalent adjudicatory proceeding initiated by a court, bar authority, disciplinary authority, or licensing authority after preliminary screening or investigation.

“(7) **Materially inconsistent discipline.** The term ‘materially inconsistent discipline’ means final professional discipline that, considering the nature of the covered office, materially bears on the covered officer’s ability to exercise legal supervision, prosecutorial judgment, candor to tribunals, professional independence, fiduciary duties, confidentiality obligations, or ethical duties owed to the United States.

**“(b) Professional qualification requirement.**

“(1) **Requirement.** A person may not be appointed, designated, or continue serving in a covered office unless the person is admitted to practice law and in good standing in at least one United States jurisdiction.

“(2) **Acting service.** Paragraph (1) applies to any person designated to perform the functions and duties of a covered office in an acting capacity under section 508 of this title, the Federal Vacancies Reform Act of 1998, section 3345 et seq. of title 5, or any other statute authorizing acting service in a covered office.

“(3) **No effect on non-legal offices.** This section does not impose a bar-admission requirement on Department of Justice offices that are not covered offices.

**“(c) Pre-nomination, appointment, and designation disclosure.**

“(1) **Disclosure required.** Before appointment, Senate confirmation, or acting designation to a covered office, the covered officer shall provide to the President, the Department of Justice Designated Agency Ethics Official, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate—

“(A) all current and former bar memberships;

“(B) all jurisdictions in which the officer is currently admitted to practice law;

“(C) current good-standing status in each jurisdiction where admitted;

“(D) all final professional discipline;

“(E) any resignation in lieu of discipline;

“(F) any reciprocal discipline;

“(G) any pending formal disciplinary charge;

“(H) any administrative ineligibility based on professional-discipline reasons; and

“(I) any material limitation on the officer’s eligibility to practice law.

“(2) **Certification.** The covered officer shall certify under penalty of perjury that the disclosure is true, complete, and correct to the best of the officer’s knowledge after reasonable inquiry.

“(3) **Supplementation.** The covered officer shall supplement the disclosure promptly if information materially changes before appointment, confirmation, or designation.

**“(d) Continuing duty to notify.**

“(1) **Notice required.** A covered officer serving in a covered office shall notify the President, the Deputy Attorney General or next highest non-conflicted Department official, the Inspector General of the Department of Justice, the Office of Professional Responsibility, the Designated Agency Ethics Official, the Office of Government Ethics, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate, not later than 7 days after—

“(A) loss of good standing in any jurisdiction;

“(B) imposition of final professional discipline;

“(C) resignation in lieu of discipline;

“(D) initiation of a pending formal disciplinary charge;

“(E) reciprocal discipline;

“(F) suspension, disbarment, or administrative ineligibility for disciplinary reasons; or

“(G) any material limitation on eligibility to practice law.

“(2) **Contents.** The notice shall identify the jurisdiction, disciplinary body, nature of the action, effective date, current procedural posture, and any limitation on the covered officer's ability to practice law.

“(3) **Public reporting.** For Senate-confirmed covered offices, the Department shall publish a public notice of final professional discipline, suspension, disbarment, resignation in lieu of discipline, or loss of all good-standing status, except that information may be redacted to protect privacy, national security, law-enforcement sensitivity, or legally protected information.

***“(e) Effect of pending complaints and pending formal charges.***

“(1) **No automatic disqualification.** A pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge shall not automatically disqualify a person from nomination, appointment, designation, or service in a covered office.

“(2) **Disclosure and evaluation.** A pending formal disciplinary charge shall be disclosed and may be considered by the President, the Senate, the Department of Justice, the Office of Government Ethics, and appropriate ethics officials in evaluating professional fitness, conflicts, or temporary recusal needs.

“(3) **Protection against weaponization.** No legal consequence under this section may be based solely on a complaint or allegation that has not resulted in a pending formal disciplinary charge or final professional discipline.

***“(f) Disqualification from covered duties and temporary delegation upon loss of good standing or final discipline.***

“(1) **Duty disqualification and automatic temporary delegation.** If a covered officer loses good standing in all United States jurisdictions in which the officer is admitted, is suspended or disbarred in all such jurisdictions, resigns in lieu of discipline, or receives final professional discipline materially inconsistent with service in the covered office, the covered officer is disqualified from exercising the legal-supervisory duties of that office, and those duties shall temporarily devolve to the next eligible officer authorized by law.

“(2) **Scope.** Temporary delegation under this subsection applies to legal-supervisory duties, litigation authority, prosecutorial supervision, professional-responsibility supervision, approval of legal positions, and other duties materially requiring professional legal judgment.

“(3) **Succession and vacancies laws preserved.** Nothing in this subsection authorizes service by a person otherwise ineligible under section 508 of this title, the Federal Vacancies Reform Act of 1998, section 3345 et seq. of title 5, or any other applicable succession or vacancies statute.

“(4) **Presidential and Senate authority preserved.** Nothing in this subsection prevents the President from nominating, appointing, or designating an eligible replacement, or prevents the Senate from confirming an eligible nominee.

“(5) **No automatic removal.** This subsection disqualifies a covered officer from exercising covered legal-supervisory duties and provides for temporary devolution of those duties. It does not by itself remove a covered officer from office, except as otherwise provided by law.

“(6) **Restoration.** A covered officer whose duties are temporarily delegated may resume those duties only after regaining good standing in at least one United States jurisdiction and after the Designated Agency Ethics Official, in consultation with the Office of Professional Responsibility and the Office of Government Ethics, determines that no unresolved final professional discipline remains materially inconsistent with service.

“(7) **Written determination.** Any restoration determination shall be transmitted to the President, the Inspector General of the Department of Justice, the Office of Professional Responsibility, the Office of Government Ethics, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate.

***“(g) Material-inconsistency review.***

“(1) **Review required.** If a covered officer receives final professional discipline other than disbarment, suspension, or resignation in lieu of discipline, the Designated Agency Ethics Official, in consultation with the Office of Professional Responsibility and the Office of Government Ethics, shall determine whether the discipline is materially inconsistent with service in the covered office.

“(2) **Factors.** The determination shall consider—

“(A) the nature and seriousness of the misconduct;

“(B) whether the misconduct involved dishonesty, fraud, deceit, misrepresentation, obstruction, abuse of legal process, misuse of client information, breach of fiduciary duty, or lack of candor to a tribunal;

“(C) whether the misconduct relates to public office, government service, prosecutorial judgment, law-enforcement authority, professional supervision, or litigation conduct;

“(D) whether the misconduct resulted in action by an external bar authority, court, licensing authority, or disciplinary body charged with regulating professional conduct;

“(E) whether the discipline is final;

“(F) whether the officer remains in good standing in at least one United States jurisdiction;

“(G) whether temporary recusal, screening, or delegation can adequately protect the Department's interests; and

“(H) the public interest in the Department's integrity and professional independence.

“(3) **Written determination.** The determination shall be written and transmitted to the President, the Inspector General of the Department of Justice, the Office of Professional Responsibility, the Office of Government Ethics, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate.

**“(h) Recusal, screening, and limited delegation.**

“If final professional discipline or a pending formal disciplinary charge presents a specific conflict, appearance concern, or professional-responsibility issue short of automatic temporary delegation, the covered officer shall consult with the Designated Agency Ethics Official and Office of Professional Responsibility regarding recusal, screening, limited delegation, or other protective measures.

**“(i) Office of Professional Responsibility and Inspector General review.**

“(1) **OPR review.** The Office of Professional Responsibility shall review any final professional discipline, loss of good standing, or pending formal disciplinary charge involving a covered officer where the matter may affect the officer's legal-supervisory duties.

“(2) **Inspector General review.** The Inspector General of the Department of Justice may review Department compliance with this section, including disclosure, notification, delegation, and restoration procedures.

“(3) **Reports.** The Inspector General may report findings and recommendations to the Attorney General, the President, Congress, or the public, consistent with law and appropriate protections for confidential or protected information.

**“(j) Regulations.**

“(1) **In general.** Not later than 180 days after enactment, the Attorney General shall promulgate regulations implementing this section, including procedures for disclosure, verification of good standing, notice, temporary delegation, restoration, recusal, screening, and material-inconsistency review.

“(2) **Conflict rule.** If the Attorney General is unavailable, conflicted, ineligible, or subject to review under this section, the Deputy Attorney General or next eligible non-conflicted covered officer shall promulgate the regulations.

**“(k) Rules of construction.**

“Nothing in this section shall be construed to—

“(1) require disqualification based solely on a pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge;

“(2) limit the President's nomination authority except by establishing statutory qualifications for offices created by law;

“(3) limit the Senate's advice-and-consent authority;

“(4) create a private right of action;

“(5) authorize collateral attack on otherwise valid Department actions solely because of a covered officer's later-discovered disclosure violation, unless otherwise provided by law;

“(6) limit any stricter ethics, recusal, disciplinary, or professional-responsibility requirement otherwise applicable to a covered officer;

“(7) alter the authority of any State, court, bar authority, disciplinary authority, or licensing authority to regulate the professional conduct of attorneys; or

“(8) prevent Congress from requesting or considering information about pending complaints, professional fitness, or disciplinary matters during confirmation or oversight.”.

## **SEC. 4. ATTORNEY GENERAL SUCCESSION CONFORMING AMENDMENT.**

Section 508 of title 28, United States Code, is amended by adding at the end the following:

**“(d) Professional qualification for acting service.**

“A person may not perform the functions and duties of the Attorney General under this section unless the person is eligible to serve under section 506A. If the next officer in the order of succession is ineligible under section 506A, the functions and duties of the Attorney General shall devolve to the next eligible officer authorized by law.”.

## **SEC. 5. ATTORNEY ETHICS CONFORMING AMENDMENT.**

Section 530B of title 28, United States Code, is amended by adding at the end the following:

**“(d) Relationship to senior Department legal-officer qualifications.**

“Nothing in this section limits the professional-qualification, disclosure, notification, delegation, or review requirements under section 506A. Compliance with this section, including any applicable State laws and rules and local Federal court rules governing attorneys, may be considered in any material-inconsistency review under section 506A.”.

## SEC. 6. COMPENSATION-LIMITATION CONFORMING AMENDMENT.

Section 530C(c) of title 28, United States Code, is amended by adding at the end the following:

### **“(2) Senior Department legal officers.**

“Paragraph (1) shall not be construed to limit, displace, or satisfy section 506A. A covered officer under section 506A who is compensated for service materially requiring professional legal judgment must satisfy both paragraph (1) and section 506A.”.

## SEC. 7. CLERICAL AMENDMENT.

The table of sections for chapter 31 of title 28, United States Code, is amended by inserting after the item relating to section 506 the following:

“506A. Professional qualifications and good standing for senior Department legal offices.”.

## SEC. 8. EFFECTIVE DATE; TRANSITION.

### **(a) Effective date.**

This Act and the amendments made by this Act shall take effect 90 days after enactment.

### **(b) Initial disclosure by serving covered officers.**

A covered officer serving on the effective date shall submit the disclosure required under section 506A(c) of title 28, United States Code, as added by this Act, not later than 30 days after the effective date.

### **(c) No automatic effect from pending complaints.**

Nothing in this Act or the amendments made by this Act shall be construed to impose automatic disqualification, temporary delegation, or removal from duty based solely on a pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge.

## SEC. 9. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provision or amendment to any other person or circumstance shall not be affected.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- This draft has been converted from a freestanding bill into an existing-law amendment package following DOJ-009's T2 blocker review.
- The proposed new section 506A placement is provisional. Legislative counsel should verify whether the better codification location is after 28 U.S.C. § 506, elsewhere in chapter 31, or in another title 28 location.
- The draft uses 28 U.S.C. § 508 to connect the good-standing rule to Attorney General succession and acting service.
- The draft uses 28 U.S.C. § 530B to connect the proposal to the existing federal rule that Government attorneys are subject to State laws and rules and local Federal court rules governing attorneys.
- The draft uses 28 U.S.C. § 530C(c)(1) as an existing compensation-related attorney-licensure analogue and clarifies that the existing compensation limitation does not replace the broader good-standing and disclosure rule.
- T3 reviewed the Federal Vacancies Reform Act cross-reference as a functional analogue for duty devolution and no-force-or-effect consequences, but legislative counsel should still verify exact interaction with acting-service eligibility, statutory succession, and any nonratification rule before external circulation.
- The draft deliberately distinguishes pending complaints and pending formal charges from final professional discipline.
- Pending complaints are not automatic disqualifiers.
- Pending formal disciplinary charges trigger disclosure and may support ethics review, recusal, screening, or Senate evaluation, but not automatic disqualification.
- Duty disqualification and automatic temporary delegation are reserved for loss of good standing in all admitted jurisdictions, suspension or disbarment in all such jurisdictions, resignation in lieu of discipline, or final professional discipline materially

inconsistent with senior DOJ legal service.

- The draft uses duty devolution rather than automatic removal from office because T2 follow-up identified the Federal Vacancies Reform Act's function-and-duty model as a closer analogue than automatic removal of a Senate-confirmed executive officer.
- Appointments Clause, nomination-authority, and separation-of-powers review by qualified public-law counsel remains necessary before treating this draft as review-ready.

## Source Notes

- 28 U.S.C. chapter 31 contains the baseline statutory provisions for the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, Assistant Attorneys General, Attorney General succession, Attorney General functions, litigation authority, and attorney ethical standards for the Government.
- 28 U.S.C. § 508 governs Attorney General succession and is the most direct title 28 hook for acting service by Department officers.
- 28 U.S.C. § 530B already subjects Department attorneys to State laws and rules and local Federal court rules governing attorneys.
- 28 U.S.C. § 530C(c)(1) limits payment of compensation for services by an individual employed as an attorney unless the individual is licensed and authorized to practice in a State, territory, or the District of Columbia.
- 5 U.S.C. § 3348 supplies an analogue for treating protected functions as vacant and unauthorized actions as ineffective when acting service is not authorized.
- 5 U.S.C. §§ 3345-3349d should be reviewed for interaction with any acting-service provision.
- DOJ Office of Professional Responsibility and DOJ Inspector General authorities should be reviewed for implementation fit before publication.
- Constitution Annotated materials on the Appointments Clause and restrictions on Congress's appointment-related authority should be reviewed before publication because the draft regulates qualifications, disclosure, and duty consequences for presidentially appointed and Senate-confirmed legal offices.

# ELEC-001 — Federal Executive Election Noninterference Act

## A BILL

To amend the Hatch Act to prohibit the President, Vice President, and other federal executive officials from using official authority or influence to interfere with state or local election administration for a preferred electoral outcome; to provide expedited civil remedies, record-preservation requirements, administrative enforcement, and criminal penalties for knowing and coercive violations; and for other purposes.

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Executive Election Noninterference Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are—

1. to preserve the lawful authority of States and their political subdivisions to administer elections under State law, subject to the Constitution and valid Acts of Congress;
2. to prohibit the use of federal executive office, authority, resources, or influence to obtain, prevent, alter, or secure a preferred electoral outcome through a State or local election function;
3. to preserve lawful federal enforcement of voting-rights, civil-rights, election-security, campaign-finance, foreign-interference, and election-crime laws;
4. to provide rapid judicial protection before unlawful federal executive interference produces irreversible consequences; and
5. to ensure documentation, independent investigation, and accountability when senior executive officials are implicated.

## TITLE I — HATCH ACT AMENDMENTS

### SEC. 101. FEDERAL EXECUTIVE ELECTION NONINTERFERENCE.

Chapter 73 of title 5, United States Code, is amended by inserting after section 7323 the following:

#### **§ 7323A. Federal executive interference with State and local election administration**

**(a) General prohibition.**—A covered federal executive official may not knowingly use, direct, threaten, authorize, request, or cause the use of official authority or influence derived from federal office to interfere with a State or local election function for the purpose of effectuating, preventing, altering, or securing a preferred electoral outcome.

**(b) Specifically prohibited conduct.**—A violation of subsection (a) occurs when a covered federal executive official, acting with the purpose specified in subsection (a), knowingly seeks, directs, pressures, threatens, authorizes, requests, or materially assists another person to—

1. add, manufacture, alter, destroy, suppress, exclude, count, or refuse to count a ballot or vote contrary to applicable law;
2. state, record, transmit, canvass, recount, or certify a vote total or election result the official knows to be materially false;
3. alter, withhold, falsify, delay, or refuse an election return, canvass, recount result, certification, or certificate of ascertainment contrary to applicable law;
4. depart from an applicable election statute, final judicial order, or lawfully completed administrative determination;
5. initiate, continue, expand, narrow, terminate, or publicly characterize a federal investigation, prosecution, audit, intelligence activity, regulatory action, funding action, or administrative process without a good-faith lawful basis;
6. surrender, seize, transfer, alter, destroy, disclose, or provide federal access to ballots, voting equipment, voter records, election data, or election materials without lawful authority;
7. make, procure, adopt, or transmit a materially false official representation concerning vote totals, election fraud, canvassing, recount, certification, or the lawful result of an election;
8. take or refrain from an election-related action because of the actual or threatened use of federal investigation, prosecution, funding, contracting, regulatory, intelligence, employment, or other governmental authority;
9. retaliate against a State or local officer or employee for refusing an unlawful or unauthorized election-related request; or
10. use another officer, employee, agency, campaign representative, personal attorney, or private intermediary to perform conduct prohibited by this section.

**(c) No completed alteration required.**—A violation does not require that the requested action occur or that an election result be changed.

**(d) Lawful federal functions.**—This section does not prohibit—

1. good-faith enforcement of the Constitution or a valid Act of Congress;
2. an investigation or prosecution supported by an articulable factual and legal basis;
3. enforcement of federal voting-rights, civil-rights, campaign-finance, cybersecurity, foreign-interference, or election-crime law;
4. compliance with federal judicial process;
5. performance of a duty expressly assigned to a federal official by law;
6. voluntary cybersecurity, technical, logistical, or emergency assistance requested by a lawful State or local authority;



7. protection of federal personnel or property;
8. a communication reasonably necessary to obtain information for a lawful federal purpose; or
9. political speech, advocacy, criticism, campaign activity, or lawful litigation unaccompanied by prohibited use or threatened use of federal governmental authority.

**(e) Identifiable authority and factual basis.**—A federal official relying on subsection (d) shall identify the constitutional or statutory authority and factual basis for the federal action when reasonably requested by the affected State or local election authority. Political preference, standing alone, neither establishes nor defeats a lawful federal function.

**(f) Definitions.**—In this section:

**1. Covered federal executive official.**—The term means—

- the President and Vice President, solely for purposes of this section and the related reporting, civil-enforcement, and record-preservation provisions of this Act;
- an officer or employee of the Executive Office of the President;
- an officer or employee of an executive department, military department, agency, Government corporation, or independent establishment in the executive branch;
- an individual exercising authority delegated by such an official; and
- an individual acting under color of federal executive authority.

**2. Federal governmental authority.**—The term includes actual or apparent authority arising from federal office and the use or threatened use of federal personnel, funds, investigations, prosecutions, subpoenas, audits, grants, contracts, appropriations, benefits, waivers, licenses, regulatory authority, intelligence, cybersecurity, national-security authority, classified or nonpublic information, law-enforcement or security personnel, official communications, governmental findings, reports, or any other federal power, process, resource, or influence.

**3. Preferred electoral outcome.**—The term means the election, defeat, qualification, disqualification, advancement, exclusion, certification, or noncertification of an identified candidate, political party, slate of electors, ballot position, or stated election result.

**4. State or local election function.**—The term includes voter registration; ballot preparation or distribution; voting-system administration; polling operations; receipt, custody, counting, tabulation, canvassing, auditing, or recounting of ballots; determination or reporting of vote totals; certification; preparation or transmission of certificates of ascertainment; selection or appointment of presidential electors; and preservation or disclosure of election records, equipment, or data.

**(g) Rule concerning official influence.**—A communication need not be expressed as a formal order. Official authority or influence is used when, under the circumstances, a reasonable recipient would understand that compliance or refusal could affect the exercise of federal governmental authority.

## SEC. 102. LIMITED APPLICATION TO THE PRESIDENT AND VICE PRESIDENT.

Section 7322(1) of title 5, United States Code, is amended to provide that the exclusion of the President and Vice President from the term “employee” does not apply to section 7323A or to provisions expressly enforcing section 7323A.

Nothing in this Act subjects the President or Vice President to Hatch Act restrictions unrelated to federal executive interference with State or local election administration.

## SEC. 103. RECORDS OF COVERED ELECTION CONTACTS.

Chapter 73 of title 5, United States Code, is further amended by adding:

### § 7323B. Records of covered election contacts

**(a) Record required.**—A covered federal executive official who communicates with a State or local election official concerning a specific pending election function shall create or cause the creation of a contemporaneous record identifying—

1. the participants;
2. the date, time, and means of communication;
3. the election and function discussed;
4. each material request, directive, warning, representation, or commitment;
5. the federal legal authority relied upon; and
6. any resulting or contemplated federal action.

**(b) Preservation.**—The record and all materially related federal records shall be preserved in accordance with applicable federal records law and may not be destroyed, altered, concealed, or removed.

**(c) Recording by State participant.**—A State or local officer or employee participating in an official communication covered by this section may record the communication. No federal officer may prohibit or retaliate against such recording. This authorization supersedes inconsistent law only with respect to a communication covered by this section.

**(d) Emergency communication.**—An oral communication made during an emergency may be documented promptly after the emergency, but not later than 24 hours after the communication unless extraordinary circumstances make compliance impossible.

**(e) Separate violation.**—Knowing concealment, destruction, alteration, falsification, or material omission of a record required by this section constitutes a separate violation.

## **SEC. 104. OFFICE OF SPECIAL COUNSEL AND INSPECTOR GENERAL ENFORCEMENT.**

The Office of Special Counsel may investigate an alleged violation of sections 7323A and 7323B by any covered official within its constitutional and statutory jurisdiction and may prosecute an administrative complaint before the Merit Systems Protection Board.

An Inspector General may investigate conduct within the Inspector General's jurisdiction and shall report substantial interference with the investigation to Congress.

For a covered official other than the President or Vice President, available administrative consequences may include removal from the affected matter, suspension, reduction in grade, removal, reprimand, a civil penalty, debarment from federal employment, and disqualification from statutorily delegated election-related functions, consistent with constitutional requirements.

## **SEC. 105. ANTI-RETALIATION.**

No covered federal executive official may take or threaten a personnel, funding, contracting, regulatory, investigative, prosecutorial, security-clearance, access, or other adverse action against a State or local officer or employee because that person—

1. refused a request reasonably believed to violate section 7323A;
2. created, preserved, or disclosed a record required or protected by this Act;
3. sought judicial or administrative relief under this Act; or
4. provided information to Congress, an Inspector General, the Office of Special Counsel, a court, or a lawful investigator.

## **TITLE II — EXPEDITED CIVIL ENFORCEMENT**

### **SEC. 201. CIVIL ACTION BY AFFECTED GOVERNMENTAL AUTHORITIES.**

A State, State attorney general, chief State election official, local election authority, or other governmental entity directly responsible for an affected election function may bring a civil action against a responsible federal officer, agency, or subordinate implementing official to prevent or remedy a violation of section 7323A or 7323B of title 5, United States Code.

### **SEC. 202. RELIEF.**

A court may—

1. declare the rights and duties of the parties;
2. temporarily or permanently enjoin implementation or continuation of prohibited conduct;
3. prohibit further contact except through designated lawful channels;
4. order preservation and production of records;
5. restore the lawful administrative position existing before the interference;
6. prohibit expenditure of federal funds for the prohibited purpose;
7. order reimbursement of reasonable State or local expenses caused by the violation; and
8. award costs and reasonable attorney's fees.

Relief against an agency or subordinate implementing official shall remain available notwithstanding uncertainty concerning direct coercive relief against the President.

### **SEC. 203. EXPEDITED THREE-JUDGE REVIEW.**

An action under this title shall be heard by a three-judge district court convened under section 2284 of title 28, United States Code, and shall receive priority over nonemergency civil matters.

A single judge may issue an emergency temporary restraining order upon specific findings of imminent and irreparable harm. Any appeal shall be expedited in the manner provided by law.

### **SEC. 204. LIMITS ON JUDICIAL AUTHORITY.**

No court acting under this title may determine the winner of an election, substitute its policy judgment for that of a lawful State election authority, or order the counting or exclusion of a particular ballot except as necessary to restore compliance with governing law.

## SEC. 205. CIVIL PENALTIES.

A covered official who knowingly violates section 7323A may be assessed a civil penalty not exceeding \$100,000 for each material course of conduct.

The United States may not reimburse a personal civil penalty imposed for a knowing violation.

This Act creates no general private damages action for individual voters.

## TITLE III — CRIMINAL ENFORCEMENT

### SEC. 301. FEDERAL EXECUTIVE INTERFERENCE WITH ELECTION ADMINISTRATION.

Chapter 29 of title 18, United States Code, is amended by inserting after section 595 the following:

**§ 595A. Federal executive interference with State or local election administration**

**(a) Base offense.**—Whoever, being a covered federal executive official or acting under color of federal executive authority, knowingly and for the purpose of effectuating, preventing, altering, or securing a preferred electoral outcome uses, directs, threatens, authorizes, requests, or causes the use of federal governmental authority to obtain conduct described in section 7323A(b) of title 5 shall be fined under this title, imprisoned not more than 3 years, or both.

**(b) Aggravated offense.**—The maximum term of imprisonment shall be 5 years if the violation involves the actual or threatened use of—

1. criminal investigation or prosecution;
2. intelligence, national-security, or classified-information authority;
3. federal funding, contracting, licensing, waiver, or regulatory authority;
4. armed, military, law-enforcement, or security personnel; or
5. retaliation against a State or local officer or employee.

**(c) Resulting alteration or falsification.**—The maximum term of imprisonment shall be 10 years if the violation results in the material falsification, alteration, destruction, suppression, manufacture, or unlawful certification of a ballot, vote, return, certificate, election record, or election result.

**(d) Attempt, conspiracy, direction, and assistance.**—Attempting, conspiring, directing, authorizing, or knowingly providing material assistance to a violation is punishable to the same extent as the completed base offense, except that an enhanced penalty requiring a resulting harm applies only if the required harm occurs.

**(e) Definitions.**—The definitions in section 7323A of title 5 apply to this section.

**(f) Lawful-function defense.**—No offense is committed where the conduct falls within section 7323A(d) of title 5 and rests on an identifiable constitutional or statutory authority and a good-faith factual basis.

### SEC. 302. RECORD OBSTRUCTION.

Knowing destruction, alteration, concealment, falsification, or removal of a material record required by section 7323B of title 5, undertaken with intent to impede investigation, civil enforcement, congressional oversight, or adjudication, shall be punishable under applicable federal obstruction and records laws and may be charged as a separate offense.

### SEC. 303. RELATION TO PRESIDENTIAL IMMUNITY.

Section 595A of title 18 creates substantive criminal liability to the maximum extent permitted by the Constitution. Nothing in this Act shall be construed to narrow any constitutional amendment or later-enacted law governing presidential criminal immunity.

Investigation, evidence preservation, prosecution of nonimmune participants, and reporting to Congress may continue to the extent permitted by law notwithstanding a temporary or substantive bar to prosecution of a President.

## TITLE IV — INDEPENDENT REFERRAL AND CONGRESSIONAL REPORTING

### SEC. 401. INDEPENDENT REFERRAL.

Substantial and credible information indicating a violation shall be referred promptly to—

1. the relevant Inspector General;
2. the Office of Special Counsel, where administrative jurisdiction exists;
3. the Department of Justice Public Integrity Section, absent a disabling conflict; and
4. any independent investigative-counsel mechanism established by law where a conflict involving the President, Vice President, Attorney General, or another senior executive official materially impairs ordinary investigation.

## **SEC. 402. CONGRESSIONAL REPORTING.**

A substantiated violation involving the President, Vice President, a Cabinet officer, White House personnel, or a Senate-confirmed federal law-enforcement official shall be reported to the House and Senate Committees on the Judiciary, the congressional committees with jurisdiction over elections, and any other appropriate oversight committee.

The report shall distinguish established facts, disputed facts, the federal authority invoked, the State or local action requested, the preferred electoral outcome, possible statutory violations, applicable immunity or privilege, action taken against subordinate participants, and recommended corrective measures.

## **SEC. 403. CONSTITUTIONAL SERIOUSNESS.**

Congress finds that the knowing use of presidential or vice-presidential authority to procure an unlawful or materially false determination of an election result is a grave abuse of federal executive authority and conduct of the character historically understood as a high Crime or Misdemeanor.

Nothing in this section limits the sole constitutional authority of the House of Representatives to determine whether to impeach or of the Senate to determine whether to convict.

# **TITLE V — GENERAL PROVISIONS**

## **SEC. 501. RELATION TO EXISTING LAW.**

This Act supplements and does not narrow—

1. sections 7321 through 7326 of title 5, United States Code;
2. sections 241, 242, 595, and other applicable provisions of title 18;
3. federal voting-rights, civil-rights, campaign-finance, records, and obstruction laws;
4. Inspector General and Office of Special Counsel authority;
5. lawful State criminal or civil authority not preempted by federal law; or
6. any more protective federal restriction.

Conduct may be addressed under this Act and another applicable law, subject to constitutional protections against duplicative punishment.

## **SEC. 502. RULES OF CONSTRUCTION.**

Nothing in this Act shall be construed—

1. to authorize federal supervision of State or local election administration beyond authority otherwise provided by the Constitution or an Act of Congress;
2. to authorize a federal official, court, or investigator to determine the winner of an election;
3. to prohibit good-faith federal voting-rights or election-law enforcement;
4. to prohibit political speech or advocacy unaccompanied by use or threatened use of federal governmental authority; or
5. to create a general private right of action for individual voters.

## **SEC. 503. SEVERABILITY.**

If any provision of this Act, an amendment made by this Act, or the application thereof is held invalid, the remainder and its application to other persons and circumstances shall not be affected.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The bill amends the Hatch Act only for the narrow official-authority prohibition and does not subject the President or Vice President to every restriction applicable to federal employees.
- The administrative standard is broader than the criminal offense; criminal liability requires knowing conduct, a specified electoral purpose, use of federal governmental authority, and an enumerated prohibited act.

- The three-year base penalty distinguishes attempted result-directed pressure from aggravated coercion and completed alteration or falsification.
- Civil enforcement is assigned principally to States and responsible election authorities rather than individual voters.
- Relief against agencies and implementing subordinates remains available even where direct relief against the President raises remedial concerns.
- Section 403 is a congressional declaration of constitutional seriousness, not a binding impeachment determination.
- Full criminal enforceability against presidential official acts may depend upon the Presidential Criminal Accountability Amendment developed under IMM-001.
- The independent-referral provision is designed to coordinate with DOJ-007 without making this bill dependent upon adoption of that proposal.

## Source Notes

- Source review should include the Hatch Act subchapter, 5 U.S.C. §§ 7321-7326, OSC's Federal Employee Hatch Act information, 18 U.S.C. § 595, adjacent rights statutes 18 U.S.C. §§ 241-242, three-judge-court authority under 28 U.S.C. § 2284, the January 6th Committee Final Report, and Trump v. United States.

# ELEC-003 — Election Personnel Protection Amendments to the Help America Vote Act of 2002

## A BILL

To amend the Help America Vote Act of 2002 to establish voluntary formula payments to States that enact and maintain politically neutral election-personnel protection laws, to restrict Federal administration of those payments to ministerial and fiscal functions, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Personnel Protection Amendments to the Help America Vote Act of 2002.**”

## SEC. 2. ELECTION PERSONNEL PROTECTION PAYMENTS.

The Help America Vote Act of 2002 is amended by adding at the end the following new title:

## TITLE X—ELECTION PERSONNEL PROTECTION PAYMENTS

### SEC. 1001. PURPOSES.

The purposes of this title are—

1. to support State protection of election personnel and qualifying family or household members from threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and operational disruption arising from election duties;
2. to preserve continuity of polling, counting, tabulation, canvassing, recount, certification, records administration, and related election functions;
3. to encourage enactment of politically neutral State protection regimes without directing the manner in which States administer elections;
4. to provide a voluntary and dedicated Federal financial backstop through automatic formula payments; and
5. to prohibit use of those payments as leverage over any other election law, policy, procedure, decision, outcome, or dispute.

### SEC. 1002. DEFINITIONS.

In this title:

1. **Commission** means the Election Assistance Commission.
2. **Covered election personnel** means a current, former, prospective, permanent, or temporary State or local election official, employee, poll worker, canvasser, contractor, vendor employee, volunteer, or other person performing an authorized election function.
3. **Covered family or household member** means a spouse, domestic partner, child, parent, sibling, dependent, household member, or other person targeted because of the election duties of covered election personnel.
4. **Election function** includes voter registration, ballot preparation, polling-place operation, ballot custody, counting, tabulation, auditing, recounting, canvassing, certification, records administration, equipment support, election-security support, and adjudicative or ministerial duties assigned by State law.
5. **Protection-purpose expenditure** means an expenditure authorized under section 1006.
6. **Qualifying State law** means a State statute satisfying section 1004.
7. **Reserve threshold** means the amount determined under section 1006(d).
8. **State** has the meaning given that term under section 901 of the Help America Vote Act of 2002.
9. **Unobligated Federal balance** means the amount of payments received by a State under this title, including interest credited under section 1006(c), that has not been obligated for a protection-purpose expenditure as of the close of a fiscal year.

### SEC. 1003. VOLUNTARY FORMULA PAYMENTS.

#### *(a) Payments required.*

For each fiscal year for which amounts are appropriated under section 1014, the Commission shall make a payment to each eligible State in the amount determined under section 1005 and adjusted, if applicable, under section 1006(e).

***(b) Voluntary participation.***

A State is not required to enact or maintain a qualifying State law. A State that does not do so is ineligible only for payments under this title.

***(c) No effect on other assistance.***

Eligibility or ineligibility under this title may not affect the eligibility of a State or political subdivision for any payment, grant, reimbursement, cooperative agreement, or other assistance under any other provision of this Act or any other Federal law.

***(d) No matching requirement.***

A State may not be required to provide matching funds as a condition of receiving a payment under this title.

***(e) Voluntary State and local supplementation preserved.***

Nothing in subsection (d) or any other provision of this title prohibits a State or political subdivision from voluntarily appropriating, matching, supplementing, or expending non-Federal funds for purposes consistent with this title and the qualifying State law.

## **SEC. 1004. SOLE SUBSTANTIVE ELIGIBILITY CONDITION; QUALIFYING STATE LAW.**

***(a) Sole condition.***

The enactment and continued maintenance of a qualifying State law is the sole substantive condition of eligibility for a payment under this title.

***(b) Required protections.***

A State law qualifies under this section only if it—

1. protects covered election personnel when targeted because of an election function;
2. extends appropriate protection to covered family or household members targeted for the same reason;
3. requires politically neutral administration without regard to party, candidate, viewpoint, ideology, election outcome, or the perceived political effect of an official act;
4. establishes a statewide mechanism for prompt reporting, threat assessment, referral, and coordination using one or more existing State offices;
5. authorizes emergency protective assistance, which may include residential or workplace security, law-enforcement patrol or escort, temporary relocation, legal assistance, and counseling;
6. provides an expedited judicial process for protective relief consistent with due process and the First Amendment;
7. protects residential and other sensitive personal information through address confidentiality, redaction, access control, data minimization, or comparable measures, to the maximum extent permitted by law;
8. provides civil or criminal remedies for true threats, coercive intimidation, retaliation, targeted family harm, unlawful disclosure of protected personal information, false emergency reports, bomb threats, swatting, or comparable misconduct, while preserving constitutionally protected speech;
9. requires continuity-of-operations planning for polling places, election offices, ballot-storage facilities, counting and tabulation centers, canvassing and certification bodies, and other election facilities proportionate to State and local risk;
10. authorizes workforce support reasonably related to threat-driven attrition, including training, counseling, temporary staffing, security-related leave, accommodations, recruitment, retention, or reimbursement of necessary security costs;
11. provides for aggregate public reporting that protects personal, investigative, and security-sensitive information;
12. applies equally to State and local election personnel without regard to partisan affiliation or the identity of the alleged offender; and
13. remains legally operative regardless of whether the State receives Federal funds under this title.

***(c) State control of methods.***

Except for the minimum protections expressly stated in subsection (b), the form, institutional placement, procedures, enforcement mechanisms, offense grading, remedies, and methods of compliance shall be determined exclusively by the State.

***(d) No prospective incorporation of Federal guidance.***

A qualifying State law may not be required to incorporate, comply with, or remain consistent with a regulation, guidance document, policy statement, executive order, model practice, or other administrative material issued after enactment of this title.

## **SEC. 1005. ALLOTMENT FORMULA.**

### ***(a) Base allotment.***

From the amount appropriated for a fiscal year, the Commission shall first allot to each eligible State a base amount equal to 0.5 percent of the total amount available.

### ***(b) Population allotment.***

The remainder shall be allotted among eligible States in proportion to each State's voting-age population, as determined by the most recent decennial census or annual Census Bureau estimate selected by Congress in appropriations law.

### ***(c) Territories and minimum allotment adjustments.***

Congress may specify by law a minimum allotment or territorial adjustment, provided that the formula is objective, uniform, and not dependent on discretionary scoring or policy review by the Commission.

### ***(d) No discretionary adjustment.***

Except for the automatic carryover adjustment required by section 1006(e), the Commission may not increase, decrease, withhold, accelerate, delay, or redirect an allotment based on—

1. the Commission's evaluation of the merits or effectiveness of a State election policy;
2. an election outcome;
3. a dispute concerning voter eligibility, registration, voting methods, ballot access, counting, canvassing, recounts, certification, elector appointment, or election litigation;
4. the political affiliation of any State or local official; or
5. any factor not expressly stated in this section.

## **SEC. 1006. PERMITTED USES; CARRYOVER; BALANCE ADJUSTMENT.**

### ***(a) Permitted uses.***

A State may use payments under this title only for—

1. emergency protection, temporary relocation, residential or workplace security, law-enforcement support, legal assistance, counseling, and related aid for covered persons;
2. address-confidentiality systems, records redaction, data minimization, secure communications, and digital-privacy measures;
3. facility hardening and security for polling places, election offices, ballot-storage facilities, counting and tabulation centers, canvassing and certification locations, and related sites;
4. continuity planning, backup facilities, emergency staffing, secure relocation of operations, communications, equipment, ballot and record transfer, and public notification during disruption;
5. threat-reporting, assessment, triage, referral, and coordination systems;
6. training on threat recognition, reporting, de-escalation, digital privacy, records protection, and continuity procedures;
7. temporary staffing, security-related leave, accommodations, recruitment, retention, and reimbursement of necessary out-of-pocket security costs in jurisdictions experiencing documented threat-related disruption or attrition;
8. grants or reimbursements to local governments for the purposes stated in this section; and
9. reasonable administrative costs directly attributable to this title, subject to a percentage cap fixed by Congress.

### ***(b) State election-personnel protection fund.***

A State receiving a payment under this title shall hold such amounts in a State election-personnel protection fund or a separately accounted subaccount of an existing State election fund. Amounts in the fund, including interest credited under subsection (c), shall be used only for protection-purpose expenditures.

### ***(c) Availability until expended; interest.***

Amounts paid to a State under this title shall remain available until expended for protection-purpose expenditures, subject to this title. Interest earned on such amounts shall be credited to the fund described in subsection (b) and used only for protection-purpose expenditures.

### ***(d) Reserve threshold.***

For each eligible State and fiscal year, the reserve threshold shall equal the greater of—



1. 25 percent of the State's allotment for the fiscal year before application of subsection (e); or
2. 18 months of the State's average monthly protection-purpose expenditures under this title during the preceding 24 months.

For a State that has received payments under this title for fewer than 24 months, the reserve threshold shall equal 25 percent of the State's allotment for the fiscal year before application of subsection (e).

***(e) Automatic carryover adjustment.***

If, as of the close of a fiscal year, a State's unobligated Federal balance exceeds the reserve threshold, the State's next payment under section 1003 shall be reduced by the amount of the excess. The Commission shall apply this subsection ministerially and may not waive, increase, decrease, suspend, accelerate, delay, or otherwise modify the reserve threshold or adjustment for any State.

***(f) No forfeiture while State remains eligible.***

Except as provided in subsection (e) and sections 1007(d) and 1011, a State that continues to maintain a qualifying State law shall not be required to return an unobligated Federal balance solely because the balance remains unexpended at the close of a fiscal year.

## **SEC. 1007. STATE CERTIFICATION.**

***(a) Submission.***

To receive a payment, the chief State election official and the attorney general of the State, or equivalent State legal officer, shall jointly submit to the Commission—

1. a certification that a qualifying State law is in force;
2. the full text and citation of that law;
3. a provision-by-provision crosswalk identifying the State provision corresponding to each requirement of section 1004(b); and
4. a certification that amounts received will be used only for protection-purpose expenditures.

***(b) No State plan.***

The Commission may not require a State plan, implementation narrative, needs assessment, public-comment process, performance benchmark, or substantive program approval as a condition of payment.

***(c) Continuing certification.***

A State shall notify the Commission of any repeal or material amendment of the qualifying State law. Eligibility for future payments ends when the law no longer satisfies section 1004.

***(d) No retroactive recoupment for legal change.***

Repeal or amendment of a qualifying State law does not authorize recovery of amounts lawfully obligated before the change, except in cases of fraud, false certification, or expenditure outside section 1006.

***(e) Unobligated balances after loss of eligibility.***

If a State ceases to maintain a qualifying State law, the State may liquidate amounts lawfully obligated before the date of ineligibility for a period of 180 days after that date. Any remaining unobligated Federal balance after that period shall be returned to the United States. This subsection does not authorize withholding or offset of unrelated Federal assistance.

## **SEC. 1008. MINISTERIAL REVIEW AND AUTOMATIC QUALIFICATION.**

***(a) Limited review.***

The Commission may determine only whether the submission facially identifies a State statutory provision corresponding to each requirement of section 1004(b).

***(b) Automatic qualification.***

A State shall be deemed eligible 30 days after a complete submission unless, before that date, the Commission issues a written determination identifying each specific requirement of section 1004(b) for which no corresponding State statutory provision has been identified.

***(c) No policy judgment.***

The Commission may not deny eligibility because it would have selected a different institutional structure, remedy, procedure, penalty, enforcement priority, or method of compliance.

***(d) Cure.***

A State may cure an identified deficiency by submitting an amended citation, crosswalk, or State enactment. Eligibility shall attach upon cure without loss of eligibility for future fiscal years.

***(e) No deference.***

In any judicial proceeding under section 1012, no deference shall be afforded to the Commission's interpretation of this title.

**SEC. 1009. PROHIBITION ON ADDITIONAL CONDITIONS, WAIVERS, AND DISCRETIONARY SCORING.**

The Commission, the President, and every other Federal officer or entity are prohibited from—

1. imposing a condition of eligibility not expressly stated in this title;
2. establishing a competitive application process;
3. scoring or ranking States;
4. requiring adherence to Federal best practices, model policies, guidance, or recommendations;
5. waiving an express statutory requirement for a particular State;
6. conditioning payment on cooperation with an unrelated Federal election initiative;
7. conditioning payment on a State's position in litigation or an election dispute;
8. using payment timing or administration to reward, punish, pressure, or influence a State or political subdivision; or
9. delegating to another Federal entity authority prohibited by this section.

**SEC. 1010. FEDERAL NONINTERFERENCE AND JURISDICTIONAL FIREWALL.**

***(a) Rule of construction.***

Nothing in this title authorizes the Commission or any other Federal officer or entity to direct, supervise, regulate, approve, disapprove, investigate, or otherwise influence—

1. voter qualifications or eligibility;
2. voter registration;
3. ballot access or ballot design;
4. voting methods or voting equipment;
5. polling-place procedures;
6. ballot custody, counting, tabulation, or auditing;
7. canvassing, recounts, or certification;
8. appointment of presidential electors;
9. adjudication of an election contest or dispute;
10. a State or local enforcement priority unrelated to expenditure of funds under this title; or
11. an election outcome.

***(b) No enlargement of Commission authority.***

Authority provided by this title is limited to receipt of certifications, objective eligibility review, calculation and payment of formula allotments, fiscal reporting, audit, and recovery for fraud or unauthorized expenditure. This title may not be construed to enlarge the Commission's jurisdiction, regulatory authority, investigatory authority, or supervisory authority under any other law.

***(c) No individual case files.***

A State may not be required to disclose to the Commission the identity, address, threat file, security plan, protected personal information, or case-specific investigative information of any covered person, except to the minimum extent necessary to investigate suspected fraud in the expenditure of Federal funds and subject to appropriate confidentiality protections.

**SEC. 1011. FISCAL REPORTING, AUDIT, AND RECOVERY.**

***(a) Limited reporting.***

A State receiving a payment shall report annually only—

1. amounts received, obligated, expended, and unobligated;
2. the State's unobligated Federal balance and reserve threshold;

3. any automatic carryover adjustment applied or anticipated under section 1006(e);
4. amounts distributed to local governments;
5. expenditures by the categories listed in section 1006; and
6. material findings of fraud or misuse.

**(b) Audit scope.**

An audit under this title shall be limited to whether funds were expended for a purpose authorized by section 1006, whether a certification under section 1007 was materially false, and whether the unobligated Federal balance and reserve threshold were calculated according to section 1006.

**(c) Recovery.**

The United States may recover only amounts obtained by material fraud, expended outside section 1006, or required to be returned under section 1007(e). Recovery may not be based on disagreement with a State's election policy, protective judgment, enforcement priority, or method of compliance.

**(d) No cross-program offset.**

Amounts recoverable under this section may not be collected by withholding or offsetting unrelated Federal assistance.

## **SEC. 1012. EXPEDITED JUDICIAL REVIEW.**

**(a) Cause of action.**

A State aggrieved by a denial, withholding, delay, reduction, or recovery action under this title may bring a civil action in the United States Court of Appeals for the District of Columbia Circuit or the circuit in which the State capital is located.

**(b) Expedited consideration.**

The court shall expedite the action to the greatest practicable extent.

**(c) Standard of review.**

The court shall review de novo all questions of law and statutory eligibility. The Commission bears the burden of identifying the specific unmet statutory requirement or unauthorized expenditure.

**(d) Relief.**

The court may order payment, prohibit an unlawful condition, set aside an unlawful withholding or recovery, and grant other appropriate declaratory or injunctive relief.

## **SEC. 1013. RELATION TO FEDERAL CRIMINAL LAW.**

Nothing in this title expands or limits Federal criminal jurisdiction. Federal investigation and prosecution of independently defined Federal offenses shall remain separate from payment administration under this title and may not be used to supervise State election administration.

## **SEC. 1014. AUTHORIZATION OF APPROPRIATIONS.**

There are authorized to be appropriated such sums as may be necessary for fiscal year 2027 and each succeeding fiscal year to carry out this title.

No amount appropriated under this section may be transferred to another Federal election program or used for a purpose other than this title.

## **SEC. 1015. SEVERABILITY.**

If any provision of this title or its application is held invalid, the remainder of the title and its application to other persons or circumstances shall not be affected.

## **SEC. 3. CLERICAL AMENDMENTS.**

The table of contents of the Help America Vote Act of 2002 is amended by adding at the end the following:

"TITLE X—ELECTION PERSONNEL PROTECTION PAYMENTS  
"Sec. 1001. Purposes.  
"Sec. 1002. Definitions.  
"Sec. 1003. Voluntary formula payments.  
"Sec. 1004. Sole substantive eligibility condition; qualifying State law.  
"Sec. 1005. Allotment formula.

“Sec. 1006. Permitted uses; carryover; balance adjustment.  
“Sec. 1007. State certification.  
“Sec. 1008. Ministerial review and automatic qualification.  
“Sec. 1009. Prohibition on additional conditions, waivers, and discretionary scoring.  
“Sec. 1010. Federal noninterference and jurisdictional firewall.  
“Sec. 1011. Fiscal reporting, audit, and recovery.  
“Sec. 1012. Expedited judicial review.  
“Sec. 1013. Relation to Federal criminal law.  
“Sec. 1014. Authorization of appropriations.  
“Sec. 1015. Severability.”

## Budgetary Impact Statement

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- This is a first working draft. Final codification placement and section numbering should be conformed to the current structure of HAVA and the Office of the Law Revision Counsel’s classification practices.
- HAVA presently contains Titles I through IX; this draft therefore adds a new Title X rather than conflicting with the existing Title IV enforcement provisions.
- The title is intentionally self-contained and does not amend existing HAVA voting-system requirements, State-plan provisions, or complaint procedures.
- The draft creates a new dedicated funding stream; no existing HAVA, highway, justice, homeland-security, or other funds are placed at risk.
- The formula is objective and noncompetitive. The specific base percentage, population methodology, reserve threshold, and balance-adjustment mechanics remain provisional and require fiscal modeling.
- The draft prohibits a federally required State match while preserving voluntary State and local supplementation.
- Unobligated Federal balances remain available until expended while the State remains eligible, subject to a nondiscretionary soft cap that reduces future payments when balances exceed the statutory reserve threshold.
- The EAC’s role is ministerial and fiscal. The bill denies substantive rulemaking, discretionary scoring, waiver, plan-approval, and election-policy authority.
- Section 1004 is designed to correspond to the Model State Election Personnel Protection and Continuity Act. The federal minimums should be rechecked against every later revision of the model State act.
- The judicial-review provision should be reviewed for sovereign-standing, venue, timing, and Administrative Procedure Act interaction.
- The authorization level, administrative-cost cap, territorial formula, and treatment of the District of Columbia and Commonwealths require separate fiscal and statutory review.
- The bill should be reviewed for Appointments Clause, nondelegation, Spending Clause, anti-commandeering, First Amendment, due-process, and federalism concerns before being treated as final legislative text.

## Source Notes

- Source review should include the Help America Vote Act of 2002, classified in 52 U.S.C. chapter 209, and the Election Assistance Commission’s HAVA overview.

# ELEC-004 — Federal Election Proceedings Integrity Act

## A BILL

To establish an Anti-SLAPP-style special screening mechanism, discovery control, sensitive-material protection, and later-discovered improper-purpose sanctions for certain election proceedings in federal court, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Election Proceedings Integrity Act.**”

## SEC. 2. PURPOSES.

### *(a) Anti-SLAPP-style adaptation.*

This Act adapts the procedural logic of Anti-SLAPP laws to election proceedings in federal court. Anti-SLAPP laws recognize that litigation process can itself be used abusively to impose cost, delay, discovery burdens, reputational harm, or coercive pressure before a court reaches the merits. This Act applies that logic to election proceedings that seek election-disruptive relief or access to sensitive election material without an early particularized showing.

### *(b) Purposes.*

The purposes of this Act are to—

1. preserve access to good-faith election challenges and lawful election review;
2. prevent federal courts from being used to delay certification, manufacture uncertainty, harass election personnel, or obtain unauthorized access to sensitive election materials without an early particularized showing;
3. protect statutory election deadlines, ballot secrecy, voter privacy, chain of custody, voting-system security, and election finality;
4. distinguish ordinary citizen reporting and authorized recount or contest procedures from election proceedings seeking coercive or disruptive relief; and
5. provide sanctions where later-discovered evidence shows that an election proceeding was materially connected to a coordinated improper scheme.

## SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election proceeding** means a civil action, motion, petition, application, subpoena, discovery demand, inspection demand, audit demand, or request for emergency relief filed in or issued by a federal court in relation to an election involving a federal office, if the proceeding seeks or would foreseeably cause election-disruptive relief.
2. **Election-disruptive relief** means relief that would delay, enjoin, alter, decertify, nullify, or otherwise disturb voter eligibility lists, ballot preparation, voting procedures, counting, tabulation, auditing, recounting, canvassing, certification, appointment of presidential electors, transmission of election returns, or another statutory election deadline.
3. **Sensitive election material** means ballots, ballot images, voter-identifiable data, election-management-system data, voting-system source code, tabulator or scanner data, security logs, chain-of-custody records, passwords, keys, security procedures, facility plans, or other election material whose disclosure, inspection, copying, or transfer may impair ballot secrecy, voter privacy, election security, or chain of custody.
4. **Special screening motion** means a motion under section 5 to dismiss, narrow, stay, condition, or otherwise control a covered election proceeding.
5. **Improper purpose** includes delay, harassment, knowingly false factual presentation, reckless disregard of contrary evidence, unauthorized access to sensitive election material, creation of a false predicate for disrupting certification or elector appointment, or other bad-faith use of federal judicial process.
6. **Good-faith report** means a report of suspected election irregularity made to an election official, law-enforcement agency, prosecutor, candidate, political party, court, or other body authorized by law to receive such information, where the report does not itself seek election-disruptive relief or access to sensitive election material.

## SEC. 4. SCOPE; PRESERVED PROCEEDINGS.

### *(a) Scope.*

This Act applies only to covered election proceedings in federal court.

***(b) Preserved proceedings and activity.***

Nothing in this Act limits—

1. a good-faith report;
2. a ballot-specific voter remedy;
3. a recount, audit, or contest conducted under state law without a request for federal election-disruptive relief;
4. ordinary public-records requests subject to applicable privacy, security, and election-material protections;
5. federal criminal investigation or prosecution; or
6. the authority of a court to provide relief for a proven constitutional or statutory violation.

***(c) Relief-based trigger.***

This Act applies according to the relief sought or reasonably foreseeable procedural effect of the proceeding, not solely according to the identity of the filer.

## **SEC. 5. SPECIAL MOTION TO SCREEN COVERED ELECTION PROCEEDING.**

***(a) Motion authorized.***

A party, election official, governmental entity, affected candidate, affected voter, or custodian of sensitive election material may file a special screening motion in a covered election proceeding.

***(b) Pre-election timing limitation.***

A special screening motion may not be filed with respect to a future election scheduled to occur more than 180 days after the date of the motion, unless the motion is directed to a request for immediate access to sensitive election material or another present risk to ballot secrecy, voter privacy, chain of custody, or election security.

***(c) No post-election cutoff.***

No fixed post-election time limit applies to a special screening motion. After the election occurs, a special screening motion may be filed in any covered election proceeding that seeks or materially relates to election-disruptive relief, counting, tabulation, auditing, recounting, canvassing, certification, elector appointment, election contest, validity of the election result, or access to sensitive election material.

***(d) Time for filing.***

Subject to subsections (b) and (c), a special screening motion shall be filed as soon as practicable. A court may permit later filing for good cause or where the election-disruptive character of the proceeding becomes apparent after filing.

***(e) Required early showing.***

Upon filing of a special screening motion, the party seeking election-disruptive relief or access to sensitive election material shall make a prima facie showing of legal authority, timeliness, particularized material facts, admissible evidence or a verified factual proffer, materiality, remedy fit, necessity of any intrusive process or sensitive-material access, and absence of improper purpose.

***(f) Court action.***

If the required showing is not made, the court shall dismiss, deny, narrow, stay, condition, or otherwise control the proceeding or request to the extent necessary to prevent election-disruptive relief, unauthorized access to sensitive election material, or abuse of judicial process.

## **SEC. 6. AUTOMATIC STAY OF INTRUSIVE PROCESS.**

***(a) Stay.***

Upon filing of a special screening motion, discovery, subpoenas, inspections, audits, forensic access, equipment access, ballot access, source-code access, and access to sensitive election material shall be stayed until the court resolves the motion.

***(b) Narrow exception.***

The court may authorize limited discovery or inspection before resolving the motion only upon a finding that the discovery or inspection is narrowly tailored, necessary to test a specific colorable and material claim, and subject to adequate protection for ballot secrecy, voter privacy, chain of custody, and election security.

## **SEC. 7. EMERGENCY RELIEF FINDINGS.**

A court may not issue a temporary restraining order, preliminary injunction, stay, impoundment order, certification delay, elector-appointment delay, extraordinary audit order, or other election-disruptive relief unless the court makes written findings that the movant is substantially likely to succeed on a legally authorized claim, the alleged defect is material, irreparable injury is not primarily caused by the movant's delay, no narrower lawful remedy is adequate, the relief is compatible with applicable federal election deadlines or necessary to remedy a proven violation of federal law, and the relief will not unnecessarily impair voters, election personnel, ballot secrecy, voter privacy, chain of custody, or election security.

## **SEC. 8. SENSITIVE ELECTION MATERIAL PROTECTION.**

A court authorizing access to sensitive election material shall enter a protective order that limits access to persons with a demonstrated need, prohibits unauthorized disclosure, preserves ballot secrecy and chain of custody, prevents disclosure of source code, credentials, security logs, keys, facility plans, or exploitable security information except under secure conditions, requires secure storage and return or destruction of copies, and imposes sanctions for violation.

## **SEC. 9. FEES, COSTS, AND SANCTIONS AT SCREENING OR DISPOSITION.**

### ***(a) No automatic penalty for losing.***

A party may not be sanctioned under this Act solely because an election claim, motion, petition, or request is denied.

### ***(b) Sanctions authorized.***

The court may award reasonable attorney's fees, costs, public costs, or other appropriate sanctions if it finds that a filing, request, subpoena, discovery demand, or emergency-relief request was frivolous, knowingly unsupported, presented for improper purpose, materially based on false factual allegations, legally foreclosed by binding authority, maintained after a defect was identified, or used to harass, delay, or obtain unauthorized access to sensitive election material.

### ***(c) Additional authority preserved.***

This Act supplements and does not limit Rule 11 of the Federal Rules of Civil Procedure, 28 U.S.C. § 1927, contempt authority, disciplinary referrals, inherent judicial power, or any other sanction authority.

## **SEC. 10. LATER-DISCOVERED IMPROPER-PURPOSE SANCTIONS.**

### ***(a) Independent post-disposition motion.***

A motion under this section is an independent post-disposition motion for sanctions and ancillary relief. The motion may be filed whether or not a special screening motion under section 5 was previously filed, granted, denied, withdrawn, or resolved on other grounds.

### ***(b) Ancillary jurisdiction after termination.***

The court retains ancillary jurisdiction to resolve a motion under this section after dismissal, remand, voluntary dismissal, settlement, denial of emergency relief, final judgment, or other termination of the covered election proceeding.

### ***(c) Time for motion.***

Within one year after final disposition of a covered election proceeding, or within 180 days after discovery of material evidence of improper purpose, whichever is later, a party, governmental entity, election official, affected candidate, affected voter, or custodian of sensitive election material may move for sanctions under this section.

### ***(d) Standard.***

The court may impose sanctions if clear and convincing evidence shows that the proceeding, filing, subpoena, discovery request, inspection demand, audit demand, or request for emergency relief was materially presented, maintained, coordinated, or used for an improper purpose.

### ***(e) Relevant evidence.***

Relevant evidence may include communications, funding arrangements, concealed coordination, inconsistent public and court representations, knowingly false factual assertions, fundraising representations, links to certification delay, links to elector-appointment disruption, or efforts to create a false predicate for governmental action.

### ***(f) Relief.***

Sanctions may include attorney's fees, public costs, restitution for election-administration expenses, referral to disciplinary authorities, civil penalties where authorized by law, restrictions on future emergency election filings absent leave of court, protective orders, and referral to prosecuting authorities where criminal conduct may be implicated.

***(g) Due process.***

No sanctions may be imposed under this section without notice, an opportunity to respond, and an evidentiary hearing where material facts are disputed.

**SEC. 11. EXPEDITED APPEAL.**

An appeal from an order granting or denying election-disruptive relief, denying a special screening motion, authorizing access to sensitive election material, or imposing sanctions under this Act shall be expedited to the greatest practicable extent.

**SEC. 12. RULES OF CONSTRUCTION.**

Nothing in this Act shall be construed to prohibit a good-faith election challenge, alter the substantive elements of a federal claim, create federal jurisdiction where jurisdiction is otherwise absent, require a state court to adopt this Act, prevent a state from enacting a parallel or more protective state procedure, or limit lawful criminal investigation or prosecution.

**SEC. 13. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

**Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

**Drafting Notes**

- This draft regulates federal-court procedure and relief in election proceedings; it does not attempt to commandeer state courts.
- The proposal is Anti-SLAPP-style: it adapts early screening, discovery stay, burden clarification, fee-shifting, and sanctions to election-disruptive proceedings.
- The special motion is motion-invoked, not automatic.
- A pre-election timing bar prevents the motion from being filed for elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue.
- The draft imposes no fixed post-election cutoff; post-election availability depends on functional relation to the election result, election administration, or sensitive election material.
- Section 10 is expressly independent of the special screening motion and survives termination of the underlying proceeding.

**Source Notes**

- The draft should be reviewed for Rules Enabling Act, Article III, First Amendment, Petition Clause, Elections Clause, Article II, Electoral Count Reform Act, federal jurisdiction, and separation-of-powers issues.
- Source review should include Federal Rule of Civil Procedure 11 and 28 U.S.C. § 1927.



# ELEC-005 — Presidential Result Transmission Integrity Amendments

## A BILL

To amend chapter 1 of title 3, United States Code, to protect the integrity of official presidential-election result-transmission documents submitted to federal recipients and used in the recognition, preservation, or counting of presidential-election results, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Presidential Result Transmission Integrity Amendments.**”

## SEC. 2. FALSE OR UNAUTHORIZED PRESIDENTIAL RESULT-TRANSMISSION DOCUMENTS.

Chapter 1 of title 3, United States Code, is amended by inserting after section 12 the following:

### § 12A. False or unauthorized presidential result-transmission documents

#### (a) *Definitions.*

In this section:

1. **Federal recipient** means Congress, either House of Congress, the President of the Senate, the Vice President acting in the capacity of President of the Senate, the Archivist of the United States, the National Archives and Records Administration, a federal court, a federal officer, a federal employee, or any person officially receiving, preserving, opening, tabulating, adjudicating, counting, recognizing, or transmitting presidential-election result documents under federal law.
2. **Presidential result-transmission document** means a certificate of ascertainment, certificate of vote, elector appointment document, elector-vote document, presidential-election return, official presidential result certificate, transmittal document, or any paper, record, or electronic communication that purports to identify, appoint, certify, transmit, cast, record, authenticate, or report official presidential-election results, presidential-electors status, or presidential-electors votes for federal receipt, preservation, recognition, or counting.
3. **Presidential-electors document** means a presidential result-transmission document that purports to identify, appoint, certify, transmit, cast, record, or authenticate the votes or status of presidential electors under the Electoral College system.
4. **Unauthorized presidential result-transmission document** means a presidential result-transmission document that falsely purports to have been issued, authorized, certified, transmitted, or approved by a state official, state entity, court, elector, result-certifying authority, or federal recipient; falsely represents presidential-election results, presidential-electors appointment, or presidential-electors votes; bears or simulates a state seal, official attestation, certification, signature, authorization, or legal status without lawful authority; is transmitted or presented as operative when no lawful certificate, court order, or state or federal process has made it operative; or is materially misleading as to its legal effect, source, authority, or operative status.
5. **Contingent or disputed-result document** means a presidential result-transmission document prepared solely to preserve a claim in a pending recount, contest, litigation, or other lawful proceeding, and that conspicuously states that it is conditional, nonoperative, and without legal effect unless and until a court or lawful authority determines that the results, electors, or votes identified in the document are legally operative.
6. **Knowingly** means that the person is aware of the factual circumstances making the document unauthorized, false, fabricated, materially misleading, or nonoperative. Knowledge may be proved by circumstantial evidence.
7. **Material** means capable of influencing, obstructing, delaying, confusing, or impairing the receipt, preservation, authentication, opening, tabulation, adjudication, counting, recognition, or public understanding of presidential result-transmission documents in a federal channel.

#### (b) *Federal offense.*

It shall be unlawful for any person knowingly to transmit, submit, file, present, deliver, cause to be delivered, or use an unauthorized presidential result-transmission document—

1. to or before a federal recipient;
2. for inclusion in, consideration by, or preservation for a federal presidential-result recognition or electoral-count process;
3. for the purpose of influencing, obstructing, delaying, confusing, or impairing a proceeding under this chapter;
4. for the purpose of causing Congress, either House of Congress, the President of the Senate, the Archivist, a federal court, or any federal officer or employee to treat the document as legally operative; or

5. in a matter within the jurisdiction of the legislative, executive, or judicial branch of the Government of the United States.

***(c) Aggravated offense.***

A person commits an aggravated offense if the person violates subsection (b) and acts as an organizer, director, funder, legal architect, or principal coordinator; uses or causes use of a counterfeit, simulated, unauthorized, or materially misleading state seal, official signature, attestation, or certification; transmits the document to more than one federal recipient; coordinates the document's use with an effort to delay certification, obstruct recognition or counting of presidential-election results, pressure a federal official, or induce Congress to recognize or count results, electors, or votes not authorized by law; conceals material communications, funding, legal instructions, or coordination concerning the document; causes material public cost, security cost, delay, or administrative disruption; or acts after receiving notice from a state or federal official that the document is unauthorized or nonoperative.

***(d) Attempt and conspiracy.***

Any person who attempts or conspires to commit an offense under this section shall be punished in the same manner as a completed offense.

***(e) Safe harbor for lawful contingent or disputed-result activity.***

Subsection (b) does not prohibit preparation of a contingent or disputed-result document if a recount, election contest, judicial proceeding, or other lawful proceeding concerning presidential-election results, appointment of presidential electors, or presidential-electors votes is pending or reasonably imminent; the document is conspicuously labeled on each page as **“CONTINGENT — NOT OPERATIVE UNLESS AUTHORIZED BY FINAL COURT ORDER OR LAWFUL CERTIFICATION”** or substantially equivalent language; the document does not state or imply that the identified results, electors, or votes are presently operative; the document does not bear or simulate a state seal, official certification, official attestation, or public-office approval unless lawfully authorized; the document is not transmitted to a federal recipient as an operative certificate or result; and any transmission to a court, state official, federal recipient, party, candidate, or counsel includes a cover notice stating that the document is conditional, nonoperative, and submitted only to preserve a legal position pending final lawful determination.

***(f) Loss of safe harbor.***

The safe harbor under subsection (e) does not apply if a person knowingly transmits, uses, or describes the document as presently operative; conceals the contingent or disputed-result character of the document; submits the document to a federal recipient without the required cover notice; uses the document to induce delay, obstruction, or rejection of the lawful presidential result-recognition process; falsely represents that a court, state official, state entity, result-certifying authority, or federal authority has authorized the document; or continues to use or transmit the document after the relevant contest, recount, litigation, or proceeding has been finally resolved against the claimed result, slate, or vote.

***(g) Federal recipient duties.***

A federal recipient who receives a presidential result-transmission document that appears unauthorized, conflicting, nonoperative, or materially misleading shall, consistent with applicable law, preserve the document, mark or log the document as disputed or unauthorized pending verification, avoid treating the document as legally operative unless authorized under this chapter or other applicable federal law, refer apparent criminal conduct to the Department of Justice or other appropriate authority, and notify the Archivist and any other federal recipient reasonably likely to receive or rely upon the document.

***(h) Civil enforcement by the United States.***

The Attorney General may bring a civil action in the United States District Court for the District of Columbia, or in the federal district where the document was transmitted, received, created, or used, to obtain declaratory relief, injunctive relief, corrective notice to federal recipients, preservation of documents and communications, restitution or reimbursement of public costs, civil penalties authorized by this section, and other equitable relief necessary to protect the federal presidential result-transmission process.

***(i) Expedited review.***

Any action under subsection (h) shall be advanced on the docket and expedited to the greatest practicable extent, consistent with the deadlines established by this chapter or other applicable federal presidential-election law.

***(j) Penalties.***

A person who violates subsection (b) shall be fined under title 18, imprisoned for not more than five years, or both. A person who violates subsection (c) shall be fined under title 18, imprisoned for not more than ten years, or both.

***(k) Civil penalties and disqualification.***

In a civil action brought by the United States, a court may impose a civil penalty proportionate to the seriousness of the violation, the person's role, the degree of knowing falsity, the number of recipients, public costs caused, and risk posed to the federal presidential result-transmission process. Upon conviction under this section, or upon clear and convincing evidence in a civil action under subsection (h), a court may disqualify the person from serving in a federal presidential result-transmission role created by federal law, including service as a presidential elector while the Electoral College remains in force, for a period not exceeding ten years if such relief is necessary to protect the integrity of the federal presidential result-transmission process.

**(l) Relation to existing law.**

This section supplements and does not limit sections 371, 1001, or 1512 of title 18, or any other federal or state criminal, civil, disciplinary, or election-law remedy.

**(m) No preemption of state process.**

Nothing in this section shall be construed to regulate the manner in which a state appoints presidential electors, determines presidential-election results, conducts a recount or contest, canvasses returns, certifies results, or resolves state-law presidential-election disputes before transmission to a federal recipient; prohibit a state from imposing additional civil, criminal, administrative, or election-law remedies; limit a court-ordered revised certificate or result determination; prohibit lawful advocacy, litigation, petitioning, or political speech; or authorize any federal official to choose among competing results, slates, or votes except as provided by this chapter or other applicable federal law.

**(n) First Amendment rule of construction.**

This section shall not be construed to criminalize political advocacy, public argument, litigation positions, lobbying, petitioning, commentary, legal analysis, or reporting unless the conduct includes knowing transmission, submission, filing, presentation, delivery, or use of an unauthorized presidential result-transmission document in a federal channel as prohibited by subsection (b).

### **SEC. 3. CLERICAL AMENDMENT.**

The table of sections for chapter 1 of title 3, United States Code, is amended by inserting after the item relating to section 12 the following:

“12A. False or unauthorized presidential result-transmission documents.”

### **SEC. 4. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

### **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

### **Drafting Notes**

- This draft is a targeted amendment to Title 3 and is drafted broadly enough to preserve the document-integrity principle if the Electoral College is replaced by another federal presidential result-transmission mechanism.
- The statute attaches when a presidential result-transmission document enters, or is used for, a federal receipt, preservation, recognition, or counting channel.
- Presidential-electoral certificates remain covered as the current Electoral College implementation, but the statute is not limited to electoral certificates as a conceptual matter.
- The safe harbor is essential to distinguish lawful contingent legal-preservation activity from false present-tense certification.

### **Source Notes**

- The statute should be reviewed against Article II, the Twelfth Amendment, the Necessary and Proper Clause, the First Amendment, due process vagueness limits, federalism limits, 18 U.S.C. § 371, 18 U.S.C. § 1001, 18 U.S.C. § 1512, 3 U.S.C. § 5, 3 U.S.C. § 11, 3 U.S.C. § 12, 3 U.S.C. § 15, the Electoral Count Reform Act, and any proposed Electoral College replacement mechanism.

# ELEC-006 — Presidential Transition Continuity and Automaticity Act

## A BILL

To amend the Presidential Transition Act of 1963 to preserve ordinary cooperative presidential-transition norms while establishing automatic continuity backstops, transition-agreement deadlines, agency-cooperation requirements, public delay notices, and expedited remedies for missed statutory transition duties, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Presidential Transition Continuity and Automaticity Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve the historically successful norm-based model of cooperative presidential transition;
2. prevent transition readiness from depending solely on concession, discretionary recognition, congressional pressure, or political forbearance;
3. provide narrow statutory backstops for known transition failure points;
4. ensure timely nonclassified transition planning, agency coordination, ethics compliance, security-vetting arrangements, and continuity preparation;
5. distinguish administrative transition preparedness from legal recognition of election victory;
6. preserve the ability of multiple apparent successful candidates to receive appropriate transition support when the presidential election remains genuinely unresolved;
7. impose reciprocal duties on federal agencies and transition entities; and
8. provide expedited remedies for concrete missed statutory duties without judicializing ordinary cooperative transition practice.

## SEC. 3. DEFINITIONS.

The Presidential Transition Act of 1963 is amended by adding the following definitions:

### ***(a) Apparent successful candidate.***

The term “**apparent successful candidate**” means a candidate for President or Vice President who is entitled to transition support under the Presidential Transition Act of 1963, as amended, including where transition support is provided to more than one candidate because the result remains genuinely unresolved.

### ***(b) Covered transition entity.***

The term “**covered transition entity**” means a presidential or vice-presidential transition organization, committee, nonprofit entity, campaign-related transition entity, or other entity authorized by a candidate to receive transition services, access, information, funding, or agency cooperation under federal transition law.

### ***(c) Required transition agreement.***

The term “**required transition agreement**” means a memorandum of understanding, ethics plan, information-security agreement, donor-disclosure agreement, funding agreement, agency-access agreement, background-check agreement, security-clearance agreement, or other agreement required by law, regulation, or written transition guidance as a condition of receiving a particular category of transition access, information, service, funding, or agency cooperation.

### ***(d) Transition readiness access.***

The term “**transition readiness access**” means nonclassified transition planning support, agency points of contact, public and nonpublic briefing materials that do not contain classified or restricted sensitive information, office and logistical support, ethics guidance, personnel-vetting coordination, security-clearance process coordination, and other support necessary to prepare for a lawful transfer of executive power.

### ***(e) Sensitive transition access.***

The term “**sensitive transition access**” means access to classified information, controlled unclassified information, law-enforcement-sensitive information, intelligence information, protected personnel information, cybersecurity-sensitive information, national-security operational information, or other material that by law or agency rule requires a security, ethics, confidentiality, or information-protection agreement.

***(f) Missed statutory transition duty.***

The term “**missed statutory transition duty**” means failure by the Administrator of General Services, a federal agency, an agency head, or a covered transition entity to perform a nondiscretionary duty imposed by this Act or by the Presidential Transition Act of 1963, as amended.

**SEC. 4. NORM-PRESERVING RULE OF CONSTRUCTION.**

Nothing in this Act shall be construed to prevent, delay, narrow, or discourage ordinary cooperative transition practices occurring earlier, more flexibly, or more smoothly than the minimum statutory requirements established by this Act.

The statutory defaults established by this Act are backstops. They apply where ordinary transition cooperation, timely agreement execution, or agency coordination fails.

**SEC. 5. NO LEGAL RECOGNITION OF ELECTION VICTORY.**

Provision of transition readiness access, preliminary transition support, multiple-candidate transition support, agency coordination, or briefing materials under this Act does not constitute—

1. legal recognition that a candidate has won the presidential election;
2. certification of election results;
3. concession by any candidate;
4. adjudication of any election contest;
5. resolution of any recount, certification, elector, or result-transmission dispute; or
6. authority to impair any lawful election contest, recount, certification process, or judicial proceeding.

**SEC. 6. AUTOMATIC PRE-ELECTION PLANNING ACCESS.**

***(a) Access required.***

Beginning not later than the first business day after the date on which a candidate becomes a major-party nominee for President, or otherwise satisfies objective eligibility criteria established by the Administrator by rule, the Administrator and each federal agency shall provide transition readiness access sufficient to permit basic continuity planning.

***(b) Content.***

Pre-election planning access shall include—

1. agency transition points of contact;
2. general organizational charts;
3. descriptions of statutory missions;
4. lists of Senate-confirmed positions and principal noncareer positions;
5. unclassified continuity and management materials;
6. ethics and financial-disclosure guidance;
7. security-clearance process guidance;
8. deadlines for required transition agreements; and
9. standard forms necessary to execute required transition agreements.

***(c) No classified access absent compliance.***

Nothing in this section requires access to classified or sensitive transition information before execution of required agreements and satisfaction of applicable law.

**SEC. 7. AUTOMATIC POST-ELECTION INTERIM ACCESS.**

***(a) Interim access.***

Beginning on the fifth day after the general election for President and Vice President, each apparent successful candidate, and each candidate who remains eligible for multiple-candidate support under existing transition law, shall receive transition readiness access.

***(b) Multiple-candidate access.***

Where the result remains genuinely unresolved, the Administrator shall provide appropriate transition readiness access to each qualifying candidate without requiring concession by another candidate and without treating such access as recognition of victory.

***(c) No discretionary withholding.***

The Administrator may not withhold transition readiness access because of political pressure, lack of concession, pending litigation, pending recounts, public controversy, or the Administrator's subjective view of election legitimacy, except as expressly provided by statute.

## **SEC. 8. EXPANDED ACCESS UPON OBJECTIVE TRIGGERS.**

***(a) Expanded access.***

Expanded transition access shall attach automatically upon the earliest occurrence of any objective trigger specified in subsection (b), subject to required transition agreements and applicable security restrictions.

***(b) Objective triggers.***

Objective triggers include—

1. state certification or equivalent lawful result-transmission milestones sufficient to make the apparent outcome reasonably certain;
2. expiration of a statutory deadline materially relevant to the presidential result;
3. a final or controlling court order resolving a material dispute;
4. mathematical elimination of any realistic competing candidate based on certified or legally operative results;
5. a concession by all materially competing candidates; or
6. any other objective trigger established by statute or rule that does not require discretionary adjudication of election legitimacy by the Administrator.

***(c) Written rule required.***

The Administrator shall publish and maintain objective access-trigger rules not later than January 1 of each presidential election year.

## **SEC. 9. MINISTERIAL ROLE OF THE ADMINISTRATOR.**

The Administrator shall administer transition resources, facilities, payments, services, communications, and agency coordination in a ministerial manner.

The Administrator may not adjudicate the legal validity of election claims, determine election legitimacy, resolve disputes over certification, decide contests between competing slates or result documents, or delay transition readiness access based on factors not expressly authorized by statute.

## **SEC. 10. REQUIRED TRANSITION AGREEMENTS.**

***(a) Standard agreements.***

Not later than January 1 of each presidential election year, the Administrator, in coordination with the Office of Government Ethics, the Department of Justice, the Federal Bureau of Investigation, the Office of the Director of National Intelligence, the Office of Personnel Management, and the White House, shall publish standard required transition agreements.

***(b) Deadline for execution.***

A covered transition entity shall execute all required transition agreements necessary for the level of access sought not later than—

1. the date established by existing transition law or published transition guidance; or
2. if no date is otherwise specified, 10 days after becoming eligible for the corresponding category of access.

***(c) No disabling consequence.***

Failure to execute a required transition agreement may not prevent all transition readiness access, prevent ordinary nonclassified planning, or impair the lawful assumption of office by the successful candidate.

***(d) Limited consequences.***

Failure to execute a required transition agreement may result only in consequences tailored to the missing agreement, including—

1. temporary limitation of sensitive transition access;
2. limitation of classified briefings;
3. limitation of access to protected personnel, intelligence, cybersecurity, law-enforcement, or national-security information;
4. public notice under section 13;
5. notification to relevant congressional committees;

6. notation in agency transition records; and
7. default statutory confidentiality, ethics, and information-security conditions where legally sufficient.

## **SEC. 11. BACKGROUND CHECK AND SECURITY-CLEARANCE COORDINATION.**

### ***(a) Agreement required.***

The Department of Justice and the Federal Bureau of Investigation shall make available a standard background-check and security-clearance transition agreement not later than January 1 of each presidential election year.

### ***(b) Transition-entity duty.***

A covered transition entity seeking access to classified information, sensitive national-security information, or agency landing-team access requiring vetting shall execute the agreement and submit necessary names and forms by the applicable statutory or published deadline.

### ***(c) Agency duty.***

Upon execution of the agreement and receipt of required submissions, the Department of Justice, Federal Bureau of Investigation, Office of Personnel Management, Office of the Director of National Intelligence, and affected agencies shall process transition-related background checks and clearance requests according to published expedited transition procedures.

### ***(d) Consequence of delay.***

If a covered transition entity does not timely execute the agreement or provide required submissions, the responsible federal office shall issue a written notice identifying the missing item, access category affected, cure procedure, and expected consequence.

## **SEC. 12. AGENCY COOPERATION DEADLINES.**

### ***(a) Transition points of contact.***

Each agency shall designate a senior transition official and transition points of contact not later than September 1 of each presidential election year.

### ***(b) Briefing materials.***

Each agency shall prepare nonclassified briefing materials not later than October 1 of each presidential election year.

### ***(c) Access after eligibility.***

Once a candidate or covered transition entity becomes eligible for transition readiness access, each agency shall provide initial contact within two business days and schedule an initial transition briefing within five business days, unless a written delay notice is issued under section 13.

### ***(d) Sensitive information.***

Sensitive transition access shall be provided only after satisfaction of applicable law, clearance requirements, and required transition agreements.

## **SEC. 13. WRITTEN DELAY OR DENIAL NOTICES.**

### ***(a) Notice required.***

Any federal official, agency, or covered transition entity that materially delays, denies, limits, or fails to perform a required transition duty shall issue a written notice.

### ***(b) Contents.***

The notice shall identify—

1. the duty at issue;
2. the responsible official or entity;
3. the factual basis for the delay or denial;
4. the legal basis for the delay or denial;
5. the access category affected;
6. the steps required to cure the delay or denial;
7. the deadline for cure; and
8. whether expedited judicial review is available.

***(c) Public availability.***

Notices under this section shall be publicly available, except that classified, law-enforcement-sensitive, personal-privacy, cybersecurity-sensitive, or national-security-sensitive information shall be redacted or summarized in unclassified form.

## **SEC. 14. EXPEDITED JUDICIAL REVIEW.**

***(a) Cause of action.***

An apparent successful candidate, covered transition entity, affected agency, agency head, or other person or entity expressly authorized by statute may bring a civil action to compel performance of a missed statutory transition duty.

***(b) Venue.***

An action under this section may be brought in the United States District Court for the District of Columbia.

***(c) Expedition.***

The court shall expedite the action to the greatest practicable extent.

***(d) Scope of review.***

The court may determine whether a nondiscretionary transition duty exists, whether the duty was missed, and what ministerial or declaratory relief is necessary. The court may not adjudicate the ultimate winner of the presidential election except to the extent otherwise authorized by law.

***(e) Relief.***

The court may order performance of a nondiscretionary duty, require issuance of a written notice, require access consistent with statutory eligibility and security requirements, preserve records, or grant other narrow relief necessary to enforce this Act.

## **SEC. 15. CONGRESSIONAL OVERSIGHT PRESERVED BUT NOT REQUIRED.**

Nothing in this Act limits congressional oversight, subpoenas, hearings, appropriations authority, reporting requirements, or other lawful congressional powers.

Transition access and continuity remedies under this Act do not depend on congressional oversight, committee action, subpoena issuance, appropriations pressure, or public objection by Congress.

## **SEC. 16. RECORDKEEPING AND REPORTING.**

***(a) Records.***

The Administrator and each agency shall preserve records sufficient to document compliance with this Act, including access determinations, delay notices, executed agreements, agency contacts, briefing dates, and security-vetting submissions.

***(b) Post-transition report.***

Not later than 180 days after inauguration, the Administrator shall submit to Congress and publish a report describing compliance with this Act, including missed statutory duties, delay notices, cured deficiencies, and recommendations for technical improvements.

***(c) Protection of sensitive information.***

The report shall not disclose classified, law-enforcement-sensitive, personal-privacy, cybersecurity-sensitive, or national-security-sensitive information.

## **SEC. 17. RELATION TO OTHER LAW.**

Nothing in this Act shall be construed to—

1. alter the date of inauguration;
2. alter presidential-election certification or counting procedures;
3. alter the Electoral Count Reform Act or title 3 procedures except as expressly provided;
4. authorize a federal official to adjudicate the winner of the presidential election;
5. require disclosure of classified information to a person not legally entitled to receive it;
6. waive ethics, financial-disclosure, donor-disclosure, background-check, clearance, or information-security requirements;
7. limit ordinary cooperative transition practices; or
8. impair lawful election contests, recounts, certifications, or judicial proceedings.



## **SEC. 18. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

### **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

### **Drafting Notes**

- This draft is designed as a targeted amendment to the Presidential Transition Act of 1963.
- The proposal preserves ordinary cooperative transition norms and uses statutory defaults only as backstops.
- Transition access is framed as administrative preparedness, not legal recognition of election victory.
- The draft addresses both government-side obstruction and transition-entity noncompliance.
- The expedited-review provision is limited to concrete missed statutory transition duties and should not invite courts to adjudicate the election winner.
- A later drafting pass should place each amendment into the correct section or subsection of the Presidential Transition Act of 1963 and add conforming amendments to existing terminology where needed.
- The draft should be reviewed against the Presidential Transition Act of 1963, the 2022 transition amendments, appropriations law, classified-information rules, background-check authorities, ethics laws, and agency transition-practice guidance.

### **Source Notes**

- Source review should include the Presidential Transition Act of 1963, as amended, in the GPO statutory compilation, including apparent-successful-candidate services, multiple-candidate support, transition memoranda of understanding, public ethics-plan requirements, background-investigation and security-clearance provisions, and public statement requirements.
- Source review should also include the Electoral Count Reform and Presidential Transition Improvement Act of 2022 provisions reflected in 3 U.S.C. § 5.

# ELEC-007 — Election Administration Federal-Force Noninterference Act

## A BILL

To prohibit federal personnel from participating in election administration, to preserve state and local civilian control over election operations, to permit narrowly limited non-election emergency response near election sites, to protect election materials from federal interference absent specific judicial safeguards, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Administration Federal-Force Noninterference Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve civilian state and local control over election administration;
2. modernize the principle that federal troops, armed federal personnel, and federally directed forces should not be present in a manner that affects elections;
3. distinguish lawful non-election emergency response from prohibited election participation;
4. prevent federal emergency authority, law-enforcement authority, investigative authority, protective authority, or technical-assistance authority from being used as a pretext for federal election supervision;
5. protect voters, election workers, ballots, voting equipment, election records, and result-transmission materials from intimidation or unlawful interference;
6. permit narrowly limited federal assistance only in extraordinary non-election emergencies where state and local capacity is demonstrably inadequate; and
7. require notice, documentation, withdrawal, and judicial safeguards where federal presence or process intersects with election sites or election materials.

## SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election site** means a polling place, ballot drop site, voter-registration processing site during an election period, counting center, tabulation center, canvassing site, recount site, audit site, certification site, election office, ballot-storage facility, voting-equipment storage facility, result-transmission site, or any place where ballots, voting equipment, pollbooks, tabulators, memory devices, election records, or presidential result-transmission documents are located, processed, counted, stored, reviewed, certified, or transmitted.
2. **Covered election material** means ballots, ballot images, voting equipment, tabulators, scanners, pollbooks, voter check-in devices, memory devices, removable media, election-management systems, chain-of-custody records, canvass records, certification records, recount records, audit records, election returns, presidential result-transmission documents, and any other record or item necessary to vote, count, tabulate, canvass, recount, audit, certify, preserve, or transmit election results.
3. **Federal personnel** means any officer, employee, agent, contractor, task-force member, military member, National Guard member in federal status, deputized federal officer, or other person acting under federal command, control, direction, funding, or operational authority.
4. **Election-administration function** means any act of administering, supervising, directing, controlling, observing for election-integrity purposes, interrupting, delaying, counting, recounting, canvassing, auditing, certifying, decertifying, validating, invalidating, transporting, seizing, inspecting, accessing, imaging, copying, retaining, or taking custody of any voting process, election proceeding, election decision, or covered election material. The term does not include lawful federal civil-rights monitoring, federal observer activity, or Department of Justice election monitoring authorized by the Voting Rights Act or other federal voting-rights law, provided that the activity is conducted without force, intimidation, direction of election officials, custody of election materials, or participation in an election-administration decision.
5. **Non-election emergency function** means an otherwise lawful law-enforcement, emergency-response, protective, medical, fire, explosives, cybersecurity, disaster-response, or technical-assistance function directed at an extraordinary emergency and not directed at administering, supervising, influencing, or participating in the election.
6. **Extraordinary emergency** means a specific, imminent, and objectively documented non-election emergency involving an active threat to life, serious bodily harm, active violence, credible explosive threat, fire, flood, structural collapse, hazardous-material incident, catastrophic infrastructure failure, or comparable physical emergency that state and local authorities cannot timely and adequately address without narrowly limited federal assistance. The term does not include alleged election fraud, suspected election

irregularities, disputes over voter eligibility, disputes over ballot validity, delays in counting or reporting, certification disputes, poll-watcher or observer disputes, generalized public unrest, generalized concern about election integrity, or a request to inspect, verify, audit, secure, transport, preserve, or take custody of election materials.

7. **State consent** means a written request or written consent from the Governor or another statewide official expressly designated by state law to request federal emergency assistance for election-site safety or election-continuity purposes.

## **SEC. 4. GENERAL PROHIBITION ON FEDERAL ELECTION-ADMINISTRATION PARTICIPATION.**

### ***(a) Prohibition.***

Except as expressly provided in this Act, federal personnel may not perform, direct, supervise, control, influence, or participate in any election-administration function.

### ***(b) No emergency conversion.***

The existence of an emergency, threat, investigation, protective mission, federal-facility concern, or technical-assistance request shall not convert federal personnel into election administrators and shall not authorize federal personnel to make, influence, delay, or control any election-administration decision.

### ***(c) Appearance of supervision.***

Federal personnel may not be deployed, positioned, identified, or used in a manner that reasonably creates the appearance that the federal government is supervising, validating, invalidating, policing, or controlling voting, counting, canvassing, recounting, auditing, certification, or custody of election materials.

## **SEC. 5. NON-ELECTION EMERGENCY ASSISTANCE EXCEPTION.**

### ***(a) Exception.***

Federal personnel may perform a non-election emergency function at or near a covered election site only if all requirements of this section are satisfied.

### ***(b) Required predicates.***

Before federal personnel may be deployed under this section, there must be—

1. state consent;
2. an extraordinary emergency;
3. a written finding that state and local authorities cannot timely and adequately address the specific emergency without federal assistance;
4. identification of the specific state or local capacity inadequacy requiring federal assistance;
5. a written scope order limiting the location, duration, personnel, mission, permitted actions, prohibited actions, command structure, reporting requirements, and termination trigger; and
6. confirmation that federal personnel will not perform any election-administration function.

### ***(c) Scope limitation.***

Federal assistance under this section shall be limited to the least intrusive non-election emergency function necessary to address the specific state-capacity inadequacy identified under subsection (b).

### ***(d) Supportive role only.***

Federal personnel deployed under this section may protect life, stabilize the emergency, provide technical assistance, assist in neutral emergency response, or perform other non-election functions within the written scope order. They may not administer, supervise, direct, observe for election-integrity purposes, interrupt, delay, count, recount, canvass, certify, audit, transport, seize, inspect, access, image, copy, retain, or take custody of covered election material or any election process.

### ***(e) Automatic withdrawal.***

Federal personnel deployed under this section shall withdraw from the covered election site when the emergency ends, state or local capacity is restored, the written scope order expires, state consent is withdrawn, or a court orders withdrawal, whichever occurs first.

## **SEC. 6. EXIGENT LIFE-SAFETY FALLBACK.**

### ***(a) Limited immediate action.***

If prior state consent is impossible because of an imminent threat to life or serious bodily harm, federal personnel may enter or act near a covered election site only to stabilize the emergency and protect life.

### ***(b) No election participation.***

Action under this section does not authorize any election-administration function.

### ***(c) Notice and withdrawal.***

Within six hours after action under this section begins, the responsible federal official shall provide written notice to the Governor, chief state election official, state attorney general, chief local election official, and United States district court for the district in which the action occurred. Federal personnel shall withdraw unless state consent, a judicial order, or another lawful non-election emergency predicate is obtained.

## **SEC. 7. ELECTION-MATERIAL ACCESS AND JUDICIAL SAFEGUARDS.**

### ***(a) Separate judicial process required.***

Federal personnel may not access, inspect, image, copy, transport, seize, retain, or take custody of covered election material unless authorized by a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order satisfying this section, except for incidental physical movement necessary to protect life during an exigent emergency under section 6.

### ***(b) Required findings.***

A court may authorize access to covered election material only upon specific findings that—

1. there is probable cause or other applicable legal basis for the process sought;
2. the covered election material is specifically identified;
3. the request is not a pretext for election supervision or interference;
4. the action is necessary and cannot be accomplished through a less intrusive alternative;
5. the action will not materially disrupt voting, counting, canvassing, recounting, auditing, certification, or statutory election deadlines unless no alternative is adequate;
6. chain of custody, ballot secrecy, voter privacy, voting-system security, and election-record integrity will be preserved;
7. copying, imaging, inspection, or supervised access is insufficient before physical seizure or removal; and
8. notice has been provided to the chief state election official and chief local election official unless delayed notice is specifically justified by exigent circumstances.

### ***(c) Protective conditions.***

Any order under this section shall include conditions governing chain of custody, sealing, copying, imaging, physical custody, access logs, storage, return, nondisclosure of sensitive election-security information, and expedited return or substitution where election administration requires continued use of the material.

### ***(d) No supervisory authority.***

A court order under this section authorizes only the specific evidence-preservation or law-enforcement action ordered. It does not authorize federal personnel to supervise, direct, pause, resume, validate, invalidate, count, recount, canvass, audit, certify, or decertify any election process.

### ***(e) Court-process savings clause.***

Nothing in this Act prohibits federal personnel from executing a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order, provided that execution of the order does not authorize federal personnel to perform an election-administration function except to the limited extent expressly required by the order and consistent with any chain-of-custody, voter-privacy, ballot-secrecy, and election-security safeguards imposed by the issuing court or applicable law.

## **SEC. 8. PROHIBITED CONDUCT; INCIDENTAL-CONTACT SAFE HARBOR.**

### ***(a) Prohibited conduct.***

It shall be unlawful for federal personnel or any person acting under color of federal authority to—

1. enter a covered election site for the purpose of supervising, monitoring, influencing, or controlling election administration;
2. visibly patrol, station, or deploy at a covered election site in a manner not authorized by this Act;

3. question voters, poll workers, election officials, observers, or canvassers about election choices, eligibility, vote counting, ballot handling, or certification decisions except pursuant to lawful process and outside active election administration where feasible;
4. direct any election official to stop, start, pause, resume, alter, certify, decertify, count, recount, reject, accept, transport, disclose, or withhold any vote, ballot, record, material, canvass, or certification;
5. use a non-election emergency or investigation as a pretext to observe election administration, access election materials, or influence election decisions;
6. take custody of covered election material except under section 7; or
7. represent, expressly or implicitly, that federal personnel are supervising, validating, invalidating, certifying, decertifying, or controlling the election.

***(b) Incidental-contact safe harbor.***

No person shall be liable under this Act solely because federal personnel, while acting in good faith and performing an otherwise lawful non-election function, inadvertently or unavoidably encounter, overhear, observe, or have incidental contact with an election process, election personnel, voters, observers, or covered election material, provided that the federal personnel—

1. did not intend to influence, supervise, control, delay, or participate in election administration;
2. did not invoke federal authority to affect an election-administration decision;
3. disengaged from any election-administration matter as soon as practicable;
4. did not access, inspect, image, copy, transport, seize, retain, or take custody of covered election material except as authorized by section 6 or 7;
5. did not disclose or use nonpublic election information obtained through the incidental contact except as required by lawful process or necessary to address the non-election emergency; and
6. documented and reported any material incidental contact to the responsible federal supervisor and, where feasible, the chief state or local election official.

***(c) Safe harbor limitations.***

The safe harbor in subsection (b) does not apply to intentional, reckless, repeated, pretextual, or avoidable conduct; conduct undertaken to observe or investigate election administration without lawful authority; or conduct that materially affects voting, counting, canvassing, auditing, certification, custody of election materials, or any other election-administration function.

## **SEC. 9. NOTICE, REPORTING, AND RECORDKEEPING.**

***(a) Public notice.***

Whenever federal personnel are deployed under section 5 or act under section 6, the responsible federal official shall issue public notice as soon as doing so will not materially endanger life, safety, or a legitimate non-election law-enforcement operation.

***(b) Contents.***

The notice shall identify the covered election site or general location, nature of the emergency, state consent or exigent predicate, state-capacity inadequacy identified, mission scope, participating federal entities, start time, expected duration, and whether any covered election material was affected.

***(c) After-action report.***

Within 14 days after federal personnel withdraw, the responsible federal official shall provide an after-action report to the Governor, chief state election official, state attorney general, chief local election official, relevant congressional committees, and the public.

***(d) Sensitive information.***

Classified, law-enforcement-sensitive, cybersecurity-sensitive, personal-privacy, or election-security-sensitive information may be redacted or summarized in unclassified form.

***(e) Records preserved.***

Federal entities shall preserve deployment orders, scope orders, communications, access logs, body-camera footage where available, incident reports, chain-of-custody records, notices, and after-action reports.

## **SEC. 10. EXPEDITED JUDICIAL REVIEW.**

***(a) Cause of action.***

A state, Governor, chief state election official, state attorney general, local election official, affected candidate, political party, affected voter, or custodian of covered election material may bring a civil action for declaratory or injunctive relief against violation of this Act.

**(b) Venue.**

An action under this section may be brought in the United States district court for the district where the covered election site or covered election material is located, or in the United States District Court for the District of Columbia.

**(c) Expedition.**

The court shall expedite the action to the greatest practicable extent.

**(d) Relief.**

The court may order withdrawal of federal personnel, prohibit election-administration participation, enforce chain-of-custody safeguards, require return or preservation of covered election material, require notice or reporting, or grant other narrow relief necessary to enforce this Act.

## **SEC. 11. RELATION TO OTHER LAW.**

Nothing in this Act shall be construed to—

1. prohibit otherwise lawful non-election emergency response consistent with this Act;
2. prohibit ordinary state or local law-enforcement election-site safety functions;
3. authorize federal personnel to participate in election administration;
4. limit stricter protections under state law;
5. impair lawful civil-rights enforcement conducted without federal election-administration participation;
6. impair lawful criminal investigation conducted outside active election administration or under the safeguards of this Act;
7. prohibit execution of a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order, subject to section 7;
8. prohibit federal personnel from registering to vote, voting, standing in line to vote, assisting family or household members as permitted by ordinary election law, appearing at a polling place in a personal capacity, or engaging in lawful civic activity in the same manner as other citizens, provided that they do not invoke federal authority, act under color of federal office, or perform official duties while doing so;
9. authorize any action prohibited by the Posse Comitatus Act or other federal law;
10. limit 18 U.S.C. § 592 except to provide additional protections; or
11. authorize federal personnel to direct, supervise, or control a state or local election official.

## **SEC. 12. PERSONAL-CAPACITY VOTING APPEARANCE.**

**(a) Civilian attire where reasonably practicable.**

Federal personnel appearing at a polling place, ballot drop site, voter-registration site, or other voting location solely in a personal capacity shall, where reasonably practicable, appear in civilian attire.

**(b) No indicia of federal authority.**

Federal personnel appearing in a personal capacity shall not display official insignia, tactical gear, official credentials, marked federal vehicles, visible weapons, or other indicia of federal authority in a manner that would reasonably create the appearance of federal election supervision, intimidation, or official presence.

**(c) No denial or invalidation of vote.**

Nothing in this section shall be construed to deny, burden, condition, or abridge the right of federal personnel to vote. A violation of this section shall not invalidate the individual's ballot.

## **SEC. 13. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The controlling rule is that federal agents may respond to a non-election emergency; they may not become part of the election.

- The emergency exception is not an election-participation exception.
- The extraordinary emergency definition is intentionally limited to concrete non-election emergencies and excludes election-administration disputes, generalized election-integrity concerns, and requests to inspect or secure election materials.
- The incidental-contact safe harbor protects good-faith inadvertent or unavoidable contact, but not intentional, reckless, pretextual, repeated, or election-affecting conduct.
- Federal personnel retain ordinary personal voting rights and lawful personal civic rights, subject to ordinary election law, ethics rules, agency rules, and the prohibition on invoking federal authority.
- Federal personnel should appear in civilian attire when voting in person where reasonably practicable and must not display official indicia in a manner suggesting federal election supervision or intimidation; this rule does not deny the right to vote or invalidate any ballot.
- Lawful court-issued writs, warrants, subpoena-enforcement orders, and other judicial orders remain executable, but they do not authorize election-administration participation beyond the order's express terms and required safeguards.
- State consent is necessary but not sufficient; there must also be a documented state-capacity inadequacy.
- Election-material access requires separate judicial safeguards.
- The civil-rights monitoring carveout is intended to preserve lawful Voting Rights Act observers and Department of Justice election monitoring while preventing federal-force presence or federal control over election administration.

## Source Notes

- This draft should be reviewed against 18 U.S.C. § 592, the Posse Comitatus Act, National Guard authorities, federal civil-rights enforcement including Voting Rights Act observer and monitoring authorities, election-crime enforcement, emergency-response law, federalism principles, state emergency-management law, Hatch Act principles, and federal employee voting-rights protections.

# ELEC-008 — Federal Election Subversion Accountability Act

## A BILL

To establish narrowly tailored criminal and civil accountability for coordinated schemes that use independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, or procure official disregard of lawful federal-election results, while preserving lawful litigation, recounts, contests, advocacy, reporting, legal advice, journalism, congressional activity, and good-faith official duties, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Election Subversion Accountability Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. protect the lawful determination, certification, transmission, counting, recognition, and practical legal effect of federal-election results;
2. create a narrow accountability framework for coordinated federal election-subversion schemes composed of independently wrongful predicate acts;
3. supplement, not replace, existing federal and state criminal, civil, election, professional-responsibility, contempt, and election-contest remedies;
4. preserve lawful litigation, recounts, election contests, congressional procedures, legal advocacy, good-faith official duties, public advocacy, journalism, reporting, whistleblowing, and ordinary campaign activity;
5. recognize that Congress has addressed certain presidential electoral-count and transition vulnerabilities through prior reforms, while preserving accountability for coordinated schemes that exploit multiple channels of federal-election administration;
6. protect federal elections without generally federalizing state and local elections;
7. avoid interference with each House of Congress's constitutional authority to judge the elections, returns, and qualifications of its own Members;
8. provide a limited state-attorney-general backstop where federal enforcement may be conflicted, delayed, or unavailable because the alleged scheme involves the President, White House, Department of Justice leadership, federal agencies, or persons politically aligned with federal executive actors; and
9. ensure that liability attaches only where the statute's coordination, corrupt-purpose, predicate-act, material-connection, safe-harbor, and limiting-instruction requirements are satisfied.

## SEC. 3. DEFINITIONS.

In this Act:

### **(a) Covered federal election.**

The term “**covered federal election**” means an election for President, Vice President, United States Senator, or Representative in Congress, including any primary, general, runoff, special, recount, contest, canvass, certification, result-transmission, presidential-electoral, electoral-count, or transition process connected to such election.

### **(b) Covered federal-election process.**

The term “**covered federal-election process**” means any process relating to a covered federal election, including voting, counting, tabulation, canvassing, recounts, audits, election contests, certification, result transmission, federal-election document transmission, congressional receipt or counting of electoral votes, and presidential-transition access.

### **(c) Presidential-election process.**

For an election for President or Vice President, the term “**covered federal-election process**” includes presidential-electoral appointment, certificates of ascertainment, certificates of vote, presidential result-transmission documents, electoral-vote transmission, congressional electoral-count proceedings, and presidential-transition access and continuity.

### **(d) Congressional-election caution.**

For an election for Senator or Representative in Congress, this Act does not regulate, control, or displace either House's constitutional authority to judge the elections, returns, and qualifications of its Members. This Act applies only to independently wrongful predicate conduct materially connected to a coordinated federal election-subversion scheme.



***(e) Lawful federal-election result.***

The term “**lawful federal-election result**” means a federal-election result, canvass, certification, appointment, certificate, return, recount determination, contest determination, result-transmission document, or related legal determination made, issued, recognized, or required under applicable federal or state law, subject to lawful recounts, contests, judicial proceedings, and statutory review.

***(f) Coordinated federal election-subversion scheme.***

The term “**coordinated federal election-subversion scheme**” means a course of conduct involving two or more persons who knowingly coordinate, agree, direct, finance, materially assist, or otherwise participate in conduct using independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, alter, or procure official disregard of a lawful federal-election result or covered federal-election process.

***(g) Predicate act.***

The term “**predicate act**” means an act listed in section 5 and committed with the mental state required by this Act and by the law, rule, order, or duty establishing the wrongful character of the act.

***(h) Independently wrongful.***

The term “**independently wrongful**” means unlawful, fraudulent, coercive, corrupt, knowingly false, contemptuous, sanctionable after judicial or tribunal finding, or specifically prohibited by federal law, state law, court order, professional rule, election law, or another legally binding duty.

***(i) Corruptly.***

The term “**corruptly**” means acting with a wrongful purpose to obtain an unlawful benefit, secure official action known to be unauthorized, impair a lawful governmental function, procure official disregard of a lawful federal-election result, or obstruct the lawful effect of a covered federal-election process.

The term does not include good-faith legal advocacy, good-faith factual error, public political advocacy, lawful lobbying, ordinary campaign activity, or pursuit of relief through lawful election procedures.

***(j) Material connection.***

The term “**material connection**” means a connection capable of furthering, enabling, concealing, financing, legitimizing, pressuring, delaying, obstructing, or giving practical effect to the coordinated federal election-subversion scheme.

***(k) Federal channel.***

The term “**federal channel**” means a federal proceeding, federal official function, federal agency, federal court, congressional proceeding, presidential result-transmission process, federal-election result-transmission process, federal transition process, or other federal mechanism for receiving, preserving, counting, recognizing, litigating, or giving effect to a covered federal-election result.

***(l) Person.***

The term “**person**” includes an individual, campaign committee, political committee, organization, corporation, partnership, association, legal entity, public official, former public official, officer, employee, agent, attorney, contractor, or other participant.

***(m) Official.***

The term “**official**” includes any federal, state, territorial, tribal, or local officer, employee, election official, canvassing official, certification official, law-enforcement official, legislative officer, elector, or person acting under color of law.

## **SEC. 4. OFFENSE OF COORDINATED FEDERAL ELECTION SUBVERSION.**

***(a) Offense.***

It shall be unlawful for any person knowingly and corruptly to participate in a coordinated federal election-subversion scheme that—

1. has the specific objective of nullifying, reversing, obstructing, delaying, corruptly altering, or procuring official disregard of a lawful federal-election result or covered federal-election process;
2. involves at least two predicate acts;
3. includes at least one predicate act occurring in or affecting a federal channel, covered federal-election process, or official duty relating to a covered federal election; and
4. has a material connection between the predicate acts and the corrupt objective.

***(b) Required mental state.***

No person may be liable under this section unless the government proves beyond a reasonable doubt that the person—

1. knew of the coordinated scheme's corrupt objective;

2. knowingly joined, directed, financed, materially assisted, or participated in the scheme;
3. knew, or was willfully blind to the fact, that the predicate acts were independently wrongful; and
4. intended that the conduct materially further, conceal, legitimize, finance, or give practical effect to the corrupt objective.

***(c) No liability for association alone.***

Mere association with a candidate, campaign, political party, attorney, public official, organization, or participant is insufficient to establish liability.

***(d) No liability for speech or belief alone.***

No person may be liable under this Act solely for political speech, public claims, election denial, criticism of election administration, support for a candidate, public advocacy, commentary, legal theory, opinion, lobbying, journalism, academic analysis, or other expressive activity.

## **SEC. 5. PREDICATE ACTS.**

For purposes of this Act, predicate acts are limited to the following independently wrongful acts:

***(a) False federal-election result-transmission documents.***

Knowingly creating, executing, transmitting, submitting, filing, presenting, delivering, or using a false or unauthorized federal-election result-transmission document, presidential-electoral document, certificate, return, or related official document in violation of federal or state law.

***(b) Coercive intimidation of election personnel.***

Knowingly threatening, intimidating, coercing, retaliating against, or attempting to coerce an election official, canvassing official, certification official, electoral, election worker, or covered family member for the purpose of altering, delaying, obstructing, refusing, or procuring official disregard of a lawful election duty.

***(c) Corrupt pressure under color of office.***

Knowingly using official authority, apparent official authority, governmental position, or access to governmental power to pressure, threaten, induce, or coerce another official to disregard, alter, delay, nullify, decertify, reverse, or refuse to give effect to a lawful federal-election result or duty.

***(d) Bribery, extortion, or unlawful inducement.***

Offering, soliciting, accepting, promising, or providing anything of value, official action, employment, pardon-related benefit, governmental favor, threat, or other unlawful inducement to affect a covered federal-election process.

***(e) Evidence fabrication, alteration, concealment, or destruction.***

Knowingly fabricating, altering, concealing, destroying, corruptly withholding, or falsifying evidence, records, ballots, election materials, electronic records, chain-of-custody materials, official returns, certifications, or official communications material to a covered federal-election process.

***(f) Knowingly false sworn or official statements.***

Knowingly making, causing, procuring, or using a materially false sworn statement, declaration, certification, affidavit, official statement, or submission to a court, legislative body, election official, federal agency, state agency, or other governmental body in furtherance of the coordinated scheme.

***(g) Unauthorized access to election materials or systems.***

Knowingly accessing, copying, imaging, transmitting, altering, taking custody of, disclosing, or using ballots, voting equipment, tabulators, pollbooks, memory devices, election-management systems, election records, returns, certifications, or result-transmission materials without lawful authority and in furtherance of the coordinated scheme.

***(h) Obstruction of a federal electoral proceeding or function.***

Knowingly obstructing, corruptly influencing, impeding, or attempting to obstruct or impede a federal proceeding, federal channel, or federal duty concerning a covered federal-election result, result-transmission process, presidential transition, or counting of electoral votes, where such obstruction is independently unlawful under federal law.

***(i) Knowing violation of election-material custody safeguards.***

Knowingly violating a federal court order, state court order, statutory custody rule, chain-of-custody rule, protective order, or lawful preservation requirement governing covered election material in furtherance of the coordinated scheme.

***(j) Knowing violation of transition-obstruction safeguards.***

Knowingly violating a statutory duty or court order governing presidential-transition access, agency cooperation, transition agreements, or transition continuity where the violation is materially connected to a coordinated effort to deny practical effect to a lawful presidential-election result.

***(k) Abuse of judicial, subpoena, audit, or investigatory process after finding.***

Using litigation, subpoena, audit, inspection, investigation, discovery, or administrative process as a predicate act only where a court, tribunal, disciplinary authority, or authorized adjudicative body has found bad faith, material falsity, improper purpose, frivolousness, abuse of process, contempt, sanctionable conduct, or knowing misuse materially connected to the coordinated scheme.

***(l) Scheme financing through knowing material falsehood.***

Knowingly raising, soliciting, transferring, spending, or retaining funds through materially false representations made in furtherance of the coordinated federal election-subversion scheme.

***(m) Conspiracy, attempt, or aiding and abetting.***

Attempting, conspiring, aiding, abetting, counseling, commanding, inducing, procuring, financing, or willfully causing any predicate act listed in this section.

## **SEC. 6. SAFE HARBORS AND PROTECTED ACTIVITY.**

***(a) Protected activity.***

Nothing in this Act shall be construed to prohibit, punish, chill, or create liability for—

1. good-faith litigation;
2. lawful recounts;
3. lawful election contests;
4. good-faith requests for audits or investigations;
5. public advocacy;
6. lobbying;
7. lawful congressional objections, debate, or proceedings;
8. legal advice;
9. reporting suspected irregularities;
10. whistleblowing;
11. journalism;
12. academic analysis;
13. ordinary campaign activity;
14. contingent preservation of legal claims;
15. good-faith cooperation with investigations;
16. lawful official duties;
17. criticism of election administration;
18. filing a lawsuit that is ultimately unsuccessful;
19. making a legal argument that is rejected; or
20. advocating statutory or constitutional reform.

***(b) Good-faith legal representation.***

An attorney may not be liable under this Act solely for representing a client, advancing a nonfrivolous legal claim, preserving a legal argument, advising on lawful options, filing a pleading, communicating with officials, or pursuing lawful recount, contest, appellate, administrative, or congressional procedures.

This subsection does not protect knowingly false evidence, fraudulent documents, bribery, threats, coercion, obstruction, contempt, or conduct found by a court or tribunal to be independently wrongful and materially connected to the coordinated scheme.

***(c) Good-faith official duties.***

A public official may not be liable under this Act solely for performing lawful official duties, seeking legal advice, requesting lawful review, voting on an objection, participating in lawful legislative proceedings, or taking a legal position within the scope of lawful authority.

This subsection does not protect corrupt use of official authority, coercion, bribery, threats, fabrication, knowing falsehoods, or official acts undertaken with knowledge that they are unauthorized and materially connected to a coordinated federal election-subversion scheme.

***(d) Congressional proceedings.***

Nothing in this Act shall be construed to impose liability solely for a Member of Congress's vote, debate, objection, legislative act, or participation in proceedings protected by the Constitution. This subsection does not protect independently wrongful conduct outside constitutionally protected legislative activity.

***(e) Speech and advocacy.***

No expressive activity may serve as a predicate act unless it is integral to independently wrongful conduct, including fraud, threat, bribery, coercion, obstruction, or knowing use of false official documents.

***(f) Burden.***

The government bears the burden of proving beyond a reasonable doubt that the safe harbor does not apply in a criminal prosecution.

## **SEC. 7. REQUIRED JURY INSTRUCTIONS AND LIMITING PRINCIPLES.**

***(a) Required limiting instructions.***

In any criminal prosecution under this Act, the court shall instruct the jury that liability may not be based solely on—

1. political speech;
2. public advocacy;
3. election denial;
4. criticism of election administration;
5. legal theory;
6. lobbying;
7. journalism;
8. academic analysis;
9. association with a candidate, campaign, political party, attorney, public official, organization, or participant;
10. lawful legal representation;
11. official position or official status;
12. a lawsuit, recount request, contest, audit request, or investigation request that is unsuccessful or rejected;
13. a factual claim that is mistaken but made in good faith; or
14. a legal argument that is rejected by a court, election official, legislative body, or other decisionmaker.

***(b) Required elements instruction.***

The court shall instruct the jury that the government must prove beyond a reasonable doubt each of the following:

1. the existence of a coordinated federal election-subversion scheme;
2. the defendant's knowing and corrupt participation in that scheme;
3. the scheme's specific corrupt objective to nullify, reverse, obstruct, delay, corruptly alter, or procure official disregard of a lawful federal-election result or covered federal-election process;
4. at least two independently wrongful predicate acts;
5. the defendant's knowledge, or willful blindness, that the predicate acts were independently wrongful;
6. a material connection between the predicate acts and the corrupt objective; and
7. that no safe harbor under section 6 precludes liability.

***(c) Pressure communications.***

The court shall instruct the jury that a communication with an election official, public official, court, legislative body, agency, or other decisionmaker is not unlawful under this Act merely because it is forceful, persistent, political, mistaken, adversarial, or requests investigation, review, recount, audit, litigation, legislative consideration, or other lawful process.

A pressure communication may support liability only if the government proves beyond a reasonable doubt that the communication was independently wrongful, knowingly and corruptly undertaken, and materially connected to a coordinated federal election-subversion scheme satisfying section 4.

***(d) Safe-harbor sequencing.***

The court shall instruct the jury that it must consider the safe harbors and protected-activity provisions of section 6 before finding criminal liability.

***(e) Attorney and official limitations.***

The court shall instruct the jury that attorney status, client representation, public office, campaign status, political affiliation, or access to official channels is insufficient by itself to establish liability.

## **SEC. 8. CRIMINAL PENALTIES.**

***(a) Basic offense.***

A person who violates section 4 shall be fined under title 18, United States Code, imprisoned for not more than ten years, or both.

***(b) Aggravated offense.***

A person shall be fined under title 18, United States Code, imprisoned for not more than twenty years, or both, if the person violates section 4 and—

1. acts as an organizer, director, principal funder, legal architect, or principal coordinator of the coordinated scheme;
2. uses official authority or apparent official authority;
3. causes material disruption of a federal electoral-count proceeding, presidential transition, federal-election result-transmission process, or state certification process for a covered federal election;
4. uses threats, violence, bribery, extortion, or evidence fabrication;
5. causes substantial public expense, security expense, delay, or emergency governmental response;
6. knowingly targets election personnel or their family members;
7. knowingly causes unauthorized access to voting systems or election materials; or
8. continues the scheme after final judicial or statutory rejection of the asserted legal basis.

***(c) No incarceration for protected activity.***

No sentence may be imposed for conduct protected under section 6.

## **SEC. 9. CIVIL ENFORCEMENT BY THE UNITED STATES.**

***(a) Civil action.***

The Attorney General may bring a civil action in the United States District Court for the District of Columbia or in any district where a substantial part of the coordinated scheme occurred.

***(b) Relief.***

The court may grant—

1. declaratory relief;
2. injunctive relief;
3. preservation orders;
4. corrective notice to federal or state recipients of false documents;
5. public-cost reimbursement;
6. disgorgement of funds knowingly raised through materially false representations in furtherance of the coordinated scheme;
7. civil penalties;
8. protective orders for election personnel and records; and

9. other equitable relief necessary to prevent or remedy the coordinated scheme.

**(c) Standard.**

Civil relief under this section requires clear and convincing evidence of a violation of section 4.

**(d) No partisan private damages action.**

This Act does not create a general private right of action for candidates, campaigns, parties, political committees, or voters to obtain damages.

## **SEC. 10. STATE ATTORNEY GENERAL AND ELECTION-OFFICIAL BACKSTOP ACTIONS.**

**(a) Independent backstop action.**

A state attorney general, chief state election official, or state officer expressly authorized by state law may bring a civil action for declaratory, injunctive, preservation, corrective-notice, or other equitable relief to prevent or remedy an imminent, ongoing, or recently completed violation of this Act that materially threatens, impairs, or corrupts that State's administration, canvassing, recount, certification, result transmission, custody of election materials, protection of election personnel, voters, or performance of lawful duties in a covered federal election.

**(b) State nexus required.**

A plaintiff under subsection (a) must plead and prove a material nexus between the alleged coordinated federal election-subversion scheme and that State's federal-election administration, certification, canvassing, recount, result-transmission process, election materials, election personnel, voters, or lawful duties.

**(c) Relief available.**

Relief under this section may include—

1. declaratory relief;
2. temporary, preliminary, or permanent injunctive relief;
3. preservation orders;
4. corrective notice to federal or state recipients of false or unauthorized election documents;
5. election-material custody safeguards;
6. orders preventing or remedying ongoing interference with certification, canvassing, recount, result transmission, or protected election personnel; and
7. other equitable relief narrowly necessary to prevent or remedy the violation.

**(d) No damages or partisan relief.**

A civil action under this section may not seek damages, punitive damages, candidate-specific damages, party-specific damages, or relief whose primary purpose is to benefit or burden a candidate, campaign, party, or political committee.

**(e) Anti-weaponization pleading requirement.**

A complaint under this section must plead with particularity—

1. the alleged coordinated federal election-subversion scheme;
2. the specific predicate acts alleged;
3. the corrupt objective;
4. the material connection between the predicate acts and the corrupt objective;
5. the State nexus required by subsection (b); and
6. why the safe harbors in section 6 do not bar the requested relief.

**(f) Protected activity limitation.**

Relief may not be granted under this section based solely on political disagreement, public advocacy, election denial, ordinary litigation, good-faith recounts, lawful election contests, protected congressional activity, legal advice, journalism, lobbying, or a rejected legal theory.

***(g) Notice to the United States; no veto.***

A plaintiff under this section shall provide contemporaneous notice of the action to the Attorney General of the United States. The failure or refusal of the Attorney General to authorize, join, approve, or support the action shall not bar the action.

***(h) Consolidation and coordination.***

If multiple actions under this section concern substantially overlapping alleged schemes or requested relief, a court may coordinate, consolidate, transfer, or otherwise manage the actions to reduce inconsistent obligations, duplicative litigation, or conflicting injunctions, consistent with due process and the need for expedited election-related review.

***(i) Expedition.***

The court shall expedite an action under this section to the greatest practicable extent.

## **SEC. 11. DISGORGEMENT AND PUBLIC-COST REIMBURSEMENT.**

***(a) Disgorgement.***

Where the United States proves by clear and convincing evidence that a person knowingly raised, solicited, transferred, spent, or retained funds through materially false representations made in furtherance of a coordinated federal election-subversion scheme, the court may order disgorgement of such funds.

***(b) Public costs.***

The court may order reimbursement of reasonable public costs directly caused by the coordinated scheme, including emergency security costs, election-administration costs, corrective notice costs, document-preservation costs, or litigation costs incurred by public entities.

## **SEC. 12. DISQUALIFICATION.**

***(a) Disqualification authorized.***

Upon conviction under section 4, or upon clear and convincing evidence in a civil action brought by the United States, a court may disqualify a person from serving for a period not exceeding ten years as—

1. a presidential elector;
2. a federal election administrator;
3. a federal transition official;
4. a federal officer or employee with authority over federal-election certification, result transmission, presidential-transition access, or electoral-count procedures; or
5. a person exercising federal statutory authority over covered federal-election materials or processes.

***(b) Narrow tailoring.***

Disqualification shall be imposed only if necessary to protect the integrity of covered federal-election processes and shall be no broader than necessary.

***(c) Constitutional offices.***

Nothing in this section shall be construed to add qualifications for President, Vice President, Senator, or Representative beyond those established by the Constitution.

## **SEC. 13. RECORD PRESERVATION.**

***(a) Preservation duty.***

Upon notice of a civil or criminal investigation under this Act, a person subject to the investigation shall preserve records materially related to the alleged coordinated federal election-subversion scheme.

***(b) Scope.***

Records include communications, funding records, legal memoranda, drafts of result-transmission documents, pressure communications, litigation materials, subpoena materials, audit materials, transition communications, communications with public officials, and records relating to covered election materials.

***(c) Privilege.***

Nothing in this section abrogates attorney-client privilege, work-product protection, constitutional privilege, Speech or Debate Clause protection, executive privilege, or other lawful privilege. Claims of privilege shall be resolved by the court.

## SEC. 14. RELATION TO EXISTING LAW.

Nothing in this Act shall be construed to—

1. limit any federal or state criminal, civil, disciplinary, contempt, election, or professional-responsibility law;
2. limit the Electoral Count Reform and Presidential Transition Improvement Act of 2022;
3. limit lawful recounts, contests, litigation, audits, or investigations;
4. criminalize protected speech, advocacy, reporting, or political activity;
5. authorize federal supervision of state election administration;
6. displace state authority over election administration except as expressly provided by federal law;
7. create liability based solely on belief, viewpoint, association, political affiliation, or legal argument;
8. expand ordinary RICO by implication;
9. regulate either House of Congress's constitutional authority to judge the elections, returns, and qualifications of its Members; or
10. apply to state or local elections except where predicate conduct independently violates federal law.

## SEC. 15. PRESIDENTIAL ACCOUNTABILITY AND IMMUNITY.

### ***(a) No immunity expansion.***

Nothing in this Act shall be construed to create, expand, recognize, or imply immunity from criminal, civil, evidentiary, or equitable accountability for any person.

### ***(b) Relationship to official authority.***

A person holding federal office, including the President or Vice President, is subject to this Act to the maximum extent permitted by the Constitution and laws of the United States.

### ***(c) No displacement of immunity reform.***

This section does not displace any statute, constitutional amendment, or rule governing criminal immunity, civil immunity, official-act evidence, tolling, impeachment, removal, or prosecution of a President, former President, Vice President, or former Vice President.

### ***(d) Severability of presidential applications.***

If application of this Act to a President, former President, Vice President, or former Vice President is held invalid in any circumstance, the remainder of this Act and all valid applications shall remain in force.

## SEC. 16. EXPEDITED REVIEW.

A court hearing an action seeking emergency relief under this Act shall expedite the action to the greatest practicable extent, consistent with due process, the First Amendment, the Petition Clause, the Speech or Debate Clause, constitutional separation of powers, and the lawful completion of covered federal-election processes.

## SEC. 17. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

## Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- This draft is intentionally ambitious and should be treated as a first-pass framework.
- It is RICO-like but not ordinary RICO.
- Liability requires a coordinated scheme, corrupt objective, at least two independently wrongful predicate acts, and material connection.
- Required jury instructions are included because overbreadth, speech, association, legal-representation, and official-duty risks are central design concerns.
- A pressure communication is not unlawful merely because it is forceful, political, mistaken, adversarial, or requests lawful review. It becomes relevant only if independently wrongful, knowingly and corruptly undertaken, and materially connected to a coordinated federal election-subversion scheme.



- The state-attorney-general backstop is included because exclusive federal enforcement may be inadequate where the alleged scheme involves the President, White House, DOJ leadership, federal agencies, or politically aligned federal executive actors.
- State backstop actions are limited to state-nexus equitable relief; they do not authorize damages, punitive damages, partisan proxy suits, or generalized election-dispute litigation.
- The statute should not punish election denial, political speech, litigation, recounts, contests, legal advice, journalism, lobbying, lawful congressional activity, or ordinary campaign activity.
- Safe harbors are central and should be strengthened during review.
- The bill applies to federal elections, with presidential-specific coverage where the federal result-transmission, electoral-count, and transition processes require it.
- It does not generally federalize state or local elections.
- It should be reviewed carefully for Article I, Section 5 and Speech or Debate Clause concerns in congressional-election applications.
- Obstruction-related predicates should be reviewed under *Fischer v. United States* and should remain tied to independently unlawful conduct rather than generalized disruption or political pressure.
- Section 15 is designed to complement ARRP's presidential-immunity reform, not to solve immunity by itself.
- Further review should compare existing reform proposals, election-crime statutes, obstruction statutes, RICO doctrine, First Amendment doctrine, Petition Clause doctrine, Speech or Debate Clause doctrine, ECRA, federalism limits, Article I Section 5 doctrine, and presidential-immunity doctrine.

## Source Notes

- Source review should include federal RICO definitions and remedies in 18 U.S.C. chapter 96, existing federal conspiracy and rights statutes including 18 U.S.C. § 371, 18 U.S.C. § 241, and 18 U.S.C. § 1512, Electoral Count Reform Act provisions including 3 U.S.C. § 15, the Constitution's Speech or Debate Clause, *Fischer v. United States*, and *Trump v. United States*.

# **ELEC-009 — Direct Election of the President and Vice President Amendment**

## **JOINT RESOLUTION**

Proposing an amendment to the Constitution of the United States to abolish presidential electors and provide for the direct election of the President and Vice President by the people of the United States.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, two-thirds of each House concurring therein, that the following article is proposed as an amendment to the Constitution of the United States:

## **ARTICLE — DIRECT ELECTION OF THE PRESIDENT AND VICE PRESIDENT**

### ***Section 1. Direct election.***

The President and Vice President shall be elected directly by the people of the United States. Presidential electors are abolished.

### ***Section 2. Joint candidacy and voter choice.***

Each candidate for President shall run jointly with a candidate for Vice President. Each voter shall cast a single vote for one joint ticket for President and Vice President.

### ***Section 3. National popular vote winner.***

The joint ticket receiving the greatest number of lawful votes cast nationwide shall be elected President and Vice President, except as Congress may by law provide for a national runoff, ranked-choice tabulation, or other uniform majority mechanism.

### ***Section 4. Uniform national administration.***

Congress shall by law provide uniform rules for ballot access, vote counting, national certification, recounts, contests, result transmission, vacancies in candidacy, and resolution of ties or unresolved contests. States shall administer elections for President and Vice President subject to this Constitution and laws enacted under this article.

### ***Section 5. Existing terms and succession.***

This article does not alter the commencement or duration of presidential or vice-presidential terms, the Twenty-Fifth Amendment, or the law of presidential succession, except to the extent necessary to implement direct election.

### ***Section 6. Repeal of inconsistent provisions.***

The provisions of Article II, Section 1; the Twelfth Amendment; the Twentieth Amendment; and the Twenty-Third Amendment that are inconsistent with this article are superseded to the extent of the inconsistency.

### ***Section 7. Enforcement and implementation.***

Congress shall have power to enforce and implement this article by appropriate legislation.

### ***Section 8. Effective date.***

This article shall take effect for the first presidential election occurring more than two years after ratification, unless Congress by law provides a later effective date.

## **Budgetary Impact Statement**

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- This is a first working draft of a constitutional amendment.
- The draft abolishes presidential electors and creates direct national election of the President and Vice President.
- The default rule is national plurality, but Congress may provide a uniform majority mechanism such as a runoff or ranked-choice tabulation.
- Implementing legislation will be required for ballot access, national certification, recounts, contests, result transmission, candidate vacancy, tie, and transition procedures.
- The draft preserves state administration subject to uniform federal rules enacted under the amendment.
- The draft supersedes inconsistent parts of Article II, the Twelfth Amendment, the Twentieth Amendment, and the Twenty-Third Amendment rather than attempting to rewrite each clause inline.

## Source Notes

- Source review should include Article II, Section 1, the Twelfth Amendment, the Twentieth Amendment, and the Twenty-Third Amendment.
- Article V is the controlling amendment vehicle for proposal and ratification thresholds. Direct prior-proposal review should include congressional constitutional-amendment analogues such as H.J.Res. 7, S.J.Res. 16, and S.J.Res. 17 from the 116th Congress.
- Historical predicate review should include official FEC election-result compilations for the 2000 and 2016 modern popular-vote/electoral-vote divergence examples.

# **ELEC-010 — Mail-In Voting Reliability and Election Mail Standards Act**

## **A BILL**

To amend the Help America Vote Act of 2002 to establish minimum reliability, notice, cure, tracking, transparency, and custody standards for mail and absentee ballots in elections for Federal office, to amend title 39, United States Code, to establish election-mail service standards, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## **SECTION 1. SHORT TITLE.**

This Act may be cited as the "**Mail-In Voting Reliability and Election Mail Standards Act.**"

## **SEC. 2. PURPOSES.**

The purposes of this Act are—

1. to protect eligible voters from avoidable disenfranchisement caused by unreliable mail-ballot delivery, opaque rejection practices, curable technical defects, or late notice;
2. to strengthen public confidence in lawful mail and absentee voting by requiring transparent custody, tracking, rejection, cure, and canvass procedures;
3. to preserve State choice over whether and how broadly to offer mail or absentee voting, while establishing minimum standards when such voting is made available in elections for Federal office;
4. to ensure that postal operations support, and do not secretly condition or veto, lawful State-created mail-ballot channels, including any State-law receipt window for ballots cast by election day; and
5. to preserve election security, voter authentication, ballot custody, and timely finality through clear and auditable rules.

## **TITLE I — MAIL AND ABSENTEE BALLOT RELIABILITY STANDARDS**

### **SEC. 101. HELP AMERICA VOTE ACT AMENDMENTS.**

The Help America Vote Act of 2002 is amended by adding at the end the following new title:

## **TITLE XI — MAIL AND ABSENTEE BALLOT RELIABILITY**

### **SEC. 1101. DEFINITIONS.**

In this title:

1. **Commission** means the Election Assistance Commission.
2. **Covered mail ballot** means an absentee ballot, mail ballot, vote-by-mail ballot, or other ballot for an election for Federal office that is provided to a voter for return by mail or other authorized remote return method.
3. **Covered State** means a State that permits any voter to cast a covered mail ballot in an election for Federal office.
4. **Curable defect** means a missing signature, signature mismatch, missing or incomplete date, missing secrecy envelope, identification-number mismatch, witness or attestation defect, envelope defect, or comparable error that can be corrected without changing the voter's selections and without permitting a person who is not an eligible voter to cast a ballot.
5. **Election mail** has the meaning given by regulations or guidance of the Postal Service, except that the term shall include any covered mail ballot and any ballot application, ballot request, cure notice, election-official notice, or election-administration communication sent through the mails in connection with an election for Federal office.
6. **State** has the meaning given the term in section 901.

### **SEC. 1102. STATE MAIL-BALLOT RELIABILITY REQUIREMENTS.**

#### **(a) Minimum standards.**

A covered State shall, for each election for Federal office in which covered mail ballots are available—

1. publish clear request, mailing, return, receipt, cure, preprocessing, canvass, and counting deadlines, including the treatment of ballots postmarked by election day but received afterward if such ballots are countable under State law;

2. set ballot-request and outbound-mailing deadlines that account for Postal Service delivery standards, jurisdiction-specific mailing advisories, and local processing needs;
3. provide a voter-facing method for tracking, at minimum, ballot request, outbound mailing, receipt, acceptance, rejection, and cure status;
4. apply uniform statewide standards for signature review, identification-number review, or other voter-authentication review used for covered mail ballots;
5. give prompt notice and a meaningful cure opportunity for each curable defect when voter eligibility and ballot timeliness can still be established;
6. prohibit rejection for an immaterial paperwork defect when voter eligibility, ballot timeliness, and ballot authenticity are otherwise established;
7. provide a reasonable nonpostal return option after the Postal Service's recommended mailing date when mail return is no longer reasonably reliable;
8. publish plain-language instructions, including accessibility and language-access information required by law;
9. publish aggregate post-election rejection data by category, including late receipt, signature or identity defect, envelope defect, missing documentation, and uncured defect;
10. maintain written chain-of-custody, reconciliation, and retention procedures for covered mail ballots; and
11. maintain a contingency plan for postal disruption, severe weather, disaster, cyber incident, printing or vendor failure, administrative backlog, or comparable emergency.

***(b) Drop boxes and nonpostal return.***

If a covered State authorizes ballot drop boxes or other nonpostal return locations for covered mail ballots, the State shall maintain uniform written rules for location, public notice, collection frequency, seal logs, chain of custody, reconciliation, and dual-control or comparable pickup safeguards.

***(c) State flexibility preserved.***

Nothing in this title requires a State to offer no-excuse mail voting, all-mail elections, permanent mail-voter status, automatic mail-ballot distribution, or ballot drop boxes.

***(d) More protective State law.***

Nothing in this title preempts a State law or procedure that provides greater access, longer cure periods, broader notice, more secure custody, stronger voter privacy, or more protective ballot-tracking procedures, unless the State law or procedure conflicts with a specific requirement of this title.

## **SEC. 1103. POSTAL ADVISORY ALIGNMENT.**

***(a) State use of advisory dates.***

Each covered State shall consider Postal Service jurisdiction-specific mailing advisories when setting ballot-request, outbound-mailing, public-notice, and nonpostal-return procedures for covered mail ballots.

***(b) Advisory dates not disqualification dates.***

A Postal Service mailing advisory may not be treated as a legal deadline for voter eligibility, ballot validity, or ballot rejection unless a State law independently establishes such a deadline consistent with this title and other applicable law.

## **SEC. 1104. FEDERAL DATA-CONDITION LIMITATION.**

A Federal agency, including the Postal Service, may not refuse, delay, condition, or degrade otherwise lawful election-mail service for covered mail ballots because a State or local election authority declines to submit a voter manifest, citizenship list, barcode file, ballot-envelope identifier, voter-registration database, or comparable voter-data file, unless Congress has expressly authorized that condition by statute and provided voter-protective procedures.

## **SEC. 1105. COMMISSION GUIDANCE; NO DISCRETIONARY APPROVAL.**

***(a) Guidance.***

Not later than 180 days after enactment of this title, the Commission, in consultation with the Postal Service, State and local election officials, disability-rights organizations, language-access experts, and election-security experts, shall issue voluntary guidance and model forms for implementing this title.

**(b) No discretionary approval.**

The Commission may not approve, disapprove, delay, condition, or supervise a State's mail-ballot policy except as expressly provided by this title or another Act of Congress.

**SEC. 1106. ENFORCEMENT.**

**(a) Civil action by Attorney General.**

The Attorney General may bring a civil action for declaratory or injunctive relief to enforce this title.

**(b) Civil action by aggrieved voter.**

An aggrieved voter whose covered mail ballot is rejected without the notice or cure opportunity required by this title may bring a civil action for declaratory or injunctive relief.

**(c) Timing.**

A court hearing an action under this section shall expedite proceedings to the greatest extent practicable when relief is sought before an election, canvass, certification, or cure deadline.

**(d) No damages.**

This section does not create a damages remedy against a State, political subdivision, election official, postal official, or election worker.

**TITLE II — ELECTION MAIL STANDARDS**

**SEC. 201. ELECTION MAIL SERVICE STANDARDS.**

Chapter 36 of title 39, United States Code, is amended by adding at the end the following:

**§ 3697. Election mail service standards**

**(a) Election mail standards.**—The Postal Service shall maintain written operational standards for election mail, including standards for tracking, postmarking, processing, facility all-clear procedures, delivery-performance monitoring, escalation channels for election officials, and public communication during Federal election periods.

**(b) Jurisdiction-specific mailing advisories.**—For each regularly scheduled general election for Federal office, the Postal Service shall publish jurisdiction-specific recommended mailing dates for covered mail ballots, ballot applications, and cure materials not later than 60 days before the election.

**(c) Election official escalation channel.**—The Postal Service shall maintain a dedicated election-mail escalation channel for State and local election officials during each Federal election period.

**(d) Operational-change notice.**—During the 120-day period preceding a regularly scheduled general election for Federal office, the Postal Service may not implement an operational change that foreseeably degrades election-mail performance unless the Postal Service provides public notice, notice to affected State election officials, and a mitigation plan.

**(e) No unauthorized voter-data condition.**—The Postal Service may not refuse, delay, condition, or degrade otherwise lawful election-mail service because a State or local election authority declines to submit a voter manifest, citizenship list, barcode file, ballot-envelope identifier, voter-registration database, or comparable voter-data file, unless Congress has expressly authorized that condition by statute and provided voter-protective procedures.

**(f) Annual report.**—Not later than 180 days after each regularly scheduled general election for Federal office, the Postal Service shall submit to Congress and make public a report on election-mail performance, including delivery-performance data to the extent measurable, postmarking compliance, escalation requests, all-clear compliance, extraordinary measures, and material operational issues.

**SEC. 202. CLERICAL AMENDMENT.**

The table of sections for chapter 36 of title 39, United States Code, is amended by adding at the end the following:

3697. Election mail service standards.

**TITLE III — AUTHORIZATION OF APPROPRIATIONS**

**SEC. 301. AUTHORIZATION OF APPROPRIATIONS.**

There are authorized to be appropriated such sums as may be necessary to carry out this Act and the amendments made by this Act.

**Budgetary Impact Statement**

Budget authority may be required for EAC guidance, State implementation support, voter-facing tracking, cure notices, election-mail reporting, and Postal Service operational compliance; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- This draft amends existing law rather than creating a wholly freestanding regime.
- Title I places mail-ballot reliability standards in HAVA because the proposal concerns minimum administration standards for elections for Federal office.
- Title II places election-mail operational standards in title 39 because USPS delivery, postmarking, tracking, all-clear procedures, and election-official escalation belong in postal law.
- The draft does not require States to offer no-excuse mail voting or all-mail elections; it applies when a State chooses to make covered mail ballots available for elections for Federal office.
- The draft treats USPS mailing dates as advisories for planning and notice, not as independent ballot-disqualification deadlines.
- After *Watson v. Republican National Committee*, 609 U.S. \_\_\_\_ (2026), the draft does not need to create a federal rule making post-Election-Day receipt lawful; it instead requires clear publication, reliable postal handling, and uniform administration of any State-law receipt window.
- The data-condition rule is designed to prevent USPS or another Federal actor from making lawful ballot delivery depend on State submission of voter manifests, citizenship lists, barcode files, or comparable voter-data systems absent clear congressional authorization and voter-protective procedures.
- The enforcement section is limited to declaratory and injunctive relief and does not create damages liability.

## Source Notes

- Source review should include the Help America Vote Act of 2002, classified in 52 U.S.C. chapter 209; the Uniformed and Overseas Citizens Absentee Voting Act, classified in 52 U.S.C. chapter 203; and postal-service provisions including 39 U.S.C. § 101, 39 U.S.C. § 401, 39 U.S.C. § 403, and 39 U.S.C. § 404.
- Source review should also include the USPS Office of Inspector General's election-mail performance report and the Election Assistance Commission's canvass guidance.
- Source review should include the USPS proposed rule, *Ballot Mail for Federal Elections*, 91 Fed. Reg. 32915 (June 2, 2026).
- Source review should include the Supreme Court's decision in *Watson v. Republican National Committee*, 609 U.S. \_\_\_\_ (2026), holding that the federal election-day statutes do not require absentee ballots to be received by election day.

# **ELEC-011-amendment — Neutral Redistricting Baseline Amendment**

## **JOINT RESOLUTION**

Proposing an amendment to the Constitution of the United States to require neutral baseline redistricting, prohibit partisan and incumbent-protective district manipulation, preserve lawful representation safeguards, and authorize Congress to enforce and implement those requirements.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, two-thirds of each House concurring therein, that the following article is proposed as an amendment to the Constitution of the United States:

## **ARTICLE — NEUTRAL REDISTRICTING BASELINE**

### ***Section 1. Neutral baseline required.***

Each State shall establish congressional and state legislative districts through a process that begins with a neutral, public, replicable baseline map generated from population, geography, contiguity, compactness, and other neutral districting criteria.

### ***Section 2. Mandatory neutrality floor.***

No congressional or state legislative district shall be drawn, adopted, revised, or maintained for the purpose of favoring or disfavoring a political party, candidate, incumbent, faction, donor, campaign, viewpoint, or class of voters because of their expected partisan or electoral effect.

No State, officer, body, court, or person acting under color of law shall use partisan, incumbent, candidate, donor, campaign, or election-performance data to generate the neutral baseline map.

### ***Section 3. Public deviations.***

A State may depart from the neutral baseline map only by a public process and only where the departure is supported by written findings showing that the departure is necessary to satisfy this Constitution, federal law, a State constitution, a State voting-rights law consistent with this article, equal population, contiguity, compactness, tribal integrity, political-subdivision integrity, compact communities of interest, geographic necessity, election-administration necessity, or correction of a material data or implementation error.

Each departure shall be narrowly tailored to the stated ground and shall be subject to judicial review.

No State law, including a State voting-rights law, may authorize a departure from the neutral baseline map that is broader than necessary to remedy the identified legal or representational injury, that permits use of prohibited political data in the neutral baseline map, or that has the purpose or effect of evading the neutrality requirements of this article.

### ***Section 4. Representation safeguards.***

This article does not prohibit districting measures necessary to comply with the Constitution, the Voting Rights Act of 1965, or other laws protecting equal political opportunity, minority voting opportunity, or lawful representation safeguards.

No such measure may be used as a pretext for partisan advantage, incumbent protection, voter retaliation, or dilution of a disfavored community.

Nothing in this article prevents a State from providing voting-rights protections more protective than federal law, but those protections must be applied through public, evidence-based, narrowly tailored findings and may not nullify the neutral-baseline process.

### ***Section 5. Transparency and public participation.***

Before a congressional or state legislative district plan takes effect, the State shall publish the neutral baseline map, the method used to generate it, the data used, any proposed departures, written findings supporting each departure, and a meaningful opportunity for public comment.

### ***Section 6. Mid-decade redistricting.***

After a State adopts a congressional or state legislative district plan following a federal decennial census, the State may not replace that plan before the next federal decennial census except as necessary to comply with a final court order, this Constitution, federal law, a State constitution, a material census or boundary correction, or another legal requirement.

Partisan advantage, incumbent protection, change in political control, or dissatisfaction with an existing lawful plan is not a valid basis for mid-decade redistricting.

### ***Section 7. Judicial enforcement.***

A voter residing in an affected district, a candidate for office in an affected district, a political subdivision or tribal government divided or affected by a district plan, a community organization representing members in an affected district, or another person authorized by Congress or State law may bring an action to enforce this article.



Courts shall have authority to grant declaratory relief, injunctive relief, remand, appointment of a special master, adoption of a lawful baseline or least-departing remedial plan, and other appropriate relief.

### ***Section 8. Enforcement and implementation.***

Congress shall have power to enforce and implement this article by appropriate legislation.

Congress may prescribe procedures, standards, remedies, disclosures, data rules, review mechanisms, timing rules, and fallback procedures necessary to enforce this article. Congress may not authorize partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, or election-performance-based manipulation prohibited by this article.

### ***Section 9. Relation to existing constitutional provisions.***

This article supersedes any inconsistent authority of a State, State legislature, State court, State constitution, Congress, or federal court over congressional or State legislative redistricting, including authority otherwise exercised under article I, section 4, only to the extent of the inconsistency.

Nothing in this article alters the apportionment of Representatives among the several States, the qualifications of Representatives, the composition or equal suffrage of the Senate, the qualifications of electors except as necessary to enforce this article, or any other constitutional provision except to the extent expressly required to enforce the neutral-baseline requirements of this article.

### ***Section 10. Existing districts and effective date.***

This article shall apply to the first redistricting cycle beginning more than two years after ratification, unless Congress by law provides an earlier effective date for congressional districts.

If implementation would materially disrupt an election for which candidate filing, ballot preparation, early voting, absentee voting, or voting has already begun, Congress may provide a transition rule delaying application only for that election cycle and only to the extent necessary to avoid election-administration disruption.

No transition rule may delay application of this article beyond the next regularly scheduled redistricting cycle, authorize repeated or indefinite deferral, or authorize a district plan adopted for a purpose prohibited by this article to remain in effect unless a court finds that temporary use is necessary to prevent greater constitutional injury.

## **Budgetary Impact Statement**

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- This is a reserve constitutional amendment draft. The least-complex adequate remedy for ELEC-011 remains model state legislation.
- The amendment embeds the mandatory neutrality floor directly in constitutional text so Congress may implement but not waive the core anti-partisan, anti-incumbent, and anti-election-performance manipulation rules.
- Section 1 requires a neutral baseline process but does not constitutionalize a specific algorithm such as shortest splitline.
- Section 3 allows departures for lawful representational, constitutional, state-law, geographic, tribal, political-subdivision, community-of-interest, and administrability reasons, but requires public findings and narrow tailoring.
- Section 3 now expressly prevents State voting-rights laws from functioning as an override or nullification device. A State may provide stronger voting-rights protections, but it may not use those protections to evade the neutral-baseline process or authorize broader-than-necessary departures.
- Section 4 preserves Voting Rights Act and lawful representation safeguards while barring pretextual use of those safeguards for partisan or incumbent advantage.
- Section 7 uses an affected-person standing model to reduce purely abstract litigation while preserving review for voters, candidates, subdivisions, tribal governments, affected communities, and persons authorized by Congress or State law.
- Section 8 gives Congress enforcement and implementation authority while expressly denying power to dilute the amendment's mandatory neutrality floor.
- Section 9 clarifies that the amendment supersedes inconsistent redistricting authority, including authority otherwise exercised under article I, section 4, only to the extent necessary to enforce the neutral-baseline requirements. It also preserves unrelated constitutional structures such as apportionment among States, Representative qualifications, and equal suffrage in the Senate.
- Section 10 limits transition delay to a single active election cycle when necessary to avoid election-administration disruption and bars repeated, indefinite, or next-cycle deferral.
- T1/T2 should review Article I, Section 4; Article IV; the Fourteenth and Fifteenth Amendments; state legislative district doctrine; anti-commandeering concerns; justiciability; and whether a constitutional amendment can or should reach both congressional and

state legislative districting in this form.

## Source Notes

- Source review should include Article I, Section 2; Article I, Section 4; Article V; the Fourteenth Amendment; the Fifteenth Amendment; *Rucho v. Common Cause*; *Arizona State Legislature v. Arizona Independent Redistricting Commission*; *Reynolds v. Sims*; *Allen v. Milligan*; *Louisiana v. Callais*; state independent-redistricting-commission precedents; state voting-rights acts; and algorithmic redistricting scholarship.

# ELEC-011 — Neutral Redistricting Baseline Enforcement Act

## A BILL

To enforce and implement the Neutral Redistricting Baseline Amendment by establishing neutral baseline redistricting standards, public deviation procedures, representation safeguards, judicial review, and fallback remedies for congressional and state legislative districts.

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Neutral Redistricting Baseline Enforcement Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. implement the Neutral Redistricting Baseline Amendment;
2. require each covered redistricting process to begin with a neutral, public, replicable baseline map;
3. prohibit partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, and election-performance-based manipulation of district lines;
4. preserve lawful representation safeguards required by the Constitution, the Voting Rights Act of 1965, and other laws protecting equal political opportunity;
5. require every departure from the neutral baseline map to be public, written, criterion-specific, narrowly tailored, and reviewable;
6. prevent mid-decade redistricting for partisan, incumbent-protective, or factional advantage; and
7. provide enforceable remedies where a State fails to comply with the neutral-baseline requirement.

## SEC. 3. DEFINITIONS.

In this Act:

1. **Affected district** means a district whose boundary, population, representation, political subdivision, tribal community, community of interest, candidate field, or voters would be materially affected by a covered district plan or proposed deviation.
2. **Algorithmic baseline map** means the first redistricting plan generated by applying the approved redistricting method to authorized input data before any discretionary human departure.
3. **Approved redistricting method** means the public, deterministic, replicable algorithm or technical method adopted or certified under this Act to generate an algorithmic baseline map.
4. **Authorized input data** means population data, census geography, precinct geography where needed for administrability, contiguity data, state boundary data, political-subdivision boundary data, tribal boundary data where lawfully available, water and geographic-feature data, and other neutral data expressly authorized by this Act or by regulation.
5. **Covered district plan** means a congressional or State legislative district plan.
6. **Departing plan** means any proposed covered district plan that differs materially from the algorithmic baseline map.
7. **Deviation** means any material change from the algorithmic baseline map, including alteration of a district boundary, exchange of population between districts, division or consolidation of a political subdivision or compact community, or change in district configuration.
8. **Neutral-baseline article** means the constitutional article proposed as the Neutral Redistricting Baseline Amendment and ratified as part of the Constitution.
9. **Prohibited political data** means data concerning political party affiliation, voter registration by party, prior election results, partisan performance, candidate residence, incumbent residence, campaign contributions, donor identity, campaign activity, candidate endorsements, demographic proxies selected for partisan effect, or comparable data whose principal use in redistricting is partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, factional, or election-performance-based advantage.
10. **Redistricting authority** means the State officer, nonpartisan office, independent commission, redistricting commission, legislature, court, special master, or other body authorized by State law to prepare, review, recommend, approve, or adopt a covered district plan.

## SEC. 4. APPLICABILITY AND EFFECTIVE DATE.

### (a) *Applicability.*

This Act applies to congressional and State legislative redistricting to the full extent authorized by the neutral-baseline article.

***(b) Amendment-dependent operation.***

Except as provided in subsection (c), this Act shall take effect only upon ratification of the neutral-baseline article.

***(c) Preparatory regulations and guidance.***

Congress may authorize preparatory regulations, model technical standards, public data standards, and implementation guidance before ratification, but no covered district plan shall be invalidated under this Act before the neutral-baseline article takes effect.

***(d) No waiver of constitutional floor.***

No regulation, guidance, State law, court order, or redistricting procedure may waive the mandatory neutrality floor established by the neutral-baseline article.

***(e) Relation to existing constitutional authority.***

This Act shall be construed to implement the neutral-baseline article's rule that inconsistent redistricting authority, including authority otherwise exercised under article I, section 4, is superseded only to the extent necessary to enforce the neutral-baseline requirements of that article.

## **SEC. 5. NEUTRAL BASELINE MAP REQUIRED.**

***(a) Baseline-first rule.***

Before any covered district plan may take effect, the State shall generate, publish, and preserve an algorithmic baseline map for that plan.

***(b) Timing.***

The algorithmic baseline map shall be generated and published before any redistricting authority considers, approves, recommends, or adopts a departing plan.

***(c) Publication.***

The State shall publish—

1. the algorithmic baseline map;
2. the approved redistricting method;
3. source code or a complete technical specification sufficient for independent replication;
4. authorized input data;
5. parameter settings;
6. population totals and deviations for each district;
7. compactness and boundary-respect measures;
8. a plain-language explanation of the method; and
9. instructions for public comment and proposed corrections.

***(d) No final adoption by silence.***

Publication of the algorithmic baseline map does not by itself enact that map unless State law separately authorizes automatic adoption after completion of the public process required by this Act and the neutral-baseline article.

## **SEC. 6. APPROVED REDISTRICTING METHOD.**

***(a) Minimum requirements.***

The approved redistricting method shall—

1. be deterministic and replicable from public inputs;
2. prioritize equal population and contiguity;
3. use compactness and boundary-respect measures defined in advance;
4. avoid use of prohibited political data;
5. identify how ties or equivalent map outputs are resolved;
6. generate a complete baseline plan for each covered district plan;
7. produce machine-readable and human-readable outputs; and

8. be capable of independent replication by a court, expert, candidate, civic organization, local government, tribal government, or member of the public using public data.

***(b) Method selection.***

A State may use shortest splitline, modified shortest splitline, or another neutral deterministic method if the method satisfies subsection (a).

***(c) Prohibited selection purpose.***

A State may not select, tune, reject, or modify a redistricting method because it predictably favors or disfavors a political party, candidate, incumbent, faction, donor, campaign, viewpoint, racial group, language-minority group, region, or community.

## **SEC. 7. PROHIBITED DATA AND COMMUNICATIONS.**

***(a) Baseline-map prohibition.***

A redistricting authority, staff member, contractor, consultant, or other person generating, tuning, selecting, rejecting, or modifying the algorithmic baseline map may not use prohibited political data.

***(b) Departing-plan disclosure.***

If a person submits, sponsors, or advocates a departing plan and has used any data described in the definition of prohibited political data, the person shall disclose each data category used and the reason each category was used. Disclosure under this subsection does not make the data use lawful if otherwise prohibited.

***(c) Private map-design communications.***

A communication concerning district configuration, baseline-map alteration, or a departing plan between a redistricting authority and a legislator, legislative staff member, party officer, candidate, incumbent, campaign, donor, lobbyist, consultant, or outside organization shall be placed in the public record unless protected by a court order or by a specific privilege recognized by law.

## **SEC. 8. PUBLIC DEVIATIONS FROM BASELINE.**

***(a) Written findings required.***

A departing plan may be considered, approved, recommended, adopted, or defended only if each material deviation from the algorithmic baseline map is supported by written findings identifying the specific permissible deviation criterion, the facts supporting the deviation, the data used, the population affected, and why no narrower deviation is adequate.

***(b) Permissible deviation criteria.***

A deviation from the algorithmic baseline map may be justified only to—

1. comply with the Constitution;
2. comply with Federal law;
3. comply with a State constitution;
4. comply with a State voting-rights law consistent with the neutral-baseline article;
5. maintain contiguity;
6. reduce avoidable population deviation;
7. preserve a federally recognized tribal community or reservation where lawful and administratively feasible;
8. preserve a municipality, county, precinct, or other political subdivision where lawful and administratively feasible;
9. preserve a compact community of interest supported by public evidence;
10. address a significant geographic barrier or transportation discontinuity;
11. correct a data error, topology error, census-geography error, or implementation error;
12. improve election-administration feasibility without using prohibited political data; or
13. comply with a final court order.

***(c) Narrow tailoring.***

Each deviation shall be no broader than reasonably necessary to satisfy the identified permissible deviation criterion.

***(d) State-law limitation.***

A State voting-rights law may justify a deviation only if the law is consistent with the neutral-baseline article, protects equal political opportunity or lawful representation safeguards, and does not authorize a departure broader than necessary to remedy the identified legal or representational injury.

***(e) Prohibited justifications.***

A deviation may not be justified by partisan advantage, incumbent protection, candidate protection, donor preference, campaign strategy, retaliation against voters, dilution of a disfavored community, or a desire to avoid lawful electoral competition.

## **SEC. 9. REPRESENTATION-SAFEGUARD REVIEW.**

***(a) Required review.***

Before final adoption of a covered district plan, the redistricting authority shall evaluate whether the algorithmic baseline map or a departing plan unlawfully dilutes voting strength, violates Federal or State voting-rights law, subordinates traditional districting principles without legal necessity, or creates a legally impermissible racial gerrymander.

***(b) Limited use of sensitive representation data.***

Race, ethnicity, language-minority, tribal, citizenship-age population, voting-age population, and comparable representation data may be used only for review and lawful correction under subsection (a), not for partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, factional, or election-performance-based advantage.

***(c) Public explanation.***

Where a map uses representation data to support a deviation, the redistricting authority shall publish findings explaining the legal basis, factual basis, affected districts, alternative maps considered, and reasons the deviation is narrowly tailored.

***(d) No quota or entitlement.***

Nothing in this Act authorizes a quota, racial target, partisan target, or predetermined electoral outcome.

## **SEC. 10. PUBLIC COMMENT, RESPONSE, AND ARCHIVE.**

***(a) Comment periods.***

The State shall provide a public comment period of not less than 30 days after publication of the algorithmic baseline map and not less than 14 days after publication of any materially departing plan, unless a court finds that an emergency election deadline requires a shorter period.

***(b) Hearings.***

The State shall hold public hearings accessible to residents in different regions of the State and shall provide remote participation to the greatest practicable extent.

***(c) Response to material objections.***

Before final adoption of a covered district plan, the State shall publish a response to material objections. The response shall state whether the objection is accepted, rejected, or resolved by modification and shall identify the supporting facts and legal criteria.

***(d) Public archive.***

The State shall maintain a public archive containing the approved redistricting method, data, baseline map, departing plans, written findings, public comments, responses to material objections, hearing materials, final enacted plan, and any judicial order relating to the plan.

## **SEC. 11. STATE PLAN SUBMISSION AND CERTIFICATION.**

***(a) Certification.***

Before a covered district plan takes effect, the State shall certify that the plan complies with this Act and the neutral-baseline article.

***(b) Certification contents.***

The certification shall include—

1. the algorithmic baseline map;
2. each departing plan considered;
3. each written deviation finding;
4. the public-comment record;

5. the response to material objections;
6. any representation-safeguard findings;
7. any court order affecting the plan; and
8. a statement identifying the State official or body responsible for maintaining the public archive.

**(c) Filing.**

The State shall file the certification with the chief election officer of the State and with any Federal officer or repository designated by regulation.

## **SEC. 12. LEGISLATIVE CONSIDERATION AND JUDICIAL FALLBACK.**

**(a) Baseline-first legislative rule.**

A State legislature may not consider or enact a covered district plan until the algorithmic baseline map and the required written findings have been published.

**(b) Constrained amendments.**

If legislative amendments are permitted, each amendment shall be accompanied by written findings satisfying section 8 and shall be published before final passage unless a court finds that an emergency election deadline requires shorter notice.

**(c) No secret substitute map.**

A State may not enact a covered district plan that has not been published, reviewed, and subjected to public comment under this Act, except pursuant to a final court order.

**(d) Fallback trigger.**

Judicial fallback is available if—

1. the State fails to enact a covered district plan by the applicable legal deadline;
2. the State rejects two plans found compliant by a redistricting authority;
3. the State enacts a plan without the findings, publication, comment, certification, or review required by this Act;
4. a court invalidates an enacted plan and no timely lawful replacement is enacted; or
5. a court finds that the redistricting process has been materially corrupted by prohibited data use, undisclosed map-design communications, or bad-faith evasion of this Act.

**(e) Court authority.**

Upon a fallback trigger, the court may adopt the algorithmic baseline map, adopt a redistricting-authority recommended plan, appoint a special master, order limited corrections, set an expedited schedule, or provide other relief necessary to implement a lawful district plan.

**(f) Remedial preference.**

In selecting a remedial plan, the court shall give preference to the algorithmic baseline map or the least-departing lawful plan unless the court finds that a greater departure is necessary to comply with the Constitution, Federal law, State constitutional law, or the neutral-baseline article.

## **SEC. 13. MID-DECADE REDISTRICTING LIMIT.**

**(a) General rule.**

After a covered district plan is enacted following a Federal decennial census, the State may not enact a replacement plan before the next Federal decennial census except as provided in subsection (b).

**(b) Exceptions.**

Mid-decade redistricting is permitted only—

1. to comply with a final court order;
2. to correct a legally material census, boundary, or data error;
3. to comply with the Constitution, Federal law, the neutral-baseline article, or State constitutional law;
4. to implement a newly enacted State constitutional redistricting requirement consistent with the neutral-baseline article; or
5. to remedy a plan held invalid by a court of competent jurisdiction.

***(c) No partisan-purpose exception.***

Partisan advantage, incumbent protection, candidate protection, change in legislative control, change in executive control, or dissatisfaction with the prior plan is not a lawful basis for mid-decade redistricting.

## **SEC. 14. JUDICIAL REVIEW, STANDING, AND REMEDIES.**

***(a) Action authorized.***

An action to enforce this Act or the neutral-baseline article may be brought by—

1. a voter residing in an affected district;
2. a candidate for office in an affected district;
3. a political subdivision divided or materially affected by a covered district plan;
4. a tribal government divided or materially affected by a covered district plan;
5. a community organization representing members in an affected district;
6. the Attorney General of the United States;
7. the attorney general or chief election officer of a State; or
8. another person authorized by Congress or State law.

***(b) Jurisdiction.***

The district courts of the United States shall have jurisdiction over an action under this Act.

***(c) Expedited review.***

A court shall expedite any action under this Act to the greatest practicable extent, especially where delay may affect candidate filing, ballot preparation, primary elections, general elections, or representation during an election cycle.

***(d) Remedies.***

A court may grant declaratory relief, injunctive relief, remand to a redistricting authority, invalidation of an unlawful departing plan, adoption of a lawful baseline or least-departing remedial plan, appointment of a special master, costs, reasonable attorney's fees where authorized by law, and other appropriate relief.

***(e) Interim election relief.***

Where an election deadline prevents final resolution before an election, the court may enter interim relief necessary to minimize constitutional and statutory injury while preserving orderly election administration.

## **SEC. 15. ENFORCEMENT BY THE ATTORNEY GENERAL.**

***(a) Civil action.***

The Attorney General may bring a civil action for declaratory or injunctive relief to enforce this Act and the neutral-baseline article.

***(b) Intervention.***

The Attorney General may intervene in any action raising a substantial question under this Act or the neutral-baseline article.

***(c) No exclusive enforcement.***

The authority of the Attorney General under this section is not exclusive and does not limit any private, State, tribal, local-government, or community enforcement authority recognized by section 14.

## **SEC. 16. REGULATIONS AND TECHNICAL STANDARDS.**

***(a) Regulations.***

The Attorney General, after consultation with the Election Assistance Commission, the Bureau of the Census, and the National Institute of Standards and Technology, may issue regulations necessary to implement this Act.

***(b) Technical standards.***

Regulations may address algorithm documentation, data publication, code preservation, public archive format, certification forms, conflict disclosures, emergency deadlines, and independent replication standards.



***(c) Limitation.***

No regulation may authorize use of prohibited political data in the algorithmic baseline map, expand permissible deviation criteria beyond those stated in section 8, or dilute the mandatory neutrality floor established by the neutral-baseline article.

**SEC. 17. RELATION TO OTHER LAW.**

***(a) More protective law preserved.***

This Act supplements and does not diminish any protection provided by the Constitution, the Voting Rights Act of 1965, another Federal voting-rights law, a State constitution, a State voting-rights law, State redistricting criteria, State open-meetings law, State public-records law, or another law governing districting.

***(b) More protective rule controls.***

Where another law requires greater transparency, broader public participation, stricter anti-gerrymandering protection, or stronger minority-vote protection, the more protective provision controls to the extent consistent with the neutral-baseline article and Federal law.

***(c) No authorization of prohibited purpose.***

No State law, Federal regulation, remedial order, or transition rule may authorize a covered district plan adopted for a purpose prohibited by the neutral-baseline article.

***(d) No State-law nullification.***

No State voting-rights law, State redistricting criterion, or State procedural rule may be construed to nullify the neutral-baseline process, permit prohibited political data in the algorithmic baseline map, or authorize a deviation broader than necessary to remedy the identified legal or representational injury.

**SEC. 18. SEVERABILITY.**

If any provision of this Act or its application to any person or circumstance is held invalid, the remainder of this Act and the application of the provision to other persons or circumstances shall not be affected.

**SEC. 19. TRANSITION.**

***(a) First covered cycle.***

This Act applies to the first redistricting cycle beginning more than two years after ratification of the neutral-baseline article, unless Congress provides an earlier effective date for congressional districts.

***(b) Active-election transition rule.***

If implementation would materially disrupt an election for which candidate filing, ballot preparation, early voting, absentee voting, or voting has already begun, Congress may provide a transition rule delaying application only for that election cycle and only to the extent necessary to avoid election-administration disruption.

***(c) Written findings.***

A transition rule under subsection (b) shall include written findings identifying the election-administration deadline, the specific disruption to be avoided, the offices affected, the affected election cycle, and why a narrower transition rule is inadequate.

***(d) Existing districts.***

Districts in effect on the date of ratification may remain in effect until the first covered redistricting cycle, unless a court finds that continued use would cause greater constitutional injury.

***(e) No repeated or indefinite deferral.***

No transition rule may delay application of this Act beyond the next regularly scheduled redistricting cycle or authorize repeated or indefinite deferral.

***(f) No extended safe harbor for prohibited purpose.***

No transition rule may authorize a district plan adopted for a purpose prohibited by the neutral-baseline article to remain in effect unless required by a court to prevent greater constitutional injury.

**Budgetary Impact Statement**

Budget authority may be required for Federal technical standards, State certification systems, public data repositories, litigation, special masters, and State implementation assistance; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- This is reserve Federal enabling legislation. It is designed to operate only if the Neutral Redistricting Baseline Amendment is ratified.
- The model State act remains ELEC-011's least-complex adequate remedy. This Act supplies the Federal enforcement vehicle for the constitutional reserve path.
- The Act tracks the State model's core architecture: neutral first draft, prohibition on prohibited political data, public deviations, representation-safeguard review, public comment, certification, judicial fallback, mid-decade redistricting limits, and judicial review.
- The Act uses an affected-person standing model aligned with the amendment draft while preserving Attorney General enforcement.
- The Act avoids giving Congress authority to dilute the amendment's mandatory neutrality floor.
- The Act treats State voting-rights laws as permissible protective floors, not as vehicles to override or weaken the neutral-baseline requirement.
- The Act limits active-election transition delay to one election cycle, requires written findings, and bars repeated or indefinite deferral.
- The Act construes the amendment as superseding inconsistent Elections Clause and redistricting authority only to the extent necessary, without altering apportionment among States, Representative qualifications, or unrelated constitutional structures.
- T1/T2 should review whether jurisdiction, three-judge-court routing, remedies, certification repositories, and agency rulemaking assignments should be refined.

## Source Notes

- Relation to constitutional amendment: This Act implements the Neutral Redistricting Baseline Amendment and should be read with the amendment's mandatory neutrality floor.
- Relation to State model: The Act parallels the Model State Algorithmic Redistricting Baseline and Public Deviation Act but relies on Federal enforcement power created by the proposed amendment.
- Relation to existing law: T1/T2 should review Article I, Section 2; Article I, Section 4; Article V; the Fourteenth and Fifteenth Amendments; the Voting Rights Act of 1965; Federal three-judge-court redistricting jurisdiction; *Rucho v. Common Cause*; *Arizona State Legislature v. Arizona Independent Redistricting Commission*; *Reynolds v. Sims*; *Allen v. Milligan*; *Louisiana v. Callais*; State voting-rights acts; independent commission doctrine; and algorithmic redistricting scholarship.
- Rule of construction: Nothing in this draft should be construed to authorize partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, factional, or election-performance-based manipulation prohibited by the amendment.

# EMOL-015 — Executive Self-Litigation and Settlement Conflict Act

## A BILL

To prevent covered executive officials from personally litigating against, settling with, or receiving payment from executive agencies, officers, employees, funds, accounts, or payment authorities subject to their own supervision while in office; to preserve such claims after service; and for other purposes.

## SECTION 1. SHORT TITLE.

This Act may be cited as the "Executive Self-Litigation and Settlement Conflict Act".

## SEC. 2. PURPOSES.

The purposes of this Act are to:

1. prevent personal financial or legal self-dealing by covered executive officials during service;
2. preserve genuine claims without allowing conflicted settlement, compromise, payment, or litigation control while the conflict exists;
3. protect the Judgment Fund, agency funds, settlement authority, and payment authority from use as substitutes for express congressional authorization of personal or politically defined compensation programs;
4. preserve genuine adverseness in litigation involving the United States;
5. make clear that the President is covered by this Act and is not excluded by title, office, or implication; and
6. make clear that the Vice President is covered by this Act and is not excluded by the absence of ordinary agency-head supervision.

## SEC. 3. DEFINITIONS.

In this Act:

### **(a) Covered executive official.**

The term **covered executive official** means:

1. the President;
2. the Vice President;
3. the head of an executive department, military department, executive agency, or independent establishment;
4. an acting official performing the functions and duties of an office described in paragraph (3);
5. the Attorney General, Deputy Attorney General, Solicitor General, Assistant Attorney General, United States Attorney, or other senior Department of Justice official with authority over litigation, settlement, compromise, payment, defense, or representation involving the United States; and
6. any officer or employee designated by statute, regulation, or court order as exercising supervisory authority materially comparable to an official described in paragraphs (1) through (5).

The President and Vice President are covered executive officials under this Act. No provision of this Act shall be construed to exclude the President or Vice President unless a later Act of Congress expressly names the President or Vice President and expressly states that the identified office is excluded.

### **(b) Covered civil action.**

The term **covered civil action** means a civil action, administrative claim, demand for payment, request for settlement, request for compromise, claim for offset, or other proceeding seeking personal legal, equitable, monetary, declaratory, or settlement relief, if:

1. the claimant is a covered executive official acting in a personal capacity;
2. the defendant, respondent, payer, settling entity, or materially affected entity is the United States, an executive agency, an executive office, a component thereof, an officer or employee subject to the covered executive official's supervision, or a fund, account, appropriation, or payment authority administered by an entity subject to the covered executive official's supervision; and
3. the relief sought would confer a personal financial, legal, reputational, declaratory, or litigation benefit on the covered executive official.

For a covered executive official who is the President or Vice President, paragraph (2) is satisfied if the defendant, respondent, payer, settling entity, materially affected entity, fund, account, appropriation, or payment authority is within the executive branch or subject to executive-branch litigation, settlement, payment, or defense authority, whether or not the President or Vice President has formal agency-head supervision over the specific entity.

A civil action, administrative claim, demand, request, or proceeding is not excluded from the definition of covered civil action merely because it is styled as an official-capacity action if its practical effect is to confer a personal financial, legal, reputational, reimbursement, indemnification, settlement, or affiliated-entity benefit on the covered executive official.

***(c) Personal capacity.***

The term **personal capacity** means a capacity other than an official capacity exercised solely on behalf of the United States or the office held by the covered executive official.

***(d) Affiliated person or entity.***

The term **affiliated person or entity** means a spouse, dependent, immediate family member, business entity, trust, campaign committee, legal-defense fund, nonprofit organization, political organization, or other person or entity through which a covered executive official would receive a material financial, legal, reputational, reimbursement, indemnification, settlement, or comparable personal benefit.

***(e) Public funds.***

The term **public funds** means appropriated funds, agency funds, settlement funds, representational funds, reimbursement authority, indemnification authority, offset authority, compromise authority, insurance purchased or funded by the United States or an executive agency, the Judgment Fund established under section 1304 of title 31, United States Code, or any other money provided by the United States or an executive agency.

## **SEC. 4. CONTROLLED MAINTENANCE OF COVERED CIVIL ACTIONS.**

***(a) Limited maintenance permitted.***

A covered civil action may be received, docketed, preserved, investigated, screened for jurisdiction and coverage, and maintained while the covered executive official holds the office that creates the supervisory conflict.

***(b) Restricted actions.***

Except as provided in subsection (f), a covered civil action may not be adjudicated on the merits, settled, compromised, confessed, dismissed with prejudice, paid, offset, or otherwise resolved for the personal benefit of the covered executive official while that official holds the office that creates the supervisory conflict.

***(c) Pending actions.***

If a civil action becomes a covered civil action because the claimant assumes office as a covered executive official, the court or agency shall apply this section for the duration of the official's service in the conflicted office.

***(d) Tolling.***

Any limitations period, filing deadline, exhaustion deadline, response deadline, discovery deadline, adjudicatory deadline, or other time limit applicable to a restricted covered civil action shall be tolled during the covered executive official's service in the conflicted office.

***(e) Preservation orders.***

A court or agency may enter orders necessary to preserve evidence, prevent spoliation, maintain the status quo, protect privilege, protect classified information, or prevent irreparable loss of the claim, provided that such orders do not confer personal monetary relief, settlement benefit, or merits adjudication on the covered executive official during the restricted period except as provided in subsection (f).

***(f) Court-permitted liability adjudication.***

A court may permit a covered civil action to proceed to liability adjudication during the covered executive official's service only if the court finds, by clear and convincing evidence, that:

1. the alleged injury is concrete, personal, and not manufactured for political, financial, settlement, or litigation advantage;
2. the claim existed before the covered executive official assumed the conflicted office or arose from conduct by an adverse actor not subject to the covered executive official's supervision or control;
3. continued deferral would cause substantial injustice that tolling, preservation orders, neutral investigation, or post-tenure adjudication cannot adequately prevent;
4. liability adjudication can proceed before an independent tribunal without the covered executive official controlling, directing, influencing, or receiving nonpublic strategic advantage from the defense, settlement, payment, or litigation posture of the United States; and
5. any judgment, settlement, compromise, payment, offset, indemnification, reimbursement, or compensation fund remains subject to section 5 and section 6.

An order under this subsection shall state the findings with particularity and shall use protective procedures adequate to prevent the covered executive official from using official authority to influence defense, settlement, payment, discovery, access to records,

classification, privilege, or litigation strategy.

Unless the court makes the separate findings required by section 5(c), an order under this subsection shall bifurcate liability from damages, settlement, compromise, payment, offset, indemnification, reimbursement, and compensation-fund issues. The damages, settlement, compromise, payment, offset, indemnification, reimbursement, and compensation-fund phase shall be deferred until the covered executive official no longer holds the conflicted office.

***(g) Injunctive relief to prevent ongoing harm.***

A court may enter or enforce narrowly tailored injunctive relief during the covered executive official's service if the court finds, by clear and convincing evidence, that:

1. the covered civil action alleges ongoing or imminent unlawful harm to a concrete legal interest;
2. preservation orders, tolling, neutral investigation, liability-only adjudication, or post-tenure relief would not adequately prevent the harm;
3. the injunction is limited to stopping or preventing the harm and does not award damages, settlement value, reimbursement, indemnification, offset, public funds, a compensation fund, or another personal monetary benefit;
4. the covered executive official did not use official authority to control, direct, influence, or obtain nonpublic strategic advantage from the defense, settlement, payment, or litigation posture of the United States; and
5. the injunction can be administered without requiring the court to supervise ordinary executive operations beyond what is necessary to prevent the identified harm.

An order under this subsection shall state the findings with particularity and shall preserve section 5's settlement, payment, offset, indemnification, reimbursement, and compensation-fund restrictions.

## **SEC. 5. SETTLEMENT, PAYMENT, AND FUNDING BAR.**

***(a) Prohibited actions.***

During the period in which a covered civil action is subject to section 4, no officer, employee, agency, component, or representative of the United States may:

1. settle, compromise, confess liability, stipulate to liability, consent to judgment, or admit monetary responsibility in the covered civil action;
2. pay, reimburse, indemnify, offset, satisfy, or compromise any claim in the covered civil action using public funds;
3. authorize payment from the Judgment Fund or agency funds;
4. dismiss the action with prejudice if the dismissal would confer a personal legal or settlement benefit on the covered executive official;
5. create, administer, or fund a compensation program, class fund, claims facility, settlement fund, or comparable payment mechanism for the covered executive official, an affiliated person or entity, or a politically, personally, or associationally defined class connected to the covered executive official; or
6. take any materially equivalent action that resolves the claim for the personal benefit of the covered executive official.

***(b) Express later authorization.***

Subsection (a) may be displaced only by a later Act of Congress that:

1. expressly identifies the covered civil action or covered class of actions;
2. expressly authorizes the settlement, compromise, payment, fund, or other resolution notwithstanding this Act;
3. identifies the payment source; and
4. expressly states whether the authorization applies to the President, the Vice President, or another identified covered office.

General appropriations language, general settlement authority, general Judgment Fund authority, or general claims-processing authority is not sufficient to displace this Act.

***(c) Heightened damages or payment authorization after permitted liability adjudication.***

If a court permits liability adjudication under section 4(f), or injunctive relief under section 4(g), no damages phase, judgment amount, settlement, compromise, payment, offset, indemnification, reimbursement, or compensation fund may be determined, paid, or implemented during the covered executive official's service unless the court separately finds, by clear and convincing evidence, after notice under section 6, that:

1. the amount and form of relief are required by law and are not the product of collusion, manufactured adverseness, political favoritism, or executive self-dealing;

2. the payment source is expressly authorized by law for that claim;
3. the covered executive official did not control, direct, influence, or receive nonpublic strategic advantage from the defense, settlement, payment, or litigation posture of the United States; and
4. no reasonable post-tenure deferral, escrow, bond, declaratory judgment, preservation order, liability-only judgment, or other less conflicted remedy would prevent substantial injustice.

## **SEC. 6. NOTICE TO CONGRESS.**

Not later than 7 days after an officer, employee, agency, component, or representative of the United States determines that a civil action may be a covered civil action, the Attorney General shall provide notice to the Committees on the Judiciary and Appropriations of the House of Representatives and the Senate.

The notice shall identify the covered executive official, the defendant or responding entity, the nature of the claim, the payment authority implicated, any restriction, controlled-maintenance order, adjudication order, or preservation order entered or requested, and any attempted settlement, compromise, payment, offset, or fund creation.

The notice may be classified, redacted, or submitted in camera where required by law, court order, privilege, grand-jury secrecy, tax-return confidentiality, privacy, or national-security protection, but the Attorney General shall provide an unclassified or publicly releasable summary to the maximum extent permitted by law.

## **SEC. 7. RELATIONSHIP TO OTHER LAW.**

Nothing in this Act shall be construed to:

1. extinguish a covered executive official's underlying claim;
2. prevent a covered executive official from pursuing a covered claim after leaving the conflicted office;
3. authorize disclosure of tax-return information, classified information, grand-jury material, privileged material, or other protected information;
4. limit ordinary official-capacity litigation by the United States or an executive officer acting solely on behalf of the United States;
5. prohibit criminal investigation or prosecution authorized by law;
6. authorize payment from public funds otherwise prohibited by law; or
7. create a private right of action against any person other than the controlled-maintenance, tolling, notice, and payment-bar mechanisms provided by this Act.

## **SEC. 8. JUDICIAL REVIEW.**

The United States District Court for the District of Columbia shall have jurisdiction to determine whether a civil action is a covered civil action and to enter an order enforcing the controlled-maintenance, tolling, preservation, notice, or payment-bar requirements of this Act.

Review under this section shall be expedited. The court may consider sealed, privileged, classified, protected, or in camera material under procedures adequate to protect the material from unauthorized disclosure. A court with jurisdiction over an underlying covered civil action may also apply section 4(f), section 4(g), and section 5(c), subject to appellate review under otherwise applicable law.

## **SEC. 9. EFFECTIVE DATE; APPLICATION.**

This Act shall apply to any covered civil action pending on or after the date of enactment and to any covered civil action initiated after the date of enactment.

## **SEC. 10. SEVERABILITY.**

If any provision of this Act, or the application of such provision to any person or circumstance, is held invalid, the remainder of this Act and the application of its provisions to any other person or circumstance shall not be affected.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The draft preserves underlying claims through controlled maintenance and tolling rather than extinguishing them.
- The President and Vice President are expressly included as covered executive officials, and displacement of the rule requires a later Act of Congress that expressly states whether it applies to the identified office.

- Vice President coverage does not depend solely on ordinary agency-head supervision; it is tied to executive-branch litigation, settlement, payment, or defense authority.
- The official-capacity savings clause is limited to litigation exercised solely on behalf of the United States or the office. It should not protect a claim that practically confers personal or affiliated benefit.
- The court-permitted adjudication exception is designed for legitimate injuries, including preexisting claims or adverse actions initiated by actors outside the official's control. Liability adjudication is separated from damages, settlement, and payment unless the court makes separate heightened findings.
- The injunctive-relief safety valve is designed to stop ongoing or imminent harm without allowing damages, settlement, reimbursement, indemnification, offset, public funds, or compensation funds during covered service.
- The payment bar is designed to prevent litigation from becoming a substitute for express congressional authorization of a compensation fund.
- T1/T2 should test whether the covered-action definition needs a narrow exception for nonmonetary emergency relief that cannot safely wait until the official leaves office.

## Source Notes

- Existing-law review should include the Judgment Fund under 31 U.S.C. § 1304, DOJ judgment and compromise-payment mechanics under 28 U.S.C. § 2414, and tax-return confidentiality remedies under 26 U.S.C. § 7431.
- Source development should verify the Raskin NO CARTE BLANCHE Act text, bill number, sponsorship, committee posture, and relation to the reported Anti-Weaponization Fund.
- Constitutional review should test Article II, due process, access to courts, sovereign immunity, justiciability, separation of powers, and Congress's appropriations authority.

# FUND-001 — Executive-Order Abuse Impoundment Control Act

## A BILL

To amend the Impoundment Control Act of 1974 to establish appropriations safeguards when repeated unlawful executive directives demonstrate a pattern of directive-based nonexecution, to prohibit the use, withholding, delay, deferral, apportionment, reprogramming, or conditioning of funds to implement new or continuing covered directives during a review period unless lawful authority is certified, to provide expedited review, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the "**Executive-Order Abuse Impoundment Control Act.**"

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. protect Congress's constitutional power of the purse;
2. prevent executive orders, presidential memoranda, OMB directives, or comparable executive directives from being used to effectuate unlawful impoundment, nonexecution, program suspension, grant coercion, or statutory evasion;
3. preserve lawful executive supervision and administration while limiting the use of appropriated funds to implement covered directives after repeated unlawful conduct;
4. create an objective trigger based on judicial or Comptroller General findings rather than partisan accusation;
5. ensure that new covered directives are fiscally inert as to their covered scope during a review period unless lawful authority is publicly certified or judicial review permits implementation;
6. require review of continuing implementation under earlier covered directives issued in the same presidential term;
7. provide expedited review before unlawful directive-based implementation creates facts on the ground; and
8. protect officers and employees who decline to implement covered directives that do not satisfy this Act.

## SEC. 3. EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW.

Title X of the Congressional Budget and Impoundment Control Act of 1974 (2 U.S.C. 681 et seq.) is amended by adding at the end the following:

### "PART C—EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW

#### "SEC. 1021. DEFINITIONS.

"In this part:

"(1) **Covered executive directive.** The term 'covered executive directive' means any executive order, presidential memorandum, national security memorandum, homeland security directive, Office of Management and Budget directive, apportionment instruction, agency directive issued to implement a presidential directive, or comparable written or unwritten instruction from the President, the Executive Office of the President, the Office of Management and Budget, or an officer acting under presidential direction that materially affects—

"(A) the obligation, expenditure, withholding, delay, deferral, apportionment, reapportionment, reprogramming, transfer, cancellation, or conditioning of budget authority;

"(B) implementation of a statutory program, benefit, formula, grant, contract, loan, cooperative agreement, or entitlement;

"(C) eligibility for, or conditions attached to, Federal funds;

"(D) agency staffing, closure, suspension, or operational capacity where the effect is to impair execution of a statutory program;

"(E) State, local, territorial, Tribal, or grantee administration of a federally funded program; or

"(F) any other action designated by Congress in an appropriations Act as subject to this part.

"(2) **Covered implementation action.** The term 'covered implementation action' means any action or inaction by an agency, officer, employee, contractor, grantee, or recipient taken to implement, enforce, carry out, give effect to, or comply with a covered executive directive.

"(3) **Trigger finding.** The term 'trigger finding' means—



"(A) a final judgment of a court of the United States holding that a covered executive directive or covered implementation action is unlawful, unconstitutional, in excess of statutory authority, contrary to an appropriations Act, contrary to this title, arbitrary and capricious, or otherwise not in accordance with law;

"(B) a decision of a three-judge district court under section 1026 holding that a covered executive directive or covered implementation action is likely unlawful and granting declaratory or injunctive relief after notice and an opportunity to be heard;

"(C) a written decision, report, or opinion of the Comptroller General finding that a covered executive directive or covered implementation action violates this title, an appropriations Act, or another statute governing budget authority; or

"(D) a final judgment enforcing release, obligation, or expenditure of budget authority withheld, delayed, deferred, conditioned, or redirected under a covered executive directive.

"(4) **Review period.** The term 'review period' means the Executive Directive Impoundment Review Period established under section 1022.

"(5) **Lookback directive.** The term 'lookback directive' means a covered executive directive issued by the same President before the beginning of a review period and during the then-current presidential term, but only to the extent the directive has ongoing or future covered implementation actions on or after the date the review period begins.

"(6) **Fiscally inert.** The term 'fiscally inert' means that a covered executive directive may not be implemented, relied upon, or treated as authority to obligate, expend, withhold, delay, defer, apportion, reapportion, reprogram, transfer, cancel, or condition budget authority, or to alter statutory program execution, within the covered scope unless the requirements of this part are satisfied.

"(7) **Covered scope.** The term 'covered scope' means the portion of a covered executive directive that materially affects an item listed in paragraph (1).

"(8) **Emergency implementation certification.** The term 'emergency implementation certification' means a written certification under section 1025.

## **"SEC. 1022. EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW PERIOD.**

"(a) Trigger.—An Executive Directive Impoundment Review Period shall begin when, during any 24-month period, there are—

"(1) three or more trigger findings involving covered executive directives issued by the same President; or

"(2) two or more trigger findings involving covered executive directives issued by the same President if at least one finding concerns withholding, delaying, deferring, conditioning, redirecting, or refusing to obligate budget authority contrary to an appropriations Act.

"(b) Commencement.—The review period begins on the date of the final trigger finding necessary to satisfy subsection (a).

"(c) Duration.—The review period shall last for 180 days, except that—

"(1) the period shall be extended for an additional 180 days if a new trigger finding occurs during the review period; and

"(2) the period shall terminate early if a three-judge district court determines under section 1026 that the trigger requirements were not satisfied.

"(d) Publication.—Not later than 3 days after a review period begins, the Director of the Office of Management and Budget shall publish in the Federal Register and transmit to Congress a notice identifying the trigger findings, the covered executive directives involved, the date the review period begins, the date the review period is scheduled to end, and the process for identifying lookback directives subject to continuing-implementation review.

"(e) Failure to publish.—The review period begins under subsection (b) regardless of whether the Director publishes the notice required by subsection (d).

"(f) Lookback inventory.—Not later than 30 days after a review period begins, the Director of the Office of Management and Budget shall publish in the Federal Register and transmit to Congress an inventory of known lookback directives and the affected appropriations, accounts, programs, grants, benefits, contracts, loans, apportionments, or agency operations. Failure to identify a directive in the inventory does not exempt the directive or any covered implementation action from this part.

## **"SEC. 1023. FISCAL INERTNESS OF COVERED EXECUTIVE DIRECTIVES DURING REVIEW PERIOD.**

"(a) New covered directives.—During a review period, any covered executive directive issued after the review period begins is fiscally inert as to its covered scope unless—

"(1) the Director of the Office of Management and Budget and the head of each implementing agency publish a certification under section 1024;

"(2) the waiting period under section 1024 has expired without an action filed under section 1026;

"(3) if an action is filed under section 1026, the court has denied interim relief or entered judgment permitting implementation; and

"(4) no other provision of law prohibits the covered implementation action.

"(b) Lookback directives.—Beginning 180 days after a review period begins, a lookback directive is fiscally inert as to any ongoing or future covered implementation action unless—

"(1) not later than 90 days after the review period begins, the Director of the Office of Management and Budget and the head of each implementing agency publish a certification under section 1024 for continued implementation;

"(2) the waiting period under section 1024 has expired without an action filed under section 1026;

"(3) if an action is filed under section 1026, the court has denied interim relief or entered judgment permitting continued implementation; and

"(4) no other provision of law prohibits the covered implementation action.

"(c) Immediate limitation on new implementation under lookback directives.—During a review period, an agency may not begin a new covered implementation action under a lookback directive unless the certification required by subsection (b)(1) has been published and the remaining requirements of subsection (b) are satisfied, except as provided in section 1025.

"(d) No automatic undoing of completed acts.—Subsection (b) does not automatically invalidate a completed obligation, expenditure, personnel action, grant award, contract, benefit payment, or other completed implementation action, and does not by itself disturb vested third-party rights. This subsection does not limit otherwise available relief for an unlawful covered implementation action, including release of budget authority, restoration of statutory program operation, correction of unlawful conditions, or other relief authorized by section 1026.

"(e) Prohibited actions.—During a review period, no officer, employee, agency, or component of the United States may, solely or materially because of a covered executive directive that has not satisfied subsection (a) or subsection (b), as applicable—

"(1) obligate or expend funds to implement the directive;

"(2) withhold, delay, defer, impound, cancel, condition, apportion, reapportion, reprogram, transfer, or refuse to obligate budget authority;

"(3) suspend, terminate, or impair a statutory program, benefit, grant, contract, loan, formula, or entitlement;

"(4) alter eligibility criteria, formula allocations, statutory deadlines, application procedures, grant conditions, or recipient duties;

"(5) close, suspend, or materially reduce agency operations necessary to execute a statutory program;

"(6) treat the directive as legal authority to override a statute, appropriations Act, judicial order, or regulation; or

"(7) direct a recipient of Federal funds to take an action that the agency could not take directly under this part.

"(f) No inference of validity.—Publication of a certification under section 1024 does not create a presumption that the covered executive directive is lawful.

"(g) Ordinary administration preserved.—This section does not apply to a directive that solely concerns ceremonial matters, internal scheduling, advisory committee administration, purely internal housekeeping, classification markings, diplomatic communications, military command within authority otherwise provided by law, or other matters that do not materially affect the covered scope described in section 1021(1).

## **"SEC. 1024. LEGAL-AUTHORITY CERTIFICATION.**

"(a) Certification required.—Before implementation or continued implementation of a covered executive directive during a review period, the Director of the Office of Management and Budget and the head of each implementing agency shall publish a written legal-authority certification.

"(b) Contents.—The certification shall—

"(1) identify the covered executive directive and state whether it is a new covered directive or a lookback directive;

"(2) identify each statutory or constitutional authority relied upon;

"(3) identify each appropriation, account, program, grant, benefit, contract, loan, or activity affected;

"(4) state whether the directive will obligate, expend, withhold, delay, defer, apportion, reapportion, reprogram, transfer, condition, or refuse to obligate budget authority;

"(5) state whether the directive constitutes, requires, or effects a rescission, deferral, or other impoundment under this title;

"(6) explain why the directive does not conflict with any appropriations Act, authorizing statute, court order, or prior trigger finding;

"(7) identify any emergency implementation certification under section 1025;

"(8) identify the official responsible for compliance; and

"(9) certify that implementation is consistent with this title and other applicable law.

"(c) Waiting period.—Except as provided in section 1025, implementation of a new covered directive may not begin until 15 days after publication of the certification. Continued implementation of a lookback directive may continue during the 15-day waiting period, but may not continue after the 180-day period described in section 1023(b) unless the requirements of section 1023(b) are satisfied.

"(d) Congressional notice.—The certification shall be transmitted on the date of publication to the Speaker of the House of Representatives, the President pro tempore of the Senate, the Committees on Appropriations and the Budget of the House of Representatives and the Senate, each authorizing committee with jurisdiction over an affected program, and the Comptroller General.

## **"SEC. 1025. EMERGENCY IMPLEMENTATION.**

"(a) Limited emergency exception.—A covered executive directive may be implemented before expiration of the waiting period under section 1024 only if the President, the Director of the Office of Management and Budget, and the head of each implementing agency jointly publish an emergency implementation certification.

"(b) Contents.—The certification shall state with specificity—

"(1) the imminent and concrete harm that requires immediate implementation;

"(2) why no narrower lawful measure is adequate;

"(3) the statutory authority for immediate implementation;

"(4) the anticipated fiscal effect;

"(5) the duration of emergency implementation; and

"(6) the steps that will be taken to minimize interference with appropriations and statutory program execution.

"(c) Duration.—Emergency implementation under this section expires after 14 days unless a three-judge district court extends the period under section 1026 or Congress expressly authorizes continued implementation by law.

"(d) No use for convenience.—Administrative convenience, policy preference, ordinary budget review, generalized disagreement with a statute, or desire to preserve executive flexibility is not an emergency for purposes of this section.

## **"SEC. 1026. EXPEDITED JUDICIAL REVIEW.**

"(a) Cause of action.—A civil action may be brought in the United States District Court for the District of Columbia to enforce this part, to declare a covered executive directive fiscally inert as to its covered scope, to compel release or obligation of unlawfully withheld budget authority, or to enjoin a covered implementation action.

"(b) Plaintiffs.—An action under this section may be brought by—

"(1) either House of Congress, upon authorization by that House;

"(2) the Comptroller General;

"(3) a committee of either House with jurisdiction over an affected appropriation or program, upon authorization by that House;

"(4) a State, territory, Tribal government, or political subdivision affected by the directive;

"(5) a recipient, applicant, beneficiary, contractor, grantee, or other person materially affected by the covered implementation action; or

"(6) any other person authorized to sue under otherwise applicable law.

"(c) Three-judge court.—An action under this section shall be heard by a three-judge district court convened under section 2284 of title 28, United States Code.

"(d) Expedition.—The court shall expedite the action to the greatest possible extent and shall rule on any request for interim relief not later than 10 days after the request is fully briefed, unless the court finds that extraordinary circumstances require additional time.

"(e) Direct appeal.—A final judgment of the three-judge court shall be reviewable by direct appeal to the Supreme Court of the United States.

"(f) Relief.—The court may grant declaratory relief, injunctive relief, mandamus relief, vacatur of a covered implementation action, release of budget authority, compliance reporting, or other appropriate relief.

"(g) No bar to other review.—This section does not preclude review under chapter 7 of title 5, United States Code, this title, an appropriations Act, or any other provision of law.

## **"SEC. 1027. OFFICER AND EMPLOYEE SAFE HARBOR.**

"(a) Safe harbor.—An officer or employee of the United States may not be removed, demoted, suspended, reassigned, denied promotion, denied pay, disciplined, threatened, or otherwise retaliated against for refusing in good faith to implement a covered executive directive during a review period if the directive has not satisfied section 1023(a) or section 1023(b), as applicable.

"(b) Reporting.—An officer or employee may report a suspected violation of this part to the Comptroller General, an Inspector General, the Office of Special Counsel, Congress, or a court with jurisdiction.

"(c) Existing rights preserved.—This section does not limit any right, remedy, or protection under whistleblower, civil-service, appropriations, Inspector General, or other law.

## **"SEC. 1028. COMPTROLLER GENERAL REPORTING.**

"(a) Review.—During a review period, the Comptroller General shall monitor covered executive directives and may issue decisions, reports, or opinions on whether a covered directive or implementation action complies with this title, appropriations Acts, and other statutes governing budget authority.

"(b) Agency cooperation.—Each agency shall provide the Comptroller General timely access to records, apportionments, legal memoranda, program instructions, grant conditions, and other materials necessary to review compliance, consistent with law governing classified, privileged, or protected information.

"(c) Reports to Congress.—The Comptroller General shall report significant findings under this part to the Committees on Appropriations and the Budget of the House of Representatives and the Senate, each authorizing committee with jurisdiction over an affected program, and any other committee of jurisdiction.

## **"SEC. 1029. RULES OF CONSTRUCTION.**

"Nothing in this part shall be construed to—

"(1) prohibit the President from issuing an executive order, presidential memorandum, or other directive;

"(2) authorize implementation of a directive that is otherwise unlawful;

"(3) limit any requirement of this title, an appropriations Act, the Administrative Procedure Act, or any other law;

"(4) authorize a rescission or deferral not otherwise permitted by this title;

"(5) permit an agency to use a covered executive directive to override statutory eligibility, formula, deadline, spending, or program requirements;

"(6) create a legislative veto;

"(7) impair lawful emergency action authorized by statute and consistent with section 1025;

"(8) alter constitutional impeachment powers;

"(9) limit any remedy available under other law; or

"(10) affect any executive directive outside its covered scope.".

## **SEC. 4. CONFORMING AMENDMENT.**

The table of contents in section 1(b) of the Congressional Budget and Impoundment Control Act of 1974 is amended by adding after the item relating to section 1017 the following:

### **"PART C—EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW**

"Sec. 1021. Definitions.

"Sec. 1022. Executive Directive Impoundment Review Period.

"Sec. 1023. Fiscal inertness of covered executive directives during review period.

"Sec. 1024. Legal-authority certification.

"Sec. 1025. Emergency implementation.

"Sec. 1026. Expedited judicial review.

"Sec. 1027. Officer and employee safe harbor.

"Sec. 1028. Comptroller General reporting.

"Sec. 1029. Rules of construction.".

## **SEC. 5. SEVERABILITY.**

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provision or amendment to any other person or circumstance shall not be affected.

## Budgetary Impact Statement

Administrative and litigation workload is likely for OMB, GAO, affected agencies, congressional committees, and the federal courts. No new standing appropriation is specified. Implementation costs would depend on the frequency of trigger findings and covered executive directives.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- This draft regulates agency implementation and appropriated funds rather than directly invalidating executive orders.
- T2 should verify whether the new part should be codified in 2 U.S.C. chapter 17B, a new title 31 provision, annual appropriations riders, or a combination.
- T2 should test congressional-plaintiff standing, Comptroller General enforcement, emergency exceptions, direct appeal, and three-judge-court routing.
- T2 should review whether preliminary-injunction findings should count as trigger findings or whether only final judgments and Comptroller General decisions should count.

# IMM-001 — Presidential Criminal Accountability Amendment

## Proposed Constitutional Amendment

**Section 1.** Neither the President nor any former President shall possess absolute immunity for conduct within conclusive or preclusive presidential authority, presumptive immunity for other official acts, or any other criminal immunity arising solely from the official character of an act, the use of presidential power, or the separation of powers.

**Section 2.** The exercise or attempted exercise of a power vested in the President may constitute conduct, evidence, or an element of a valid federal criminal offense, whether the offense is generally applicable or specifically applicable to federal officers or the President, when the prosecution proves every element beyond a reasonable doubt. Lawful exercise of presidential authority, standing alone, shall not constitute a criminal offense.

**Section 3.** Separation-of-powers concerns may justify tailored rules concerning timing, process, privilege, venue, screening, disclosure, or remedy, but shall not create criminal immunity and shall not require the prosecution to prove the complete absence of danger, burden, or institutional intrusion before official conduct may be investigated, charged, adjudicated, or punished.

**Section 4.** In determining criminal intent, purpose, knowledge, or corrupt motive, a court and jury may consider otherwise admissible evidence of official conduct. Presidential immunity shall create no rule of evidentiary exclusion. Official communications, testimony, records, and surrounding circumstances may be admitted when otherwise relevant and admissible, subject to executive privilege, classification law, fair-trial protections, and other generally applicable evidentiary rules.

**Section 5.** Impeachment by the House of Representatives or conviction by the Senate shall not be a prerequisite to criminal investigation or prosecution. Nothing in this article shall alter the respective impeachment powers of the House and Senate.

**Section 6.** Congress may provide that a sitting President shall not be indicted or tried while holding office, provided that any otherwise applicable limitation period is suspended during presidential tenure and for a reasonable period thereafter. Investigation, preservation of evidence, judicial process consistent with official duties, and reporting to Congress may continue.

**Section 7.** Congress may establish independent screening, appointment, venue, disclosure, privilege, and expedited-review procedures to protect both the fair administration of criminal law and the lawful functioning of the Presidency.

**Section 8.** This article applies equally to every President and former President without regard to political party, administration, or the identity of the prosecuting authority.

**Section 9.** Congress shall have power to enforce and implement this article by appropriate legislation.

## Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## Drafting Notes

- Section 1 expressly supersedes both absolute immunity for conclusive or preclusive powers and presumptive immunity for other official acts.
- Section 3 eliminates the requirement that prosecution prove the complete absence of institutional intrusion while preserving tailored procedural accommodations.
- Section 2 reaches both generally applicable and President-specific criminal statutes.
- Section 4 rejects immunity-based evidentiary exclusion while preserving ordinary privilege, classification, and evidentiary protections.
- The amendment does not create new substantive crimes.
- Impeachment and criminal accountability remain distinct.
- A temporary sitting-President rule may coexist with investigation, evidence preservation, congressional reporting, and later prosecution.
- The amendment and DOJ-007 are modular: either may operate without the other, while adoption of both supplies independent investigation and meaningful criminal accountability.

## Source Notes

- Source review should include *Trump v. United States*, Article II, and the Constitution's impeachment provisions in Article I, Section 2 and Article I, Section 3.
- Prior-proposal comparison should include H.J.Res. 193, which proposed no criminal immunity for federal officers including the President and Vice President on the sole ground that the alleged act was within constitutional authority or related to official duties.

# JUD-001 — Executive Compliance and Civil Contempt Accountability Act

## A BILL

To amend section 401 of title 18, United States Code, to strengthen civil contempt tools for willful executive-branch noncompliance with federal court orders; to amend section 1304 of title 31, United States Code, to prohibit payment of personally imposed contempt penalties from the Judgment Fund; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Executive Compliance and Civil Contempt Accountability Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. strengthen enforcement of lawful federal court orders directed to the United States, federal agencies, federal officers, and persons acting under color of federal executive authority;
2. require identification of an executive-branch official with legal or practical authority over compliance where executive implementation is disputed;
3. provide courts with prompt, sworn compliance information before noncompliance becomes irreversible;
4. preserve ordinary appeal, stay, clarification, modification, privilege, due-process, and national-security safeguards;
5. authorize calibrated civil-contempt remedies for willful executive noncompliance; and
6. ensure that civil-contempt monetary penalties imposed personally for willful noncompliance are not shifted to taxpayers, agency funds, appropriated funds, reimbursement mechanisms, indemnification mechanisms, or the Judgment Fund.

## SEC. 3. EXECUTIVE COMPLIANCE CIVIL CONTEMPT.

Section 401 of title 18, United States Code, is amended—

1. by striking “A court of the United States shall have power” and inserting “(a) In general.—A court of the United States shall have power”;
2. by adding at the end the following:

### “(b) Executive compliance civil contempt.

#### “(1) Definitions.

“In this subsection:

“(A) **Covered executive order** means a lawful writ, process, order, rule, decree, injunction, stay, mandamus order, habeas-related order, discovery order, sanctions order, or other command issued by a court of the United States that requires or prohibits action by the United States, an executive agency, an officer or employee of the United States, or any person acting under color of federal executive authority.

“(B) **Executive agency** has the meaning given in section 105 of title 5.

“(C) **Responsible official** means an officer or employee of the United States who has legal authority, supervisory authority, operational control, custody of relevant records or persons, or practical ability to take materially necessary steps to comply with a covered executive order.

“(D) **Willful noncompliance** means intentional, knowing, reckless, or bad-faith disobedience of or resistance to a covered executive order by a responsible official who had notice of the order and legal or practical ability to comply, to cause compliance, or to take materially necessary compliance steps.

“(E) **Public funds** means appropriated funds, agency funds, settlement funds, representational funds, reimbursement authority, indemnification authority, insurance purchased or funded by the United States or an executive agency, the Judgment Fund established under section 1304 of title 31, or any other money provided by the United States or an executive agency.

#### “(2) Responsible-official designation.

“In a proceeding involving alleged, threatened, or reasonably foreseeable noncompliance with a covered executive order, the court may, on motion or on its own initiative, require the United States, the relevant executive agency, or the relevant federal officer to designate one or more responsible officials.

“A designation under this paragraph shall—

“(A) identify each responsible official by name, title, agency, component, and official contact information;

“(B) describe the official's authority and practical role in implementing the covered executive order;

“(C) identify any other agency, component, contractor, custodian, or officer whose cooperation is materially necessary for compliance;

“(D) be signed under penalty of perjury by the designated official and by counsel of record for the United States or relevant agency; and

“(E) be filed within the time set by the court.

“If the United States or relevant agency fails to make a timely and adequate designation, the court may identify a presumptive responsible official based on the record and may require that official, the official's supervisor, or agency counsel to show cause why the official should not be treated as a responsible official for purposes of this subsection.

### **“(3) *Compliance plan.***

“The court may require a responsible official to file a sworn compliance plan.

“A compliance plan shall state, to the extent applicable—

“(A) the steps taken to comply;

“(B) the steps remaining to achieve compliance;

“(C) the officials, agencies, components, contractors, custodians, or other persons whose action is necessary for compliance;

“(D) the timeline for each remaining compliance step;

“(E) any claimed legal, practical, privilege, security, foreign-affairs, custody, logistical, or impossibility obstacle to compliance;

“(F) the records, communications, notices, directives, holds, or instructions issued to preserve compliance capacity; and

“(G) whether the responsible official contends that clarification, modification, stay, mandamus, or appellate relief is necessary.

### **“(4) *Compliance reports.***

“The court may require periodic sworn compliance reports from a responsible official until the covered executive order is satisfied, stayed, modified, dissolved, or otherwise terminated.

“Each report shall identify material compliance steps, remaining obstacles, any change in responsible officials or implementation authority, and any material risk that compliance will not occur within the time required by the court.

### **“(5) *Expedited show-cause proceedings.***

“Upon a credible allegation of noncompliance with a covered executive order, the court may issue an expedited order to show cause.

“In a proceeding under this paragraph, the court may—

“(A) require testimony, declarations, records, privilege logs, custody information, agency directives, implementation notices, or other evidence relevant to compliance;

“(B) require the responsible official, agency counsel, or supervising officials to appear personally or remotely;

“(C) set an expedited evidentiary hearing;

“(D) make findings regarding notice, authority, practical ability to comply, good-faith efforts, impossibility, ambiguity, privilege, and willfulness; and

“(E) issue coercive, compensatory, remedial, or compliance-preserving orders consistent with law.

### **“(6) *Civil-contempt sanctions for willful noncompliance.***

“If the court finds by clear and convincing evidence that a responsible official engaged in willful noncompliance, the court may impose civil-contempt sanctions necessary to coerce compliance, compensate injured parties, remedy delay, preserve the court's authority, or prevent further evasion.

“Sanctions under this paragraph may include—

“(A) coercive monetary penalties;

“(B) compensatory monetary relief for costs, fees, and expenses caused by noncompliance;

“(C) remedial orders preserving records, persons, funds, custody, operational capacity, or agency action necessary for compliance;

“(D) adverse factual findings where permitted by law;

“(E) fee shifting and public-cost awards;

“(F) referral to an inspector general, disciplinary authority, or congressional committee with jurisdiction; and



“(G) any other civil-contempt remedy authorized by law.

**“(7) *Personal payment of coercive monetary penalties.*”**

“A coercive monetary penalty imposed against a responsible official under paragraph (6) for willful noncompliance shall be payable personally by that responsible official.

“No public funds may be used, directly or indirectly, to pay, reimburse, indemnify, satisfy, compromise, offset, or insure against a monetary penalty described in this paragraph, unless a later Act of Congress specifically authorizes payment of the identified penalty or class of penalties.

“No officer or employee of the United States may authorize, approve, facilitate, or conceal payment prohibited by this paragraph.

“Nothing in this paragraph prohibits the United States from providing representation, ordinary litigation support, or indemnification for claims other than a personally payable monetary penalty imposed for willful noncompliance under this subsection, to the extent otherwise authorized by law.

**“(8) *Due process and protected good-faith conduct.*”**

“No responsible official may be sanctioned under this subsection without notice and an opportunity to be heard.

“The court shall not impose a personally payable monetary penalty under paragraph (7) for—

“(A) timely seeking clarification, modification, stay, mandamus, or appellate relief;

“(B) making a nonfrivolous legal argument concerning the scope, validity, or application of a covered executive order;

“(C) asserting a privilege, classification, national-security, foreign-affairs, custody, or impossibility claim in good faith and with sufficient information for judicial review;

“(D) failing to perform an act outside the official's legal authority or practical ability; or

“(E) noncompliance caused by ambiguity, impossibility, lack of notice, good-faith mistake, or another circumstance inconsistent with willful noncompliance.

**“(9) *Stays and appeals.*”**

“This subsection does not alter any right to seek a stay, appeal, mandamus, certification, or other review.

“The filing of an appeal, mandamus petition, stay motion, clarification motion, or modification motion does not by itself suspend a covered executive order unless a court so orders.

“An appeal from an order imposing a personally payable monetary penalty under paragraph (7) shall be expedited to the greatest practicable extent.

**“(10) *Notice to oversight institutions.*”**

“If the court finds willful noncompliance by a responsible official, the clerk shall transmit the order and findings to—

“(A) the inspector general of the relevant agency;

“(B) the Attorney General;

“(C) the head of the relevant agency;

“(D) the Committee on the Judiciary of the House of Representatives;

“(E) the Committee on the Judiciary of the Senate; and

“(F) any other congressional committee identified by the court as having jurisdiction over the agency, program, appropriation, or subject matter.

“Notice under this paragraph is informational and remedial. It does not limit the court's enforcement authority or require criminal prosecution.

**“(11) *Relationship to other authority.*”**

“This subsection supplements and does not limit—

“(A) subsection (a);

“(B) section 1361 of title 28;

“(C) section 1651 of title 28;

“(D) section 566 of title 28;

“(E) the Federal Rules of Civil Procedure;

“(F) habeas corpus authority;

“(G) inherent judicial authority;

“(H) any other contempt, sanctions, fee-shifting, disciplinary, remedial, or enforcement authority; or

“(I) any lawful authority of Congress, inspectors general, or agency heads.

“Nothing in this subsection authorizes criminal prosecution by a person not otherwise authorized by law to conduct such prosecution.

#### **“(12) Rules of construction.**

“Nothing in this subsection shall be construed to—

“(A) authorize a court to direct policy discretion committed by law to the executive branch beyond the relief otherwise lawfully available;

“(B) require disclosure of privileged, classified, national-security, law-enforcement-sensitive, foreign-affairs, or protected information except under procedures authorized by law;

“(C) impair lawful emergency action where compliance is impossible and the responsible official promptly informs the court;

“(D) alter sovereign immunity except to the extent necessary to enforce a covered executive order otherwise within the court's jurisdiction;

“(E) limit substitution, official-capacity litigation, or representation rules otherwise provided by law; or

“(F) authorize payment from public funds of a personally payable monetary penalty imposed under paragraph (7).”.

### **SEC. 4. JUDGMENT FUND LIMITATION.**

Section 1304(a) of title 31, United States Code, is amended by adding at the end the following:

“No amount may be paid under this section to pay, reimburse, indemnify, satisfy, compromise, offset, or insure against a personally payable monetary penalty imposed on a responsible official for willful noncompliance under section 401(b)(7) of title 18, unless a later Act of Congress specifically authorizes payment of the identified penalty or class of penalties.”.

### **SEC. 5. EFFECTIVE DATE; APPLICATION.**

This Act shall take effect 30 days after the date of enactment.

This Act applies to covered executive orders issued on or after the effective date of this Act and to continuing noncompliance occurring on or after the effective date of this Act, regardless of when the underlying proceeding commenced.

### **SEC. 6. SEVERABILITY.**

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

If the personal-payment rule in section 401(b)(7) of title 18, United States Code, or the Judgment Fund limitation in section 1304(a) of title 31, United States Code, is held invalid in any application, the remaining responsible-official designation, compliance-plan, reporting, show-cause, contempt, fee-shifting, remedial, notice, and oversight provisions shall remain enforceable to the maximum extent permitted by law.

### **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

### **Drafting Notes**

- This draft amends existing contempt authority in 18 U.S.C. § 401 rather than creating a new freestanding Title 28 enforcement section.
- The draft preserves related existing authorities, including mandamus jurisdiction under 28 U.S.C. § 1361, the All Writs Act under 28 U.S.C. § 1651, and the Marshals Service duty to execute federal court orders under 28 U.S.C. § 566.
- The Judgment Fund amendment to 31 U.S.C. § 1304 is included to prevent public payment of personally imposed contempt penalties.
- The proposal intentionally leaves non-executive initiation of criminal contempt or related prosecution to separate congressional and prosecution-independence issues, including CONG-005.
- Civil-contempt doctrine review should include *United Mine Workers v. Bagwell*, *Shillitani v. United States*, *Spallone v. United States*, and *Hutto v. Finney*, with special attention to purgeability, compensation, coercion, due process, individual-official caution, and fee or cost remedies.

- The personal-payment rule needs legislative-counsel or qualified legal review before publication-ready use, especially as to due process, federal indemnification, Judgment Fund practice, the Appropriations Clause, and federal-officer representation.
- T3 source review indicates that appellate treatment of Judge Boasberg's Alien Enemies Act contempt inquiry increases the need for explicit statutory standards while also increasing legal-risk scrutiny. The draft should preserve a narrow fit to clear orders, notice, practical ability to comply, willfulness, and purgeability.
- T4 identified a hostile prior legislative comparator: a reported House-passed contempt-enforcement restriction in 2025 budget-reconciliation materials. The restriction was not verified as enacted in Public Law 119-21, so it should be treated as political-risk and prior-vehicle context rather than current law.

## Source Notes

- The draft should be reviewed for Article II, Article III, due process, sovereign immunity, appropriations, indemnification practice, federal-officer representation, classified-information procedures, privilege, habeas practice, and appellate jurisdiction.
- Federal Rules of Civil Procedure 53 and 70 should be sourced, where practicable, from the official U.S. Courts Current Rules of Practice and Procedure materials rather than development-stage secondary rule references.
- Before public release, official court or docket sources should replace secondary or RECAP-only support where available for the Alien Enemies Act, Abrego Garcia, Melgar-Salmeron, and New Jersey U.S. Attorney's Office examples.

# JUD-009 — Appointer-President Recusal Act

## A BILL

To amend section 455 of title 28, United States Code, to require or presume recusal of federal judges in proceedings involving the President who nominated the judge to judicial office, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**Appointer-President Recusal Act.**”

## SEC. 2. APPOINTER-PRESIDENT RECUSAL.

Section 455 of title 28, United States Code, is amended by adding at the end the following:

### § 455(g). Appointer-President Recusal

#### **(1) Definitions.**

For purposes of this subsection:

(A) **Appointing President** means the President who nominated the judge to the judicial office in which the judge is serving.

(B) **Covered judge** means a justice, judge, magistrate judge, or bankruptcy judge subject to this section.

(C) **Personal-interest proceeding** means a proceeding in which the appointing President is a named party in an individual capacity, a criminal defendant, a civil litigant asserting or defending personal rights, or a person with a direct and substantial personal, financial, electoral, reputational, civil, or criminal legal interest.

(D) **Core presidential-authority proceeding** means a proceeding in which the appointing President is a named party in an official capacity and the proceeding materially concerns that President's own constitutional or statutory powers, duties, immunity, privilege, records obligations, emergency authority, removal authority, appointment authority, election-related status, or compliance with judicial or statutory limits.

(E) **Broader official-capacity proceeding** means a proceeding in which the appointing President is named as an official-capacity party but the proceeding is not a personal-interest proceeding or core presidential-authority proceeding.

#### **(2) Tier 1 — mandatory recusal for personal-interest proceedings.**

A covered judge shall disqualify himself or herself from any personal-interest proceeding involving the appointing President.

#### **(3) Tier 2 — mandatory recusal for core presidential-authority proceedings.**

A covered judge shall disqualify himself or herself from any core presidential-authority proceeding involving the appointing President.

#### **(4) Tier 3 — presumptive recusal for broader official-capacity proceedings.**

A covered judge is presumptively disqualified from any broader official-capacity proceeding involving the appointing President.

The presumption may be rebutted only upon written findings that—

1. the proceeding is routine, agency-focused, or programmatic;
2. the proceeding does not materially implicate the appointing President's own legal authority, legal obligations, immunity, privilege, records duties, election-related status, personal exposure, or compliance with legal limits;
3. complete relief is available against the United States, an agency, or a subordinate officer without the appointing President as a necessary party; and
4. the naming of the appointing President appears unnecessary to the availability of relief and does not create a reasonable appearance that the appointing President's own legal interests are being adjudicated by the appointing President's judicial appointee.

#### **(5) Anti-gamesmanship.**

A party may not create disqualification under paragraph (4) by naming the President solely for the purpose of judge selection where complete relief is available against the United States, an agency, or a subordinate officer and the proceeding does not materially concern the appointing President's own legal authority, obligations, immunity, privilege, records duties, election-related status, personal exposure, or compliance with legal limits.

### **(6) Reassignment.**

A proceeding from which a covered judge is disqualified under this subsection shall be reassigned according to the ordinary neutral assignment procedures of the court, except that the reassignment procedure shall exclude judges for whom the same President is the appointing President if recusal would be required or presumed under this subsection.

### **(7) Waiver prohibited for mandatory tiers.**

Disqualification under paragraphs (2) and (3) may not be waived by the parties. A presumption under paragraph (4) may be resolved only by the written findings required by that paragraph.

### **(8) No inference of bias.**

Disqualification under this subsection does not constitute a finding that the judge is actually biased, has acted improperly, or lacks integrity. The subsection establishes a prospective appearance and administrability rule.

### **(9) Relationship to other recusal law.**

This subsection supplements and does not limit any other ground for disqualification under this section or any other law, rule, canon, or inherent authority.

## **SEC. 3. SEVERABILITY.**

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

If paragraph (4) of subsection 455(g) of title 28, United States Code, or any application of that paragraph is held invalid, paragraphs (2) and (3) shall remain enforceable. If paragraph (3) or any application of that paragraph is held invalid, paragraph (2) shall remain enforceable. The tiers of coverage are intended to be severable and independently enforceable to the maximum extent permitted by law.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The tiered structure is deliberate: Tier 1 is the most legally conservative; Tier 2 addresses core official-authority cases; Tier 3 is broader and protected by severability.
- The statute is prospective and does not adjudicate whether any judge acted improperly in any prior case.
- The anti-gamesmanship clause is essential to prevent strategic naming of the President solely to force reassignment.
- T2 doctrine review supports a narrow appearance-and-administrability rule, not a rule based on disagreement with judicial rulings. Tier 1 is the strongest tier; Tier 3 should remain rebuttable and written-findings-based.
- T3 ethics-source review supports the appearance and public-confidence framing, but the draft should preserve duty-to-sit, rule-of-necessity, and neutral-assignment safeguards.
- T4 prior-proposal review identified Supreme Court ethics and recusal legislation as a close family comparator, but not a direct appointer-president analogue. The bill should not overclaim prior legislative support.

## **Source Notes**

- The bill should be reviewed for Article III, separation of powers, due process, case-assignment administration, judicial conference authority, 28 U.S.C. § 455 doctrine, and potential interaction with district and circuit local rules.
- Recusal-doctrine review should include *Liteky v. United States*, *Liljeberg v. Health Services Acquisition Corp.*, and *Caperton v. A.T. Massey Coal Co.*
- Ethics-source review should include the official Code of Conduct for United States Judges and the Supreme Court's Code of Conduct for Justices.
- Before public release, source review should obtain official court orders or appellate opinions for the Cannon-related examples and official bill or committee materials for Supreme Court ethics and recusal comparators.

# WAR-001 — War Powers and Use-of-Force Authorization Reform Act

## A BILL

To amend and strengthen the War Powers Resolution, the framework governing authorizations for use of military force, and related appropriations and reporting rules by clarifying when congressional authorization is required before the introduction of United States Armed Forces into hostilities, defining covered hostilities, offensive hostilities, and emergency defensive action, requiring legal-basis certification and reporting, preventing appropriations from being treated as implied authorization, establishing funding consequences for unauthorized hostilities, requiring specificity and sunset rules for authorizations for use of military force, requiring information and legal-interpretation access for Congress, preventing mission expansion beyond authorization, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

## SECTION 1. SHORT TITLE.

This Act may be cited as the “**War Powers and Use-of-Force Authorization Reform Act.**”

## SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve Congress's constitutional role in authorizing war and significant military hostilities;
2. preserve the President's ability to repel sudden attacks, protect United States persons from imminent harm, and respond to genuine exigencies;
3. prohibit the President from initiating offensive hostilities without specific statutory authorization;
4. require prior statutory authorization for non-emergency offensive or discretionary hostilities;
5. clarify the meaning of hostilities, offensive hostilities, emergency defensive action, and covered military operations;
6. strengthen the standards governing authorizations for use of military force;
7. prevent stale, overbroad, indefinite, or mission-shifted authorizations from serving as open-ended authority for new hostilities;
8. ensure rapid reporting and legal-basis certification when emergency defensive action is taken;
9. ensure that Congress receives sufficient information before voting on, renewing, expanding, or funding significant uses of force;
10. require disclosure or controlled congressional access to material executive-branch legal interpretations supporting hostilities;
11. prevent mission expansion beyond the enemy, geography, mission, duration, and operational scope authorized by Congress;
12. prevent appropriations, procurement, logistics support, or general defense funding from being treated as implied authorization for hostilities unless Congress expressly so provides;
13. create clear termination, withdrawal, and funding consequences for unauthorized hostilities;
14. provide Congress with expedited procedures for authorizing, disapproving, limiting, or terminating covered operations; and
15. create statutory consequences capable of operating even where judicial enforcement is uncertain.

## SEC. 3. DEFINITIONS.

In this Act:

### **(a) Armed Forces.**

The term “**United States Armed Forces**” includes any member, unit, component, command, contractor-operated military force under operational military control, or other armed force acting under the command, operational control, or direction of the United States.

### **(b) Hostilities.**

The term “**hostilities**” means any situation in which United States Armed Forces are engaged in, authorized to engage in, or exposed to a substantial risk of armed conflict, including kinetic strikes, exchange of fire, targeting operations, combat patrols, offensive cyber operations with reasonably foreseeable destructive effects, detention or capture operations, deployment into an active combat zone, or mission support integral to ongoing combat.

### **(c) Offensive hostilities.**

The term “**offensive hostilities**” means any use of United States Armed Forces to initiate, escalate, punish, retaliate, deter, coerce, degrade, disrupt, destroy, occupy, seize, capture, compel, prevent a speculative future threat, alter another state or non-state actor's conduct, or achieve strategic, political, or military objectives beyond emergency defensive action.

Offensive hostilities include punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, regime-change operations, degradation campaigns, extended interdiction campaigns, occupation, seizure of territory, sustained targeting campaigns, and operations primarily intended to alter the conduct or capacity of a foreign state, organization, or armed group.

***(d) Emergency defensive action.***

The term “**emergency defensive action**” means a use of force that is necessary and limited to—

1. repel an actual armed attack against the United States, United States Armed Forces, or United States persons;
2. prevent an imminent armed attack where the threat is specific, concrete, and temporally urgent;
3. rescue or protect United States persons from imminent serious bodily harm or hostage-taking; or
4. evacuate United States persons from an imminent threat environment where the use of force is limited to protection of the evacuation.

Emergency defensive action does not include punitive retaliation, reprisal, deterrence, coercion, preventive war, degradation of an adversary's general capabilities, regime change, occupation, seizure of territory, extended interdiction, or any broader military campaign unless Congress has enacted specific statutory authorization.

***(e) Anti-relabeling rule.***

A use of force is not emergency defensive action merely because the executive branch describes it as limited, targeted, defensive, preemptive, deterrent, counterterrorism, force protection, national security, stability, humanitarian, or necessary to preserve credibility.

The classification of an operation depends on the operation's objective, factual predicate, scope, duration, and reasonably foreseeable effects, not on the label assigned by the executive branch.

***(f) Introduction into hostilities.***

The term “**introduction into hostilities**” includes the deployment, assignment, authorization, operational control, or use of United States Armed Forces in hostilities, imminent hostilities, offensive hostilities, emergency defensive action, or a covered military operation.

***(g) Imminent hostilities.***

The term “**imminent hostilities**” means circumstances in which armed conflict involving United States Armed Forces is clearly likely within a short and identifiable time period based on specific operational facts, not merely generalized geopolitical risk, speculative threat assessment, long-term strategic risk, deterrence rationale, or desire to preserve future military advantage.

***(h) Covered military operation.***

The term “**covered military operation**” means any use of United States Armed Forces that involves hostilities, imminent hostilities, offensive hostilities, emergency defensive action, combat support integral to hostilities, or introduction into a foreign state's territory, airspace, waters, or cyber infrastructure in a manner reasonably likely to produce armed conflict.

***(i) Specific statutory authorization.***

The term “**specific statutory authorization**” means an Act of Congress, joint resolution, or other law enacted through bicameralism and presentment that expressly authorizes the covered military operation and satisfies the specificity requirements of section 10.

***(j) Unauthorized hostilities.***

The term “**unauthorized hostilities**” means hostilities, offensive hostilities, or a covered military operation not authorized by specific statutory authorization and not justified as emergency defensive action within the period permitted by this Act.

***(k) Material mission expansion.***

The term “**material mission expansion**” means any material change in the enemy, target, associated force, geography, mission objective, duration, operational method, level of force, or legal theory for a covered military operation beyond the scope expressly authorized by Congress.

***(l) Material legal interpretation.***

The term “**material legal interpretation**” means any executive-branch legal opinion, memorandum, directive, finding, or formal legal analysis that substantially supports, expands, narrows, or reclassifies the asserted legal authority for hostilities, emergency defensive action, an authorization for use of military force, mission expansion, or continued operations.

## **SEC. 4. PRIOR AUTHORIZATION REQUIREMENT.**

***(a) Rule.***

Except for emergency defensive action under section 5, the President may not introduce United States Armed Forces into hostilities, imminent hostilities, offensive hostilities, or a covered military operation unless Congress has enacted specific statutory authorization.

***(b) Express prohibition on unilateral offensive hostilities.***

The President may not initiate offensive hostilities without specific statutory authorization.

***(c) No authorization by implication.***

No treaty, appropriations measure, procurement authorization, intelligence authorization, logistical support authorization, general defense authorization, or statement of policy shall constitute specific statutory authorization unless Congress expressly states that the provision authorizes hostilities for purposes of the War Powers Resolution and this Act.

***(d) Existing constitutional authority preserved only for emergency defense.***

Nothing in this section prevents the President from taking emergency defensive action under section 5.

## **SEC. 5. EMERGENCY DEFENSIVE ACTION.**

***(a) Authority.***

The President may undertake emergency defensive action without prior specific statutory authorization only where the action satisfies the definition in section 3(d) and is limited in scope, duration, and geography to the exigency requiring immediate action.

***(b) No offensive conversion.***

Emergency defensive action may not be converted into offensive hostilities, punitive retaliation, coercive diplomacy, preventive war, prolonged detention operations, occupation, degradation of general adversary capability, regime change, or a broader military campaign without specific statutory authorization.

***(c) Burden of classification.***

In any report, certification, or request under this Act, the President shall identify whether an operation is emergency defensive action, offensive hostilities, or specifically authorized hostilities, and shall state the facts supporting that classification.

***(d) Duration.***

Emergency defensive action may continue without specific statutory authorization for no more than 7 days unless Congress authorizes continuation by law.

***(e) Withdrawal and limitation.***

If Congress does not enact specific statutory authorization within the period specified in subsection (d), the President shall terminate offensive activity and withdraw or limit forces to the minimum defensive posture necessary to protect United States personnel during withdrawal.

## **SEC. 6. LEGAL-BASIS CERTIFICATION AND REPORTING.**

***(a) Certification before action where practicable.***

Before introducing United States Armed Forces into hostilities, imminent hostilities, offensive hostilities, or a covered military operation, the President shall transmit to Congress a written legal-basis certification.

***(b) Emergency certification.***

If prior certification is not practicable because of emergency defensive action, the President shall transmit the certification not later than 24 hours after initiation of the action.

***(c) Contents.***

The certification shall include—

1. the factual basis for the operation;
2. the legal basis asserted;
3. whether the action is based on specific statutory authorization, emergency defensive action, or another asserted authority;
4. whether the operation involves offensive hostilities;
5. the enemy, target, or threat addressed;
6. the geographic scope;
7. the mission objective;
8. the expected duration;
9. the expected scope of hostilities;



10. the anticipated risk to United States Armed Forces and civilians;
11. the appropriations account or funding source to be used;
12. whether Congress has been asked to enact specific statutory authorization; and
13. the planned termination or withdrawal schedule absent authorization.

***(d) Public and classified versions.***

The President shall transmit a classified version where necessary and shall also make public an unclassified version containing as much information as can be disclosed consistent with national security.

## **SEC. 7. REPORTING DURING HOSTILITIES.**

For any hostilities, imminent hostilities, offensive hostilities, covered military operation, or emergency defensive action, the President shall provide updated reports to Congress at least every 7 days until the operation is terminated or specifically authorized by Congress.

Each report shall state whether the operation remains within its original legal basis, whether mission scope has changed, whether additional authorization is requested, whether the operation involves offensive hostilities, and whether termination or withdrawal is planned.

## **SEC. 8. AUTOMATIC TERMINATION AND WITHDRAWAL.**

***(a) Termination rule.***

Hostilities, emergency defensive action, or a covered military operation not supported by specific statutory authorization shall terminate upon the earliest of—

1. expiration of the emergency defensive action period under section 5(d);
2. expiration of any time limitation contained in a specific statutory authorization;
3. enactment of a law terminating, prohibiting, or limiting the operation;
4. a determination by the President that the operation no longer falls within its certified legal basis; or
5. a material mission expansion not authorized under section 13.

***(b) Meaning of termination.***

Termination requires cessation of offensive activity, targeting, combat patrols, strikes, detention or capture operations, and combat support integral to hostilities, except as necessary for safe and orderly withdrawal, emergency rescue, medical evacuation, or force protection during withdrawal.

***(c) Withdrawal plan.***

Upon a termination trigger, the President shall transmit to Congress, not later than 24 hours after the trigger, a withdrawal or limitation plan stating the steps, timeline, force-protection measures, and legal basis for any continued presence.

***(d) No slow-walking.***

The withdrawal or limitation plan shall be executed as expeditiously as safely practicable. Force protection may not be used as a pretext to continue offensive hostilities or sustain the unauthorized mission.

## **SEC. 9. FUNDING LIMITATION FOR UNAUTHORIZED HOSTILITIES.**

***(a) Prohibition.***

No funds appropriated or otherwise made available by any Act of Congress may be obligated or expended for unauthorized hostilities after the applicable authorization period expires or a termination trigger occurs.

***(b) Permitted uses.***

After the authorization period expires or a termination trigger occurs, funds may be used only for—

1. safe and orderly withdrawal;
2. protection of United States personnel during withdrawal;
3. rescue of United States persons;
4. medical evacuation;
5. force protection necessary to end the unauthorized operation; and
6. activities expressly authorized by subsequent law.

***(c) No waiver.***

The funding limitation in this section may not be waived by the President.

***(d) Agency compliance.***

No officer or employee of the United States may knowingly obligate or expend funds in violation of this section.

## **SEC. 10. SPECIFICITY AND SUNSET REQUIREMENTS FOR AUTHORIZATIONS FOR USE OF MILITARY FORCE.**

***(a) Required elements.***

No authorization for use of military force enacted after the date of enactment of this Act shall constitute specific statutory authorization unless it expressly states—

1. the enemy, target, or covered opposing force;
2. any associated force covered by the authorization;
3. the geographic scope;
4. the authorized mission objective;
5. the forms of force authorized;
6. the reporting obligations applicable to the operation;
7. the sunset date;
8. the conditions for renewal; and
9. that the authorization constitutes specific statutory authorization for purposes of the War Powers Resolution and this Act.

***(b) Sunset.***

An authorization for use of military force enacted after the date of enactment of this Act shall expire not later than 2 years after enactment unless Congress expressly provides for an earlier expiration or renews the authorization by law.

***(c) Renewal.***

Renewal requires an Act of Congress enacted through bicameralism and presentment and shall not occur by implication, appropriation, or continuing resolution unless the renewal language expressly satisfies subsection (a).

***(d) Associated forces.***

No associated force, successor force, splinter force, or affiliated organization may be treated as covered unless Congress expressly identifies the force or establishes a specific process for identifying such force and receives notice and an opportunity for expedited disapproval.

***(e) No geographic or mission drift.***

An authorization may not be construed to cover operations in a country, theater, mission, or method of force not within the express geographic and mission scope of the authorization.

## **SEC. 11. PRE-AUTHORIZATION INFORMATION REQUIREMENTS.**

***(a) Information required before authorization vote.***

Before either House votes on a bill or joint resolution providing, renewing, or materially expanding specific statutory authorization, the President shall transmit to Congress, to the extent practicable and consistent with national security, a report containing—

1. the legal basis for the proposed authorization;
2. the factual and intelligence basis for the proposed use of force;
3. the identified enemy, target, or associated force;
4. the proposed geographic scope;
5. the proposed mission objective;
6. the expected duration;
7. the expected forms and intensity of force;
8. the anticipated escalation risks;

9. the anticipated civilian-harm risks;
10. the anticipated cost and funding source;
11. alternatives to force considered;
12. allied or coalition participation;
13. expected criteria for success;
14. expected exit or transition criteria; and
15. material legal interpretations supporting the proposed authorization.

***(b) Classified annex.***

Information that cannot be publicly disclosed shall be provided in a classified annex to the appropriate committees and congressional leadership, with procedures sufficient to permit meaningful review before a vote.

***(c) Emergency exception.***

This section does not prevent emergency defensive action under section 5, but any subsequent request for authorization shall comply with this section.

## **SEC. 12. EXECUTIVE LEGAL INTERPRETATION ACCESS.**

***(a) Submission of material legal interpretations.***

The President shall transmit to the congressional intelligence, armed services, foreign affairs, and appropriations committees, and to the congressional leadership, any material legal interpretation supporting—

1. the introduction of United States Armed Forces into hostilities;
2. classification of an operation as emergency defensive action;
3. continued hostilities after an emergency period;
4. reliance on an authorization for use of military force;
5. identification of an associated or successor force;
6. material mission expansion; or
7. the conclusion that appropriations or related legislation authorizes hostilities.

***(b) Timing.***

Material legal interpretations shall be transmitted before action where practicable and, in any event, not later than 7 days after the relevant operation, classification, or legal determination.

***(c) Classified or privileged material.***

The President may provide classified or appropriately protected versions where necessary, but shall provide sufficient detail to permit Congress to understand the operative legal theory.

***(d) No secret expansion.***

No undisclosed material legal interpretation may be relied on to expand the enemy, geography, mission, duration, or scope of a covered military operation beyond the public or classified authorization provided to Congress.

## **SEC. 13. MISSION EXPANSION AND MATERIAL CHANGE.**

***(a) Reauthorization required.***

The President may not undertake a material mission expansion without specific statutory authorization for that expansion.

***(b) Notice.***

If the President determines that a material mission expansion may be necessary, the President shall notify Congress not later than 48 hours after the determination and shall state the factual, legal, operational, and funding basis for the proposed expansion.

***(c) No expansion by operational necessity.***

Operational convenience, strategic advantage, deterrence, coalition preference, or force protection may not by itself authorize a material mission expansion.

***(d) Emergency defense preserved.***

Nothing in this section prevents emergency defensive action under section 5, provided that such action does not become a broader unauthorized mission.

**SEC. 14. EXPRESS AUTHORIZATION REQUIREMENT FOR APPROPRIATIONS.**

An appropriation, authorization of appropriations, procurement law, logistical support law, intelligence authorization, continuing resolution, supplemental appropriation, or defense authorization shall not constitute authorization for hostilities unless it expressly states:

“Congress specifically authorizes hostilities for purposes of the War Powers Resolution and the War Powers and Use-of-Force Authorization Reform Act.”

General support for members of the Armed Forces, equipment, logistics, pay, benefits, evacuation, medical care, force protection, intelligence, or withdrawal shall not be construed as authorization for hostilities.

**SEC. 15. EXPEDITED CONGRESSIONAL PROCEDURES.**

***(a) Authorization request.***

If the President requests specific statutory authorization for a covered military operation, each House shall have procedures for expedited consideration, debate, and vote.

***(b) Disapproval or limitation measure.***

A bill or joint resolution to prohibit, limit, terminate, or condition a covered military operation shall receive expedited consideration under procedures established by each House.

***(c) Minority-triggered review.***

Each House may establish procedures allowing a qualifying minority of members, or a qualifying minority of members of a relevant committee, to require a hearing, report, or privileged motion concerning hostilities, emergency defensive action, authorization renewal, termination, mission expansion, or funding limits under this Act.

***(d) Presentment.***

Any bill or joint resolution creating binding legal consequences under this Act shall be presented to the President under Article I, Section 7 of the Constitution.

***(e) Veto override preserved.***

If the President vetoes a bill or joint resolution under this section, Congress may enact the measure by overriding the veto with a two-thirds vote of both Houses.

**SEC. 16. RULE AGAINST CONCURRENT-RESOLUTION TERMINATION.**

No concurrent resolution or simple resolution shall be treated as creating binding legal consequences under this Act. Congress may express its judgment by concurrent or simple resolution, but binding authorization, prohibition, limitation, or termination of hostilities shall proceed through constitutionally required legislative procedures.

**SEC. 17. RELATION TO EXISTING AUTHORIZATIONS.**

Nothing in this Act repeals an existing authorization for use of military force. However, no existing authorization may be construed to authorize a covered military operation unless the operation falls within the enemy, target, mission, geography, and temporal scope of that authorization.

Not later than 180 days after enactment, the President shall transmit to Congress a report identifying each existing authorization for use of military force on which the executive branch relies, the operations conducted under each authorization, the enemy or associated force covered, the geographic scope, the mission objective, and any material legal interpretation supporting the scope of reliance.

**SEC. 18. RULE OF CONSTRUCTION.**

Nothing in this Act shall be construed to—

1. authorize hostilities not otherwise authorized by law;
2. limit Congress's constitutional power to declare war or authorize force;
3. limit Congress's power of the purse;
4. prevent emergency defensive action satisfying section 5;
5. authorize unilateral offensive hostilities;
6. permit hostilities based solely on appropriations by implication;

7. impair laws governing covert action, intelligence oversight, or classified reporting, except that such laws shall not be treated as implied authorization for hostilities; or
8. affect the authority of Congress to enact more restrictive limits on the use of military force.

## **SEC. 19. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- This is the first working draft for the collapsed A-03 issue.
- WAR-002 through WAR-008 have been collapsed into WAR-001 as component defects rather than standalone legislative vehicles.
- The draft now contains operative provisions addressing initiation, emergency defense, anti-relabeling, automatic termination and withdrawal, funding consequences, AUMF specificity and sunsets, pre-authorization information, executive legal-interpretation access, mission expansion, appropriations-as-implied-authorization, expedited procedures, presentment, and concurrent-resolution limits.
- The emergency defensive window is set at 7 days as a provisional drafting choice and requires policy review.
- The two-year default AUMF sunset is provisional and requires policy review.
- The definitions of hostilities, offensive hostilities, emergency defensive action, and covered military operation require comparison against prior reform bills, OLC opinions, and operational categories.
- Binding legal consequences require bicameralism and presentment. Veto override remains constitutionally available.
- The central principle is that the President may act alone to defend against immediate harm but may not act alone to initiate, punish, deter, coerce, degrade, or reshape foreign actors through offensive military force.
- This draft is designed to create legal, political, appropriations, reporting, and internal executive-branch consequences even where courts decline to adjudicate war-powers disputes.

## **Source Notes**

- Source review should include the War Powers Resolution, classified in 50 U.S.C. chapter 33 and enacted as Public Law 93-148, Article I and Article II war-powers allocations, prior authorizations for use of military force such as Public Law 107-40 and Public Law 107-243, and prior reform models such as the National Security Powers Act of 2021 and National Security Reforms and Accountability Act.

## **Appendix B - Model State Legislation**

# ELEC-002 — Model State Election Certification and Automatic Substitution Act

## A MODEL STATE BILL

To define election certification as a ministerial duty, provide automatic substitution and expedited judicial enforcement when a certifying official refuses or fails to act, preserve lawful investigation and contest procedures, and establish consequences for knowing nonperformance or falsification.

### SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Certification and Automatic Substitution Act.**”

### SEC. 2. DEFINITIONS.

In this Act:

1. **Certification** means the final official act by which a canvassing or certification authority confirms and transmits the result produced by the tabulation, canvass, recount, audit, and adjudicative procedures prescribed by law.
2. **Certification authority** means any state, county, municipal, district, or other officer, board, commission, or body assigned by law to canvass, certify, attest, approve, or transmit an election result.
3. **Specific certification defect** means an identifiable arithmetic, documentary, procedural, or statutory defect that—
  - appears in the official canvass or certification record;
  - falls within the express authority of the certification authority to correct; and
  - is capable of correction without adjudicating an election contest, investigating generalized allegations, or revisiting a matter assigned by law to another official or tribunal.
4. **Substitute certifier** means the officer, court, or body designated by section 6 to perform a certification duty upon refusal, deadlock, incapacity, disqualification, or failure to act.

### SEC. 3. CERTIFICATION AS A MINISTERIAL DUTY.

After completion of the counting, tabulation, reconciliation, audit, recount, and adjudicative procedures required by law, a certification authority shall certify the resulting lawful totals by the statutory deadline.

Certification is ministerial and does not confer authority to—

1. investigate generalized allegations of fraud or misconduct;
2. reconsider ballot-validity questions assigned to another official or tribunal;
3. impose conditions not authorized by statute;
4. withhold certification because of disagreement with election law, policy, procedure, or result;
5. demand an audit, recount, investigation, or prosecution not otherwise authorized by law; or
6. alter or delay a result for the purpose of favoring or disadvantaging a candidate, party, ballot measure, or electoral outcome.

### SEC. 4. LIMITED IDENTIFICATION OF DEFECTS.

A certification authority may temporarily defer certification only upon a written finding identifying a specific certification defect.

The written finding shall state—

1. the precise defect;
2. the statutory authority permitting the certification authority to address it;
3. the records supporting the finding;
4. the corrective action required; and
5. the time by which correction must occur.

A deferral under this section may not exceed 48 hours or the remaining time before the statutory deadline, whichever is shorter, unless a court orders otherwise.

Generalized suspicion, personal belief, unsupported allegation, or a matter committed to an election contest, recount, law-enforcement investigation, or other separate process is not a specific certification defect.

## **SEC. 5. DUTY TO REFER WITHOUT WITHHOLDING CERTIFICATION.**

A certification authority that possesses substantial and credible information concerning fraud, crime, or material irregularity outside its certification authority shall refer the information promptly to the appropriate election official, prosecutor, law-enforcement agency, or court.

Unless a specific certification defect exists under section 4, such a referral does not suspend or excuse certification.

## **SEC. 6. AUTOMATIC SUBSTITUTION.**

If a certification authority—

1. refuses to certify;
2. fails to obtain the vote required for certification;
3. does not act by the statutory deadline;
4. is unable to act because of incapacity, vacancy, disqualification, or loss of quorum; or
5. exceeds the maximum deferral period under section 4,

the certification duty transfers automatically and by operation of law to the substitute certifier.

Each state adopting this Act shall designate by statute a substitute sequence appropriate to its governmental structure. The sequence should ordinarily include—

1. the chief state election official or a deputy not involved in the underlying dispute;
2. a designated state canvassing authority; and
3. a court of competent jurisdiction authorized to enter the certification directly if no executive substitute acts promptly.

The transfer of authority does not require removal of the original official from office and does not depend upon a prior finding of misconduct.

## **SEC. 7. EXPEDITED JUDICIAL ENFORCEMENT.**

The chief state election official, attorney general, affected local election authority, candidate, or voter residing in the affected jurisdiction may seek mandamus, declaratory relief, or an injunction to enforce this Act.

The court shall—

1. exercise original or specially assigned expedited jurisdiction;
2. hold a hearing as soon as practicable and ordinarily within 24 hours;
3. decide the matter before any downstream statutory deadline where reasonably possible;
4. compel performance of a ministerial duty;
5. authorize or confirm automatic substitution; and
6. preserve all downstream certification, recount, contest, elector, ballot-access, and transition deadlines.

A court may enter the certification directly where necessary to prevent disenfranchisement or failure of the election process.

## **SEC. 8. NO EFFECT ON LAWFUL RECOUNTS OR ELECTION CONTESTS.**

Certification does not extinguish a recount, election contest, judicial challenge, criminal investigation, or other post-certification remedy authorized by law.

A later lawful determination may amend or supersede the certification as provided by state law.

## **SEC. 9. REMOVAL FROM THE CERTIFICATION MATTER.**

A person who refuses or fails to perform a certification duty without lawful basis may be removed immediately from further participation in that certification matter by the substitute certifier or a court.

Removal from the matter does not itself constitute removal from office and does not preclude separate disciplinary, civil, or criminal proceedings.

## **SEC. 10. CIVIL AND ADMINISTRATIVE CONSEQUENCES.**

A certification official who knowingly refuses, delays, conditions, or obstructs certification without lawful basis may be subject to—

1. a civil penalty;



2. reimbursement of reasonable public costs caused by the refusal or delay;
3. disqualification from serving on a canvassing or certification authority for a defined period;
4. removal, suspension, censure, or other discipline authorized by state law; and
5. attorney’s fees and costs awarded to a prevailing governmental plaintiff.

No public funds shall reimburse a personal civil penalty imposed for a knowing violation.

## **SEC. 11. CRIMINAL OFFENSES.**

A person commits a misdemeanor if, while serving as a certification official, the person knowingly and without lawful basis refuses or fails to perform a mandatory certification duty after written notice of the duty and a reasonable opportunity to comply.

A person commits a felony if the person knowingly—

1. falsifies, alters, destroys, conceals, or manufactures a certification record;
2. certifies a result known to be materially false;
3. accepts or solicits a benefit in exchange for certification or noncertification;
4. obstructs certification for the purpose of changing or preventing a lawful electoral outcome; or
5. conspires with another person to commit conduct described in this section.

Penalty levels shall be calibrated by each adopting state consistently with comparable public-corruption, records, and election offenses.

## **SEC. 12. ANTI-COERCION AND ANTI-RETALIATION.**

No person may threaten, intimidate, coerce, bribe, or retaliate against a certification official for performing, attempting to perform, or refusing to violate a duty under this Act.

Nothing in this section narrows any more protective state or federal law.

## **SEC. 13. PUBLIC RECORD AND TRANSPARENCY.**

All votes, written defect findings, referrals, substitution notices, judicial filings, and final certification documents under this Act are public records, subject only to lawful protections for ballots, voter information, investigative material, privilege, and security-sensitive information.

## **SEC. 14. UNIFORM APPLICATION.**

This Act applies without regard to the identity, party, affiliation, office, candidate, ballot measure, or anticipated outcome involved.

## **SEC. 15. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The model separates certification from investigation and election-contest adjudication.
- Automatic substitution prevents a single official, board minority, or deadlocked body from becoming an electoral veto point.
- The proposal preserves lawful correction of specific defects while rejecting generalized suspicion as a basis for noncertification.
- The standing provision should be conformed to each state’s constitutional rules governing taxpayer, voter, candidate, and governmental standing.
- States should adapt the substitute sequence, deadlines, and penalties to existing offices and court structures.
- A federal minimum rule may separately be considered for elections containing a federal office, but this model is designed for state adoption.

## **Source Notes**

- Source review for federal-election interactions should include the Electoral Count Reform Act amendments to 3 U.S.C. § 5, 3 U.S.C. § 12, and 3 U.S.C. § 15, plus each adopting state’s election-certification statutes.

- T2 should prioritize primary court orders or official state records for Wayne County, Otero County, Cochise County, and Fulton County before publication-ready reliance.

# ELEC-003-state — Model State Election Personnel Protection and Continuity Act

## A MODEL STATE BILL

To protect election personnel and their families from threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and operational disruption; to provide rapid protective and continuity measures; to preserve constitutionally protected speech; and to establish a politically neutral state protection regime eligible for federal support under a corresponding amendment to the Help America Vote Act of 2002.

### SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Personnel Protection and Continuity Act.**”

### SEC. 2. PURPOSES.

The purposes of this Act are to—

1. reduce the likelihood that election personnel or their families will be threatened, attacked, displaced, harassed, doxxed, or retaliated against because of election duties;
2. provide protection before harm occurs rather than relying exclusively on punishment afterward;
3. preserve continuity of polling, tabulation, canvassing, recount, certification, records, and related election operations during a threat or disruption;
4. retain experienced election personnel and reduce threat-driven resignation and recruitment loss;
5. apply protection without regard to political affiliation, candidate preference, viewpoint, election outcome, or the perceived political effect of an official act; and
6. preserve lawful criticism, protest, advocacy, reporting, and other speech protected by the United States and State Constitutions.

### SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election personnel** means a current, former, prospective, or temporary state or local election official, employee, poll worker, canvasser, contractor, vendor employee, volunteer, or other person performing an authorized election function.
2. **Covered family or household member** means a spouse, domestic partner, child, parent, sibling, dependent, household member, or other person targeted because of the election duties of covered election personnel.
3. **Election function** includes voter registration, ballot preparation, polling-place operation, ballot custody, counting, tabulation, auditing, recounting, canvassing, certification, records administration, equipment support, election-security support, and adjudicative or ministerial duties assigned by law.
4. **Protected personal information** means a residential address, personal telephone number, personal email address, Social Security number, financial-account information, precise geolocation, school or childcare location, family-member identity, vehicle information, or other information designated by rule because disclosure creates a material safety risk.
5. **Targeted harassment** means a course of conduct directed at a covered person because of an election function that would cause a reasonable person substantial fear, substantial emotional distress, or material interference with employment or public service, and that is not constitutionally protected speech or petitioning activity.
6. **Coercive intimidation** means conduct undertaken with the purpose of causing a covered person, through fear of injury, unlawful exposure, economic retaliation, or harm to another, to perform, refrain from performing, alter, delay, or abandon a lawful election duty.
7. **Credible threat** means information that, under the totality of circumstances, provides a reasonable basis to believe that violence, unlawful entry, stalking, targeted harassment, doxxing, retaliation, or material operational disruption may occur.
8. **Protection coordinator** means the existing state officer or office designated under section 5. No new agency is created by this Act.

### SEC. 4. POLITICALLY NEUTRAL AND UNIFORM PROTECTION.

Protection, assessment, assistance, enforcement, and remedies under this Act shall be provided without regard to—

1. political party or affiliation;
2. candidate preference or ideological viewpoint;
3. the identity of the person making an allegation;

4. the identity of the person allegedly responsible;
5. whether the protected person's lawful conduct benefited or burdened a candidate, party, ballot measure, or electoral outcome; or
6. whether the protected person certified, declined to certify pending lawful review, referred a matter for investigation, testified, or otherwise performed a lawful election duty.

Risk-based distinctions may be made only on neutral factors including credibility, imminence, severity, capability, vulnerability, prior conduct, location, and likely operational impact.

## **SEC. 5. DESIGNATION OF EXISTING STATE RESPONSIBILITY.**

The Governor shall designate an existing state office, which may include the office of the attorney general, chief state election official, state police, or emergency-management agency, to serve as protection coordinator.

The protection coordinator shall—

1. maintain a single statewide reporting channel available at all times during designated election periods;
2. coordinate election officials, law enforcement, prosecutors, courts, emergency management, and local government;
3. establish written triage and referral protocols;
4. arrange emergency protection and continuity support authorized by this Act;
5. maintain aggregate records sufficient for oversight while protecting personal and security-sensitive information; and
6. distribute state and federal funds to local jurisdictions according to objective need and risk criteria.

The protection coordinator has no authority under this Act to direct or alter voter eligibility, registration, voting methods, ballot access, counting, canvassing, recounts, certification, elector appointment, or adjudication of an election dispute.

## **SEC. 6. RAPID REPORTING, ASSESSMENT, AND RESPONSE.**

A covered person, election office, law-enforcement agency, or household member may report a threat or covered incident through the statewide channel.

Upon receipt of a report indicating a credible threat, the protection coordinator shall ensure that—

1. an initial safety assessment begins promptly and, when practicable, within two hours;
2. an imminent threat is referred immediately to emergency law enforcement;
3. protected personal information is reviewed for exposure and removal or suppression options;
4. affected family or household members are included in the assessment;
5. the relevant election office receives continuity guidance without disclosure of unnecessary personal information; and
6. the reporting person receives a case identifier and a point of contact.

A report may not be rejected solely because the communication does not yet satisfy every element of a criminal offense.

## **SEC. 7. EMERGENCY PROTECTIVE ASSISTANCE.**

Upon a finding of a credible threat, the protection coordinator may authorize, directly or through an existing state or local agency—

1. temporary residential or workplace security;
2. law-enforcement patrol or escort;
3. security-system installation or reimbursement;
4. temporary relocation, lodging, transportation, or dependent-care assistance;
5. replacement of compromised communication devices or accounts;
6. safety planning for family or household members;
7. emergency legal assistance for protective orders, records suppression, or related proceedings;
8. trauma-informed counseling and employee assistance; and
9. other narrowly tailored measures reasonably necessary to reduce an identified risk.

Assistance shall be based on risk and need, not rank, publicity, party affiliation, or election outcome.

## **SEC. 8. EXPEDITED PROTECTIVE ORDERS.**

A covered person, covered family or household member, protection coordinator, attorney general, or prosecutor may petition a court for an election-personnel protective order upon a showing of a credible threat, stalking, unlawful disclosure of protected personal information, coercive intimidation, targeted harassment, or retaliation connected to an election function.

The court may—

1. issue temporary ex parte relief when immediate and irreparable injury is likely;
2. prohibit contact, surveillance, stalking, unlawful disclosure, or approach to a residence, workplace, polling place, tabulation center, or other protected location;
3. order removal of unlawfully posted protected personal information where consistent with constitutional requirements;
4. protect family or household members exposed through the same conduct; and
5. order other narrowly tailored relief necessary to prevent recurrence.

A prompt adversarial hearing and all procedural protections required by state and federal law shall be provided.

## **SEC. 9. ADDRESS CONFIDENTIALITY AND DATA MINIMIZATION.**

A covered person facing a credible threat may enroll in an existing address-confidentiality program or, if none applies, in a program administered by an existing state office.

State and local agencies shall, to the maximum extent permitted by law—

1. substitute a designated service address for a residential address in public records;
2. redact protected personal information before public release;
3. restrict internal access to personnel with a demonstrated operational need;
4. avoid collecting or retaining protected personal information not necessary to an election function; and
5. establish an expedited process for correcting or suppressing accidental disclosure.

This section does not authorize concealment of information that is constitutionally required to be public, but requires use of the least personally exposing lawful alternative.

## **SEC. 10. UNLAWFUL DISCLOSURE OF PROTECTED PERSONAL INFORMATION.**

A person is civilly liable if the person knowingly and without lawful purpose publicly discloses protected personal information of covered election personnel or a covered family or household member—

1. because of the person's election function;
2. with intent to threaten, intimidate, facilitate unlawful contact, or cause material fear or disruption; or
3. with reckless disregard of a substantial and unjustifiable risk that the disclosure will facilitate violence, stalking, unlawful entry, or targeted harassment.

Available relief may include actual damages, statutory damages, injunctive relief, reasonable attorney's fees, costs of security or relocation, and other appropriate relief.

This section does not apply to protected newsgathering, reporting on a matter of public concern, lawful service of process, good-faith disclosure to law enforcement, or other constitutionally protected activity.

## **SEC. 11. THREATS, COERCIVE INTIMIDATION, AND RETALIATION.**

A person commits an offense if the person, because of a covered person's election function—

1. communicates a true threat of violence while consciously disregarding a substantial risk that the communication will be understood as threatening violence;
2. uses force, threatened force, stalking, or coercive intimidation to influence, punish, delay, or prevent performance of a lawful election duty;
3. threatens or harms a covered family or household member for that purpose;
4. knowingly retaliates through unlawful employment, contracting, licensing, property, or economic action; or
5. conspires with another person to commit conduct described in this section.

Penalty levels shall be calibrated to comparable state offenses and enhanced where conduct involves a weapon, explosive device, repeated targeting, family targeting, substantial bodily injury, or material disruption of an election function.

This section shall be construed consistently with *Counterman v. Colorado*, 600 U.S. 66 (2023), and shall not criminalize protected criticism, advocacy, protest, parody, rhetorical hyperbole, or other speech protected by the First Amendment.

## **SEC. 12. FALSE REPORTS, BOMB THREATS, SWATTING, AND FACILITY DISRUPTION.**

A person commits an aggravated offense if the person knowingly makes or causes a false report of a bomb, hazardous substance, armed attack, hostage event, or other emergency concerning—

1. a polling place;
2. an election office;
3. a ballot-storage, counting, tabulation, audit, recount, canvassing, or certification facility;
4. the residence or workplace of covered election personnel; or
5. another location with intent to disrupt an election function or cause an armed emergency response against a covered person.

In addition to other penalties, a court may order restitution for emergency response, evacuation, replacement polling operations, extended operating hours, security measures, and other direct public costs.

## **SEC. 13. CONTINUITY OF ELECTION OPERATIONS.**

Each state and local election authority shall maintain a continuity plan proportionate to its size and risk. The plan shall address—

1. evacuation and relocation of polling, counting, tabulation, canvassing, recount, and certification functions;
2. backup facilities, communications, equipment, records, and staffing;
3. emergency succession and delegation of duties;
4. preservation and secure transfer of ballots and election records;
5. rapid public notice of a temporary closure or relocation;
6. lawful extension of hours or other remedial action when authorized by state law or court order;
7. protection of workers and voters during a threat; and
8. after-action review without public disclosure of exploitable security vulnerabilities.

The chief state election official shall establish model continuity templates but may not use this section to control local election policy beyond the requirements stated here.

## **SEC. 14. WORKFORCE RETENTION AND SUPPORT.**

The state shall permit protection funds to be used for—

1. training on threat recognition, reporting, de-escalation, digital privacy, and records protection;
2. counseling and trauma support;
3. temporary staffing and replacement personnel following a threat or evacuation;
4. reasonable security-related leave and accommodations;
5. recruitment and retention measures in jurisdictions experiencing documented threat-related attrition; and
6. reimbursement of necessary out-of-pocket security costs.

An election worker may not be disciplined, demoted, or dismissed for making a good-faith report, seeking protection, participating in an investigation, or refusing an unlawful directive.

## **SEC. 15. CIVIL ACTION AND EQUITABLE RELIEF.**

A covered person or covered family or household member injured by a violation of sections 10, 11, 12, or 14 may bring a civil action for appropriate relief, including damages, injunctive relief, security and relocation costs, attorney's fees, and costs.

A court shall prioritize a request for emergency relief where delay would materially increase personal danger or threaten continuity of an election function.

This section does not create liability for a government employee's good-faith exercise of protected prosecutorial, judicial, or emergency-response discretion.

## **SEC. 16. AGGREGATE REPORTING AND OVERSIGHT.**

The protection coordinator shall publish an annual aggregate report stating—

1. the number and general category of reports received;
2. response times and dispositions;
3. forms of assistance provided;
4. funds distributed and expended;
5. operational disruptions and continuity measures used;
6. workforce effects reasonably attributable to threats or harassment;
7. federal amounts received, obligated, expended, unobligated, and carried forward; and
8. any automatic federal payment reduction resulting from an unobligated-balance threshold.

The report may not identify a protected person, disclose a residential address, reveal an active investigative fact, expose a security vulnerability, or disclose information reasonably likely to facilitate further targeting.

## **SEC. 17. FUNDING, MATCHING, CARRYOVER, AND LOCAL DISTRIBUTION.**

The legislature shall appropriate funds sufficient to administer this Act. Federal funds received for election-personnel protection may be used only for purposes authorized by this Act and the governing federal statute.

The State and any political subdivision may voluntarily appropriate, match, supplement, or expend non-Federal funds for purposes consistent with this Act. No State or local matching contribution is required as a condition of eligibility for federal funds unless separately enacted by the State.

Federal funds received under the corresponding federal election-personnel protection program shall be held in a State election-personnel protection fund or separately accounted subaccount of an existing State election fund. Interest earned on federal amounts shall be credited to that fund or subaccount and used only for purposes authorized by this Act and the governing federal statute.

Unobligated federal balances may be carried forward into succeeding fiscal years while this Act, or substitute provisions satisfying the federal minimum requirements, remains in force. Future federal payments may be reduced pursuant to the nondiscretionary balance-adjustment formula established by federal law if the State's unobligated federal balance exceeds the federal reserve threshold.

Funds distributed to local jurisdictions shall be allocated under objective criteria that consider population, number of election facilities, documented risk, resource capacity, and demonstrated security need. Political affiliation, election outcome, and disagreement with state or local election policy may not be considered.

Acceptance of federal funds does not authorize a federal officer or entity to supervise or influence any election law, policy, procedure, decision, or dispute beyond verifying eligibility and lawful expenditure under the governing federal statute.

## **SEC. 18. FEDERAL ELIGIBILITY CERTIFICATION AND CONTINUING MAINTENANCE.**

This Act is intended to constitute a qualifying State law for purposes of the Election Personnel Protection Payments title of the Help America Vote Act of 2002, as amended.

The chief state election official and the attorney general, or equivalent state legal officer, shall jointly prepare and submit any certification, citation table, statutory crosswalk, expenditure certification, unobligated-balance report, reserve-threshold calculation, or related fiscal report required to establish or maintain eligibility for federal election-personnel protection payments.

The State shall maintain the protections required by this Act as a condition of future eligibility for such payments. Repeal or material narrowing of this Act terminates eligibility for future federal payments unless the State enacts substitute provisions satisfying the federal minimum requirements.

Nothing in this section incorporates future federal guidance, regulation, policy statement, executive order, model practice, or administrative condition into state law. Eligibility shall be determined only by the federal statute enacted by Congress and the state statutory provisions in force.

## **SEC. 19. RELATION TO OTHER LAW.**

This Act supplements and does not narrow any other criminal offense, civil remedy, public-employment protection, address-confidentiality provision, victims' right, emergency authority, or election-continuity procedure.

Where another law provides greater protection consistent with constitutional requirements, the greater protection controls.

## **SEC. 20. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

### **Budgetary Impact Statement**

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

### **Drafting Notes**

- The Act intentionally uses existing state institutions rather than creating a new election-security agency.
- Criminal threat provisions must require at least recklessness as to the threatening character of the communication under *Counterterm v. Colorado*, 600 U.S. 66 (2023).
- Doxxing provisions are limited by intent, recklessness, causation, exceptions, and tailored remedies to reduce First Amendment and overbreadth risk.
- The model distinguishes personal protection from election administration: the protection coordinator may secure people and operations but may not direct election outcomes or procedures beyond continuity requirements stated by law.
- States should conform protective-order procedure, offense grading, public-record exemptions, labor protections, standing, and appropriations to their constitutions and existing codes.
- The federal eligibility crosswalk is mandatory for future revision: no federal minimum condition should be added or revised without identifying the corresponding state-law provision.
- The manifestation-to-remedy crosswalk is mandatory for future revision: no documented manifestation should remain without a corresponding preventive, protective, continuity, remedial, or workforce mechanism.

### **Source Notes**

- Threat-offense review should include *Counterterm v. Colorado*.



# ELEC-004-state — Model State Election Proceedings Integrity Act

## A MODEL STATE BILL

To establish an Anti-SLAPP-style special screening mechanism for election proceedings, subpoenas, audits, investigations, and inspection demands; to preserve good-faith election challenges; to prevent legal process from being used to delay certification, manufacture uncertainty, harass election personnel, obtain unauthorized access to sensitive election materials, or create a false predicate for extra-legal pressure; and for other purposes.

### SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Proceedings Integrity Act.**”

### SEC. 2. PURPOSES.

#### **(a) Anti-SLAPP-style adaptation.**

This Act adapts the procedural logic of Anti-SLAPP laws to state election proceedings. Anti-SLAPP laws recognize that legal process can itself be used abusively to impose cost, delay, discovery burdens, reputational harm, or coercive pressure before a court or tribunal reaches the merits. This Act applies that logic to election litigation, subpoenas, audits, investigations, and inspection demands that seek election-disruptive relief or access to sensitive election material without an early particularized showing.

#### **(b) Purposes.**

The purposes of this Act are to preserve access to lawful recounts, contests, audits, investigations, and judicial review; distinguish ordinary citizen reporting from coercive or disruptive election proceedings; require early particularized showings before a proceeding may delay certification, alter results, compel nonstatutory audits, burden election personnel, or access sensitive election materials; protect ballots, voter privacy, voting systems, chain of custody, and election-security information; reduce abuse of subpoenas, discovery, investigations, and public-law proceedings; and provide sanctions where later-discovered evidence proves that a proceeding was materially connected to a coordinated improper scheme.

### SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election proceeding** means a civil action, election contest, petition, motion, subpoena, discovery demand, inspection demand, audit demand, legislative demand, administrative demand, or request for emergency relief filed, issued, or pursued in relation to an election if the proceeding seeks or would foreseeably cause election-disruptive relief.
2. **Election-disruptive relief** means relief or action that would delay, enjoin, alter, decertify, nullify, or otherwise disturb voter eligibility lists, ballot preparation, voting procedures, counting, tabulation, auditing, recounting, canvassing, certification, appointment of presidential electors, transmission of election returns, or another statutory election deadline.
3. **Sensitive election material** means ballots, ballot images, voter-identifiable data, election-management-system data, voting-system source code, tabulator or scanner data, security logs, chain-of-custody records, passwords, keys, security procedures, facility plans, or other election material whose disclosure, inspection, copying, or transfer may impair ballot secrecy, voter privacy, election security, or chain of custody.
4. **Special screening motion** means a motion under section 5 to dismiss, narrow, stay, condition, or otherwise control a covered election proceeding.
5. **Improper purpose** includes delay, harassment, knowingly false factual presentation, reckless disregard of contrary evidence, unauthorized access to sensitive election material, creation of a false predicate for disrupting certification or elector appointment, or other bad-faith use of legal, investigative, administrative, legislative, or judicial process.
6. **Good-faith report** means a report of suspected election irregularity made to an election official, law-enforcement agency, prosecutor, candidate, political party, court, or other body authorized by law to receive such information, where the report does not itself seek election-disruptive relief or access to sensitive election material.

### SEC. 4. SCOPE; PRESERVED ACTIVITY.

#### **(a) Scope.**

This Act applies to covered election proceedings under state law, including proceedings in state courts, before state or local election bodies, and before state or local entities authorized to issue subpoenas, audit demands, inspection demands, or investigative requests relating to an election.

#### **(b) Preserved activity.**

Nothing in this Act limits a good-faith report, ballot-specific voter remedy, recount, audit, contest, public-records request, criminal investigation or prosecution, or the authority of a court or election tribunal to provide relief for a proven violation of law.

***(c) Relief-based trigger.***

This Act applies according to the relief sought or reasonably foreseeable procedural effect of the proceeding, not solely according to the identity of the filer.

## **SEC. 5. SPECIAL MOTION TO SCREEN COVERED ELECTION PROCEEDING.**

***(a) Motion authorized.***

A party, election official, governmental entity, affected candidate, affected voter, or custodian of sensitive election material may file a special screening motion in a covered election proceeding.

***(b) Pre-election timing limitation.***

A special screening motion may not be filed with respect to a future election scheduled to occur more than 180 days after the date of the motion, unless the motion is directed to a request for immediate access to sensitive election material or another present risk to ballot secrecy, voter privacy, chain of custody, or election security.

***(c) No post-election cutoff.***

No fixed post-election time limit applies to a special screening motion. After the election occurs, a special screening motion may be filed in any covered election proceeding that seeks or materially relates to election-disruptive relief, counting, tabulation, auditing, recounting, canvassing, certification, elector appointment, election contest, validity of the election result, or access to sensitive election material.

***(d) Time for filing.***

Subject to subsections (b) and (c), a special screening motion shall be filed as soon as practicable. A court or tribunal may permit later filing for good cause or where the election-disruptive character of the proceeding becomes apparent after filing.

***(e) Required early showing.***

Upon filing of a special screening motion, the person seeking election-disruptive relief or access to sensitive election material shall make a prima facie showing of legal authority, timeliness, particularized material facts, admissible evidence or a verified factual proffer, materiality, remedy fit, necessity of any intrusive process or sensitive-material access, and absence of improper purpose.

***(f) Court or tribunal action.***

If the required showing is not made, the court or tribunal shall dismiss, deny, narrow, stay, condition, quash, modify, or otherwise control the proceeding, demand, subpoena, inspection, audit, or request to the extent necessary to prevent election-disruptive relief, unauthorized access to sensitive election material, or abuse of process.

## **SEC. 6. AUTOMATIC STAY OF INTRUSIVE PROCESS.**

***(a) Stay.***

Upon filing of a special screening motion, discovery, subpoenas, inspections, audits, forensic access, equipment access, ballot access, source-code access, and access to sensitive election material shall be stayed until the court or tribunal resolves the motion.

***(b) Narrow exception.***

The court or tribunal may authorize limited discovery or inspection before resolving the motion only upon a finding that the discovery or inspection is narrowly tailored, necessary to test a specific colorable and material claim, and subject to adequate protection for ballot secrecy, voter privacy, chain of custody, and election security.

## **SEC. 7. EMERGENCY RELIEF FINDINGS.**

A court or tribunal may not issue a temporary restraining order, preliminary injunction, stay, impoundment order, certification delay, elector-appointment delay, extraordinary audit order, or other election-disruptive relief unless it makes written findings that the movant is substantially likely to succeed on a legally authorized claim, the alleged defect is material, irreparable injury is not primarily caused by the movant's delay, no narrower lawful remedy is adequate, the relief is compatible with applicable election deadlines or necessary to remedy a proven violation of law, and the relief will not unnecessarily impair voters, election personnel, ballot secrecy, voter privacy, chain of custody, or election security.

## **SEC. 8. SENSITIVE ELECTION MATERIAL PROTECTION.**

A court or tribunal authorizing access to sensitive election material shall enter a protective order or equivalent directive that limits access to persons with a demonstrated need, prohibits unauthorized disclosure, preserves ballot secrecy and chain of custody, prevents disclosure of source code, credentials, security logs, keys, facility plans, or exploitable security information except under secure conditions, requires secure storage and return or destruction of copies, and imposes sanctions for violation.

## **SEC. 9. FEES, COSTS, AND SANCTIONS AT SCREENING OR DISPOSITION.**

### ***(a) No automatic penalty for losing.***

A person may not be sanctioned under this Act solely because an election claim, motion, petition, demand, or request is denied.

### ***(b) Sanctions authorized.***

The court or tribunal may award reasonable attorney's fees, costs, public costs, or other appropriate sanctions if it finds that a filing, request, subpoena, audit demand, discovery demand, or emergency-relief request was frivolous, knowingly unsupported, presented for improper purpose, materially based on false factual allegations, legally foreclosed by binding authority, maintained after a defect was identified, or used to harass, delay, or obtain unauthorized access to sensitive election material.

### ***(c) Additional authority preserved.***

This Act supplements and does not limit state rules of civil procedure, attorney-discipline rules, contempt authority, public-records protections, election-code remedies, or inherent judicial or tribunal authority.

## **SEC. 10. LATER-DISCOVERED IMPROPER-PURPOSE SANCTIONS.**

### ***(a) Independent post-disposition motion.***

A motion under this section is an independent post-disposition motion for sanctions and ancillary relief. The motion may be filed whether or not a special screening motion under section 5 was previously filed, granted, denied, withdrawn, or resolved on other grounds.

### ***(b) Ancillary jurisdiction after termination.***

The court or tribunal retains ancillary jurisdiction to resolve a motion under this section after dismissal, remand, voluntary dismissal, settlement, denial of emergency relief, final judgment, or other termination of the covered election proceeding.

### ***(c) Time for motion.***

Within one year after final disposition of a covered election proceeding, or within 180 days after discovery of material evidence of improper purpose, whichever is later, a party, governmental entity, election official, affected candidate, affected voter, or custodian of sensitive election material may move for sanctions under this section.

### ***(d) Standard.***

The court or tribunal may impose sanctions if clear and convincing evidence shows that the proceeding, filing, subpoena, discovery request, inspection demand, audit demand, investigation demand, or request for emergency relief was materially presented, maintained, coordinated, or used for an improper purpose.

### ***(e) Relevant evidence.***

Relevant evidence may include communications, funding arrangements, concealed coordination, inconsistent public and tribunal representations, knowingly false factual assertions, fundraising representations, links to certification delay, links to elector-appointment disruption, or efforts to create a false predicate for governmental action.

### ***(f) Relief.***

Sanctions may include attorney's fees, public costs, restitution for election-administration expenses, referral to disciplinary authorities, civil penalties where authorized by law, restrictions on future emergency election filings absent leave of court, protective orders, and referral to prosecuting authorities where criminal conduct may be implicated.

### ***(g) Due process.***

No sanctions may be imposed under this section without notice, an opportunity to respond, and an evidentiary hearing where material facts are disputed.

## **SEC. 11. EXPEDITED REVIEW.**

A court or appellate court shall expedite to the greatest practicable extent any proceeding involving election-disruptive relief, access to sensitive election material, a special screening motion, or sanctions under this Act.

## **SEC. 12. UNIFORM APPLICATION.**

This Act applies without regard to the party, candidate, office, ballot measure, viewpoint, ideology, or anticipated electoral outcome involved.

## **SEC. 13. RELATION TO OTHER LAW.**

This Act supplements and does not narrow any lawful recount, contest, audit, investigation, public-records, voter-remedy, criminal, disciplinary, or judicial procedure. Where a more specific election statute provides greater protection against abuse, delay, unauthorized access, or improper disclosure, the more protective provision controls.

## **SEC. 14. SEVERABILITY.**

If any provision or application of this Act is held invalid, the remainder shall not be affected.

## **Budgetary Impact Statement**

Administrative workload is possible; no new appropriation is specified.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- The proposal is Anti-SLAPP-style: it adapts early screening, discovery stay, burden clarification, fee-shifting, and sanctions to election-disruptive proceedings.
- The special motion is motion-invoked, not automatic.
- A pre-election timing bar prevents the motion from being filed for elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue.
- The Act imposes no fixed post-election cutoff; post-election availability depends on functional relation to the election result, election administration, or sensitive election material.
- Section 10 is expressly independent of the special screening motion and survives termination of the underlying proceeding.
- State versions should be checked against state Anti-SLAPP provisions, court-rule authority, separation of powers, open-records clauses, ballot-secrecy provisions, and election-contest statutes.

## **Source Notes**

- Source review should compare each adopting state's election-contest, court-rule, public-records, ballot-secrecy, and Anti-SLAPP statutes; the federal counterpart is ELEC-004. For state Anti-SLAPP variation, review jurisdiction-specific statutes and secondary surveys such as the Reporters Committee for Freedom of the Press Anti-SLAPP guide.

# ELEC-011-state — Model State Algorithmic Redistricting Baseline and Public Deviation Act

## A MODEL STATE BILL

To require a neutral algorithmic baseline map at the beginning of each redistricting cycle; to prohibit partisan, incumbent, candidate, donor, and election-performance data from the baseline process; to require public findings for any departure from the baseline; to preserve lawful representation safeguards; to provide legislative approval and judicial fallback procedures; and for other purposes.

### SECTION 1. SHORT TITLE.

This Act may be cited as the “**Algorithmic Redistricting Baseline and Public Deviation Act.**”

### SEC. 2. PURPOSES.

The purposes of this Act are to—

1. reduce partisan, incumbent-protection, and factional manipulation of district lines;
2. require a neutral first-draft map before discretionary map changes are considered;
3. preserve lawful protections for equal population, contiguity, compactness, minority voting opportunity, tribal integrity, municipal integrity, and compact communities of interest;
4. make every departure from the neutral baseline public, written, criterion-specific, and reviewable;
5. preserve legislative responsibility for adopting district plans while preventing unexplained substitute maps;
6. prohibit use of partisan, incumbent, candidate, donor, campaign, or election-performance data in the baseline map;
7. deter mid-decade redistricting for political advantage; and
8. improve public confidence that districts are drawn from neutral rules rather than private political bargaining.

### SEC. 3. DEFINITIONS.

In this Act:

1. **Algorithmic baseline map** means the first redistricting plan generated under section 5 by applying the approved redistricting algorithm to authorized input data before any discretionary human departure.
2. **Approved redistricting algorithm** means the public, deterministic, replicable method adopted under section 4 to generate an algorithmic baseline map.
3. **Authorized input data** means population data, census geography, precinct geography where needed for administrability, contiguity data, state boundary data, political-subdivision boundary data, tribal boundary data where lawfully available, water and geographic-feature data, and other nonpartisan data expressly authorized by this Act or by rule adopted under this Act.
4. **Prohibited political data** means data concerning political party affiliation, voter registration by party, prior election results, partisan performance, candidate residence, incumbent residence, campaign contributions, donor identity, campaign activity, candidate endorsements, demographic proxies selected for partisan effect, or any comparable data whose principal use in redistricting is partisan, incumbent-protective, or factional advantage.
5. **Covered district plan** means a congressional, state legislative, or other district plan required to be redrawn after a federal decennial census or other lawful redistricting trigger.
6. **Departing plan** means any proposed district plan that differs from the algorithmic baseline map.
7. **Deviation** means any material change from the algorithmic baseline map, including alteration of a district boundary, exchange of population between districts, division or consolidation of a political subdivision or compact community, or change in district configuration.
8. **Permissible deviation criterion** means a criterion listed in section 7.
9. **Review body** means the nonpartisan office, independent commission, redistricting commission, or other state body designated under section 4 to review the algorithmic baseline map and any departing plan.
10. **Material objection** means a public comment, expert submission, local-government submission, tribal-government submission, community submission, or party submission that identifies a specific legal, factual, representational, geographic, or administrability issue with the algorithmic baseline map or a departing plan.

## **SEC. 4. DESIGNATION OF REDISTRICTING AUTHORITY AND ALGORITHM.**

### ***(a) Designation.***

The State shall designate by law a review body to administer the baseline process required by this Act. The review body may be an existing nonpartisan legislative service office, an independent redistricting commission, a state election office, a court-appointed special master, or another body that satisfies subsection (b).

### ***(b) Required independence safeguards.***

The review body shall operate under written safeguards that—

1. prohibit the use of prohibited political data except as expressly permitted in section 8;
2. require public disclosure of algorithm specifications, input data, code, parameter settings, and map outputs;
3. prohibit private communications concerning map design except as disclosed in the public record;
4. require staff and contractors to certify compliance with this Act;
5. require preservation of all draft maps, code versions, data files, comments, findings, and communications required to be public under this Act; and
6. require recusal from baseline generation or deviation review for a person with a current campaign, candidate, party, lobbying, paid map-consulting, or incumbent-protection conflict defined by rule.

### ***(c) Algorithm adoption.***

Not later than one year before the next ordinary redistricting cycle, the review body shall adopt an approved redistricting algorithm by public rule or public order.

The approved redistricting algorithm shall—

1. be deterministic and replicable from public inputs;
2. prioritize equal population and contiguity;
3. use compactness and boundary-respect measures defined in advance;
4. avoid use of prohibited political data;
5. identify how ties or equivalent map outputs are resolved;
6. generate a complete baseline plan for each covered district plan;
7. produce machine-readable and human-readable outputs; and
8. be capable of independent replication by a court, expert, candidate, civic organization, local government, tribal government, or member of the public using public data.

### ***(d) Algorithm selection standards.***

The State may use shortest splitline, modified shortest splitline, or another neutral deterministic method if the method satisfies subsection (c). The State shall not select an algorithm because it predictably advantages or disadvantages a party, candidate, incumbent, faction, racial group, language-minority group, region, or community.

## **SEC. 5. ALGORITHMIC BASELINE MAP.**

### ***(a) Baseline required.***

For each redistricting cycle and each covered district plan, the review body shall generate and publish an algorithmic baseline map before the legislature, commission, court, or other adopting authority considers any departing plan.

### ***(b) Publication.***

The review body shall publish—

1. the algorithmic baseline map;
2. the approved redistricting algorithm;
3. source code or a complete technical specification sufficient for independent replication;
4. authorized input data;
5. parameter settings;
6. population totals and deviations for each district;

7. compactness and boundary-respect measures;
8. a plain-language explanation of the algorithm; and
9. instructions for submitting public comments and proposed corrections.

***(c) Baseline legal review.***

The review body shall conduct an initial legal and administrability review of the algorithmic baseline map and identify any apparent issue concerning equal population, contiguity, federal law, state constitutional law, Voting Rights Act compliance, tribal integrity, political-subdivision integrity, compact communities of interest, geographic barriers, election administration, or other permissible deviation criterion.

***(d) No final adoption by silence.***

The algorithmic baseline map shall not become the enacted district plan by mere publication unless state law separately provides for automatic adoption after completion of the public process required by this Act.

## **SEC. 6. PROHIBITED DATA AND COMMUNICATIONS.**

***(a) Baseline map prohibition.***

The review body, staff, contractors, consultants, and any person generating the algorithmic baseline map may not use prohibited political data to generate, tune, select, reject, or modify the algorithmic baseline map.

***(b) Departing plan disclosure.***

If a person submits or sponsors a departing plan and has used any data described in the definition of prohibited political data, the person shall disclose the data categories used and the reason each category was used. Disclosure under this subsection does not make the data use lawful if otherwise prohibited.

***(c) Private map design communications.***

A communication concerning district configuration, baseline-map alteration, or a departing plan between the review body and a legislator, legislative staff member, party officer, candidate, incumbent, campaign, donor, lobbyist, consultant, or outside organization shall be placed in the public record unless protected by a court order or by a specific privilege recognized by state law.

## **SEC. 7. PERMISSIBLE DEVIATIONS FROM BASELINE.**

***(a) Written findings required.***

A departing plan may be considered only if each material deviation from the algorithmic baseline map is supported by written findings identifying the specific permissible deviation criterion, the facts supporting the deviation, the data used, the population affected, and why no narrower deviation is adequate.

***(b) Permissible deviation criteria.***

A deviation from the algorithmic baseline map may be justified only to—

1. comply with the United States Constitution;
2. comply with the State Constitution;
3. comply with the Voting Rights Act of 1965 or another applicable federal voting-rights law;
4. comply with a state voting-rights act consistent with this Act and other controlling law;
5. maintain contiguity;
6. reduce avoidable population deviation;
7. preserve a federally recognized tribal community or reservation where lawful and administratively feasible;
8. preserve a municipality, county, precinct, or other political subdivision where lawful and administratively feasible;
9. preserve a compact community of interest supported by public evidence;
10. address a significant geographic barrier or transportation discontinuity;
11. correct a data error, topology error, census-geography error, or algorithmic implementation error;
12. improve election-administration feasibility without using prohibited political data; or
13. comply with a final court order.

***(c) Narrow tailoring.***

Each deviation shall be no broader than reasonably necessary to satisfy the identified permissible deviation criterion.

***(d) State-law limitation.***

A state voting-rights act may justify a deviation only if the law protects equal political opportunity or lawful representation safeguards and does not authorize a departure broader than necessary to remedy the identified legal or representational injury.

***(e) Prohibited justifications.***

A deviation may not be justified by incumbent protection, candidate protection, partisan advantage, donor preference, campaign strategy, retaliation against voters, dilution of a disfavored community, or a desire to avoid lawful electoral competition.

***(e) Burden of explanation.***

The sponsor of a departing plan bears the burden of producing the written findings required by this section. The review body shall determine whether the findings are complete before the departing plan may proceed to legislative consideration.

## **SEC. 8. REPRESENTATION-SAFEGUARD REVIEW.**

***(a) Required review.***

Before final adoption of a covered district plan, the review body shall evaluate whether the algorithmic baseline map or a departing plan unlawfully dilutes voting strength, violates federal or state voting-rights law, subordinates traditional districting principles without legal necessity, or creates a legally impermissible racial gerrymander.

***(b) Limited use of sensitive representation data.***

Race, ethnicity, language-minority, tribal, citizenship-age population, voting-age population, and comparable representation data may be used only for the review and lawful correction of issues identified in subsection (a), not for partisan, incumbent-protection, or factional advantage.

***(c) Public explanation.***

Where a map uses representation data to support a deviation, the review body shall publish findings explaining the legal basis, factual basis, affected districts, alternative maps considered, and reasons the deviation is narrowly tailored.

***(d) No quota or entitlement.***

Nothing in this Act authorizes a quota, racial target, partisan target, or predetermined electoral outcome. The Act preserves lawful representation safeguards while requiring neutral, public, and reviewable justification.

## **SEC. 9. PUBLIC COMMENT AND RESPONSE.**

***(a) Comment period.***

The review body shall provide a public comment period of not less than 30 days after publication of the algorithmic baseline map and not less than 14 days after publication of any materially departing plan, unless a court finds that an emergency deadline requires a shorter period.

***(b) Hearings.***

The review body shall hold public hearings accessible to residents in different regions of the State and shall provide remote participation to the greatest practicable extent.

***(c) Response to material objections.***

Before final legislative consideration, the review body shall publish a response to material objections. The response shall state whether the objection is accepted, rejected, or resolved by modification and shall identify the supporting facts and legal criteria.

***(d) Public archive.***

The State shall maintain a public archive containing the algorithm, data, baseline map, departing plans, written findings, public comments, responses to material objections, hearing materials, final enacted plan, and any judicial order relating to the plan.

## **SEC. 10. LEGISLATIVE CONSIDERATION.**

***(a) Baseline-first rule.***

The legislature may not consider or enact a covered district plan until the algorithmic baseline map and the review body's written findings have been published as required by this Act.



***(b) Up-or-down procedure authorized.***

The State may provide by law that the legislature shall vote first on the algorithmic baseline map or on a review-body recommended plan without amendment.

***(c) Constrained amendments.***

If legislative amendments are permitted, each amendment shall be accompanied by written findings satisfying section 7 and shall be published before final passage unless a court finds that an emergency deadline requires shorter notice.

***(d) Explanation of rejection.***

If the legislature rejects the algorithmic baseline map or a review-body recommended plan, the rejecting chamber shall publish a written statement identifying the statutory criteria or legal defects that justify rejection.

***(e) No secret substitute map.***

The legislature may not enact a covered district plan that has not been published, reviewed, and subjected to public comment under this Act, except pursuant to a final court order.

## **SEC. 11. JUDICIAL FALLBACK.**

***(a) Trigger.***

Judicial fallback is available if—

1. the legislature fails to enact a covered district plan by the statutory deadline;
2. the legislature rejects two plans that the review body has found compliant;
3. the legislature enacts a plan without the findings, publication, comment, or review required by this Act;
4. a court invalidates an enacted plan and no timely lawful replacement is enacted; or
5. a court finds that the redistricting process has been materially corrupted by prohibited data use, undisclosed map design communications, or bad-faith evasion of this Act.

***(b) Court authority.***

Upon a fallback trigger, the court may adopt the algorithmic baseline map, adopt a review-body recommended plan, appoint a special master, order limited corrections, set an expedited schedule, or provide other relief necessary to implement a lawful district plan.

***(c) Preference.***

In selecting a remedial plan, the court shall give preference to the algorithmic baseline map or the least-departing lawful plan unless the court finds that a greater departure is necessary to comply with federal or state law.

## **SEC. 12. MID-DECADE REDISTRICTING LIMIT.**

***(a) General rule.***

After a covered district plan is enacted following a federal decennial census, the State may not enact a replacement plan before the next federal decennial census except as provided in subsection (b).

***(b) Exceptions.***

Mid-decade redistricting is permitted only—

1. to comply with a final court order;
2. to correct a legally material census, boundary, or data error;
3. to comply with federal law or state constitutional law;
4. to implement a newly enacted state constitutional redistricting requirement; or
5. to remedy a plan held invalid by a court of competent jurisdiction.

***(c) No partisan-purpose exception.***

Partisan advantage, incumbent protection, change in legislative control, change in executive control, or dissatisfaction with the prior plan is not a lawful basis for mid-decade redistricting.

## **SEC. 13. PRIVATE RIGHT OF ACTION AND EXPEDITED REVIEW.**

### **(a) Action authorized.**

A voter, candidate, political subdivision, tribal government, community organization, or other person authorized by state law may bring an action to enforce this Act.

### **(b) Relief.**

A court may grant declaratory relief, injunctive relief, remand to the review body, invalidation of an unlawful departing plan, adoption of a fallback plan, costs, reasonable attorney's fees where authorized by state law, and other appropriate relief.

### **(c) Expedited review.**

A court shall expedite any action under this Act to the greatest practicable extent, especially where delay may affect candidate filing, ballot preparation, primary elections, general elections, or representation during an election cycle.

## **SEC. 14. RELATION TO OTHER LAW.**

This Act supplements and does not diminish any protection provided by the United States Constitution, the State Constitution, the Voting Rights Act of 1965, a state voting-rights act, state redistricting criteria, state open-meetings law, state public-records law, or another law governing districting.

Where another law requires greater transparency, broader public participation, stricter anti-gerrymandering protection, or stronger minority-vote protection, the more protective provision controls to the extent consistent with federal law.

## **SEC. 15. RULEMAKING.**

The review body may adopt rules necessary to implement this Act, including rules governing algorithm selection, technical standards, data publication, conflict certification, public-comment procedure, hearing access, archive format, written findings, emergency deadlines, and preservation of records.

Rules adopted under this section may not authorize use of prohibited political data in the algorithmic baseline map or expand permissible deviation criteria beyond those stated in section 7.

Rules adopted under this section may not construe a state voting-rights act, state redistricting criterion, or state procedural rule to nullify the algorithmic baseline process or authorize a deviation broader than necessary to remedy the identified legal or representational injury.

## **SEC. 16. SEVERABILITY.**

If any provision of this Act or its application to any person or circumstance is held invalid, the remainder of this Act and the application of the provision to other persons or circumstances shall not be affected.

## **SEC. 17. EFFECTIVE DATE.**

This Act takes effect on [date] and applies to the first redistricting cycle beginning after that date. If enacted during an active redistricting cycle, the court or review body may adjust deadlines to preserve compliance with federal and state election deadlines while implementing the purposes of this Act to the greatest practicable extent.

## **Budgetary Impact Statement**

Budget authority may be required for algorithm development, public data publication, hearings, review-body staffing, technical contractors, archival systems, and litigation; no dollar estimate is assigned pending source-backed cost data.

*Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.*

## **Drafting Notes**

- This is a model state act and should be adapted to each State's constitution, redistricting commission structure, legislative procedure, public-records law, open-meetings law, judicial-review rules, and election calendar.
- The Act makes the algorithmic map the required first draft rather than the final enacted map.
- The Act prohibits partisan, incumbent, candidate, donor, campaign, and election-performance data in the baseline-generation process.
- The Act permits public and reviewable departures where needed for federal law, state constitutional law, Voting Rights Act compliance, state voting-rights acts, tribal integrity, political-subdivision integrity, compact communities of interest, geography, contiguity, equal population, or administrability.
- State voting-rights acts are treated as protective safeguards, not as authority to bypass the neutral baseline or justify broader-than-necessary departures.
- The Act includes judicial fallback to prevent repeated rejection of compliant maps or enactment of undisclosed substitute maps.

- The Act does not draft the reserve constitutional amendment referenced on the issue page.

## Source Notes

- The issue page source record currently includes *Louisiana v. Callais*, NCSL's redistricting commission summary, and shortest-splitline source development. T1 should verify Iowa statutory mechanics, state voting-rights acts, state constitutional redistricting provisions, commission structures, and algorithmic districting scholarship before treating this model act as ready for audit scoring.